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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. VALADAO).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
December 6, 2016.

I hereby appoint the Honorable DAVID G. VALADAO to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 5, 2016, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

HARDY MYERS: AN EXTRAORDINARY PUBLIC SERVANT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, Oregon lost an extraordinary statesman last week with the passing of Hardy Myers. He was the epitome of a public servant.

Hardy's public service career had an auspicious beginning as president of the Portland City Planning Commission in 1973, where he guided the development and approval of the downtown plan that didn't just win awards, it set Portland on a path to a revitalized central city.

He was elected to the State legislature in 1974, where I was privileged to work with him for two sessions. We served on the revenue committee together, and I was on the judiciary committee which he chaired with remarkable precision and productivity. The same skill and civility that was his hallmark led to his being elected for two terms as speaker of the Oregon House of Representatives, providing steady, thoughtful leadership during trying times for our State. Leaving the legislature, Hardy was not content to merely continue his legal practice at Stoel Rives, where he was for over 30 years.

The list of his volunteer boards and commissions that he combined with his work and elected service is too extensive to mention in full. His contributions, usually in a leadership role, included criminal justice, sentencing guidelines, transportation, and government reform.

Hardy capped off his career by serving 12 years as Oregon's attorney general, with a side trip as elected member of Portland's metropolitan, popularly elected regional government. As attorney general, he held the office with distinction, serving with great skill and commanding the respect and admiration of the State's lawyers. He gained national recognition from his fellow attorneys general for distinguished leadership.

I had the pleasure to hear Hardy argue and win a case before the United States Supreme Court. During his tenure as attorney general, Oregon won all six cases it brought to our Nation's highest court. He was a superb legislator and legal scholar who successfully ran for office and won nine tough campaigns.

Hardy never really got the attention his work warranted due to his thoughtful, understated service and personality, but all who served and worked with him were profoundly impressed with his professionalism, intellect, temperament, and quality of service.

This, of course, was just the public side of Hardy. He was gracious, warm, funny, and deeply and passionately committed to his family, his church, and his community. I only wish that I could be there in person Wednesday morning as friends, family, and admirers gather at All Saints Church—a place that played a central role in the Myers family—to pay tribute to this remarkable man.

Our hearts and sympathy go out to Mary Ann; his three sons, Hardy, III, Chris, and Jon; his 10 grandchildren; and his great grandchild. We thank them for sharing this remarkable citizen with all Oregonians.

Our State is better as a result of his extraordinary service as were all of us who were privileged to know him as friend.

RECOGNIZING THE 100TH BIRTHDAY OF RUTH JOHNSON COLVIN

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. KATKO) for 5 minutes.

Mr. KATKO. Mr. Speaker, I rise today to recognize the tremendous legacy of Ruth Johnson Colvin, a pioneer in the adult literacy movement from my district who is celebrating her 100th birthday this month.

Known as the mother of the adult literacy movement, Ruth Colvin has had an immeasurable impact on our community and our Nation.

In the 1960s, upon discovering that 11,000 people in her hometown of Syracuse, New York, could not read, Ruth Colvin launched Literacy Volunteers of America. That organization, now known as ProLiteracy, is still based in Syracuse, New York.

Printed on recycled paper.

Ruth Colvin has dedicated her entire life to teaching, assisting, and empowering adult learners. She has taught thousands of people to read, trained literacy tutors in 26 countries, and developed and published effective programs to teach basic literacy and English as a second language.

Because of her efforts, hundreds of thousands of adults have learned to read both locally in central New York and around the globe. Over more than four decades, Ruth Colvin has published nine books, visited or worked in more than 60 countries, and received nine honorary doctorate degrees. She was awarded the President's Volunteer Action Award from President Ronald Reagan, received the Presidential Medal of Freedom from President George W. Bush, and was inducted into the National Women's Hall of Fame.

Ruth Colvin has given so many the gift of literacy. On December 16 of this year, she will turn 100 years old.

Please join me in honoring her tremendous life's work and her legacy as we celebrate this milestone. Happy birthday, Ruth, and many, many more.

ISRAEL AND PALESTINE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIÉRREZ) for 5 minutes.

Mr. GUTIÉRREZ. Mr. Speaker, I am very concerned about what is going on in Israel, and I think it has implications both for U.S. foreign policy, for domestic policy, and for our own ally, Israel.

As the rightwing government of Netanyahu consolidates power and becomes, in many ways, the one-party rulers of Israel, a number of things are changing that should be of concern to all Americans. Specifically, the increasing dominance of the Likud Party as the one-party in Israel jeopardizes the two-state solution that I and many others in the United States and Israel feel is the only way to achieve long-term peace in the Middle East.

There is a retrenchment of hardline policies—aimed at solidifying alliances with smaller religious and hardline parties that keep Likud in power—that will make it harder for Israelis, their allies in America, and anyone who seeks a lasting peace to maintain progress towards a two-state solution.

Right now, the Knesset is considering legislation to legalize all Israeli settlements in Palestinian territory on the West Bank, even those constructed on private Palestinian land. Boom—400,000 people in settlements across the West Bank. It is all legal because they say it is legal, but it is not.

Israel is destroying Palestinian homes at a pace faster than we have ever seen before. It is provocative, sweeping, and designed to make it harder to ever reach an agreement with the Palestinians. The plan to restrict the Muslim call to player in Jerusalem has been revived, again to placate hardline religious constituents by Prime Minister Netanyahu. There is no statement clearer to people of the Islamic faith that they do not matter, that they do not belong, and that they will not be tolerated than to restrict the Muslim call to prayer in Jerusalem—a city that has heard the Muslim call to prayer for thousands of years.

I think what is going on in Israel with Prime Minister Netanyahu presents a cautionary tale about the consequences of following a political strongman. The strongman has to keep proving that he is a strongman over and over. Like other strongmen who ride fear into leadership—when you base your political career on injecting fear and resentment into political affairs, when you use the backdrop of terrorism and the understandable fear of the Israeli people as a political tool for years and decades—this is the kind of policy that results.

There is an appetite for constant escalation of what you are doing to stand up to the enemy you have constructed—an enemy based on but not the same as the enemies that fight against the State of Israel, tolerance, and peace in real life. Strongmen construct a foil—in this case based on the Palestinians, but sometimes exaggerated beyond recognition—and they need to feed the thirst for more and more action to attack the caricature that they have constructed.

But strongman politics in Israel has the impact of making a long-lasting solution that brings peace to the Middle East even harder to achieve. The fundamental rights of Palestinians to have their own state—a state alongside the Israeli state where they have the same basic rights and dignity to govern themselves and raise their families in peace—that is what most Israelis, Palestinians, and people around the world have been fighting for.

If we are ever going to achieve the permanent peace that allows Israel to exist without fear and Palestine to exist without occupation then we must continue to fight for the two-state solution.

When I was just a freshman, almost 25 years ago, we celebrated the accomplishments of Rabin, Arafat, and President Clinton to build towards a peace that recognizes the rights and dignity of the Israelis and the rights and dignity of the Palestinian people. For decades, the United States—under different leaders in different parties from Carter to Reagan to Bush to Obama—has recognized that peace will only come with mutual respect and tolerance. That is what we have based our foreign policy on and should continue to base our foreign policy on. Having talked with average people and with leaders on both sides of the Palestinian-Israeli conflict, I am convinced that is the only way forward toward peace.

America has been a catalyst—a constructive influence from outside, a nation based on religious freedom and democracy that has served as a model for both Palestinians and Israelis—and we have worked towards helping parties continue to move in the direction of two separate but mutually respectful countries, two nations that are not at war with each other or subservient to one another.

I fear, Mr. Speaker, that Israel herself is moving away from the two-state solution as a goal and that we, as her closest ally, must remind her, and ourselves, of what is at stake if we lose sight of this important goal.

PROTECTING PENSIONS OF COAL MINERS

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. MOONEY) for 5 minutes.

Mr. MOONEY of West Virginia. Mr. Speaker, I rise today to urge swift passage of H.R. 2403, the Coal Healthcare and Pensions Protection Act. This important legislation protects the pensions of coal workers who have spent their lives producing affordable, reliable energy for our country.

These miners were promised a pension when they signed up for the job, and, ever since the Truman administration, Congress has made sure that the commitment is honored. It is our duty to continue to uphold this promise made to our miners.

Without help from Congress this year, the United Mine Workers of America pension fund will be insolvent in 2017, resulting in massive cuts to benefits for 22,000 West Virginia mine workers and their families. The Coal Healthcare and Pensions Protection Act provides relief funding for these pensions without increasing spending of taxpayer dollars. Our country's hardworking coal miners are responsible for fueling and shaping our economy over the last 250 years. Retired coal miners and their widows deserve our respect, appreciation, and, above all else, the benefits that they were promised.

With 47 Republican and 40 Democrat cosponsors in the House, this bill is strongly supported by Members on both sides of the aisle. Again, I urge our leadership to bring H.R. 2403, the Coal Healthcare and Pensions Protection Act, to a vote immediately.

CONGRATULATING DR. TOM PRICE

Mr. MOONEY of West Virginia. Mr. Speaker, I rise today to congratulate my colleague and Budget Committee chairman, Dr. TOM PRICE, on President-elect Trump's recent appointment as the new Secretary for the Department of Health and Human Services. Chairman PRICE has become a friend to me over the past 2 years and will continue to do great things in his new job in the Trump administration.

When I was first elected to serve West Virginia's Second Congressional District in 2014, I promised my constituents that I would fight to repeal the Affordable Care Act, also known as

ObamaCare. My first month in office on February 3, 2015, House Republicans successfully voted to repeal ObamaCare. In December of that same year, the Senate passed our legislation to repeal ObamaCare. President Obama vetoed it at that time. But we will have a new President next year.

Healthcare costs are on the rise because of ObamaCare. ObamaCare adds burdensome taxes, regulations, and mandates onto American consumers. The limited choice in health insurance plans is harming families and their budgets.

ObamaCare has killed 2.9 million jobs a year, has continued to raise health insurance costs, and has also placed the Federal Government in between patients and their doctors. Who are these 2.9 million Americans? They are disproportionately low-wage workers earning well below the average annual wage for all workers, which is less than $46,000 a year, according to the Congressional Budget Office. The people who are hurt the most by ObamaCare are the ones that ObamaCare is supposed to help the most.

Research done by the National Center for Policy Analysis found that the average monthly premium costs in every demographic rose substantially after ObamaCare was implemented.

□ 1015

West Virginians who get their health insurance through employer-sponsored programs are paying some of the highest rates in the United States. In West Virginia, premiums through employer-sponsored health insurance programs have climbed at a steady rate of about 6.4 percent annually since 2010, and it keeps getting worse. The 33,421 West Virginians who are currently enrolled in the Affordable Care Act do not need to see their rates hiked up again.

As a Republican in Congress, I want to ensure that everyone has access to health care, but it will be quality health care that people choose for themselves. That is why House Republicans have come up with a plan we call A Better Way. Our plan recognizes that people deserve more patient-centered care, not more bureaucracy. That means more choices, not more mandates.

A Better Way plan offers many improvements that will help West Virginia's Second Congressional District, including commonsense reforms to allow health insurance sales across State lines. You should have the freedom and flexibility to choose the care that is best for you. Insurers should compete for your business and treat you fair. You and your family should have access to the best lifesaving treatment in the world.

Under Chairman TOM PRICE's leadership, I believe that our healthcare system in America will thrive. Again, I would like to extend my sincere thanks to my friend, Dr. TOM PRICE.

HONORING VIRGINIA STRATTON

The SPEAKER pro tempore. The Chair recognizes the gentleman from Iowa (Mr. LOEBSACK) for 5 minutes.

Mr. LOEBSACK. Mr. Speaker, I come to the House floor today to honor one of my longtime district staffers, Virginia Stratton, who retired recently.

Virginia had been with my office, serving the people of Iowa, since I first came into office in January 2007. Since then, she has handled more than 3,300 cases for Iowans having issues with the Department of Defense, the Department of Labor, and the Postal Service; but, by far, the largest portion of her cases involved the Veterans Administration.

As I travel across my district, all 24 counties, meeting with veterans, it never fails that one of the first things I hear is about how hard Virginia fought on their behalf or on behalf of their loved ones to cut through the red-tape at the VA.

Whether it was securing medals for veterans who served but didn't receive their proper recognition, or helping expedite a disability appeal, there was nothing—and I say nothing—Virginia would not do to ensure our veterans received the assistance that they needed. I always knew that if Virginia was on the case, there would be no stone left unturned and no question left unasked. She worked every day for the past 10 years to ensure our veterans received the care they earned and rightly deserved.

As a military parent myself, I believe we have no greater responsibility as a nation than to ensure our veterans are treated with the same dignity and honor with which they served our country. There is no one—no one, folks—who epitomizes that sentiment more than Virginia. She has been one of the greatest champions for veterans, and there was no issue that was too small or too great for her to take on.

In the nearly 10 years that Virginia worked for my office, she literally personally affected the lives of thousands of Iowans. Virginia's retirement is a loss for the people of Iowa, but the efforts and hours she invested in working on behalf of our veterans will never be forgotten. On behalf of the people of Iowa and all of the veterans of America, my wife Terry and I wish Virginia the best in the next chapter of her life.

TRIBUTE TO CHAIRMAN HAL ROGERS

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. JENKINS) for 5 minutes.

Mr. JENKINS of West Virginia. Mr. Speaker, I rise today to pay tribute to a dear colleague, mentor, and friend as he is concluding his 6 years as chairman of the House Appropriations Committee.

I have had the honor and pleasure of serving with Chairman HAL ROGERS for the last 2 years. Since day one of his chairmanship, he has been the driving force to revive the appropriations process. Anyone who knows Chairman ROGERS, knows his top priority is regular order.

During his chairmanship, he has managed 140 appropriations bills on the floor, and managed more than 600 important oversight and budget hearings and markups. He has worked every day to ensure that the taxpayers' dollars are being used wisely and responsibly.

He has stopped wasteful spending, saving the country billions of dollars. He has also invested in higher priority programs, those that help keep our Nation on the right track, keep us safe, keep us secure, fight against drug abuse, and promote critical rural infrastructure needs. He has never lost sight of his home in Kentucky and the people he represents in Congress. Their priorities are his priorities.

I know this well because my district is right next door. We are only separated by the Tug Fork River, a small, narrow body of water that goes through the hills of Appalachia. Chairman ROGERS and I share the good people of Appalachia. We know the greatness of our people. We know how hard-working they are. It is the coal miners, it is the farmers, it is the factory workers, it is the teachers, it is the backbone of America we both have the honor of representing.

I have been able to see firsthand Chairman ROGERS' commitment to the people of Kentucky, his fight for the coal miners and retirees, his fight of the opioid crisis that is devastating communities throughout our region and this country, his support for education, and his leadership in creating the SOAR program, shaping our Appalachian region.

Chairman ROGERS has left an indelible mark as chairman of the House Appropriations Committee. We thank him for his leadership in that role over these past 6 years. We have a better Appropriations Committee because of it and a better institution here in the House of Representatives, thanks to the leadership of Chairman HAL ROGERS.

I ask my fellow Members to join me in thanking him for his service as chairman. I am honored to look forward to working with him in his continuing capacity here in the House of Representatives.

Thank you, Chairman ROGERS.

COMMEMORATING THE LIFE OF LEONARD ROTHSTEIN

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from New York (Ms. MENG) for 5 minutes.

Ms. MENG. Mr. Speaker, I rise today to commemorate the life of my constituent Leonard Rothstein, who passed away on September 16, 2016.

Mr. Rothstein bravely served in the Korean war as a private first class, contributing to the war effort as a radioman. Mr. Rothstein was honorably

discharged from the Army on October 23, 1953. He received a National Defense Service Medal, the Army Good Conduct Medal, the United Nations Service Medal, and the Korean Service Medal, with two Bronze Stars for his service. Mr. Rothstein took great pride in his service to our country and requested to be buried with his military medals. He received a military funeral at the Sinai Chapel in Fresh Meadows, Queens.

After being discharged from the war, Mr. Rothstein brought his work ethic to Local Union 3 IBEW and the New York Hotel Trades Council as an electrician. Anyone would be proud to know someone as dedicated to their community as Leonard.

Mr. Rothstein has been described as an unassuming, kindhearted person who rarely had a bad thing to say about anyone. He traveled with his wife, Gus, to every State in the Nation by bus, train, or plane since they didn't drive. Mr. Rothstein was beloved by his family, and is survived by his wife, his sister, his two sons, his five grandchildren, and great grandson.

I am happy to stand here today as Mr. Rothstein's representative to express my gratitude for his bravery in service and his hard work as a union member. I urge my colleagues to join me in recognizing one of our Nation's veterans, and offering condolences to his family during this time.

CONGRATULATING GENERAL JIM MATTIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from South Carolina (Mr. WILSON) for 5 minutes.

Mr. WILSON of South Carolina. Mr. Speaker, I am grateful that President-elect Donald Trump has made another excellent appointment in selecting General Jim Mattis to serve as Secretary of Defense to rebuild our military.

A recent article in The Wall Street Journal notes, ''General Mattis has seen the cost of wars enough to want to deter them, but he also knows that if you fight them you need to do so with the force and will to win.''

President-elect Trump stated that General Jim Mattis is ''the closest thing to General George Patton that we have.''

The recent service of General Mattis in the Middle East makes him uniquely qualified to address threats to servicemembers overseas and American families here at home. With General Mattis serving as Secretary of Defense, our military will continue to be the best fighting force in the world, our men and women in uniform will be supported, and our military families will be protected. As a 31-year veteran and the grateful dad of four sons who have served overseas in the global war on terrorism, I am confident that our goal of peace through strength will be achieved under the leadership of General Jim Mattis.

In conclusion, God bless our troops, and may the President, by his actions, never forget September the 11th in the global war on terrorism.

THE PRESIDENT OF THE UNITED STATES IS STILL BARACK OBAMA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Washington (Mr. MCDERMOTT) for 5 minutes.

Mr. MCDERMOTT. Mr. Speaker, I just got a call from a reporter about a tweet, which the President-elect has made, canceling the contract with The Boeing Company and the Federal Government to build Air Force One. Now, the last time I looked, I think that the President of the United States is still Barack Obama. He will be President of this country until the 20th of January.

What we have right now is a President-elect running around the world with his tweet bar making statements that are disruptive and distractive for the American public. He calls Taiwan and raises questions about our relationship with China as though he were the Secretary of State, but he has not even found anyone to do that job. He should be in the transition office figuring out how he makes a smooth transition of the American Government from the efficiently run government of Mr. Obama to his administration, not making the decisions himself and going out and announcing them through his tweet at 3 a.m. because he can't sleep.

This kind of operation is the operation of somebody who is used to running a big business. When he is president of Trump casino or Trump Tower, he can act like that. He can come in and say: Do this, do that, do this, do that.

I don't know if he understands, Mr. Speaker, that you and the House of Representatives are the ones who made the contract and appropriated the money for that plane. That is the democratic process of this country. It is not done by the President getting up in the morning and tweeting out 147 characters and ending a contract with hundreds of jobs at risk of people in my district, good hardworking Americans.

He will go down to Indianapolis, Indiana, and walk around and say: I have saved 1,000 jobs.

We still haven't seen the contract. We don't know what the deal is, how long the jobs have to last, or how many of them have to last. We don't know anything. We just know that a tweet went out that: We have. And then he went and did a big rally down there and did a victory lap, but there is no piece of paper.

Mr. Speaker, if I were to make a recommendation to the people in Indianapolis, it would be: Talk to the Indians, to the Native Americans, about the treaties that have been made with the United States of America and how good they are and how hard you have to fight to make those treaties work.

□ 1030

He made a treaty with Carrier, which will get $7 million from Indiana. Vice President Pence will give $7 million from Indiana to Carrier, and then maybe there will be some kind of—no one knows what is going on, but the President-elect should spend his time in the transition office and decide who is going to hold the jobs that will make this country run. This is not going to be run by one man in the White House who makes pronouncements and thinks that all the world is going to throw itself down on the ground and worship him.

We have a democratic process, and the burden on the House of Representatives, as I leave it—I mean, in some ways, I am sorry to be leaving because I think it is going to be a very tough session—is to help the new President understand how a democracy actually works. It is not a big business; it is a business of the people. The 435 Members of this House take the money that comes in in taxes, and they appropriate it out as they see fit for the country. The President doesn't do that. When the Congress is done, it passes the bill to him, and then he spends the money as the Congress has decided it should be spent.

If you look at the Constitution—I am sure the President-elect has looked at the Constitution—the first Article is the Congress. We are the preeminent body in this government because we are elected by the people, and we have the power.

Stop tweeting, Mr. President-elect.

21ST CENTURY CURES

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. CURBELO) for 5 minutes.

Mr. CURBELO of Florida. Mr. Speaker, I rise in support of the 21st Century Cures Act, a bill that recently passed the House with overwhelming bipartisan support.

I am proud that the package includes provisions for robust medical research, funding to combat opioid abuse, and support for individuals who struggle with mental illness and who are trapped in the criminal justice system. Reforming and modernizing our Nation's mental health system has been one of my top priorities. It is imperative that we help those who are struggling with mental illness get the help they need. Many tragedies can be prevented if the proper support structure is in place.

As part of the reform efforts, I was proud that legislation authored by Representative TIM MURPHY, the Helping Families in Mental Health Crisis Act, which I strongly supported, was incorporated into 21st Century Cures. I had the opportunity to host a roundtable earlier this year in south Florida, with my friend from Pennsylvania and local stakeholders, to discuss mental health and the benefits of this important legislation.

The passage of 21st Century Cures also represents an important step toward the discovery and development of new treatments for many diseases, like cancer and Alzheimer's, in addition to empowering individuals, families, and employers across the country with more healthcare options.

I was proud to have supported this pioneering legislation, and I look forward to its swiftly being signed into law.

WIIN AND CEPP

Mr. CURBELO of Florida. Mr. Speaker, I rise in strong support of the Water Infrastructure Improvements for the Nation Act, or the WIIN Act. Included in this package, which is expected to be considered in the House later in the week, is the Central Everglades Planning Project, which is of critical importance to the ecological health of the State of Florida. This project will significantly increase freshwater flows from Lake Okeechobee through the Everglades and down into Florida Bay, providing critical relief to our water reservoirs and to a stressed ecosystem in the bay.

The health of Florida Bay is a moral and an environmental cause. It is also vital to south Florida's multibillion-dollar tourism industry, making Everglades restoration an important local issue as well as a major national priority. Long-term restoration will be achieved primarily by constructing projects for the conveyance, treatment, and storage of water and, ultimately, the restoration of freshwater flow from north to south. CEPP contributes to all of these goals.

I thank Chairman SHUSTER for working with me to include $1.9 billion for the Everglades Restoration Program in the WIIN Act. I am proud that, through bipartisan efforts, we were able to include this much-needed funding for Everglades restoration, and I look forward to getting this bill signed into law.

FY 2017 NDAA AND SPOC ACT

Mr. CURBELO of Florida. Mr. Speaker, I rise to applaud the House's passage of the National Defense Authorization Act for 2017.

This bipartisan legislation strongly supports our servicemembers by providing a much-deserved 2.1 percent pay raise and improves access to health care for them and for their families. It prohibits the administration from transferring our naval base in Guantanamo Bay, Cuba, to the Castro dictatorship. It also protects victims who report sexual assault from personal and professional retaliation by making ''retaliation'' a separate offense under the Uniform Code of Military Justice.

In addition, I am grateful that my bill, the Service Provider Opportunity Clarification Act, was included in the final package. Any large business that receives a contract for more than $650,000 must show the Federal Government how it will use small businesses as subcontractors.

Subcontracting is an important entry point for new Federal contractors. Without a robust and wide base of subcontractors, we will have fewer prime contractors tomorrow—meaning fewer suppliers, manufacturers, and innovators—and this will all result in increased costs to American taxpayers.

I thank Chairman THORNBERRY and Chairman CHABOT for including my bill and for their hard work in moving the NDAA forward. Their efforts serve as an excellent example of Congress' working together on behalf of the brave men and women who are tasked with keeping our country safe. I look forward to the legislation being signed into law.

CONGRATULATING SOUTHRIDGE SPARTANS FOOTBALL

Mr. CURBELO of Florida. Mr. Speaker, I rise to congratulate the Southridge Spartans football team on their first trip to the State finals since 1999.

After a 2–2 start to the season, the Spartans' defense stepped up and shut out all future opponents from scoring a touchdown. The Spartans outscored their final five opponents by a whopping 151–0, finishing the season with a 7–2 record and earning a spot in the Florida State playoffs.

After defeating Coral Gables in the quarterfinals, Southridge faced off against Deerfield Beach in the semifinals. The Spartans overcame six turnovers, five of which came in their own territory, to defeat Deerfield Beach 26–7 and to clinch their rightful place in the championship game this Saturday in Orlando v. Dr. Phillips High School.

I congratulate head coach Billy Rolle and principal Miret, along with the players, students, faculty, and alumni of Miami Southridge High School, for their amazing season thus far.

Good luck. Bring the championship home.

VIETNAM VETERANS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Louisiana (Mr. ABRAHAM) for 5 minutes.

Mr. ABRAHAM. Mr. Speaker, in honor of Veterans Day last month, I introduce Louisiana House Concurrent Resolution 43 into the United States CONGRESSIONAL RECORD.

This resolution recognizes November 13, 2013, through November 11, 2025, as the commemoration of the 50th Anniversary of the Vietnam War. It is important that we recognize our Nation's heroes who served with valor and honor through this long war, which in many ways defined an entire generation of Americans. By the end of the Vietnam war, nearly 3 million American servicemen and servicewomen had served within the borders of Vietnam in some capacity in that conflict. We would like to take this time to honor all Vietnam veterans and, especially, the more than 58,000 patriots who paid the ultimate sacrifice during this difficult and painful period of war.

Of the millions of Vietnam veterans who served our country, over 106,000 reside in my home State of Louisiana. Though we remain thankful for all of those who served our great Nation, we would like to take this time to remember the 50th Anniversary of the Vietnam War. It is important that we honor our veterans while they are still alive so that they can take honor for the sacrifices and know that they do not go unnoticed.

HELP AND HOPE FOR THE MENTALLY ILL

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. MURPHY) for 5 minutes.

Mr. MURPHY of Pennsylvania. Mr. Speaker, today is a day of joy, and it was, indeed, a long time in coming, but here we are.

My time in Congress was redefined 4 years ago, on December 14, 2012, when 26 innocent lives were taken at Sandy Hook Elementary School in Newtown, Connecticut. Now, it is neither my district nor my State, but when it comes to children, all of us represent all children. Afterwards, when I met with the families, they gave me pictures of their children and spouses whom they lost that day, and I made a promise—the promise that we would not continue to watch passively or just offer moments of silence as these tragedies continue, that we should deliver, instead, treatment before tragedy.

Today, Mr. Speaker, I say thanks to the Members of Congress who changed the course with me—who teamed up to finally change the way the United States treats the mentally ill. We set our eyes on one goal: to fix our Nation's broken mental health system. Since then, we have come together to work towards protecting millions of Americans who suffer from mental illness. We traveled to every corner of this Nation and listened to doctors, psychologists and psychiatrists, experts and advocates—most importantly, to patients, consumers, and their families.

Through congressional hearings and investigations, we have discovered the abhorrent and sometimes fatal disconnect between the 112 Federal agencies that were assigned to treat the mentally ill. We exposed $130 billion spending in a system that has done little but to watch the rates of homelessness, incarceration, suicide, and drug overdose deaths soar. We came together across party lines and went to work. We passed legislation that will save lives.

I thank FRED UPTON for his leadership on our Committee on Energy and Commerce with regard to H.R. 2646, the Helping Families in Mental Health Crisis Act, and for his tremendous medical innovation bill, the 21st Century Cures Act.

I thank EDDIE BERNICE JOHNSON of Texas for her conviction and determination and for applying her experience as a psychiatric nurse to champion the cause that someone in crisis should be able to get treatment in a hospital and not just be locked up in a jail cell.

I thank Speaker RYAN, who, in his very first days as Speaker of the House, pledged his support and determination to ensure that we would take action in the way that we treat the mentally ill in this Nation.

To all of my colleagues in the House who spoke up, stepped up, and teamed up in our efforts to end the mental health crisis in America, thank you.

I thank our colleagues in the Senate as well—Senator CHRIS MURPHY, Dr. BILL CASSIDY, and Senators CORNYN and ALEXANDER—for their leadership in bringing this bill to a vote before the Senate. As the Senate takes up the bill today, I ask them all to cast their votes while being mindful of the millions of American lives it will save.

Most importantly, I close by thanking the millions who had the courage to come forward and share their stories of pain and suffering under this broken system—those who have lost a loved one, those who have a loved one who is sitting in a jail cell or who is homeless in the streets.

To those who have been the last, the least, the lost, and the lonely, know that we will continue to listen. In the final version of the Helping Families in Mental Health Crisis Act, we did not get everything we needed, but we needed everything we got, and we will continue to work together.

When we began this journey 4 years ago, I challenged us all to realize the sad reality of, where there is no help, there is no hope. Know now that, as we pass and enact this bill, we will finally be able to say there is help and, most assuredly, there is hope.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 43 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Gracious God, we give You thanks for giving us another day.

Throughout history, You have been ever present to all believers. In times of darkness, we readily turn on lights. Millions of Americans in this season have variously turned to the celebration of the Christmas season, with its trees and lights, and Hanukkah, the Festival of Lights.

Even so, in our political world, there remains the reality of considerable disagreement and contention. Where there is darkness here, send forth a spark of inspiration and grace to enlighten minds and warm hearts to respond to Your love for Your people.

Eternal Father of us all, fill Your children with the delight that comes from light. May we walk no longer in the darkness of distrust, but join together in mutual understanding and peace toward the common well-being of our Nation.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from New Hampshire (Ms. KUSTER) come forward and lead the House in the Pledge of Allegiance.

Ms. KUSTER led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

NICARAGUA

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, days leading up to the November 30 and December 1 protest in Nicaragua against the Ortega regime's proposed interoceanic canal and a corrupt election, the National Police, instructed by Daniel Ortega, sent heavy machinery, created checkpoints, and used barricades to block farmers and indigenous communities from attending the protests. Nicaraguans were severely beaten. Some were even shot. But Ortega's repression did not stop the Nicaraguan people who yearn for freedom and prosperity from participating in the protest.

Mr. Speaker, in September of this year, this legislative body passed the NICA Act—legislation I authored, along with my colleague, ALBIO SIRES, from New Jersey, which calls for free elections, respect for the rule of law, and freedom of expression. The Ortega regime seems eager to neglect these basic important conditions and is doubling down on its tyrannical tactics. We must hold Ortega accountable with the NICA Act and tell him we will not ignore his terrible tactics.

REBUILD AMERICA'S INFRASTRUCTURE

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, how does America, the strongest economy in the history of the world, accept a world ranking of 23rd behind Spain and Chile in the quality of our roads and bridges—American infrastructure? Let's look at the facts.

In 2005, Congress passed a roads bill that was 35 percent smaller than what was needed just to bring our roads and bridges to a state of good repair. In 2009, Congress passed an economic stimulus bill, directed just 7 percent to our transportation and infrastructure, and, last year, we passed a transportation bill that provided less than half of what was needed to reverse the decline of our roads and bridges. This is not only weak, it is pathetically weak.

Standard & Poor's reports that for every $1.3 billion invested in roads and bridges, it creates 29,000 jobs—American jobs—produces $2 billion in economic growth, and reduces the Federal deficit by $200 million.

Both Presidential candidates talked about a large investment in American infrastructure, but I am concerned that the President-elect's program may be comprised of tax cuts for already-planned projects. This would be selling the American people and the American economy short. You just spent $105 billion rebuilding the roads and bridges of Afghanistan. You just spent $76 billion rebuilding the roads and bridges of Iraq. It is time the Nation built here at home and in America.

CONGRATULATING COACH JAMES FRANKLIN

(Mr. PERRY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PERRY. Mr. Speaker, I rise today to congratulate Coach James Franklin and his football team from my alma mater, Penn State, on winning the Big Ten Championship on Saturday over the Wisconsin Badgers.

Many counted out the Nittany Lions in the second quarter after Wisconsin took a commanding 28–7 lead. As expected, Penn State turned things around quickly with their lethal passing attack and always formidable defense.

Quarterback Trace McSorley set a Big Ten Championship game record with 384 passing yards and 4 touchdowns, as number 7 Penn State

clinched one of the most impressive Big Ten titles of all time, with a 38–31 victory over number 6 Wisconsin.

Pennsylvania and the Nittany nation are very proud of you. We are.

PASS LEGISLATION TO FIND CURES

(Ms. KUSTER asked and was given permission to address the House for 1 minute.)

Ms. KUSTER. Mr. Speaker, I rise to urge the Senate to pass and President Obama to sign into law the 21st Century Cures Act.

This bipartisan legislation represents a comprehensive strategy to improve medical innovation, access lifesaving medicine, and improve mental health services. The bill includes funding for President Obama's Precision Medicine Initiative, for Vice President BIDEN's Cancer Moonshot, and a new program to improve our understanding for brain diseases, like Alzheimer's disease.

But most importantly, Congress has decided to address one of the worst public health crises of the 21st century. Sadly, last year, in my home State of New Hampshire, we had the third highest opioid overdose rate per capita in the entire country. But this crisis is not unique to my State. Across America, communities and families are shaken from the deaths of loved ones due to overdose. Opioid addiction is truly a national public health crisis.

As founder and co-chair of the Bipartisan Task Force to Combat the Heroin Epidemic, I urge the Senate to promptly pass this important bill.

HONORING OHIO STATE REPRESENTATIVE JIM BUCHY

(Mr. DAVIDSON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DAVIDSON. Mr. Speaker, I rise to honor and pay tribute to Ohio State Representative Jim Buchy.

Representative Jim Buchy will retire from the State House at the end of the year. In fact, this week will likely mark the last time on the floor for Jim Buchy as a representative, having served for more than 20 years in that role.

I am thankful to know Jim. I respect him tremendously because he has been characterized more by his deeds than by his words. He is a strong Christian, a solid conservative, and an articulate Republican. He has championed the cause of freedom with great ideals, but a genuine passion to represent the people in his district and their common values in public service. He is a good man.

Jim lives in Greenville, Ohio. He has raised a beautiful family, built and exited a very successful business, served the community—in his church, on the board of education, with 4–H, economic development, and in many ways. He has been a genuine leader in the Ohio pro-life movement.

He is passionate about improving education with local control. He has spent his career promoting traditional, value-based education and important programs like FFA and 4–H.

Jim Buchy's role in the legislature will be missed, but he will live on through his reputation and the great example he set.

Thank you for your service, Jim, and thanks for living your faith boldly, for loving your community dearly, and for giving so much of yourself in service to make sure the next generation is better off than they would have been without your leadership and service. God bless you.

SURGEON GENERAL'S REPORT ON ADDICTION

(Mr. QUIGLEY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. QUIGLEY. Mr. Speaker, I rise today to commend the Surgeon General's new report titled ''Facing Addiction in America: The Surgeon General's Report on Alcohol, Drugs, and Health.''

In 2015, over 27 million Americans reported current use of illicit drugs or misuse of prescription drugs. That means that more people use prescription opioids than use tobacco, and there are more people struggling with substance abuse disorders than people with cancer.

Substance abuse, misuse, and substance use disorders cost the U.S. more than $442 billion annually in crime, health care, and lost productivity—almost twice as high as the costs associated with diabetes. We in Congress have a responsibility to utilize this report and mobilize around its deeply scientific and evidence-based findings to find the best policy solutions that affect all of our constituents in districts across the country.

Addiction does not discriminate. It affects Americans from every walk of life, regardless of race, class, gender, religion, or geographic location. Now is the time to face the addiction crisis head on.

HONORING LEO DAUGHTRY

(Mr. ROUZER asked and was given permission to address the House for 1 minute.)

Mr. ROUZER. Mr. Speaker, I rise today to honor my good friend, North Carolina Representative Leo Daughtry, as his tenure in the State House officially comes to a close.

Leo has served as a strong voice for the fine citizens of Johnston County and commonsense conservative principles since first being elected to the State Senate in 1988. During his tenure in the State legislature, Leo has stood tall and fought tirelessly for the taxpayer and common sense in government. His guardianship of the judicial branch is well known, and I am honored to have had the privilege to work alongside him during my two terms in the State legislature.

Leo has served our great State of North Carolina for nearly 3 decades in Raleigh, and he will be sorely missed. He leaves a great and distinguished legacy—one that every North Carolinian can be especially proud.

On behalf of the countless citizens whose lives Leo has touched, I wish him and his wonderful wife, Helen, much happiness as they enter their next chapter in life.

WATER INFRASTRUCTURE IMPROVEMENTS

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BILIRAKIS. Mr. Speaker, later this week, the House will vote on the Water Infrastructure Improvements for the Nation Act, also known as the WIIN Act.

This legislation includes a number of great provisions for Florida and my district, including promoting public-private partnerships for dredging projects. Allowing these partnerships will help clear the backlog of Army Corps projects, at or below cost, all while adhering to Federal maintenance standards.

This means that there will be more opportunities for projects to be completed in a reasonable timeframe, such as the federally authorized Anclote River dredging project in my district. Dredging the Anclote River would promote relief for local residents from chronic flooding and bring commerce back to the Tarpon Springs area.

CONGRATULATING ROCHESTER HIGH SCHOOL ROCKETS

(Mr. RODNEY DAVIS of Illinois asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I rise today to recognize and congratulate the Rochester High School Rockets on winning the Illinois class 4A State football championship.

The Rochester Rockets, who finished the season with a 13–1 record, defeated Johnsburg 38–14 on November 25 to secure the sixth State championship in football in the school's history. That is 6 out of the last 7 years.

On their way to the State title, the Rockets exceeded the national average in receiving yards, total touchdowns, tackles, sacks, and interceptions. The Rockets are setting a standard for athletic excellence in Illinois. Both girls' and boys' sports in Rochester have been thriving, including the girls' soccer team winning its second straight title in 2016.

Congratulations to this group of student athletes and their coach, and my friend, Derek Leonard, on another championship season.

□ 1215

21ST CENTURY CURES

(Mr. ALLEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ALLEN. Mr. Speaker, I rise to thank my colleagues for passing the 21st Century Cures Act.

This legislation speaks for itself. It will bring healthcare research and infrastructure into the 21st century.

During my time here in Congress, I have met with countless groups across Georgia 12, like the Alzheimer's Association, who have told me how this legislation can and will change lives. In fact, more than 5 million Americans currently live with this disease. In a recent op-ed, the association noted that, if nothing is done to change the trajectory of Alzheimer's, as many as 16 million Americans will have the disease by 2050, which will drain every dollar from our healthcare system.

These staggering statistics go to show that the Cures Act will touch everyone's life. By equipping researchers, the 21st Century Cures Act is the answer to unleashing the barriers so the medical community can develop and deliver lifesaving treatments to Americans who are battling diseases like Alzheimer's.

I was proud to vote in favor of this historic 21st Century Cures and see it pass with overwhelming bipartisan support, and I am excited to see this legislation bring hope to Americans and their loved ones.

MEDIA SHOULD REPORT THE FACTS

(Mr. SMITH of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SMITH of Texas. Mr. Speaker, Americans are frustrated because they know that many of the news stories they read are actually opinion pieces. If the facts do not fit the liberal world view, dissent is silenced, and the result is one-sided and often misleading.

The Pew Research Center found that a majority of Americans—59 percent—reject the idea that reporters should add their own opinions to their news stories. Americans believe that the media's responsibility is to present the facts, not ignore them. The media has work to do to repair the self-inflicted damage to its credibility over the last few months. Distrust of the national media will continue until the media provides the American people with the facts instead of telling them what to think.

GVSU WOMEN'S CROSS COUNTRY NATIONAL CHAMPIONSHIP

(Mr. HUIZENGA of Michigan asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HUIZENGA of Michigan. Mr. Speaker, I rise to congratulate the Grand Valley State University women's cross country team for yet another NCAA Division II national championship.

With their victory last month, the Lakers have won their fourth national title in 5 years and their fifth in school history—further cementing their status as a running dynasty. In addition to the national titles, four Lakers claimed All-American honors. Among them, senior Kendra Foley won her second national championship in 3 years and her fourth straight All-American honor.

Let us commend these runners, their parents, and their coaches for the years of dedicated training and the countless sacrifices that were necessary to accomplish such a feat. These athletes demonstrated just how competitive west Michigan is on the national stage.

I ask my colleagues to join me in celebrating these talented women, their coaches, and the rest of Grand Valley State University.

Anchor up, and go Lakers.

SHERIFF FRANK DENNING

(Mr. YODER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. YODER. Mr. Speaker, I rise to recognize one of the most dedicated public servants to Johnson County, Sheriff Frank Denning. Frank dedicated his more than 42-year career to helping keep Kansas communities safe.

That career began back in 1969 as a reserve police officer for the Great Bend Police Department, and for the past 33 years, he has proudly served the citizens of Johnson County. Frank served with the Great Bend, Larned, and Garden City Police Departments before joining the Johnson County Sheriff's Office in 1978.

Over the years, I have gotten to know Frank well, and I consider him to be a great friend and an even better public servant. His leadership in the sheriff's office has made Johnson County a leader in reducing recidivism rates through the Second Chance and Reentry Programs. We have worked hand in hand on several Federal issues that are important to the Third District of Kansas, most notably the Kelsey Smith Act.

Mr. Speaker, please join me in congratulating Frank on his retirement and in wishing him and his wife, Robin, all the best in the years to come.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore (Mr. BYRNE) laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 6, 2016.

Hon. PAUL D. RYAN,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on December 6, 2016, at 11:29 a.m.:

That the Senate passed with an amendment H. Con. Res. 174.

With best wishes, I am,

Sincerely,

KAREN L. HAAS.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

STREAMLINING ENERGY EFFICIENCY FOR SCHOOLS ACT OF 2015

Mr. OLSON. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 756) to amend the Energy Policy and Conservation Act to provide for the dissemination of information regarding available Federal programs relating to energy efficiency projects for schools, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 756

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Streamlining Energy Efficiency for Schools Act of 2015''.

SEC. 2. COORDINATION OF ENERGY RETROFITTING ASSISTANCE FOR SCHOOLS.

Section 392 of the Energy Policy and Conservation Act (42 U.S.C. 6371a) is amended by adding at the end the following:

''(e) COORDINATION OF ENERGY RETROFITTING ASSISTANCE FOR SCHOOLS.—

''(1) DEFINITION OF SCHOOL.—Notwithstanding section 391(6), for the purposes of this subsection, the term 'school' means—

''(A) an elementary school or secondary school (as defined in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801));

''(B) an institution of higher education (as defined in section 102(a) of the Higher Education Act of 1965 (20 U.S.C. 1002(a)));

''(C) a school of the defense dependents' education system under the Defense Dependents' Education Act of 1978 (20 U.S.C. 921 et seq.) or established under section 2164 of title 10, United States Code;

''(D) a school operated by the Bureau of Indian Affairs;

''(E) a tribally controlled school (as defined in section 5212 of the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2511)); and

''(F) a Tribal College or University (as defined in section 316(b) of the Higher Education Act of 1965 (20 U.S.C. 1059c(b))).

''(2) ESTABLISHMENT OF CLEARINGHOUSE.—The Secretary, acting through the Office of Energy Efficiency and Renewable Energy, shall establish a clearinghouse to disseminate information regarding available Federal programs and financing mechanisms that may be used to help initiate, develop, and finance energy efficiency, distributed generation, and energy retrofitting projects for schools.

''(3) REQUIREMENTS.—In carrying out paragraph (2), the Secretary shall—

''(A) consult with appropriate Federal agencies to develop a list of Federal programs and financing mechanisms that are, or may be, used for the purposes described in paragraph (2); and

''(B) coordinate with appropriate Federal agencies to develop a collaborative education and outreach effort to streamline communications and promote available Federal programs and financing mechanisms described in subparagraph (A), which may include the development and maintenance of a single online resource that includes contact information for relevant technical assistance in the Office of Energy Efficiency and Renewable Energy that States, local education agencies, and schools may use to effectively access and use such Federal programs and financing mechanisms.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. OLSON) and the gentleman from Vermont (Mr. WELCH) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. OLSON. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to insert extraneous materials in the RECORD on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. OLSON. Mr. Speaker, I yield myself such time as I may consume.

H.R. 756, the Streamlining Energy Efficiency for Schools Act, is an important bill that would help the Nation's schools make use of existing Federal programs to reduce their energy use.

There are currently a number of such programs that help schools undertake projects that improve energy efficiency. Unfortunately, school districts don't always have the know-how to navigate the complexities of the Federal system and take full advantage of these programs. This bill creates a simple, one-stop shop to get all the needed information and help the school districts participate more fully in these programs. The bottom line is that the Nation's schools will reduce their energy costs.

As it is, energy use in American K–12 schools totals $6 billion a year, and reducing this figure can save taxpayer dollars or free up funds that schools can use on things other than on energy bills. H.R. 756 has no cost since it merely sets up a system under which existing school energy efficiency programs can work better.

Mr. Speaker, I urge my colleagues to vote ''yes'' on H.R. 756.

I reserve the balance of my time.

Mr. WELCH. Mr. Speaker, I yield myself such time as I may consume.

I thank my colleague from Texas.

This bill is important. I am here with my colleague Mr. CARTWRIGHT, who will be speaking on this in a few minutes and who played a major role in the passage of this legislation. Even though he is not a member of the Energy and Commerce Committee, he is very much concerned about the opportunities that occur when we make our energy use more efficient.

Across the country, K–12 school districts spend literally billions of dollars on their energy bills each year while an estimated 14 million American children attend deteriorating public schools. According to a Department of Education survey, 43 percent of schools indicated that the poor condition of their facilities interferes with the delivery of instruction, and those are probably schools in my district and in all of our colleagues'. By upgrading these systems, we can increase efficiency and get better educational outcomes.

It is not good for kids to be cold or too hot when they are trying to study and learn. There are numbers of Federal initiatives already available to schools to help them become more energy efficient, but the problem is these programs are spread across the entire Federal Government, making it difficult for a small school, particularly in a rural district, to know where to look and how to take full advantage of these programs.

That is where this legislation comes in. As I mentioned, introduced by Congressman CARTWRIGHT and with my strong support, this Streamlining Energy Efficiency for Schools Act will provide a coordinating structure for schools to help them better navigate available Federal programs and financing options.

At this point, Mr. Speaker, I yield such time as he may consume to the gentleman from Pennsylvania (Mr. CARTWRIGHT).

Mr. CARTWRIGHT. I thank the gentleman from Vermont.

Mr. Speaker, I thank the leadership for taking this bill up under suspension today.

I remain hopeful that a compromise energy package can still be agreed upon this Congress, and I am glad this bill was included in both the House and Senate versions of that energy package. Nonetheless, I am pleased that commonsense ideas, such as this one, may still become law even if the larger package proves too large a lift in the last days of this Congress.

I thank Congressman PETER WELCH for his leadership on this bill. It is no secret that he is one of the great champions in the House of Representatives on the issue of energy efficiency, and it has been my pleasure to work with him on this bill.

Mr. Speaker, so many schools across the country are in need of upgrades and improvements to their facilities. In its last Report Card for America's Infrastructure, the American Society of Civil Engineers gave the condition of our Nation's schools a grade of D. As school administrators undertake badly needed improvements, they have an opportunity here to substantially increase their facilities' energy efficiency, producing benefits for both the environment and the economy. In reducing their energy bills, schools can put the savings to use in other educational priorities.

K–12 school districts currently spend billions on their energy bills every year—in fact, according to ENERGY STAR, approximately $6 billion every year—second only to personnel costs and way ahead of the costs of textbooks and supplies and things like that. Energy expenses are one of the few costs that can be reduced while, at the same time, improving classroom instruction. In fact, high-performance schools can lower a school district's operating costs by up to 30 percent.

There are numerous Federal initiatives already available to schools to help them become more energy efficient. As the gentleman from Vermont just mentioned, the problem is that these programs are spread across the Federal Government, making it challenging, time consuming, and costly for schools to identify and take full advantage of these programs.

Introduced in the Senate as S. 523, by Senator SUSAN COLLINS, this bipartisan Streamlining Energy Efficiency for Schools Act aims to provide a coordinating structure for schools to help them better navigate available Federal programs and financing options.

This legislation does not spend an additional dime of taxpayer money, and it keeps decisionmaking authority with the States, the school boards, and local officials.

It is a bill that establishes a clearinghouse through the Office of Energy Efficiency and Renewable Energy, which will disseminate information on Federal programs and financing mechanisms that may be used to develop energy efficiency, distributed generation, and energy retrofitting projects for schools.

□ 1230

This bill also directs the Office of Energy Efficiency and Renewable Energy to coordinate with Federal agencies and develop an outreach effort to streamline communications and promote available Federal programs. This kind of outreach may include a single Web site that school officials can go to for one-stop shopping and learn about relevant energy efficiency programs.

Overburdened school administrators shouldn't have to spend hours and hours wading through the Federal bureaucracy as they look for ways to make energy efficiency improvements. This commonsense legislation will ensure that schools can more easily take advantage of already existing energy efficiency programs. It is a strategic

and cost-saving investment to relieve the fiscal pressure felt by school districts across the Nation while bringing us closer to American energy security.

So for all of these reasons, Mr. Speaker, I urge my colleagues to pass this bill.

Mr. OLSON. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia, the Peach State (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of H.R. 756, the Streamlining Energy Efficiency for Schools Act of 2015.

Efficient use of energy can help reduce consumption, lower energy bills, and may also help the environment as well. The benefits of energy efficiency can extend to our homes, businesses, and public institutions, including schools. There is a multitude of programs and finance mechanisms available for schools to use to further their energy efficiency goals. However, information on these resources is hard to find; and, as a result, schools may be missing out on opportunities to make their facilities more energy efficient.

H.R. 756 would direct the Department of Energy to create a clearinghouse in order to disseminate information on energy efficiency programs and grants for schools. This bill would also help facilitate coordination between Federal agencies so that they may develop a collaborative effort to help schools meet their energy efficiency needs.

I urge my colleagues to support our schools in their efforts to become more energy efficient by supporting H.R. 756.

Mr. WELCH. Mr. Speaker, everything that needs to be said has been said.

I appreciate the work of my colleague from Texas (Mr. OLSON), and I really do appreciate as well the leadership of the gentleman from Pennsylvania (Mr. CARTWRIGHT), who has been very, very active on anything related to making better use of our energy.

I urge passage of this legislation.

Mr. Speaker, I yield back the balance of my time.

Mr. OLSON. Mr. Speaker, this is a commonsense bill that helps schools all across America. I urge my colleagues to vote ''yes'' on H.R. 756.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. OLSON) that the House suspend the rules and pass the bill, H.R. 756.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

POWER AND SECURITY SYSTEMS (PASS) ACT

Mr. OLSON. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6375) to provide for consideration of the extension under the Energy Policy and Conservation Act of nonapplication of No-Load Mode energy efficiency standards to certain security or life safety alarms or surveillance systems.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6375

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Power And Security Systems (PASS) Act''.

SEC. 2. EXTENSION OF NONAPPLICATION OF NO-LOAD MODE ENERGY EFFICIENCY STANDARD TO CERTAIN SECURITY OR LIFE SAFETY ALARM OR SURVEILLANCE SYSTEMS.

(a) Section 325(u)(3)(D)(ii) of the Energy Policy and Conservation Act (42 U.S.C. 6295(u)(3)(D)(ii)) is amended—

(1) by striking ''2015'' and inserting ''2021''; and

(2) by striking ''2017'' and inserting ''2023''.

(b) Section 325(u)(3)(E) of the Energy Policy and Conservation Act (42 U.S.C. 6295(u)(3)(E)) is amended—

(1) in clause (ii), by striking ''July 1, 2017,'' and inserting ''the effective date of the amendment under subparagraph (D)(ii)''; and

(2) by adding at the end the following:

''(iv) TREATMENT IN RULE.—In the rule under subparagraph (D)(ii) and subsequent amendments the Secretary may treat some or all external power supplies designed to be connected to a security or life safety alarm or surveillance system as a separate product class or may extend the nonapplication under clause (ii).''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. OLSON) and the gentleman from Vermont (Mr. WELCH) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. OLSON. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous materials in the RECORD on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. OLSON. I yield myself such time as I may consume.

Mr. Speaker, H.R. 6375, the Power and Security Systems (PASS) Act, extends an important exemption from current regulations for devices such as security systems and medical devices. Specifically, many electronic devices use external power supplies that are subject to strict limits on the amount of electricity they can consume when not in use. However, these provisions are not feasible for products that have to be on 24/7, such as home security alarms and heart monitors.

This bill extends the existing exemption for external power supplies for these kinds of products. H.R. 6375 would ensure the continued availability of these important and potentially lifesaving devices, and I urge everyone to support it.

Mr. Speaker, I reserve the balance of my time.

Mr. WELCH. Mr. Speaker, I rise in support of H.R. 6375, the Power and Security Systems Act, and I yield myself such time as I may consume.

Mr. Speaker, as my colleague has stated, the Energy Independence and Security Act of 2007 requires electronic devices to meet certain efficiency standards while in no-load mode or standby mode, and that obviously makes a lot of sense. You don't want to be consuming unnecessary energy when, in fact, you don't need to use energy; but the whole law was written in a way that it included some devices that are always on active mode. Security and life safety systems, such as video surveillance, intrusion detection, and access control systems, have to be active all of the time.

So this law is now to extend something that was an exemption, and that is going to expire unless we pass this legislation and then allow manufacturers to avoid having to go through very costly steps in order to bring it into compliance with the law that would actually make their products ineffective when it came to surveillance.

This law was originally introduced by Ranking Member FRANK PALLONE and his colleague, ROY BLUNT, who is now in the Senate, to provide that temporary exemption. This is really going to extend it.

I joined with the gentleman from Kansas (Mr. POMPEO), and it is fitting that we are working with Mr. POMPEO because he is about to start a new job that has just a little bit to do with security and intelligence. We congratulate him, by the way, on that appointment by President-elect Trump.

This bill, which has the support of industry and efficiency advocates, addresses the unique needs of critical life safety and security systems to remain on at all times while meeting DOE energy efficiency standards. It is a practical bill and a straightforward bill.

By the way, it is something that we should be trying together to do more often: when we pass a bill, it is a good bill, but we find out it has got a bit of a problem; instead of arguing about it, let's fix it. We managed to accomplish that in this legislation.

I urge my colleagues to support this bill.

Having no further speakers on this side, I yield back the balance of my time.

Mr. OLSON. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia, the Peanut State (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of H.R. 6375, the Power and Security Systems Act. This bill directs the Department of Energy to decide by 2021 whether to amend standards for certain external power supply products, and directs that these standards would not apply to products manufactured before 2023.

External power supplies convert power from an outlet to a lower voltage for use in everyday items like cell phones, laptops, power tools, and other electronics. The average home has 5 to 10 external power supplies, and that

number continues to grow with more than 300 million shipped in the United States annually.

The PASS Act would also allow for the Department of Energy to classify external power supplies connected to security or safety systems differently than other types. By design, external power supplies associated with a safety or security device are always in an active mode and simply do not have a no-load or inactive mode, which is why the distinction is needed.

This bill provides necessary regulatory relief while the Department of Energy develops standards for these products.

I urge my colleagues to support this bill.

Mr. OLSON. Mr. Speaker, I will close by saying that H.R. 6375 ensures that these important and potentially life-saving devices work when needed. This is a great bill. I urge all my colleagues to vote for this bill.

I yield back the balance of my time.

Mr. PALLONE. Mr. Speaker, I rise in support of H.R. 6375, the Power and Security Systems, or PASS Act. This bill will provide an important technical exemption to certain security and life safety products from energy efficiency standards set forth in the Energy Independence and Security Act of 2007. A provision in the law increased the energy efficiency requirements for battery chargers and external power supplies—and I strongly supported that change. However, the provision also mistakenly included security and life safety products, and required that they be manufactured with a standby mode, despite being products that are inherently always on.

Without providing this correction, the security industry will need to spend millions of dollars to comply with an energy standard that will yield no energy savings and could cost jobs, which was never the initial intent of the law.

Six years ago, I stood on the House floor in support of legislation I authored that provided this exemption through July 2017. I'm pleased that Representative Welch, along with Representative Pompeo, has taken up this important issue and introduced this bill to extend the exemption I originally authored through 2023. And, the language in the bill before us today will also allow the Department of Energy to extend this exemption or reclassify these products into a separate class if they deem it appropriate.

Mr. Speaker, this is a commonsense and consensus fix to a simple problem: the language was developed by both industry and efficiency advocates, with technical assistance from the Department of Energy. So it should come as no surprise that this bill enjoys broad support from the security industry and energy efficiency advocates. I urge all of my colleagues to support it.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. OLSON) that the House suspend the rules and pass the bill, H.R. 6375.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

CHILDHOOD CANCER SURVIVORSHIP, TREATMENT, ACCESS, AND RESEARCH ACT OF 2016

Mr. BURGESS. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3381) to maximize discovery, and accelerate development and availability, of promising childhood cancer treatments, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3381

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Childhood Cancer Survivorship, Treatment, Access, and Research Act of 2016'' or the ''Childhood Cancer STAR Act''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Findings.

TITLE I—MAXIMIZING RESEARCH THROUGH DISCOVERY

Subtitle A—Caroline Pryce Walker Conquer Childhood Cancer Reauthorization Act

Sec. 101. Children's cancer biorepositories and biospecimen research.
Sec. 102. Improving Childhood Cancer Surveillance.

Subtitle B—Pediatric Expertise at NIH

Sec. 111. Inclusion of at least one pediatric oncologist on the National Cancer Advisory Board.
Sec. 112. Sense of Congress regarding pediatric expertise at the National Cancer Institute.

Subtitle C—NIH Report on Childhood Cancer Activities

Sec. 121. Reporting on childhood cancer research projects.

TITLE II—MAXIMIZING DELIVERY: CARE, QUALITY OF LIFE, SURVIVORSHIP, AND CAREGIVER SUPPORT

Subtitle A—Childhood Cancer Survivors' Quality of Life Act

Sec. 201. Cancer survivorship programs.
Sec. 202. Grants to improve care for pediatric cancer survivors.
Sec. 203. Comprehensive long-term follow-up services for pediatric cancer survivors.
Sec. 204. Survivorship demonstration project.

Subtitle B—Coverage and Payment of High Quality Care

Sec. 211. Report by the Comptroller General.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) Each year in the United States there are an estimated 15,780 children between birth and the age of 19 diagnosed with cancer. Approximately 1 in 285 children in the United States will be diagnosed with cancer before their 20th birthday.

(2) In 1960, only 4 percent of children with cancer survived more than 5 years, but today, cure rates have increased to over 80 percent for children and adolescents under age 20.

(3) While the cure rates for some childhood cancers are now over 80 percent, the survival rates for many types of cancers in children remain extremely low.

(4) According to the Centers for Disease Control and Prevention, cancer continues to be the leading cause of death by disease in children and adolescents under the age of 14.

(5) By 2020, the population of childhood cancers survivors is expected to be 500,000 individuals.

(6) As many as two-thirds of childhood cancer survivors are likely to experience at least one late effect of treatment, with as many as one-fourth experiencing a late effect that is serious or life-threatening. Common late effects of childhood cancer are neurocognitive, psychological, cardiopulmonary, endocrine, and musculoskeletal effects, secondary malignancies, and early death.

(7) As a result of disparities in the delivery of cancer care, minority, low-income, and other medically underserved children are more likely to be diagnosed with late stage disease, experience poorer treatment outcomes, have shorter survival time with less quality of life, and experience a substantially greater likelihood of cancer death.

(8) Collection of biospecimens, along with clinical and outcome data, on children and adolescents with cancer in the United States is necessary to improve childhood and adolescent cancer treatments and cures. Currently biospecimens, and clinical and outcome data, are collected for less than half of children in the United States with cancer.

(9) The late effects of cancer treatment may change as therapies evolve, which means that the monitoring and care of cancer survivors may need to be modified on a routine basis.

(10) Despite the intense stress caused by childhood cancer, there is a lack of standardized and coordinated psychosocial care for the children and their families, from the date of diagnosis through treatment and survivorship.

(11) The Institute of Medicine, in its report on cancer survivorship entitled ''Childhood Cancer Survivorship: Improving Care and Quality of Life'', states that an organized system of care and a method of care for pediatric cancer survivors is needed.

(12) Focused and well-designed research and pilot health delivery programs can answer questions about the optimal ways to provide health care, follow-up monitoring services, and survivorship care to those diagnosed with childhood cancer and contribute to improvements in the quality of care and quality of life of those individuals through adulthood.

(13) The National Institutes of Health, including the National Cancer Institute, invest approximately half of their annual appropriations to support basic research that serves as the foundation for translational and clinical research for all diseases and conditions, with the potential to lead to breakthroughs for children with cancer. Virtually all progress against cancer—in both children and adults—has been founded in basic research, often in areas not directly related to the disease.

(14) The National Cancer Institute supports a number of key research programs specifically to advance childhood cancer care, including precision medicine clinical trials for children with cancer, the Children's Oncology Group (part of the National Clinical Trials Network of the National Cancer Institute), the Pediatric Preclinical Testing Consortium, the Pediatric Brain Tumor Consortium, the Childhood Cancer Survivor Study, the Therapeutically Applicable Research to Generate Effective Treatments program and related pediatric cancer genomics research (including the Pediatric MATCH Precision Medicine trial), and the Pediatric Oncology Branch (part of the intramural program of the National Cancer Institute, whose mission is to develop new treatments for pediatric cancer).

TITLE I—MAXIMIZING RESEARCH THROUGH DISCOVERY

Subtitle A—Caroline Pryce Walker Conquer Childhood Cancer Reauthorization Act

SEC. 101. CHILDREN'S CANCER BIOREPOSITORIES AND BIOSPECIMEN RESEARCH.

Section 417E of the Public Health Service Act (42 U.S.C. 285a–11) is amended—

(1) by striking subsection (a) and inserting the following:

''(a) CHILDREN'S CANCER BIOREPOSITORIES.—

''(1) AWARD.—The Secretary, acting through the Director of NIH, may make awards to an entity or entities described in paragraph (4) to build upon existing initiatives to collect biospecimens and clinical and demographic information with a goal of collection for the vast majority of all children, adolescents, and young adults with selected cancer subtypes (and their recurrences) for which current treatments are least effective, through one or more biospecimen research efforts designed to achieve a better understanding of the cause of such cancers (and their recurrences) and the effects of treatments for such cancers.

''(2) USE OF FUNDS.—Amounts received under an award under paragraph (1) may be used to carry out the following:

''(A) Acquire, preserve, and store high-quality, donated biospecimens and associated clinical and demographic information on children, adolescents, and young adults diagnosed with cancer in the United States, focusing on children and adolescents enrolled in clinical trials for whom current treatments are least effective. Activities under this subparagraph may include storage of biospecimens and associated clinical and demographic data at biorepositories supported by the National Cancer Institute, such as the Children's Oncology Group Biorepository and the Pediatric Cooperative Human Tissue Network as well as through biorepositories established as appropriate to support the scientific needs of future research efforts.

''(B) Make such information publicly available, including the repositories described in subparagraph (A).

''(C) Maintain a secure searchable database on stored biospecimens and associated clinical and demographic data from children, adolescents, and young adults with cancer for the conduct of research by scientists and qualified health care professionals.

''(D) Establish procedures for evaluating applications for access to such biospecimens and clinical and demographic data from researchers and other qualified health care professionals.

''(E) Make available and distribute biospecimens and clinical and demographic data from children, adolescents, and young adults with cancer to researchers and qualified health care professionals for peer-reviewed research at a minimal cost.

''(3) NO REQUIREMENT.—No child, adolescent, or young adult with cancer shall be required under this subsection to contribute a specimen to a biorepository or share clinical or demographic data.

''(4) APPLICATION; CONSIDERATIONS.—

''(A) APPLICATION.—To be eligible to receive an award under paragraph (1) an entity shall submit an application to the Secretary at such a time, in such manner, and containing such information as the Secretary may reasonably require.

''(B) CONSIDERATIONS.—In evaluating the applications in subparagraph (A), the Secretary shall consider the existing infrastructure of the entity that would allow for the timely capture of biospecimens and related clinical and demographic information for children, adolescents, and young adults with cancer.

''(5) PRIVACY PROTECTIONS; CONSENT.—

''(A) IN GENERAL.—The Secretary may not make an award under paragraph (1) to an entity unless the Secretary ensures that such entity—

''(i) collects biospecimens and associated clinical and demographic information from children and adolescents with appropriate permission from parents or legal guardians in accordance with Federal and State law; and

''(ii) adheres to strict confidentiality to protect the identity and privacy of patients in accordance with Federal and State law.

''(B) CONSENT.—The Secretary shall establish an appropriate process for achieving consent from the patient, parent, or legal guardian.

''(6) SINGLE POINT OF ACCESS; STANDARD DATA; GUIDELINES AND OVERSIGHT.—

''(A) SINGLE POINT OF ACCESS.—The Secretary shall ensure that each biorepository supported under paragraph (1) has electronically searchable data for use by researchers and other qualified health care professionals in the manner and to the extent defined by the Secretary.

''(B) STANDARD DATA.—The Secretary shall require all recipients of an award under this section to make available a standard dataset for the purposes of subparagraph (A) in a standard electronic format that enables researchers and qualified health care professionals to search.

''(C) GUIDELINES AND OVERSIGHT.—The Secretary shall develop and disseminate appropriate guidelines for the development and maintenance of the biorepositories supported under this section, including appropriate oversight.

''(7) COORDINATION.—The Secretary shall ensure that clinical and demographic information collected in accordance with this section is collected in coordination with the information collected under section 399E–1.

''(8) PROHIBITION ON USE OF FUNDS.—Funds made available to carry out this subsection shall not be used to acquire, preserve, or maintain a biospecimen collected from a patient if such activity is already covered by funds available from the National Cancer Institute for such purpose.

''(9) REPORT.—Not later than 4 years after the date of enactment of the Childhood Cancer Survivorship, Treatment, Access, and Research Act of 2016, the Secretary shall submit to Congress a report on—

''(A) the number of biospecimens and corresponding clinical demographic data collected through the biospecimen research efforts supported under paragraph (1);

''(B) the number of biospecimens and corresponding clinical demographic data requested for use by researchers;

''(C) any barriers to the collection of biospecimens and corresponding clinical demographic data;

''(D) any barriers experienced by researchers or health care professionals in accessing the biospecimens and corresponding clinical demographic data necessary for use in research; and

''(E) any recommendations with respect to improving the biospecimen and biorepository research efforts under this subsection.

''(10) DEFINITIONS.—For purposes of this subsection:

''(A) AWARD.—The term 'award' includes a grant, contract, cooperative agreement, or other transaction determined by the Secretary.

''(B) BIOSPECIMEN.—The term 'biospecimen' includes—

''(i) solid tumor tissue or bone marrow;

''(ii) normal or control tissue;

''(iii) blood and plasma;

''(iv) DNA and RNA extractions;

''(v) familial DNA; and

''(vi) any other sample required by the Secretary.

''(C) CLINICAL AND DEMOGRAPHIC INFORMATION.—The term 'clinical and demographic information' includes—

''(i) date of diagnosis;

''(ii) age at diagnosis;

''(iii) the patient's gender, race, ethnicity, and environmental exposures;

''(iv) extent of disease at enrollment;

''(v) site of metastases;

''(vi) location of primary tumor coded;

''(vii) histologic diagnosis;

''(viii) tumor marker data when available;

''(ix) treatment and outcome data;

''(x) information related to specimen quality; and

''(xi) any other information required by the Secretary.''; and

(2) in subsection (d)—

(A) by striking ''and section 399E–1'' and inserting ''and sections 317U, 399E–1, 417H, and 417H–1'';

(B) by striking ''2009 through 2013'' and inserting ''2017 through 2021''; and

(C) by striking ''such purpose'' and inserting ''such purposes''.

SEC. 102. IMPROVING CHILDHOOD CANCER SURVEILLANCE.

Section 399E–1 of the Public Health Service Act (42 U.S.C. 280e–3a) is amended—

(1) by redesignating subsection (b) as subsection (d); and

(2) by striking subsection (a) and inserting the following:

''(a) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, may make awards to State cancer registries to enhance and expand infrastructure to track the epidemiology of cancer in children, adolescents, and young adults. Such registries may be updated to include each occurrence of such cancers within a period of time designated by the Secretary.

''(b) ACTIVITIES.—The grants described in subsection (a) may be used for—

''(1) identifying, recruiting, and training all potential sources for reporting childhood, adolescent, and young adult cancer cases;

''(2) developing procedures to implement early inclusion of childhood, adolescent, and young adult cancer cases on State cancer registries through the use of electronic reporting;

''(3) purchasing infrastructure to support the early inclusion of childhood, adolescent, and young adult cancer cases on such registries;

''(4) submitting deidentified data to the Centers for Disease Control and Prevention for inclusion in a national database of childhood, adolescent, and young adult cancers; and

''(5) tracking the late effects of childhood, adolescent, and young adult cancers.

''(c) COORDINATION.—The Secretary shall ensure that information collected through State cancer registries under this section is collected in coordination with clinical and demographic information collected under section 417E(a) as appropriate.''.

Subtitle B—Pediatric Expertise at NIH

SEC. 111. INCLUSION OF AT LEAST ONE PEDIATRIC ONCOLOGIST ON THE NATIONAL CANCER ADVISORY BOARD.

Clause (iii) of section 406(h)(2)(A) of the Public Health and Service Act (42 U.S.C. 284a(h)(2)(A)) is amended to read as follows:

''(iii) of the members appointed to the Board—

''(I) not less than 5 members shall be individuals knowledgeable in environmental carcinogenesis (including carcinogenesis involving occupational and dietary factors); and

''(II) not less than one member shall be an individual knowledgeable in pediatric oncology;''.

SEC. 112. SENSE OF CONGRESS REGARDING PEDIATRIC EXPERTISE AT THE NATIONAL CANCER INSTITUTE.

It is the sense of Congress that the Director of the National Cancer Institute should ensure that all applicable study sections, committees, advisory groups, and panels at the National Cancer Institute include one or more qualified pediatric oncologists, as appropriate.

Subtitle C—NIH Report on Childhood Cancer Activities

SEC. 121. REPORTING ON CHILDHOOD CANCER RESEARCH PROJECTS.

Section 409D(c)(3) of the Public Health Service Act (42 U.S.C. 284h(c)(3)) is amended by—

(1) striking ''public on'' and inserting ''public on—

''(A)'';

(2) striking the period at the end and inserting ''; and''; and

(3) inserting at the end the following:

''(B) childhood cancer research projects conducted or supported by the National Institutes of Health.''.

TITLE II—MAXIMIZING DELIVERY: CARE, QUALITY OF LIFE, SURVIVORSHIP, AND CAREGIVER SUPPORT

Subtitle A—Childhood Cancer Survivors' Quality of Life Act

SEC. 201. CANCER SURVIVORSHIP PROGRAMS.

(a) CANCER SURVIVORSHIP PROGRAMS.—The Public Health Service Act is amended by inserting after section 399N of such Act (42 U.S.C. 280g–2) the following:

''SEC. 399N–1. PILOT PROGRAMS TO EXPLORE MODEL SYSTEMS OF CARE FOR PEDIATRIC CANCER SURVIVORS.

''(a) IN GENERAL.—Not later than 1 year after the date of enactment of this section, the Secretary may make awards to eligible entities to establish pilot programs to develop, study, or evaluate model systems for monitoring and caring for childhood cancer survivors throughout their lifespan, including evaluation of shared care and medical home and clinic based models for transition to adult care.

''(b) ELIGIBLE ENTITIES.—In this section, the term 'eligible entity' means—

''(1) a medical school;

''(2) a children's hospital;

''(3) a cancer center;

''(4) a community-based medical facility; or

''(5) any other entity with significant experience and expertise in treating survivors of childhood cancers.

''(c) USE OF FUNDS.—The Secretary may make an award under this section to an eligible entity only if the entity agrees—

''(1) to use the award to establish a pilot program to develop, study, or evaluate one or more model systems for monitoring and caring for cancer survivors; and

''(2) in developing, studying, and evaluating such systems, to give special emphasis to the following:

''(A) Design of protocols for different models of follow-up care, monitoring, and other survivorship programs (including peer support and mentoring programs).

''(B) Development of various models for providing multidisciplinary care.

''(C) Dissemination of information and the provision of training to health care providers about how to provide linguistically and culturally competent follow-up care and monitoring to cancer survivors and their families.

''(D) Development of psychosocial interventions and support programs to improve the quality of life of cancer survivors and their families.

''(E) Design of systems for the effective transfer of treatment information and care summaries from cancer care providers to other health care providers (including risk factors and a plan for recommended follow-up care).

''(F) Dissemination of the information and programs described in subparagraphs (A) through (E) to other health care providers (including primary care physicians and internists) and to cancer survivors and their families, where appropriate.

''(G) Development of initiatives that promote the coordination and effective transition of care between cancer care providers, primary care physicians, and mental health professionals.

''SEC. 399N–2. WORKFORCE DEVELOPMENT COLLABORATIVE ON MEDICAL AND PSYCHOSOCIAL CARE FOR CHILDHOOD CANCER SURVIVORS.

''(a) IN GENERAL.—The Secretary shall, not later than 1 year after the date of enactment of this Act, convene a Workforce Development Collaborative on Medical and Psychosocial Care for Pediatric Cancer Survivors (referred to in this paragraph as the 'Collaborative'). The Collaborative shall be a cross-specialty, multidisciplinary group composed of educators, consumer and family advocates, and providers of psychosocial and biomedical health services.

''(b) GOALS AND REPORTS.—The Collaborative shall submit to the Secretary a report establishing a plan to meet the following objectives for medical and psychosocial care workforce development:

''(1) Identifying, refining, and broadly disseminating to health care educators information about workforce competencies, models, and curricula relevant to providing medical and psychosocial services to persons surviving pediatric cancers.

''(2) Adapting curricula for continuing education of the existing workforce using efficient workplace-based learning approaches.

''(3) Developing the skills of faculty and other trainers in teaching psychosocial health care using evidence-based teaching strategies.

''(4) Strengthening the emphasis on psychosocial health care in educational accreditation standards and professional licensing and certification exams by recommending revisions to the relevant oversight organizations.

''(5) Evaluating the effectiveness of patient navigators in pediatric cancer survivorship care.

''(6) Evaluating the effectiveness of peer support programs in the psychosocial care of pediatric cancer patients and survivors.''.

(b) TECHNICAL AMENDMENT.—

(1) IN GENERAL.—Section 3 of the Hematological Cancer Research Investment and Education Act of 2002 (Public Law 107–172; 116 Stat. 541) is amended by striking ''section 419C'' and inserting ''section 417C''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect as if included in section 3 of the Hematological Cancer Research Investment and Education Act of 2002 (Public Law 107–172; 116 Stat. 541).

SEC. 202. GRANTS TO IMPROVE CARE FOR PEDIATRIC CANCER SURVIVORS.

(a) IN GENERAL.—Section 417E of the Public Health Service Act (42 U.S.C. 285a–11), as amended by section 101, is further amended—

(1) in the section heading, by striking ''**RESEARCH AND AWARENESS**'' and inserting ''**RESEARCH, AWARENESS, AND SURVIVORSHIP**''; and

(2) by striking subsection (b) and inserting the following:

''(b) IMPROVING CARE FOR PEDIATRIC CANCER SURVIVORS.—

''(1) RESEARCH ON CAUSES OF HEALTH DISPARITIES IN PEDIATRIC CANCER SURVIVORSHIP.—

''(A) RESEARCH AWARDS.—The Director of NIH, in coordination with ongoing research activities, may conduct or support pediatric cancer survivorship research including any of the following areas:

''(i) Needs and outcomes of pediatric cancer survivors within minority or other medically underserved populations.

''(ii) Health disparities in pediatric cancer survivorship outcomes within minority or other medically underserved populations.

''(iii) Barriers that pediatric cancer survivors within minority or other medically underserved populations face in receiving follow-up care.

''(iv) Familial, socioeconomic, and other environmental factors and the impact of such factors on treatment outcomes and survivorship.

''(B) BALANCED APPROACH.—In supporting research under subparagraph (A)(i) on pediatric cancer survivors within minority or other medically underserved populations, the Director of NIH shall ensure that such research addresses both the physical and the psychological needs of such survivors, as appropriate.

''(2) RESEARCH ON LATE EFFECTS AND FOLLOW-UP CARE FOR PEDIATRIC CANCER SURVIVORS.—The Director of NIH, in coordination with ongoing research activities, may conduct or support research on follow-up care for pediatric cancer survivors, including any of the following areas:

''(A) The development of indicators used for long-term patient tracking and analysis of the late effects of cancer treatment for pediatric cancer survivors.

''(B) The identification of risk factors associated with the late effects of cancer treatment.

''(C) The identification of predictors of adverse neurocognitive and psychosocial outcomes.

''(D) The identification of the molecular underpinnings of long-term complications.

''(E) The development of risk prediction models to identify those at highest risk of long-term complications.

''(F) Initiatives to protect cancer survivors from the late effects of cancer treatment, by developing targeted interventions to reduce the burden of morbidity borne by cancer survivors.

''(G) Transitions in care for pediatric cancer survivors.

''(H) Training of professionals to provide linguistically and culturally competent follow-up care to pediatric cancer survivors.

''(I) Different models of follow-up care.

''(J) Examining the cost-effectiveness of the different models of follow-up care.''.

SEC. 203. COMPREHENSIVE LONG-TERM FOLLOW-UP SERVICES FOR PEDIATRIC CANCER SURVIVORS.

Part B of title III of the Public Health Service Act (42 U.S.C. 243 et seq.) is amended by inserting after section 317T the following:

''SEC. 317U. STANDARDS FOR COMPREHENSIVE LONG-TERM CARE FOR PEDIATRIC CANCER SURVIVORS THROUGH THE LIFESPAN.

''The Secretary may establish a task force to develop and test standards, outcomes, and metrics for high-quality childhood cancer survivorship care in consultation with a full spectrum of representation of experts in late effects of disease and treatment of childhood cancers, including—

''(1) oncologists who treat children and adolescents;

''(2) oncologists who treat adults;

''(3) primary care providers engaged in survivorship care;

''(4) survivors of childhood cancer;

''(5) parents of children who have been diagnosed with and treated for cancer and parents of long-term survivors;

''(6) professionals who are engaged in the development of clinical practice guidelines;

''(7) nurses and social workers;

''(8) mental health professionals;

''(9) allied health professionals, including physical therapists and occupational therapists;

''(10) experts in health care quality measurement and improvement; and

''(11) others, as the Secretary determines appropriate.''.

SEC. 204. SURVIVORSHIP DEMONSTRATION PROJECT.

(a) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Health and Human Services (referred to in this section as the ''Secretary'') may carry out a demonstration project over a 3-year period, designed to improve the quality and efficiency of care provided to childhood cancer survivors throughout their lifespan, through improved care coordination as survivors transitions to adult care.

(b) SELECTION OF DEMONSTRATION SITES.—

(1) MAXIMUM NUMBER OF SITES.—The maximum number of sites at which the demonstration project under subsection (a) is carried out may not exceed 10.

(2) DIVERSITY OF SITES.—In selecting entities to participate in the demonstration project, the Secretary may, to the extent practicable, include in such selection—

(A) small-, medium-, and large-sized sites; and

(B) sites located in different geographic areas.

(c) ACTIVITIES UNDER DEMONSTRATION PROJECT.—The activities conducted under the demonstration project under subsection (a) may, in addition to any other activity specified by the Secretary, include activities that seek to develop different models of care coordination, including transitions of care, follow-up care, monitoring, and other survivorship related programs that utilize a multidisciplinary, team based approach to care, including any of the following activities:

(1) Coordination of care and transitions of care between cancer care providers, primary care physicians, mental health professionals and any other relevant providers.

(2) Dissemination of information to, and training of, health care providers about linguistically and culturally competent follow-up care specific to cancer survivors.

(3) Development of monitoring programs for cancer survivors and their families.

(4) Incorporation of peer support and mentoring programs to improve the quality of life of cancer survivors.

(5) Designing systems and models for the effective transfer of treatment information and care summaries from cancer care providers to other health care providers (including risk factors and a care plan).

(6) Evaluation of functional status and incorporation of specific functional needs into the care planning process.

(7) Dissemination of the information on activities and programs conducted under this section to other health care providers (including primary care physicians) and to cancer survivors and their families, where appropriate.

(8) Other items determined by the Secretary.

(d) MEASURES.—The Secretary may use the following measures to assess the performance of each site:

(1) Patient care and patient/family satisfaction measures.

(2) Resource utilization measures.

(3) Adult survivorship measures, as appropriate.

(e) GAO REPORT.—The Comptroller General of the United States shall submit a report to Congress evaluating the success of the demonstration project. Such report shall include an assessment of the impact of the project upon the quality and cost-efficiency of services furnished to individuals under this title, including an assessment of the satisfaction of such individuals with respect to such services that were furnished under such project. Such report shall include recommendations regarding the possible expansion of the demonstration project.

Subtitle B—Coverage and Payment of High Quality Care

SEC. 211. REPORT BY THE COMPTROLLER GENERAL.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a review and submit recommendations to Congress on existing barriers to obtaining and paying for adequate medical care for survivors of childhood cancer.

(b) CONSIDERATIONS.—In carrying out the review and formulating recommendations under subsection (a), the Comptroller General shall—

(1) identify existing barriers to the availability of complete and coordinated survivorship care for survivors of childhood cancer and to the availability of expert pediatric palliative care, including consideration of—

(A) understanding and education among patients, health care providers, regulators, and third-party payors;

(B) adequacy of payment codes to cover necessary survivorship services;

(C) access to necessary medical and other services for such survivors, including the services described in subsection (c); and

(D) lack of pediatric palliative care across all stages of illness and hospice services for patients approaching the end of life; and

(2) make recommendations to provide improved access and payment plans for childhood cancer survivorship programs and palliative care, including psychosocial services and coverage of such services.

(c) SERVICES DESCRIBED.—The services described in this subsection are the following:

(1) Coordinated multidisciplinary long-term follow-up care with access to appropriate pediatric subspecialists and adult subspecialists with specific expertise in survivorship, including subspecialists with expertise in oncology, radiation oncology, surgery, cardiology, psychiatry or psychology, endocrinology, pulmonology, nephrology, dermatology, gynecology, and urology.

(2) Appropriate organ function testing (particularly screening for potential problems at much younger ages than usually indicated in the general population) and treatment, including—

(A) neuropsychological testing and mental health services;

(B) fertility testing and treatment;

(C) evaluation and treatment for endocrine disorders including growth hormone and testosterone replacement;

(D) diagnostic imaging to screen for late effects of treatment (including subsequent cancers), such as mammograms and magnetic resonance imaging testing to screen for possible breast cancer;

(E) screening for cardiac problems, such as echocardiograms;

(F) screening for osteoporosis with bone densitometry, including duel x-ray absorptiometry and monitoring 25 hydroxyvitamin D levels;

(G) dental coverage and necessary dental implants;

(H) hearing aids and other prosthetic devices; and

(I) screening for lung problems, such as pulmonary function testing.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. BURGESS) and the gentlewoman from California (Ms. MATSUI) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. BURGESS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous materials into the RECORD on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BURGESS. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 3381, the Childhood Cancer Survivorship, Treatment, Access, and Research Act of 2016, also known as the Childhood Cancer STAR Act. This bill was introduced by my Texas colleague, Representative MIKE MCCAUL; Representative CHRIS VAN HOLLEN; and Representative JACKIE SPEIER.

The legislation we are considering today is important for many young Americans, as it is intended to help the most vulnerable among us: children who have been diagnosed with cancer.

We have made progress in combating childhood cancer. In 1960, only 4 percent of children with cancer survived more than 5 years. Today, 80 percent of children with cancer survive, but there is work left to do.

H.R. 3381 will expand the opportunities for childhood cancer research, improve childhood cancer surveillance, help improve the quality of life for childhood cancer survivors, and help ensure that there is proper pediatric cancer research within the National Institutes of Health.

This legislation enjoys broad bipartisan support. It has 270 cosponsors, representing over 60 percent of the House of Representatives.

Mr. Speaker, I urge my colleagues to vote ''yes'' on H.R. 3381.

I reserve the balance of my time.

Ms. MATSUI. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 3381, the Childhood Cancer Survivorship, Treatment, Access, and Research Act.

Nearly 16,000 children are diagnosed with cancer in the United States each year. These children bravely battle disease and carry burdens that no one their age should. The Childhood Cancer STAR Act gives those children and their families hope by encouraging improved research, development of treatments, and survivorship programs for children with cancer.

This legislation urges the National Institutes of Health to find new opportunities to expand research into pediatric cancer and survivorship, including research on the causes of health disparities in pediatric cancer survivors.

This legislation would also allow the Centers for Disease Control and Prevention to award funding to help States better track pediatric cancer. Improved information about childhood cancer will help guide public health decisions and strategies as well as research.

Expanding research that leads to treatments and cures is only part of the solution for children diagnosed with cancer. This bill recognizes that these children often require different care for the remainder of their lives.

As many as two-thirds of pediatric cancer survivors suffer from the effects of their disease and treatments long term, including secondary cancers and organ damage.

To help children after they have beat pediatric cancer, this bill would create a pilot program to explore model systems of care for pediatric cancer survivors and to study barriers to adequate medical care for survivors of childhood cancer.

I urge my colleagues to support this bill.

Mr. Speaker, I reserve the balance of my time.

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Mr. BURGESS. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. MCCAUL), the chairman of the Committee on Homeland Security, a true champion for all things pediatric.

Mr. MCCAUL. Mr. Speaker, I want to also thank the gentleman from Texas (Mr. BURGESS) for his work on this effort as well. I chair the Committee on Homeland Security, but I also chair the Congressional Childhood Cancer Caucus. It is one of the biggest threats to our children. It is the number one killer of our children.

Therefore, I rise in support of H.R. 3381, the Childhood Cancer STAR Act, because it will address four major concerns facing the pediatric cancer community: survivorship, treatment, access, and research. I introduced this bill with my colleagues on the other side of the aisle, CHRIS VAN HOLLEN of Maryland and Ms. JACKIE SPEIER of California, to be the most comprehensive childhood cancer bill ever considered before this House.

I cofounded, as I said, the Congressional Childhood Cancer Caucus 7 years ago as a platform to give children a voice, children who don't have lobbyists, children who are dying, who have been impacted by this life-altering diagnosis.

To better fight childhood cancer, we must know more about it, and that is what the STAR Act does. It authorizes NIH to expand their efforts to collect data on childhood cancer so we can better understand its causes and the effects of treatment. It also builds on previous work from cancer research groups to provide doctors with the resources necessary to identify children who may be at risk for developing cancer, preventing the worst outcomes from becoming a reality.

Finally, we must address the needs of two-thirds of childhood cancer survivors facing serious lifelong medical conditions. Our bill will improve collaboration among providers so doctors are better able to care for survivors as they age.

I am pleased this bill has the strong support of the patient advocacy community. I especially want to thank the St. Baldrick's Foundation for their continued support and help and work on this important bill. Their CEO, Kathleen Ruddy, as well as Kevin Mathis and Danielle Leach, have been relentless advocates of this bill to make a difference in kids' lives. I look forward to working with them in the future as we look to further address the needs of the childhood cancer community.

Mr. Speaker, I close by stating that we are also very excited that the Cures Act bill passed the House of Representatives, a very important bill about curing not just childhood cancer, but all diseases. We urge the Senate to pass that legislation as well. In that bill was the Advancing Hope Act, which will make a difference in the number of drugs that can be developed to cure childhood cancer.

In fact, it reauthorizes a bill that I introduced to the year 2020, a bill that has already produced a childhood cancer drug, the first since the 1980s, to cure neuroblastoma in children. When I went to meet with Rex Ryan at Dell Children's Medical Center in Austin, Texas, in this clinical trial, the idea, Mr. Speaker, that you can actually pass a bill in this Congress and see that tangible result, a bill passed in this great body that transforms into saving the life of a child, is truly a tremendous and extraordinary experience.

Ms. MATSUI. Mr. Speaker, I yield 5 minutes to the gentlewoman from California (Ms. SPEIER).

Ms. SPEIER. Mr. Speaker, let me first say what a joy it has been to work with my colleague MIKE MCCAUL on this issue, and with CHRIS VAN HOLLEN as well. Their passion, compassion, and commitment to this issue is one that I have not seen replicated many times.

Let me comment by talking about the letter I received from Sylvia DeCourcey in my district. Her son Tyler has been battling stage 4 neuroblastoma for about a year. She had written to me the following: ''As a parent of a pediatric cancer patient, I wanted to say thank you for introducing the Childhood Cancer STAR Act. This has the potential to make a huge difference for my son Tyler and his fellow warriors. In August we lost two little buddies to the neuroblastoma monster. To think that if this act was already in place, that may not have happened, and the heartaches of their families and friends could be prevented. I hope and pray that my son will beat this. Thank you again for sponsoring the STAR Act. . . .''

On Friday I received a follow-up email from Sylvia, and it still sends chills up and down my spine. Tyler has officially been in remission for 2 weeks. It is only fitting that today we are taking up the STAR Act.

The STAR Act would not have been possible without the perseverance of families like Sylvia and Tyler and of the young people who are living with the cancers. There have been more than 50 organizations that have worked on this issue. Together they have managed to push even a gridlocked Congress into action.

I would like to take a moment to highlight the personal importance of the survivorship provisions of the STAR Act, which I have been working on since 2011. Fifty years ago, only 4 percent of children with cancer survived more than 5 years beyond their diagnosis. Today the cure rate has increased to over 80 percent. It is a remarkable accomplishment. Now we have some 500,000 young people who have survived childhood cancer.

But, as many families know, the fight against childhood cancer doesn't end with remission. As many as two-thirds of childhood cancer survivors experience secondary cancers, and that is why this particular provision of the bill is so important. It is imperative that the STAR Act has a strategy to improve their care and quality of life, and it would not have happened without the guidance of Susan Weiner and Sue Emmer of Children's Cause for Cancer Advocacy. I would also like to thank the staff of all of our offices who worked so hard on this measure: Thomas Rice, Jessica Nalepa, Austin Carson, Kelly Cotner, and Andy Taylor with Congressman MCCAUL; Ziky Ababiya and Erika Appel with Congressman VAN HOLLEN; Jill Brimmer with Senator REED; Dana Richter with Senator MOORE CAPITO; Adrianna Simonelli with Chairman UPTON; Waverly Gordon with Ranking Member PALLONE; Kelly Dixon with Majority Leader MCCARTHY; Charlene MacDonald with Democratic Whip HOYER; Holly Gibbons and her team at the NIH; and Molly Fishman on my staff as well.

I want to thank my colleagues for the time, the leadership, and for giving us an opportunity to do something to improve the lives of these children living with cancer and their parents who are advocating for them.

Mr. BURGESS. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of H.R. 3381, the Childhood Cancer STAR Act, which would allow the National Institutes of Health and the Department of Health and Human Services to expand their efforts to research treatments and care for childhood cancer patients.

Each year, thousands of children are diagnosed with cancer, and far too many children are lost to this horrible disease. Childhood cancer survivors and their families still face an uphill battle after remission, as the chances for recurrence can be higher for children.

Advances in treatment have greatly improved outcomes, but more must be done to support patients, survivors, and their families. The bill would help expand efforts to improve the lives of childhood cancer survivors, develop new treatments, increase access to

care, and accelerate lifesaving research for those impacted by childhood cancer.

Childhood cancer patients and survivors have unique needs, and this bill will ensure that those needs are addressed through continued child-focused research. We must continue the fight until no child is lost to cancer. I urge my colleagues to support childhood cancer patients, survivors, and families by supporting the Childhood Cancer STAR Act.

Ms. MATSUI. Mr. Speaker, I urge my colleagues to support the Childhood Cancer STAR Act.

I yield back the balance of my time.

Mr. BURGESS. Mr. Speaker, I urge all Members to vote in favor of H.R. 3381.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. BURGESS) that the House suspend the rules and pass the bill, H.R. 3381, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

EXPANDING CAPACITY FOR HEALTH OUTCOMES ACT

Mr. BURGESS. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2873) to require studies and reports examining the use of, and opportunities to use, technology-enabled collaborative learning and capacity building models to improve programs of the Department of Health and Human Services, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2873

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Expanding Capacity for Health Outcomes Act'' or the ''ECHO Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) HEALTH PROFESSIONAL SHORTAGE AREA.—The term ''health professional shortage area'' means a health professional shortage area designated under section 332 of the Public Health Service Act (42 U.S.C. 254e).

(2) INDIAN TRIBE.—The term ''Indian tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(3) MEDICALLY UNDERSERVED AREA.—The term ''medically underserved area'' has the meaning given the term ''medically underserved community'' in section 799B of the Public Health Service Act (42 U.S.C. 295p).

(4) MEDICALLY UNDERSERVED POPULATION.—The term ''medically underserved population'' has the meaning given the term in section 330(b) of the Public Health Service Act (42 U.S.C. 254b(b)).

(5) NATIVE AMERICANS.—The term ''Native Americans'' has the meaning given the term in section 736 of the Public Health Service Act (42 U.S.C. 293) and includes Indian tribes and tribal organizations.

(6) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(7) TECHNOLOGY-ENABLED COLLABORATIVE LEARNING AND CAPACITY BUILDING MODEL.—The term ''technology-enabled collaborative learning and capacity building model'' means a distance health education model that connects specialists with multiple other health care professionals through simultaneous interactive videoconferencing for the purpose of facilitating case-based learning, disseminating best practices, and evaluating outcomes.

(8) TRIBAL ORGANIZATION.—The term ''tribal organization'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

SEC. 3. EXAMINATION AND REPORT ON TECHNOLOGY-ENABLED COLLABORATIVE LEARNING AND CAPACITY BUILDING MODELS.

(a) EXAMINATION.—

(1) IN GENERAL.—The Secretary shall examine technology-enabled collaborative learning and capacity building models and their impact on—

(A) addressing mental and substance use disorders, chronic diseases and conditions, prenatal and maternal health, pediatric care, pain management, and palliative care;

(B) addressing health care workforce issues, such as specialty care shortages and primary care workforce recruitment, retention, and support for lifelong learning;

(C) the implementation of public health programs, including those related to disease prevention, infectious disease outbreaks, and public health surveillance;

(D) the delivery of health care services in rural areas, frontier areas, health professional shortage areas, and medically underserved areas, and to medically underserved populations and Native Americans; and

(E) addressing other issues the Secretary determines appropriate.

(2) CONSULTATION.—In the examination required under paragraph (1), the Secretary shall consult public and private stakeholders with expertise in using technology-enabled collaborative learning and capacity building models in health care settings.

(b) REPORT.—

(1) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Secretary shall submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Energy and Commerce of the House of Representatives, and post on the appropriate website of the Department of Health and Human Services, a report based on the examination under subsection (a).

(2) CONTENTS.—The report required under paragraph (1) shall include findings from the examination under subsection (a) and each of the following:

(A) An analysis of—

(i) the use and integration of technology-enabled collaborative learning and capacity building models by health care providers;

(ii) the impact of such models on health care provider retention, including in health professional shortage areas in the States and communities in which such models have been adopted;

(iii) the impact of such models on the quality of, and access to, care for patients in the States and communities in which such models have been adopted;

(iv) the barriers faced by health care providers, States, and communities in adopting such models;

(v) the impact of such models on the ability of local health care providers and specialists to practice to the full extent of their education, training, and licensure, including the effects on patient wait times for specialty care; and

(vi) efficient and effective practices used by States and communities that have adopted such models, including potential cost-effectiveness of such models.

(B) A list of such models that have been funded by the Secretary in the 5 years immediately preceding such report, including the Federal programs that have provided funding for such models.

(C) Recommendations to reduce barriers for using and integrating such models, and opportunities to improve adoption of, and support for, such models as appropriate.

(D) Opportunities for increased adoption of such models into programs of the Department of Health and Human Services that are in existence as of the report.

(E) Recommendations regarding the role of such models in continuing medical education and lifelong learning, including the role of academic medical centers, provider organizations, and community providers in such education and lifelong learning.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. BURGESS) and the gentlewoman from California (Ms. MATSUI) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. BURGESS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and insert extraneous materials into the RECORD on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BURGESS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 2873, the Expanding Capacity for Health Outcomes Act, also known as the ECHO Act. This bipartisan legislation by Senators HATCH and SCHATZ passed the Senate 97–0 on November 29. House companion legislation has been introduced and championed by Representative MATSUI and me.

This legislation requires the Secretary of Health and Human Services to examine technology-enabled collaborative learning and capacity building models and their impact on the healthcare workforce, the implementation of public health programs, and the delivery of health services in rural and underserved areas to underserved populations. The bill would require the Secretary to consult with public and private stakeholders with expertise in these delivery models to evaluate their potential and larger adoption in States and within the Federal Government.

Within 2 years, the Secretary then would submit to Congress and publicly post a report that includes an analysis of these programs which utilize technology in a novel manner. One such method these programs may employ is using a hub-and-spoke approach to connecting specialty and primary care workers for health surveillance and

proper intervention. This holds particular promise for rural and underserved areas where it can be difficult to recruit and retain health professionals but could offer opportunities for continuing provider education and engagement.

This legislation enjoys broad bipartisan support. It has been endorsed by a number of health professional organizations, including America's Essential Hospitals, the American Academy of Pediatrics, the American Medical Association, the American Nurses Association, and the National Association of Community Health Centers, to name but a few.

This legislation does not impact direct spending or revenues. It offers a means by which to evaluate successful models in the private sector and opportunities to build upon them and adopt them if successful.

Mr. Speaker, I urge my colleagues to vote ''yes'' on S. 2873.

I reserve the balance of my time.

Ms. MATSUI. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 2873, the ECHO Act, that I co-led with my colleague Representative BURGESS in the House and Senators HATCH and SCHATZ in the Senate.

The ECHO Act elevates the successful Project ECHO model, which uses technology to remotely connect healthcare providers to one another so they can communicate best practices and new techniques.

UC Davis Medical Center, in my district of Sacramento, has some of the best and brightest doctors, and they are working hard to share their expertise across our region and the country. We are also fortunate in Sacramento to have a strong safety net of top-notch community health centers that work to provide the primary care needs of underserved populations. However, primary care is a big job, and often these providers have not received the education or training they need in specialty areas such as pain management.

□ 1300

UC Davis is successfully partnering with over 125 community health centers in California, to provide that collaborative education on responsible and safe pain management, resulting in increased use of evidence-based tools and reduced prescriptions for high-dose opioids. Better understanding of pain and effective pain management will contribute toward combating our Nation's devastating opioid abuse and heroin epidemic.

This Project ECHO bill is a first step in scaling approaches like this nationwide to ensure that every provider has access to the best information on a variety of topics, from pain to addiction, dermatology, infectious diseases, neurology, and much more.

We need to build on this progress to ensure that we are harnessing the power of technology to improve patient care and save lives. I urge my colleagues to support S. 2873.

Mr. Speaker, I want to thank Congressman BURGESS for his work on this, and I urge my colleagues to send S. 2873 to the President's desk for signature.

Mr. Speaker, I yield back the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, only 10 percent of physicians practice in rural areas in this country, but those areas contain 25 percent of the population. Obviously, there is a mismatch.

Access to care in underserved areas is especially challenging for patients with chronic or complex conditions. Overburdened primary care providers often will have to refer complex patients to hospitals or specialists for care that actually could just as well be delivered at home. These unnecessary referrals delay care and increase costs for patients in the system. The Project Extension for Community Health Outcomes, or Project ECHO, is one example of an innovative model that is being used to address this challenge.

Project ECHO uses interactive videoconferencing to link specialist teams with primary care providers in medical education clinics that include didactic teaching and case-based learning.

Project ECHO has equipped local providers across the country with the extraordinary skills necessary to take on healthcare challenges threatening our communities. Project ECHO has been used to increase the number of docs able to prescribe for opioid abuse, to rapidly educate providers on public health crises, such as a novel flu outbreak, and to train providers to address complex mental health disorders.

This bipartisan, bicameral bill has broad support from healthcare providers and systems. It passed the Senate 97–0 last week. Again, I want to thank Congresswoman MATSUI of California for her partnership on the bill. I encourage my colleagues to support its passage.

Mr. Speaker, I yield back the balance of my time.

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of S. 2873, Expanding Capacity for Health Outcomes Act, which would increase access to health care services in rural areas.

This bill authorizes the Department of Health and Human Services to study the Project ECHO model, which launched a revolutionary long distance health care model that uses videoconferencing for collaboration and case-learning.

The Project ECHO model has proven to be successful in bringing much needed health care to some of our nation's most remote regions.

By taking study of this model to the national level, we have the opportunity to fully harness emerging technologies to transform the way health care is practiced.

As a life long health care professional from a district with rural and underserved areas, I know firsthand how challenging it can be to provide access to high quality health care to these areas.

Connecting primary care providers with specialists through video streaming helps bridge the gap in both distance and access, reducing travel and costs for both patient and provider alike.

I urge my colleagues to support this legislation so that we can continue working to provide specialty care to all Americans across the nation.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. BURGESS) that the House suspend the rules and pass the bill, S. 2873.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

IMPROVING BROADBAND ACCESS FOR VETERANS ACT OF 2016

Mr. LATTA. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6394) to require the Federal Communications Commission to submit to Congress a report on promoting broadband Internet access service for veterans.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6394

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Improving Broadband Access for Veterans Act of 2016''.

SEC. 2. REPORT ON PROMOTING BROADBAND INTERNET ACCESS SERVICE FOR VETERANS.

(a) VETERAN DEFINED.—In this section, the term ''veteran'' has the meaning given the term in section 101 of title 38, United States Code.

(b) REPORT REQUIRED.—Not later than 1 year after the date of the enactment of this Act, the Federal Communications Commission shall submit to Congress a report on promoting broadband Internet access service for veterans, in particular low-income veterans and veterans residing in rural areas. In such report, the Commission shall—

(1) examine such access and how to promote such access; and

(2) provide findings and recommendations for Congress with respect to such access and how to promote such access.

(c) PUBLIC NOTICE AND OPPORTUNITY TO COMMENT.—In preparing the report required by subsection (b), the Commission shall provide the public with notice and an opportunity to comment on broadband Internet access service for veterans, in particular low-income veterans and veterans residing in rural areas, and how to promote such access.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Ohio (Mr. LATTA) and the gentleman from Vermont (Mr. WELCH) each will control 20 minutes.

The Chair recognizes the gentleman from Ohio.

GENERAL LEAVE

Mr. LATTA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous materials in the RECORD on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Ohio?

There was no objection.

Mr. LATTA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 6394, the Improving Broadband Access for Veterans Act of 2016.

Our veterans face unique and difficult challenges upon their return home from service, but access to broadband Internet service should not be one. Broadband access can help equip our veterans with the tools necessary to be successful in today's 21st century economy, and that is why I urge all of my colleagues to support this commonsense, nonpartisan bill.

H.R. 6394 simply requires the Federal Communications Commission to submit a report to Congress on ways to better improve access to broadband for our Nation's veterans; in particular, low-income veterans and veterans living in rural areas.

We as legislators will be able to make better informed policy decisions based upon the recommendations made in the report and, thereby, help ensure our veterans have access to such a fundamental tool in today's economy. I urge my colleagues to vote ''yes'' on H.R. 6394.

Mr. Speaker, I reserve the balance of my time.

Mr. WELCH. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 6394, the Improving Broadband Access for Veterans Act of 2016.

I thank my colleagues, Mr. MCNERNEY, who will be speaking very shortly, and Mr. KINZINGER, both colleagues on the Energy and Commerce Committee with myself and Mr. LATTA. Both of them have had a focus on how the Internet with be helpful to veterans. Obviously, Internet is really helpful to all of us, but veterans have some special challenges, and we have a special obligation to veterans.

This legislation is absolutely focused on the obligation that we have to try to help our veterans have access to the Internet. That is especially important in rural areas, something very close to the heart of Mr. LATTA and me.

Mr. Speaker, I yield such time as he may consume to the gentleman from California (Mr. MCNERNEY), the cosponsor of this bill with Mr. KINZINGER, and a wonderful colleague on the Energy and Commerce Committee.

Mr. MCNERNEY. Mr. Speaker, I want to thank my colleague from Vermont for his work on this, and my colleague from Ohio, and also Mr. KINZINGER from Illinois for his work.

My bill, H.R. 6394, sets us on a path of working to close the digital divide for veterans. Access to broadband Internet service provides an important resource for the more than 20 million veterans across our Nation, with the highest population residing in my State of California.

Having a broadband Internet connection helps veterans apply for jobs more easily, obtain necessary vocational training, and communicate with friends and family. It lets them keep up with current events. It gives them access to healthcare services. And they can get important information about their benefits and military records. Without broadband Internet access, it is difficult to fully participate in today's society.

Veterans face many challenges when they return home. Not having Internet access makes what is already an incredibly tough transition process even harder. This is particularly likely to be the case for low-income veterans and veterans living in rural areas.

Although we lack data on the number of veterans with broadband Internet access, the U.S. Census Bureau and the Pew Research Center both report that broadband adoption rates are significantly lower among Americans who live at or below the Federal poverty level.

An analysis by the National Telecommunications and Information Administration at the U.S. Department of Commerce further finds that broadband adoption rates in rural areas of the country are lower than they are in urban areas.

We must find ways to ensure that veterans, especially the more than 1.4 million living below the Federal poverty level and the 5.3 million residing in rural areas, are not left behind. This is why my bill directs the Federal Communications Commission to examine the current state of broadband access for veterans and what can be done to increase access, with a focus on low-income veterans and veterans residing in rural areas. The findings and recommendations from the report will be important for paving the way to get more veterans connected.

Again, I want to thank my cosponsor, Mr. KINZINGER, for his support, and I urge my colleagues to vote for the bill.

Mr. WELCH. Mr. Speaker, I yield back the balance of my time.

Mr. LATTA. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, there are more than 20 million veterans across the Nation, and every single one of them deserves access to broadband Internet. This bill can help give Congress the information it needs to help improve the lives of our veterans, and I urge all of my colleagues for their support of the gentleman's legislation.

Mr. Speaker, I yield back the balance of my time.

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of H.R. 6394, the Improving Broadband Access for Veterans Act of 2016.

The First District of Georgia is blessed to be home to four of our military's fantastic installations and more importantly, to the great men and women who choose to serve our country.

Our military's greatest strength is found in those individuals who have chosen to defend our freedoms and our values.

Those veterans bring a wealth of information and experience to the civilian sector that benefits innovation and those who are exposed to it.

This bill requires the FCC to submit to Congress a report on the promotion of broadband access for veterans with a focus on low-income veterans and those living in rural areas.

By ensuring those veterans have access to high-speed broadband, that determination and hard-working spirit found in so many veterans that I've met can be fostered and grown.

I want to thank Congressman MCNERNEY, Congressman KINZINGER and the rest of the Energy and Commerce Committee for their hard work on such an important issue for the growth of our veteran community.

I urge my colleagues to support this legislation.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Ohio (Mr. LATTA) that the House suspend the rules and pass the bill, H.R. 6394.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. LATTA. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

EXPRESSING SENSE OF HOUSE THAT ACCESS TO DIGITAL COMMUNICATIONS TOOLS AND CONNECTIVITY IS NECESSARY TO PREPARE YOUTH

Mr. LATTA. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 939) expressing the sense of the House of Representatives that access to digital communications tools and connectivity is necessary to prepare youth in the United States to compete in the 21st century economy.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 939

Whereas the United States should lead the world in providing high-quality education and opportunities to its citizens;

Whereas digital skills are essential for education and preparing citizens for the economy of the future;

Whereas, on a daily basis, teachers across the country assign homework that requires Internet access to be completed;

Whereas there are 5,000,000 households with school-age children in the United States that do not have high-speed Internet access at home and fall into what is known as the ''homework gap'';

Whereas a disproportionate number of students without high-speed Internet access at home reside in low-income and minority households;

Whereas students and families in rural areas face additional challenges when homework requires Internet access that is out of reach;

Whereas every student deserves an opportunity at 21st century success;

Whereas participation in the classroom can be improved when all students are equipped with the tools to complete their homework;

Whereas educators can increase the use of cutting-edge education technology and digital learning resources when those resources

remain accessible during out-of-school hours;

Whereas data show that students have received lower grades and been unable to complete their assignments because of their lack of Internet access at home;

Whereas improved student access to postsecondary education and workforce opportunities can be made possible by increasing the ability of students to apply for employment, postsecondary education, and financial aid opportunities;

Whereas leaders in the public and private sectors have recognized that the homework gap is an issue of national importance and partnered to find cooperative solutions to address it; and

Whereas instilling digital skills and the knowledge to succeed in the 21st century economy in the Nation's students is vital to the Nation's global competitiveness: Now, therefore, be it

Resolved, That it is the sense of the House of Representatives that access to digital communications tools and connectivity is necessary to prepare youth in the United States to compete in the 21st century economy.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Ohio (Mr. LATTA) and the gentleman from Vermont (Mr. WELCH) each will control 20 minutes.

The Chair recognizes the gentleman from Ohio.

GENERAL LEAVE

Mr. LATTA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous materials in the RECORD on the resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Ohio?

There was no objection.

Mr. LATTA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, again, I am pleased to support another resolution from our colleagues from across the aisle.

Broadband and the Internet have become nearly indispensable parts of our 21st century economy. Whether it is bringing the world's information to your fingertips or connecting you to people around the world, it is increasingly clear that improved access to the Internet is a vital part of our digital future, and particularly so for our Nation's children.

This resolution affirms the commitment of the House of Representatives to ensuring all Americans, particularly students, have the tools they need to succeed. As members of the Subcommittee on Communications and Technology, Democrats and Republicans alike firmly espouse the goal of bringing broadband access to all children of the United States.

I thank the gentleman from Vermont for shining a light on this important issue, and I urge my colleagues to vote ''yes'' on H. Res. 939.

Mr. Speaker, I reserve the balance of my time.

Mr. WELCH. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, here is the situation: our kids are going to school, they are getting homework, and 70 percent of the teachers assign homework that presumes access to the Internet, but many of our kids don't have access to the Internet.

About 5 million, or one-third of households with school age children in the U.S., lack a high-speed connection at home. That is the ''homework gap.'' It creates a lot of anxiety, as well as some inability to get the homework done. And the anxiety for these kids is that they go home, they have got an assignment, they want to do it, and they don't have the tools. It puts enormous pressure on the parents.

We have seen some reports where, in order to address this outside of the school, they will park buses that have high-speed Internet access, and the parents will bring the kids back to school and sit outside while the kids sit on the bus where they have the homework connection.

That is asking a lot of our parents, it is asking a lot of our kids, and this resolution is just acknowledging what I think we all know is the obvious. That is, if kids are going to have a shot at getting ahead, if they are going to be able to do their homework, we have got to get that Internet access out in the area so we don't have 5 million kids without it.

□ 1315

It is such a real problem when you get into the rural areas, and that is where Mr. LATTA and I know that, and the reason is because extending the broadband out into the rural areas is economically more of a challenge for some of our companies.

We believe that, ultimately, we have got to have Internet access, much like we did with electricity, where we make a policy that says we are getting that broadband to the last mile. This resolution demonstrates an ongoing bipartisan commitment to achieve that goal. I know, Mr. Speaker, you have a lot of rural areas in your district as well.

I urge my colleagues to support this, and I yield back the balance of my time.

Mr. LATTA. Mr. Speaker, again, I thank the gentleman from Vermont. I know we have worked for well over a year now on rural issues on the committee, and I appreciate his leadership on that. I also thank the gentleman for working across the aisle with us to highlight this important need.

American students must have every tool to prepare themselves for an increasingly competitive future, and I hope that my colleagues will join me in support of this resolution.

Mr. Speaker, I yield back the balance of my time.

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of this resolution, which would express the sense of the House of Representatives that students everywhere should have access to digital tools that will help to further their education in the 21st century economy.

This resolution expresses the sense of the House that the United States should be leading the world in proving the digital tools necessary to succeed and create new opportunities.

Nearly 5 million households in the United States do not have high-speed internet, meaning those households don't have access to an increasingly important aspect of a modern education.

By increasing access to millions of children around the country, we take a step forward in promoting a 21st century education.

This would also improve the global competitiveness of the United States as countries around the world increasingly promote broadband access in their educational systems.

I look forward to working with my colleagues to expand possibilities for children and to create an environment in which we can incentivize growth and new opportunities.

I thank the Energy and Commerce Committee and Congressman WELCH for their hard work and diligence on this issue.

I urge my colleagues to support this resolution.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Ohio (Mr. LATTA) that the House suspend the rules and agree to the resolution, H. Res. 939.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. LATTA. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

EXPRESSING SENSE OF HOUSE WITH RESPECT TO THIRD-PARTY CHARGES ON CONSUMER TELEPHONE BILLS

Mr. LATTA. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 932) expressing the sense of the House of Representatives with respect to third-party charges on consumer telephone bills.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 932

Whereas telephone companies are required to permit third parties to bill for services on a consumer's monthly telephone bill in certain circumstances;

Whereas ''cramming'' is the act of placing unauthorized charges on a wireline, wireless, or bundled services telephone bill of a consumer;

Whereas the Federal Communications Commission estimates that cramming has harmed tens of millions of people in the United States; and

Whereas existing protections against cramming have not prevented harm to consumers: Now, therefore, be it

Resolved, That it is the sense of the House of Representatives that protections against cramming should be improved and consumers should be empowered to stop unwanted third-party charges on their telephone bills.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Ohio (Mr. LATTA) and the gentleman from Vermont (Mr. WELCH) each will control 20 minutes.

The Chair recognizes the gentleman from Ohio.

GENERAL LEAVE

Mr. LATTA. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous materials in the RECORD on the resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Ohio?

There was no objection.

Mr. LATTA. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am proud to rise in support of H. Res. 932, a sense of Congress offered by our colleague, the gentlewoman from Illinois (Ms. SCHAKOWSKY).

The use of third-party billing on consumer telephone bills can provide consumers with convenience. Unfortunately, this has also been an area that has resulted in consumer fraud.

I agree with the gentlewoman that we should support efforts to provide consumers with tools to protect themselves from experiencing unauthorized charges on their phone bills. Though there are existing protections in place that prohibit so-called cramming, it is clear that more needs to be done to ensure that America's consumers aren't footing the bills for these unauthorized and illegal charges from third-party vendors.

Mr. Speaker, I urge my colleagues to vote ''yes'' on H. Res. 932, and I reserve the balance of my time.

Mr. WELCH. Mr. Speaker, I yield myself such time as I may consume.

Consumer fraud continues, and oftentimes it is individuals figuring out how to use the Internet to get access to your bills and cram charges. Sometimes it is even companies with respected reputations that somehow go awry and then end up ripping off their customers.

It is bad in two respects. One is that it costs money that consumers don't have. I mean, most folks are trying to make ends meet and it is pretty tough.

The second is that it really undercuts the confidence that I think a consumer wants to have and is entitled to have, that when they are putting their money out, they are being treated right, they are being treated fairly.

This resolution has been sponsored by Congresswoman SCHAKOWSKY, and I have got to say that we are lucky in this Congress to have her for all these years leading the charge on consumer issues. She is vigilant, she is tough, and she is fair. Congresswoman SCHAKOWSKY brought this to the attention of this body, and I urge that all of us support this resolution. I want to acknowledge my gratitude for her work over the years as an untiring consumer advocate.

Mr. Speaker, I yield such time as she may consume to the gentlewoman from Illinois (Ms. SCHAKOWSKY).

Ms. SCHAKOWSKY. Mr. Speaker, I thank the gentleman, both for yielding and for his kind words. I appreciate that.

I also thank my colleague across the aisle for his support for this resolution.

H. Res. 932 calls for action on unauthorized phone charges slipped onto consumer phone bills. As my colleague pointed out, that is called cramming.

Charges listed on your phone bill don't necessarily come from your phone company. Phone companies allow third parties to place charges on phone bills. Sometimes that can be a convenience. If you are texting a donation, that charge may also be indicated on your phone bill. However, consumers may end up paying charges that they never authorized in the first place, and scammers can cram the bill with small fees that can add up to significant sums over time.

The Federal Communications Commission estimates that the placement of unauthorized charges, known as cramming, has harmed tens of millions of Americans. Most of those phony charges go unnoticed. If you look at your phone bill, they may be listed as something vague like ''monthly fee'' or ''service charge.''

My resolution calls for action to stop this fraud. Consumer watchdogs have already taken some important steps. In 2014 and 2015, the Federal Communications Commission, the Consumer Financial Protection Bureau, the Federal Trade Commission, and State attorneys general reached settlements with major wireless carriers on cramming. Under those settlements, wireless carriers must disclose and obtain consumer consent for third-party charges on their customers' wireless bills.

While those settlements were an important step, we still have gaps in our consumer protections. The cramming settlement only covers wireless customers, and those protections are time-limited. Landline customers are only protected if their phone company takes action voluntarily.

So consumers really do need strong, ongoing protections against cramming, regardless of which phone company they use and whether they purchase wireless, landline, or bundled phone services. That is why we offer this resolution expressing the sentiment of the House that protections against cramming should be improved and consumers should be empowered to stop unwanted charges.

Again, this resolution is only a first step. I urge every phone company to ensure that their customers understand and consent to any extra charges placed on their phone bills.

In the next Congress, I am hopeful that the Energy and Commerce Committee push for stronger cramming protections through hearings and, when necessary, legislation.

As we take this important first step, I do want to thank my cosponsors on this resolution: Congressman GENE GREEN, a member of the Communications and Technology Subcommittee; Congressman GRIJALVA; Congressman HONDA; and Congresswoman BUSTOS.

I also thank Chairman UPTON and Ranking Member PALLONE on the full Committee, and Chairman WALDEN and Ranking Member ESHOO on the Communications and Technology Subcommittee for working with us to bring this resolution to the floor.

Today I thank my colleagues on both sides of the aisle, and I look forward to working with all of you to realize this resolution's goal: No more phony charges.

Mr. WELCH. Mr. Speaker, I yield back the balance of my time.

Mr. LATTA. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of H. Res. 932, expressing the sense of the House of Representatives with respect to third-party charges on consumer telephone bills.

This legislation resolves that it is the sense of the House that protections against cramming, which is the act of placing unauthorized charges on a telephone bill, should be improved. It is an effort to bring to light the form of fraud called cramming and its effect on consumers' bills.

Many of our Nation's major telecommunications providers have recognized this issue and have made strides in increasing protections for consumers. By passing this resolution, we are taking one step closer to protecting consumers from fraudulent activities and ensuring that those who are vulnerable in our society are no longer susceptible to scammers.

We must continue to address these cases of fraud head on, and I look forward to working with my colleagues on this issue and others.

I applaud the Energy and Commerce Committee for their work on this important legislation, and I urge my colleagues to support this legislation.

Mr. LATTA. Mr. Speaker, I yield myself such time as I may consume.

This is another area where I am proud to join my colleagues in showing the bipartisan work that has been the hallmark of the Energy and Commerce Committee.

I thank the gentlewoman from Illinois for her leadership on this issue, and I urge my colleagues to join me in supporting this resolution.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Ohio (Mr. LATTA) that the House suspend the rules and agree to the resolution, H. Res. 932.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the resolution was agreed to.

A motion to reconsider was laid on the table.

NATIONAL PARK SERVICE CENTENNIAL ACT

Mr. BISHOP of Utah. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4680) to prepare the National Park Service for its Centennial in 2016 and for a second century of promoting and protecting the natural, historic, and cultural resources of our National Parks for the enjoyment of present and future generations, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4680

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''National Park Service Centennial Act''.

(b) TABLE OF CONTENTS.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
TITLE I—NATIONAL PARK CENTENNIAL CHALLENGE FUND
Sec. 101. National Park Centennial Challenge Fund.
Sec. 102. Comparable pass cost for seniors.
TITLE II—NATIONAL PARK FOUNDATION ENDOWMENT
Sec. 201. Short title.
Sec. 202. Second Century Endowment for the National Park Service.
TITLE III—NATIONAL PARK NEXT GENERATION STEWARDS
Sec. 301. National Park Service interpretation and education.
Sec. 302. Public Land Corps amendments.
Sec. 303. Volunteers in the parks.
TITLE IV—NATIONAL PARK FOUNDATION AUTHORITIES
Sec. 401. Board of directors.
Sec. 402. Authorization of appropriations; use of funds.
TITLE V—MISCELLANEOUS
Sec. 501. National Historic Preservation Act.
Sec. 502. Award of concession contracts.
TITLE VI—TECHNICAL CORRECTIONS TO NATIONAL PARK AND PROGRAM LAWS
Sec. 601. Technical corrections to national park and program laws.
TITLE VII—VISITOR EXPERIENCE IMPROVEMENTS AUTHORITY
Sec. 701. Visitor experience improvements authority.
TITLE VIII—NATIONAL HISTORIC PRESERVATION AMENDMENTS ACT
Sec. 801. Short title.
Sec. 802. Reauthorization of the Historic Preservation Fund.

SEC. 2. DEFINITIONS.

In this Act:

(1) CHALLENGE FUND.—The term ''Challenge Fund'' means the National Park Centennial Challenge Fund established in title I.

(2) DIRECTOR.—The term ''Director'' means the Director of the National Park Service.

(3) ENDOWMENT.—The term ''Endowment'' means the Second Century Endowment for the National Park Service established by title II.

(4) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(5) SIGNATURE PROJECT OR PROGRAM.—The term ''signature project or program'' means any project or program identified by the Secretary as one that will help prepare the national parks for another century of conservation, preservation, and visitor enjoyment.

TITLE I—NATIONAL PARK CENTENNIAL CHALLENGE FUND

SEC. 101. NATIONAL PARK CENTENNIAL CHALLENGE FUND.

(a) IN GENERAL.—Title 54, United States Code, is amended by inserting after chapter 1033 the following:

''CHAPTER 1035—NATIONAL PARK CENTENNIAL CHALLENGE FUND

''103501. Establishment.
''103502. Signature projects and programs.
''103503. Summary to Congress.

''§ 103501. Establishment

''(a) IN GENERAL.—There is established in the Treasury an account to be known as the National Park Centennial Challenge Fund.

''(b) DEPOSITS.—All amounts received by the United States each fiscal year from sales by the National Park Service of National Parks and Federal Recreational Lands Passes under section 805(b)(1) of the Federal Lands Recreation Enhancement Act that are in excess of $10,000,000 shall be deposited into the National Park Centennial Challenge Fund as offsetting collections and shall remain available to the Secretary until expended.

''(c) USE OF FUNDS.—Funds collected and deposited into the National Park Centennial Challenge Fund—

''(1) shall be used for projects or programs approved by the Secretary to further the mission of the Service and to enhance the visitor experience in System units;

''(2) may not be used to acquire lands or interest in lands; and

''(3) may only be used if matched, on at least a 1-to-1 basis, by non-Federal donations (including funds and fairly valued durable goods and materials) to the Service for signature projects or programs.

''(d) LIMITATION ON SOURCE OF FUNDS FOR MATCHING.—Amounts derived from the Second Century Endowment for the National Park Service shall not be treated as non-Federal donations for purposes of subsection (c)(3).

''§ 103502. Signature projects and programs

''(a) LIST.—The Secretary shall—

''(1) develop a list of signature projects and programs eligible for funding from the National Park Centennial Challenge Fund;

''(2) submit the list developed pursuant to paragraph (1) to the Committees on Appropriations and Energy and Natural Resources in the United States Senate, and to the Committees on Appropriations and Natural Resources in the House of Representatives; and

''(3) prioritize deferred maintenance projects, physical improvements to visitor services facilities and trail maintenance.

''(b) UPDATES.—The Secretary may, from time to time, as the Secretary finds appropriate, add any signature project or program to the list and provide notice of such addition as required by subsection (a).

''§ 103503. Summary to Congress

''The Secretary shall provide with the submission of the President's annual budget a summary of the status and funding of signature projects and programs.''.

(b) CONFORMING AMENDMENT.—The table of sections of title 54, United States Code, is amended by inserting after chapter 1033 the following:

''1035. National Park Centennial Challenge Fund .....103501''.

SEC. 102. COMPARABLE PASS COST FOR SENIORS.

The Federal Lands Recreation Enhancement Act (16 U.S.C. 6801, Public Law 108–447, division J, title VIII) is amended in section 805(b)(1)—

(1) by striking ''The Secretary'' and inserting:

''(A) The Secretary'';

(2) by striking '', at a cost of $10.00,'';

(3) by striking ''shall be valid for the lifetime of the pass holder.'' and inserting the following: ''shall be available—

''(i) for a period of 12 months from the date of the issuance, at a cost of $20; and

''(ii) for the lifetime of the passholder, at a cost equal to the cost of the National Parks and Federal Recreational Lands Pass purchased under subsection (a).''; and

(4) by adding at the end the following:

''(B) The Secretary shall issue a pass under subparagraph (A)(ii), for no additional cost, to any individual who provides evidence, under policies and guidelines determined by the Secretary, that the individual has purchased a pass under subparagraph (A)(i) for each of the 4 years prior to being issued a pass under this subparagraph.''.

TITLE II—NATIONAL PARK FOUNDATION ENDOWMENT

SEC. 201. SHORT TITLE.

This title may be cited as the ''National Park Foundation Endowment Act''.

SEC. 202. SECOND CENTURY ENDOWMENT FOR THE NATIONAL PARK SERVICE.

(a) SECOND CENTURY ENDOWMENT.—Chapter 1011 of title 54, United States Code, is amended by inserting at the end the following:

''§ 101121. Second Century Endowment for the National Park Service

''(a) SECOND CENTURY ENDOWMENT.—To further the mission of the Service, the National Park Foundation shall establish a special account to be known as the 'Second Century Endowment for the National Park Service'.

''(1) FUNDS FOR THE ENDOWMENT.—The following shall apply to the Endowment:

''(A) From amounts received by the United States each fiscal year from sales by the National Park Service of Federal Recreational Lands Passes under section 805(b)(1) of the Federal Lands Recreational Enhancement Act, $10,000,000 shall be deposited into the Endowment.

''(B) In addition to deposits otherwise authorized, the Endowment shall consist of any gifts, devises, or bequests that are provided to the National Park Foundation for such purpose.

''(C) The National Park Foundation shall deposit any funds received for the Endowment in a federally insured interest-bearing account or may invest funds in appropriate security obligations, as directed by the Board of Directors.

''(D) Any accrued interest or dividends earned on funds received for the Endowment shall be added to the principal and form a part of the Endowment.

''(2) USE OF FUNDS.—

''(A) Except as provided in subparagraph (B), funds in the Endowment shall be available to the National Park Foundation as offsetting collections for projects and activities approved by the Secretary that further the mission and purposes of the Service.

''(B) Gifts, devises, or bequests in the endowment under paragraph (1)(A), and any accrued interest or dividends earned thereon, shall be available to the National Park Foundation for projects and activities approved by the Secretary that further the mission and purposes of the Service.

''(C) In administering the Endowment each fiscal year, the National Park Foundation shall be guided by the District of Columbia Uniform Prudent Management of Institutional Funds Act of 2007 (D.C. Code § 44–1631 et seq.), including section 44–1633 on expenditures.

''(D) No Federal funds received for the Endowment may be used by the National Park Foundation for administrative expenses of the Foundation, including for salaries, travel and transportation expenses, and other overhead expenses.

''(b) SUMMARY.—Beginning 2 years after the date of the enactment of this section, the National Park Foundation shall include with its annual report a summary of the status of the Endowment. The summary shall include—

''(1) a statement of the amounts deposited in the Endowment during the fiscal year;

''(2) the amount of the balance remaining in the Endowment at the end of the fiscal year; and

''(3) a description of the sums and purposes of the expenditures made from the Endowment for the fiscal year.''.

(b) CONFORMING AMENDMENT.—The table of sections for chapter 1011 of title 54, United States Code, is amended by inserting at the end the following:

''101121. Second Century Endowment for the National Park Service.''.

TITLE III—NATIONAL PARK NEXT GENERATION STEWARDS

SEC. 301. NATIONAL PARK SERVICE INTERPRETATION AND EDUCATION.

(a) IN GENERAL.—Title 54, United States Code, is amended by inserting after chapter 1007 the following:

''CHAPTER 1008—EDUCATION AND INTERPRETATION

''100801. Definitions.
''100802. Interpretation and education authority.
''100803. Interpretation and education evaluation and quality improvement.
''100804. Improved use of partners and volunteers in interpretation and education.

''§ 100801. Definitions

''As used in this chapter:

''(1) INTERPRETATION.—The term 'interpretation'—

''(A) means providing opportunities for people to form intellectual and emotional connections to gain awareness, appreciation, and understanding of the resources of the System; and

''(B) may refer to the professional career field of Service employees, volunteers, and partners who interpret the resources of the System.

''(2) EDUCATION.—The term 'education' means enhancing public awareness, understanding, and appreciation of the resources of the System through learner-centered, place-based materials, programs, and activities that achieve specific learning objectives as identified in a curriculum.

''(3) RELATED AREAS.—The term 'related areas' means—

''(A) national wild and scenic rivers and national trails;

''(B) national heritage areas; and

''(C) affiliated areas administered in connection with the System.

''§ 100802. Interpretation and education authority

''The Secretary shall ensure that management of System units and related areas is enhanced by the availability and use of a broad program of the highest quality interpretation and education.

''§ 100803. Interpretation and education evaluation and quality improvement

''The Secretary may undertake a program of regular evaluation of interpretation and education programs to ensure that they—

''(1) adjust to how people learn and engage with the natural world and shared heritage as embodied in the System;

''(2) reflect different cultural backgrounds, ages, education, gender, abilities, ethnicity, and needs;

''(3) demonstrate innovative approaches to management and appropriately incorporate emerging learning and communications technology; and

''(4) reflect current scientific and academic research, content, methods, and audience analysis.

''§ 100804. Improved use of partners and volunteers in interpretation and education

''The Secretary may—

''(1) coordinate with park partners and volunteers in the delivery of quality programs and services to supplement those provided by the Service as part of a park's Long Range Interpretive Plan;

''(2) support interpretive partners by providing opportunities to participate in interpretive training; and

''(3) collaborate with other Federal and non-Federal public or private agencies, organizations, or institutions for the purposes of developing, promoting, and making available educational opportunities related to resources of the System and programs.''.

(b) CONFORMING AMENDMENT.—The table of chapters at the beginning of title 54, United States Code, is amended by inserting after the item relating to chapter 1007 the following new item:

''1008. Education and Interpretation 100801''.

SEC. 302. PUBLIC LAND CORPS AMENDMENTS.

The Public Lands Corps Act of 1993 (Public Law 91–378, as amended; 16 U.S.C. 1721 et seq.) is amended—

(1) in section 203(10)(A) (16 U.S.C. 1722(10)(A)), by striking ''25'' and inserting ''30'';

(2) in section 204(b) (16 U.S.C. 1723(b)), by striking ''25'' and inserting ''30''; and

(3) in section 207(c)(2) (16 U.S.C. 1726(c)(2)), by striking ''120 days'' and inserting ''2 years''.

SEC. 303. VOLUNTEERS IN THE PARKS.

Subject to the availability of appropriations, section 102301(d) of title 54, United States Code, is amended by striking ''not more than $7,000,000'' and inserting ''not more than $9,000,000''.

TITLE IV—NATIONAL PARK FOUNDATION AUTHORITIES

SEC. 401. BOARD OF DIRECTORS.

Chapter 1011 of title 54, United States Code, is amended—

(1) in section 101112—

(A) by amending subsection (a) to read as follows:

''(a) MEMBERSHIP.—The National Park Foundation shall consist of a Board having as members no fewer than 6 private citizens of the United States appointed by the Secretary. The Secretary and the Director shall be non-voting members of the Board, ex officio.''; and

(B) by amending subsection (c) to read as follows:

''(c) CHAIRMAN.—The Chairman shall be elected by the Board from its members for a two-year term.''; and

(2) in section 101113(a)—

(A) by redesignating paragraph (2) as paragraph (3); and

(B) by inserting after paragraph (1) the following:

''(2) COORDINATION WITH SERVICE.—Activities of the National Park Foundation under paragraph (1) shall be undertaken after consultation with the Director to ensure that those activities are consistent with the programs and policies of the Service.''.

SEC. 402. AUTHORIZATION OF APPROPRIATIONS; USE OF FUNDS.

(a) AUTHORIZATION OF APPROPRIATIONS; USE OF FUNDS.—Chapter 1011 of title 54, United States Code, is further amended by adding after section 101121 the following:

''§ 101122. Authorization of appropriations; use of funds

''(a) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this subchapter $5,000,000 for each of fiscal years 2017 through 2023.

''(b) USE OF FUNDS.—Funds made available under subsection (a)—

''(1) may be advanced each fiscal year to the National Park Foundation in a lump sum without regard to when expenses are incurred;

''(2) shall be provided to the National Park Foundation for use to match contributions (whether in currency, services, or property) made to the Foundation;

''(3) may not be used by the National Park Foundation for administrative expenses of the Foundation, including for salaries, travel and transportation expenses, and other overhead expenses; and

''(4) may not be deposited by the National Park Foundation into any fund that will be invested or earn interest in any way.''.

(b) CONFORMING AMENDMENT.—The table of sections for chapter 1011 of title 54, United States Code, is amended by inserting at the end the following:

''101122. Authorization of appropriations; use of funds.''.

TITLE V—MISCELLANEOUS

SEC. 501. NATIONAL HISTORIC PRESERVATION ACT.

(a) ADDITIONAL MEMBER.—Section 304101(a) of title 54, United States Code, is amended—

(1) by redesignating paragraphs (8), (9), (10), and (11) as paragraphs (9), (10), (11), and (12), respectively; and

(2) by inserting after paragraph (7) the following:

''(8) The General Chairman of the National Association of Tribal Historic Preservation Officers.''.

(b) FULL-TIME CHAIRMAN.—Section 304101 of title 54, United States Code, is further amended—

(1) by redesignating subsections (e) and (f) as subsections (f) and (g), respectively; and

(2) by inserting after subsection (d) the following:

''(e) CHAIRMAN.—(1) After January 20, 2017, the Chairman shall—

''(A) be appointed by the President, by and with the advice and consent of the Senate;

''(B) serve at the will of the President;

''(C) serve full time; and

''(D) be compensated at the rate provided for Level V of the Executive Schedule Pay Rates under section 5316 of title 5.

''(2) The Chairman shall serve for a term of 4 years and may be reappointed once, for a total of not more than 8 years of service as Chairman, except that a Chairman whose appointment has expired under this paragraph shall serve until his or her successor has been appointed. The term of a Chairman shall start (regardless of actual appointment date) on January 20 after each general Presidential election. The first Chairman appointed after the date of enactment of this paragraph shall have a first term commencing on January 20, 2017, and ending on January 19, 2021.

''(3) The Chairmen before the first appointment of a Chairman in accordance with paragraph (1) of this subsection shall receive $100 per diem when engaged in the performance of the duties of the Council, and shall receive reimbursement for necessary traveling and subsistence expenses incurred by them in the performance of the duties of the Council.''; and

(3) in subsection (f) (as so redesignated), by striking ''may act in place'' and inserting ''shall perform the functions''.

(c) CONFORMING CHANGES.—

(1) Section 304101 of title 54, United States Code, is further amended—

(A) in subsection (b), by striking '', (7), and (8)'' and inserting ''and (7) through (9)'';

(B) in subsection (c)—

(i) by striking ''under paragraphs (1) and (9) to (11)'' and inserting ''under paragraphs (10) through (12)''; and

(ii) by striking ''An appointed member may not serve more than 2 terms.'' and inserting ''An appointed member, other than the Chairman of the Council, may not serve more than 2 terms.'';

(C) in subsection (f) (as so redesignated), by striking ''paragraph (5), (6), (9), or (10)'' and inserting ''paragraph (5), (6), (10), or (11)''; and

(D) in subsection (g) (as so redesignated), by striking ''Twelve members'' and inserting ''Thirteen members''.

(2) Section 304104 of title 54, United States Code, is amended by inserting after the first sentence the following: ''The Chairman of the Council shall be compensated as provided in subsection (e) of section 304101.''.

(3) Section 304105(a) of title 54, United States Code, is amended—

(A) by striking ''report directly to the Council'' and inserting ''report directly to the Chairman''; and

(B) by striking ''duties as the Council may prescribe'' and inserting ''duties as the Chairman may prescribe''.

(4) Section 5316 of title 5, United States Code, is amended by adding at the end the following new item:

''Chairman of the Advisory Council on Historic Preservation.''.

(d) CLARIFICATION.—Subsection (b) and subsection (d) of section 311103 of title 54, United States Code, are amended by striking ''Council'' each place it appears and inserting ''Chairman of the Council''.

SEC. 502. AWARD OF CONCESSION CONTRACTS.

Section 101913(9) of title 54, United States Code, is amended to read as follows:

''(9) NEW OR ADDITIONAL SERVICES.—The Secretary may propose to amend the applicable terms of an existing concessions contract to provide new and additional services where the Secretary determines the services are necessary and appropriate for public use and enjoyment of the unit of the National Park System in which they are located and are consistent to the highest practicable degree with the preservation and conservation of the resources and values of the unit. Such new and additional services shall not represent a material change to the required and authorized services as set forth in the applicable prospectus or contract.''.

TITLE VI—TECHNICAL CORRECTIONS TO NATIONAL PARK AND PROGRAM LAWS

SEC. 601. TECHNICAL CORRECTIONS TO NATIONAL PARK AND PROGRAM LAWS.

(a) APOSTLE ISLANDS NATIONAL LAKESHORE.—Section 3030 of title XXX of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113–291; 128 Stat. 3766) is amended in the section heading by striking ''**NATIONAL SEASHORE.**'' and inserting ''**NATIONAL LAKESHORE.**''.

(b) BALTIMORE NATIONAL HERITAGE AREA.—Title VIII of the Omnibus Public Land Management Act of 2009 (Public Law 111–11, 16 U.S.C. 461 note) is amended—

(1) in sections 8005(b)(3) and 8005(b)(4) by striking ''Baltimore Heritage Area Association'' and inserting ''Baltimore City Heritage Area Association''; and

(2) in section 8005(i) by striking ''EFFECTIVENESS'' and inserting ''FINANCIAL ASSISTANCE''.

(c) CUMBERLAND ISLAND NATIONAL SEASHORE.—Section 6(b) of the Act entitled ''An Act to establish the Cumberland Island National Seashore in the State of Georgia, and for other purposes'' (Public Law 92–536; 16 U.S.C. 459i-5) is amended by striking ''physiographic conditions not prevailing'' and inserting ''physiographic conditions now prevailing''.

(d) HARRIET TUBMAN NATIONAL HISTORICAL PARK, NEW YORK.—Section 3036(d)(4)(B) of title XXX of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113–291; 128 Stat. 3780) is amended by striking ''section 2(b)(1)'' and inserting ''section 3035''.

(e) HARRIET TUBMAN UNDERGROUND RAILROAD NATIONAL HISTORICAL PARK, MARYLAND.—Section 3035(d)(4)(B) of title XXX of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113–291; 128 Stat. 3778) is amended by striking ''section 3(b)(1)(A)'' and inserting ''section 3036''.

(f) HISTORIC PRESERVATION STANDARDS AND GUIDELINES.—Section 306131(a)(3) of title 54, United States Code, is amended by striking ''Office of Management and Budget'' and inserting ''Office of Personnel Management''.

(g) LAVA BEDS NATIONAL MONUMENT.—The first section of the Act of October 13, 1972 (Public Law 92–493; 86 Stat. 811) is amended in the first sentence—

(1) by striking ''That, in'' and inserting ''Section 1. In''; and

(2) by striking ''ten thousand acres'' and all that follows through the remainder of the sentence and inserting ''10,431 acres, as depicted within the proposed wilderness boundary on the map entitled 'Lava Beds National Monument, Proposed Wilderness Boundary Adjustment', numbered 147/80,015, and dated September 2005, and those lands within the area generally known as the Schonchin Lava Flow comprising about 18,029 acres, as depicted within the proposed wilderness boundary on the map, are designated as wilderness.''.

(h) MUSCLE SHOALS NATIONAL HERITAGE AREA.—Section 8009(j) of title VIII of the Omnibus Public Land Management Act of 2009 (Public Law 111–11, 16 U.S.C. 461 note) is amended by striking ''EFFECTIVENESS'' and inserting ''FINANCIAL ASSISTANCE''.

(i) PATERSON GREAT FALLS NATIONAL HISTORICAL PARK.—Section 3037(a)(1)(c) of title XXX of the Carl Levin and Howard P. ''Buck'' McKeon National Defense Authorization Act for Fiscal Year 2015 (Public Law 113–291; 128 Stat. 3780) is amended by striking ''numbered T03/120,155, and dated April 2014'' and insert ''numbered T03/120,155A, and dated August 2015''.

(j) SNAKE RIVER HEADWATERS.—Section 5002(c)(1) of the Omnibus Public Land Management Act of 2009 (Public Law 111–11, 123 Stat. 1148, 1149) is amended by striking ''paragraph (205) of section 3(a)'' each place it appears and inserting ''paragraph (206) of section 3(a)''.

(k) TAUNTON RIVER.—Section 5003(b) of the Omnibus Public Land Management Act of 2009 (Public Law 111–11, 123 Stat. 1152, 1153) is amended by striking ''section 3(a)(206)'' each place it appears and inserting ''section 3(a)(207)''.

(l) WORLD WAR I CENTENNIAL COMMISSION ACT.—Section 4(e)(3)(c) of the World War I Centennial Commission Act (Public Law 112–272; 126 Stat. 2449) is amended by striking ''National Parks Service.'' and inserting ''National Park Service.''.

TITLE VII—VISITOR EXPERIENCE IMPROVEMENTS AUTHORITY

SEC. 701. VISITOR EXPERIENCE IMPROVEMENTS AUTHORITY.

Chapter 1019 of title 54, United States Code, is amended by inserting at the end the following:

''SUBCHAPTER III—COMMERCIAL SERVICES AUTHORIZATION

''101931. Contract authority.
''101932. Award of commercial services contracts.
''101933. Term of commercial services contracts.
''101934. Capital improvements.
''101935. Financial management.
''101936. Regulations.
''101937. Savings provision.
''101938. Sunset.

''§ 101931. Contract authority

''(a) GENERAL AUTHORITY.—Notwithstanding subchapter II, the Secretary may award and administer commercial services contracts (and related professional services contracts) for the operation and expansion of commercial visitor facilities and visitor services programs in System units. The commercial services contracts that may be awarded shall be limited to those that are necessary and appropriate for public use and enjoyment of the unit of the System in which they are located, and, that are consistent with the preservation and conservation of the resources and values of the unit.

''(b) ADDITIONAL AUTHORITY.—Contracts may be awarded under subsection (a) without regard to Federal laws and regulations governing procurement by Federal agencies, with the exception of laws and regulations related to Federal government contracts governing working conditions and wage rates, including the Alaska National Interest Lands Conservation Act (16 U.S.C. 3101 et seq.), sections 3141–3144, 3146, and 3147 of title 40, United States Code (commonly known as the 'Davis-Bacon Act'), and any civil rights provisions otherwise applicable thereto.

''(c) USE OF COMMERCIAL SERVICES CONTRACTS.—

''(1) IN GENERAL.—The Secretary may issue a commercial services contract under this subchapter when the Secretary determines that the contract meets the objectives of expanding, modernizing, and improving the condition of commercial visitor facilities and the services provided to visitors.

''(2) EXCEPTIONS.—No contracts may be awarded under this subchapter—

''(A) for the provision of outfitter and guide services described in section 101913(8); or

''(B) to authorize the provision of facilities or services for which the Secretary has granted to an existing concessioner a preferential right of renewal as defined in sections 101911 and 101913.

''§ 101932. Award of commercial services contracts

''(a) COMPETITIVE SELECTION PROCESS.—Except as provided in subsection (c), commercial services contracts shall be awarded by the Secretary through a competitive selection process.

''(b) SOLICITATION OF PROPOSALS.—Before awarding a new commercial services contract, the Secretary shall publicly solicit proposals for the contract, except as provided in subsection (c). In connection with such solicitation, the Secretary shall prepare a request for proposals and shall publish notice of its availability.

''§ 101933. Term of commercial services contracts

''A commercial services contract entered into pursuant to this title shall be awarded for a term not to exceed 10 years.

''§ 101934. Capital improvements

''A person or entity awarded a contract under this subchapter shall receive no leasehold surrender interest, as defined in section 101915, in capital improvements constructed under the terms of the contract.

''§ 101935. Financial management

''(a) REVOLVING FUND.—There is established a revolving fund that shall be available to the Secretary without fiscal year limitation for—

''(1) expenses necessary for the management, improvement, enhancement, operation, construction, and maintenance of

commercial visitor services and facilities, and

''(2) payment of possessory interest and leasehold surrender interest.

''(b) COLLECTION OF FUNDS.—

''(1) Funds collected by the Secretary pursuant to the contracts awarded under this subchapter shall be credited to the revolving fund.

''(2) The Secretary is authorized to transfer to the revolving fund, without reimbursement, any additional funds or revenue in connection with the functions to be carried out under this subchapter.

''(c) USE OF FUNDS.—Amounts in the revolving fund shall be used by the Secretary in furtherance of the purposes of this title. No funds from this account may be used to decrease the availability of services and programs to the public.

''§ 101936. Regulations

''As soon as practicable after the effective date of this subchapter, the Secretary shall promulgate regulations appropriate for its implementation.

''§ 101937. Savings provision

''Nothing in this subchapter shall modify the terms or conditions of any concessions contracts awarded under subchapter II or the ability of the National Park Service to enter into concessions contracts under the National Park Service Concessions Management Improvement Act of 1998 (title IV of Public Law 105–391) including the use of leaseholder surrender interest.

''§ 101938. Sunset

''The authority given to the Secretary under this subchapter shall expire 7 years after the date of the enactment of this subchapter.''.

TITLE VIII—NATIONAL HISTORIC PRESERVATION AMENDMENTS ACT

SEC. 801. SHORT TITLE.

This title may be cited as the ''National Historic Preservation Amendments Act''.

SEC. 802. REAUTHORIZATION OF THE HISTORIC PRESERVATION FUND.

(a) IN GENERAL.—Section 303102 of title 54, United States Code, is amended by striking ''2015'' and inserting ''2023''.

(b) FEDERAL NOMINATIONS.—Section 302104 of such title is amended—

(1) in subsections (a) and (b), by striking ''subsection (c)'' and inserting ''subsection (d)'';

(2) by inserting after subsection (b), the following new subsection:

''(c) NOMINATION BY FEDERAL AGENCY.—Subject to the requirements of section 302107 of this title, the regulations promulgated under section 302103 of this title, and appeal under subsection (d) of this section, the Secretary may accept a nomination directly by a Federal agency for inclusion of property on the National Register only if—

''(1) completed nominations are sent to the State Historic Preservation Officer for review and comment regarding the adequacy of the nomination, the significance of the property and its eligibility for the National Register;

''(2) within 45 days of receiving the completed nomination, the State Historic Preservation Officer has made a recommendation regarding the nomination to the Federal Preservation Officer, except that failure to meet this deadline shall constitute a recommendation to not support the nomination;

''(3) the chief elected officials of the county (or equivalent governmental unit) and municipal political jurisdiction in which the property is located are notified and given 45 days in which to comment;

''(4) the Federal Preservation Officer forwards it to the Keeper of the National Register of Historic Places after determining that all procedural requirements have been met, including those in paragraphs (1) through (3) above; the nomination is adequately documented; the nomination is technically and professionally correct and sufficient; and may include an opinion as to whether the property meets the National Register criteria for evaluation;

''(5) notice is provided in the Federal Register that the nominated property is being considered for listing on the National Register that includes any comments and the recommendation of the State Historic Preservation Officer and a declaration whether the State Historic Preservation Officer has responded within the 45 day-period of review provided in paragraph (2); and

''(6) the Secretary addresses in the Federal Register any comments from the State Historic Preservation Officer that do not support the nomination of the property on the National Register before the property is included in the National Register.''; and

(3) by redesignating subsection (c) as subsection (d).

(c) TECHNICAL AMENDMENTS.—

(1) Section 303102 of such title is amended by striking ''**CONTENTS**'' in the heading thereof and inserting ''**FUNDING**''.

(2) The table of sections for chapter 3031 of such title is amended by striking the item relating to section 303102 and inserting the following new item:

''303102. Funding.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Utah (Mr. BISHOP) and the gentleman from Arizona (Mr. GRIJALVA) each will control 20 minutes.

The Chair recognizes the gentleman from Utah.

GENERAL LEAVE

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Utah?

There was no objection.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

August 25, 2016, marked the 100th anniversary of the National Park Service; still making it newer than the Antiquities Act, but it was their 100th anniversary.

Today, the Park Service has 400 units covering 84 million acres, but they do have some significant problems; namely, a $12 billion backlog in their maintenance issues. We seem to add new parks all the time, and that makes the Park Service fall further behind in this effort.

It is fun to create a new national park. It is not sexy to talk about fixing a sewer system. So that requires us to be a little bit more creative than we have been in the past, and to provide new tools so that the Park Service can meet this challenge that they have.

This bill before us has been crafted in consultation with the Park Service, the Park Foundation, and other interested parties. It establishes two significant things. One, a new Centennial Challenge Fund at the Treasury to help the Park Service maintain and improve visitor service facilities. This fund will raise money on a one-to-one match between the Federal Government and a private match. Last year in appropriations, $15 million was put into this concept and it was matched by $33 million in private donations, which is a number that I think we will be able to improve on in the future.

H.R. 4680 also establishes a Second Century Endowment at the National Park Foundation, which will allow the private sector to truly work with the Park Service in a true public-private partnership.

It also raises the spending authorization for volunteers in the parks. This does not fix all of the National Park Service problems, but it is a good start. For their centennial, this is an excellent way to move forward into the challenges that they face.

I will include in the RECORD exchanges of letters with Chairman KLINE of the Committee on Education and the Workforce, as well as Chairman CONAWAY of the Committee on Agriculture. We appreciate their cooperation in scheduling this bill and any of the others, either by unanimous consent or by general leave.

Mr. Speaker, I urge adoption of this measure. It is a good measure. I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON AGRICULTURE,
Washington, DC, April 11, 2016.

Hon. ROB BISHOP,
Chairman, Committee on Natural Resources, Washington, DC.

DEAR MR. CHAIRMAN: Thank you for the opportunity to review H.R. 4680, the National Park Service Centennial Act. As you are aware, the bill was primarily referred to the Committee on Natural Resources, while the Agriculture Committee received an additional referral.

I recognize and appreciate your desire to bring this legislation before the House in an expeditious manner and, accordingly, I agree to discharge H.R. 4680 from further consideration by the Committee on Agriculture. I do so with the understanding that by discharging the bill, the Committee on Agriculture does not waive any future jurisdictional claim on this or similar matters. Further, the Committee on Agriculture reserves the right to seek the appointment of conferees, if it should become necessary.

I ask that you insert a copy of our exchange of letters into the Congressional Record during consideration of this measure on the House floor.

Thank you for your courtesy in this matter and I look forward to continued cooperation between our respective committees.

Sincerely,

K. MICHAEL CONAWAY,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, May 6, 2016.

Hon. K. MICHAEL CONAWAY,
Chariman, Committee on Agriculture, Washington, DC.

DEAR MR. CHAIRMAN: On March 16, 2016, the Committee on Natural Resources ordered favorably reported as I amended H.R. 4680, the National Park Service Centennial Act, by voice vote. The bill was referred primarily to

the Committee on Natural Resources, with additional referrals to the Committee on Agriculture and the Committee on Education and the Workforce.

I ask that you allow the Committee on Agriculture to be discharged from further consideration of the bill so that it may be scheduled by the Majority Leader. This discharge in no way affects your jurisdiction over the subject matter of the bill, and it will not serve as precedent for future referrals. In addition, should a conference on the bill be necessary, I would support your request to have the Committee on Agriculture represented on the conference committee. Finally, I would be pleased to include this letter and any response in the bill report filed by the Committee on Natural Resources to memorialize our understanding as well as in the Congressional Record.

Thank you for your consideration of my request and for your continued strong cooperation between our committees.

Sincerely,

ROB BISHOP,
Chairman, Committee on Natural Resources.

COMMITTEE ON EDUCATION AND THE WORKFORCE, HOUSE OF REPRESENTATIVES,
Washington, DC, May 11, 2016.

Hon. ROB BISHOP,
Chairman, Committee on Natural Resources, House of Representatives, Washington, DC.

DEAR MR. CHAIRMAN: I write to confirm our mutual understanding with respect to H.R. 4680, the National Park Service Centennial Act. Thank you for consulting with the Committee on Education and the Workforce with respect to H.R. 4680 on those matters within the Committee's jurisdiction.

In the interest of expediting the House's consideration of H.R. 4680, the Committee on Education and the Workforce will forgo further consideration of this bill. However, I do so only with the understanding this procedural route will not be construed to prejudice my Committee's jurisdictional interest and prerogatives on this bill or any other similar legislation and will not be considered as precedent for consideration of matters of jurisdictional interest to my Committee in the future.

I respectfully request your support for the appointment of outside conferees from the Committee on Education and the Workforce should this bill or a similar bill be considered in a conference with the Senate. I also request you include our exchange of letters on this matter in the Committee Report on H.R.. 4680 and in the Congressional Record during consideration of this bill on the House Floor. Thank you for your attention to these matters.

Sincerely,

JOHN KLINE,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, May 11, 2016.

Hon. JOHN KLINE,
Chairman, Committee on Education and the Workforce, Washington, DC.

DEAR MR. CHAIRMAN: On March 16, 2016, the Committee on Natural Resources ordered favorably reported as amended H.R. 4680, the National Park Service Centennial Act, by voice vote. The bill was referred primarily to the Committee on Natural Resources, with additional referrals to the Committee on Education and the Workforce and Agriculture.

I ask that you allow the Committee on Education and the Workforce to be discharged from further consideration of the bill so that it may be scheduled by the Majority Leader. This discharge in no way affects your jurisdiction over the subject matter of the bill, and it will not serve as precedent for future referrals. In addition, should a conference on the bill be necessary, I would support your request to have the Committee on Education and the Workforce represented on the conference committee. Finally, I would be pleased to include this letter and any response in the bill report filed by the Committee on Natural Resources to memorialize our understanding as well as in the Congressional Record.

Thank you for your consideration of my request and for your continued strong cooperation between our committees.

Sincerely,

ROB BISHOP,
Chairman, Committee on Natural Resources.

Mr. GRIJALVA. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Massachusetts (Ms. TSONGAS).

□ 1330

Ms. TSONGAS. Throughout this centennial year of the National Park Service, I have been reminded of something that Stephen Mather, that agency's very first Director, once said. Reflecting on the new agency, he remarked: ''The parks do not belong to one State or to one section . . . The Yosemite, the Yellowstone, the Grand Canyon are national properties in which every citizen has a vested interest; they belong as much to the man''—and, I would add, woman—''of Massachusetts, of Michigan, of Florida as they do to the people of California, of Wyoming, and of Arizona.''

Those words are a powerful reminder in this era of political division and disagreement: national parks are national. They cut across party lines and geographic boundaries. They enjoy broad support, and they bring people together—something we seem to need now more than ever.

For 100 years, generation after generation of Americans have made the commitment that our most significant historical, cultural, and natural sites should be preserved in perpetuity for future generations. Our national parks have been famously called ''America's best idea'' and have become engrained in our national identity—places like the Grand Canyon, Yellowstone, and Ellis Island, and in my own district, Minute Man National Historical Park, which commemorates the shot heard 'round the world, and Lowell National Historical Park, which recognizes the people, places, and radical innovation that spawned our Nation's industrial revolution.

These parks protect, they celebrate, and give access to the many places that have shaped and defined who we are as a people and a country, and it is important to remember that these places would not have been protected absent support from the Federal Government.

Investments in our parks make economic sense. Nationally, the parks generate nearly $30 billion in economic activity and support 250,000 private sector jobs. When people visit our national parks, they also support nearby restaurants, hotels, and local outfitters and guides. According to a recent economic study conducted by the National Park Service, every Federal dollar invested in our parks contributes $10 in economic activity.

The legislation before us today includes several helpful provisions as the National Park Service begins its second century. The legislation makes a commitment to the Centennial Challenge, a matching grant program that leverages Federal dollars to encourage private investments to support signature centennial projects that are identified by the National Park Service. It also establishes an endowment at the National Park Foundation to support the missions and goals of the Park Service, makes improvements to the Volunteers-In-Parks program, and helps the National Park Service recruit and hire more young and diverse Americans.

This legislation also includes my amendment to ensure that low-income seniors retain access to the Senior Pass, a lifetime pass that provides entrance to all of our Nation's public lands for people age 62 and above. As I am sure my colleagues can attest, seniors in our districts living on a very constrained fixed income may struggle to assemble the $80 to make a one-time payment to purchase a lifetime Senior Pass. This legislation creates a new $20 annual Senior Pass and allows seniors who have purchased four of those passes to trade them in and receive a lifetime Senior Pass. This amendment ensures that we can appropriately balance the need for new revenue for the Centennial Challenge with fundamental fairness for all of our Nation's seniors.

I want to thank Chairman BISHOP, Ranking Member GRIJALVA, and the National Park Service for working with me on this provision of the bill.

Despite these successes, no Member of this body should ignore the stark reality that this legislation is a missed opportunity. On the Natural Resources Committee where I am proud to serve as ranking member of the Federal Lands Subcommittee, there is deep frustration and dissatisfaction with the $12 million deferred maintenance backlog at the National Park Service. Democrats put a centennial bill on the table that starts to address this issue, but it never received serious consideration by our counterparts in the majority.

New revenue generated by fees, especially at the expense of our Nation's seniors, will not solve the issue of deferred maintenance. In the short term, the legislation before us today is a good first step, and I support the bill. But Congress must find a way to appropriate new funds to our national parks in order to preserve and protect them for future generations of Americans.

Mr. BISHOP of Utah. Mr. Speaker, I yield such time as he may consume to the gentleman from California (Mr. MCCLINTOCK), who is the chairman of

the Federal Lands Subcommittee and who has jurisdiction over this.

Mr. McCLINTOCK. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, this year marked the centennial anniversary of the National Park Service and of that uniquely American notion that the most beautiful and historic lands should be set aside for the ''use, resort, and recreation'' of the American people, as the original Yosemite Grant Act put it, or, in the words of the Organic Act of 1916 that established the national parks, ''to conserve the scenery and the natural and historic objects and the wildlife therein and to provide for the enjoyment of the same.''

Yet, a century into this endeavor, the Park Service faces considerable challenges to achieving its objectives. The Park Service's original charge was to manage just 35 national parks and monuments. Today it is responsible for more than 400 units across 84 million acres. This exponential growth has left many locations in disrepair, facing a growing backlog of deferred maintenance now exceeding $12 billion.

In addition to desperately needed maintenance, the Park Service also faces challenges with fee collection, technological upgrades, management of concessions contracts for visitor services, and, most disturbingly, a substantial decrease in overnight visitation. The decline has been particularly high among young people. Recent reports indicate that visits to parks by those 15 years of age and younger has fallen by half over the last decade.

The National Park Service Centennial Act provides the Park Service with new tools and authorities that it can use to maintain and improve the system. Provisions in this bill help reduce the Service's maintenance backlog by generating new revenue to pay for needed capital improvements and leveraging private philanthropic donations to amplify this effort. In turn, these funds will be used to enhance visitor services, provide WiFi and cellular access that young people demand, and expand the Volunteers-In-Parks and Public Lands Corps programs that are so important in welcoming the public to the public lands.

I believe the three greatest challenges to Federal lands management are to restore public access to the public lands, to restore sound management to the public lands, and to restore the Federal Government as a good neighbor to those communities directly affected by the public lands.

This bill does all three. It promotes public access and enjoyment of the parks by promoting the expansion, modernization, and improvement of visitor services and amenities. It promotes good management by placing priority and generating funds necessary to address the growing maintenance backlog. It repairs the relationship between the Federal and local governments by giving local officials a say in future historic designations.

I can't think of a better way to celebrate the last century and to begin the next century of our National Park Service than to restore the vision of its founders. Mr. Speaker, this bill does so, and I urge its adoption.

Mr. GRIJALVA. Mr. Speaker, I yield myself such time as I may consume.

This month marks the end of a year of celebration. Over the past 12 months, hundreds of millions of people from our country and from around the world have joined together to celebrate one of the most valued and uniquely American ideas: our national park system. In our democratic society, the park system is uniquely one of the most democratic public institutions because, after all, all Americans own the park system and it is for all Americans, regardless.

For many, this year was a time to reflect on what began 100 years ago with a single mission: to protect our unique American heritage for the enjoyment of future generations. Last year, national parks across this Nation saw a record 307 million visitors. People came to the parks to explore, to learn and reflect on the grand natural beauty and the diverse history of our Nation.

Fifty years ago, Members of Congress understood the need to recognize these types of milestone accomplishments by passing legislation to reinvigorate not only the agency, but the American public. A decade before the 50th anniversary of the National Park Service, the House began pulling together a bill that demonstrated to the American people that they were willing to put their money where their mouth was.

In honor of the National Park Service's 50th anniversary, Congress funded the Mission 66 program at over $900 million, the equivalent of $8 billion in 2016 dollars. The National Park Service expected 80 million visitors to celebrate that anniversary. Unsurprisingly, the American public beat expectations. The parks saw almost 130 million visitors in 1966 alone.

This Congress, which has the benefit of knowing how much Americans value their national parks, should be authorizing at least an equal amount. Instead, we have before us a bill that is but a shadow of what it could have been, a far cry from what my Democratic colleagues and I in the committee introduced back in September 2015. Instead of passing a bill that gives a standing ovation to the accomplishments of the Park Service and sets the bar high for the next 100 years, today we are passing legislation that is the equivalent of a golf clap—very quietly.

Even previous Republican administrations have better understood the value of our national parks. In the last Republican administration, President Bush and Secretary Kempthorne were prepared to provide $2.5 billion in additional operating funds, an additional $1 billion in centennial commitment funds, and $1 billion in centennial challenge funds to encourage private charitable investment in our country's parks. In comparison, this legislation provides a tiny amount of funding compounded by years of budget reductions. Further, this bill asks that the mandatory spending come from only one source: mandatory increases to the price of the Parks' Senior Pass.

What we are seeing today is a shell of a bill. Only a few provisions remain, which, although marginally helpful to ensure the vitality of the national parks for the future, fall far short of what is necessary and needed. What we are seeing today is a missed opportunity to do what is right. This bill, while optimistically named, is a year late and a couple of billion dollars short. Maybe we will get it right in the next 100 years.

Mr. Speaker, I yield back the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I appreciate the opportunity to be here. This is a good bill. I appreciate those who have spoken so far for their willingness to take ''yes'' as an answer.

Mr. Speaker, I urge adoption of this bill.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Utah (Mr. BISHOP) that the House suspend the rules and pass the bill, H.R. 4680, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

ARBUCKLE PROJECT MAINTENANCE COMPLEX AND DISTRICT OFFICE CONVEYANCE ACT OF 2016

Mr. BISHOP of Utah. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1219) to authorize the Secretary of the Interior to convey certain land and appurtenances of the Arbuckle Project, Oklahoma, to the Arbuckle Master Conservancy District, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1219

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Arbuckle Project Maintenance Complex and District Office Conveyance Act of 2016''.

SEC. 2. CONVEYANCE OF MAINTENANCE COMPLEX AND DISTRICT OFFICE OF THE ARBUCKLE PROJECT, OKLAHOMA.

(a) IN GENERAL.—The Secretary of the Interior shall, as soon as practicable, convey to the Arbuckle Master Conservancy District, located in Murray County, Oklahoma, all right, title, and interest of the United States in and to the Maintenance Complex and District Office, Arbuckle Project, Oklahoma, consistent with the terms and conditions set forth in the Agreement between the United States and the Arbuckle Master Conservancy District.

(b) DEFINITIONS.—

(1) AGREEMENT.—The term ''Agreement'' means the Agreement between the United States

and the Arbuckle Master Conservancy District for Transferring Title to the Federally Owned Maintenance Complex and District Office to the Arbuckle Master Conservancy District (Agreement No. 14AG640141).

(2) DISTRICT OFFICE.—The term ''District Office'' means the headquarters building located at 2440 East Main, Davis, Oklahoma, and the approximately 0.83 acres described in the Agreement.

(3) MAINTENANCE COMPLEX.—The term ''Maintenance Complex'' means the caretakers residence, shop buildings, and any appurtenances located on the lands described in the Agreement, to include approximately 2.00 acres, more or less.

(c) LIABILITY.—Effective upon the date of conveyance of the Maintenance Complex and District Office under this section, the United States shall not be held liable by any court for damages of any kind arising out of any act, omission, or occurrence relating to the Maintenance Complex and District Office, except for damages caused by acts of negligence committed by the United States or by its employees or agents prior to the date of conveyance. Nothing in this section increases the liability of the United States beyond that provided in chapter 171 of title 28, United States Code (popularly known as the ''Federal Tort Claims Act'') on the date of the enactment of this Act.

(d) BENEFITS.—After conveyance of the Maintenance Complex and District Office to the Arbuckle Master Conservancy District—

(1) the Maintenance Complex and District Office shall not be considered to be a part of a Federal reclamation project; and

(2) such water district shall not be eligible to receive any benefits with respect to any facility comprising that Maintenance Complex and District Office, except benefits that would be available to a similarly situated person with respect to such a facility that is not part of a Federal reclamation project.

(e) COMMUNICATION.—If the Secretary of the Interior has not completed the conveyance required under subsection (a) within 12 months after the date of enactment of this Act, the Secretary shall submit to Congress a letter with sufficient detail that explains the reasons the conveyance has not been completed and stating the date by which the conveyance will be completed.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Utah (Mr. BISHOP) and the gentleman from the Northern Mariana Islands (Mr. SABLAN) each will control 20 minutes.

The Chair recognizes the gentleman from Utah.

GENERAL LEAVE

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Utah?

There was no objection.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

This bill, H.R. 1219, sponsored by the great Congressman from Oklahoma, allows a water district in Oklahoma to take ownership of two buildings and 2 acres of land that they have paid for, they have operated, and they have maintained for the last several decades. Unfortunately, they still remain in Federal ownership, and they need this legislation to actually transfer it to relieve the district of burdensome paperwork and also relieve the Federal Government of some liability.

This bill has been done 27 other times over the last two decades, which simply means there needs to be some kind of reform in the process to remove the slow pace of the Bureau of Reclamation so we don't have to go through such a complicated effort for such a worthy cause.

Mr. Speaker, I reserve the balance of my time.

Mr. SABLAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 1219 is a straightforward, reasonable piece of legislation worthy of passage. The bill would allow a title transfer of two Federal buildings to the Arbuckle Master Conservancy District in south central Oklahoma.

□ 1345

These buildings are part of the Arbuckle Project, which is a water project, authorized by Congress in 1962, to provide flood control, recreational opportunities, and municipal water supply.

Nearly all of the facilities within the Arbuckle Project were already transferred to the Arbuckle Master Conservancy District in 2012 after the district finished repaying what it owed the Federal Government for construction. However, due to some overly narrow language in the legislation authorizing the Arbuckle Project, two buildings within the project have yet to be transferred.

Transferring the two remaining buildings will save taxpayer money that would otherwise be needed to operate and maintain the buildings and will also relieve the Federal Government of any potential future liability associated with the buildings. This is straightforward legislation that should be quickly passed.

I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I yield such time as he may consume to the gentleman from Oklahoma (Mr. COLE).

Mr. COLE. Mr. Speaker, I want to thank my good friend for yielding, and I certainly want to thank him for moving this expeditiously through his committee and onto the floor. I want to associate myself with his remarks about the need for reform because this is a fairly routine matter.

I rise in support of H.R. 1219, the Arbuckle Project Maintenance Complex and District Office Conveyance Act. This bill is a straightforward land conveyance, which has both Federal and local support.

H.R. 1219 would authorize the Secretary of the Interior to convey certain lands and buildings of the Arbuckle Project, in Murray County, Oklahoma, to the Arbuckle Master Conservancy District.

In 1962, Congress authorized the payment of reimbursable costs for construction, operation, and maintenance of the Bureau of Reclamation's Arbuckle Master Conservancy District in south-central Oklahoma. The district completed repayment of the capital costs of the project in September of 2012.

In accordance with the Bureau of Reclamation's policy framework for title transfer, in December 2014, the Bureau of Reclamation and the district executed an agreement to transfer, in fee title, certain facilities that could be more efficiently and effectively managed at the local level.

The title transfer involves approximately 2.83 acres of land. On this land is a small house, associated structures, and the conservancy district's headquarters office building. The House and property are used to accommodate a district employee who maintains and inspects the dam and the pumping facilities. The headquarters office building is the base of operation for the district.

This bill also divests the Federal Government of its responsibility and liability associated with the district's facilities. Reclamation and the district have worked cooperatively and successfully to address all of the elements necessary to bring this legislation forward and make this transfer proceed as smoothly as possible.

I am pleased that this bill is an agreement with which both the Federal and local interests are satisfied.

I want to urge all of my colleagues to support this legislation. Again, I want to thank the chairman for his help in this matter.

Mr. SABLAN. Mr. Speaker, again, like I said, this is straightforward legislation that should be quickly passed. We urge its adoption.

I yield back the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, this is a good bill, and I urge its adoption.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Utah (Mr. BISHOP) that the House suspend the rules and pass the bill, H.R. 1219, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. BISHOP of Utah. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

NORTHERN MARIANA ISLANDS ECONOMIC EXPANSION ACT

Mr. BISHOP of Utah. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6401) to amend Public Law 94–241 with respect to the Northern Mariana Islands.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6401

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Northern Mariana Islands Economic Expansion Act''.

SEC. 2. COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS: TRANSITIONAL WORKERS.

Section 6 of Public Law 94–241 (48 U.S.C. 1806) is amended—

(1) in subsection (a)(6), by striking ''$150'' and inserting ''$200''; and

(2) in subsection (d)(2)—

(A) by striking the period at the end of the first sentence and inserting '', except a permit for construction occupations (as that term is defined by the Department of Labor as Standard Occupational Classification Group 47–0000 or any successor provision) shall only be issued to extend a permit first issued before October 1, 2015.''; and

(B) by striking the period at the end of the third sentence and inserting '', except that for fiscal year 2017 the number of permits issued shall not exceed 15,000.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Utah (Mr. BISHOP) and the gentleman from the Northern Mariana Islands (Mr. SABLAN) each will control 20 minutes.

The Chair recognizes the gentleman from Utah.

GENERAL LEAVE

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Utah?

There was no objection.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I support this excellent piece of legislation. The Commonwealth of the Northern Mariana Islands is experiencing an economic resurgence, and they have for the last several years. However, there is a challenge on maintaining a capable workforce to sustain that growth on the island, especially as they are phasing out the use of foreign workers.

To do that, the phasing out, which is occurring at a rate that actually is detrimental to sustaining economic growth, we need to provide some kind of flexibility to the Northern Mariana Islands to meet this challenge. This bill does it in three specific ways, each of which is a commonsense solution to a very, very complex issue. It is a great bill, and I urge its adoption.

I reserve the balance of my time.

Mr. SABLAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I would like to thank Chairman BISHOP for allowing this bill to come to the floor. I appreciate it very much.

The economy of the Northern Mariana Islands grew at a rate of 3.5 percent last year, the fourth straight year of growth for my district. The Bureau of Economic Analysis announced the new data a week ago.

This strong economic expansion is good news for the people of the Northern Mariana Islands. We desperately want this growth to continue because our economy is still only three-quarters of what it was in 2000. But there is a problem with keeping that growth going—our limited population.

For that reason, I have introduced, with Congressman RADEWAGEN, bipartisan legislation, H.R. 6401, the Northern Mariana Islands Economic Expansion Act.

Mr. Speaker, I include in the RECORD letters of support for H.R. 6401 from the Commonwealth of the Northern Mariana Islands' Governor, Ralph DLG. Torres; the CNMI Strategic Economic Development Council; the Office of the Senate President, Nineteenth Northern Marianas Commonwealth Legislature; the Commonwealth Healthcare Corporation; the Hotel Association of the Northern Mariana Islands; and from the Saipan Chamber of Commerce.

COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS, SAIPAN, MP, DECEMBER 4, 2016.

Hon. GREGORIO KILILI CAMACHO SABLAN,
House of Representatives.
Washington, DC.

DEAR CONGRESSMAN SABLAN: I write to support H.R. 6401, critical legislation that will provide short-term relief from the labor shortage facing the Commonwealth that threatens our growing economy and public health.

The latest report from Bureau of Economic Analysis indicates the Commonwealth economy grew for the fourth consecutive year. A growing economy needs a qualified workforce. And while there are now more U.S. workers than foreign workers in the Northern Marianas for the first time in decades, there are still not enough to meet the labor demand. The temporary increase in the number of Commonwealth-Only Transitional (CW) workers provided in your bill will particularly help small businesses retain the workers needed to maintain operations.

Most importantly, the Commonwealth's only hospital, stand to lose critical staff including 34 staff nurses, two infection control nurses, a clinical laboratory scientist and specialists in mammography, ultrasonography without the relief provided in H.R. 6401.

Building a qualified U.S. workforce in the Northern Marianas is a priority for my administration. The CW worker fee increase in the legislation will provide additional funding for efforts to recruit, educate, and train these workers and establish a permanent pool of workers to fill local jobs.

H.R. 6401 is critical to continued economic growth in the Northern Marianas. The bill has my full support.

Sincerely,

RALPH DLG TORRES,
Governor.

CNMI STRATEGIC ECONOMIC DEVELOPMENT COUNCIL,
December 1, 2016.

Hon. GREGORIO KILILI CAMACHO SABLAN,
House of Representatives,
Washington, DC.

DEAR CONGRESSMAN SABLAN: The CNMI Strategic Economic Development Committee is in strong support of H.R. 6401, critical legislation that will provide short-term relief from the labor shortage threatening the growth of the Northern Marianas economy.

The U.S. Bureau of Economic Analysis indicates the Commonwealth economy grew for the fourth consecutive year, a recent high of 3.5 percent. This is attributable to increased private investment and tourism now threatened by the lack of available qualified workers on the island.

The modest one-year increase in Commonwealth-Only Transitional Workers (CW) proposed under H.R. 6401, will provide the business community with the necessary human resources to continue to operate and propel an expanding economy.

It is imperative that we do not stymie our plan for future economic growth, now beginning to come to frutition, with a labor shortage in critical areas.

The bill also provides additional funds for the job training/education programs proven effective at expanding the pool of qualified and skilled U.S. workers in the CNMI.

The CNMI Strategic Economic Development Council fully supports H.R. 6401 and appreciates all of your efforts in addressing the labor crisis in the Northern Marianas.

Very truly yours,

ALEXANDER A. SABLAN,
Sub Committee Chairman, Labor & CW Task Force, CNMI Strategic Economic Development Committee.

OFFICE OF THE SENATE PRESIDENT, NINETEENTH NORTHERN MARIANAS COMMONWEALTH LEGISLATURE,
Saipan, MP, December 6, 2016.

Hon. GREGORIO KILILI CAMACHO SABLAN,
House of Representatives,
Washington, DC.

DEAR CONGRESSMAN SABLAN: As President of the Senate of the Nineteenth Northern Marianas Commonwealth Legislature, I am in strong support of H.R. 6401, critical legislation that increases the FY 2017 cap on Commonwealth-only Transitional Workers (CW) to ensure continued economic growth and protect public health.

After more than a decade of decline, our Commonwealth economy is in resurgence. The U.S. Bureau of Economic Analysis reports our economy grew for the fourth straight year, at a rate of 3.5 percent in 2015. A qualified workforce is necessary to sustain our businesses and attract new investment. While our investment in job training and education has been successful with the number of U.S. workers now outnumbering foreign workers, there are still more jobs than U.S. workers. The temporary increase in CW workers provided in the bill will help meet the demand and ensure that our business community has access to needed labor.

The CW cap also affects our ability to deliver health care services as the Commonwealth's only hospital is facing the loss of many nurses and those in specialized health care positions.

We are also in support of the increase in the CW worker fee as it increase the resources available to educate and train U.S. workers.

H.R. 6401 is critical to the present and future of the Northern Marianas and has my full support.

Sincerely,

FRANCISCO M. BORJA,
President.

COMMONWEALTH HEALTHCARE CORPORATION, COMMONWEALTH OF THE NORTHERN MARIANA ISLANDS,
Saipan, December 2, 2016.

Hon. GREGORIO ''KILILI'' CAMACHO SABLAN,
House of Representatives,
Washington, DC.

DEAR CONGRESSMAN SABLAN: Commonwealth Healthcare Corporation (CHCC) is in strong support of H.R. 6401.

This critical legislation would provide an increase in the FY 2017 limit on Commonwealth-only Transitional Workers (CW) and

allow the CHCC to petition for renewal of 39 essential healthcare workers impacted when the CW cap was reached just two weeks into the Fiscal Year.

Our Commonwealth Health Center (CHC) is the only hospital in the Commonwealth of the Northern Marianas, providing inpatient and outpatient acute, chronic, and emergency health care services to the people of the CNMI. We also maintain community health centers on the populated islands of Saipan, Tinian, and Rota.

Our ability to continue to provide these essential on-island health care services, and maintain quality patient care and safety as well as maintain overall public health, depends on being able to maintain current staffing levels and specialized expertise.

Without an increase to the CW cap this year, CHC stands to lose the services and experience of 34 staff nurses, two infection control nurses, a clinical laboratory scientist and specialists in mammography and ultrasonography.

For the foregoing reasons, we are in full support H.R. 6401 and are grateful for your work in addressing this critical health care issue.

Sincerely,

ESTHER L. MUNA,
Chief Executive Officer.

HOTEL ASSOCIATION OF THE NORTHERN MARIANA ISLANDS,
December 2, 2016.

Hon. GREGORIO KILILI CAMACHO SABLAN,
House of Representatives,
Washington, DC.

DEAR CONGRESSMAN SABLAN: The Hotel Association of the Northern Mariana Islands is in strong support of H.R. 6401, critical legislation that will provide short-term relief from the labor shortage threatening the growing hospitality industry in the Northern Marianas.

Due in large part to increased private investment and tourism the U.S. Bureau of Economic Analysis recently announced that the Commonwealth economy grew for the fourth consecutive year.

However, our hotel and resort properties are in critical need of labor, particularly those with skills and experience in the hospitality industry, culinary arts and property maintence. The inability of employers to renew or hire new Commonwealth-Only Transitional Workers (CW) threatens their continued operations and chills future investment in our islands.

The modest one-year increase in CWs, proposed under H.R. 6401, will allow the hospitality industry to continue to provide first-class service to our tourists

The Hotel Association of the Northern Mariana Islands fully supports H.R. 6401 and appreciates all of your efforts in addressing the labor crisis in the Northern Marianas.

Very truly yours,

GLORIA CAVANAGH,
Chairman.

SAIPAN CHAMBER OF COMMERCE,
Saipan, December 2, 2016.

Hon. GREGORIO KILILI CAMACHO SABLAN,
House of Representatives,
Washington, DC.

DEAR CONGRESSMAN SABLAN: The Saipan Chamber of Commerce is in strong support of H.R. 6401, critical legislation that will provide short-term relief from the labor shortage threatening the growth of the Northern Marianas economy.

The U.S. Bureau of Economic Analysis indicates the Commonwealth economy grew for the fourth consecutive year, a recent high of 3.5 percent. This is attributable to increased private investment and tourism now threatened by the lack of available qualified workers on the island.

The modest one-year increase in Commonwealth-Only Transitional Workers (CW) proposed under H.R. 6401, will provide the business community with the necessary human resources to continue to operate and propel an expanding economy. It will also provide additional critical funds for job training and education programs that are steadily expanding the pool of qualified and skilled U.S. workers on Saipan.

The Saipan Chamber of Commerce fully supports H.R. 6401 and appreciates all of your efforts in addressing the labor crisis in the Northern Marianas.

Very truly yours,

VELMA M. PALACIOS,
President of the Board.

Mr. SABLAN. Mr. Speaker, in closing, I want to thank again Chairman ROB BISHOP of the Natural Resources Committee for his understanding and support. I also thank Chairman DON YOUNG, who held a hearing on this issue in September and agreed that action was needed.

I appreciate the support of Ranking Members RAÚL GRIJALVA and RAUL RUIZ. And, of course, Mr. Speaker, I am indebted to the minority whip, Mr. HOYER, and to our majority leader, Mr. MCCARTHY, who agreed to bring H.R. 6401 to the floor today.

I ask my colleagues for the support of H.R. 6401.

Mr. Speaker, The economy of the Northern Mariana Islands grew at a rate of 3 point 5 percent last year and the fourth straight year of growth for my district.

The Bureau of Economic Analysis announced the new data a week ago.

This strong economic expansion is good news for the people of the Mariana Islands. We desperately want this growth to continue. Because our economy is still only three-quarters of what it was in 2000.

But there is a problem with keeping that growth going: our limited population.

For that reason, I have introduced with Congresswoman RADEWAGEN bipartisan legislation, H.R. 6401, the Northern Mariana Islands Economic Expansion Act.

The Marianas has a very small population—only about 54,000 people. And economic expansion demands not only entrepreneurial capital and investment, which we are suddenly receiving. Economic expansion demands workers, as well.

We have struggled to bring more workers into our labor force.

Isolated as we are—6,000 miles from the U.S. mainland—it is difficult to attract U.S. workers. Our employers to gone everywhere to recruit workers—Guam, the Freely Associated States, Puerto Rico and the U.S. mainland.

We have worked hard to raise the skills of our own local population. A special fee paid by employers of foreign workers has pumped $6 million into training.

And we are succeeding. Since 2008, the number of U.S. workers has grown. There are 15 percent more U.S. workers in our labor force today than there were ten years ago.

U.S. workers are now the majority of our labor force—a huge turnaround for us.

But we still find ourselves short of the workers we need—especially at this moment, when there are hundreds of millions of dollars of new tourism development being invested in our islands.

H.R. 6401 does several things:

First, it will put more money into that training fund that is proving so successful at helping put our people to work.

The bill also allows us to bring in a limited, additional number of foreign workers under the Commonwealth-only Transitional Worker program that was set up under federal law to help us build our U.S. labor force.

The Transitional Worker program has reduced the number of foreign workers in the Marianas year after year.

But this year the sudden increase in investment in new hotels and other tourism businesses has left us short.

H.R. 6401 would give us an extra 2,000 workers—the same number as we were allowed in 2013—and only for the remainder of this fiscal year.

This is a short-term fix to address an unexpected—and very welcome—change in the economic fortunes of the Northern Mariana Islands.

The bill will also help us avoid this worker shortage in the years to come.

Part of the problem this year has been that employers are not using other federal programs that can provide temporary labor for construction projects of the size and scale that are being built in the Marianas.

So, H.R. 6401 bars employers from using the Transitional program we have in the Marianas for new construction.

This shift will not slow the economic expansion we have right now.

But it will allow us to continue reducing the number of foreign workers permitted under the Transitional program.

It will continue the conversion to a predominantly U.S. labor force, which is our long-term goal.

In closing, I want to thank Chairman ROB BISHOP of the Natural Resources Committee for his understanding and support.

Thanks, also, to Chairman DON YOUNG, who held a hearing on these issues in September and agreed that action was needed.

I appreciate the support of Ranking Members RAUL GRIJALVA and RAUL RUIZ.

And, of course, I am indebted to the Minority Whip Mr. HOYER and to our Majority Leader Mr. MCCARTHY, who agreed to bring H.R. 6401 to the floor today.

And I ask my colleagues for their support for H.R. 6401.

Mr. Speaker, I yield back the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, this is an excellent bill, and I urge its adoption.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Utah (Mr. BISHOP) that the House suspend the rules and pass the bill, H.R. 6401.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

PROVIDING FOR THE ADDITION OF CERTAIN REAL PROPERTY TO THE RESERVATION OF THE SILETZ TRIBE IN THE STATE OF OREGON

Mr. BISHOP of Utah. Mr. Speaker, I move to suspend the rules and pass the bill (S. 817) to provide for the addition of certain real property to the reservation of the Siletz Tribe in the State of Oregon.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 817

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. PURPOSE; CLARIFICATION.

(a) PURPOSE.—The purpose of this Act is to facilitate fee-to-trust applications for the Siletz Tribe within the geographic area specified in the amendment made by this Act.

(b) CLARIFICATION.—Except as specifically provided otherwise by this Act or the amendment made by this Act, nothing in this Act or the amendment made by this Act, shall prioritize for any purpose the claims of any federally recognized Indian tribe over the claims of any other federally recognized Indian tribe.

SEC. 2. TREATMENT OF CERTAIN PROPERTY OF THE SILETZ TRIBE OF THE STATE OF OREGON.

Section 7 of the Siletz Tribe Indian Restoration Act (25 U.S.C. 711e) is amended by adding at the end the following:

''(f) TREATMENT OF CERTAIN PROPERTY.—

''(1) IN GENERAL.—

''(A) TITLE.—The Secretary may accept title to any additional number of acres of real property located within the boundaries of the original 1855 Siletz Coast Reservation established by Executive order dated November 9, 1855, comprised of land within the political boundaries of Benton, Douglas, Lane, Lincoln, Tillamook, and Yamhill Counties in the State of Oregon, if that real property is conveyed or otherwise transferred to the United States by or on behalf of the tribe.

''(B) TRUST.—Land to which title is accepted by the Secretary under this paragraph shall be held in trust by the United States for the benefit of the tribe.

''(2) TREATMENT AS PART OF RESERVATION.—All real property that is taken into trust under paragraph (1) shall—

''(A) be considered and evaluated as an on-reservation acquisition under part 151.10 of title 25, Code of Federal Regulations (or successor regulations); and

''(B) become part of the reservation of the tribe.

''(3) PROHIBITION ON GAMING.—Any real property taken into trust under paragraph (1) shall not be eligible, or used, for any gaming activity carried out under the Indian Gaming Regulatory Act (25 U.S.C. 2701 et seq.).''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Utah (Mr. BISHOP) and the gentleman from the Northern Mariana Islands (Mr. SABLAN) each will control 20 minutes.

The Chair recognizes the gentleman from Utah.

GENERAL LEAVE

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Utah?

There was no objection.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

This bill deals with the Siletz Tribe in the State of Oregon. It is a bill that the tribe could apply to have land placed in trust within the original 1855 boundaries of their reservation. The bill prohibits gaming on land acquired in trust under this bill and is identical to a version of H.R. 3211 that we dealt with in our committee.

I think it is a good bill.

I reserve the balance of my time.

Mr. SABLAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, S. 817 will grant the Confederated Tribes of Siletz Indians of Oregon the ability to more easily restore their tribal lands.

The tribe's original lands were greatly diminished by the Federal Government during the disastrous allotment and assimilation period of the late 1800s. Thus, the Western Oregon Indian Termination Act of 1954 terminated their Federal status and eliminated their remaining land base altogether. The tribe was rightly restored in 1977 but has had trouble reacquiring parts of their original land base due to the nature of their restoration.

Passage of S. 817 will finally address this issue, so the tribe will no longer have to face delays in dealing with the Department of Interior when taking certain land into trust. This is the culmination of nearly 3 decades of effort by the Siletz tribe. I congratulate them on their tireless work and perseverance.

I also want to commend Senator WYDEN for promoting this legislation, and our colleague from Oregon, Mr. SCHRADER, for championing the House version of the bill.

I urge the adoption of S. 817.

I yield back the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I urge consideration of this bill favorably.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Utah (Mr. BISHOP) that the House suspend the rules and pass the bill, S. 817.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

AMENDING THE GRAND RONDE RESERVATION ACT TO MAKE TECHNICAL CORRECTIONS

Mr. BISHOP of Utah. Mr. Speaker, I move to suspend the rules and pass the bill (S. 818) to amend the Grand Ronde Reservation Act to make technical corrections, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 818

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. ADDITIONAL LAND FOR GRAND RONDE RESERVATION.

Section 1 of Public Law 100–425 (commonly known as the ''Grand Ronde Reservation Act'') (25 U.S.C. 713f note; 102 Stat. 1594; 104 Stat. 207; 108 Stat. 708; 108 Stat. 4566; 112 Stat. 1896), is amended—

(1) in subsection (a)—

(A) in the first sentence—

(i) by striking ''Subject to valid existing rights, including (but not limited to) all'' and inserting the following:

''(1) IN GENERAL.—Subject to valid existing rights, including all''; and

(ii) by inserting ''(referred to in this Act as the 'Tribes')'' before the period at the end;

(B) in the second sentence, by striking ''Such land'' and inserting the following:

''(2) TREATMENT.—The land referred to in paragraph (1)''; and

(C) by adding at the end the following:

''(3) ADDITIONAL TRUST ACQUISITIONS.—

''(A) IN GENERAL.—The Secretary may accept title in and to any additional real property located within the boundaries of the original 1857 reservation of the Tribes (as established by the Executive order dated June 30, 1857, and comprised of land within the political boundaries of Polk and Yamhill Counties, Oregon), if that real property is conveyed or otherwise transferred to the United States by, or on behalf of, the Tribes.

''(B) TREATMENT OF TRUST LAND.—

''(i) IN GENERAL.—An application to take land into trust within the boundaries of the original 1857 reservation of the Tribes shall be treated by the Secretary as an on-reservation trust acquisition.

''(ii) GAMING.—

''(I) IN GENERAL.—Except as provided in subclause (II), real property taken into trust pursuant to this paragraph shall not be eligible, or used, for any class II gaming or class III gaming (as those terms are defined in section 4 of the Indian Gaming Regulatory Act (25 U.S.C. 2703)).

''(II) EXCEPTION.—Subclause (I) shall not apply to any real property located within 2 miles of the gaming facility in existence on the date of enactment of this paragraph located on State Highway 18 in the Grand Ronde community, Oregon.

''(C) RESERVATION.—All real property taken into trust within the boundaries described in subparagraph (A) at any time after September 9, 1988, shall be considered to be a part of the reservation of the Tribes.''; and

(2) in subsection (c)—

(A) in the matter preceding the table, by striking ''in subsection (a) are approximately 10,311.60'' and inserting ''in subsection (a)(1) are the approximately 11,349.92''; and

(B) by striking the table and inserting the following:

''South	West	Section	Subdivision	Acres
4	8	36	SE¼ SE¼	40
4	7	31	Lots 1,2, NE¼, E½ NW¼	320.89
5	7	6	All	634.02
5	7	7	All	638.99
5	7	18	Lots 1 & 2, NE¼, E½ NW¼	320.07
5	8	1	SE¼	160
5	8	3	All	635.60
5	8	7	All	661.75
5	8	8	All	640
5	8	9	All	640
5	8	10	All	640
5	8	11	All	640
5	8	12	All	640
5	8	13	All	640
5	8	14	All	640
5	8	15	All	640
5	8	16	All	640
5	8	17	All	640
6	8	1	SW¼ SW¼, W½ SE¼ SW¼	53.78
6	8	1	S½ E½ SE¼ SW¼	10.03
6	7	7, 8, 17, 18	Former tax lot 800, located within the SE¼ SE¼ of sec. 7; SW¼ SW¼ of sec. 8; NW¼ NW¼ of sec. 17; and NE¼ NE¼ of sec. 18	5.55
4	7	30	Lots 3,4, SW¼ NE¼, SE¼ NW¼, E½ SW¼	241.06
6	8	1	N½ SW¼	29.59
6	8	12	W½ SW¼ NE¼, SE¼ SW¼ NE¼ NW¼, N½ SE¼ NW¼, N½ SW¼ SW¼ SE¼	21.70
6	8	13	W½ E½ NW¼ NW¼	5.31
6	7	7	E½ E½	57.60
6	7	8	SW¼ SW¼ NW¼, W½ SW¼	22.46
6	7	17	NW¼ NW¼, N½ SW¼ NW¼	10.84
6	7	18	E½ NE¼	43.42
6	8	1	W½ SE¼ SE¼	20.6
6	8	1	N½ SW¼ SE¼	19.99
6	8	1	SE¼ NE¼	9.99
6	8	1	NE¼ SW¼	10.46
6	8	1	NE¼ SW¼, NW¼ SW¼	12.99
6	7	6	SW¼ NW¼	37.39
6	7	5	SE¼ SW¼	24.87
6	7	5, 8	SW¼ SE¼ of sec. 5; and NE¼ NE¼, NW¼ NE¼, NE¼ NW¼ of sec. 8	109.9

''South	West	Section	Subdivision	Acres
6	8	1	NW¼ SE¼	31.32
6	8	1	NE¼ SW¼	8.89
6	8	1	SW¼ NE¼, NW¼ NE¼	78.4
6	7	8, 17	SW¼ SW¼ of sec. 8; and NE¼ NW¼, NW¼ NW¼ of sec. 17	14.33
6	7	17	NW¼ NW¼	6.68
6	8	12	SW¼ NE¼	8.19
6	8	1	SE¼ SW¼	2.0
6	8	1	SW¼ SW¼	5.05
6	8	12	SE¼, SW¼	54.64
6	7	17, 18	SW¼, NW¼ of sec. 17; and SE¼, NE¼ of sec. 18	136.83
6	8	1	SW¼ SE¼	20.08
6	7	5	NE¼ SE¼, SE¼ SE¼, E½ SE¼ SW¼	97.38
4	7	31	SE¼	159.60
6	7	17	NW¼ NW¼	3.14
6	8	12	NW¼ SE¼	1.10
6	7	8	SW¼ SW¼	0.92
6	8	12	NE¼ NW¼	1.99
6	7, 8	7, 12	NW¼ NW¼ of sec. 7; and S½ NE¼ E½ NE¼ NE¼ of sec. 12	86.48
6	8	12	NE¼ NW¼	1.56
6	7,8	6,1	W½ SW¼ SW¼ of sec. 6; and E½ SE¼ SE¼ of sec. 1	35.82
6	7	5	E½ NW¼ SE¼	19.88
6	8	12	NW¼ NE¼	0.29
6	8	1	SE¼ SW¼	2.5
6	7	8	NE¼ NW¼	7.16
6	8	1	SE¼ SW¼	5.5
6	8	1	SE¼ NW¼	1.34
			Total	11,349.92.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Utah (Mr. BISHOP) and the gentleman from the Northern Mariana Islands (Mr. SABLAN) each will control 20 minutes.

The Chair recognizes the gentleman from Utah.

GENERAL LEAVE

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Utah?

There was no objection.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

This bill for the Grand Ronde Tribe in Oregon allows them to ease the process to apply for trust lands within the original 1857 boundary jurisdiction. It deems property placed in trust for the tribe after 1988 as part of the tribe's reservation and lands acquired by the tribe to be part of the reservation. This bill is also identical to another House bill that we considered in our committee.

I urge its adoption.

I reserve the balance of my time.

Mr. SABLAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, like other tribes in Oregon, the Confederated Tribes of the Grand Ronde Community were wrongfully stripped of their recognition and existing land base during the termination era in the 1950s.

Federal recognition of the Grand Ronde was rightfully reestablished in 1983, as well as a land base through subsequent legislation. But like other tribes in Oregon, efforts by the tribe to restore additional lands have been hindered by the nature of the tribe's restoration.

Passage of S. 818 will finally address this issue and make it easier for the Grand Ronde to take land into trust within their historical boundaries.

The bill will also allow certain property already taken into trust by the tribe to be considered part of the reservation.

Again, I want to thank Senator WYDEN for promoting this legislation,

and thank our colleague from Oregon (Mr. SCHRADER) for advocating for the House version of this bill. And I want to thank Chairman BISHOP for managing this bill with me today.

I ask my colleagues to support S. 818.

I yield back the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I urge its adoption.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Utah (Mr. BISHOP) that the House suspend the rules and pass the bill, S. 818.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

DANIEL J. EVANS OLYMPIC NATIONAL PARK WILDERNESS ACT

Mr. BISHOP of Utah. Mr. Speaker, I move to suspend the rules and pass the bill (S. 3028) to redesignate the Olympic Wilderness as the Daniel J. Evans Wilderness.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 3028

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Daniel J. Evans Olympic National Park Wilderness Act''.

SEC. 2. REDESIGNATION AS DANIEL J. EVANS WILDERNESS.

(a) REDESIGNATION.—Section 101(a) of the Washington Park Wilderness Act of 1988 (16 U.S.C. 1132 note; 102 Stat. 3961) is amended, in the second sentence, by striking ''Olympic Wilderness'' and inserting ''Daniel J. Evans Wilderness''.

(b) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the Olympic Wilderness shall be deemed to be a reference to the Daniel J. Evans Wilderness.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Utah (Mr. BISHOP) and the gentleman from the Northern Mariana Islands (Mr. SABLAN) each will control 20 minutes.

The Chair recognizes the gentleman from Utah.

GENERAL LEAVE

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous materials on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Utah?

There was no objection.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself 2 minutes.

S. 3028 renames the Olympic Wilderness in the Olympic National Park in the State of Washington as the Daniel J. Evans Wilderness.

□ 1400

Daniel Evans was a three-term Governor of Washington. He also served in the United States Senate. Despite that fact, this is still a fitting memorial to Mr. Evans and is a recognition of his life in public service.

Mr. Speaker, I reserve the balance of my time.

Mr. SABLAN. Mr. Speaker, I yield myself such time as I may consume.

The lands of the Pacific Northwest are known throughout the country for their majestic beauty and unique ecosystems. Visitors from near and far flock to the region to experience temperate rain forests and to climb some of the tallest peaks of the country. Were it not for the forward-thinking actions of certain individuals who sought permanent protection for these wildlands decades ago, these iconic places could have been destroyed.

Today we recognize one of those forward-thinking individuals, Senator Daniel J. Evans of Washington State. Thanks to the work of Senator Evans, these areas are maintained in perpetuity due in no small part to the passage of the wilderness bills that protect them. A staunch supporter of the bipartisan Wilderness Act, Senator Evans helped to establish this bedrock environmental law, which ensures that these increasingly rare and pristine lands are protected permanently for enjoyment by all.

Thanks to Congressman REICHERT and Senator CANTWELL for advancing this legislation.

I am pleased to support this bill today, which recognizes the important work of one of our great public lands champions, Senator Daniel J. Evans. I ask my colleagues to support this bill.

Mr. Speaker, I yield back the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, this is another excellent bill, and I urge its adoption.

I yield back the balance of my time.

The SPEAKER pro tempore (Mr. DOLD). The question is on the motion offered by the gentleman from Utah (Mr. BISHOP) that the House suspend the rules and pass the bill, S. 3028.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. BISHOP of Utah. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

CROSS-BORDER TRADE ENHANCEMENT ACT OF 2016

Mr. BOUSTANY. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 875) to provide for alternative financing arrangements for the provision of certain services and the construction and maintenance of infrastructure at land border ports of entry, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 875

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Cross-Border Trade Enhancement Act of 2016''.

SEC. 2. PUBLIC-PRIVATE PARTNERSHIPS.

(a) IN GENERAL.—Title IV of the Homeland Security Act of 2002 (6 U.S.C. 202 et seq.) is amended by adding at the end the following:

''Subtitle G—U.S. Customs and Border Protection Public Private Partnerships

''SEC. 481. FEE AGREEMENTS FOR CERTAIN SERVICES AT PORTS OF ENTRY.

''(a) IN GENERAL.—Notwithstanding section 13031(e) of the Consolidated Omnibus Budget Reconciliation Act of 1985 (19 U.S.C. 58c(e)) and section 451 of the Tariff Act of 1930 (19 U.S.C. 1451), the Commissioner of U.S. Customs and Border Protection, upon the request of any entity, may enter into a fee agreement with such entity under which—

''(1) U.S. Customs and Border Protection shall provide services described in subsection (b) at a United States port of entry or any other facility at which U.S. Customs and Border Protection provides or will provide such services;

''(2) such entity shall remit to U.S. Customs and Border Protection a fee imposed under subsection (h) in an amount equal to the full costs that are incurred or will be incurred in providing such services; and

''(3) if space is provided by such entity, each facility at which U.S. Customs and Border Protection services are performed shall be maintained and equipped by such entity, without cost to the Federal Government, in accordance with U.S. Customs and Border Protection specifications.

''(b) SERVICES DESCRIBED.—The services described in this subsection are any activities of any employee or Office of Field Operations contractor of U.S. Customs and Border Protection (except employees of the U.S. Border Patrol, as established under section 411(e)) pertaining to, or in support of, customs, agricultural processing, border security, or immigration inspection-related matters at a port of entry or any other facility at which U.S. Customs and Border Protection provides or will provide services.

''(c) MODIFICATION OF PRIOR AGREEMENTS.—The Commissioner of U.S. Customs and Border Protection, at the request of an entity who has previously entered into an agreement with U.S. Customs and Border Protection for the reimbursement of fees in effect on the date of enactment of this section, may modify such agreement to implement any provisions of this section.

''(d) LIMITATIONS.—

''(1) IMPACTS OF SERVICES.—The Commissioner of U.S. Customs and Border Protection—

''(A) may enter into fee agreements under this section only for services that—

''(i) will increase or enhance the operational capacity of U.S. Customs and Border Protection based on available staffing and workload; and

''(ii) will not shift the cost of services funded in any appropriations Act, or provided from any account in the Treasury of the United States derived by the collection of fees, to entities under this Act; and

''(B) may not enter into a fee agreement under this section if such agreement would unduly and permanently impact services funded in any appropriations Act, or provided from any account in the Treasury of the United States, derived by the collection of fees.

''(2) NUMBER.—There shall be no limit to the number of fee agreements that the Commissioner of U.S. Customs and Border Protection may enter into under this section.

''(e) AIR PORTS OF ENTRY.—

''(1) FEE AGREEMENT.—Except as otherwise provided in this subsection, a fee agreement for U.S. Customs and Border Protection services at an air port of entry may only provide for the payment of overtime costs of U.S. Customs and Border Protection officers and salaries and expenses of U.S. Customs and Border Protection employees to support U.S. Customs and Border Protection officers in performing services described in subsection (b).

''(2) SMALL AIRPORTS.—Notwithstanding paragraph (1), U.S. Customs and Border Protection may receive reimbursement in addition to overtime costs if the fee agreement is for services at an air port of entry that has fewer than 100,000 arriving international passengers annually.

''(3) COVERED SERVICES.—In addition to costs described in paragraph (1), a fee agreement for U.S. Customs and Border Protection services at an air port of entry referred to in paragraph (2) may provide for the reimbursement of—

''(A) salaries and expenses of not more than 5 full-time equivalent U.S. Customs and Border Protection Officers beyond the number of such officers assigned to the port of entry on the date on which the fee agreement was signed;

''(B) salaries and expenses of employees of U.S. Customs and Border Protection, other than the officers referred to in subparagraph (A), to support U.S. Customs and Border Protection officers in performing law enforcement functions; and

''(C) other costs incurred by U.S. Customs and Border Protection relating to services described in subparagraph (B), such as temporary placement or permanent relocation of employees, including incentive pay for relocation, as appropriate.

''(f) PORT OF ENTRY SIZE.—The Commissioner of U.S. Customs and Border Protection shall ensure that each fee agreement proposal is given equal consideration regardless of the size of the port of entry.

''(g) DENIED APPLICATION.—

''(1) IN GENERAL.—If the Commissioner of U.S. Customs and Border Protection denies a proposal for a fee agreement under this section, the Commissioner shall provide the entity submitting such proposal with the reason for the denial unless—

''(A) the reason for the denial is law enforcement sensitive; or

''(B) withholding the reason for the denial is in the national security interests of the United States.

''(2) JUDICIAL REVIEW.—Decisions of the Commissioner of U.S. Customs and Border Protection under paragraph (1) are in the discretion of the Commissioner and are not subject to judicial review.

''(h) FEE.—

''(1) IN GENERAL.—The amount of the fee to be charged under an agreement authorized under subsection (a) shall be paid by each entity requesting U.S. Customs and Border Protection services, and shall be for the full cost of providing such services, including the salaries and expenses of employees and contractors of U.S. Customs and Border Protection, to provide such services and other costs incurred by U.S. Customs and Border Protection relating to such services, such as temporary placement or permanent relocation of such employees and contractors.

''(2) TIMING.—The Commissioner of U.S. Customs and Border Protection may require that the fee referred to in paragraph (1) be paid by each entity that has entered into a fee agreement under subsection (a) with U.S. Customs and Border Protection in advance of the performance of U.S. Customs and Border Protection services.

''(3) OVERSIGHT OF FEES.—The Commissioner of U.S. Customs and Border Protection shall develop a process to oversee the services for which fees are charged pursuant to an agreement under subsection (a), including—

''(A) a determination and report on the full costs of providing such services, and a process for increasing such fees, as necessary;

''(B) the establishment of a periodic remittance schedule to replenish appropriations, accounts, or funds, as necessary; and

''(C) the identification of costs paid by such fees.

''(i) DEPOSIT OF FUNDS.—

''(1) ACCOUNT.—Funds collected pursuant to any agreement entered into pursuant to subsection (a)—

''(A) shall be deposited as offsetting collections;

''(B) shall remain available until expended without fiscal year limitation; and

''(C) shall be credited to the applicable appropriation, account, or fund for the amount paid out of such appropriation, account, or fund for any expenses incurred or to be incurred by U.S. Customs and Border Protection in providing U.S. Customs and Border Protection services under any such agreement and any other costs incurred or to be incurred by U.S. Customs and Border Protection relating to such services.

''(2) RETURN OF UNUSED FUNDS.—The Commissioner of U.S. Customs and Border Protection shall return any unused funds collected and deposited into the account described in paragraph (1) if a fee agreement entered into pursuant to subsection (a) is terminated for any reason or the terms of such fee agreement change by mutual agreement to cause a reduction of U.S. Customs and Border Protections services. No interest shall be owed upon the return of any such unused funds.

''(j) TERMINATION.—

''(1) IN GENERAL.—The Commissioner of U.S. Customs and Border Protection shall terminate the services provided pursuant to a fee agreement entered into under subsection (a) with an entity that, after receiving notice from the Commissioner that a fee under subsection (h) is due, fails to pay such fee in a timely manner. If such services are terminated, all costs incurred by U.S. Customs and Border Protection that have not been paid shall become immediately due and payable. Interest on unpaid fees shall accrue based on the rate and amount established under sections 6621 and 6622 of the Internal Revenue Code of 1986.

''(2) PENALTY.—Any entity that, after notice and demand for payment of any fee under subsection (h), fails to pay such fee in a timely manner shall be liable for a penalty or liquidated damage equal to two times the amount of such fee. Any such amount collected under this paragraph shall be deposited into the appropriate account specified under subsection (i) and shall be available as described in such subsection.

''(3) TERMINATION BY THE ENTITY.—Any entity who has previously entered into an agreement with U.S. Customs and Border Protection for the reimbursement of fees in effect on the date of enactment of this section, or under the provisions of this section, may request that such agreement be amended to provide for termination upon advance notice, length, and terms that are negotiated between such entity and U.S. Customs and Border Protection.

''(k) ANNUAL REPORT.—The Commissioner of U.S. Customs and Border Protection shall—

''(1) submit an annual report identifying the activities undertaken and the agreements entered into pursuant to this section to—

''(A) the Committee on Appropriations of the Senate;

''(B) the Committee on Finance of the Senate;

''(C) the Committee on Homeland Security and Governmental Affairs of the Senate;

''(D) the Committee on the Judiciary of the Senate;

''(E) the Committee on Appropriations of the House of Representatives;

''(F) the Committee on Homeland Security of the House of Representatives;

''(G) the Committee on the Judiciary of the House of Representatives; and

''(H) the Committee on Ways and Means of the House of Representatives; and

''(2) not later than 15 days before entering into a fee agreement, notify the members of Congress that represent the State or Congressional District in which the affected port of entry or facility is located of such agreement.

''(l) RULE OF CONSTRUCTION.—Nothing in this section may be construed as imposing on U.S. Customs and Border Protection any responsibilities, duties, or authorities relating to real property.

''SEC. 482. PORT OF ENTRY DONATION AUTHORITY.

''(a) PERSONAL PROPERTY DONATION AUTHORITY.—

''(1) IN GENERAL.—The Commissioner of U.S. Customs and Border Protection, in consultation with the Administrator of General Services, may enter into an agreement with any entity to accept a donation of personal property, money, or nonpersonal services for the uses described in paragraph (3) only with respect to the following locations at which U.S. Customs and Border Protection performs or will be performing inspection services:

''(A) A new or existing sea or air port of entry.

''(B) An existing Federal Government-owned land port of entry.

''(C) A new Federal Government-owned land port of entry if—

''(i) the fair market value of the donation is $50,000,000 or less; and

''(ii) the fair market value, including any personal and real property donations in total, of such port of entry when completed, is $50,000,000 or less.

''(2) LIMITATION ON MONETARY DONATIONS.—Any monetary donation accepted pursuant to this subsection may not be used to pay the salaries of U.S. Customs and Border Protection employees performing inspection services.

''(3) USES.—Donations accepted pursuant to this subsection may be used for activities of the Office of Field Operations set forth in subparagraphs (A) through (F) of section 411(g)(3), which are related to a new or existing sea or air port of entry or a new or existing Federal Government-owned land port of entry described in paragraph (1), including expenses related to—

''(A) furniture, fixtures, equipment, or technology, including the installation or deployment of such items; and

''(B) the operation and maintenance of such furniture, fixtures, equipment, or technology.

''(b) REAL PROPERTY DONATION AUTHORITY.—

''(1) IN GENERAL.—Subject to paragraph (3), the Commissioner of U.S. Customs and Border Protection, and the Administrator of the General Services Administration, as applicable, may enter into an agreement with any entity to accept a donation of real property or money for uses described in paragraph (2) only with respect to the following locations at which U.S. Customs and Border Protection performs or will be performing inspection services:

''(A) A new or existing sea or air port of entry.

''(B) An existing Federal Government-owned land port of entry.

''(C) A new Federal Government-owned land port of entry if—

''(i) the fair market value of the donation is $50,000,000 or less; and

''(ii) the fair market value, including any personal and real property donations in total, of such port of entry when completed, is $50,000,000 or less.

''(2) USE.—Donations accepted pursuant to this subsection may be used for activities of the Office of Field Operations set forth in section 411(g), which are related to the construction, alteration, operation, or maintenance of a new or existing sea or air port of entry or a new or existing a Federal Government-owned land port of entry described in paragraph (1), including expenses related to—

''(A) land acquisition, design, construction, repair, or alteration; and

''(B) operation and maintenance of such port of entry facility.

''(3) LIMITATION ON REAL PROPERTY DONATIONS.—A donation of real property under this subsection at an existing land port of entry owned by the General Services Administration may only be accepted by the Administrator of General Services.

''(4) SUNSET.—

''(A) IN GENERAL.—The authority to enter into an agreement under this subsection shall terminate on the date that is four years after the date of the enactment of this section.

''(B) RULE OF CONSTRUCTION.—The termination date referred to in subparagraph (A) shall not apply to carrying out the terms of an agreement under this subsection if such agreement is entered into before such termination date.

''(c) GENERAL PROVISIONS.—

''(1) DURATION.—An agreement entered into under subsection (a) or (b) (and, in the case of such subsection (b), in accordance with paragraph (4) of such subsection) may last as long as required to meet the terms of such agreement.

''(2) CRITERIA.—In carrying out an agreement entered into under subsection (a) or (b), the Commissioner of U.S. Customs and Border Protection, in consultation with the Administrator of General Services, shall establish criteria regarding—

''(A) the selection and evaluation of donors;

''(B) the identification of roles and responsibilities between U.S. Customs and Border Protection, the General Services Administration, and donors;

''(C) the identification, allocation, and management of explicit and implicit risks of partnering between the Federal Government and donors;

''(D) decision-making and dispute resolution processes; and

''(E) processes for U.S. Customs and Border Protection, and the General Services Administration, as applicable, to terminate agreements if selected donors are not meeting the terms of any such agreement, including the security standards established by U.S. Customs and Border Protection.

''(3) EVALUATION PROCEDURES.—

''(A) IN GENERAL.—The Commissioner of U.S. Customs and Border Protection, in consultation with the Administrator of General Services, as applicable, shall—

''(i) establish criteria for evaluating a proposal to enter into an agreement under subsection (a) or (b); and

''(ii) make such criteria publicly available.

''(B) CONSIDERATIONS.—Criteria established pursuant to subparagraph (A) shall consider—

''(i) the impact of a proposal referred to in such subparagraph on the land, sea, or air port of entry at issue and other ports of entry or similar facilities or other infrastructure near the location of the proposed donation;

''(ii) such proposal's potential to increase trade and travel efficiency through added capacity;

''(iii) such proposal's potential to enhance the security of the port of entry at issue;

''(iv) the impact of the proposal on reducing wait times at that port of entry or facility and other ports of entry on the same border;

''(v) for a donation under subsection (b)—

''(I) whether such donation satisfies the requirements of such proposal, or whether additional real property would be required; and

''(II) how such donation was acquired, including if eminent domain was used;

''(vi) the funding available to complete the intended use of such donation;

''(vii) the costs of maintaining and operating such donation;

''(viii) the impact of such proposal on U.S. Customs and Border Protection staffing requirements; and

''(ix) other factors that the Commissioner or Administrator determines to be relevant.

''(C) DETERMINATION AND NOTIFICATION.—

''(i) INCOMPLETE PROPOSALS.—

''(I) IN GENERAL.—Not later than 60 days after receiving the proposals for a donation agreement from an entity, the Commissioner of U.S. Customs and Border Protection shall notify such entity as to whether such proposal is complete or incomplete.

''(II) RESUBMISSION.—If the Commissioner of U.S. Customs and Border Protection determines that a proposal is incomplete, the Commissioner shall—

''(aa) notify the appropriate entity and provide such entity with a description of all information or material that is needed to complete review of the proposal; and

''(bb) allow the entity to resubmit the proposal with additional information and material described in item (aa) to complete the proposal.

''(ii) COMPLETE PROPOSALS.—Not later than 180 days after receiving a completed proposal to enter into an agreement under subsection (a) or (b), the Commissioner of U.S. Customs and Border Protection, with the concurrence of the Administrator of General Services, as applicable, shall—

''(I) determine whether to approve or deny such proposal; and

''(II) notify the entity that submitted such proposal of such determination.

''(4) SUPPLEMENTAL FUNDING.—Except as required under section 3307 of title 40, United States Code, real property donations to the Administrator of General Services made pursuant to subsection (a) and (b) at a GSA-owned land port of entry may be used in addition to any other funding for such purpose, including appropriated funds, property, or services.

''(5) RETURN OF DONATIONS.—The Commissioner of U.S. Customs and Border Protection, or the Administrator of General Services, as applicable, may return any donation made pursuant to subsection (a) or (b). No interest shall be owed to the donor with respect to any donation provided under such subsections that is returned pursuant to this subsection.

''(6) PROHIBITION ON CERTAIN FUNDING.—

''(A) IN GENERAL.—Except as provided in subsections (a) and (b) regarding the acceptance of donations, the Commissioner of U.S. Customs and Border Protection and the Administrator of General Services, as applicable, may not, with respect to an agreement entered into under either of such subsections, obligate or expend amounts in excess of amounts that have been appropriated pursuant to any appropriations Act for purposes specified in either of such subsections or otherwise made available for any of such purposes.

''(B) CERTIFICATION REQUIREMENT.—Before accepting any donations pursuant to an agreement under subsection (a) or (b), the Commissioner of U.S. Customs and Border Protection shall certify to the congressional committees set forth in paragraph (7) that the donation will not be used for the construction of a detention facility or a border fence or wall.

''(7) ANNUAL REPORTS.—The Commissioner of U.S. Customs and Border Protection, in collaboration with the Administrator of General Services, as applicable, shall submit an annual report identifying the activities undertaken and agreements entered into pursuant to subsections (a) and (b) to—

''(A) the Committee on Appropriations of the Senate;

''(B) the Committee on Environment and Public Works of the Senate;

''(C) the Committee on Finance of the Senate;

''(D) the Committee on Homeland Security and Governmental Affairs of the Senate;

''(E) the Committee on the Judiciary of the Senate;

''(F) the Committee on Appropriations of the House of Representatives;

''(G) the Committee on Homeland Security of the House of Representatives;

''(H) the Committee on the Judiciary of the House of Representatives;

''(I) the Committee on Transportation and Infrastructure of the House of Representatives; and

''(J) the Committee on Ways and Means of the House of Representatives.

''(d) GAO REPORT.—The Comptroller General of the United States shall submit an annual report to the congressional committees referred to in subsection (c)(7) that evaluates—

''(1) fee agreements entered into pursuant to section 481;

''(2) donation agreements entered into pursuant to subsections (a) and (b); and

''(3) the fees and donations received by U.S. Customs and Border Protection pursuant to such agreements.

''(e) JUDICIAL REVIEW.—Decisions of the Commissioner of U.S. Customs and Border Protection and the Administrator of the General Services Administration under this section regarding the acceptance of real or personal property are in the discretion of the Commissioner and the Administrator and are not subject to judicial review.

''(f) RULE OF CONSTRUCTION.—Except as otherwise provided in this section, nothing in this section may be construed as affecting in any manner the responsibilities, duties, or authorities of U.S. Customs and Border Protection or the General Services Administration.

''SEC. 483. CURRENT AND PROPOSED AGREEMENTS.

''Nothing in this subtitle or in section 4 of the Cross-Border Trade Enhancement Act of 2016 may be construed as affecting—

''(1) any agreement entered into pursuant to section 560 of division D of the Consolidated and Further Continuing Appropriations Act, 2013 (Public Law 113–6) or section 559 of title V of division F of the Consolidated Appropriations Act, 2014 (6 U.S.C. 211 note; Public Law 113–76), as in existence on the day before the date of the enactment of this subtitle, and any such agreement shall continue to have full force and effect on and after such date; or

''(2) a proposal accepted for consideration by U.S. Customs and Border Protection pursuant to such section 559, as in existence on the day before such date of enactment.

''SEC. 484. DEFINITIONS.

''In this subtitle:

''(1) DONOR.—The term 'donor' means any entity that is proposing to make a donation under this Act.

''(2) ENTITY.—The term 'entity' means any—

''(A) person;

''(B) partnership, corporation, trust, estate, cooperative, association, or any other organized group of persons;

''(C) Federal, State or local government (including any subdivision, agency or instrumentality thereof); or

''(D) any other private or governmental entity.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1(b) of the Homeland Security Act of 2002 is amended by adding at the end of the list of items relating to title IV the following:

''Subtitle G—U.S. Customs and Border Protection Public Private Partnerships

''Sec. 481. Fee agreements for certain services at ports of entry.
''Sec. 482. Port of entry donation authority.
''Sec. 483. Current and proposed agreements.
''Sec. 484. Definitions.''.

SEC. 3. MODIFICATION OF EXISTING REPORTS TO CONGRESS.

Section 907(b) of the Trade Facilitation and Trade Enforcement Act of 2015 (Public Law 114–125) is amended—

(1) in paragraph (3), by striking ''or'' at the end;

(2) in paragraph (4), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(5) the program for entering into reimbursable fee agreements with U.S. Customs and Border Protection established under section 481 of the Homeland Security Act of 2002.''.

SEC. 4. REPEALS.

(a) CONTRACT AUTHORITY.—Section 560 of division D of the Consolidated and Further Continuing Appropriations Act, 2013 (Public Law 113–6) is repealed.

(b) PARTNERSHIP PILOT PROGRAM.—Section 559 of division F of the Consolidated Appropriations Act, 2014 (6 U.S.C. 211 note; Public Law 113–76) is repealed.

SEC. 5. WAIVER OF POLYGRAPH EXAMINATION REQUIREMENT FOR CERTAIN LAW ENFORCEMENT APPLICANTS.

Section 3 of the Anti-Border Corruption Act of 2010 (Public Law 111–376; 6 U.S.C. 221) is amended—

(1) in the matter preceding paragraph (1), by striking ''The Secretary'' and inserting the following:

''(a) IN GENERAL.—The Secretary'';

(2) in subsection (a)(1), as redesignated, by inserting ''(except as provided in subsection (b))'' after ''Border Protection''; and

(3) by adding at the end the following:

''(b) WAIVER.—The Commissioner of U.S. Customs and Border Protection may waive the polygraph examination requirement under subsection (a)(1) for any applicant who—

''(1) is deemed suitable for employment;

''(2) holds a current, active Top Secret/Sensitive Compartmented Information Clearance;

''(3) has a current Single Scope Background Investigation;

''(4) was not granted any waivers to obtain his or her clearance; and

''(5) is a veteran (as defined in section 2108 of title 5, United States Code).''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Louisiana (Mr. BOUSTANY) and the gentleman from Texas (Mr. CUELLAR) each will control 20 minutes.

The Chair recognizes the gentleman from Louisiana.

GENERAL LEAVE

Mr. BOUSTANY. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and to include extraneous material on H.R. 875, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Louisiana?

There was no objection.

Mr. BOUSTANY. Mr. Speaker, I yield myself such time as I may consume.

After my remarks, I will include in the RECORD an exchange of letters between the chairmen of the two committees.

Mr. Speaker, H.R. 875, the Cross-Border Trade Enhancement Act of 2016, is a commonsense, broadly supported, bipartisan bill that will provide a mechanism for increased trade enforcement while also enhancing the facilitation of legitimate trade and travel. I am pleased to note that the other body passed an identical bill by unanimous consent just last week, signaling widespread support. Through this legislation, we continue to demonstrate our commitment to providing the necessary tools to maintain American economic competitiveness while preventing the entry of illicit goods into the United States.

U.S. Customs and Border Protection is the Federal law enforcement agency responsible for facilitating international travel and trade at our Nation's ports of entry as well as for detecting and interdicting counterfeit, unsafe, and fraudulently entered goods. Last year, the CBP processed more than 382 million passengers at the Nation's 328 land, sea, and air ports of entry and over $2.4 trillion worth of goods. The CBP estimates that inbound trade and traffic will continue to grow.

In 2013 and 2014, Congress created 5-year pilot programs authorizing the CBP to enter into reimbursable agreements with public and private entities as a way to meet the escalating demands of increased trade and traffic at the ports of entry. These agreements with private and public sector entities allow for additional inspectional services beyond what the CBP would have normally allocated at ports of entry. They provide additional resources to increase enforcement and processing capacity and to improve dated infrastructure at our ports.

Since 2013, the CBP has entered into reimbursable service agreements with 29 stakeholders at land, sea, and air ports of entry. These agreements have contributed to more than 125,000 additional processing hours to meet stakeholder demand during which 3 million travelers and almost 460,000 vehicles were processed. The pilot programs have been widely regarded as forward-leaning and an effective way to enforce our laws at the border and to meet the demands of increased trade and travel.

Today's legislation would move beyond these tested pilot programs to establish more permanent authority for the CBP to enter into these arrangements, providing the opportunity to make the CBP more efficient and effective at our borders.

I urge my colleagues to support this legislation.

Mr. Speaker, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON AGRICULTURE,
Washington, DC, December 5, 2016.

Hon. KEVIN BRADY,
Chairman, Committee on Ways and Means, House of Representatives, Washington, DC.

DEAR CHAIRMAN BRADY: I am writing concerning H.R. 875, the Cross-Border Trade Enhancement Act of 2015.

This legislation contains provisions within the Committee on Agriculture's Rule X jurisdiction. As a result of your having consulted with the Committee and in order to expedite this bill for floor consideration, the Committee on Agriculture will forego action on the bill. This is being done on the basis of our mutual understanding that doing so will in no way diminish or alter the jurisdiction of the Committee on Agriculture with respect to the appointment of conferees, or to any future jurisdictional claim over the subject matters contained in the bill or similar legislation.

I would appreciate your response to this letter confirming this understanding, and would request that you include a copy of this letter and your response in the Committee Report and in the Congressional Record during the floor consideration of this bill. Thank you in advance for your cooperation.

Sincerely,

K. MICHAEL CONAWAY,
Chairman.

COMMITTEE ON WAYS AND MEANS,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 5, 2016.

Hon. K. MICHAEL CONAWAY,
Chairman, Committee on Agriculture, Washington, DC.

DEAR CHAIRMAN CONAWAY, Thank you for your letter regarding H.R. 875, the ''Cross-Border Trade Enhancement Act of 2015.'' As you noted, the Committee on Agriculture has a jurisdictional interest in this bill.

I am most appreciative of your decision to waive formal consideration of H.R. 875 so that it may proceed expeditiously to the House floor. I acknowledge that although you waived formal consideration of the bill, the Committee on Agriculture is in no way waiving its jurisdiction over the subject matter contained in those provisions of the bill that fall within your Rule X jurisdiction. I would support your effort to seek appointment of an appropriate number of conferees on any House-Senate conference involving this legislation.

I will include a copy of our letters in the committee report on this legislation, as well as in the Congressional Record during consideration on the House floor.

Sincerely,

KEVIN BRADY,
Chairman.

The SPEAKER pro tempore. Without objection, the gentleman from Massachusetts (Mr. NEAL) will control the time.

There was no objection.

Mr. NEAL. Mr. Speaker, I yield myself such time as I may consume.

I stand in support of the Cross-Border Trade Enhancement Act of 2016.

This bill offers a pragmatic and bipartisan solution to a real and growing problem: Customs and Border Protection simply has not been able to keep pace, and has not been given the resources to keep pace, with the dramatic growth in travel into the United States.

In the last fiscal year, for example, the CBP processed more than 384 million passengers and more than $2.4 trillion of imported goods through our air, land, and sea ports, but the CBP's staffing levels have not kept pace with this growth over the years. The result has been substantial and unnecessary delays as passengers and cargo ships wait to be processed.

Not only is this a bipartisan issue, but just as importantly, I think it calls into meaning how we might solve some of the problems that confront America economically. A case in point: it is generally large businesses, medium-sized businesses, and small businesses that tend not to take a position in support of more government but which, in this instance, would ask for more government. There is nothing wrong with that inconsistency. In fact, I think, in this particular instance, it works quite well because they will ask for more agents for the purpose of moving cargo faster. I think that is an entirely reasonable position.

This bill will help to address those delays by increasing trade and travel efficiencies and by eliminating unnecessary redtape in the hiring process at no cost to the taxpayer.

This approach has already been tested, and it has passed the test. In 2013 and 2014, Congress authorized pilot programs, as Dr. BOUSTANY has noted, to enable the CBP to enter into agreements with private sector, State, and local government entities that would reimburse the CBP for customs-related personnel services at ports of entry. These public-private agreements are believed to have decreased wait times by an average of 30 percent at the ports at which they were implemented. The bill also allows for more of these agreements and for a longer period of time.

For these reasons, I support this bipartisan bill, and I urge my colleagues to vote for it later on this afternoon.

Mr. Speaker, I reserve the balance of my time.

Mr. BOUSTANY. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. HURD).

Mr. HURD of Texas. Mr. Speaker, I rise in support of H.R. 875, the Cross-Border Trade Enhancement Act.

This bipartisan bill is the product of significant work throughout the course of the 114th Congress across both Chambers and across committee jurisdiction to ensure that a program that many border communities rely upon continues to return dividends.

I am proud to represent over 800 miles of the U.S.-Mexico border, including the communities and the businesses that thrive on cross-border trade. Over the past two decades, our Nation's trade with Mexico has grown by leaps and bounds, much of it through our land ports of entry. In 2015 alone, Texas businesses exported $92 billion in goods and services to Mexico—that is $92 billion with a ''B''—more than the next four largest markets combined. However, border infrastructure has not kept up with the growth. The lack of infrastructure and staffing that is necessary to support increased levels of trade crossing into this country has a very real impact on those we serve and work with daily.

This legislation fixes the problem by empowering local leaders and increasing flexibility, with little to no cost to the Federal Government and taxpayers. By allowing local communities and organizations to form public-private partnerships with the Federal Government and to make improvements to our ports of entry, we are investing in the infrastructure that supports our economy. Similar legislation passed the House in a bipartisan manner earlier this year and passed out of the Senate unanimously.

The failure to capitalize on this momentum merely leaves this critical program adrift right when its benefits are about to be realized. Decreasing the time it takes to move goods and services safely across the border will have a tremendous economic impact on not only the region, but on our Nation.

I thank the leadership of fellow Texans and my friends, Senator CORNYN, Mr. CUELLAR, and Mr. O'ROURKE; and I urge my colleagues to support this legislation.

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Mr. NEAL. Mr. Speaker, I yield 5 minutes to the gentleman from Texas (Mr. CUELLAR), who has been a leader on this very issue and has helped to design the very product that is in front of us today, and I think that he can take great satisfaction from the bipartisan nature of the legislation that we are about to entertain.

Mr. CUELLAR. Mr. Speaker, I thank the gentleman from Massachusetts (Mr. NEAL) and his staff for helping to put this together. I appreciate it.

I also want to thank the gentleman from Louisiana (Mr. BOUSTANY) and his staff for putting this bill on a very fast-moving track.

And in particular, I want to thank my good old friend—and I say ''good old friend'' in a nice way—Chairman KEVIN BRADY. We go back to working together in the State legislature. We have been working in Texas on issues like this for so many years, and I certainly want to thank Chairman BRADY for his work and the bipartisan staff for moving this bill quickly.

In particular, I want to thank my colleagues. Mr. HURD over here, who has a lot of border and he has got a lot of ports of entry, I want to thank him for his leadership on this bill.

I also want to thank BETO O'ROURKE, my friend from El Paso, who also understands, just like Mr. HURD does, the importance of trade.

I thank our Senate sponsor, Senator CORNYN, who has done a great job on this particular bill.

The Cross-Border Trade Enhancement Act of 2016 is a bill that builds upon the work that Chairman JOHN CARTER and myself added in the appropriations bill back in 2013 and 2014 to ease the delays and improve the infrastructure at our Nation's land and sea and air ports of entry.

As has been said, trade and travel to the U.S. has been increasing for the last 10 years. In fiscal year 2015, our Nation saw 382 million travelers processed at the Nation's 328 land, sea, and air ports of entry. In particular I want to emphasize the land ports of entry. Over 80 percent of all of the people who come into the United States, all of the goods that come into the United States, come in through land ports of entry, and that is why this bill is very important.

As was mentioned a few minutes ago, $2.4 trillion of trade was processed at our ports of entry. And just as an example—and I know Mr. HURD mentioned it; I know Mr. O'ROURKE is going to mention it—in my port of entry, Laredo, for example, it is a small town of 250,000, but it handles 14,000 trailers a day of trade between the U.S. and Mexico. If you look at the largest customs districts, you have L.A., New York, and then you have Laredo. So this bill is very important to Laredo and the rest of the border itself.

Despite this growing trade that we have at our ports of entry, CBP staffing levels have been stagnant. Back in 2014, the Appropriations Committee and Congress authorized over $255 million to increase the CBP workforce, which includes hiring 2,000 new CBP officers. However, they have been struggling to hire those 2,000 CBP officers due to attrition, but also due to the long time that it takes to hire those new officers.

The other part that is important is, if you look at the land ports of entry, for example, there are a lot of challenges—and I am talking about the southern and the northern ports of entry that we have. In fact, it would cost us about $5 billion in capital improvements to make sure that we do this work.

What are we doing in Congress? Well, we are adding about $146 million a year to meet this $5 billion that we need. So at this rate of $146 million a year, it would take 34 years to meet that $5 billion that we need. Therefore, the Federal Government is not going to add those appropriations.

I understand money is tight. We need to bring in the local government and especially the private sector to make sure that we address the undersized facilities, the outmoded technologies that we have, the officer safety issues that we have, and the long wait times that we have, which I call parking lots, because a lot of times these trucks are waiting in the middle of the bridge.

Therefore, on sections 559 and 560, what we did is we said we are going to bring the private sector in, and it has worked well in doing this. We have seen—and I think it has been mentioned, but I will mention it again. We entered into 29 of those stakeholder reimbursement service agreements, and we saw more additional processing hours to make sure that we moved 3 million additional travelers and almost 460,000 new vehicles.

Again, this is going to help us.

What does this bill do? This bill will help us expand that pilot program in many ways and authorize it for 10 years. This bill will limit the number of reimbursable service agreements that we have at the ports of entry, but, more importantly, it is going to allow us to hire CBP officers faster. I know the chairman knows this very well. Imagine if we have this. We have got to bring officers into the CBP faster, and this is what this bill will do.

So again, I want to thank the House sponsors, KEVIN BRADY, Chairman MICHAEL MCCAUL, Mr. HURD, and Mr. O'ROURKE, and, of course, on the Senate side, Senator CORNYN and Senator KLOBUCHAR for making sure that we did it and that we are doing it in a bipartisan way.

I ask that we pass this bill.

Mr. BOUSTANY. Mr. Speaker, I yield 3 minutes to the gentleman from Nevada (Mr. AMODEI).

Mr. AMODEI. I thank my colleague from the Pelican State and also the ranking member from the Bay State.

Mr. Speaker, I am a bit nervous. I don't want to break up this Lone Star class reunion here, but speaking on behalf of a small place in the intermountain west, section 481 of H.R. 875 addresses a CBP staffing issue at smaller land port of entry airports.

As we all know, the CBP mission at our numerous ports of entry is growing, and adequate staffing at the larger ports needs to be augmented. However, airport authorities and smaller land ports of entry are also increasing their international passenger counts and need additional CBP personnel to adequately screen their passengers.

The language contained herein allows small land port airports to reimburse CBP the actual cost of assigning up to five more CBP screening personnel, thereby keeping screening times within reasonable limits for those air passengers. This language represents bicameral, bipartisan, nationwide consensus on a needed staffing reimbursement option for CBP. Similarly, I urge Members' bipartisan nationwide support.

God bless the State of Texas and the other 49 also.

Mr. NEAL. Mr. Speaker, I yield 5 minutes to the gentleman from Texas (Mr. O'ROURKE), another individual who has had a profound influence on this legislation and has had a longtime interest in the topic as well.

Mr. O'ROURKE. I thank the gentleman from Massachusetts, our new ranking member on the committee, for yielding and for his work on this important bill.

Mr. Speaker, there are few things as important for us in this Congress to work on as creating more jobs and sustaining those that we have right now. U.S.-Mexico trade today supports more than 6 million jobs in every single State of the Union, 500,000 jobs in the State of Texas alone, and one out of every four jobs in the community that I have the honor to represent, El Paso, Texas.

The men and women who serve in Customs and Border Protection, the officers in blue at our ports of entry, are understaffed and overstressed, and they need our help. What we are doing in this bill is allowing local communities and local stakeholders who have an interest in the success of our ports of entry and in U.S.-Mexico trade and in creating more jobs to fund the necessary overtime hours and infrastructure improvements at those ports.

I want to thank my colleagues from both sides of the aisle and in both Chambers—Senator CORNYN in the other Chamber, Members CUELLAR and HURD and others in this one—who see the wisdom in allowing local communities to fill the gap where government has been unable to do so.

Whether it is the $90 billion in U.S.-Mexico trade that crosses the El Paso-Ciudad Juarez ports of entry every year or the 32 million inspections that are conducted there, this is a way to grow our economy. It is a way to ensure that we are more secure because we know precisely who is coming in when we have the manpower and infrastructure to inspect all those who want to cross in here. We are allowing local communities and not the Federal Government to pick up the tab in a way that is going to benefit this country as a whole.

I couldn't help but notice the current chair of the House Veterans' Affairs Committee, the incoming chair, and the ranking member, who are all here. I know they are all pleased to see in this bill an expedited process to hire our veterans, to transition them from Active Duty service to meaningful employment as a Customs officer through an expedited process in this bill. That means we staff more of our CBP positions, we put more veterans to work, and we do better for this country.

This is a bill that should have the support of every single Member of this Congress, and I urge its quick passage.

Mr. BOUSTANY. Mr. Speaker, I have no other Members wishing to speak on the bill, and I am prepared to close.

I reserve the balance of my time.

Mr. NEAL. Mr. Speaker, I yield myself such time as I may consume.

I want to thank Dr. BOUSTANY, who has been a friend on the Ways and Means Committee. I assume this might be his last time handling legislation on the floor. He was great to work with over the years.

I take some satisfaction, Mr. Speaker, that having either been chairman or ranking member of the Tax Policy Subcommittee of the Committee on Ways and Means, that I simply wore them all down because, every 2 years, they would send somebody else over to share that responsibility.

Dr. BOUSTANY is a real gentleman. He has been a friend, and he has been a very nice guy to work with.

I yield back the balance of my time.

Mr. BOUSTANY. Mr. Speaker, I yield myself such time as I may consume.

I want to thank the gentleman from Massachusetts for his very, very kind words. It has been a true pleasure working with him on the Tax Policy Subcommittee. I want to congratulate him on becoming ranking member of the Ways and Means Committee. I know he will do a fabulous job. I am only sorry I won't be around next year to work with him and beyond. I congratulate him.

Godspeed, do a great job, and get tax reform done.

Mr. Speaker, I urge my colleagues to support H.R. 875, the Cross-Border Trade Enhancement Act of 2016, to strengthen our ability to enforce U.S. trade laws.

I am very pleased that our solution has such strong bipartisan support and makes good on our commitment to stop the flow of illicit goods while also facilitating legitimate trade that is vital to American economic competitiveness. I urge passage of this bill.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Louisiana (Mr. BOUSTANY) that the House suspend the rules and pass the bill, H.R. 875, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

EXTENDING WAIVER OF LIMITATIONS WITH RESPECT TO EXCLUDING FROM GROSS INCOME AMOUNTS RECEIVED BY WRONGFULLY INCARCERATED INDIVIDUALS

Mr. BOUSTANY. Mr. Speaker, I ask unanimous consent that the Committee on Ways and Means be discharged from further consideration of the bill (H.R. 6438) to extend the waiver of limitations with respect to excluding from gross income amounts received by wrongfully incarcerated individuals, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Louisiana?

There was no objection.

The text of the bill is as follows:

H.R. 6438

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. EXTENSION OF WAIVER OF LIMITATIONS WITH RESPECT TO EXCLUDING FROM GROSS INCOME AMOUNTS RECEIVED BY WRONGFULLY INCARCERATED INDIVIDUALS.

(a) IN GENERAL.—Section 304(d) of the Protecting Americans from Tax Hikes Act of 2015 is amended by striking ''1-year'' and inserting ''2-year''.

(b) TECHNICAL CORRECTION.—Section 304(d) of such Act is amended by striking ''application of this Act'' and inserting ''application of this section''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in section 304 of the Protecting Americans from Tax Hikes Act of 2015.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

JEFF MILLER AND RICHARD BLUMENTHAL VETERANS HEALTH CARE AND BENEFITS IMPROVEMENT ACT OF 2016

Mr. ROE of Tennessee. Mr. Speaker, I move to suspend the rules and pass the bill (H. R. 6416) to amend title 38, United States Code, to make certain improvements in the laws administered by the Secretary of Veterans Affairs, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6416

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Jeff Miller and Richard Blumenthal Veterans Health Care and Benefits Improvement Act of 2016''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. References to title 38, United States Code.

TITLE I—DISABILITY COMPENSATION MATTERS

Sec. 101. Expedited payment of survivors' benefits.
Sec. 102. Board of Veterans' Appeals video hearings.
Sec. 103. Requirement that Secretary of Veterans Affairs publish the average time required to adjudicate early-filed and later-filed appeals.
Sec. 104. Comptroller General review of claims processing performance of regional offices of Veterans Benefits Administration.
Sec. 105. Report on staffing levels at regional offices of Department of Veterans Affairs under National Work Queue.
Sec. 106. Inclusion in annual budget submission of information on capacity of Veterans Benefits Administration to process benefits claims.
Sec. 107. Report on plans of Secretary of Veterans Affairs to reduce inventory of non-rating workload; sense of Congress regarding Monday Morning Workload Report.
Sec. 108. Annual report on progress in implementing Veterans Benefits Management System.
Sec. 109. Improvements to authority for performance of medical disabilities examinations by contract physicians.
Sec. 110. Independent review of process by which Department of Veterans Affairs assesses impairments that result from traumatic brain injury for purposes of awarding disability compensation.
Sec. 111. Reports on claims for disability compensation.
Sec. 112. Sense of Congress regarding American veterans disabled for life.
Sec. 113. Sense of Congress on submittal of information relating to claims for disabilities incurred or aggravated by military sexual trauma.

TITLE II—UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

Sec. 201. Extension of temporary increase in number of judges on United States Court of Appeals for Veterans Claims.
Sec. 202. Life insurance program relating to judges of United States Court of Appeals for Veterans Claims.
Sec. 203. Voluntary contributions to enlarge survivors' annuity.
Sec. 204. Selection of chief judge of United States Court of Appeals for Veterans Claims.

TITLE III—BURIAL BENEFITS AND OTHER MATTERS

Sec. 301. Expansion of eligibility for headstones, markers, and medallions.
Sec. 302. Expansion of Presidential Memorial Certificate program.
Sec. 303. Department of Veterans Affairs study on matters relating to burial of unclaimed remains of veterans in national cemeteries.
Sec. 304. Study on provision of interments in veterans' cemeteries during weekends.
Sec. 305. Honoring as veterans certain persons who performed service in the reserve components of the Armed Forces.

TITLE IV—EDUCATIONAL ASSISTANCE AND VOCATIONAL REHABILITATION

Sec. 401. Clarification of eligibility for Marine Gunnery Sergeant John David Fry Scholarship.
Sec. 402. Approval of courses of education and training for purposes of the vocational rehabilitation program of the Department of Veterans Affairs.
Sec. 403. Authority to prioritize vocational rehabilitation services based on need.
Sec. 404. Reports on progress of students receiving Post-9/11 Educational Assistance.
Sec. 405. Recodification and improvement of election process for Post-9/11 Educational Assistance Program.
Sec. 406. Work-study allowance.
Sec. 407. Centralized reporting of veteran enrollment by certain groups, districts, and consortiums of educational institutions.
Sec. 408. Role of State approving agencies.
Sec. 409. Modification of requirements for approval for purposes of educational assistance provided by Department of Veterans Affairs of programs designed to prepare individuals for licensure or certification.
Sec. 410. Criteria used to approve courses.
Sec. 411. Compliance surveys.
Sec. 412. Modification of reductions in reporting fee multipliers for payments by Secretary of Veterans Affairs to educational institutions.
Sec. 413. Composition of Veterans' Advisory Committee on Education.
Sec. 414. Survey of individuals using their entitlement to educational assistance under the educational assistance programs administered by the Secretary of Veterans Affairs.
Sec. 415. Department of Veterans Affairs provision of information on articulation agreements between institutions of higher learning.
Sec. 416. Retention of entitlement to educational assistance during certain additional periods of active duty.
Sec. 417. Technical amendment relating to in-state tuition rate for individuals to whom entitlement is transferred under all-volunteer force educational assistance program and post-9/11 educational assistance.
Sec. 418. Study on the effectiveness of veterans transition efforts.

TITLE V—SMALL BUSINESS AND EMPLOYMENT MATTERS

Sec. 501. Modification of treatment under contracting goals and preferences of Department of Veterans Affairs.
Sec. 502. Longitudinal study of job counseling, training, and placement service for veterans.
Sec. 503. Limitation on administrative leave for employees of Department of Veterans Affairs.
Sec. 504. Required coordination between Directors for Veterans' Employment and Training with State departments of labor and veterans affairs.

TITLE VI—HEALTH CARE MATTERS

Subtitle A—Medical Care

Sec. 601. Requirement for advance appropriations for the Medical Community Care account of the Department of Veterans Affairs.
Sec. 602. Improved access to appropriate immunizations for veterans.
Sec. 603. Priority of medal of honor recipients in health care system of Department of Veterans Affairs.
Sec. 604. Requirement that Department of Veterans Affairs collect health-plan contract information from veterans.
Sec. 605. Mental health treatment for veterans who served in classified missions.
Sec. 606. Examination and treatment by Department of Veterans Affairs for emergency medical conditions and women in labor.

Subtitle B—Veterans Health Administration

Sec. 611. Time period covered by annual report on Readjustment Counseling Service.
Sec. 612. Annual report on Veterans Health Administration and furnishing of hospital care, medical services, and nursing home care.
Sec. 613. Expansion of qualifications for licensed mental health counselors of the Department of Veterans Affairs to include doctoral degrees.

Sec. 614. Modification of hours of employment for physicians employed by the Department of Veterans Affairs.
Sec. 615. Repeal of compensation panels to determine market pay for physicians and dentists.
Sec. 616. Clarification regarding liability for breach of agreement under Department of Veterans Affairs Employee Incentive Scholarship Program.
Sec. 617. Extension of period for increase in graduate medical education residency positions at medical facilities of the Department of Veterans Affairs.
Sec. 618. Report on public access to research by Department of Veterans Affairs.
Sec. 619. Authorization of certain major medical facility projects of the Department of Veterans Affairs.

Subtitle C—Toxic Exposure

Sec. 631. Definitions.
Sec. 632. National Academy of Medicine assessment on research relating to the descendants of individuals with toxic exposure.
Sec. 633. Advisory board on research relating to health conditions of descendants of veterans with toxic exposure while serving in the Armed Forces.
Sec. 634. Research relating to health conditions of descendants of veterans with toxic exposure while serving in the Armed Forces.

TITLE VII—HOMELESSNESS MATTERS

Subtitle A—Access of Homeless Veterans to Benefits

Sec. 701. Expansion of definition of homeless veteran for purposes of benefits under the laws administered by the Secretary of Veterans Affairs.
Sec. 702. Authorization to furnish certain benefits to homeless veterans with discharges or releases under other than honorable conditions.
Sec. 703. Waiver of minimum period of continuous active duty in Armed Forces for certain benefits for homeless veterans.
Sec. 704. Training of personnel of the Department of Veterans Affairs and grant recipients.
Sec. 705. Regulations.
Sec. 706. Effective date.

Subtitle B—Other Homelessness Matters

Sec. 711. Increased per diem payments for transitional housing assistance that becomes permanent housing for homeless veterans.
Sec. 712. Program to improve retention of housing by formerly homeless veterans and veterans at risk of becoming homeless.
Sec. 713. Establishment of National Center on Homelessness Among Veterans.
Sec. 714. Requirement for Department of Veterans Affairs to assess comprehensive service programs for homeless veterans.
Sec. 715. Report on outreach relating to increasing the amount of housing available to veterans.

TITLE VIII—OTHER MATTERS

Sec. 801. Department of Veterans Affairs construction reforms.
Sec. 802. Technical and clerical amendments.

SEC. 2. REFERENCES TO TITLE 38, UNITED STATES CODE.

Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of title 38, United States Code.

TITLE I—DISABILITY COMPENSATION MATTERS

SEC. 101. EXPEDITED PAYMENT OF SURVIVORS' BENEFITS.

(a) IN GENERAL.—Section 5101(a)(1) is amended—

(1) by striking ''A specific'' and inserting ''(A) Except as provided in subparagraph (B), a specific''; and

(2) by adding at the end the following new subparagraph:

''(B)(i) The Secretary may pay benefits under chapters 13 and 15 and sections 2302, 2307, and 5121 of this title to a survivor of a veteran who has not filed a formal claim if the Secretary determines that the record contains sufficient evidence to establish the entitlement of the survivor to such benefits.

''(ii) For purposes of this subparagraph and section 5110 of this title, the earlier of the following dates shall be treated as the date of the receipt of the survivor's application for benefits described in clause (i):

''(I) The date on which the survivor of a veteran (or the representative of such a survivor) notifies the Secretary of the death of the veteran through a death certificate or other relevant evidence that establishes entitlement to survivors' benefits identified in clause (i).

''(II) The head of any other department or agency of the Federal Government notifies the Secretary of the death of the veteran.

''(iii) In notifying the Secretary of the death of a veteran as described in clause (ii)(I), the survivor (or the representative of such a survivor) may submit to the Secretary additional documents relating to such death without being required to file a formal claim.''.

(b) REPORT.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on benefits paid pursuant to covered claims.

(2) CONTENTS.—The report under paragraph (1) shall include the following:

(A) The number of covered claims adjudicated during the one-year period preceding the date of the report, disaggregated by the following:

(i) Claims in which the claimant was entitled to benefits under chapters 13 or 15 or sections 2302, 2307, or 5121 of title 38, United States Code, on the basis of the claimant's status as the spouse of a deceased veteran.

(ii) Claims in which the claimant was entitled to such benefits on the basis of the claimant's status as the child of a deceased veteran.

(iii) Claims in which the claimant was entitled to such benefits on the basis of the claimant's status as the parent of a deceased veteran.

(B) The number of covered claims during such period for which such benefits were not awarded, disaggregated by clauses (i) through (iii) of subparagraph (A).

(C) A comparison of the accuracy and timeliness of covered claims adjudicated during such period with noncovered claims filed by survivors of a veteran.

(D) The findings of the Secretary with respect to adjudicating covered claims.

(E) Such recommendations as the Secretary may have for legislative or administrative action to improve the adjudication of claims submitted to the Secretary for benefits under chapters 13 and 15 and sections 2302, 2307, and 5121 of title 38, United States Code.

(3) COVERED CLAIM DEFINED.—In this subsection, the term ''covered claim'' means a claim covered by section 5101(a)(1)(B) of title 38, United States Code, as added by subsection (a).

(c) EFFECTIVE DATE.—The amendments made by subsection (a) shall apply with respect to claims for benefits based on a death occurring on or after the date of the enactment of this Act.

SEC. 102. BOARD OF VETERANS' APPEALS VIDEO HEARINGS.

Section 7107 is amended—

(1) in subsection (d), by amending paragraph (1) to read as follows:

''(1)(A)(i) Upon request for a hearing, the Board shall determine, for purposes of scheduling the hearing for the earliest possible date, whether a hearing before the Board will be held at its principal location or at a facility of the Department or other appropriate Federal facility located within the area served by a regional office of the Department.

''(ii) The Board shall also determine whether to provide a hearing through the use of the facilities and equipment described in subsection (e)(1) or by the appellant personally appearing before a Board member or panel.

''(B)(i) The Board shall notify the appellant of the determinations of the location and type of hearing made under subparagraph (A).

''(ii) Upon notification, the appellant may request a different location or type of hearing as described in such subparagraph.

''(iii) If so requested, the Board shall grant such request and ensure that the hearing is scheduled at the earliest possible date without any undue delay or other prejudice to the appellant.''; and

(2) in subsection (e), by amending paragraph (2) to read as follows:

''(2) Any hearing provided through the use of the facilities and equipment described in paragraph (1) shall be conducted in the same manner as, and shall be considered the equivalent of, a personal hearing.''.

SEC. 103. REQUIREMENT THAT SECRETARY OF VETERANS AFFAIRS PUBLISH THE AVERAGE TIME REQUIRED TO ADJUDICATE EARLY-FILED AND LATER-FILED APPEALS.

(a) PUBLICATION REQUIREMENT.—

(1) IN GENERAL.—On an ongoing basis, the Secretary of Veterans Affairs shall make available to the public the following:

(A) The average length of time to adjudicate an early-filed appeal.

(B) The average length of time to adjudicate a later-filed appeal.

(2) EFFECTIVE DATE.—Paragraph (1) shall take effect on the date that is one year after the date of the enactment of this Act and shall apply until the date that is three years after the date of the enactment of this Act.

(b) REPORT.—

(1) IN GENERAL.—Not later than 39 months after the date of the enactment of this Act, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on whether publication pursuant to subsection (a)(1) has had an effect on the number of early-filed appeals filed.

(2) CONTENTS.—The report required by paragraph (1) shall include the following:

(A) The number of appeals and early-filed appeals that were filed during the one-year

period ending on the effective date specified in subsection (a)(2).

(B) The number of appeals and early-filed appeals that were filed during the one-year period ending on the date that is two years after the effective date specified in subsection (a)(2).

(c) DEFINITIONS.—In this section:

(1) APPEAL.—The term ''appeal'' means a notice of disagreement filed pursuant to section 7105(a) of title 38, United States Code, in response to notice of the result of an initial review or determination regarding a claim for a benefit under a law administered by the Secretary of Veterans Affairs.

(2) EARLY-FILED.—The term ''early-filed'' with respect to an appeal means that the notice of disagreement was filed not more than 180 days after the date of mailing of the notice of the result of the initial review or determination described in paragraph (1).

(3) LATER-FILED.—The term ''later-filed'' with respect to an appeal means the notice of disagreement was filed more than 180 days after the date of mailing of the notice of the result of the initial review or determination described in paragraph (1).

SEC. 104. COMPTROLLER GENERAL REVIEW OF CLAIMS PROCESSING PERFORMANCE OF REGIONAL OFFICES OF VETERANS BENEFITS ADMINISTRATION.

(a) REVIEW REQUIRED.—Not later than 15 months after the effective date specified in subsection (e), the Comptroller General of the United States shall complete a review of the regional offices of the Veterans Benefits Administration to help the Veterans Benefits Administration achieve more consistent performance in the processing of claims for disability compensation.

(b) ELEMENTS.—The review required by subsection (a) shall include the following:

(1) An identification of the following:

(A) The factors, including management practices, that distinguish higher performing regional offices from other regional offices with respect to claims for disability compensation.

(B) The best practices employed by higher performing regional offices that distinguish the performance of such offices from other regional offices.

(C) Such other management practices or tools as the Comptroller General determines could be used to improve the performance of regional offices.

(2) An assessment of the effectiveness of communication with respect to the processing of claims for disability compensation between the regional offices and veterans service organizations and caseworkers employed by Members of Congress.

(c) REPORT.—Not later than 15 months after the effective date specified in subsection (e), the Comptroller General shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the results of the review completed under subsection (a).

(d) VETERANS SERVICE ORGANIZATION DEFINED.—In this section, the term ''veterans service organization'' means any organization recognized by the Secretary for the representation of veterans under section 5902 of title 38, United States Code.

(e) EFFECTIVE DATE.—This section shall take effect on the date that is 270 days after the date of the enactment of this Act.

SEC. 105. REPORT ON STAFFING LEVELS AT REGIONAL OFFICES OF DEPARTMENT OF VETERANS AFFAIRS UNDER NATIONAL WORK QUEUE.

Not later than 15 months after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the criteria and procedures that the Secretary will use to determine appropriate staffing levels at the regional offices of the Department under the National Work Queue for the distribution of the claims processing workload.

SEC. 106. INCLUSION IN ANNUAL BUDGET SUBMISSION OF INFORMATION ON CAPACITY OF VETERANS BENEFITS ADMINISTRATION TO PROCESS BENEFITS CLAIMS.

(a) IN GENERAL.—Along with the supporting information included in the budget submitted to Congress by the President pursuant to section 1105(a) of title 31, United States Code, the President shall include information on the capacity of the Veterans Benefits Administration to process claims for benefits under the laws administered by the Secretary of Veterans Affairs, including information described in subsection (b), during the fiscal year covered by the budget with which the information is submitted.

(b) INFORMATION DESCRIBED.—The information described in this subsection is the following:

(1) An estimate of the average number of claims for benefits under the laws administered by the Secretary, excluding such claims completed during mandatory overtime, that a single full-time equivalent employee of the Administration should be able to process in a year, based on the following:

(A) A time and motion study that the Secretary shall conduct on the processing of such claims.

(B) Such other information relating to such claims as the Secretary considers appropriate.

(2) A description of the actions the Secretary will take to improve the processing of such claims.

(3) An assessment of the actions identified by the Secretary under paragraph (2) in the previous year and an identification of the effects of those actions.

(c) EFFECTIVE DATE.—This section shall apply with respect to any budget submitted as described in subsection (a) with respect to any fiscal year after fiscal year 2018.

SEC. 107. REPORT ON PLANS OF SECRETARY OF VETERANS AFFAIRS TO REDUCE INVENTORY OF NON-RATING WORKLOAD; SENSE OF CONGRESS REGARDING MONDAY MORNING WORKLOAD REPORT.

(a) REPORT.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report that details the plans of the Secretary to reduce the inventory of work items listed in the Monday Morning Workload Report under End Products 130, 137, 173, 290, 400, 600, 607, 690, 930, and 960.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of Veterans Affairs should include in each Monday Morning Workload Report published by the Secretary the following:

(1) With respect to each regional office of the Department of Veterans Affairs, the following:

(A) The number of fully developed claims for benefits under the laws administered by the Secretary that have been received.

(B) The number of claims described in subparagraph (A) that are pending a decision.

(C) The number of claims described in subparagraph (A) that have been pending a decision for more than 125 days.

(2) Enhanced information on appeals of decisions relating to claims for benefits under the laws administered by the Secretary that are pending, including information contained in the reports of the Department entitled ''Appeals Pending'' and ''Appeals Workload By Station''.

SEC. 108. ANNUAL REPORT ON PROGRESS IN IMPLEMENTING VETERANS BENEFITS MANAGEMENT SYSTEM.

(a) IN GENERAL.—Not later than each of one year, two years, and three years after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the progress of the Secretary in implementing the Veterans Benefits Management System.

(b) CONTENTS.—Each report required by subsection (a) shall include the following:

(1) An assessment of the current functionality of the Veterans Benefits Management System.

(2) Recommendations submitted to the Secretary by employees of the Department of Veterans Affairs who are involved in processing claims for benefits under the laws administered by the Secretary, including veterans service representatives, rating veterans service representatives, and decision review officers, for such legislative or administrative action as the employees consider appropriate to improve the processing of such claims.

(3) Recommendations submitted to the Secretary by veterans service organizations who use the Veterans Benefits Management System for such legislative or administrative action as the veterans service organizations consider appropriate to improve such system.

(c) VETERANS SERVICE ORGANIZATION DEFINED.—In this section, the term ''veterans service organization'' means any organization recognized by the Secretary for the representation of veterans under section 5902 of title 38, United States Code.

SEC. 109. IMPROVEMENTS TO AUTHORITY FOR PERFORMANCE OF MEDICAL DISABILITIES EXAMINATIONS BY CONTRACT PHYSICIANS.

(a) LICENSURE OF CONTRACT PHYSICIANS.—

(1) TEMPORARY AUTHORITY.—Section 704 of the Veterans Benefits Act of 2003 (38 U.S.C. 5101 note) is amended—

(A) by redesignating subsection (d) as subsection (e); and

(B) by inserting after subsection (c) the following new subsection (d):

''(d) LICENSURE OF CONTRACT PHYSICIANS.—

''(1) IN GENERAL.—Notwithstanding any law regarding the licensure of physicians, a physician described in paragraph (2) may conduct an examination pursuant to a contract entered into under subsection (b) at any location in any State, the District of Columbia, or a Commonwealth, territory, or possession of the United States, so long as the examination is within the scope of the authorized duties under such contract.

''(2) PHYSICIAN DESCRIBED.—A physician described in this paragraph is a physician who—

''(A) has a current unrestricted license to practice the health care profession of the physician;

''(B) is not barred from practicing such health care profession in any State, the District of Columbia, or a Commonwealth, territory, or possession of the United States; and

''(C) is performing authorized duties for the Department of Veterans Affairs pursuant to a contract entered into under subsection (b).''.

(2) PILOT PROGRAM.—Section 504 of the Veterans' Benefits Improvement Act of 1996 (38 U.S.C. 5101 note) is amended—

(A) by redesignating subsections (c) and (d) as subsections (d) and (e), respectively; and

(B) by inserting after subsection (b) the following new subsection (c):

''(c) LICENSURE OF CONTRACT PHYSICIANS.—

''(1) IN GENERAL.—Notwithstanding any law regarding the licensure of physicians, a physician described in paragraph (2) may conduct an examination pursuant to a contract entered into under subsection (a) at any location in any State, the District of Columbia, or a Commonwealth, territory, or possession of the United States, so long as the examination is within the scope of the authorized duties under such contract.

''(2) PHYSICIAN DESCRIBED.—A physician described in this paragraph is a physician who—

''(A) has a current unrestricted license to practice the health care profession of the physician;

''(B) is not barred from practicing such health care profession in any State, the District of Columbia, or a Commonwealth, territory, or possession of the United States; and

''(C) is performing authorized duties for the Department of Veterans Affairs pursuant to a contract entered into under subsection (a).''.

SEC. 110. INDEPENDENT REVIEW OF PROCESS BY WHICH DEPARTMENT OF VETERANS AFFAIRS ASSESSES IMPAIRMENTS THAT RESULT FROM TRAUMATIC BRAIN INJURY FOR PURPOSES OF AWARDING DISABILITY COMPENSATION.

(a) AGREEMENT.—

(1) IN GENERAL.—The Secretary of Veterans Affairs shall seek to enter into an agreement with the National Academies of Sciences, Engineering, and Medicine to perform the services covered by this section.

(2) TIMING.—The Secretary shall seek to enter into the agreement described in paragraph (1) not later than 9 months after the date of the enactment of this Act.

(b) COMPREHENSIVE REVIEW.—

(1) IN GENERAL.—Under an agreement between the Secretary and the National Academies of Sciences, Engineering, and Medicine under this section, the National Academies of Sciences, Engineering, and Medicine shall conduct a comprehensive review of examinations furnished by the Department of Veterans Affairs to individuals who submit claims to the Secretary for compensation under chapter 11 of title 38, United States Code, for traumatic brain injury to assess the impairments of such individuals relating to such injury.

(2) ELEMENTS.—The comprehensive review carried out pursuant to paragraph (1) shall include the following:

(A) A determination of the adequacy of the tools and protocols used by the Department to provide examinations described in paragraph (1).

(B) A determination of which credentials are necessary for health care specialists and providers to perform such portions of such examinations that relate to an assessment of all disabling effects.

(3) GROUP OF EXPERIENCED HEALTH CARE PROVIDERS.—In carrying out the comprehensive review pursuant to paragraph (1), the National Academies of Sciences, Engineering, and Medicine shall convene a group of relevant experts, including experts in clinical neuropsychology, psychiatry, physiatry, neurosurgery, and neurology.

(c) REPORT.—

(1) IN GENERAL.—Not later than 540 days after the date on which the Secretary enters into an agreement under subsection (a)(1), the Secretary shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a report on the comprehensive review conducted under this section.

(2) ELEMENTS.—The report submitted under paragraph (1) shall include the following:

(A) The findings of the National Academies of Sciences, Engineering, and Medicine with respect to the comprehensive review conducted under this section.

(B) Such recommendations for legislative or administrative action as the National Academies of Sciences, Engineering, and Medicine may have for the improvement of the adjudication of claims described in subsection (b)(1).

(d) ALTERNATE CONTRACT ORGANIZATION.—

(1) IN GENERAL.—If the Secretary is unable within the period prescribed in subsection (a)(2) to enter into an agreement described in subsection (a)(1) with the National Academies of Sciences, Engineering, and Medicine on terms acceptable to the Secretary, the Secretary shall seek to enter into such an agreement with another appropriate organization that—

(A) is not part of the Government;

(B) operates as a not-for-profit entity; and

(C) has expertise and objectivity comparable to that of the Health and Medicine Division of the National Academies of Sciences, Engineering, and Medicine.

(2) TREATMENT.—If the Secretary enters into an agreement with another organization as described in paragraph (1), any reference in this section to the National Academies of Sciences, Engineering, and Medicine shall be treated as a reference to the other organization.

SEC. 111. REPORTS ON CLAIMS FOR DISABILITY COMPENSATION.

(a) REPORT ON REASONABLY RAISED CLAIMS.—Not later than 540 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a report on the policies of the Department of Veterans Affairs with respect to processing reasonably raised unrelated claims. Such report shall include—

(1) any statistics on how frequently such unrelated claims are identified by the Secretary;

(2) how frequently the Secretary notifies claimants about potential unrelated claims; and

(3) how often the claimant later submits a claim for the condition described by the unrelated claim.

(b) ANNUAL REPORTS ON COMPLETE AND INCOMPLETE CLAIMS.—During the five-year period beginning on the date of the enactment of this Act, the Secretary shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives annual reports on complete and incomplete claims for disability compensation submitted to the Secretary. Each such report shall include, for the one-year period covered by the report—

(1) the total number of claims submitted to the Secretary;

(2) the total number of incomplete claims submitted to the Secretary;

(3) the total number of complete claims submitted to the Secretary;

(4) the total number of forms indicating an intent to file a claim for benefits submitted to the Secretary;

(5) the total number of electronically filed claims submitted to the Secretary;

(6) the total number of fully developed claims submitted to the Secretary;

(7) the total number of claims submitted to the Secretary that are not complete claims but that the Secretary treats as a request by the claimant for a form to file a claim; and

(8) of the total number of claims identified under paragraph (7), the percent for which the Secretary notified the claimant of the need to file a complete claim.

(c) DEFINITIONS.—In this section:

(1) The term ''claimant'' has the meaning given such term in section 5100 of title 38, United States Code, and includes a representative of a claimant.

(2) The term ''reasonably raised unrelated claim'' means a claim for disability compensation under the laws administered by the Secretary of Veterans Affairs that, in addition to the condition for which such claim is made, includes evidence of a separate condition that is not specifically identified as part of the claim but may be inferred or logically placed at issue upon a sympathetic reading of the claim and the record developed with respect to that claim.

SEC. 112. SENSE OF CONGRESS REGARDING AMERICAN VETERANS DISABLED FOR LIFE.

(a) FINDINGS.—Congress finds the following:

(1) There are at least 4,200,000 veterans currently living with service-connected disabilities.

(2) As a result of their service, many veterans are permanently disabled throughout their lives and in many cases must rely on the support of their families and friends when these visible and invisible burdens become too much to bear alone.

(3) October 5, which is the anniversary of the dedication of the American Veterans Disabled for Life Memorial, has been recognized as an appropriate day on which to honor American veterans disabled for life each year.

(b) SENSE OF CONGRESS.—Congress—

(1) expresses its appreciation to the men and women left permanently wounded, ill, or injured as a result of their service in the Armed Forces;

(2) supports the annual recognition of American veterans disabled for life each year; and

(3) encourages the American people to honor American veterans disabled for life each year with appropriate programs and activities.

SEC. 113. SENSE OF CONGRESS ON SUBMITTAL OF INFORMATION RELATING TO CLAIMS FOR DISABILITIES INCURRED OR AGGRAVATED BY MILITARY SEXUAL TRAUMA.

(a) IN GENERAL.—It is the sense of Congress that the Secretary of Veterans Affairs should submit to Congress information on the covered claims submitted to the Secretary during each fiscal year, including the information specified in subsection (b).

(b) ELEMENTS.—The information specified in this subsection with respect to each fiscal year is the following:

(1) The number of covered claims submitted to or considered by the Secretary during such fiscal year.

(2) Of the covered claims under paragraph (1), the number and percentage of such claims—

(A) submitted by each sex;

(B) that were approved, including the number and percentage of such approved claims submitted by each sex; and

(C) that were denied, including the number and percentage of such denied claims submitted by each sex.

(3) Of the covered claims under paragraph (1) that were approved, the number and percentage, listed by each sex, of claims assigned to each rating percentage of disability.

(4) Of the covered claims under paragraph (1) that were denied—

(A) the three most common reasons given by the Secretary under section 5104(b)(1) of title 38, United States Code, for such denials; and

(B) the number of denials that were based on the failure of a veteran to report for a medical examination.

(5) The number of covered claims that, as of the end of such fiscal year, are pending and, separately, the number of such claims on appeal.

(6) The average number of days that covered claims take to complete beginning on the date on which the claim is submitted.

(7) A description of the training that the Secretary provides to employees of the Veterans Benefits Administration specifically with respect to covered claims, including the frequency, length, and content of such training.

(c) DEFINITIONS.—In this section:

(1) The term ''covered claims'' means claims for disability compensation submitted to the Secretary based on a mental health condition alleged to have been incurred or aggravated by military sexual trauma.

(2) The term ''military sexual trauma'' shall have the meaning specified by the Secretary for purposes of this section and shall include ''sexual harassment'' (as so specified).

TITLE II—UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

SEC. 201. EXTENSION OF TEMPORARY INCREASE IN NUMBER OF JUDGES ON UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS.

(a) IN GENERAL.—Section 7253(i)(2) is amended by striking ''January 1, 2013'' and inserting ''January 1, 2021''.

(b) REPORT.—

(1) IN GENERAL.—Not later than June 30, 2020, the chief judge of the United States Court of Appeals for Veterans Claims shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the temporary expansions of the Court under section 7253 of title 38, United States Code.

(2) CONTENTS.—The report required by paragraph (1) shall include the following:

(A) An assessment of the effect of the expansions on ensuring appeals are handled in a timely manner.

(B) A description of the ways in which the complexity levels of the appeals acted on by the Court may have changed based on service during recent conflicts compared to those based on service from previous eras.

(C) A recommendation on whether the number of judges should be adjusted at the end of the temporary expansion period, including statistics, projections, trend analyses, and other information to support the recommendation.

SEC. 202. LIFE INSURANCE PROGRAM RELATING TO JUDGES OF UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS.

(a) IN GENERAL.—Section 7281 is amended by adding at the end the following:

''(j) For purposes of chapter 87 of title 5, a judge who is in regular active service and a judge who is retired under section 7296 of this title or under chapter 83 or 84 of title 5 shall be treated as an employee described in section 8701(a)(5) of title 5.

''(k) Notwithstanding any other provision of law, the Court may pay on behalf of its judges, who are age 65 or older, any increase in the cost of Federal Employees' Group Life Insurance imposed after April 24, 1999, including any expenses generated by such payments, as authorized by the chief judge of the Court in a manner consistent with such payment authorized by the Judicial Conference of the United States pursuant to section 604(a)(5) of title 28.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to any payment made on or after the first day of the first applicable pay period beginning on or after the date of the enactment of this Act.

SEC. 203. VOLUNTARY CONTRIBUTIONS TO ENLARGE SURVIVORS' ANNUITY.

Section 7297 is amended by adding at the end the following new subsection:

''(p)(1) A covered judge who makes an election under subsection (b) may purchase, in three-month increments, up to an additional year of service credit for each year of Federal judicial service completed, under the terms set forth in this section.

''(2) In this subsection, the term 'covered judge' means any of the following:

''(A) A judge in regular active service.

''(B) A retired judge who is a recall-eligible retired judge pursuant to subsection (a) of section 7257 of this title.

''(C) A retired judge who would be a recall-eligible retired judge pursuant to subsection (a) of section 7257 but for—

''(i) meeting the aggregate recall service requirements under subsection (b)(3) of such section; or

''(ii) being permanently disabled as described by subsection (b)(4) of such section.''.

SEC. 204. SELECTION OF CHIEF JUDGE OF UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS.

(a) IN GENERAL.—Section 7253(d) is amended—

(1) in paragraph (1)—

(A) in subparagraph (A), by striking ''and'';

(B) by redesignating subparagraph (B) as subparagraph (C); and

(C) by inserting after subparagraph (A) the following new subparagraph (B):

''(B) have at least three years remaining in term of office; and''; and

(2) by amending paragraph (2) to read as follows:

''(2)(A) In any case in which there is no judge of the Court in regular active service who meets the requirements under paragraph (1), the judge of the Court in regular active service who is senior in commission and meets subparagraph (A) or (B) and subparagraph (C) of paragraph (1) shall act as the chief judge.

''(B) In any case under subparagraph (A) of this paragraph in which there is no judge of the Court in regular active service who meets subparagraph (A) or (B) and subparagraph (C) of paragraph (1), the judge of the Court in regular active service who is senior in commission and meets subparagraph (C) shall act as the chief judge.''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall apply with respect to the selection of a chief judge occurring on or after January 1, 2020.

TITLE III—BURIAL BENEFITS AND OTHER MATTERS

SEC. 301. EXPANSION OF ELIGIBILITY FOR HEADSTONES, MARKERS, AND MEDALLIONS.

Section 2306(d) is amended—

(1) by striking paragraph (4) and inserting the following new paragraph:

''(4)(A) In lieu of furnishing a headstone or marker under this subsection to a deceased individual described in subparagraph (B), the Secretary may furnish, upon request, a medallion or other device of a design determined by the Secretary to signify the deceased individual's status as a veteran, to be attached to a headstone or marker furnished at private expense.

''(B) A deceased individual described in this subsection is an individual who—

''(i) served in the Armed Forces on or after April 6, 1917; and

''(ii) is eligible for a headstone or marker furnished under paragraph (1) (or would be so eligible but for the date of the death of the individual).''; and

(2) by adding at the end the following new paragraph:

''(5)(A) In carrying out this subsection with respect to a deceased individual described in subparagraph (C), the Secretary shall furnish, upon request, a headstone or marker under paragraph (1) or a medallion under paragraph (4) that signifies the deceased's status as a medal of honor recipient.

''(B) If the Secretary furnished a headstone, marker, or medallion under paragraph (1) or (4) for a deceased individual described in subparagraph (C) that does not signify the deceased's status as a medal of honor recipient, the Secretary shall, upon request, replace such headstone, marker, or medallion with a headstone, marker, or medallion, as the case may be, that so signifies the deceased's status as a medal of honor recipient.

''(C) A deceased individual described in this subparagraph is a deceased individual who—

''(i) served in the Armed Forces on or after April 6, 1917;

''(ii) is eligible for a headstone or marker furnished under paragraph (1) or a medallion furnished under paragraph (4) (or would be so eligible for such headstone, marker, or medallion but for the date of the death of the individual); and

''(iii) was awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14 (including posthumously).

''(D) In this paragraph, the term 'medal of honor recipient' means an individual who is awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14.''.

SEC. 302. EXPANSION OF PRESIDENTIAL MEMORIAL CERTIFICATE PROGRAM.

(a) IN GENERAL.—Section 112(a) is amended by striking ''veterans,'' and all that follows through ''service,'' and inserting the following: ''persons eligible for burial in a national cemetery by reason of any of paragraphs (1), (2), (3), or (7) of section 2402(a) of this title,''.

(b) APPLICATION.—The amendment made by subsection (a) shall apply with respect to the death of a person eligible for burial in a national cemetery by reason of paragraph (1), (2), (3), or (7) of section 2402(a) of title 38, United States Code, occurring before, on, or after the date of the enactment of this Act.

SEC. 303. DEPARTMENT OF VETERANS AFFAIRS STUDY ON MATTERS RELATING TO BURIAL OF UNCLAIMED REMAINS OF VETERANS IN NATIONAL CEMETERIES.

(a) STUDY AND REPORT REQUIRED.—Not later than one year after the effective date specified in subsection (d), the Secretary of Veterans Affairs shall—

(1) complete a study on matters relating to the interring of unclaimed remains of veterans in national cemeteries under the control of the National Cemetery Administration; and

(2) submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the findings of the Secretary with respect to the study required under paragraph (1).

(b) MATTERS STUDIED.—The matters studied under subsection (a)(1) shall include the following:

(1) Determining the scope of issues relating to unclaimed remains of veterans, including an estimate of the number of unclaimed remains of veterans.

(2) Assessing the effectiveness of the procedures of the Department of Veterans Affairs for working with persons or entities having custody of unclaimed remains to facilitate interment of unclaimed remains of veterans in national cemeteries under the control of the National Cemetery Administration.

(3) Assessing State and local laws that affect the ability of the Secretary to inter unclaimed remains of veterans in national cemeteries under the control of the National Cemetery Administration.

(4) Developing recommendations for such legislative or administrative action as the Secretary considers appropriate.

(c) METHODOLOGY.—

(1) NUMBER OF UNCLAIMED REMAINS.—In estimating the number of unclaimed remains of veterans under subsection (b)(1), the Secretary may review such subset of applicable entities as the Secretary considers appropriate, including a subset of funeral homes and coroner offices that possess unclaimed veterans remains.

(2) ASSESSMENT OF STATE AND LOCAL LAWS.—In assessing State and local laws under subsection (b)(3), the Secretary may assess such sample of applicable State and local laws as the Secretary considers appropriate in lieu of reviewing all applicable State and local laws.

(d) EFFECTIVE DATE.—This section shall take effect on the date that is one year after the date of the enactment of this Act.

SEC. 304. STUDY ON PROVISION OF INTERMENTS IN VETERANS' CEMETERIES DURING WEEKENDS.

(a) STUDY.—

(1) IN GENERAL.—The Secretary of Veterans Affairs shall conduct a study on the feasibility and the need for providing increased interments in veterans' cemeteries on Saturdays and Sundays to meet the needs of surviving family members to properly honor the deceased.

(2) MATTERS INCLUDED.—The study under paragraph (1) shall include the following:

(A) The number of requests made for interments in veterans' cemeteries on a Saturday or a Sunday since January 1, 2007.

(B) The number of requests identified under subparagraph (A) that were granted.

(C) An estimate of the number of families that, since January 1, 2007, would have selected a weekend interment if such an interment would have been offered.

(D) A review of the practices relating to weekend interments among non-veterans' cemeteries, including private and municipal cemeteries.

(E) A comparison of the costs to veterans' cemeteries with respect to providing regular interments only during weekdays and such costs for providing regular interments during the weekdays and at least one weekend day.

(F) Any other information the Secretary determines appropriate.

(3) CONSULTATION.—In carrying out the study under paragraph (1), the Secretary shall consult with the following:

(A) Veterans who are eligible to be interred in a veterans' cemetery.

(B) Family members of a deceased individual interred in a veterans' cemetery.

(C) Veterans service organizations.

(D) Associations representing cemetery and funeral home professionals.

(E) The heads of agencies of State governments relating to veterans affairs.

(F) The directors of the veterans' cemeteries.

(G) Any other person the Secretary determines appropriate.

(b) SUBMISSION.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the Committees on Veterans' Affairs of the House of Representatives and the Senate a report on the study conducted under subsection (a).

(c) VETERANS' CEMETERIES DEFINED.—In this section, the term ''veterans' cemeteries'' means the cemeteries of the National Cemetery Administration, veterans' cemeteries owned by a State, and veterans' cemeteries owned by a tribal organization.

SEC. 305. HONORING AS VETERANS CERTAIN PERSONS WHO PERFORMED SERVICE IN THE RESERVE COMPONENTS OF THE ARMED FORCES.

Any person who is entitled under chapter 1223 of title 10, United States Code, to retired pay for nonregular service or, but for age, would be entitled under such chapter to retired pay for nonregular service shall be honored as a veteran but shall not be entitled to any benefit by reason of this honor.

TITLE IV—EDUCATIONAL ASSISTANCE AND VOCATIONAL REHABILITATION

SEC. 401. CLARIFICATION OF ELIGIBILITY FOR MARINE GUNNERY SERGEANT JOHN DAVID FRY SCHOLARSHIP.

(a) IN GENERAL.—Section 701(d) of the Veterans Access, Choice, and Accountability Act of 2014 (Public Law 113–146; 128 Stat. 1796; 38 U.S.C. 3311 note) is amended to read as follows:

''(d) APPLICABILITY.—

''(1) IN GENERAL.—The amendments made by this section shall apply with respect to a quarter, semester, or term, as applicable, commencing on or after January 1, 2015.

''(2) DEATHS THAT OCCURRED BETWEEN SEPTEMBER 11, 2001, AND DECEMBER 31, 2005.—For purposes of section 3311(f)(2) of title 38, United States Code, any member of the Armed Forces who died during the period beginning on September 11, 2001, and ending on December 31, 2005, is deemed to have died on January 1, 2006.''.

(b) ELECTION ON RECEIPT OF CERTAIN BENEFITS.—Section 3311(f) is amended—

(1) in paragraph (3), by striking ''A surviving spouse'' and inserting ''Except as provided in paragraph (4), a surviving spouse'';

(2) by redesignating paragraph (4) as paragraph (5); and

(3) by inserting after paragraph (3) the following new paragraph (4):

''(4) EXCEPTION FOR CERTAIN ELECTIONS.—

''(A) IN GENERAL.—An election made under paragraph (3) by a spouse described in subparagraph (B) may not be treated as irrevocable if such election occurred before the date of the enactment of this paragraph.

''(B) ELIGIBLE SURVIVING SPOUSE.—A spouse described in this subparagraph is an individual—

''(i) who is entitled to assistance under subsection (a) pursuant to paragraph (9) of subsection (b); and

''(ii) who was the spouse of a member of the Armed Forces who died during the period beginning on September 11, 2001, and ending on December 31, 2005.''.

(c) TECHNICAL AMENDMENT.—Paragraph (5) of subsection (f) of section 3311, as redesignated by subsection (b)(2), is amended by striking ''that paragraph'' and inserting ''paragraph (9) of subsection (b)''.

SEC. 402. APPROVAL OF COURSES OF EDUCATION AND TRAINING FOR PURPOSES OF THE VOCATIONAL REHABILITATION PROGRAM OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Section 3104(b) is amended by adding at the end the following new sentences: ''To the maximum extent practicable, a course of education or training may be pursued by a veteran as part of a rehabilitation program under this chapter only if the course is approved for purposes of chapter 30 or 33 of this title. The Secretary may waive the requirement under the preceding sentence to the extent the Secretary determines appropriate.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to a course of education or training pursued by a veteran who first begins a program of rehabilitation under chapter 31 of title 38, United States Code, on or after the date that is one year after the date of the enactment of this Act.

SEC. 403. AUTHORITY TO PRIORITIZE VOCATIONAL REHABILITATION SERVICES BASED ON NEED.

Section 3104, as amended by section 402, is further amended by adding at the end the following new subsection:

''(c)(1) The Secretary shall have the authority to administer this chapter by prioritizing the provision of services under this chapter based on need, as determined by the Secretary. In evaluating need for purposes of this subsection, the Secretary shall consider disability ratings, the severity of employment handicaps, qualification for a program of independent living, income, and any other factor the Secretary determines appropriate.

''(2) Not later than 90 days before making any changes to the prioritization of the provision of services under this chapter as authorized under paragraph (1), the Secretary shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a plan describing such changes.''.

SEC. 404. REPORTS ON PROGRESS OF STUDENTS RECEIVING POST-9/11 EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Subchapter III of chapter 33 is amended—

(1) in section 3325(c)—

(A) in paragraph (2), by striking ''and'' after the semicolon;

(B) by redesignating paragraph (3) as paragraph (4); and

(C) by inserting after paragraph (2) the following new paragraph (3):

''(3) the information received by the Secretary under section 3326 of this title; and''; and

(2) by adding at the end the following new section:

''§ 3326. Report on student progress

''As a condition of approval under chapter 36 of this title of a course offered by an educational institution (as defined in section 3452 of this title), each year, each educational institution (as so defined) that received a payment in that year on behalf of an individual entitled to educational assistance under this chapter shall submit to the Secretary such information regarding the academic progress of the individual as the Secretary may require.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by adding at the end the following new item:

''3326. Report on student progress.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date that is one year after the date of the enactment of this Act.

SEC. 405. RECODIFICATION AND IMPROVEMENT OF ELECTION PROCESS FOR POST-9/11 EDUCATIONAL ASSISTANCE PROGRAM.

(a) IN GENERAL.—Subchapter III of chapter 33, as amended by section 404, is further amended by adding at the end the following new section:

''§ 3327. Election to receive educational assistance

''(a) INDIVIDUALS ELIGIBLE TO ELECT PARTICIPATION IN POST-9/11 EDUCATIONAL ASSISTANCE.—An individual may elect to receive educational assistance under this chapter if such individual—

''(1) as of August 1, 2009—

''(A) is entitled to basic educational assistance under chapter 30 of this title and has used, but retains unused, entitlement under that chapter;

''(B) is entitled to educational assistance under chapter 107, 1606, or 1607 of title 10 and has used, but retains unused, entitlement under the applicable chapter;

''(C) is entitled to basic educational assistance under chapter 30 of this title but has not used any entitlement under that chapter;

''(D) is entitled to educational assistance under chapter 107, 1606, or 1607 of title 10 but has not used any entitlement under such chapter;

''(E) is a member of the Armed Forces who is eligible for receipt of basic educational assistance under chapter 30 of this title and is making contributions toward such assistance under section 3011(b) or 3012(c) of this title; or

''(F) is a member of the Armed Forces who is not entitled to basic educational assistance under chapter 30 of this title by reason of an election under section 3011(c)(1) or 3012(d)(1) of this title; and

''(2) as of the date of the individual's election under this paragraph, meets the requirements for entitlement to educational assistance under this chapter.

''(b) CESSATION OF CONTRIBUTIONS TOWARD GI BILL.—Effective as of the first month beginning on or after the date of an election under subsection (a) of an individual described by paragraph (1)(E) of that subsection, the obligation of the individual to make contributions under section 3011(b) or 3012(c) of this title, as applicable, shall cease, and the requirements of such section shall be deemed to be no longer applicable to the individual.

''(c) REVOCATION OF REMAINING TRANSFERRED ENTITLEMENT.—

''(1) ELECTION TO REVOKE.—If, on the date an individual described in paragraph (1)(A) or (1)(C) of subsection (a) makes an election under that subsection, a transfer of the entitlement of the individual to basic educational assistance under section 3020 of this title is in effect and a number of months of the entitlement so transferred remain unutilized, the individual may elect to revoke all or a portion of the entitlement so transferred that remains unutilized.

''(2) AVAILABILITY OF REVOKED ENTITLEMENT.—Any entitlement revoked by an individual under this subsection shall no longer be available to the dependent to whom transferred, but shall be available to the individual instead for educational assistance under chapter 33 of this title in accordance with the provisions of this section.

''(3) AVAILABILITY OF UNREVOKED ENTITLEMENT.—Any entitlement described in paragraph (1) that is not revoked by an individual in accordance with that paragraph shall remain available to the dependent or dependents concerned in accordance with the current transfer of such entitlement under section 3020 of this title.

''(d) POST-9/11 EDUCATIONAL ASSISTANCE.—

''(1) IN GENERAL.—Subject to paragraph (2) and except as provided in subsection (e), an individual making an election under subsection (a) shall be entitled to educational assistance under this chapter in accordance with the provisions of this chapter, instead of basic educational assistance under chapter 30 of this title, or educational assistance under chapter 107, 1606, or 1607 of title 10, as applicable.

''(2) LIMITATION ON ENTITLEMENT FOR CERTAIN INDIVIDUALS.—In the case of an individual making an election under subsection (a) who is described by paragraph (1)(A) of that subsection, the number of months of entitlement of the individual to educational assistance under this chapter shall be the number of months equal to—

''(A) the number of months of unused entitlement of the individual under chapter 30 of this title, as of the date of the election, plus

''(B) the number of months, if any, of entitlement revoked by the individual under subsection (c)(1).

''(e) CONTINUING ENTITLEMENT TO EDUCATIONAL ASSISTANCE NOT AVAILABLE UNDER POST-9/11 EDUCATIONAL ASSISTANCE PROGRAM.—

''(1) IN GENERAL.—In the event educational assistance to which an individual making an election under subsection (a) would be entitled under chapter 30 of this title, or chapter 107, 1606, or 1607 of title 10, as applicable, is not authorized to be available to the individual under the provisions of this chapter, the individual shall remain entitled to such educational assistance in accordance with the provisions of the applicable chapter.

''(2) CHARGE FOR USE OF ENTITLEMENT.—The utilization by an individual of entitlement under paragraph (1) shall be chargeable against the entitlement of the individual to educational assistance under this chapter at the rate of one month of entitlement under this chapter for each month of entitlement utilized by the individual under paragraph (1) (as determined as if such entitlement were utilized under the provisions of chapter 30 of this title, or chapter 107, 1606, or 1607 of title 10, as applicable).

''(f) ADDITIONAL POST-9/11 ASSISTANCE FOR MEMBERS HAVING MADE CONTRIBUTIONS TOWARD GI BILL.—

''(1) ADDITIONAL ASSISTANCE.—In the case of an individual making an election under subsection (a) who is described by subparagraph (A), (C), or (E) of paragraph (1) of that subsection, the amount of educational assistance payable to the individual under this chapter as a monthly stipend payable under paragraph (1)(B) of section 3313(c) of this title, or under paragraphs (2) through (7) of that section (as applicable), shall be the amount otherwise payable as a monthly stipend under the applicable paragraph increased by the amount equal to—

''(A) the total amount of contributions toward basic educational assistance made by the individual under section 3011(b) or 3012(c) of this title, as of the date of the election, multiplied by

''(B) the fraction—

''(i) the numerator of which is—

''(I) the number of months of entitlement to basic educational assistance under chapter 30 of this title remaining to the individual at the time of the election; plus

''(II) the number of months, if any, of entitlement under chapter 30 of this title revoked by the individual under subsection (c)(1); and

''(ii) the denominator of which is 36 months.

''(2) MONTHS OF REMAINING ENTITLEMENT FOR CERTAIN INDIVIDUALS.—In the case of an individual covered by paragraph (1) who is described by subsection (a)(1)(E), the number of months of entitlement to basic educational assistance remaining to the individual for purposes of paragraph (1)(B)(i)(II) shall be 36 months.

''(3) TIMING OF PAYMENT.—The amount payable with respect to an individual under paragraph (1) shall be paid to the individual together with the last payment of the monthly stipend payable to the individual under paragraph (1)(B) of section 3313(c) of this title, or under paragraphs (2) through (7) of that section (as applicable), before the exhaustion of the individual's entitlement to educational assistance under this chapter.

''(g) CONTINUING ENTITLEMENT TO ADDITIONAL ASSISTANCE FOR CRITICAL SKILLS OR SPECIALTY AND ADDITIONAL SERVICE.—An individual making an election under subsection (a)(1) who, at the time of the election, is entitled to increased educational assistance under section 3015(d) of this title, or section 16131(i) of title 10, or supplemental educational assistance under subchapter III of chapter 30 of this title, shall remain entitled to such increased educational assistance or supplemental educational assistance in the utilization of entitlement to educational assistance under this chapter, in an amount equal to the quarter, semester, or term, as applicable, equivalent of the monthly amount of such increased educational assistance or supplemental educational assistance payable with respect to the individual at the time of the election.

''(h) ALTERNATIVE ELECTION BY SECRETARY.—

''(1) IN GENERAL.—In the case of an individual who, on or after January 1, 2017, submits to the Secretary an election under this section that the Secretary determines is clearly against the interests of the individual, or who fails to make an election under this section, the Secretary may make an alternative election on behalf of the individual that the Secretary determines is in the best interests of the individual.

''(2) NOTICE.—If the Secretary makes an election on behalf of an individual under this subsection, the Secretary shall notify the individual by not later than seven days after making such election and shall provide the individual with a 30-day period, beginning on the date of the individual's receipt of such notice, during which the individual may modify or revoke the election made by the Secretary on the individual's behalf. The Secretary shall include, as part of such notice, a clear statement of why the alternative election made by the Secretary is in the best interests of the individual as compared to the election submitted by the individual. The Secretary shall provide the notice required under this paragraph by electronic means whenever possible.

''(i) IRREVOCABILITY OF ELECTIONS.—An election under subsection (a) or (c)(1) is irrevocable.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter, as amended by section 404, is further amended by adding at the end the following new item:

''3327. Election to receive educational assistance.''.

(c) CONFORMING REPEAL.—Subsection (c) of section 5003 of the Post-9/11 Veterans Educational Assistance Act of 2008 (Public Law 110–252; 38 U.S.C. 3301 note) is hereby repealed.

SEC. 406. WORK-STUDY ALLOWANCE.

Section 3485(a)(4) is amended by striking ''June 30, 2013'' each place it appears and inserting ''June 30, 2013, or the period beginning on June 30, 2017, and ending on June 30, 2022''.

SEC. 407. CENTRALIZED REPORTING OF VETERAN ENROLLMENT BY CERTAIN GROUPS, DISTRICTS, AND CONSORTIUMS OF EDUCATIONAL INSTITUTIONS.

(a) IN GENERAL.—Section 3684(a) is amended—

(1) in paragraph (1), by inserting ''32, 33,'' after ''31,''; and

(2) by adding at the end the following new paragraph:

''(4) For purposes of this subsection, the term 'educational institution' may include a group, district, or consortium of separately accredited educational institutions located in the same State that are organized in a manner that facilitates the centralized reporting of the enrollments in such group, district, or consortium of institutions.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall apply with respect to reports submitted on or after the date of the enactment of this Act.

SEC. 408. ROLE OF STATE APPROVING AGENCIES.

(a) APPROVAL OF CERTAIN COURSES.—Section 3672(b)(2)(A) is amended by striking ''the following'' and all that follows through the colon and inserting the following: ''a program of education is deemed to be approved

for purposes of this chapter if a State approving agency, or the Secretary when acting in the role of a State approving agency, determines that the program is one of the following programs:''.

(b) APPROVAL OF OTHER COURSES.—Section 3675 of such title is amended—

(1) in subsection (a)(1)—

(A) by striking ''The Secretary or a State approving agency'' and inserting ''A State approving agency, or the Secretary when acting in the role of a State approving agency,''; and

(B) by striking ''offered by proprietary for-profit educational institutions'' and inserting ''not covered by section 3672 of this title''; and

(2) in subsection (b)—

(A) in the matter preceding paragraph (1), by striking ''the Secretary or the State approving agency'' and inserting ''the State approving agency, or the Secretary when acting in the role of a State approving agency,''; and

(B) in paragraph (1), by striking ''the Secretary or the State approving agency'' and inserting ''the State approving agency, or the Secretary when acting in the role of a State approving agency''.

SEC. 409. MODIFICATION OF REQUIREMENTS FOR APPROVAL FOR PURPOSES OF EDUCATIONAL ASSISTANCE PROVIDED BY DEPARTMENT OF VETERANS AFFAIRS OF PROGRAMS DESIGNED TO PREPARE INDIVIDUALS FOR LICENSURE OR CERTIFICATION.

(a) APPROVAL OF NONACCREDITED COURSES.—Subsection (c) of section 3676 is amended—

(1) by redesignating paragraph (14) as paragraph (16); and

(2) by inserting after paragraph (13) the following new paragraphs:

''(14) In the case of a course designed to prepare an individual for licensure or certification in a State, the course—

''(A) meets all instructional curriculum licensure or certification requirements of such State; and

''(B) in the case of a course designed to prepare an individual for licensure to practice law in a State, is accredited by an accrediting agency or association recognized by the Secretary of Education under subpart 2 of part H of title IV of the Higher Education Act of 1965 (20 U.S.C. 1099b).

''(15) In the case of a course designed to prepare an individual for employment pursuant to standards developed by a board or agency of a State in an occupation that requires approval, licensure, or certification, the course—

''(A) meets such standards; and

''(B) in the case of a course designed to prepare an individual for licensure to practice law in a State, is accredited by an accrediting agency or association recognized by the Secretary of Education under subpart 2 of part H of title IV of the Higher Education Act of 1965 (20 U.S.C. 1099b).''.

(b) EXCEPTIONS.—Such section is further amended by adding at the end the following new subsection:

''(f)(1) The Secretary may waive the requirements of paragraph (14) or (15) of subsection (c) in the case of a course of education offered by an educational institution (either accredited or not accredited) if the Secretary determines all of the following:

''(A) The educational institution is not accredited by an agency or association recognized by the Secretary of Education.

''(B) The course did not meet the requirements of such paragraph at any time during the two-year period preceding the date of the waiver.

''(C) The waiver furthers the purposes of the educational assistance programs administered by the Secretary or would further the education interests of individuals eligible for assistance under such programs.

''(D) The educational institution does not provide any commission, bonus, or other incentive payment based directly or indirectly on success in securing enrollments or financial aid to any persons or entities engaged in any student recruiting or admission activities or in making decisions regarding the award of student financial assistance, except for the recruitment of foreign students residing in foreign countries who are not eligible to receive Federal student assistance.

''(2) Not later than 30 days after the date on which the Secretary issues a waiver under paragraph (1), the Secretary shall submit to Congress notice of such waiver and a justification for issuing such waiver.''.

(c) APPROVAL OF ACCREDITED COURSES.—Section 3675(b)(3) is amended—

(1) by striking ''and (3)'' and inserting ''(3), (14), (15), and (16)''; and

(2) by inserting before the period at the end the following: ''(or, with respect to such paragraphs (14) and (15), the requirements under such paragraphs are waived pursuant to subsection (f)(1) of section 3676 of this title)''.

(d) APPROVAL OF ACCREDITED STANDARD COLLEGE DEGREE PROGRAMS OFFERED AT PUBLIC OR NOT-FOR-PROFIT EDUCATIONAL INSTITUTIONS.—Section 3672(b)(2) is amended—

(1) in subparagraph (A)(i), by striking ''An accredited'' and inserting ''Except as provided in subparagraph (C), an accredited''; and

(2) by adding at the end the following new subparagraph:

''(C) A course that is described in both subparagraph (A)(i) of this paragraph and in paragraph (14) or (15) of section 3676(c) of this title shall not be deemed to be approved for purposes of this chapter unless—

''(i) a State approving agency, or the Secretary when acting in the role of a State approving agency, determines that the course meets the applicable criteria in such paragraphs; or

''(ii) the Secretary issues a waiver for such course under section 3676(f)(1) of this title.''.

(e) DISAPPROVAL OF COURSES.—Section 3679 is amended by adding at the end the following new subsection:

''(d) Notwithstanding any other provision of this chapter, the Secretary or the applicable State approving agency shall disapprove a course of education described in paragraph (14) or (15) of section 3676(c) of this title unless the educational institution providing the course of education—

''(1) publicly discloses any conditions or additional requirements, including training, experience, or examinations, required to obtain the license, certification, or approval for which the course of education is designed to provide preparation; and

''(2) makes each disclosure required by paragraph (1) in a manner that the Secretary considers prominent (as specified by the Secretary in regulations prescribed for purposes of this subsection).''.

(f) APPLICABILITY.—If after enrollment in a course of education that is subject to disapproval by reason of an amendment made by this section, an individual pursues one or more courses of education at the same educational institution while remaining continuously enrolled (other than during regularly scheduled breaks between courses, semesters, or terms) at that institution, any course so pursued by the individual at that institution while so continuously enrolled shall not be subject to disapproval by reason of such amendment.

SEC. 410. CRITERIA USED TO APPROVE COURSES.

(a) NONACCREDITED COURSES.—Paragraph (16) of section 3676(c), as redesignated by section 409, is amended by inserting before the period the following: ''if the Secretary, in consultation with the State approving agency and pursuant to regulations prescribed to carry out this paragraph, determines such criteria are necessary and treat public, private, and proprietary for-profit educational institutions equitably''.

(b) ACCREDITED COURSES.—Section 3675(b)(3) is amended by striking ''and (3)'' and inserting ''(3), and (14)''.

(c) APPLICATION.—The amendment made by subsection (a) shall apply with respect to—

(1) criteria developed pursuant to paragraph (16) of subsection (c) of section 3676 of title 38, United States Code, on or after January 1, 2013; and

(2) an investigation conducted under such subsection that is covered by a reimbursement of expenses paid by the Secretary of Veterans Affairs to a State pursuant to section 3674 of such title on or after October 1, 2015.

SEC. 411. COMPLIANCE SURVEYS.

(a) IN GENERAL.—Section 3693 is amended—

(1) by striking subsection (a) and inserting the following new subsection (a):

''(a)(1) Except as provided in subsection (b), the Secretary shall conduct an annual compliance survey of educational institutions and training establishments offering one or more courses approved for the enrollment of eligible veterans or persons if at least 20 such veterans or persons are enrolled in any such course. The Secretary shall—

''(A) design the compliance surveys to ensure that such institutions or establishments, as the case may be, and approved courses are in compliance with all applicable provisions of chapters 30 through 36 of this title;

''(B) survey each such educational institution and training establishment not less than once during every two-year period; and

''(C) assign not fewer than one education compliance specialist to work on compliance surveys in any year for each 40 compliance surveys required to be made under this section for such year.

''(2) The Secretary, in consultation with the State approving agencies, shall—

''(A) annually determine the parameters of the surveys required under paragraph (1); and

''(B) not later than September 1 of each year, make available to the State approving agencies a list of the educational institutions and training establishments that will be surveyed during the fiscal year following the date of making such list available.''; and

(2) by adding at the end the following new subsection:

''(c) In this section, the terms 'educational institution' and 'training establishment' have the meanings given such terms in section 3452 of this title.''.

(b) CONFORMING AMENDMENTS.—Subsection (b) of such section is amended—

(1) by striking ''subsection (a) of this section for an annual compliance survey'' and inserting ''subsection (a)(1) for a compliance survey'';

(2) by striking ''institution'' and inserting ''educational institution or training establishment''; and

(3) by striking ''institution's demonstrated record of compliance'' and inserting ''record of compliance of such institution or establishment''.

SEC. 412. MODIFICATION OF REDUCTIONS IN REPORTING FEE MULTIPLIERS FOR PAYMENTS BY SECRETARY OF VETERANS AFFAIRS TO EDUCATIONAL INSTITUTIONS.

(a) THROUGH SEPTEMBER 25, 2017.—During the period beginning on the date of the enactment of this Act and ending on September 25, 2017, the second sentence of section 3684(c) of title 38, United States Code, shall be applied—

(1) by substituting ''$6'' for ''$12''; and

(2) by substituting ''$12'' for ''$15''.

(b) SEPTEMBER 26, 2017, THROUGH SEPTEMBER 25, 2026.—During the period beginning on September 26, 2017, and ending on September 25, 2026, the second sentence of such section shall be applied—

(1) by substituting ''$7'' for ''$12''; and

(2) by substituting ''$12'' for ''$15''.

(c) CONFORMING AMENDMENT.—Section 406 of the Department of Veterans Affairs Expiring Authorities Act of 2014 (Public Law 113–175; 38 U.S.C. 3684 note), as amended by the Department of Veterans Affairs Expiring Authorities Act of 2016, is amended by striking ''During the three-year period beginning on the date of the enactment of this Act'' and inserting ''During the period beginning on the date of the enactment of this Act and ending on the day before the date of the enactment of the Jeff Miller and Richard Blumenthal Veterans Health Care and Benefits Improvement Act of 2016''.

SEC. 413. COMPOSITION OF VETERANS' ADVISORY COMMITTEE ON EDUCATION.

Section 3692(a) is amended in the second sentence by striking ''veterans representative of World War II'' and all that follows through the period at the end of that sentence and inserting the following: ''a representative sample of veterans and other individuals who have used, or may in the future use, educational assistance benefits administered by the Secretary.''.

SEC. 414. SURVEY OF INDIVIDUALS USING THEIR ENTITLEMENT TO EDUCATIONAL ASSISTANCE UNDER THE EDUCATIONAL ASSISTANCE PROGRAMS ADMINISTERED BY THE SECRETARY OF VETERANS AFFAIRS.

(a) SURVEY REQUIRED.—By not later than 270 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall enter into a contract with a non-government entity for the conduct of a survey of a statistically valid sample of individuals who have used or are using their entitlement to educational assistance under chapters 30, 32, 33, and 35 of title 38, United States Code, to pursue a program of education or training. The contract shall provide that—

(1) not later than one month before the collection of data under the survey begins, the survey shall be submitted to the Committees on Veterans' Affairs of the Senate and House of Representatives;

(2) the non-government entity shall complete the survey and submit to the Secretary the results of the survey by not later than 180 days after entering into the contract; and

(3) the survey shall be conducted by electronic means and by any other means the non-government entity determines appropriate.

(b) INFORMATION TO BE COLLECTED.—The contract under subsection (a) shall provide that the survey shall be designed to collect the following types of information about each individual surveyed, where applicable:

(1) Demographic information, including the highest level of education completed by the individual, the military occupational specialty or specialties of the individual while serving on active duty as a member of the Armed Forces or as a member of the National Guard or of a Reserve Component of the Armed Forces, and whether the individual has a service-connected disability.

(2) The opinion of the individual regarding participation in the transition assistance program under section 1144 of title 10, United States Code, and the effectiveness of the program, including instruction on the use of the benefits under laws administered by the Secretary of Veterans Affairs.

(3) The resources the individual used to help the individual—

(A) decide to use the individual's entitlement to educational assistance to enroll in a program of education or training; and

(B) choose the program of education or training the individual pursued.

(4) The individual's goal when the individual enrolled in the program of education or training.

(5) The nature of the individual's experience with the education benefits processing system of the Department of Veterans Affairs.

(6) The nature of the individual's experience with the school certifying official of the educational institution where the individual pursued the program of education or training who processed the individual's claim.

(7) Any services or benefits the educational institution or program of education or training provided to veterans while the individual pursued the program of education or training.

(8) The type of educational institution at which the individual pursued the program of education or training.

(9) Whether the individual completed the program of education or training or the number of credit hours completed by the individual as of the time of the survey, and, if applicable, any degree or certificate obtained by the individual for completing the program.

(10) The employment status of the individual and whether such employment status differs from the employment status of the individual prior to enrolling in the program of education or training.

(11) Whether the individual is or was enrolled in a program of education on a full-time or part-time basis.

(12) The opinion of the individual on the effectiveness of the educational assistance program of the Department of Veterans Affairs under which the individual was entitled to educational assistance.

(13) Whether the individual was ever entitled to a rehabilitation under chapter 31 of title 38, United States Code, and whether the individual participated in such a program.

(14) A description of any circumstances that prevented the individual from using the individual's entitlement to educational assistance to pursue a desired career path or degree.

(15) Whether the individual is using the individual's entitlement to educational assistance to pursue a program of education or training or has transferred such an entitlement to a dependent.

(16) Such other matters as the Secretary determines appropriate.

(c) REPORT.—Not later than 90 days after receiving the results of the survey required under this section, the Secretary shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a report on the results of the survey and any recommendations of the Secretary relating to such results. Such report shall also include an unedited version of the results of the survey submitted by the non-government entity that conducted the survey.

SEC. 415. DEPARTMENT OF VETERANS AFFAIRS PROVISION OF INFORMATION ON ARTICULATION AGREEMENTS BETWEEN INSTITUTIONS OF HIGHER LEARNING.

(a) INFORMATION.—Department of Veterans Affairs counselors who provide educational or vocational counseling services pursuant to section 3697A of title 38, United States Code, shall provide to any eligible individual who requests such counseling services information about the articulation agreements of each institution of higher learning in which the individual is interested.

(b) CERTIFICATION OF ELIGIBILITY.—When the Secretary of Veterans Affairs provides to an individual a certification of eligibility for educational assistance provided by the Department of Veterans Affairs, the Secretary shall also include detailed information on such educational assistance, including information on requesting education counseling services and on articulation agreements.

(c) DEFINITIONS.—In this section:

(1) The term ''institution of higher learning'' has the meaning given such term in section 3452(f) of title 38, United States Code.

(2) The term ''articulation agreement'' has the meaning given such term in section 486A of the Higher Education Act of 1965 (Public Law 89–329; 20 U.S.C. 1093a).

(d) DEADLINE FOR IMPLEMENTATION.—The Secretary of Veterans Affairs shall implement this section not later than 90 days after the date of the enactment of this Act.

SEC. 416. RETENTION OF ENTITLEMENT TO EDUCATIONAL ASSISTANCE DURING CERTAIN ADDITIONAL PERIODS OF ACTIVE DUTY.

(a) EDUCATIONAL ASSISTANCE ALLOWANCE.—Section 16131(c)(3)(B)(i) of title 10, United States Code, is amended by striking ''or 12304'' and inserting ''12304, 12304a, or 12304b''.

(b) EXPIRATION DATE.—Section 16133(b)(4) of such title is amended by striking ''or 12304'' and inserting ''12304, 12304a, or 12304b''.

SEC. 417. TECHNICAL AMENDMENT RELATING TO IN-STATE TUITION RATE FOR INDIVIDUALS TO WHOM ENTITLEMENT IS TRANSFERRED UNDER ALL-VOLUNTEER FORCE EDUCATIONAL ASSISTANCE PROGRAM AND POST-9/11 EDUCATIONAL ASSISTANCE.

(a) TECHNICAL AMENDMENT.—Subparagraph (B) of section 3679(c)(2) is amended to read as follows:

''(B) An individual who is entitled to assistance under—

''(i) section 3311(b)(9) of this title; or

''(ii) section 3319 of this title by virtue of the individual's relationship to—

''(I) a veteran described in subparagraph (A); or

''(II) a member of the uniformed services described in section 3319(b) of this title who is serving on active duty.''.

(b) APPLICABILITY.—The amendment made by subsection (a) shall apply with respect to a course, semester, or term that begins after July 1, 2017.

SEC. 418. STUDY ON THE EFFECTIVENESS OF VETERANS TRANSITION EFFORTS.

(a) STUDY.—The Secretary of Veterans Affairs, in coordination with the Secretary of Labor and the Secretary of Defense, shall carry out a study to evaluate programs to assist veterans of the Armed Forces in their transition to civilian life. Such study shall be designed to determine the effectiveness of current programs, especially in regards to the unique challenges faced by women veterans, veterans with disabilities, Native American veterans (including Alaska Native veterans and Native Hawaiian veterans), veterans who are residents of a territory of the United States, veterans who are part of the indigenous population of a territory of the United States, and other groups of minority veterans identified by the Secretaries, including whether such programs—

(1) effectively address the challenges veterans face in pursuing higher education, especially the challenges faced by such groups of minority veterans;

(2) effectively address the challenges such veterans face entering the civilian workforce and in translating experience and skills from military service to the job market; and

(3) effectively address the challenges faced by the families of such veterans transitioning to civilian life.

(b) REPORT.—Not later than 540 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a report regarding the findings and recommendations of the study required under subsection (a).

(c) PROHIBITION ON AUTHORIZATION OF APPROPRIATIONS.—No additional funds are authorized to carry out the requirements of this section. Such requirements shall be carried out using amounts otherwise authorized.

TITLE V—SMALL BUSINESS AND EMPLOYMENT MATTERS

SEC. 501. MODIFICATION OF TREATMENT UNDER CONTRACTING GOALS AND PREFERENCES OF DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Subsection (h) of section 8127 is amended—

(1) in paragraph (3), by striking ''rated as'' and all that follows through ''disability.'' and inserting a period; and

(2) in paragraph (2), by amending subparagraph (C) to read as follows:

''(C) The date that—

''(i) in the case of a surviving spouse of a veteran with a service-connected disability rated as 100 percent disabling or who dies as a result of a service-connected disability, is 10 years after the date of the veteran's death; or

''(ii) in the case of a surviving spouse of a veteran with a service-connected disability rated as less than 100 percent disabling who does not die as a result of a service-connected disability, is three years after the date of the veteran's death.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect on the date that is 180 days after the date of the enactment of this Act and shall apply with respect to contracts awarded on or after such date.

SEC. 502. LONGITUDINAL STUDY OF JOB COUNSELING, TRAINING, AND PLACEMENT SERVICE FOR VETERANS.

(a) IN GENERAL.—Chapter 41 is amended by adding at the end the following new section:

''§ 4115. Longitudinal study of job counseling, training, and placement service for veterans

''(a) STUDY REQUIRED.—(1) The Secretary shall enter into a contract with a non-government entity to conduct a longitudinal study of a statistically valid sample of each of the groups of individuals described in paragraph (2). The contract shall provide for the study of each such group over a period of at least five years.

''(2) The groups of individuals described in this paragraph are the following:

''(A) Veterans who have received intensive services.

''(B) Veterans who did not receive intensive services but who otherwise received services under this chapter.

''(C) Veterans who did not seek or receive services under this chapter.

''(3) The study required by this subsection shall include the collection of the following information for each individual who participates in the study:

''(A) The average number of months such individual served on active duty.

''(B) The disability ratings of such individual.

''(C) Any unemployment benefits received by such individual.

''(D) The average number of months such individual was employed during the year covered by the report.

''(E) The average annual starting and ending salaries of any such individual who was employed during the year covered by the report.

''(F) The average annual income of such individual.

''(G) The average total household income of such individual for the year covered by the report.

''(H) The percentage of such individuals who own their principal residences.

''(I) The employment status of such individual.

''(J) In the case of such an individual who received services under this chapter, whether the individual believes that any service provided by a disabled veterans' outreach program specialist or local veterans' employment representative helped the individual to become employed.

''(K) In the case of such an individual who believes such a service helped the individual to become employed, whether—

''(i) the individual retained the position of employment for a period of one year or longer; and

''(ii) the individual believes such a service helped the individual to secure a higher wage or salary.

''(L) The conditions under which such individual was discharged or released from the Armed Forces.

''(M) Whether such individual has used any educational assistance to which the individual is entitled under this title.

''(N) Whether such individual has participated in a rehabilitation program under chapter 31 of this title.

''(O) Whether such individual had contact with a One-Stop Career Center employee while attending a workshop or job fair under the Transition GPS Program of the Department of Defense.

''(P) Demographic information about such individual.

''(Q) Such other information as the Secretary determines appropriate.

''(b) ANNUAL REPORT.—(1) By not later than July 1 of each year covered by the study required under subsection (a), the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the outcomes of the study during the preceding year.

''(2) The Secretary shall include in each report submitted under paragraph (1) the following:

''(A) Information with respect to job fairs attended by One-Stop Career Center employees at which the employees had contact with a veteran, including, for the year preceding the year in which the report is submitted, the following:

''(i) The number of job fairs attended by One-Stop Career Center employees at which the employees had contact with a veteran.

''(ii) The number of veterans contacted at each such job fair.

''(B) Such information as the Secretary determines is necessary to determine the long-term outcomes of the individuals in the groups described in subsection (a)(2).''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by adding at the end the following new item:

''4115. Longitudinal study of job counseling, training, and placement service for veterans.''.

SEC. 503. LIMITATION ON ADMINISTRATIVE LEAVE FOR EMPLOYEES OF DEPARTMENT OF VETERANS AFFAIRS.

(a) LIMITATION.—

(1) IN GENERAL.—Chapter 7 is amended by inserting after section 715 the following new section:

''§ 717. Limitation on administrative leave

''(a) IN GENERAL.—Except as provided in subsection (b), the Secretary may not place any covered individual on administrative leave, or any other type of paid non-duty status without charge to leave, for more than a total of 14 days during any 365-day period.

''(b) WAIVER.—The Secretary may waive the limitation under subsection (a) and extend the administrative leave or other paid non-duty status without charge to leave of a covered individual placed on such leave or status under subsection (a) if the Secretary submits to the Committees on Veterans' Affairs of the Senate and House of Representatives a detailed explanation of the reasons the individual was placed on administrative leave or other paid non-duty status without charge to leave and the reasons for the extension of such leave or status. Such explanation shall include the job title and grade of the covered individual and the location where the individual is employed.

''(c) COVERED INDIVIDUAL.—In this section, the term 'covered individual' means an employee of the Department—

''(1) who is subject to an investigation for purposes of determining whether such individual should be subject to any disciplinary action under this title or title 5; or

''(2) against whom any disciplinary action is proposed or initiated under this title or title 5.''.

(2) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by inserting after the item relating to section 715 the following new item:

''717. Limitation on administrative leave.''.

(b) APPLICATION.—Section 717 of title 38, United States Code, as added by subsection (a)(1), shall apply with respect to any 365-day period beginning on or after the date of enactment of this Act.

SEC. 504. REQUIRED COORDINATION BETWEEN DIRECTORS FOR VETERANS' EMPLOYMENT AND TRAINING WITH STATE DEPARTMENTS OF LABOR AND VETERANS AFFAIRS.

(a) IN GENERAL.—Section 4103 is amended by adding at the end the following new subsection:

''(c) COORDINATION WITH STATE DEPARTMENTS OF LABOR AND VETERANS AFFAIRS.—Each Director for Veterans' Employment and Training for a State shall coordinate the Director's activities under this chapter with the State department of labor and the State department of veterans affairs.''.

(b) EFFECTIVE DATE.—Subsection (c) of such section, as added by subsection (a), shall take effect on the date that is one year after the date of the enactment of this Act.

TITLE VI—HEALTH CARE MATTERS

Subtitle A—Medical Care

SEC. 601. REQUIREMENT FOR ADVANCE APPROPRIATIONS FOR THE MEDICAL COMMUNITY CARE ACCOUNT OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Section 117(c) is amended by adding at the end the following new paragraph:

''(7) Veterans Health Administration, Medical Community Care.''.

(b) CONFORMING AMENDMENT.—Section 1105(a)(37) of title 31, United States Code, is amended by adding at the end the following new subparagraph:

''(G) Veterans Health Administration, Medical Community Care.''.

(c) APPLICABILITY.—The amendments made by this section shall apply to fiscal years beginning on and after October 1, 2017.

SEC. 602. IMPROVED ACCESS TO APPROPRIATE IMMUNIZATIONS FOR VETERANS.

(a) INCLUSION OF RECOMMENDED ADULT IMMUNIZATIONS AS MEDICAL SERVICES.—

(1) COVERED BENEFIT.—Subparagraph (F) of section 1701(9) is amended to read as follows:

''(F) immunizations against infectious diseases, including each immunization on the recommended adult immunization schedule at the time such immunization is indicated on that schedule;''.

(2) RECOMMENDED ADULT IMMUNIZATION SCHEDULE DEFINED.—Section 1701 is amended by adding at the end the following new paragraph:

''(10) The term 'recommended adult immunization schedule' means the schedule established (and periodically reviewed and, as appropriate, revised) by the Advisory Committee on Immunization Practices established by the Secretary of Health and Human Services and delegated to the Centers for Disease Control and Prevention.''.

(b) INCLUSION OF RECOMMENDED ADULT IMMUNIZATIONS IN ANNUAL REPORT.—Section 1704(1)(A) is amended—

(1) in clause (i), by striking ''and'' at the end;

(2) in clause (ii), by striking the period at the end and inserting ''; and''; and

(3) by inserting after clause (ii) the following new clause:

''(iii) to provide veterans each immunization on the recommended adult immunization schedule at the time such immunization is indicated on that schedule.''.

(c) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than two years after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the development and implementation by the Department of Veterans Affairs of quality measures and metrics, including targets for compliance, to ensure that veterans receiving medical services under chapter 17 of title 38, United States Code, receive each immunization on the recommended adult immunization schedule at the time such immunization is indicated on that schedule.

(2) RECOMMENDED ADULT IMMUNIZATION SCHEDULE DEFINED.—In this subsection, the term ''recommended adult immunization schedule'' has the meaning given that term in section 1701(10) of title 38, United States Code, as added by subsection (a)(2).

(d) RULE OF CONSTRUCTION.—Nothing in this section or the amendments made by this section may be construed to require a veteran to receive an immunization that the veteran does not want to receive.

SEC. 603. PRIORITY OF MEDAL OF HONOR RECIPIENTS IN HEALTH CARE SYSTEM OF DEPARTMENT OF VETERANS AFFAIRS.

(a) ENROLLMENT PRIORITY.—

(1) IN GENERAL.—Section 1705(a) is amended—

(A) in paragraph (1), by striking the period at the end and inserting the following: ''and veterans who were awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14.''; and

(B) in paragraph (3), by striking ''veterans who were awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14,''.

(2) APPLICATION.—The priority of enrollment of medal of honor recipients in the system of annual patient enrollment established and operated under section 1705(a) of such title, as amended by paragraph (1), shall apply to each such recipient, regardless of the date on which the medal is awarded.

(b) ELIGIBILITY.—Section 1710(a)(2)(D) is amended by inserting after ''war'' the following: '', who was awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14,''.

(c) EXTENDED CARE SERVICES.—Section 1710B(c)(2) is amended—

(1) in subparagraph (B), by striking ''or'';

(2) in subparagraph (C), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following new subparagraph:

''(D) to a veteran who was awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14.''.

(d) COPAYMENT FOR MEDICATIONS.—Section 1722A(a)(3) is amended—

(1) in subparagraph (B), by striking ''or'';

(2) in subparagraph (C), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following new subparagraph:

''(D) to a veteran who was awarded the medal of honor under section 3741, 6241, or 8741 of title 10 or section 491 of title 14.''.

SEC. 604. REQUIREMENT THAT DEPARTMENT OF VETERANS AFFAIRS COLLECT HEALTH-PLAN CONTRACT INFORMATION FROM VETERANS.

(a) IN GENERAL.—Subchapter I of chapter 17 is amended by inserting after section 1705 the following new section:

''§ 1705A. Management of health care: information regarding health-plan contracts

''(a) IN GENERAL.—(1) Any individual who seeks hospital care or medical services under this chapter shall provide to the Secretary such current information as the Secretary may require to identify any health-plan contract under which such individual is covered.

''(2) The information required to be provided to the Secretary under paragraph (1) with respect to a health-plan contract shall include, as applicable, the following:

''(A) The name of the entity providing coverage under the health-plan contract.

''(B) If coverage under the health-plan contract is in the name of an individual other than the individual required to provide information under this section, the name of the policy holder of the health-plan contract.

''(C) The identification number for the health-plan contract.

''(D) The group code for the health-plan contract.

''(b) ACTION TO COLLECT INFORMATION.—The Secretary may take such action as the Secretary considers appropriate to collect the information required under subsection (a).

''(c) EFFECT ON SERVICES FROM DEPARTMENT.—The Secretary may not deny any services under this chapter to an individual solely due to the fact that the individual fails to provide information required under subsection (a).

''(d) HEALTH-PLAN CONTRACT DEFINED.—In this section, the term 'health-plan contract' has the meaning given that term in section 1725(f) of this title.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 17 is amended by inserting after the item relating to section 1705 the following new item:

''1705A. Management of health care: information regarding health-plan contracts.''.

SEC. 605. MENTAL HEALTH TREATMENT FOR VETERANS WHO SERVED IN CLASSIFIED MISSIONS.

(a) SENSE OF CONGRESS.—It is the sense of Congress that veterans who experience combat-related mental health wounds should have immediate, appropriate, and consistent access to comprehensive mental health care.

(b) IN GENERAL.—Subchapter II of chapter 17 is amended by adding at the end the following new section:

''§ 1720H. Mental health treatment for veterans who served in classified missions

''(a) ESTABLISHMENT OF STANDARDS.—(1) The Secretary shall establish standards and procedures to ensure that each eligible veteran may access mental health care furnished by the Secretary in a manner that fully accommodates the obligation of the veteran to not improperly disclose classified information.

''(2) In establishing standards and procedures under paragraph (1), the Secretary shall consult with the Secretary of Defense to ensure that such standards and procedures are consistent with the policies on classified information of the Department of Defense.

''(3) The Secretary shall disseminate guidance to employees of the Veterans Health Administration, including mental health professionals, on the standards and procedures established under paragraph (1) and how to best engage eligible veterans during the course of mental health treatment with respect to classified information.

''(b) IDENTIFICATION.—In carrying out this section, the Secretary shall ensure that a veteran may elect to identify as an eligible veteran on an appropriate form.

''(c) DEFINITIONS.—In this section:

''(1) The term 'classified information' means any information or material that has been determined by an official of the United States pursuant to law to require protection against unauthorized disclosure for reasons of national security.

''(2) The term 'eligible veteran' means a veteran who—

''(A) is eligible to receive health care furnished by the Department under this title;

''(B) is seeking mental health treatment; and

''(C) in the course of serving in the Armed Forces, participated in a sensitive mission or served in a sensitive unit.

''(3) The term 'sensitive mission' means a mission of the Armed Forces that, at the time at which an eligible veteran seeks treatment, is classified.

''(4) The term 'sensitive unit' has the meaning given that term in section 130b(c)(4) of title 10.''.

(c) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by inserting after the item relating to section 1720G the following new item:

''1720H. Mental health treatment for veterans who served in classified missions.''.

SEC. 606. EXAMINATION AND TREATMENT BY DEPARTMENT OF VETERANS AFFAIRS FOR EMERGENCY MEDICAL CONDITIONS AND WOMEN IN LABOR.

(a) IN GENERAL.—Subchapter VIII of chapter 17 is amended by inserting after section 1784 the following new section:

''§ 1784A. Examination and treatment for emergency medical conditions and women in labor

''(a) IN GENERAL.—In the case of a hospital of the Department that has an emergency department, if any individual comes to the hospital or the campus of the hospital and a request is made on behalf of the individual for examination or treatment for a medical condition, the hospital must provide for an appropriate medical screening examination within the capability of the emergency department, including ancillary services routinely available to the emergency department, to determine whether or not an emergency medical condition exists.

''(b) NECESSARY STABILIZING TREATMENT FOR EMERGENCY MEDICAL CONDITIONS AND LABOR.—(1) If any individual comes to a hospital of the Department that has an emergency department or the campus of such a hospital and the hospital determines that

the individual has an emergency medical condition, the hospital must provide either—

''(A) within the staff and facilities available at the hospital, for such further medical examination and such treatment as may be required to stabilize the medical condition; or

''(B) for transfer of the individual to another medical facility in accordance with subsection (c).

''(2) A hospital is deemed to meet the requirement of paragraph (1)(A) with respect to an individual if the hospital offers the individual the further medical examination and treatment described in that paragraph and informs the individual (or a person acting on behalf of the individual) of the risks and benefits to the individual of such examination and treatment, but the individual (or a person acting on behalf of the individual) refuses to consent to the examination and treatment. The hospital shall take all reasonable steps to secure the written informed consent of the individual (or person) to refuse such examination and treatment.

''(3) A hospital is deemed to meet the requirement of paragraph (1)(B) with respect to an individual if the hospital offers to transfer the individual to another medical facility in accordance with subsection (c) and informs the individual (or a person acting on behalf of the individual) of the risks and benefits to the individual of such transfer, but the individual (or a person acting on behalf of the individual) refuses to consent to the transfer. The hospital shall take all reasonable steps to secure the written informed consent of the individual (or person) to refuse such transfer.

''(c) RESTRICTING TRANSFERS UNTIL INDIVIDUAL STABILIZED.—(1) If an individual at a hospital of the Department has an emergency medical condition that has not been stabilized, the hospital may not transfer the individual unless—

''(A)(i) the individual (or a legally responsible person acting on behalf of the individual), after being informed of the obligations of the hospital under this section and of the risk of transfer, requests, in writing, transfer to another medical facility;

''(ii) a physician of the Department has signed a certification that, based upon the information available at the time of transfer, the medical benefits reasonably expected from the provision of appropriate medical treatment at another medical facility outweigh the increased risks to the individual and, in the case of labor, to the unborn child from effecting the transfer; or

''(iii) if a physician of the Department is not physically present in the emergency department at the time an individual is transferred, a qualified medical person (as defined by the Secretary for purposes of this section) has signed a certification described in clause (ii) after a physician of the Department, in consultation with the person, has made the determination described in such clause, and subsequently countersigns the certification; and

''(B) the transfer is an appropriate transfer to that facility.

''(2) A certification described in clause (ii) or (iii) of paragraph (1)(A) shall include a summary of the risks and benefits upon which the certification is based.

''(3) For purposes of paragraph (1)(B), an appropriate transfer to a medical facility is a transfer—

''(A) in which the transferring hospital provides the medical treatment within its capacity that minimizes the risks to the health of the individual and, in the case of a woman in labor, the health of the unborn child;

''(B) in which the receiving facility—

''(i) has available space and qualified personnel for the treatment of the individual; and

''(ii) has agreed to accept transfer of the individual and to provide appropriate medical treatment;

''(C) in which the transferring hospital sends to the receiving facility all medical records (or copies thereof) available at the time of the transfer relating to the emergency medical condition for which the individual has presented, including—

''(i) observations of signs or symptoms;

''(ii) preliminary diagnosis;

''(iii) treatment provided;

''(iv) the results of any tests; and

''(v) the informed written request or certification (or copy thereof) provided under paragraph (1)(A);

''(D) in which the transfer is effected through qualified personnel and transportation equipment, including the use of necessary and medically appropriate life support measures during the transfer; and

''(E) that meets such other requirements as the Secretary considers necessary in the interest of the health and safety of the individual or individuals transferred.

''(d) PAYMENT TO THE DEPARTMENT.—The Secretary shall charge for any care or services provided under this section in accordance with billing and reimbursement authorities available to the Secretary under other provisions of law.

''(e) DEFINITIONS.—In this section:

''(1) The term 'campus' means, with respect to a hospital of the Department—

''(A) the physical area immediately adjacent to the main buildings of the hospital;

''(B) other areas and structures that are not strictly contiguous to the main buildings but are located not more than 250 yards from the main buildings; and

''(C) any other areas determined by the Secretary to be part of the campus of the hospital.

''(2) The term 'emergency medical condition' means—

''(A) a medical condition manifesting itself by acute symptoms of sufficient severity (including severe pain) such that the absence of immediate medical attention could reasonably be expected to result in—

''(i) placing the health of the individual (or, with respect to a pregnant woman, the health of the woman or her unborn child) in serious jeopardy;

''(ii) serious impairment to bodily functions; or

''(iii) serious dysfunction of any bodily organ or part; or

''(B) in the case of a pregnant woman, a stage of labor that a medical provider determines indicates—

''(i) that there is inadequate time to effect a safe transfer to another hospital before delivery; or

''(ii) that transfer may pose a threat to the health or safety of the woman or the unborn child.

''(3)(A) The term 'to stabilize' means—

''(i) with respect to an emergency medical condition described in paragraph (2)(A), to provide such medical treatment of the condition as may be necessary to assure, within reasonable medical probability, that no material deterioration of the condition is likely to result from or occur during the transfer of the individual from a facility; or

''(ii) with respect to an emergency medical condition described in paragraph (2)(B), to deliver (including the placenta).

''(B) The term 'stabilized' means—

''(i) with respect to an emergency medical condition described in paragraph (2)(A), that no material deterioration of the condition is likely, within reasonable medical probability, to result from or occur during the transfer of the individual from a facility; or

''(ii) with respect to an emergency medical condition described in paragraph (2)(B), that the woman has delivered (including the placenta).

''(4) The term 'transfer' means the movement (including the discharge) of an individual outside the facilities of a hospital of the Department at the direction of any person employed by (or affiliated or associated, directly or indirectly, with) the hospital, but does not include such a movement of an individual who—

''(A) has been declared dead; or

''(B) leaves the facility without the permission of any such person.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 17 is amended by inserting after the item relating to section 1784 the following new item:

''1784A. Examination and treatment for emergency medical conditions and women in labor.''.

Subtitle B—Veterans Health Administration

SEC. 611. TIME PERIOD COVERED BY ANNUAL REPORT ON READJUSTMENT COUNSELING SERVICE.

Section 7309(e)(1) is amended by striking ''calendar year'' and inserting ''fiscal year''.

SEC. 612. ANNUAL REPORT ON VETERANS HEALTH ADMINISTRATION AND FURNISHING OF HOSPITAL CARE, MEDICAL SERVICES, AND NURSING HOME CARE.

(a) IN GENERAL.—Subchapter II of chapter 73 is amended by adding at the end the following new section:

''§ 7330B. Annual report on Veterans Health Administration and furnishing of hospital care, medical services, and nursing home care

''(a) REPORT REQUIRED.—Not later than March 1 of each of years 2018 through 2022, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on, for the calendar year preceding the calendar year during which the report is submitted—

''(1) the furnishing of hospital care, medical services, and nursing home care under the laws administered by the Secretary; and

''(2) the administration of the furnishing of such care and services by the Veterans Health Administration.

''(b) ELEMENTS.—Each report required by subsection (a) shall include each of the following for the year covered by the report:

''(1) An evaluation of the effectiveness of the Veterans Health Administration in increasing the access of veterans to hospital care, medical services, and nursing home care furnished by the Secretary for which such veterans are eligible.

''(2) An evaluation of the effectiveness of the Veterans Health Administration in improving the quality of health care provided to veterans, without increasing the costs incurred for such health care by the Federal Government or veterans, including relevant information for each medical center and Veterans Integrated Service Network of the Department set forth separately.

''(3) An assessment of—

''(A) the workload of physicians and other employees of the Veterans Health Administration;

''(B) patient demographics and utilization rates;

''(C) physician compensation;

''(D) the productivity of physicians and other employees of the Veterans Health Administration;

''(E) the percentage of hospital care, medical services, and nursing home care provided to veterans in facilities of the Department and in non-Department facilities and

any changes in such percentages compared to the year preceding the year covered by the report;

''(F) pharmaceutical prices; and

''(G) third-party health billings owed to the Department, including the total amount of such billings and the total amount collected by the Department, set forth separately for claims greater than $1,000 and for claims equal to or less than $1,000.

''(c) DEFINITIONS.—In this section, the terms 'hospital care', 'medical services', 'nursing home care', 'facilities of the Department', and 'non-Department facilities' have the meanings given those terms in section 1701 of this title.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 73 is amended by inserting after the item relating to section 7330A the following new item:

''7330B. Annual report on Veterans Health Administration and furnishing of hospital care, medical services, and nursing home care.''.

SEC. 613. EXPANSION OF QUALIFICATIONS FOR LICENSED MENTAL HEALTH COUNSELORS OF THE DEPARTMENT OF VETERANS AFFAIRS TO INCLUDE DOCTORAL DEGREES.

Section 7402(b)(11)(A) is amended by inserting ''or doctoral degree'' after ''master's degree''.

SEC. 614. MODIFICATION OF HOURS OF EMPLOYMENT FOR PHYSICIANS EMPLOYED BY THE DEPARTMENT OF VETERANS AFFAIRS.

Section 7423(a) of title 38, United States Code, is amended—

(1) by striking ''(a) The hours'' and inserting ''(a)(1) Except as provided in paragraph (2), the hours''; and

(2) by adding at the end the following new paragraph:

''(2)(A) Upon the advance written request of a covered physician, the Secretary may modify the hours of employment for a physician appointed in the Administration under any provision of this chapter on a full-time basis to be more or less than 80 hours in a biweekly pay period, subject to the requirements in subparagraph (B). For the purpose of determining pay, such a physician shall be deemed to have a biweekly schedule of 80 hours of employment.

''(B) A physician with an irregular work schedule established under subparagraph (A) shall be obligated to account for at least 2,080 hours of employment (through performance of work or use of leave or paid time off) in a calendar year.

''(C) The Secretary may prescribe regulations to implement this paragraph, including regulations making adjustments to address the annual hours requirement for physicians who are covered by this paragraph for only a portion of a calendar year.''.

SEC. 615. REPEAL OF COMPENSATION PANELS TO DETERMINE MARKET PAY FOR PHYSICIANS AND DENTISTS.

Section 7431(c) is amended—

(1) by striking paragraph (4);

(2) by redesignating paragraphs (5), (6), and (7) as paragraphs (4), (5), and (6), respectively; and

(3) in paragraph (6), as so redesignated, by striking ''under paragraph (6)'' and inserting ''under paragraph (5)''.

SEC. 616. CLARIFICATION REGARDING LIABILITY FOR BREACH OF AGREEMENT UNDER DEPARTMENT OF VETERANS AFFAIRS EMPLOYEE INCENTIVE SCHOLARSHIP PROGRAM.

Section 7675(b)(1)(E) is amended by striking ''In the case of a participant who is a part-time student, the'' and inserting ''The''.

SEC. 617. EXTENSION OF PERIOD FOR INCREASE IN GRADUATE MEDICAL EDUCATION RESIDENCY POSITIONS AT MEDICAL FACILITIES OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Paragraph (2) of section 301(b) of the Veterans Access, Choice, and Accountability Act of 2014 (Public Law 113–146; 38 U.S.C. 7302 note) is amended—

(1) in the paragraph heading, by striking ''FIVE-YEAR'' and inserting ''TEN-YEAR''; and

(2) in subparagraph (A), by striking ''5-year period'' and inserting ''10-year period''.

(b) REPORT.—Paragraph (3)(A) of such section is amended by striking ''2019'' and inserting ''2024''.

SEC. 618. REPORT ON PUBLIC ACCESS TO RESEARCH BY DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Not later than each of 180 days and one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on increasing public access to scientific publications and digital data from research funded by the Department of Veterans Affairs.

(b) ELEMENTS.—Each report submitted under subsection (a) shall include the following:

(1) An identification of the location or locations in which the public will be able to access the results of research funded by the Department, whether on an Internet website of the Department or through another source.

(2) A description of the progress made by the Department in meeting public access requirements set forth in the notice entitled ''Policy and Implementation Plan for Public Access to Scientific Publications and Digital Data from Research Funded by the Department of Veterans Affairs'' (80 Fed. Reg. 60751), including the following:

(A) Compliance of Department investigators with requirements relating to ensuring that research funded by the Department is accessible by the public.

(B) Ensuring data management plans of the Department include provisions for long-term preservation of the scientific data resulting from research funded by the Department.

(3) An explanation of the factors used to evaluate the merit of data management plans of research funded by the Veterans Health Administration.

(4) An explanation of the process of the Department in effect that enables stakeholders to petition a change to the embargo period for a specific field and the factors considered during such process.

SEC. 619. AUTHORIZATION OF CERTAIN MAJOR MEDICAL FACILITY PROJECTS OF THE DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—The Secretary of Veterans Affairs may carry out the following major medical facility projects, with each project to be carried out in an amount not to exceed the amount specified for that project:

(1) Seismic, life safety, and utilities upgrades and expansion of clinical services in Reno, Nevada, in an amount not to exceed $213,800,000.

(2) Seismic corrections to the mental health and community living center in Long Beach, California, in an amount not to exceed $317,300,000.

(b) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary of Veterans Affairs for fiscal year 2017 or the year in which funds are appropriated for the Construction, Major Projects, account $531,100,000 for the projects authorized in subsection (a).

(c) LIMITATION.—The projects authorized in subsection (a) may only be carried out using—

(1) funds appropriated for fiscal year 2017 or the year in which funds are appropriated for the Construction, Major Projects, account pursuant to the authorization of appropriations in subsection (b);

(2) funds available for Construction, Major Projects, for a fiscal year before fiscal year 2017 that remain available for obligation;

(3) funds available for Construction, Major Projects, for a fiscal year after fiscal year 2017 that remain available for obligation;

(4) funds appropriated for Construction, Major Projects, for fiscal year 2017 for a category of activity not specific to a project;

(5) funds appropriated for Construction, Major Projects, for a fiscal year before fiscal year 2017 for a category of activity not specific to a project; and

(6) funds appropriated for Construction, Major Projects, for a fiscal year after fiscal year 2017 for a category of activity not specific to a project.

Subtitle C—Toxic Exposure

SEC. 631. DEFINITIONS.

In this subtitle:

(1) ARMED FORCES.—The term ''Armed Forces'' means the United States Army, Navy, Marine Corps, Air Force, and Coast Guard.

(2) DESCENDANT.—The term ''descendant'' means, with respect to an individual, the biological child or grandchild of that individual.

(3) TOXIC EXPOSURE.—The term ''toxic exposure'' means a condition in which an individual inhaled or ingested an agent determined to be hazardous to the health of the individual or the agent came in contact with the skin or eyes of the individual in a manner that could be hazardous to the health of the individual.

(4) VETERAN.—The term ''veteran'' has the meaning given that term in section 101 of title 38, United States Code.

SEC. 632. NATIONAL ACADEMY OF MEDICINE ASSESSMENT ON RESEARCH RELATING TO THE DESCENDANTS OF INDIVIDUALS WITH TOXIC EXPOSURE.

(a) IN GENERAL.—

(1) AGREEMENT.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall seek to enter into an agreement with the National Academy of Medicine under which the National Academy of Medicine conducts an assessment on scientific research relating to the descendants of individuals with toxic exposure.

(2) ALTERNATE ORGANIZATION.—

(A) IN GENERAL.—If the Secretary is unable within the period prescribed in paragraph (1) to enter into an agreement described in such paragraph with the National Academy of Medicine on terms acceptable to the Secretary, the Secretary shall seek to enter into such an agreement with another appropriate organization that—

(i) is not part of the Federal Government;

(ii) operates as a not-for-profit entity; and

(iii) has expertise and objectivity comparable to that of the National Academy of Medicine.

(B) TREATMENT.—If the Secretary enters into an agreement with another organization as described in subparagraph (A), any reference in this section to the National Academy of Medicine shall be treated as a reference to the other organization.

(b) ELEMENTS.—The assessment conducted pursuant to the agreement entered into under subsection (a) shall include the following:

(1) A scientific review of the scientific literature regarding toxicological and epidemiological research on descendants of individuals with toxic exposure.

(2) An assessment of areas requiring further scientific study relating to the descendants of veterans with toxic exposure.

(3) An assessment of the scope and methodology required to conduct adequate scientific research relating to the descendants of individuals with toxic exposure, including—

(A) the types of individuals to be studied, including veterans with toxic exposure and the descendants of those veterans;

(B) the number of veterans and descendants described in subparagraph (A) to be studied;

(C) the potential alternatives for participation in such a study, including whether it would be necessary for participants to travel in order to participate;

(D) the approximate amount of time and resources needed to prepare and conduct the research; and

(E) the appropriate Federal agencies to participate in the research, including the Department of Defense and the Department of Veterans Affairs.

(4) The establishment of categories, including definitions for each such category, to be used in assessing the evidence that a particular health condition is related to toxic exposure, such as—

(A) sufficient evidence of a causal relationship;

(B) sufficient evidence of an association;

(C) limited or suggestive evidence of an association;

(D) inadequate or insufficient evidence to determine whether an association exists; and

(E) limited or suggestive evidence of no association.

(5) An analysis of—

(A) the feasibility of conducting scientific research to address the areas that require further study as described under paragraph (2);

(B) the value and relevance of the information that could result from such scientific research; and

(C) for purposes of conducting further research, the feasibility and advisability of accessing additional information held by a Federal agency that may be sensitive.

(6) An identification of a research entity or entities with—

(A) expertise in conducting research on health conditions of descendants of individuals with toxic exposure; and

(B) an ability to conduct research on those health conditions to address areas requiring further scientific study as described under paragraph (2).

(c) REPORT.—The agreement entered into under subsection (a) shall require the National Academy of Medicine to submit, not later than two years after entering into such agreement, to the Secretary of Veterans Affairs, the Committee on Veterans' Affairs of the Senate, and the Committee on Veterans' Affairs of the House of Representatives—

(1) the results of the assessment conducted pursuant to such agreement, including such recommendations as the National Academy of Medicine considers appropriate regarding the scope and methodology required to conduct adequate scientific research relating to the descendants of veterans with toxic exposure; and

(2) a determination regarding whether the results of such assessment indicate that it is feasible to conduct further research regarding health conditions of descendants of veterans with toxic exposure, including an explanation of the basis for the determination.

(d) CERTIFICATION.—

(1) IN GENERAL.—Not later than 90 days after receiving the results of the assessment and determination under subsection (c), the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a certification of the understanding of the Secretary, based on such results and determination, regarding the feasibility of conducting further research regarding health conditions of descendants of veterans with toxic exposure that is expressed by such results and determination.

(2) BASIS FOR CERTIFICATION.—The certification submitted under paragraph (1) shall include an explanation of the basis for the certification.

SEC. 633. ADVISORY BOARD ON RESEARCH RELATING TO HEALTH CONDITIONS OF DESCENDANTS OF VETERANS WITH TOXIC EXPOSURE WHILE SERVING IN THE ARMED FORCES.

(a) ESTABLISHMENT.—Unless the Secretary of Veterans Affairs certifies under section 632(d) that the results of the assessment and determination under section 632(c) indicate that it is not feasible to conduct further research regarding health conditions of descendants of veterans with toxic exposure, not later than 180 days after receiving such results and determination, the Secretary shall establish an advisory board (in this section referred to as the ''Advisory Board'') to advise the Secretary in the selection of a research entity or entities under section 634, advise such entity or entities in conducting research under such section, and advise the Secretary with respect to the activities of such entity or entities under such section.

(b) MEMBERSHIP.—

(1) COMPOSITION.—The Secretary, in consultation with the National Academy of Medicine, the Director of the National Institute of Environmental Health Sciences, and such other heads of Federal agencies as the Secretary determines appropriate—

(A) shall select not more than 13 voting members of the Advisory Board, of whom—

(i) not less than two shall be members of organizations exempt from taxation under section 501(c)(19) of the Internal Revenue Code of 1986;

(ii) not less than two shall be descendants of veterans with toxic exposure while serving as members of the Armed Forces; and

(iii) not less than seven shall be health professionals, scientists, or academics who are not employees of the Federal Government and have expertise in—

(I) birth defects;

(II) developmental disabilities;

(III) epigenetics;

(IV) public health;

(V) the science of environmental exposure or environmental exposure assessment;

(VI) the science of toxic substances; or

(VII) medical and research ethics; and

(B) may select not more than two nonvoting members who are employees of the Federal Government and who are otherwise described in subparagraph (A)(iii).

(2) CHAIR.—The Secretary shall select a Chair from among the members of the Advisory Board selected under paragraph (1)(A).

(3) TERMS.—

(A) IN GENERAL.—Each member of the Advisory Board shall serve a term of two or three years as determined by the Secretary.

(B) REAPPOINTMENT.—At the end of the term of a member of the Advisory Board, the Secretary may reselect the member for another term, except that no member may serve more than four consecutive terms.

(c) DUTIES.—The Advisory Board shall—

(1) advise the Secretary in the selection of a research entity or entities to conduct research under section 634 from among those identified under section 632(b)(6);

(2) advise such entity or entities and assess the activities of such entity or entities in conducting such research;

(3) develop a research strategy for such entity or entities based on, but not limited to, the results of the assessment conducted under section 632;

(4) advise the Secretary with respect to the activities of such entity or entities under section 634;

(5) submit recommendations to be included by such entity or entities in the report under section 634(d)(2)(C); and

(6) not less frequently than semiannually, meet with the Secretary and representatives of such entity or entities on the research conducted by such entity or entities under section 634.

(d) MEETINGS.—The Advisory Board shall meet at the call of the Chair, but not less frequently than semiannually.

(e) COMPENSATION.—The members of the Advisory Board shall serve without compensation.

(f) EXPENSES.—The Secretary of Veterans Affairs shall determine the appropriate expenses of the Advisory Board.

(g) PERSONNEL.—

(1) IN GENERAL.—The Chair may, without regard to the civil service laws and regulations, appoint an executive director of the Advisory Board, who shall be a civilian employee of the Department of Veterans Affairs, and such other personnel as may be necessary to enable the Advisory Board to perform its duties.

(2) APPROVAL.—The appointment of an executive director under paragraph (1) shall be subject to approval by the Advisory Board.

(3) COMPENSATION.—The Chair may fix the compensation of the executive director and other personnel without regard to the provisions of chapter 51 and subchapter III of chapter 53 of title 5, United States Code, except that the rate of pay for the executive director and other personnel may not exceed the rate payable for level V of the Executive Schedule under section 5316 of such title.

SEC. 634. RESEARCH RELATING TO HEALTH CONDITIONS OF DESCENDANTS OF VETERANS WITH TOXIC EXPOSURE WHILE SERVING IN THE ARMED FORCES.

(a) IN GENERAL.—Unless the Secretary of Veterans Affairs certifies under section 632(d) that the results of the assessment and determination under section 632(c) indicate that it is not feasible to conduct further research regarding health conditions of descendants of veterans with toxic exposure, not later than one year after receiving such results and determination, the Secretary shall (in consultation with the advisory board established under section 633 (in this section referred to as the ''Advisory Board'')) enter into an agreement with one or more research entities identified under section 632(b)(6) (excluding an entity of the Department of Veterans Affairs) to conduct research on health conditions of descendants of veterans with toxic exposure while serving as members of the Armed Forces (in this section referred to as the ''research entity or entities'').

(b) RESEARCH.—

(1) IN GENERAL.—To the extent included in the research strategy developed by the Advisory Board under section 633(c)(3), the research entity or entities shall conduct research on health conditions of descendants of veterans with toxic exposure while serving as members of the Armed Forces.

(2) STUDIES.—In conducting research under paragraph (1), the research entity or entities may study any veteran, at the election of the veteran, identified under section 632(b)(3)(A) as a type of individual to be studied in order to conduct adequate scientific research relating to the descendants of veterans with toxic exposure.

(3) CATEGORIZATION.—In conducting research under paragraph (1), the research entity or entities shall assess, using the categories established under section 632(b)(4), the extent to which a health condition of a descendant of a veteran is related to the toxic exposure of the veteran while serving as a member of the Armed Forces.

(c) AVAILABILITY OF RECORDS.—

(1) IN GENERAL.—The Secretary of Defense, the Secretary of Veterans Affairs, and the head of each Federal agency identified under section 632(b)(3)(E) shall make available to the research entity or entities records held by the Department of Veterans Affairs, the Department of Defense, the Armed Forces, that Federal agency, or any other source under the jurisdiction of any such Federal agency or the Armed Forces, as appropriate, that the research entity or entities determine are necessary to carry out this section.

(2) MECHANISM FOR ACCESS.—The Secretary of Veterans Affairs, the Secretary of Defense, and the head of each Federal agency identified under section 632(b)(3)(E) shall jointly establish a mechanism for access by the research entity or entities to records made available under paragraph (1).

(d) ANNUAL REPORT.—

(1) IN GENERAL.—Not later than one year after commencing the conduct of research under this section, and not later than September 30 each year thereafter, each research entity with which the Secretary has entered into an agreement under subsection (a) shall, in consultation with the Advisory Board, submit to the Secretary of Veterans Affairs, the Committee on Veterans' Affairs of the Senate, and the Committee on Veterans' Affairs of the House of Representatives a report on the functions of such entity under this section during the year preceding the submittal of the report.

(2) ELEMENTS.—Each report submitted under paragraph (1) shall include the following:

(A) A summary of the research efforts that have been completed during the year preceding the submittal of the report and that are ongoing as of the date of the submittal of the report.

(B) A description of any findings made during such year in carrying out such research efforts.

(C) Recommendations for administrative or legislative action made by the Advisory Board based on such findings, which may include recommendations for further research under this section.

(3) UPON REQUEST.—Upon the request of any organization exempt from taxation under section 501(c)(19) of the Internal Revenue Code of 1986, the Secretary of Veterans Affairs may transmit to such organization a copy of a report received by the Secretary under paragraph (1).

TITLE VII—HOMELESSNESS MATTERS

Subtitle A—Access of Homeless Veterans to Benefits

SEC. 701. EXPANSION OF DEFINITION OF HOMELESS VETERAN FOR PURPOSES OF BENEFITS UNDER THE LAWS ADMINISTERED BY THE SECRETARY OF VETERANS AFFAIRS.

Section 2002 is amended—

(1) by striking ''In this chapter'' and inserting ''(a) IN GENERAL.—In this chapter'';

(2) by striking ''in section 103(a) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11302(a))'' and inserting ''in subsection (a) or (b) of section 103 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11302)''; and

(3) by adding at the end the following:

''(b) VETERAN DEFINED.—(1) Notwithstanding section 101(2) of this title and except as provided in paragraph (2), for purposes of sections 2011, 2012, 2013, 2044, and 2061 of this title, the term 'veteran' means a person who served in the active military, naval, or air service, regardless of length of service, and who was discharged or released therefrom.

''(2) For purposes of paragraph (1), the term 'veteran' excludes a person who—

''(A) received a dishonorable discharge from the Armed Forces; or

''(B) was discharged or dismissed from the Armed Forces by reason of the sentence of a general court-martial.''.

SEC. 702. AUTHORIZATION TO FURNISH CERTAIN BENEFITS TO HOMELESS VETERANS WITH DISCHARGES OR RELEASES UNDER OTHER THAN HONORABLE CONDITIONS.

Section 5303(d) is amended—

(1) by striking ''not apply to any war-risk insurance, Government (converted) or National Service Life Insurance policy.'' and inserting the following: ''not apply to the following:

''(1) Any war-risk insurance, Government (converted) or National Service Life Insurance policy.''; and

(2) by adding at the end the following new paragraph:

''(2) Benefits under section 2011, 2012, 2013, 2044, or 2061 of this title (except for benefits for individuals discharged or dismissed from the Armed Forces by reason of the sentence of a general court-martial).''.

SEC. 703. WAIVER OF MINIMUM PERIOD OF CONTINUOUS ACTIVE DUTY IN ARMED FORCES FOR CERTAIN BENEFITS FOR HOMELESS VETERANS.

Section 5303A(b)(3) is amended—

(1) by redesignating subparagraphs (F) and (G) as subparagraphs (G) and (H), respectively; and

(2) by inserting after subparagraph (E) the following new subparagraph (F):

''(F) to benefits under section 2011, 2012, 2013, 2044, or 2061 of this title;''.

SEC. 704. TRAINING OF PERSONNEL OF THE DEPARTMENT OF VETERANS AFFAIRS AND GRANT RECIPIENTS.

The Secretary of Veterans Affairs shall conduct a program of training and education to ensure that the following persons are aware of and implement this title and the amendments made by this subtitle:

(1) Personnel of the Department of Veterans Affairs who are supporting or administering a program under chapter 20 of title 38, United States Code.

(2) Recipients of grants or other amounts for purposes of carrying out such a program.

SEC. 705. REGULATIONS.

Not later than 270 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall prescribe regulations, including such modifications to section 3.12 of title 38, Code of Federal Regulations (or any successor regulation), as the Secretary considers appropriate, to ensure that the Department of Veterans Affairs is in full compliance with this title and the amendments made by this subtitle.

SEC. 706. EFFECTIVE DATE.

This subtitle and the amendments made by this subtitle shall apply to individuals seeking benefits under chapter 20 of title 38, United States Code, before, on, and after the date of the enactment of this Act.

Subtitle B—Other Homelessness Matters

SEC. 711. INCREASED PER DIEM PAYMENTS FOR TRANSITIONAL HOUSING ASSISTANCE THAT BECOMES PERMANENT HOUSING FOR HOMELESS VETERANS.

Section 2012(a)(2) is amended—

(1) by redesignating subparagraphs (B) through (D) as subparagraphs (C) through (E), respectively;

(2) in subparagraph (C), as redesignated, by striking ''in subparagraph (D)'' and inserting ''in subparagraph (E)'';

(3) in subparagraph (D), as redesignated, by striking ''under subparagraph (B)'' and inserting ''under subparagraph (C)'';

(4) in subparagraph (E), as redesignated, by striking ''in subparagraphs (B) and (C)'' and inserting ''in subparagraphs (C) and (D)'';

(5) in subparagraph (A)—

(A) by striking ''The rate'' and inserting ''Except as otherwise provided in subparagraph (B), the rate''; and

(B) by striking ''under subparagraph (B)'' and all that follows and inserting ''under subparagraph (C).''; and

(6) by inserting after subparagraph (A) the following new subparagraph (B):

''(B)(i) Except as provided in clause (ii), in no case may the rate determined under this paragraph exceed the rate authorized for State homes for domiciliary care under subsection (a)(1)(A) of section 1741 of this title, as the Secretary may increase from time to time under subsection (c) of that section.

''(ii) In the case of services furnished to a homeless veteran who is placed in housing that will become permanent housing for the veteran upon termination of the furnishing of such services to such veteran, the maximum rate of per diem authorized under this section is 150 percent of the rate authorized for State homes for domiciliary care under subsection (a)(1)(A) of section 1741 of this title, as the Secretary may increase from time to time under subsection (c) of that section.''.

SEC. 712. PROGRAM TO IMPROVE RETENTION OF HOUSING BY FORMERLY HOMELESS VETERANS AND VETERANS AT RISK OF BECOMING HOMELESS.

(a) PROGRAM REQUIRED.—

(1) IN GENERAL.—Subchapter II of chapter 20 is amended—

(A) by redesignating section 2013 as section 2014; and

(B) by inserting after section 2012 the following new section 2013:

''§ 2013. Program to improve retention of housing by formerly homeless veterans and veterans at risk of becoming homeless

''(a) PROGRAM REQUIRED.—The Secretary shall carry out a program under which the Secretary shall provide case management services to improve the retention of housing by veterans who were previously homeless and are transitioning to permanent housing and veterans who are at risk of becoming homeless.

''(b) GRANTS.—(1) The Secretary shall carry out the program through the award of grants.

''(2)(A) In awarding grants under paragraph (1), the Secretary shall give priority to organizations that demonstrate a capability to provide case management services as described in subsection (a), particularly organizations that are successfully providing or have successfully provided transitional housing services using amounts provided by the Secretary under sections 2012 and 2061 of this title.

''(B) In giving priority under subparagraph (A), the Secretary shall give extra priority to an organization described in such subparagraph that—

''(i) voluntarily stops receiving amounts provided by the Secretary under sections 2012 and 2061 of this title; and

''(ii) converts a facility that the organization used to provide transitional housing services into a facility that the organization uses to provide permanent housing that meets housing quality standards established under section 8(o)(8)(B) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(8)(B)).

''(C) In any case in which a facility, with respect to which a person received a grant

for construction, rehabilitation, or acquisition under section 2011 of this title, is converted as described in subparagraph (B)(ii), such conversion shall be considered to have been carried out pursuant to the needs of the Department and such person shall not be considered in noncompliance with the terms of such grant by reason of such conversion.''.

(2) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by striking the item relating to section 2013 and inserting the following new items:

''2013. Program to improve retention of housing by formerly homeless veterans and veterans at risk of becoming homeless.
''2014. Authorization of appropriations.''.

(b) REGULATIONS.—Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall prescribe regulations to carry out section 2013 of such title, as added by subsection (a)(1)(B).

(c) REPORT.—

(1) IN GENERAL.—Not later than June 1, 2020, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the program required by section 2013 of such title, as added by subsection (a)(1)(B).

(2) CONTENTS.—The report submitted under paragraph (1) shall include assessments of the following:

(A) The percentage of veterans who received case management services under the program who were able to retain permanent housing by the end of the program, disaggregated by each recipient of a grant under such section.

(B) The percentage of veterans who received case management services under the program who were not in permanent housing at the end of the program, disaggregated by housing status and reason for failing to retain permanent housing under the program.

(C) The use by veterans, who received case management services under the program, of housing assistance furnished by the Department of Veterans Affairs, including a comparison of the use of such assistance by such veterans before and after receiving such services.

(D) An assessment of the employment status of veterans who received case management services under the program, including a comparison of the employment status of such veterans before and after receiving such services.

SEC. 713. ESTABLISHMENT OF NATIONAL CENTER ON HOMELESSNESS AMONG VETERANS.

(a) IN GENERAL.—Subchapter VII of chapter 20 is amended by adding at the end the following new section:

''§ 2067. National Center on Homelessness Among Veterans

''(a) IN GENERAL.—(1) The Secretary shall establish and operate a center to carry out the functions described in subsection (b).

''(2) The center established under paragraph (1) shall be known as the 'National Center on Homelessness Among Veterans'.

''(3) To the degree practicable, the Secretary shall operate the center established under paragraph (1) independently of the other programs of the Department that address homelessness among veterans.

''(b) FUNCTIONS.—The functions described in this subsection are as follows:

''(1) To carry out and promote research into the causes and contributing factors to veteran homelessness.

''(2) To assess the effectiveness of programs of the Department to meet the needs of homeless veterans.

''(3) To identify and disseminate best practices with regard to housing stabilization, income support, employment assistance, community partnerships, and such other matters as the Secretary considers appropriate with respect to addressing veteran homelessness.

''(4) To integrate evidence-based and best practices, policies, and programs into programs of the Department for homeless veterans and veterans at risk of homelessness and to ensure that the staff of the Department and community partners can implement such practices, policies, and programs.

''(5) To serve as a resource center for, and promote and seek to coordinate the exchange of information regarding, all research and training activities carried out by the Department and by other Federal and non-Federal entities with respect to veteran homelessness.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter 20 is amended by inserting after the item relating to section 2066 the following new item:

''2067. National Center on Homelessness Among Veterans.''.

SEC. 714. REQUIREMENT FOR DEPARTMENT OF VETERANS AFFAIRS TO ASSESS COMPREHENSIVE SERVICE PROGRAMS FOR HOMELESS VETERANS.

(a) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall—

(1) assess and measure the capacity of programs for which entities receive grants under section 2011 of title 38, United States Code, or per diem payments under section 2012 or 2061 of such title; and

(2) assess such programs with respect to—

(A) how well they achieve their stated goals at a national level;

(B) placements in permanent housing;

(C) placements in employment; and

(D) increases in the regular income of participants in the programs.

(b) ASSESSMENT AT NATIONAL AND LOCAL LEVELS.—In assessing and measuring under subsection (a)(1), the Secretary shall develop and use tools to examine the capacity of programs described in such subsection at both the national and local level in order to assess the following:

(1) Whether sufficient capacity exists to meet the needs of homeless veterans in each geographic area.

(2) Whether existing capacity meets the needs of the subpopulations of homeless veterans located in each geographic area.

(3) The amount of capacity that recipients of grants under sections 2011 and 2061 and per diem payments under section 2012 of such title have to provide services for which the recipients are eligible to receive per diem under section 2012(a)(2)(B)(ii) of title 38, United States Code, as added by section 711(6).

(c) CONSIDERATION OF OTHER RESOURCES.—In assessing and measuring programs under subsection (a)(1), the Secretary shall consider the availability to such programs of resources made available to such programs and to homeless veterans, including resources provided by the Department of Veterans Affairs and by entities other than the Department.

(d) USE OF INFORMATION.—The Secretary shall use the information collected under this section as follows:

(1) To set specific goals to ensure that programs described in subsection (a) are effectively serving the needs of homeless veterans.

(2) To assess whether programs described in subsection (a) are meeting goals set under paragraph (1).

(3) To inform funding allocations for programs described in subsection (a).

(4) To improve the referral of homeless veterans to programs described in subsection (a).

(e) REPORT.—Not later than 180 days after the date on which the assessment required by subsection (a) is completed, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on such assessment and such recommendations for legislative and administrative action as the Secretary may have to improve the programs and per diem payments described in subsection (a).

SEC. 715. REPORT ON OUTREACH RELATING TO INCREASING THE AMOUNT OF HOUSING AVAILABLE TO VETERANS.

Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs and the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Veterans' Affairs and the Committee on Financial Services of the House of Representatives a report describing and assessing the outreach conducted by the Secretary to realtors, landlords, property management companies, and developers to educate them about the housing needs of veterans and the benefits of having veterans as tenants.

TITLE VIII—OTHER MATTERS

SEC. 801. DEPARTMENT OF VETERANS AFFAIRS CONSTRUCTION REFORMS.

(a) APPLICATION OF INDUSTRY STANDARDS; ASSISTANCE.—Section 8103 is amended by adding at the end the following new subsections:

''(f) To the maximum extent practicable, the Secretary shall use industry standards, standard designs, and best practices in carrying out the construction of medical facilities.

''(g) The Secretary shall ensure that each employee of the Department with responsibilities, as determined by the Secretary, relating to the infrastructure construction or alteration of medical facilities, including such construction or alteration carried out pursuant to contracts or agreements, undergoes a program of ongoing professional training and development. Such program shall be designed to ensure that employees maintain adequate expertise relating to industry standards and best practices for the acquisition of design and construction services. The Secretary may provide the program under this subsection directly or through a contract or agreement with a non-Federal entity or with a non-Department Federal entity.''.

(b) FORENSIC AUDITS OF CERTAIN PROJECTS.—Subsection (c) of section 8104 is amended—

(1) by striking ''Not less than 30 days'' and inserting ''(1) Not less than 30 days''; and

(2) by adding at the end the following new paragraph:

''(2) The Secretary shall—

''(A) enter into a contract or agreement with an appropriate non-department Federal entity with the ability to conduct forensic audits on medical facility projects for the conduct of an external forensic audit of the expenditures relating to any major medical facility or super construction project for which the total expenditures exceed the amount requested in the initial budget request for the project submitted to Congress under section 1105 of title 31 by more than 25 percent; and

''(B) enter into a contract or agreement with an appropriate non-department Federal entity with the ability to conduct forensic audits on medical facility projects for the conduct of an external audit of the medical center construction project in Aurora, Colorado.''.

(c) USE OF AMOUNTS FROM BID SAVINGS.—Subsection (d)(2)(B) of such section is amended—

(1) by redesignating clauses (ii) and (iii) as clauses (iii) and (iv), respectively;

(2) by inserting after clause (i) the following new clause (ii):

''(ii) If the major construction project that is the source of the bid savings is not complete—

''(I) the amount already obligated by the Department or available in the project reserve for such project;

''(II) the percentage of such project that has been completed; and

''(III) the amount available to the Department to complete such project.''; and

(3) in clauses (iii) and (iv), as redesignated by paragraph (1), strike ''amounts'' and inserting ''bid savings amounts'' both places it appears.

(d) QUARTERLY REPORT ON SUPER CONSTRUCTION PROJECTS.—

(1) IN GENERAL.—At the end of subchapter I of chapter 81 add the following new section:

''§ 8120. Quarterly report on super construction projects

''(a) QUARTERLY REPORTS REQUIRED.—Not later than 30 days after the last day of each fiscal quarter the Secretary shall submit to the Committees on Veterans' Affairs of the Senate and House of Representatives a report on the super construction projects carried out by the appropriate non-Department Federal entity described in section 8103(e)(1) of this title during such quarter. Each such report shall include, for each such project—

''(1) the budgetary and scheduling status of the project, as of the last day of the quarter covered by the report; and

''(2) the actual cost and schedule variances of the project, as of such day, compared to the planned cost and schedules for the project.

''(b) SUPER CONSTRUCTION PROJECT DEFINED.—In this section, the term 'super construction project' has the meaning given such term in section 8103(e)(3) of this title.''.

(2) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by adding at the end of the items relating to such subchapter the following new item:

''8120. Quarterly report on super construction projects.''.

SEC. 802. TECHNICAL AND CLERICAL AMENDMENTS.

Title 38, United States Code, is amended as follows:

(1) In section 735(a)(5), by striking ''(Public Law 104–191)'' and inserting ''(Public Law 104–191; 42 U.S.C. 1320d–2 note)''.

(2) In the table of sections at the beginning of chapter 17, by striking the items relating to sections 1710D and 1710E and inserting the following new items:

''1710D. Traumatic brain injury: comprehensive program for long-term rehabilitation.

''1710E. Traumatic brain injury: use of non-Department facilities for rehabilitation.''.

(3) In section 1710(e)(1)(F), by inserting a comma after ''1953''.

(4) In section 7412(b), by striking ''under paragraph (1)'' and inserting ''under subsection (a)''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Tennessee (Mr. ROE) and the gentleman from California (Mr. TAKANO) each will control 20 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 6416, the Jeff Miller and Richard Blumenthal Veterans Health Care and Benefits Improvement Act of 2016. This bipartisan, bicameral legislation represents a significant portion of the committee's hard work throughout the 114th Congress and contains numerous provisions that would improve healthcare benefits and services for those that are most deserving: our Nation's heroes.

□ 1430

I am proud to report that so far this Congress, the House has passed 60 veterans-related bills. By the close of business tomorrow, that tally will be 68. The text of many of those bills can be found within H.R. 6416.

While we do not have enough time for me to go through every worthwhile section of this legislation, I do want to touch on just a few. Among the provisions that would improve disability benefits is one that would allow physicians who are under contract with VA and who have unrestricted licenses to conduct disability examinations in any State, regardless of where that physician is licensed.

Another provision would extend the temporary expansion of the Court of Appeals for Veterans Claims to nine judges through 2020, which would help the court address the growing number of cases before it and ensure veterans receive the court's decision in a timely manner.

Three proposals sponsored by Chairman MILLER would ensure that all veterans have the opportunity to have future generations remember and respect their lives and their service by directing VA to provide a medallion to be affixed to the headstone in a private cemetery that signifies that a deceased person is a veteran, permitting VA to furnish a medallion or marker specifically designed for the graves of the deceased Medal of Honor recipients, and providing Presidential Memorial Certificates to those who served in the National Guard or Reserve even if they were never called to Active Duty.

Other provisions of the bill would make needed improvements to education, vocational rehabilitation, and employment benefits to better support veterans by prioritizing vocational rehabilitation services for our most disabled veterans, increasing approval and access to oversight processes for education programs and schools, improving coordination between Federal and State agencies who provide employment services to veterans, expanding eligibility for work-study programs, extending the amount of time spouses of fallen servicemembers have to use the GI Bill's Fry Scholarship benefits, and by extending instate tuition rate limit to dependents of servicemembers who are still serving on Active Duty, a policy change that will allow VA to fully cover their tuition charges.

Finally, this bill also contains numerous provisions that would improve the health and care that VA provides our veterans. To increase accountability, oversight, and transparency of the VA healthcare system, it would require VA to produce and provide an annual report on a number of critical measures of care.

To improve the provision of care to those facing a health emergency, it would clarify VA's responsibility to provide medical screenings and treatment to individuals requesting to be seen in a VA emergency room, including women in labor, and ensure that VA emergency room physicians are afforded the schedule flexibility that their private sector colleagues enjoy and the nature of their work demands.

To address ongoing concerns about the potential impact of toxic exposure during military service on veterans' descendants, it would require VA to enter into an agreement with the National Academy of Medicine to conduct an assessment and issue a report on scientific research relating to the descendants of individuals with toxic exposure and, depending on the results of those efforts, require VA to establish an advisory board to advise the Secretary on further research. That provision is strongly supported by Vietnam Veterans of America, and I am glad to see it included here.

The bill also includes provisions that would require reforms to VA's medical facility construction processes and procedures. The many failures of VA's current construction program have been well publicized and will continue to be a focus of this committee's oversight next Congress so that we can all be assured that VA both has the facilities it needs to provide the care our veterans deserve and is being a responsible steward of taxpayer dollars.

Unfortunately, we were unable to get every provision that cleared this Chamber or that the committee included in this legislation, which only means there is still work to be done next year and beyond. I am grateful to all the Members who have contributed thoughtful and, most importantly, needed legislation throughout this Congress in support of our veterans.

Mr. Speaker, I urge my colleagues to join me in supporting H.R. 6416, a bill named in part after Chairman MILLER.

I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I rise in support of the Jeff Miller and Richard Blumenthal Veterans Health Care and Benefits Improvement Act of 2016.

Naming the bill after my colleagues is a testament to the bipartisan nature of both the House and Senate Committees on Veterans' Affairs. The bill before us today contains numerous pieces of legislation introduced or supported by Members on both sides of the aisle.

I thank Chairman MILLER and all the members of the Committee on Veterans' Affairs, both Democrats and Republicans, for their hard work putting together an omnibus bill that will improve the care and support we provide to America's veterans.

I want to specifically acknowledge our committee members—Representative BROWN, Representative TITUS, Dr. RUIZ, Representative O'ROURKE, Representative RICE, Representative WALZ, and Representative MCNERNEY; and my other Democratic colleagues, Representative PINGREE and Representative FRANKEL, Senator-elect DUCKWORTH, Representative GALLEGO, Representative HAHN, and Representative SINEMA—all who made valuable contributions to this bill.

I also would like to take this time to congratulate Dr. ROE on his selection as the next chairman of the House Committee on Veterans' Affairs. I look forward to working with him in order to preserve the bipartisan nature of this committee in the 115th Congress so that we can do what is best for veterans.

It is fitting that we are taking this bill up on the eve of the attack on Pearl Harbor. December 7, 1941, is remembered not just for the 2,300 Americans that we lost that day, but also for the heroic response of so many Americans that followed. It is a reminder of the sacrifices millions of young men and women have made in service to our Nation. It is a reminder of the debt we owe them.

As the ranking member of the Subcommittee on Economic Opportunity and as a former community college trustee, I am pleased that this bill contains several provisions that will improve veterans' education and employment prospects after they serve. I have enjoyed collaborating with Chairman WENSTRUP, and I am proud of the bills our subcommittee has moved forward.

This bill before us today contains language from H.R. 2360, the Career-Ready Student Veterans Act, which I introduced last May, to ensure that veterans who use their hard-earned Post-9/11 GI Bill benefits will attend education programs that prepare them for a career in their chosen field of study.

It requires that all career education programs meet proper accreditation, licensure, and certification requirements in order to serve student veterans who are using Post-9/11 GI Bill benefits.

The Department of Defense already has this policy in place to protect servicemembers using tuition assistance benefits. It often makes sense that Congress should protect student veterans in the very same way. This provision is supported by the American Legion, the VFW, IAVA, and other VSOs.

This bill also includes H.R. 2361, Work-Study for Student Veterans Act, which I introduced with Chairman WENSTRUP. It reauthorizes certain work-study activities for individuals receiving educational assistance through the VA. The current authorization expired in 2013. This bill reauthorizes the program through 2021.

Through the VA's Student Work-Study Allowance Program, qualifying student veterans in college degree programs or vocational or professional programs are paid to work in a variety of capacities on campus, at VA facilities, and at other veteran-centered organizations to assist fellow veterans. This provision will reinstate expired activities to allow participating veterans more options when entering VA's successful work-study program.

The work-study program achieves two important goals: offering student veterans a way to earn a little extra money, and providing transitioning veterans with the guidance and assistance of fellow veterans who know firsthand what that transition is like. Peer-to-peer support is one of the most effective methods we have to help veterans meet the challenges of civilian life.

I worked with Congresswoman RADEWAGEN to introduce H.R. 5229, the Improving Transition Programs for All Veterans Act, which requires VA, the Department of Labor, and the Department of Defense to study the effectiveness of veterans' transition programs for women veterans and other minority groups. This policy will help us learn about how we can specialize transition programs for minority veterans in order to meet their unique needs and overcome barriers to employment.

The specific groups that will be included in this study include women veterans, veterans with disabilities, Native American veterans, insular island veterans from the U.S. territories, and other groups as determined by the Secretaries. This generation of veterans is the most diverse in American history, and we must be prepared to support every person who has served.

I am pleased to have worked on this legislation in a bipartisan fashion, and I am glad it was included in the omnibus before us today. I believe it will ensure the best outcome for all veterans during their transition from military to civilian life.

H.R. 6416 improves the Fry Scholarship for the children and spouses of fallen soldiers. The bill includes H.R. 2531, introduced by Representative and now Senator-elect TAMMY DUCKWORTH, an Iraq war combat veteran. This provision will provide a surviving spouse whose husband or wife died in the line of duty after 9/11/2001 the time necessary to use the full 36-month benefit from the Fry Scholarship without fear of it being cut short during their educational pursuits.

The Fry Scholarship is an educational benefit given to children and spouses of our fallen troops. Currently, public law cuts off Fry Scholarship eligibility 15 years from the date of a servicemember's death. Unfortunately, this means that spouses who lost a loved one shortly after 9/11 could be out of time to use an educational benefit that is good for 36 months of enrollment and is normally used over the course of 4 years. This policy will allow Gold Star families whose eligibility will end before they can fully use their benefit to complete their education.

There are several very important provisions in H.R. 6416 that I would like to highlight in the area of claims processing and how we, as a nation, honor and memorialize our Nation's heroes.

Chairman ABRAHAM and Ranking Member TITUS of the Subcommittee on Disability Assistance and Memorial Affairs have worked hard for the last 2 years, and it shows by the almost two dozen provisions produced by their subcommittee that are included in this bill.

One of these is the long overdue Honor America's Guard-Reserve Retirees Act, introduced by the gentleman from Minnesota (Mr. WALZ), which confers honorary veteran status to Guard and Reserve members who have served for 20 years and who would otherwise not meet the full requirement for veteran status under the U.S. Code. These servicemembers wear the same uniform, receive the same training, are subject to the same code of military justice, and in many cases fight and die alongside Active Duty troops in war. It is clear why receiving this honor is so important to them, and I am very happy to be here today to support the legislation of Mr. WALZ.

I would also like to highlight four bills introduced by minority members of the Committee on Veterans' Affairs intended to expedite veterans' claims for various types of benefits.

H.R. 6416 also contains the Veterans Access to Speedy Review Act, which requires the Board of Veterans Appeals to allow video appeal hearings available to veterans who choose them. Again, this simple, sensible approach can speed up the benefits appeal process for veterans who are comfortable with the videoconference format. This will mean that many veterans will no longer have to wait for an in-person hearing and will no longer need to travel; saving them time, money, and the stress of traveling, which is particularly difficult for our disabled veterans.

This bill also includes two sections drafted by Congressman O'ROURKE and Ranking Member TITUS that will increase VA transparency so that congressional policymakers and the public know how the VA is doing with its processing of veterans' claims and appeals. The first section requires that the VA publish average times for processing claims and appeals, including those that are timely and overdue. The second section requires a GAO study of the Veterans Benefits Administration regional offices to determine the management and communication factors that distinguish higher performing offices from the average and lower performing offices.

There is another group of veterans who deserve our greatest respect, and

that is the men and women left permanently wounded, ill, or injured as a result of service in the armed services. I believe we will hear later from the gentlewoman from Florida (Ms. FRANKEL) about her resolution to honor these veterans which is included in today's bill.

Mr. Speaker, making sure veterans get the care and benefits they have earned and deserve is the mission of this committee, and this bill helps keep that promise. For the past 2 years, the Subcommittee on Health has been focused on improving access to care, strengthening mental health care, recruiting and retaining quality providers, and reducing veteran homelessness. These priorities are reflected in the bill before us today.

VA's construction program has been the target of several hearings and reports for many years now. They have exposed cost overruns, poor oversight, and a host of management issues. This bill would address some of the issues brought up over this past Congress. I thank Congresswoman KATHLEEN RICE for her leadership on these issues and for introducing a provision that would require a forensic audit when a project exceeds its authorization by more than 25 percent.

□ 1445

H.R. 6416 also ensures that eligible veterans can access mental health care in a manner that honors their obligation not to disclose classified information.

I would like to thank Representative SINEMA of Arizona for introducing this issue as part of H.R. 421, the Classified Veterans Access to Care Act.

In addition, it adds professionals who have a doctoral degree to the list of qualified, VA-licensed mental health counselors.

On the issue of veteran homelessness, we all agree that one homeless veteran is one too many. For the past decade, VA has been working diligently to dramatically reduce the homeless population among veterans, and those efforts have been successful—but we can always do more.

An important provision of H.R. 6416, introduced by Representative HAHN of California, would help many of our women veterans by expanding the definition of ''homeless veteran.'' This will ensure that veterans who are victims of domestic violence are able to access emergency housing and are not penalized under the law.

Mr. Speaker, as we move forward, I want to acknowledge that, while H.R. 6416 does indeed do a number of good things to help veterans, there is still much more that we need to do. I know that finding ways to pay for new programs without cutting existing support for veterans has been one of our biggest challenges in this Congress, but I look forward to working with our Members and our colleagues across the aisle to advance big policy issues that will help millions of veterans, issues such as appeals reform, leasing and provider agreements, and caregiver support.

Once again, I urge my colleagues to support H.R. 6416.

Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as we begin debate on these important bills, I would like to take a moment to thank outgoing Chairman MILLER for his tireless work on behalf of our Nation's veterans and, of course, on behalf of Florida's First Congressional District.

Chairman MILLER has led the House Veterans' Affairs Committee through tumultuous times at the VA. Through his service and extensive oversight, he has exposed a bureaucracy that has failed veterans time and time again. His commitment to veterans has never wavered. He has started the VA on a path to reforms the agency has so desperately needed.

It has been an honor to serve along beside him. I know I have got big shoes to fill come January. He leaves behind the legacy of a statesman who has never compromised his principles or forgotten the people he was elected to serve.

On a personal note, JEFF has become a dear friend, and I know our friendship will continue long after he has left these Halls. For the last 6 years, veterans have had a friend in JEFF MILLER, and so have I. I wish him well in his future endeavors and thank him for all he has done for this body, for Floridians, and for our heroes in the 15 years he served honorably in the House of Representatives, the people's House.

I would also like to thank his wife, Vicki, as well as his children, grandchildren, and great-grandchild. As we all know, none of the work we do here would be possible without the support and understanding of our families. There is no question, JEFF has a special family.

Mr. Speaker, I yield such time as he may consume to the gentleman from Florida (Mr. MILLER), chairman of the Veterans' Affairs Committee.

Mr. MILLER of Florida. Mr. Speaker, I thank Dr. ROE for those extremely kind words. I thank him especially for recognizing my family. We both know how important they are to the success that we are able to obtain here in the Halls of Congress.

I rise in support of H.R. 6416. This legislation contains over 90 sections, many of which originated in almost 70 veterans bills that the House will pass in the 114th Congress. Though H.R. 6416 reflects just a fraction of our collaborative efforts, it nonetheless contains many important provisions that we can all be pleased in this House to support.

For example, it includes the text of H.R. 1380, which would expand eligibility for medallions to veterans who passed away before November 1, 1990. Under current law, the Department of Veterans Affairs furnishes medallions for veterans who are buried in private cemeteries who passed away after November 1, 1990. Many families whose loved ones passed away prior to that date have requested that VA provide a medallion to distinguish their loved one's grave so that all will know it is the burial place of a veteran. This bill would authorize VA to do just that.

H.R. 6416 would also authorize the Department of Veterans Affairs to furnish medallions designed especially for veterans who have received the Medal of Honor, our Nation's most prestigious award for military valor. This will ensure that future generations will be able to identify the final resting place of our Nation's most revered heroes.

H.R. 6416 also includes a provision to provide more time for widows and widowers of servicemembers who have died in the line of duty to use their post-9/11 GI bill educational benefits under the Fry Scholarship. The spouses of those who have given the ultimate sacrifice deserve nothing less.

What is more, H.R. 6416 contains provisions from H.R. 1994 that would increase accountability by limiting the amount of time that the Secretary can place a VA employee on administrative leave to only 14 days in a single year. It makes no sense that a VA employee who commits a wrongdoing can continue to collect a taxpayer-funded paycheck for, in some cases, years while the Department drags its feet determining disciplinary action.

The bill further contains a number of provisions that would improve the care that VA provides to our veterans, including a provision that would address a longstanding concern of many of our Vietnam veterans by requiring VA to conduct research on the possible effects of toxic exposure during military service on veterans' children and their grandchildren.

Importantly, H.R. 6416 also contains a provision from H.R. 310 that would require VA to use industry standards, standard designs, and best practices when constructing VA medical facilities; to provide ongoing professional development and training to VA employees involved in constructing VA medical facilities; and to regularly audit and report on the largest VA medical facility projects.

Before concluding, I want to take a moment to publicly thank a number of individuals who have been instrumental not only in advancing this legislation, but also throughout my time as chairman of our committee.

Serving as chairman of the Committee on Veterans' Affairs has been an immense honor, and I am grateful to all of those who put their trust and faith in me to fulfill that role for the last three Congresses. I hope that I have done each of you proud.

I am particularly grateful to my fellow committee chairmen and ranking members in the House, including Mike Michaud, CORRINE BROWN, and MARK TAKANO; and in the Senate, including PATTY MURRAY, RICHARD BURR, BERNIE

SANDERS, JOHNNY ISAKSON, and RICHARD BLUMENTHAL.

I am also grateful to House leadership, including John Boehner, PAUL RYAN, and KEVIN MCCARTHY, and to all the committee members who strive day in and day out to do right by America's veteran heroes.

The bipartisan nature of this committee is unique in this Congress. It is nothing less than what our veterans deserve. While much remains to be done, we can all be proud of the work that we have, together, accomplished so far.

I have every confidence, Mr. Speaker, that the next committee chairman, Dr. ROE, whom I am grateful to call a friend, will continue the work that we have started. I look forward to seeing all that he and the House will continue to accomplish for the men and women who have worn the uniform and borne the battle and who, without a doubt, are most worthy of our appreciation and our support.

Again, Mr. Speaker, I thank my family, most especially my wife, for the support that they have given during my service here in this Congress.

I urge all of my colleagues to support this legislation.

Mr. TAKANO. Mr. Speaker, might I inquire as to how much time for debate remains on each side.

The SPEAKER pro tempore. The gentleman from California has 7½ minutes remaining. The gentleman from Tennessee has 8 minutes remaining.

Mr. TAKANO. Mr. Speaker, I yield 2 minutes to the gentlewoman from Nevada (Ms. TITUS), the ranking member of the Disability Assistance and Memorial Affairs Subcommittee.

Ms. TITUS. Mr. Speaker, I thank the acting ranking member for yielding and for all the important work he has done on this bill.

Mr. Speaker, I rise today in support of H.R. 6416, which includes a number of provisions offered by my colleagues on the committee and beyond to help our veterans. It actually includes two measures that I authored: one requires the GAO to conduct a study to find out the causes of underperforming VBA regional offices; the other extends the authorization for GME slots at the VA. This is a provision that will be especially valuable to UNLV's brand-new medical school, which is hosting its inaugural class this fall.

Unfortunately, however, the bill fails to address a major priority of both the VA and veterans themselves, and that is reforming the broken appeals process. Right now, there are 470,000 appeals languishing somewhere in the VA system. Veterans have to wait 2 to 3 years for them to be resolved as these cases churn through the process that Congress hasn't updated since the 1980s. If we don't act now, we will soon be telling our veteran constituents that they are going to have to wait 10 years before their appeals can be resolved, and it will be the fault of this Congress.

Despite having a solution that is ready to go that is widely supported by the administration and the VSOs, the Republican leadership refuses to bring the bill I sponsored on appeals reform to the floor without tying it to an accountability bill that strips VA employees of necessary civil rights protections.

We are told that passing appeals reform without accountability just won't work. Using that specious argument, we shouldn't pass any VA reform bill without accountability because it just won't work. So while I support this measure, I would urge my colleagues to address the appeals reform process before it is too late and we do further disservice to our Nation's heroes.

Mr. ROE of Tennessee. Mr. Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. WENSTRUP), who is currently on the committee and seeing Active Duty military patients as a doctor.

Mr. WENSTRUP. Mr. Speaker, on behalf of our veterans, I rise today in support of H.R. 6416. This bill would expand benefits and provide improvements to help America's greatest asset: our veterans and their families.

I am especially pleased to support sections in the fourth and fifth titles. All but a few of those provisions passed through the Subcommittee on Economic Opportunity, which I am honored to chair with Ranking Member TAKANO.

Seven provisions from legislation that I had the honor to author were also included in H.R. 6416. When enacted, these provisions would streamline and simplify how schools and training programs are approved for the GI bill, improve disabled veterans' access to services under the Vocational Rehabilitation and Employment program, survey GI bill users about their experience with the VA and their use of the post-9/11 GI bill, provide conditions for expanded instate tuition requirements for dependents of Active-Duty servicemembers, require the Department of Labor to conduct a longitudinal study to track long-term outcomes of veterans who have used DOL-sponsored employment services, and expand the amount of time that a surviving spouse can use post-9/11 GI bill benefits under the Fry Scholarship.

The last GI bill provision is estimated to help nearly 2,000 surviving spouses that use the post-9/11 GI bill to go back to school. Our veterans' families will be better off because of this bill. I support this bill and the efforts of Dr. ROE, Chairman MILLER, and others.

At the same time, I know that we will continue to work hard for our veterans. In the House, we crafted and passed many important issue initiatives that were not in the final bill. As the 115th Congress approaches, I ask my colleagues in both the House and the Senate to reaffirm their commitment to put the interests of our veterans first, and I look forward to continuing that work.

I am proud of my colleagues on the House Committee on Veterans' Affairs. We have crafted good, bipartisan policies. We have worked hard on behalf of our Nation's veterans. We will continue to do so.

I am also grateful for the staff of the Veterans' Affairs Committee. I want to especially thank my own staff on the Economic Opportunity Subcommittee for their expertise and untiring work on behalf of our veterans.

A special thanks goes to Chairman MILLER. His leadership and friendship here in the House will certainly be missed. I look forward to Dr. ROE's leadership.

Once again, I support H.R. 6416, and I urge my colleagues to pass this bill.

□ 1500

Mr. TAKANO. Mr. Speaker, I yield 2 minutes to the gentleman from California (Mr. MCNERNEY), my good friend and a member of the Veterans' Affairs Committee.

Mr. MCNERNEY. Mr. Speaker, I want to thank the chairman and the ranking member for their work on behalf of our Nation's veterans, and for bringing the omnibus veterans bill to the floor today.

In the United States, there are about 5 million veteran-owned businesses and an estimated 500,000 service-disabled veteran-owned small businesses. Under current law, if a veteran who was rated 100 percent disabled and owned a service-disabled veteran-owned small business passes away, the surviving spouse has 10 years to transition the business away from service-disabled veteran-owned small business status.

However, if the veteran business owner is rated less than 100 percent disabled, or dies of a non-service-connected injury, the surviving spouse has only 1 year to transition the business for contracts with the VA.

Current law unfairly punishes these businesses and places them at an economic disadvantage. That is why I introduced H.R. 1313. My bill allows service-disabled veteran-owned small businesses, whose principal owner passes away and was rated at less than 100 percent disabled at the time of death, with the reasonable 3-year transition period from service-disabled veteran-owned status with the VA.

It is only right that we provide our heroes and their families, and the employees, with the flexibility and certainty to ensure that their businesses continue to thrive.

H.R. 1313 is supported by the Paralyzed Veterans of America, AMVETS, VFW, Iraq and Afghanistan Veterans of America, and the American Legion.

I want to thank the chairman and ranking member for including my legislation in the omnibus veterans bill, H.R. 6416, and I hope my colleagues will join me to pass this commonsense bill and support the veteran-owned businesses across the country.

Mr. ROE of Tennessee. Mr. Speaker, I yield 2 minutes to the gentleman from Pennsylvania (Mr. COSTELLO), a very hardworking member of our committee, and a veteran himself.

Mr. COSTELLO of Pennsylvania. Not a veteran, but I appreciate the kind words.

Mr. Speaker, I rise today in support of legislation that will bring critical improvements to the way our country serves its veterans.

In my district, Pennsylvania's Sixth Congressional District, thousands of veterans are served by the Department of Veterans Affairs on a range of issues critical to their lives, including disability benefits, education, and healthcare services.

H.R. 6416, the JEFF MILLER and RICHARD BLUMENTHAL Veterans Health Care and Benefits Improvement Act, would make improvements to these services by increasing the amount of time widows have to utilize education benefits, allowing veterans to have screenings and treatment at VA emergency rooms, and tracking staffing abilities so the VA is better suited to accommodate its workload.

I would also like to thank my colleagues on the committee, and our committee staff, for working to include provisions to strengthen the U.S. Court of Appeals for Veterans Claims. Since the start of the term, we have been working to find a way to ensure the Court is able to meet the needs of our veterans, and I am pleased to see that efforts to do this are included as part of the bill.

I also want to thank Chairman MILLER for his dedication and service to our committee and to our Nation's veterans. His leadership has been exemplary.

I also would like to recognize and thank our committee staff for all of their hard work over the course of this Congress and my legislative aide for this session, Katharine Bruce, for her hard work.

Finally, I want to just point out that the Veterans' Affairs Committee, in large measure, has accomplished and improved a great deal in a bipartisan way. So I want to thank not only my Republican colleagues on the committee but the Democratic members of the committee as well. We should all be proud of the work that we have done. There is a lot more yet to do, but we have accomplished a lot, I believe, because we have focused on what needs to be done, left politics at the door, and worked in good faith on behalf of our Nation's veterans.

Mr. TAKANO. Mr. Speaker, I yield 2 minutes to the gentlewoman from Maine (Ms. PINGREE).

Ms. PINGREE. Mr. Speaker, I thank my friend, Mr. TAKANO, for yielding.

I want to thank Chairman MILLER, and thank him on his retirement and his service to our Congress, and also thank Ranking Member TAKANO and Representative ROE for their work on this bill.

I am grateful that the language from the Ruth Moore Act was included in this bill. It is an important step in making sure that the VA follows through on its promises to fairly treat our veterans.

Mr. Speaker, almost every day I hear from another veteran who is the survivor of military sexual trauma, or MST. These are men and women of all ages, from every branch of the service. They include veterans from World War II to the war in Afghanistan and every era in between.

Those assaults leave indelible marks on their lives in the form of PTSD, anxiety, depression, and so many other conditions. But despite some progress at the VA on their claims, too many are denied the disability benefits they have earned.

I am glad the Defense Department and the VA increased training and prevention efforts around rape and harassment, but, let me be clear, the problem is not yet fixed.

Survivors of sexual assault have been shamed and suffer continued harassment and recrimination. Far too many have been involuntarily discharged in retaliation for reporting sexual assault and harassment, meaning the survivor, not the perpetrator, has paid the price for this criminal behavior.

Before I close, I would like to recognize a very brave woman, Ruth Moore, a Maine veteran, and my bill's namesake. Ruth fought for 23 years before she was finally given the benefits we owed her.

There are thousands and thousands of Ruth Moores out there who have been fighting for their benefits for years, or even decades. We can and must do better. This issue is too important to ignore, and this provision ensures that the VA and survivors know that Congress is watching.

I am so glad the language from my bill was included in the legislation. I thank the committee again.

Mr. ROE of Tennessee. Mr. Speaker, I have no further speakers. I am prepared to close. I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I would like to encourage all my colleagues to support this legislation and join me in passing H.R. 6416.

I yield back the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I would like to thank both staffs of the committee, both the minority and majority staff, and on the hard work that both sides of the aisle did. As Mr. COSTELLO said, this has been a bipartisan effort, and I want to thank everyone, Mr. TAKANO, your leadership, and others on the minority side. I encourage all Members to support this legislation.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill, H.R. 6416.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. ROE of Tennessee. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

ETHICAL PATIENT CARE FOR VETERANS ACT OF 2016

Mr. ROE of Tennessee. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5399) to amend title 38, United States Code, to ensure that physicians of the Department of Veterans Affairs fulfill the ethical duty to report to State licensing authorities impaired, incompetent, and unethical health care activities.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5399

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Ethical Patient Care for Veterans Act of 2016''.

SEC. 2. DUTY TO REPORT IMPAIRED, INCOMPETENT, AND UNETHICAL HEALTH CARE ACTIVITIES.

(a) IN GENERAL.—Subchapter II of chapter 74 of title 38, United States Code, is amended by adding at the end the following new section:

''§ 7330B. Duty to report impaired, incompetent, and unethical health care activities

''(a) REPORTING TO STATE LICENSING AUTHORITY.—In addition to confidential reporting under the quality-assurance program pursuant to section 7311(b)(4) of this title and any other reporting authorized or required by the Secretary, the Secretary shall ensure that each physician of the Department is informed of the duty of the physician to report directly any covered activity committed by another physician that the physician witnesses or otherwise directly discovers to the applicable licensing authority of each State in which the physician who is the subject of the report is licensed to practice medicine.

''(b) TIMING OF REPORTING.—Each physician of the Department shall make a direct report to the State licensing authority of a covered activity under subsection (a) not later than five days after the date on which the physician witnesses or otherwise directly discovers the covered activity.

''(c) DEFINITIONS.—In this section:

''(1) The term 'covered activity' means any activity occurring in a medical facility of the Department that consists of or causes the provision of impaired, incompetent, or unethical health care that requires direct reporting under opinion number 9.031 of the Code of Medical Ethics of the American Medical Association.

''(2) The term 'physician of the Department' includes any contractor who is a physician at a medical facility of the Department.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such chapter is amended by inserting after the item relating to section 7330A the following new item:

''7330B. Duty to report impaired, incompetent, and unethical health care activities.''.

(c) CONFORMING AMENDMENT.—Section 7462(a)(1)(A) of such title is amended by inserting before the semicolon the following: '', including pursuant to section 7330B(c) of this title''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Tennessee (Mr. ROE) and the gentleman from California (Mr. TAKANO) each will control 20 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 5399, the Ethical Patient Care for Veterans Act of 2016, which I am proud to sponsor. There is no higher priority than ensuring that our Nation's veterans receive safe, high-quality care from the Department of Veterans Affairs.

The vast majority of VA employees are upstanding, well-qualified, and want nothing more than to do right by the veterans in their care. However, in the last several years, we have heard far too many instances where VA employees have failed to live up to the standards of care that our veterans deserve. In many of those cases, a culture of silence or fear of retaliation by supervisors has prevented other employees from reporting those transgressions in a timely manner.

To protect our veterans from poor-performing VA medical professionals, H.R. 5399 would require VA to ensure that every VA physician is informed of his or her duty to report impaired, incompetent, or unethical behavior that the physician witnesses or otherwise discovers directly to the applicable State licensing authorities within 5 days.

This is consistent with the long-standing practice of the American Medical Association and existing VA policy and would improve the quality of care VA provides by making sure that the poor performers, those who put the lives and well-being of veteran patients at risk, are reported to relevant authorities within a reasonable time frame so that the appropriate action can be taken to safeguard the patients in their care.

Mr. Speaker, this is commonsense legislation. More importantly, it is the right thing to do for veterans. I urge all of my colleagues to join me in supporting this legislation.

I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 5399, introduced by the gentleman from Tennessee, Dr. ROE. This bill would ensure that physicians of the Department of Veterans Affairs fulfill the ethical duty to report impaired, incompetent, and unethical healthcare activities of their colleagues.

I appreciate the gentleman bringing this issue to our attention. It is another instance of the many ethical and legal imperatives that VA physicians are under while serving those who have dedicated themselves to protect our freedoms.

All physicians have a duty to report impaired colleagues who continue to practice, despite reasonable offers of assistance. This obligation appears in professional guidelines and in laws and regulations governing the practice of medicine.

All physicians are accredited by the American Medical Association, and their policy states, and I quote: ''Physicians have an ethical obligation to report impaired, incompetent, and unethical colleagues.''

The Federation of State Medical Boards of the United States' policy on physician impairment states that physician health programs have ''a primary commitment to help state medical boards . . . protect the public . . . These programs should demonstrate an ongoing track record of ensuring safety to the public and reveal deficiencies if they occur.''

The physicians who care for our veterans take their duties and oaths to help their patients very seriously, and I am glad for this opportunity to reiterate the topnotch quality care that the VA provides each and every day.

I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself the balance of my time.

In closing, this is one of the final opportunities that I will have to discuss veterans legislation on the floor with my colleague, Chairman MILLER, who appears to have stepped off the floor at the moment. I want to offer my sincere gratitude for his leadership on the committee.

I think it is fair to say that we have not always agreed on the best path forward, but I think this bill demonstrates our ability, the ability of this committee to put aside our differences and get things done for America's veterans. The Veterans' Committee has long been a model of bipartisanship at a time where cooperation can be hard to come by. I appreciate the chairman's commitment to continuing that tradition, and I wish him all the best in the next chapter of his career.

I have no further speakers, and I do encourage my colleagues to support this legislation and join me in passing H.R. 5399.

I yield back the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

I encourage all Members to support this legislation. I have practiced medicine for almost 40 years under these same requirements right here, and we should expect no less for the care of our veterans. I encourage support.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill, H.R. 5399.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

□ 1515

FASTER CARE FOR VETERANS ACT OF 2016

Mr. ROE of Tennessee. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4352) to direct the Secretary of Veterans Affairs to carry out a pilot program establishing a patient self-scheduling appointment system, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4352

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Faster Care for Veterans Act of 2016''.

SEC. 2. PILOT PROGRAM ESTABLISHING A PATIENT SELF-SCHEDULING APPOINTMENT SYSTEM.

(a) PILOT PROGRAM.—Not later than 120 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall commence a pilot program under which veterans use an Internet website or mobile application to schedule and confirm medical appointments at medical facilities of the Department of Veterans Affairs.

(b) SELECTION OF LOCATIONS.—The Secretary shall select not less than three Veterans Integrated Services Networks in which to carry out the pilot program under subsection (a).

(c) CONTRACTS.—

(1) AUTHORITY.—The Secretary shall seek to enter into a contract using competitive procedures with one or more contractors to provide the scheduling capability described in subsection (a).

(2) NOTICE OF COMPETITION.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall issue a request for proposals for the contract described in paragraph (1). Such request shall be full and open to any contractor that has an existing commercially available, off-the-shelf online patient self-scheduling system that includes the capabilities specified in section 3(a).

(3) SELECTION.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall award a contract to one or more contractors pursuant to the request for proposals under paragraph (2).

(d) DURATION OF PILOT PROGRAM.—

(1) IN GENERAL.—Except as provided by paragraph (2), the Secretary shall carry out the pilot program under subsection (a) for an 18-month period.

(2) EXTENSION.—The Secretary may extend the duration of the pilot program under subsection (a), and may expand the selection of Veterans Integrated Services Networks under subsection (b), if the Secretary determines that the pilot program is reducing the wait times of veterans seeking medical care and ensuring that more available appointment times are filled.

(e) MOBILE APPLICATION DEFINED.—In this section, the term ''mobile application'' means a software program that runs on the operating system of a cellular telephone, tablet computer, or similar portable computing device that transmits data over a wireless connection.

SEC. 3. CAPABILITIES OF PATIENT SELF-SCHEDULING APPOINTMENT SYSTEM.

(a) MINIMUM CAPABILITIES.—The Secretary of Veterans Affairs shall ensure that the patient self-scheduling appointment system used in the pilot program under section 2, and any other patient self-scheduling appointment system developed or used by the Department of Veterans Affairs, includes, at a minimum, the following capabilities:

(1) Capability to schedule, modify, and cancel appointments for primary care, specialty care, and mental health.

(2) Capability to support appointments for the provision of health care regardless of whether such care is provided in person or through telehealth services.

(3) Capability to view appointment availability in real time.

(4) Capability to make available, in real time, appointments that were previously filled but later cancelled by other patients.

(5) Capability to provide prompts or reminders to veterans to schedule follow-up appointments.

(6) Capability to be used 24 hours per day, seven days per week.

(7) Capability to integrate with the Veterans Health Information Systems and Technology Architecture of the Department, or such successor information technology system.

(b) INDEPENDENT VALIDATION AND VERIFICATION.—

(1) INDEPENDENT ENTITY.—

(A) The Secretary shall seek to enter into an agreement with an appropriate non-governmental, not-for-profit entity with expertise in health information technology to independently validate and verify that the patient self-scheduling appointment system used in the pilot program under section 2, and any other patient self-scheduling appointment system developed or used by the Department of Veterans Affairs, includes the capabilities specified in subsection (a).

(B) Each independent validation and verification conducted under subparagraph (A) shall be completed as follows:

(i) With respect to the validation and verification of the patient self-scheduling appointment system used in the pilot program under section 2, by not later than 60 days after the date on which such pilot program commences.

(ii) With respect to any other patient self-scheduling appointment system developed or used by the Department of Veterans Affairs, by not later than 60 days after the date on which such system is deployed, regardless of whether such deployment is on a limited basis, but not including any deployments for testing purposes.

(2) GAO EVALUATION.—

(A) The Comptroller General of the United States shall evaluate each validation and verification conducted under paragraph (1).

(B) Not later than 30 days after the date on which the Comptroller General completes an evaluation under paragraph (1), the Comptroller General shall submit to the appropriate congressional committees a report on such evaluation.

(C) In this paragraph, the term ''appropriate congressional committees'' means—

(i) the Committees on Veterans' Affairs of the House of Representatives and the Senate; and

(ii) the Committees on Appropriations of the House of Representatives and the Senate.

(c) CERTIFICATION.—

(1) CAPABILITIES INCLUDED.—Not later than December 31, 2017, the Secretary shall certify to the Committees on Veterans' Affairs of the House of Representatives and the Senate that the patient self-scheduling appointment system used in the pilot program under section 2, and any other patient self-scheduling appointment system developed or used by the Department of Veterans Affairs as of the date of the certification, includes the capabilities specified in subsection (a).

(2) NEW SYSTEMS.—If the Secretary develops or begins using a new patient self-scheduling appointment system that is not covered by a certification made under paragraph (1), the Secretary shall certify to such committees that such new system includes the capabilities specified in subsection (a) by not later than 30 days after the date on which the Secretary determines to replace the previous patient self-scheduling appointment system.

(3) EFFECT OF CAPABILITIES NOT INCLUDED.—If the Secretary does not make a timely certification under paragraph (1) or paragraph (2), the Secretary shall replace any patient self-scheduling appointment system developed by the Secretary that is in use with a commercially available, off-the-shelf online patient self-scheduling system that includes the capabilities specified in subsection (a).

SEC. 4. PROHIBITION ON NEW APPROPRIATIONS.

No additional funds are authorized to carry out the requirements of this Act. Such requirements shall be carried out using amounts otherwise authorized.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Tennessee (Mr. ROE) and the gentleman from California (Mr. TAKANO) each will control 20 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and to add extraneous material.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 4352, as amended, the Faster Care for Veterans Act of 2016.

The wait time scandals that continue to plague the Department of Veterans Affairs have highlighted the need for veterans to be able to schedule their own medical appointments. Everyone agrees that the veterans who want this capability should have it.

A self-scheduling option would reduce the workload on overburdened schedulers, allow the VA to use taxpayer resources more efficiently, and grant veterans who would prefer to schedule their own appointments the ability and flexibility to do so. It would also encourage accountability by giving veterans verifiable records of their own appointment bookings.

VA has been considering self-scheduling since at least 2013. However, projects start and stop, priorities shift, and nothing usable has so far emerged from those considerations. Unfortunately, this seems to be the result of a tug of war between some VA officials who favor a commercial off-the-shelf system and others who favor a government-developed system.

VA has been developing a self-scheduling mobile application based on its VISTA management system and plans to roll it out in January 2017. I have high hopes for that effort, but VA's IT development record is mixed—to put it mildly—and past experience shows that meeting high standards and firm deadlines are crucial to success.

The time has come to settle this issue once and for all. H.R. 4352, as amended, establishes capability standards reflecting the state of the art that apply to any commercial or government self-scheduling system in VA. It also directs VA to pilot the best available commercial software in three locations. The bill tasks an independent expert to verify whether that commercial system and the government system meet those standards, and by the end of 2017, VA must certify whether or not they do.

The concept is, in other words, a bake-off to create the most successful possible software for our veterans. Ideally, both systems will meet the standards, but if the government system cannot make the grade, VA will have a commercial alternative thoroughly piloted and ready to go to work for VA patients.

H.R. 4352, as amended, is sponsored by Congressman SETH MOULTON from Massachusetts and Congresswoman CATHY MCMORRIS RODGERS from Washington. I thank them both for their leadership on this issue.

This broadly bipartisan legislation is an efficient, timely solution to a long-standing problem, and I encourage all of my colleagues to join me in supporting it.

Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 4352, as amended, sponsored by my friend, the gentleman from Massachusetts and a veteran himself, Representative MOULTON.

This important legislation authorizes the VA to administer a pilot program where veterans use an Internet Web site to schedule and confirm medical appointments at medical facilities of the Department of Veterans Affairs. The VA has been working to bring the power of scheduling to veterans since the wait time scandal at the Phoenix VA Medical Center in 2014.

The Department of Veterans Affairs had developed and is rolling out the Veterans Appointment Request, otherwise known as VAR, for primary care. This is a mobile application, and the approach will allow veterans to directly schedule or request primary care appointments and request mental health appointments at facilities where they are already receiving care. With the app, veterans can also view appointment details, track the status of requests, send messages about the requested appointments, get notifications about appointments, and cancel most appointments.

The VA has also implemented the Audiology and Optometry Direct

Scheduling Initiative. This program began as a successful pilot at three sites in 2015 and is now being expanded to all VA medical centers.

Veterans can schedule a routine appointment for audiology or optometry directly by calling the scheduling department or by speaking directly with audiology or optometry staff. The covered services include hearing tests, eye exams, vision prescriptions, eyeglass fittings, and other routine appointments.

This important legislation will allow veterans to better control their VA experience no matter what services they need. Ensuring veterans are comfortable with the scheduling platform ultimately used is a critical factor. Whether that is a smartphone, Internet Web site or calling directly to make that appointment, the primary consideration is the ease of use by the veteran.

The only way to make sure it works is to test it. This legislation will ensure that the technology fits the veteran and also fits the VA.

For those reasons, I support this legislation and urge my colleagues to do the same.

Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this is long overdue. One of the problems we have in VA is that we know the scandal at Phoenix where there were secret waiting lists for appointments for honorably discharged veterans to see a doctor.

This is one of the ways in which we can put veterans back in charge. One of the things I want to do is put veterans and doctors—healthcare providers—in charge of the health care and not bureaucrats, schedulers, and so forth. This puts the power back in front of the veterans.

We are at the Christmas season. Many of us order packages on Amazon or wherever. Guess what we can do? We can track that through our own personal device anywhere that package is so that it reaches our doorstep. Veterans should have that command so they can have an appointment when they want it; they can make it. The technology is available. I can't think of a better thing to do than to have a private and public competition to see which is the most effective for the veteran. I think in a year we are going to know. It will be simple to implement. Almost everyone has a smart device now that we can use for this process.

Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield 5 minutes to the gentleman from Massachusetts (Mr. MOULTON).

Mr. MOULTON. Mr. Speaker, I rise today in support of H.R. 4352, the Faster Care for Veterans Act, which I introduced with Congresswoman CATHY MCMORRIS RODGERS.

The idea behind the bill is simple. Our Nation's veterans deserve the same technological innovations and level of service at VA healthcare facilities as patients in the private market. One such innovation is patient self-scheduling technology. Patients can log on to an app on their phone or on a Web site, indicate the type of appointment they need, select their location, and schedule their own appointments at a time convenient for them—no middle men, no obnoxious hold music, and no unending carousel of options on an automated phone menu; just a quick and easy medical appointment that works for your schedule.

This technology is not just beneficial for patients, it is good for medical providers as well. In the private market, the introduction of patient self-scheduling has dramatically decreased wait times, saving time and money. The VA ought to chase these same innovations so our veterans receive the best health care and user experience in the world.

As a Member of Congress, I declined congressional health care and pledged to receive my care at the VA. I receive excellent service from terrific doctors and nurses at my home VA facility in Bedford, Massachusetts. However, scheduling an appointment here in D.C. or at home in Bedford has never been easy.

Dennis Magnasco, my veterans' liaison in my office in Salem, Massachusetts, learned this the hard way. Shortly after I introduced the Faster Care for Veterans Act, Dennis called our local VA hospital to make an appointment himself. He listened to the options on the automated menu and pressed one to schedule an appointment. After several more pushed buttons, rather than connecting him to the talented schedulers who work in the Bedford VA, the automated menu started over again. It went into an endless cycle. He hung up, and after multiple unsuccessful further attempts, he recorded himself doing this in a video.

I put this video on my Facebook page, and the response was astonishing. Four million people saw the video, 35,000 people shared the video, and 2,000 people commented. People from all over the country shared their experience trying to schedule their own appointments at the VA. The frustration is nationwide.

A veteran from Walcott, Arkansas, said: I can tell you this is for real. It happens every time I call. I usually give up and drive to the clinic 18 or 20 miles away so I can talk to a person face to face.

A veteran from El Paso, Texas, said: This is exactly what happens every time you try to call for an appointment or even get general information about an existing appointment. This is exactly why lots of us vets end up giving up on the system.

A veteran from Philadelphia, Pennsylvania, said: The longest I have been on hold with the VA was an hour and 45 minutes before I gave up.

This is not an issue of quality of care, it is an issue of access to care. The Faster Care for Veterans Act is a solution.

First, this bill directs the VA to conduct a pilot program to test commercial off-the-shelf self-scheduling technology at three locations across the country while allowing the VA to continue developing its inhouse solution.

Second, the bill requires both the pilot program and the VA's solution to meet several capabilities currently available in the private market. These requirements will ensure our veterans get the same level of service as every other American.

Third, the bill provides for an independent assessment to verify if the pilot program or the VA's solution meets the minimum capabilities.

Lastly, the bill requires the VA to replace any system used by the VA that does not meet those minimum requirements with a commercially available off-the-shelf technology that does meet those capabilities.

The bill is supported by the Iraq and Afghanistan Veterans of America, the American College of Neurosurgeons, and the American Osteopathic Association; and this bill is cosponsored by more than half of the House of Representatives. Our veterans are demanding a 21st century VA healthcare system. This bill is one step in that direction.

Mr. Speaker, I urge my colleagues to support this legislation.

Mr. ROE of Tennessee. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Washington (Mrs. MCMORRIS RODGERS), who is our conference chair. CATHY MCMORRIS RODGERS is a very passionate supporter of veterans' issues.

Mrs. MCMORRIS RODGERS. Mr. Speaker, I rise today, more than 2 years after we were all shocked by the news that Phoenix veterans had died waiting for appointments at their local VA. Yet, after all this time, little has changed.

Every week veterans contact my office seeking help to get the care that they need, like the veteran who couldn't access urgent care and was afraid he would be billed if he went to the hospital for help, or the veteran who got cancer from atomic testing but had to jump through all kinds of hoops to prove it.

Is this how a grateful nation should treat its veterans? Absolutely not.

The best way we show our gratitude to those who have served is to get them the care that they have earned. When a veteran contacts the VA, they should have the red carpet rolled out for them, period; but, instead, these stories are repeated over and over and over in communities all across the country: The VA won't listen; the VA doesn't return calls; we can't see a doctor.

There is a disconnect between the service of our military and the service they receive when they return home.

Mr. MOULTON of Massachusetts and I introduced the Faster Care for Veterans Act to leverage technology to cut

back on wait times. Our veterans should have the same options that people have in doctors' offices across the country. They should be able to use an app, go online to schedule; or if they want to call, they can do that, too.

□ 1530

The point is the technology to make it easier to self-schedule already exists. Why not provide it to our veterans?

With this bill, we are demonstrating to the VA that innovative technology can work. It can get our veterans the care that they have earned more quickly without all the red tape.

But wait times are just the tip of this bureaucratic iceberg. The terrible stories this past week of HIV exposure and a veteran dying with maggots in his wounds are graphic reminders to all of us that the VA has lost sight of its sole mission: serving veterans.

Veterans should be in control of all aspects of their health care. That is not what is happening right now. After all the years, all the money, no more excuses. It is time for a deeper look into rethinking this outdated government bureaucracy.

Mr. Speaker, I never again want to hear a war hero cry because of how the VA has treated him. I urge my colleagues to join us in supporting the Faster Care for Veterans Act.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

I have no further speakers. Before I close, I would like to say that I fully appreciate the work of my friend and colleague, the gentleman from Massachusetts (Mr. MOULTON), for the work he has done on this bill and for the way in which he is able to reach out to veterans and those who care for veterans across the country.

I am especially pleased that included in this legislation is a specific way to independently assess the off-the-shelf technology as compared to the technology that is being developed in-house at the VA. I think these provisions will ensure that the taxpayer is protected in terms of cost, efficiency, and effectiveness. And, of course, bottom line, this means effectiveness for our veterans. We want to make sure that the best technology is put forward, whether it is in-house or whether it is the off-the-shelf choice, that we have a way to independently verify which is best.

I want to encourage all of my colleagues to support this important legislation and join me in passing H.R. 4352.

I yield back the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

I want to thank Mr. MOULTON and one of our leaders, CATHY MCMORRIS RODGERS, for bringing this very important piece of legislation to the floor. One of the reasons is that it shows when you bring someone with real-world experiences who uses the VA how they can then take that and convert that into meaningful legislation that will actually help veterans around the country.

I encourage all Members to support this legislation.

I yield back the balance of my time.

The SPEAKER pro tempore (Mr. HULTGREN). The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill, H.R. 4352, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

COLONEL DEMAS T. CRAW VA CLINIC

Mr. ROE of Tennessee. Mr. Speaker, I move to suspend the rules and pass the bill (S. 3492) to designate the Traverse City VA Community-Based Outpatient Clinic of the Department of Veterans Affairs in Traverse City, Michigan, as the ''Colonel Demas T. Craw VA Clinic''.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 3492

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. DESIGNATION OF COLONEL DEMAS T. CRAW VA CLINIC IN TRAVERSE CITY, MICHIGAN.

(a) FINDINGS.—Congress finds the following:

(1) Demas T. Craw was born on April 9, 1900, in Long Lake Township, Michigan.

(2) While residing in Traverse City, Michigan, Demas T. Craw enlisted in the United States Army at Columbus Barracks, Ohio, on April 18, 1918, and trained with the 12th Cavalry at Camp Stanley, Texas.

(3) Colonel Craw achieved the position of senior pilot and was awarded—

(A) the Medal of Honor for action in North Africa;

(B) the World War I Victory Medal;

(C) the World War II Victory Medal;

(D) the European-African-Middle Eastern Campaign Medal;

(E) the Mexican Service Medal;

(F) the American Defense Service Medal;

(G) the Purple Heart;

(H) the Royal Order of George I; and

(I) the Observer Badge.

(4) Colonel Craw's citation for the Medal of Honor said, ''For conspicuous gallantry and intrepidity in action above and beyond the call of duty. On November 8, 1942, near Port Lyautey, French Morocco, Col. Craw volunteered to accompany the leading wave of assault boats to the shore and pass through the enemy lines to locate the French commander with a view to suspending hostilities. This request was first refused as being too dangerous but upon the officer's insistence that he was qualified to undertake and accomplish the mission he was allowed to go. Encountering heavy fire while in the landing boat and unable to dock in the river because of shell fire from shore batteries, Col. Craw, accompanied by 1 officer and 1 soldier, succeeded in landing on the beach at Mehdia Plage under constant low-level strafing from 3 enemy planes. Riding in a bantam truck toward French headquarters, progress of the party was hindered by fire from our own naval guns. Nearing Port Lyautey, Col. Craw was instantly killed by a sustained burst of machinegun fire at pointblank range from a concealed position near the road.''.

(5) Colonel Craw was killed in action on November 8, 1942, while attempting to deliver a message to broker a cease fire with France.

(b) DESIGNATION.—The Traverse City VA Community-Based Outpatient Clinic of the Department of Veterans Affairs in Traverse City, Michigan, shall after the date of the enactment of this Act be known and designated as the ''Colonel Demas T. Craw VA Clinic''.

(c) REFERENCE.—Any reference in any law, regulation, map, document, paper, or other record of the United States to the community-based outpatient clinic referred to in subsection (b) shall be considered to be a reference to the Colonel Demas T. Craw VA Clinic.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Tennessee (Mr. ROE) and the gentleman from California (Mr. TAKANO) each will control 20 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and add extraneous material.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 3492, a bill to designate the Department of Veterans Affairs Community-Based Outpatient Clinic in Traverse City, Michigan, as the Colonel Demas T. Craw VA Clinic.

I thank the bill's sponsor, Senator GARY PETERS from Michigan, for his efforts in introducing this bill.

I also want to thank my colleague, friend, and the chairman of the Subcommittee on Health, Congressman DAN BENISHEK, from Michigan, for his work on the House side to ensure that Colonel Craw is honored.

Demas T. Craw was born and raised in Long Lake Township, Michigan. He enlisted in the United States Army at just 18 years old and went to serve both in World War I and World War II, eventually earning the position of senior pilot. Colonel Craw served our country valiantly until he was tragically killed in combat.

In 1942, Colonel Craw volunteered to accompany the leading wave of assault boats to shore in Operation Torch, the Allied invasion of north Africa. The mission was to pass through the enemy lines to locate the French commander with a view to suspending hostilities. Sadly, during the course of that mission, Colonel Craw was instantly killed by a sustained burst of machine-gun fire at pointblank range from a concealed position near the road.

During his illustrious time in the Army, Colonel Craw accumulated numerous awards, including the World

War I Victory Medal, the World War II Victory Medal, and the Purple Heart. He also received our Nation's highest honor, the Medal of Honor, for his valiant actions in north Africa.

Colonel Demas Craw was a Michigan native and Traverse City resident who served our country with courage. It is only appropriate that the community-based outpatient clinic in Traverse City be named in his honor.

S. 3492 satisfies the committee's naming criteria and is supported by the Michigan congressional delegation as well as numerous veterans organizations, including the Disabled American Veterans, the Veterans of Foreign Wars of the United States, and the American Legion.

Once again, I am grateful to Congressman BENISHEK for sponsoring the companion to this legislation. I urge all of my colleagues to join me in supporting it.

Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of this legislation sponsored by my colleague, Dr. BENISHEK. This bill will name the Traverse City, Michigan, Community-Based Outpatient Clinic the Colonel Demas T. Craw VA Clinic.

Colonel Craw had a distinguished military career. He dropped out of high school to enlist in the Army during World War I. He was furloughed and discharged when the war ended, but he soon reenlisted. After being promoted to corporal, he continued to work to advance in the Army. He earned an appointment to West Point in 1920 and graduated in 1924 as a second lieutenant.

After being assigned to the Army Air Corps, then First Lieutenant Craw served around the world and the United States. Upon entering World War II, he was promoted to lieutenant colonel and assigned to north Africa in 1942. On his last mission, Colonel Craw volunteered to approach the French forces to negotiate a ceasefire when Allied forces began their assault.

Colonel Craw earned the Medal of Honor for his actions on his last mission. As the citation reads:

For conspicuous gallantry and intrepidity in action above and beyond the call of duty . . . Colonel Craw volunteered to accompany the leading wave of assault boats to the shore and pass through the enemy lines to locate the French commander with a view to suspending hostilities . . . Encountering heavy fire . . . Colonel Craw, accompanied by one officer and one soldier, succeeded in landing on the beach under constant strafing from three enemy planes. Riding toward French headquarters, progress of the party was hindered by fire from U.S. naval guns. Nearing his destination, Colonel Craw was instantly killed by a sustained burst of machine-gun fire at pointblank range from a concealed position near the road.

Not only was Colonel Craw awarded the Medal of Honor for his actions, but the officer accompanying him, Major Pierpont M. Hamilton, who was captured before ultimately succeeding in suspending the hostilities, was also awarded the Medal of Honor for his actions in this mission.

I am honored to support this bill to name the VA facility in Traverse City, Michigan, the Colonel Demas T. Craw VA Clinic.

Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, it is indeed an honor to yield 3 minutes to the gentleman from Michigan (Mr. BENISHEK), a great friend and colleague.

Mr. BENISHEK. Mr. Speaker, I thank Dr. ROE.

I rise today in support of legislation to name the Traverse City VA Clinic after Colonel Demas T. Craw, a Medal of Honor recipient from my district in Traverse City.

As I soon will be retiring from Congress, I quickly want to say that it has been quite an honor for me to work with the chairman, JEFF MILLER, and all the members of the House Veterans' Affairs Committee over the last 6 years. It hasn't been an easy fight, but I believe we have made real progress toward a better VA for the men and women who have fought for our freedom.

This sacred work must continue, as they still deserve much better. I have faith that the next chairman of the committee, my friend, Dr. PHIL ROE, will be able to continue this progress and break new ground in the fight for our Nation's heroes.

I have been very pleased to assist in the effort to honor Colonel Craw in the House, along with a dedicated team of veterans and patriotic citizens. Led by retired Lieutenant Colonel Terry Hawn and Dr. Dan Lathrop, they worked to gather the over 2,000 signatures needed and build support within the community to honor this truly deserving local hero.

Born near Traverse City in 1900, Colonel Craw served in the U.S. Army during both world wars. As a United States Army Air Forces officer in World War II, he served as a U.S. adviser to the Royal Air Force prior to American entry to the war, and was captured and interned by German forces for 6 weeks in 1941.

He was killed in action, described previously, on November 8, 1942, after volunteering to lead a dangerous and, ultimately, successful mission behind enemy lines. He received the Medal of Honor posthumously for ''conspicuous gallantry and intrepidity in action above and beyond the call of duty.''

We couldn't have done this without the support of the entire Michigan congressional delegation, as well as the Grand Traverse Area Veterans Coalition, the American Legion Department of Michigan, the Veterans of Foreign Wars of Michigan, and many other veteran service organizations.

I want to thank Senator GARY PETERS for introducing the Senate version of this legislation that we are considering today.

I urge my colleagues to help honor this American hero and pass S. 3492.

Mr. TAKANO. Mr. Speaker, I have no further speakers.

Before I close, I want to offer a word of praise and affection for my good friend Dr. BENISHEK for his long service to this body and to the committee. I also want to congratulate his intrepidity for saying the word ''intrepidity'' on the floor of the House.

I am very pleased to support this legislation, and I encourage my colleagues to join me in passing S. 3492.

I yield back the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

In closing, it is a great privilege for all of us to be here on the floor of this incredible House to speak. We would not be able to do that if it weren't for the heroics of people like Colonel Craw and the sacrifice that he and his family made.

We are entering the Christmas season, and I think about our Armed Forces that are stationed around the world, young men and women today, that are out there protecting our Nation's freedoms and others' freedoms. So it is a great honor—and I think one of the things that I have enjoyed doing the most—naming and hearing about the incredible heroics of some of these men and women that have been before us. I want to encourage all Members to support this legislation wholeheartedly.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill, S. 3492.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

□ 1545

CHARLES DUNCAN BURIED WITH HONOR ACT OF 2016

Mr. ROE of Tennessee. Mr. Speaker, I move to suspend the rules and pass the bill (S. 3076) to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to furnish caskets and urns for burial in cemeteries of States and tribal organizations of veterans without next of kin or sufficient resources to provide for caskets or urns, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 3076

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Charles Duncan Buried with Honor Act of 2016''.

SEC. 2. CASKETS AND URNS FOR BURIAL OF CERTAIN VETERANS IN CEMETERIES OF STATES AND TRIBAL ORGANIZATIONS.

Section 2306(f) of title 38, United States Code, is amended—

(1) in the matter preceding paragraph (1), by striking ''for burial in a national cemetery of a deceased veteran'' and inserting ''for burial of a deceased veteran in a national cemetery or in a veterans cemetery of a State or tribal organization for which the Department has provided a grant under section 2408 of this title''; and

(2) in paragraph (2), by striking ''the burial of the veteran in a national cemetery'' and inserting ''such burial''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Tennessee (Mr. ROE) and the gentleman from California (Mr. TAKANO) each will control 20 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and to add extraneous material on S. 3076.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

I rise to urge all Members to support S. 3076, the Charles Duncan Buried with Honor Act of 2016.

S. 3076, which passed the Senate by unanimous consent on September 20, 2016, would provide indigent families of deceased veterans with more choices as they make the difficult decision about where to lay their loved ones to rest without being financially penalized. This legislation is a practical solution for a common challenge that is faced by too many veterans' families. Dr. Wenstrup, my colleague and a valued member of the Veterans' Affairs Committee, has sponsored H.R. 6114, the House companion to this bill.

Under current law, if a family does not have sufficient resources to buy a casket or an urn for a deceased loved one, the VA can provide one if the veteran is buried in a national cemetery, but not if the veteran is buried in a State or a tribal cemetery. However, for some families, interring a veteran in a national cemetery is not always the best option. For example, a national cemetery may be too far away for families to attend burial services or to regularly visit their loved ones.

To better serve the families of all veterans, S. 3076 allows the VA to furnish a casket or an urn if the deceased veteran is laid to rest in a national or in a State or a tribal cemetery. It is appropriate to honor the service of veterans who have passed by providing a casket or an urn regardless of where the veteran is interred.

I urge my colleagues to support S. 3076.

Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of S. 3076, the Charles Duncan Buried with Honor Act, which expands the cemetery burial options offered by the VA to the families of financially insolvent veterans and to those with no identifiable next of kin.

I thank my friend, the Economic Opportunity Subcommittee chairman, Dr. Wenstrup, for sponsoring this bill in the House.

We who serve on the House Veterans' Affairs Committee hear over and over how important it is to the families of many veterans that they be buried near loved ones and near home. This is particularly true in rural areas where the option of burial in a national veterans' cemetery within a manageable travel distance is frequently not an option.

Under current law, indigent veterans and those with no next of kin are eligible for reimbursement rates of $2,421 for caskets or $244 for urns when buried in a national cemetery. However, if a State or a tribal cemetery that is supported by grants from the VA is geographically closer to the veteran's home and is preferable to the veteran or to the family, burial there is not currently allowed.

The bill before us today provides that choice by broadening the scope of the Dignified Burial and other Veterans' Benefits Improvement Act to include the option of burial in a State or a tribal cemetery for which the Department of Veterans Affairs has provided a grant.

Mr. Speaker, this bill enjoys the support of the American Legion. It makes good sense and ensures that we are doing everything in our power to provide the greatest honor and comfort for veterans and their families. I urge my colleagues to support it.

I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. WENSTRUP), an active member of the committee.

Mr. WENSTRUP. Mr. Speaker, I rise in strong support of S. 3076, the Charles Duncan Buried with Honor Act.

This bill will have a direct and personal impact on the families of many of our veterans. I am pleased that it is being considered today, and I was proud to sponsor the House companion bill, H.R. 6114.

Under current law, if a veteran dies without the resources to pay for a casket, the VA will provide one, but only as long as the veteran is buried in a national cemetery. That means that, in my district and throughout the country, the families in need of this service may be transported to a national cemetery, which is often far from home and far from family. This has caused heartache for many families in my district in Ohio and across the country. It can mean that their loved ones must be buried nowhere near their homes. It can prevent friends and family from attending the funerals or from regularly visiting the grave sites.

S. 3076 would amend current law to allow veterans who receive caskets that are purchased by the VA to be buried at a State or a tribal cemetery for which the VA has provided a grant. By expanding the burial options available to veterans, we can better ensure that they are laid to rest close to their loved ones. Let's provide this peace of mind to our veterans and their families. I strongly urge my colleagues to support this bill.

Mr. TAKANO. Mr. Speaker, I encourage my colleagues to support this legislation and join me in passing S. 3076.

I yield back the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield 1 minute to the gentleman from Arkansas (Mr. HILL).

Mr. HILL. I thank the distinguished incoming chairman of the committee. I appreciate the time. I also thank my colleague in the Arkansas delegation, Senator COTTON, for his important work on S. 3076, which we are discussing today. I support it enthusiastically.

Mr. Speaker, on Saturday, July 25, 2015, U.S. Navy veteran and Little Rock resident Charles Duncan passed away at the age of 66, leaving behind a daughter, three grandsons, three great-grandsons, a brother, and a sister, along with many grieving family members, friends, and loved ones.

Sadly, like too many of our veterans, Mr. DUNCAN was financially insolvent and could not afford the cost of his funeral. Thankfully, he was eligible for essential VA benefits to cover these costs. However, these benefits required that he be buried at the national cemetery in Fort Smith instead of close to his home and his family in Little Rock. By expanding the cemetery burial options that are offered by the VA to our veterans in need, we can provide families with the solace that they deserve.

I urge my colleagues to support this bill and support the peaceful rest of the veterans we have lost.

Mr. ROE of Tennessee. Mr. Speaker, once again, I encourage all Members to support S. 3076.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill, S. 3076.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 5143, TRANSPARENT INSURANCE STANDARDS ACT OF 2016; PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM DECEMBER 9, 2016, THROUGH JANUARY 3, 2017; AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

Mr. BYRNE, from the Committee on Rules, submitted a privileged report (Rept. No. 114–846) on the resolution (H.

Res. 944) providing for consideration of the bill (H.R. 5143) to provide greater transparency and congressional oversight of international insurance standards setting processes, and for other purposes; providing for proceedings during the period from December 9, 2016, through January 3, 2017; and providing for consideration of motions to suspend the rules, which was referred to the House Calendar and ordered to be printed.

DEPARTMENT OF VETERANS AFFAIRS EMERGENCY MEDICAL STAFFING RECRUITMENT AND RETENTION ACT

Mr. ROE of Tennessee. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4150) to amend title 38, United States Code, to allow the Secretary of Veterans Affairs to modify the hours of employment of physicians employed on a full-time basis by the Department of Veterans Affairs, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4150

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Department of Veterans Affairs Emergency Medical Staffing Recruitment and Retention Act''.

SEC. 2. MODIFICATION OF HOURS OF EMPLOYMENT FOR PHYSICIANS EMPLOYED BY THE DEPARTMENT OF VETERANS AFFAIRS.

Section 7423(a) of title 38, United States Code, is amended—

(1) by striking ''(a) The hours'' and inserting ''(a)(1) Except as provided in paragraph (2), the hours''; and

(2) by adding at the end the following new paragraph:

''(2)(A) Upon the advance written request of a covered physician, the Secretary may modify the hours of employment for a physician appointed in the Administration under any provision of this chapter on a full-time basis to be more or less than 80 hours in a biweekly pay period, subject to the requirements in subparagraph (B). For the purpose of determining pay, such a physician shall be deemed to have a biweekly schedule of 80 hours of employment.

''(B) A physician with an irregular work schedule established under subparagraph (A) shall be obligated to account for at least 2,080 hours of employment (through performance of work or use of leave or paid time off) in a calendar year.

''(C) The Secretary may prescribe regulations to implement this paragraph, including regulations making adjustments to address the annual hours requirement for physicians who are covered by this paragraph for only a portion of a calendar year.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Tennessee (Mr. ROE) and the gentleman from California (Mr. TAKANO) each will control 20 minutes.

The Chair recognizes the gentleman from Tennessee.

GENERAL LEAVE

Mr. ROE of Tennessee. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and to add extraneous material on H.R. 4150, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

H.R. 4150, as amended, the Department of Veterans Affairs Emergency Medical Staffing Recruitment and Retention Act, would authorize the VA, upon written request, to modify the hours of employment for full-time physicians to be more than or less than 80 hours in a biweekly pay period, as agreed to by the physician and hospital management.

Earlier this year, the VA testified that there are nearly 4,000 physician vacancies across the VA healthcare system. The VA's ability to effectively recruit and retain high-quality medical professionals to care for our veterans is threatened by the Nation's worsening physician shortage, which the Association of American Medical Colleges has stated could grow to just under 100,000 physicians by 2025. In light of this, it is imperative that we provide the VA with every available tool to improve physician recruitment and to make efficient use of the current physician workforce.

Currently, the VA's ability in both regards is hampered by a rigid 80-hour, biweekly work schedule that is at odds with private sector industry standards. Typically, emergency room, ER, providers in non-VA hospitals across the country work flexible schedules to accommodate the irregular hours that emergency medicine demands. However, ER doctors in VA medical facilities are not afforded the opportunity to adopt the flexible schedules that their private sector colleagues enjoy. This bill would correct that discrepancy and improve the VA's ability to recruit and retain ER physicians.

H.R. 4150, as amended, which has my full support, originated as a VA legislative proposal and is sponsored by Congressman RAUL RUIZ of California, who is an emergency medical physician. I am grateful to him for his efforts in addressing this issue, and I urge all of my colleagues to support this needed legislation.

I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 4150, as amended, introduced by my very good friend, the gentleman from California (Mr. RUIZ). This legislation will improve the recruitment and retention of medical professionals at the Department of Veterans Affairs.

H.R. 4150, as amended, allows the VA to arrange flexible physician work schedules to allow for the staffing and full implementation of a hospitalist physician system and to accommodate the unusual work schedule requirements for emergency medicine physicians. We all recognize the need for flexibility when working the rigorous and irregular hours that are routinely required of emergency medicine doctors. Giving the VA the ability to have flexible working hours that best suit the demand for delivering health care to the veterans who rely on those doctors just makes sense.

The current 80-hour, biweekly pay period limitation for these doctors creates challenges at the VA medical centers to adequately and sensibly staff the emergency rooms. Generally, most healthcare providers work a traditional 40-hour workweek. However, for hospitalists and emergency room physicians, they may need to work more than that in a week to provide safe, quality health care to veterans who seek services at the VA.

Ensuring access to care for veterans has been a major focus of this committee's, and this bill will help to eliminate the access barrier and provide a more efficient and effective way to ensure that the emergency rooms across the VA healthcare system are ready to take care of our veterans. Importantly, the bill also includes protections for physicians by requiring their consent before they can move to the flexible schedule.

Mr. Speaker, I reserve the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

I, too, am strongly in favor of this bill. I don't know where Dr. RUIZ was with regard to this 40-hour week, but I wish he had been around when I was in training and in practice because it would have been a joy to have worked just 40 hours. This particular bill allows the flexibility that every other hospital in the world has for staffing, and this is with the consent of the physicians and the hospital. It just makes sense.

I am so glad that Dr. RUIZ brought this up. As a practicing ER physician, he knows about this, and he knows exactly what it is.

I appreciate Dr. RUIZ bringing this up and making the committee aware of it. This will become a new law.

Mr. Speaker, I reserve the balance of my time.

□ 1600

Mr. TAKANO. Mr. Speaker, I yield 3 minutes to the gentleman from California (Mr. RUIZ), my good friend who is an emergency room physician and a member of the Veterans' Affairs Committee.

Mr. RUIZ. I would like to thank the chairman and the ranking member.

Mr. Speaker, I would say to the gentleman from Tennessee (Mr. ROE) that I too had 100-, 120-hour workweeks and months; and I was the scut, of course, during my internships and residency; so I understand the words that you have spoken.

I rise in support of my bill, H.R. 4150, the Department of Veterans Affairs

Emergency Medical Staffing Recruitment and Retention Act.

The point is this, and it is very simple: the VA needs to provide high-quality care that is veteran-centered. That is why I introduced this bill which works to address the difficulty of recruiting and retaining the best physicians to work within the VA healthcare system.

The problem is that, by law, the VA is beholden to the bureaucratic OPM's 80-biweekly requirement for full-time physicians. This does not fit with the current practice of physicians in many specialties, including emergency medicine and hospital medicine. These specialties typically require more flexible, often irregular working hours—some weeks they work less; some weeks they work the triple amount—but it needs to fit their schedule in order for them to provide the best care that they can for the patient.

Also, for instance, in emergency departments, it has been studied that the most dangerous time for a patient is during shift changes when a patient's care is transferred to another doctor. It all depends on the quality of the transfer, discussing what happened, and the follow-up that the second doctor is going to do. Therefore, emergency physicians prefer to work 12-hour shifts in order to minimize that transfer, and many emergency physicians work beyond their 12 hours in order to not transfer and just close the patient's case.

So this bill would give the VA the flexibility it needs to schedule physicians in a manner similar to that scene in the private sector while remaining OPM-compliant.

This bill will provide VA medical centers with the ability to implement flexible physician work schedules that can accommodate hospitalists' and emergency physicians' schedules and practices.

Our veterans deserve high-quality care. Attracting the best and brightest physicians to practice at the VA is a critical step in that direction.

And like my other bills up for consideration today as part of other legislation on the floor—the Veterans Access to Speedy Review Act, the Veterans' Survivors Claims Processing Automation Act—this bill works to ensure that the VA works for veterans, to make sure that it is about serving the veteran.

Let's pass this bill, Mr. Speaker, and take another step towards providing the highest quality care for those who have given the ultimate sacrifice to our Nation.

I thank the chairman once again, and I thank the ranking member for his efforts in getting this to the floor today.

Mr. ROE of Tennessee. Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, before I close, I want to just add how proud I am that we got this bill over the finish line, working together with the majority, working together with the stakeholders.

I want to give special words of gratitude to the staff in my office and the staff on the Veterans' Affairs Committee for working extra hours to get this bill done.

This makes enormous sense to do, and it should have been done sooner, but I am very glad we could get it done in this Congress.

I look very much forward to working with Dr. ROE in the next Congress to do similar bills and bills of greater magnitude in the future.

Mr. Speaker, I strongly support this legislation. I urge my colleagues to join me in passing H.R. 4150, as amended.

I yield back the balance of my time.

Mr. ROE of Tennessee. Mr. Speaker, I too encourage all Members to support H.R. 4150.

I also want to thank both the staff of the minority and the majority for their incredible work. Alex Large, who is on staff in my office, has worked very hard on many of these bills.

This is a time around our country where many of our young men and women are stationed in harm's way away from their families at the holidays. I too have done that, and I just appreciate very much the sacrifice that these men and women make for us each and every day. Let's not forget that there are people out there in some very dangerous places right now, as we speak, who are protecting our freedoms.

With that, it is indeed a pleasure to work on this committee because it is a bipartisan committee, and I think that the committee is laser-focused on doing what is right for veterans.

With that, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill, H.R. 4150, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on motions to suspend the rules previously postponed.

Votes will be taken in the following order:

H.R. 6394, by the yeas and nays;

H. Res. 939, by the yeas and nays;

H.R. 6416, by the yeas and nays.

The first electronic vote will be conducted as a 15-minute vote. Remaining electronic votes will be conducted as 5-minute votes.

IMPROVING BROADBAND ACCESS FOR VETERANS ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 6394) to require the Federal Communications Commission to submit to Congress a report on promoting broadband Internet access service for veterans, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Ohio (Mr. LATTA) that the House suspend the rules and pass the bill.

The vote was taken by electronic device, and there were—yeas 411, nays 4, not voting 18, as follows:

[Roll No. 604]

YEAS—411

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Babin
Barletta
Barr
Barton
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comer
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davidson
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Evans
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Guinta
Guthrie
Gutiérrez
Hanabusa
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack

Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pitts
Pocan
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—4

Amash
Grothman
Ribble
Russell

NOT VOTING—18

Bass
Brown (FL)
Castor (FL)
Clawson (FL)
Forbes
Granger
Heck (WA)
Israel
Jolly
Kirkpatrick
Lee
Miller (MI)
Pittenger
Poe (TX)
Richmond
Sanchez, Loretta
Walters, Mimi
Westmoreland

□ 1630

Mr. HONDA changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

EXPRESSING SENSE OF HOUSE THAT ACCESS TO DIGITAL COMMUNICATIONS TOOLS AND CONNECTIVITY IS NECESSARY TO PREPARE YOUTH

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and agree to the resolution (H. Res. 939) expressing the sense of the House of Representatives that access to digital communications tools and connectivity is necessary to prepare youth in the United States to compete in the 21st century economy, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Ohio (Mr. LATTA) that the House suspend the rules and agree to the resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 414, nays 1, not voting 18, as follows:

[Roll No. 605]

YEAS—414

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Babin
Barletta
Barr
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brownley (CA)
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comer
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davidson
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Evans
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hanabusa
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pitts
Pocan
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—1

Amash

NOT VOTING—18

Barton
Bass
Brown (FL)
Buchanan
Castor (FL)
Clawson (FL)
Forbes
Israel
Jolly
Kirkpatrick
Lee
Loudermilk
Miller (MI)
Pittenger
Poe (TX)
Richmond
Sanchez, Loretta
Westmoreland

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1638

So (two-thirds being in the affirmative) the rules were suspended and the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

JEFF MILLER AND RICHARD BLUMENTHAL VETERANS HEALTH CARE AND BENEFITS IMPROVEMENT ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 6416) to amend title 38, United States Code, to make certain improvements in the laws administered by the Secretary of Veterans Affairs, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Tennessee (Mr. ROE) that the House suspend the rules and pass the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 419, nays 0, not voting 14, as follows:

[Roll No. 606]

YEAS—419

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comer
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davidson
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Evans
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hanabusa
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pitts
Pocan
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—14

Brown (FL)
Castor (FL)
Clawson (FL)
Forbes
Israel
Jolly
Kirkpatrick
Lee
Miller (MI)
Pittenger
Poe (TX)
Richmond
Sanchez, Loretta
Westmoreland

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1646

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

NOTICE OF INTENTION TO OFFER RESOLUTION RAISING A QUESTION OF THE PRIVILEGES OF THE HOUSE

Mr. JORDAN. Mr. Speaker, pursuant to clause 2(a)(1) of rule IX, I rise to give notice of my intent to raise a question of the privileges of the House.

The form of the resolution is as follows:

H. Res. 828, impeaching John Andrew Koskinen, Commissioner of the Internal Revenue Service, for high crimes and misdemeanors.

Resolved, that John Andrew Koskinen, Commissioner of the Internal Revenue Service, is impeached for high crimes and misdemeanors and that the following articles of impeachment be exhibited to the Senate:

Articles of impeachment exhibited by the House of Representatives of the United States of America in the name of itself and of the people of the United States of America, against John Andrew Koskinen, Commissioner of the Internal Revenue Service, in maintenance and support of its impeachment against him for high crimes and misdemeanors.

Article I.

John Andrew Koskinen, in his conduct while Commissioner of the Internal Revenue Service, engaged in a pattern of conduct that is incompatible with his duties as an Officer of the United States, as follows:

Commissioner Koskinen failed in his duty to respond to lawfully issued congressional subpoenas. On August 2, 2013, the Committee on Oversight and Government Reform of the House of Representatives issued a subpoena to Secretary of the Treasury Jacob Lew, the custodian of Internal Revenue Service documents. That subpoena demanded, among other things, ''all communications sent or received by Lois Lerner, from January 1, 2009, to August 2, 2013''. On February 14, 2014, following the Senate's confirmation of John Andrew Koskinen as Commissioner of the Internal Revenue Service, the Committee on Oversight and Government Reform of the House of Representatives reissued the subpoena to him.

On March 4, 2014, Internal Revenue Service employees in Martinsburg, West Virginia, magnetically erased 422 backup tapes, destroying as many as

24,000 of Lois Lerner's emails responsive to the subpoena. This action impeded congressional investigations into the Internal Revenue Service targeting of Americans based on their political affiliation. The American people may never know the true culpability or extent of the Internal Revenue Service targeting because of the destruction of evidence that took place.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment and trial, and removal from office.

Article II.

John Andrew Koskinen engaged in a pattern of deception that demonstrates his unfitness to serve as Commissioner of the Internal Revenue Service. Commissioner Koskinen made a series of false and misleading statements to Congress in contravention of his oath to tell the truth. Those false statements included the following:

One, on June 20, 2014, Commissioner Koskinen testified that ''since the start of this investigation, every email has been preserved. Nothing has been lost. Nothing has been destroyed.''.

Two, on June 23, 2014, Commissioner Koskinen testified that the Internal Revenue Service had ''confirmed that backup tapes from 2011 no longer existed because they have been recycled, pursuant to the Internal Revenue Service normal policy''. He went on to explain that ''confirmed means that somebody went back and looked and made sure that in fact any backup tapes that had existed had been recycled''.

Three, on March 26, 2014, Commissioner Koskinen was asked during a hearing before the Committee on Oversight and Government Reform of the House of Representatives, ''Sir, are you or are you not going to provide this committee all of Lois Lerner's emails?''. He answered, ''Yes, we will do that.''.

Each of those statements was materially false. On March 4, 2014, Internal Revenue Service employees magnetically erased 422 backup tapes containing as many as 24,000 of Lois Lerner's emails. On February 2, 2014, senior Internal Revenue Service officials discovered that Lois Lerner's computer hard drive had crashed, rendering hundreds or thousands of her emails unrecoverable. Commissioner Koskinen's false statements impeded and confused congressional investigations into the Internal Revenue Service targeting of Americans based on their political affiliation.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment and trial, and removal from office.

Article III.

John Andrew Koskinen, throughout his tenure as Commissioner of the Internal Revenue Service, has acted in a manner inconsistent with the trust and confidence placed in him as an Officer of the United States, as follows:

During his confirmation hearing before the Senate Committee on Finance, John Andrew Koskinen promised, ''We will be transparent about any problems we run into; and the public and certainly this committee will know about those problems as soon as we do.''.

Commissioner Koskinen repeatedly violated that promise. As early as February 2014 and no later than April 2014, he was aware that a substantial portion of Lois Lerner's emails could not be produced to Congress. However, in a March 19, 2014, letter to Senator Wyden of the Senate Committee on Finance, Commissioner Koskinen said, ''We are transmitting today additional information that we believe completes our production to your committee and the House Ways and Means Committee. . . . In light of these productions, I hope that the investigations can be concluded in the very near future.''. At the time he sent that letter, he knew that the document production was not complete.

Commissioner Koskinen did not notify Congress of any problem until June 13, 2014, when he included the information on the fifth page of the third enclosure of a letter to the Senate Committee on Finance.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment and trial, and removal from office.

Article IV.

John Andrew Koskinen has failed to act with competence and forthrightness in overseeing the investigation into Internal Revenue Service targeting of Americans because of their political affiliations as follows:

Commissioner Koskinen stated in a hearing on June 20, 2014, that the Internal Revenue Service had ''gone to great lengths'' to retrieve all of Lois Lerner's emails. Commissioner Koskinen's actions contradicted the assurances he gave to Congress.

The Treasury Inspector General for Tax Administration found over 1,000 of Lois Lerner's emails that the Internal Revenue Service had failed to produce. Those discoveries took only 15 days of investigation to uncover. The Treasury Inspector General for Tax Administration searched a number of available sources, including disaster backup tapes, Lois Lerner's Blackberry, the email server, backup tapes for the email server, and Lois Lerner's temporary replacement laptop. The Internal Revenue Service failed to examine any of those sources in its own investigation.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment, trial, and removal from office.

RAISING A QUESTION OF THE PRIVILEGES OF THE HOUSE

Mr. JORDAN. Mr. Speaker, I offer this resolution, H. Res. 828, for consideration by the full House.

The SPEAKER pro tempore. The Clerk will report the resolution.

The Clerk read as follows:

H. RES. 828

Resolved, That John Andrew Koskinen, Commissioner of the Internal Revenue Service, is impeached for high crimes and misdemeanors and that the following articles of impeachment be exhibited to the Senate:

Articles of impeachment exhibited by the House of Representatives of the United States of America in the name of itself and of the people of the United States of America, against John Andrew Koskinen, Commissioner of the Internal Revenue Service, in maintenance and support of its impeachment against him for high crimes and misdemeanors.

ARTICLE I

John Andrew Koskinen, in his conduct while Commissioner of the Internal Revenue Service, engaged in a pattern of conduct that is incompatible with his duties as an Officer of the United States, as follows:

Commissioner Koskinen failed in his duty to respond to lawfully issued congressional subpoenas. On August 2, 2013, the Committee on Oversight and Government Reform of the House of Representatives issued a subpoena to Secretary of the Treasury Jacob Lew, the custodian of Internal Revenue Service documents. That subpoena demanded, among other things, ''[a]ll communications sent or received by Lois Lerner, from January 1, 2009, to August 2, 2013''. On February 14, 2014, following the Senate's confirmation of John Andrew Koskinen as Commissioner of the Internal Revenue Service, the Committee on Oversight and Government Reform of the House of Representatives reissued the subpoena to him.

On March 4, 2014, Internal Revenue Service employees in Martinsburg, West Virginia, magnetically erased 422 backup tapes, destroying as many as 24,000 of Lois Lerner's emails responsive to the subpoena. This action impeded congressional investigations into the Internal Revenue Service targeting of Americans based on their political affiliation. The American people may never know the true culpability or extent of the Internal Revenue Service targeting because of the destruction of evidence that took place.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment and trial, and removal from office.

ARTICLE II

John Andrew Koskinen engaged in a pattern of deception that demonstrates his unfitness to serve as Commissioner of the Internal Revenue Service. Commissioner Koskinen made a series of false and misleading statements to Congress in contravention of his oath to tell the truth. Those false statements included the following:

(1) On June 20, 2014, Commissioner Koskinen testified that ''since the start of this investigation, every email has been preserved. Nothing has been lost. Nothing has been destroyed.''.

(2) On June 23, 2014, Commissioner Koskinen testified that the Internal Revenue Service had ''confirmed that backup tapes from 2011 no longer existed because they have been recycled, pursuant to the Internal Revenue Service normal policy''. He went on to explain that ''[c]onfirmed means that somebody went back and looked and made sure that in fact any backup tapes that had existed had been recycled''.

(3) On March 26, 2014, Commissioner Koskinen was asked during a hearing before the Committee on Oversight and Government Reform of the House of Representatives, ''Sir, are you or are you not going to provide this committee all of Lois Lerner's emails?''. He answered, ''Yes, we will do that.''.

Each of those statements was materially false. On March 4, 2014, Internal Revenue Service employees magnetically erased 422 backup tapes containing as many as 24,000 of

Lois Lerner's emails. On February 2, 2014, senior Internal Revenue Service officials discovered that Lois Lerner's computer hard drive had crashed, rendering hundreds or thousands of her emails unrecoverable. Commissioner Koskinen's false statements impeded and confused congressional investigations into the Internal Revenue Service targeting of Americans based on their political affiliation.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment and trial, and removal from office.

ARTICLE III

John Andrew Koskinen, throughout his tenure as Commissioner of the Internal Revenue Service, has acted in a manner inconsistent with the trust and confidence placed in him as an Officer of the United States, as follows:

During his confirmation hearing before the Senate Committee on Finance, John Andrew Koskinen promised, ''[W]e will be transparent about any problems we run into; and the public and certainly this committee will know about those problems as soon as we do.''.

Commissioner Koskinen repeatedly violated that promise. As early as February 2014 and no later than April 2014, he was aware that a substantial portion of Lois Lerner's emails could not be produced to Congress. However, in a March 19, 2014, letter to Senator Wyden of the Senate Committee on Finance, Commissioner Koskinen said, ''We are transmitting today additional information that we believe completes our production to your committee and the House Ways and Means [C]ommittee. . . . In light of these productions, I hope that the investigations can be concluded in the very near future.''. At the time he sent that letter, he knew that the document production was not complete.

Commissioner Koskinen did not notify Congress of any problem until June 13, 2014, when he included the information on the fifth page of the third enclosure of a letter to the Senate Committee on Finance.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment and trial, and removal from office.

ARTICLE IV

John Andrew Koskinen has failed to act with competence and forthrightness in overseeing the investigation into Internal Revenue Service targeting of Americans because of their political affiliations as follows:

Commissioner Koskinen stated in a hearing on June 20, 2014, that the Internal Revenue Service had ''gone to great lengths'' to retrieve all of Lois Lerner's emails. Commissioner Koskinen's actions contradicted the assurances he gave to Congress.

The Treasury Inspector General for Tax Administration found over 1,000 of Lois Lerner's emails that the Internal Revenue Service had failed to produce. Those discoveries took only 15 days of investigation to uncover. The Treasury Inspector General for Tax Administration searched a number of available sources, including disaster backup tapes, Lois Lerner's Blackberry, the email server, backup tapes for the email server, and Lois Lerner's temporary replacement laptop. The Internal Revenue Service failed to examine any of those sources in its own investigation.

Wherefore, John Andrew Koskinen, by such conduct, warrants impeachment, trial, and removal from office.

□ 1700

The SPEAKER pro tempore. The resolution presents a question of privilege.

MOTION TO TABLE

Ms. PELOSI. Mr. Speaker, I move to lay the resolution on the table.

The SPEAKER pro tempore. The question is on the motion to table.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Ms. PELOSI. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 180, nays 235, not voting 18, as follows:

[Roll No. 607]

YEAS—180

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Evans
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hanabusa
Hastings
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larson (CT)
Lawrence
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Young (AK)

NAYS—235

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Coffman
Cole
Collins (GA)
Collins (NY)
Comer
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—18

Brown (FL)
Castor (FL)
Clawson (FL)
Forbes
Heck (NV)
Issa
Jolly
Kirkpatrick
Larsen (WA)
Lee
Lieu, Ted
Miller (MI)
Pittenger
Poe (TX)
Richmond
Sanchez, Loretta
Van Hollen
Westmoreland

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1719

Mr. NOLAN changed his vote from ''nay'' to ''yea.''

So the motion to table was rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. ISSA. Mr. Speaker, I was too far away to return for the vote in time. Had I been present, I would have voted ''nay' on rollcall No. 607.

PARLIAMENTARY INQUIRY

Ms. JACKSON LEE. Mr. Speaker, I rise for a parliamentary inquiry based upon the resolution before us and the

most somber responsibility of impeachment.

The SPEAKER pro tempore. The gentlewoman from Texas will state her parliamentary inquiry.

Ms. JACKSON LEE. Mr. Speaker, the inquiry is the underlying premise as to whether or not an impeachment should go forward when there are questions that are not documented of malfeasance or malice or the interpretation of the Madison Papers or the impeachment articles under the Constitution. Obviously, we are now preparing to refer.

My question, Mr. Speaker, is whether or not we have made the appropriate documentation in the resolutions of the Articles of Impeachment that we should even refer this at all?

I raise the question on a parliamentary inquiry.

The SPEAKER pro tempore. The Chair has ruled that this resolution raises a question of the privileges of the House, and it is up to the House to dispose of that question.

Ms. JACKSON LEE. I thank you, Mr. Speaker.

Let me say that the substance of the Articles of Impeachment do not meet the standards that are evidenced in the articles in the Constitution or interpretive works, such as the Madison Papers. I believe it is without substance, and I would hope that we would not refer this at this time.

The SPEAKER pro tempore. The gentlewoman is not stating a parliamentary inquiry.

MOTION TO REFER

Mr. GOODLATTE. Mr. Speaker, I have a motion at the desk.

The SPEAKER pro tempore. The Clerk will report the motion offered by the gentleman from Virginia.

The Clerk read as follows:

Mr. Goodlatte moves that the resolution be referred to the Committee on the Judiciary.

The SPEAKER pro tempore. The gentleman from Virginia is recognized for 1 hour.

Mr. GOODLATTE. Mr. Speaker, Members have different opinions about what to do to address the allegations of misconduct against IRS Commissioner John Koskinen. Some would impeach him; others would censure him. Still others would impose no penalty.

To address these differences of opinion and to ensure this body administers due process in these deliberations, I recommend that the House refer this matter to the House Judiciary Committee.

I yield back the balance of my time, and I move the previous question on the motion to refer.

The previous question was ordered.

PARLIAMENTARY INQUIRY

Mr. MASSIE. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman from Kentucky will state his parliamentary inquiry.

Mr. MASSIE. Mr. Speaker, is this impeachment resolution necessary or is it, in fact, true that Mr. Koskinen's term extends well into the next President's term all the way until November? Is that true?

The SPEAKER pro tempore. The Chair cannot advise on that matter.

The question is on the motion to refer.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. JORDAN. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 342, noes 72, not voting 19, as follows:

[Roll No. 608]

AYES—342

Abraham
Adams
Aguilar
Amodei
Ashford
Barletta
Barr
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brooks (IN)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Butterfield
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castro (TX)
Chabot
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comer
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSaulnier
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Evans
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Gibbs
Gibson
Goodlatte
Gowdy
Graham
Granger
Graves (GA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hanabusa
Hanna
Hardy
Harper
Hastings
Heck (WA)
Hensarling
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huffman
Huizenga (MI)
Hultgren
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Jones
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kinzinger (IL)
Kline
Knight
Kuster
LaHood
Lance
Langevin
Larson (CT)
Latta
Lawrence
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marino
Matsui
McCarthy
McCaul
McClintock
McCollum
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meehan
Meeks
Meng
Mica
Miller (FL)
Moolenaar
Moore
Moulton
Mullin
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Pascrell
Paulsen
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Poliquin
Polis
Pompeo
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Rice (NY)
Rice (SC)
Richmond
Roe (TN)
Rogers (AL)
Rogers (KY)
Rokita
Ros-Lehtinen
Roskam
Ross
Rothfus
Roybal-Allard
Royce
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Vargas
Veasey
Vela
Velázquez
Visclosky
Walden
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Wenstrup
Westerman
Wilson (FL)
Wilson (SC)
Womack
Woodall
Yarmuth
Yoder
Young (AK)
Young (IA)
Young (IN)

NOES—72

Aderholt
Allen
Amash
Babin
Barton
Bilirakis
Blackburn
Blum
Brat
Bridenstine
Brooks (AL)
Buck
Byrne
Chaffetz
Davidson
DeSantis
DesJarlais
Duncan (SC)
Fleming
Garrett
Gohmert
Gosar
Graves (LA)
Griffith
Harris
Hartzler
Herrera Beutler
Hice, Jody B.
Huelskamp
Hunter
Johnson, Sam
Jordan
Kelly (MS)
King (IA)
Labrador
LaMalfa
Lamborn
Long
Lummis
Marchant
Massie
Meadows
Messer
Mooney (WV)
Mulvaney
Noem
Palmer
Pearce
Perry
Pitts
Posey
Ribble
Rigell
Roby
Rohrabacher
Rooney (FL)
Rouzer
Russell
Salmon
Sanford
Schweikert
Stutzman
Wagner
Walberg
Walker
Weber (TX)
Webster (FL)
Williams
Wittman
Yoho
Zeldin
Zinke

NOT VOTING—19

Brown (FL)
Castor (FL)
Clawson (FL)
Deutch
Forbes
Heck (NV)
Jolly
Kirkpatrick
Larsen (WA)
Lee
McDermott
Miller (MI)
Pittenger
Poe (TX)
Rush
Sanchez, Loretta
Van Hollen
Welch
Westmoreland

□ 1740

Messrs. BILIRAKIS and PALMER changed their vote from ''aye'' to ''no.''

So the motion to refer was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PROVIDING FOR THE PRINTING OF A REVISED EDITION OF THE RULES AND MANUAL OF THE HOUSE OF REPRESENTATIVES FOR THE ONE HUNDRED FIFTEENTH CONGRESS

Mr. MCCARTHY. Mr. Speaker, I send to the desk a resolution and ask unanimous consent for its immediate consideration.

The Clerk read the title of the resolution.

The SPEAKER pro tempore (Mr. KATKO). Is there objection to the request of the gentleman from California?

There was no objection.

The text of the resolution is as follows:

H. RES. 945

Resolved, That a revised edition of the Rules and Manual of the House of Representatives for the One Hundred Fifteenth Congress be printed and bound for the use of the House of Representatives, of which nine hundred eighty copies shall be bound in leather with thumb index and delivered as may be directed by the Parliamentarian of the House.

The resolution was agreed to.

A motion to reconsider was laid on the table.

DIRECTING THE CLERK OF THE HOUSE OF REPRESENTATIVES TO MAKE A CORRECTION IN THE ENROLLMENT OF H.R. 34

Mr. UPTON. Mr. Speaker, I ask unanimous consent to take from the Speaker's table the concurrent resolution (H. Con. Res. 174) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 34, with the Senate amendment thereto, and concur in the Senate amendment.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. The Clerk will report the Senate amendment.

The Clerk read as follows:

Senate amendment:

Beginning on page 1, line 7, strike ''following correction:'' and all that follows and insert the following:

''*following corrections:*

''*(1) Amend the long title so as to read: 'An Act to accelerate the discovery, development, and delivery of 21st century cures, and for other purposes.'.*

''*(2) Amend the section heading for section 1001 so as to read: '**BEAU BIDEN CANCER MOONSHOT AND NIH INNOVATION PROJECTS**'.*

''*(3) Amend the table of contents in section 1 so that the item relating to section 1001 reads as follows:*

''*'1001. Beau Biden Cancer Moonshot and NIH innovation projects.'.''.*

Mr. UPTON (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

The SPEAKER pro tempore. Is there objection to the original request of the gentleman from Michigan?

There was no objection.

A motion to reconsider was laid on the table.

BIG TEN CHAMPION PENN STATE NITTANY LIONS

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise to recognize the Big Ten football champions, the Penn State Nittany Lions.

Following a series of impressive victories that stunned the Nation, Penn State, my alma mater, finished the regular season ranked fifth in the Nation.

After falling behind to Wisconsin 28–14 at halftime, Penn State's chances to take home the Big Ten trophy looked bleak; but under the leadership of Big Ten Coach of the Year James Franklin, the Nittany Lions rallied to score 24 points in the second half to win the Big Ten championship. Throughout the game, they showed grit, determination, and sportsmanship, making me proud to be a fellow Penn Stater.

Congratulations to the Nittany Lions on an impressive season, and I wish you the best of luck in the Rose Bowl.

We are.

□ 1745

HOUSING DISCRIMINATION LAWSUIT AGAINST FANNIE MAE

(Ms. KAPTUR asked and was given permission to address the House for 1 minute.)

Ms. KAPTUR. Mr. Speaker, I rise tonight in support of the housing discrimination lawsuit filed against the Federal National Mortgage Association yesterday, Monday, by the National Fair Housing Alliance and 20 local fair housing organizations across our Nation. The lawsuit properly alleges Fannie Mae purposely failed to maintain its foreclosed properties in African American and Latino neighborhoods to the same condition as it maintains properties in Caucasian neighborhoods. Over 20 cities were involved in this filing, and investigations revealed severe maintenance issues in communities of color, in contrast to Freddie Mac, which maintains its properties at a much higher standard in all neighborhoods.

With a net income of over $45 billion over the last 2 years, Fannie Mae remains one of the largest issuers of single-family, mortgage-related securities. This year, Fannie Mae reported holding over 40 million foreclosed properties, many of which they do not maintain.

So why hasn't Fannie Mae maintained its foreclosed properties in African American and Latino communities? They certainly have enough profits to do so. May the judges rule in favor of Fannie Mae meeting its public responsibilities to the communities of this country as soon as possible.

HONORING ERIC ELLSWORTH

(Mr. BISHOP of Utah asked and was given permission to address the House for 1 minute.)

Mr. BISHOP of Utah. Mr. Speaker, today I rise in honor of Utah Highway Patrol trooper and Brigham City resident Eric Ellsworth, who was killed on November 18 in the line of duty. Eric was selflessly working to ensure the safety of others on a rural road in Box Elder County when he was tragically struck by a car and died several days later of the wounds that he sustained.

In the days since his death, Eric's family, friends, and fellow troopers have honored his memory, recalling his love for his family, his passion for life, his kindness, and his faith.

Today, Mr. Speaker, we honor Eric for the courage that he demonstrated on a daily basis to protect the citizens of Utah. We are going to remember his heroic sacrifice and those of others like him who dedicate themselves to the safety of others, regardless of personal danger.

My prayers go out to Eric's wife, his sons, and his extended family during this very difficult time.

HONORING CHOCO GONZALEZ MEZA

(Mr. CASTRO of Texas asked and was given permission to address the House for 1 minute.)

Mr. CASTRO of Texas. Mr. Speaker, I rise today to honor the life and legacy of Choco Gonzalez Meza, a beloved mother, grandmother, and friend, who changed the face of Texas politics. Her recent passing is a tremendous loss not only for her family, but for so many throughout Texas and the Nation whose lives she touched.

Born in Coahuila, Mexico, Choco and her family immigrated to the United States when she was just 3 years old. She graduated from St. Mary's University in San Antonio and went on to hold a number of leadership positions throughout her career. Whether at nonprofits like the YWCA, through public service as deputy assistant secretary at the Department of Housing and Urban Development, or in politics as Bexar County Democratic chair, Choco tirelessly fought for social justice and strove to create opportunity for marginalized groups.

Choco was truly a historic figure in Texas politics and a compassionate, selfless soul. We mourn her passing and are grateful for all she gave to our community in San Antonio and to our Nation's democracy.

DEFERRED ACTION FOR CHILDHOOD ARRIVALS PROGRAM

(Mr. O'ROURKE asked and was given permission to address the House for 1 minute.)

Mr. O'ROURKE. Mr. Speaker, this is Nesbly Nayeli Saenz. She lives in my community, where she is raising a 14-, an 11-, and a 6-year-old U.S. citizen family. She is actively involved in the success of our community. She works two jobs, and she recently came out with over 320 other El Pasoans to talk about the importance of ensuring that the DREAMers, 750,000 of our fellow Americans who were brought here to this country at a young age, are able to stay here. The uncertainty created by our President-elect's promise to end the DACA program is creating anxiety and fear for these DREAMers and may ultimately lead to their deportation, which will hurt not just those DREAMers and their families, it will hurt our country.

I ask the President-elect and I ask this Congress to do our jobs to provide that certainty to make sure that our laws reflect our values and that we keep wonderful Americans like Nesbly in our communities, in our country. It is going to be good for them, and it is going to be good for our country.

MAKE IT IN AMERICA

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Mr. Speaker, tonight I will continue on a quest that we have been challenged with for the last 7 years, and that is how to grow the American economy.

Coming out of the Great Recession, where we lost millions of jobs and some 2 million manufacturing jobs that were in addition to the previous 6 million that had been lost in the years ahead of the Great Recession, we searched for how to rebuild the American economy and the great manufacturing base that once was the foundation for economic growth and the foundation for the middle class. This quest takes us yet again to, really, something that most Americans do not consider as manufacturing.

Let me start with a very quick review of the project that we have been working on, which we call the Make It In America project, so that Americans can make it. Wouldn't we want all of our families to be able to make it in America, to be able to buy that house, to educate our kids, to take the vacation?

So the Make It In America project includes trade, about which there has been much discussion in these recent years, in the debates in the election process; tax policy, which we will be dealing with shortly, and I may touch on that just lightly today; energy policy; labor; education; research; and infrastructure.

These are some of the critical elements that we focus on when we talk about making it in America so that Americans can make it in America.

Today I want to talk about a couple of pieces of this that we normally don't think about when we talk about manufacturing. So we will just put this up here and be reminded about American manufacturing.

Think of the American farmer. Is that manufacturing? Well, I don't know. You take sun, water, earth, seeds, effort, entrepreneurialism, and you make something called food. We are going to take it just a step beyond that, because part of the manufacturing in America really is the preparation of food for Americans; in other words, the producing of the food taken out of the field and prepared for sale to American families—some of it in the grocery stores, some of it now in farmer's markets. But the manufacturing of food is a huge industry.

It is also an industry that has enormous growth potential. We know that, for example, just in the Central Valley of California, which I represent—the Sacramento Valley and the San Joaquin Valley—there are 1,659 food and beverage manufacturing establishments that are part of that food chain: taking rice from the fields in my district to the brewery and producing something that many Americans want on a Sunday afternoon at the tailgate party before the football game, beer, or maybe it is from the vineyards to the winery, and then think about all of the other pieces that go into that. There is the package in which the six-pack is packed or the crate into which the bottles of wine are sent off to the local retail store.

All of those pieces are also expanded by the machinery that is in the winery or in the brewery or in the tomato factory. All of these are jobs. And in many cases, these are American manufacturing jobs way, way back in the chain that have produced the pump or the electric motor or the pipe or the vat into which all of these products would be manufactured. So when we talk about manufacturing in the food industry, which is usually ignored when we talk about manufacturing in America, we need to realize that it is a huge part of the American economy and the American manufacturing scene.

I was recently at one of the largest tomato packing plants in California, the CPC plant in Woodland, California, that produces every kind of tomato paste you might want, all of the tomato sauce, all of the salsa. You name it, it is manufactured there in a very complex environment in which, seasonally, there are 1,200 workers and, annually, 125 that are left to maintain, to improve the equipment, and to take care of any problems that occurred in that manufacturing process. There are also hundreds of employed truckers who then take those cases of tomato paste, put them on the truck, and ship them all the way across America, or put them on a train or put them in a container to be taken to the Port of Oakland and then shipped overseas.

So when you consider the agricultural industry, think beyond the farmer. Think to what one of the bosses at a big winery in California told me as I was touring there a couple of years ago. When I was talking about manufacturing, he said: Hey, come. Let's take a look out the back of my office.

I said: Fine. Let's go.

He said: Do you see that?

I said: Yes. Those are huge tanks and pumps and all the rest.

He said: No. That is a manufacturing facility, and what we make is the best wine in the entire world.

Indeed, it was very, very good wine.

So when we talk about bringing manufacturing jobs back to America—and there has been much discussion, as Mr. Trump has gone off to a Carrier plant in Indiana—we ought to also think about food manufacturing, and that is something that is not going to disappear from the American scene because, hey, it is grown here in America, and it needs to be processed here in America.

I want to take this so that we understand the full extent of the potential here. And if we have these elements in place, we will be able to create a very significant number of jobs.

Trade policy, I am not going to get into that anymore, but this is a big piece of every trade deal: Will American agriculture, the farmers and the processors of those products, be able to trade into the international market? By and large, American agriculture has been precluded, through various trade deals of the past, from being able to reach its full potential in international trade.

I want to talk specifically about labor for a moment, and these are the statistics from the California Department of Labor Marketing and Information Division.

Between 2012 and 2022—so 4 of those years have already gone by—there will be, in California, 51,900 total openings in the food manufacturing sector. Some of those are replacements; 27,000 of those would be to replace people who are retiring and 24,000 will be new openings as the manufacturing of food expands. They are in every category you can imagine: packing and filling machine operators, cleaners of the vehicles and the equipment, inspectors, industrial machine mechanics, packers and packagers, drivers and sale workers, general operations, and managers. That is a huge number. There are almost 52,000 new jobs available just in the food processing sector of the California economy.

Now, we make policy around here in every one of these areas, and the policies can enhance the food industry in the United States and create even more jobs in the United States. I want to give one example, and this is a piece of legislation that we have introduced here in Congress. We call it the American Food for American Schools Act—American food for American schools. It is H.R. 6299.

Now, for years, we have had the School Lunch Act, providing nutritional food for kids at school, and the

law has been pretty clear. It is Federal tax dollars, your tax dollars, mine. The American taxpayers' money is supposed to be used to buy American-produced food. So maybe it is a peach or an apple, or maybe it is orange juice or perhaps one of those little packages of mixed fruits. Whatever it happens to be, your tax dollars are supposed to be spent on American-produced food.

However, that is not necessarily the case, because there is a loophole as wide as a container ship, and schools across the Nation have been able to use that loophole to avoid buying American food, even though they are using American taxpayer dollars.

□ 1800

So what we intend to do here is to tighten up that loophole and make it clear that if a school district intends to buy food produced in China or in Egypt or anywhere else around the world that they will have to tell the public that they are not buying American food, they are buying food produced somewhere else around the world, and using the tax dollars from the parents to buy foreign food rather than supporting the American farmer.

I want to give you a couple of examples of the egregious nature of this waiver. Sacramento, California, is at the heart of the canned peach industry. Nearly all the canned peaches are grown within 50 miles of Sacramento. The Sacramento City Unified School District decided that, to save a few cents per can, they would reach out and buy Chinese peaches. I don't mean a peach that is Chinese but, rather, peaches that are grown in China, canned in China under food security and safety regulations that are anybody's guess as to what they are, and serve that in California, in Sacramento.

It turns out that that created a bit of a stir and a bit of a problem for the school district, and they backed off, but that big loophole remains, and so the American Food for American Schools Act would close that loophole, providing opportunities for employment here in the United States and, in the case of Sacramento, in the Sacramento region. So we tightened it up. We say if a school district wants to bypass the Federal law and use American taxpayer money to buy strawberries from Egypt—which, by the way, happened to have been contaminated and were actually purchased by a school district across this nation, contaminated with hepatitis A.

Recalls occurred. School districts used those strawberries. In one case in California, they made smoothies of it. Fortunately, to this date, we know of no illnesses that have been caused. But, clearly, if they had bought American, this would not have been a problem. So there would be notification, and there would be a very tight loophole through which the school districts would have to pass to avoid this issue of using American taxpayer dollars to buy American food.

So the American Food for American Schools Act will have to be taken up next year. I believe it already is a bipartisan bill, and I would expect that next year it will have even more support as we make it clear that if we want to make it in America then we have to use our laws to support the American manufacturing sector. And tonight, if it is not yet clear, I will say it again. The farmer manufactures food—sunlight, water, soil, nutrients, entrepreneurial activity, hard work and labor to make the food—and then that food moves through the processing chain, creating additional manufacturing jobs. By the way, these are not low-paying jobs. The average is $20 an hour. So we are talking about wages that are at the bottom end of the middle class structure.

What we are looking at here are many different ways to achieve a rebirth, a regeneration of the American manufacturing sector, and today we bring something that I think most people didn't expect when we talk about making it in America. They didn't expect us to be saying that if we are going to make it in America, if Americans are going to be able to make it, then we ought to look to the manufacturing sector, broadly defined, whether it is agriculture or, as we talked about last week in the manufacturing of high-speed rail, the manufacturing of trains and vehicles of all kinds.

So when your tax dollars are being spent, I would ask all of my colleagues and all of the public: Hey, are my tax dollars being spent on American-made goods and services, or are you buying foreign? That is a question for us to answer here and to write laws that encourage that your tax dollars will be spent on American-made goods and services. So we can make it in America. We can manufacture in America, and America can prosper as a result of the laws and the policies we put in place here.

Mr. Speaker, I yield back the balance of my time.

I AM PROUD OF MY FOUR YEARS OF SERVICE

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Florida (Mr. MURPHY) is recognized for the remainder of the hour as the designee of the minority leader.

Mr. MURPHY of Florida. Mr. Speaker, I want to thank the gentleman from California for his service, for his dedication to making it in America and continuing to support those in agriculture, those who are working so hard to feed this Nation, everything they bring. I want to thank the gentleman.

I rise today as a humble Member of this body, representing the people of Florida's 18th Congressional District since 2013. Four years ago, I came to Congress to work as an independent thinker toward bipartisan solutions, making sure that we are moving our country forward but also moving our Nation forward.

To that end, I started the Congressional United Solutions Caucus with likeminded Members from both sides of the aisle. Working together, we introduced major bipartisan legislation that would cut nearly $500 billion in government spending over 10 years by rooting out waste, inefficiencies, and finding some wasteful spending. I am proud that several of the commonsense measures outlined in the SAVE Act were actually passed as part of the House annual appropriations process, showing that both parties can actually work together to get our fiscal house in order.

Furthermore, I have been proud of the bipartisan work of our State's delegation to put Florida first. Together, we passed major legislation that I introduced with Congressman DENNIS ROSS from Florida to improve the flood insurance market, giving Florida families more options for flood insurance coverage by bringing down the cost of those policies.

As the founder and the co-chair of the bipartisan Congressional Citrus Caucus, I worked with my colleagues TOM ROONEY and VERN BUCHANAN to secure almost $150 million for citrus greening research that is vital to our State's iconic orange industry. We also passed legislation to expand tax incentives for replanting efforts to help the local farmers impacted by greening.

Just last week, the House passed the WINGMAN Act that I introduced with Congressman TED YOHO from Florida to remove barriers that prevent congressional staff, who already are working closely with the VA and local veterans on their claims, from being able to update constituents in a more timely manner. This change would help alleviate the burden on VA staff, better serve the veterans by expediting the claims process, and help tackle the backlog of cases.

We also brought Members together, not just from Florida but across the Nation, to bring attention to the crisis in our local waterways and highlight the urgent need for Everglades restoration efforts to help provide long-term relief to our communities. I will never forget how touched and humbled I was to see more than 100 Floridians make their trip to Washington. Some of those folks came up 14 hours by bus to have their voices heard at a historic congressional briefing on our waterways that I helped host in October of 2013.

In the midst of a government shutdown, 22 Members of Congress, including Democrats and Republicans, Senator BILL NELSON, Leader NANCY PELOSI, and the House Committee on Transportation and Infrastructure Chairman BILL SHUSTER came together with experts, community leaders, and residents to raise awareness for advocates of the solutions that are needed.

Every day, I am given extraordinary opportunities to help the people of Palm Beach and the Treasure Coast.

Every day, I am afforded an opportunity to make a difference in a person's life. I am proud that, over the past 4 years, we have assisted thousands of constituents, helping to return over $4 million in earned benefits for the district. Those are lifechanging results that partisan bickering cannot take away.

Too often, the negative attacks and partisanship overshadow the issues that actually matter to American families. We desperately need a new era of politics with leaders who put their country before their party, who solve problems instead of pointing fingers, and who are committed to service.

While the outcome of this past election was not what I had hoped for for our State or for our Nation, there is still a window of opportunity for new leaders to make changes in America that our country is clearly yearning for. Much of the system is broken, from the money in politics to the corporate influences and the gerrymandering. There is too much outside impact influencing our election process.

I also agree that many laws and regulations could use adjustments to work better for the American people and for our country. But let us remember that the outcome of this past election was not a mandate for many of the policy actions that are being discussed right now. Instead, we saw a still-divided nation making it more important than ever that we have solutions that work for all Americans, not some Americans.

That is why I hope to see a new focus on tackling climate change, tax reform, investing in our infrastructure, rebuilding the middle class, improving educational opportunities, and protecting our country from the threats of cyber attacks and terrorism, all things I championed during my time in this Chamber.

But above all, I hope that we do not move our country backwards. That requires leaders who can unite us, not those using fear and lies to further divide this country. I will always be the first to say that we must work together—not as Democrats, not as Republicans, but as Americans. However, we cannot simply gloss over the hateful and divisive rhetoric that plagued our country this past year. The United States is better than this, and the world is watching.

As an eternal optimist, I am hopeful that our leaders will work together to begin to heal these wounds and move our country forward together, showing that we are stronger than those who wish to divide us. That is what I will keep pushing for and hope that our leaders in Washington will join me in fighting for what is right for the American people.

My commitment to our community, to the great State of Florida, and to our Nation will always continue. Thank you to my constituents, to my colleagues, and to my team for an honor of a lifetime, serving the Treasure Coast and Palm Beach here in the United States Congress.

Mr. Speaker, I yield back the balance of my time.

CLOSING OUT THE 114TH CONGRESS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Illinois (Mr. DOLD) is recognized for 60 minutes as the designee of the majority leader.

Mr. DOLD. Mr. Speaker, I thank my friend from Florida for his service here in this body and wish him well as he opens the next chapter of his life, and I certainly hope that we will stay in touch.

Mr. Speaker, today I come to the floor to really thank the people of the 10th District of Illinois for giving me an opportunity, a tremendous honor to become their voice here in Washington, D.C., to serve them here in the United States House of Representatives.

When I first ran for Congress, it was because I, as a small-business owner, felt the government was making it harder and harder for me to put the key in the door of my small business, harder for me to hire an individual, and I think they should be making it easier for me to do those things, easier for me to put the key in the door, easier for me to hire that next individual.

Today, Mr. Speaker, too many politicians and bureaucrats in Washington just don't understand what it takes to meet a budget and a payroll. We see a disconnect in so many people who are risking everything, who feel that the folks here in Washington, D.C., just don't understand. They feel that Washington has grown far too distant, become out of touch, and unresponsive to the real-world difficulties that families are facing each and every day. Too many people feel that government officials have forgotten who they actually work for, something that myself and my team never forgot.

□ 1815

Throughout my time in office, my team and I have gone to work each and every day to fix this disconnect. In just the past 2 years, we have held more than 1,000 events that we held back in the district with community leaders and constituents to listen, learn, act, and ultimately make sure that we were accessible so that those individuals felt that they had their voice in Washington, D.C.; that we did understand what they were encountering each and every day, whether it was up in Zion or north Chicago or down in Des Plaines or in Highland Park and Lake Forest.

We responded to over 50,000 constituents' letters. We helped over 1,250 families break through the red tape of government bureaucracy in order to help them with whatever it was that was plaguing them at the time. That really was because of the great constituent service that our team displayed day in and day out. We held five nonpartisan job fairs in order to connect 10th District jobseekers with good, high-paying careers that were right here in the district.

Mr. Speaker, I represent the fourth largest manufacturing district in the country, and manufacturer after manufacturer would let me know: I have good, high-paying jobs available, I just can't find people qualified to take those jobs.

Holding these job fairs was a critical thing in order to make sure people were able to make payments on their mortgage, to be able to make sure that there was food on the table. These actions made a real difference in people's lives for themselves and for their families.

Mr. Speaker, I have always said that there is so much more that unites us than divides us. Yet, when we look at Washington, too many people are talking about the gridlock. That is the stuff that sells newspapers. That is the thing that is on the nightly news.

Yet, people have to recognize here in this body, the people's House, and, frankly, across the Capitol in the Senate, that we are not Republicans or Democrats first, but we are Americans, first and foremost, and that we are all bound by the shared vision of wanting our communities and our Nation to succeed, to be safe, healthy, and strong.

That is why I have always sought to work across the aisle to tackle the most challenging issues facing our country. The results have proved that, when we work together, we truly can make an enormous impact on the lives of the American people, we can make their lives just a little bit easier.

When we think about what we have been able to do over the course of the last few years, I still remember time and again we would go to townhall meetings and we would go to events and talk to people, and they would ask: Is Washington working?

The answer was unequivocally: No, it is not working.

Yet, when we reminded them about some of the things that we were able to do over the course of the last 2 years when we worked together, most people were shocked.

We passed historic, bipartisan reforms to ensure that seniors will continue to have access to their doctors through Medicare. This fix ends a nearly two-decade-long stretch of short-term patches year after year.

Doctors would be concerned that, at the end of the year, they were going to get a 25 or 30 percent cut in their pay just for taking care of our seniors. Therefore, a lot of the doctors ended up saying: I am not going to take care of seniors.

Well, we came together in a bipartisan way and actually fixed that problem. We passed the first long-term surface transportation bill and infrastructure funding bill in more than a decade. Our efforts brought money flowing into Illinois to fix our roads and rails, reduce congestion, and make the daily

commute safer not just for the 10th District, but for communities all across our country.

We passed a historic education reform bill, which will improve the classroom experience for students in our community. The Every Student Succeeds Act reduced the Federal control and returned more power to parents so that they could actually make more decisions about their children's education, to the teachers, and to the local school districts, which is where the power should be.

I have to say that I am particularly proud of our Educational Advisory Board, which was chaired by Laz Lopez and so many others that contributed to that that were really instrumental in helping provide and in shaping some policy with regard to education in our office.

I am particularly proud of one of the provisions that actually made it into the reform bill, which I authored, which will bring literally millions of dollars into one of the neediest school districts in our country, the North Chicago Community Unit School District 187. Our effort actually put students ahead of the interests of others and we put partisan politics aside to make a real difference in their lives.

As a member of the House Ways and Means Committee, it was an honor to be part of an effort to develop and pass important legislation to reduce the tax burden on families across our country. Our work allows small businesses and families to have more certainty when it comes to planning, how they are able to expense equipment and do certain things that they want to be able to do when it comes time to planning, budgeting, and the like.

We ensure that critical antipoverty programs continue to receive the resources that they need to be successful while also injecting a number of new and innovative ideas into the conversation that will better help people reach their fullest potential.

I want to make special mention of the great work being done by YouthBuild, which is helping young men and women in Lake County. YouthBuild is a nationwide organization, but their Lake County chapter is one of the best. I recognize that I may be biased, but they are helping individuals that might have taken a wrong turn throughout an early part of their life, giving them real-world skills to be able to get on their feet and be able to move forward. I will forever be in their debt for doing really incredible work to provide hope for an enormous number of individuals.

Over the last 2 years, we secured robust funding for programs like the Great Lakes Restoration Initiative in order to protect what I believe is one of our greatest natural resources in the Great Lakes. Our bipartisan efforts bring us one step closer to ensuring that we keep this incredible asset, incredible resource clean for future generations.

We worked across the aisle to pass bills to prevent sex trafficking as well as ensure survivors of sexual assault and domestic violence have the resources that they need.

Most recently, we worked together to pass landmark legislation known as 21st Century Cures Act. In that bill was a bill that was certainly near and dear to many, and certainly to Dr. TIM MURPHY, in the Helping Families in Mental Health Crisis Act.

So many are being impacted around the country, and this is something that needs our attention. This soon-to-be law also increases funding for the National Institutes of Health, which will speed up our efforts to find cures to many of the world's deadliest diseases while also delivering long-overdue reforms to address the gaps in our Nation's mental health system.

When we think about the National Institutes of Health, Mr. Speaker, we actually passed over the last 2 years the largest increase in funding for the National Institutes of Health.

I do believe that, if we want to try to reduce the costs of health care, one of the things that we are going to have to do is come up with cures for things like Alzheimer's disease and Parkinson's disease and diabetes. We spend $330 billion every year treating diabetes. If we came up with a cure, I am confident that we could put those resources to use in so many other areas.

Mr. Speaker, these are just a few examples of what can be accomplished when we set aside our partisan differences and decide to work together for the people that we represent.

Of course, another area we notably did on this is the issue of prescription drug and heroin abuse. There is one family in particular that inspired our team's efforts, which deserves, I believe, special mention.

In the suburbs of Chicago, Mr. Speaker, someone dies from a heroin overdose every 3 days. In Cook County, it is every day. They leave behind a family in grief.

I first met Chelsea Laliberte nearly 5 years ago. She grew up in Buffalo Grove, just outside of Chicago, with her brother Alex. Alex graduated from Stevenson High School. He played sports. He got good grades. He had a tremendous number of friends. Then, during his sophomore year in college, he started getting sick.

When Alex got sick, he would go to the hospital and get better and get back on his feet, at least for a little while; but a few months later, this would repeat. He would get sick and be admitted once again. It was a vicious cycle.

Honestly, his family didn't know what was going on. What we did finally find out is that Alex was addicted to prescription drugs and he was suffering from withdrawal, which brought him to the hospital. Then, in 2008, just a few days after final exams, Alex Laliberte overdosed and died. He was 20 years old.

As a father, I can't imagine the pain of losing one of my children to a drug overdose. But sadly, too many families have experienced this loss. Heroin abuse and prescription drug abuse is an epidemic that is impacting our entire country.

I worked with Chelsea and the Laliberte family to introduce a bill called Lali's Law, named in memory of Alex, that would increase access to an overdose antidote called naloxone.

Naloxone has already saved more than 150 lives in Lake County, Illinois, alone in just the last 2 years. This was really done by the initiative of Mike Nerheim and the police and so many people coming together. The police actually asked if they could carry naloxone because they were tired of showing up on the scene and seeing someone right before them die from an overdose.

When they agreed and gave first responders in squad cars the ability to administer naloxone, life after life was saved. So I do want to recognize Mike Nerheim and all those at the Lake County Opioid Initiative for the great work that they are doing, the lives that they are saving. This is something that, frankly, we are just starting to address and there is a lot more work, obviously, that needs to be done.

The World Health Organization actually says that with increasing access to naloxone, we have an opportunity to save over 20,000 lives this year. Working together, we passed our bill through the House and with overwhelmingly bipartisan support secured its inclusion in the Comprehensive Addiction and Recovery Act, which the President signed into law in July.

It is my sincere hope that, because of our efforts, Alex's lasting legacy will include saving countless lives, sparing families this unimaginable grief, and giving people all across our country a second chance at recovery.

While I am tremendously proud of the achievements that we have accomplished together, there is still, of course, so much more that needs to be done. The costs of taking care of our families, educating our children, providing health care, and saving for retirement have all become more burdensome in the recent years.

Misguided economic policies hold back our small businesses and entrepreneurs and too many families are being trapped in generational poverty without the opportunities for meaningful work or for a quality education.

As a father of three young children and the son of a schoolteacher, one of the most important issues that I have tackled during my time in Congress has been ensuring that future generations are equipped with the skills that they need to succeed. A quality education is the building blocks for literally everything that we want to achieve, from curing cancer and Alzheimer's to helping hardworking individuals secure a good, high-paying job.

Among the work that I am most proud of in this Congress are three important bills that we put forward.

First, we wrote the HELP for Students and Parents Act to make college more affordable, more accessible for literally everyone. Today, across the United States, there are $1.3 trillion in student loan debt between 40 million Americans. Sadly, there are students in our community as young as elementary school who now believe that, because their families don't have the means to pay, they are never going to be able to achieve the dream of going to college, regardless of how hard they work. That is simply unacceptable and must change.

The HELP for Students and Parents Act is one measure that can improve by helping make employer contributions towards employee student loan repayment and the employer contributions towards 529 college savings accounts for a worker's child—the norm in American society.

Building on these ideas that are commonplace today, such as tax benefits that encourage employer-sponsored retirement accounts and health care, this legislation would update the Tax Code to reflect the financial goals of students and parents seeking to help with student debt. With only 3 percent of employers currently offering student loan debt repayment, this is a meaningful way to ease the anxiety of student debt and make college education more attainable for people all across our country.

Second, Mr. Speaker, we introduced the Stand Up for Students Act to level the playing field for low-income school districts that are being ravaged by fiscal mismanagement in my home State.

□ 1830

Sadly, for years, Springfield and the politicians there have taxed Federal money given to school districts serving low-income students in an effort to pay down debts created due to fiscal mismanagement. Under no circumstances should these politicians be allowed to use Federal money intended to help the most in-need schools to bail themselves out of a mess that they created through decades of irresponsible spending.

The Stand Up for Students Act would hold Springfield accountable and would ensure that we are giving the most vulnerable children the best chance at success by stopping this immoral tax on students who need our help the most.

And third, beyond education in the classroom, I want to underscore our efforts in advancing innovative anti-poverty measures that will connect hardworking people with a job. I introduced the Accelerating Individuals into the Workforce Act to help reform the way our country thinks about poverty and getting people back to work. With nearly 50 million Americans still living in poverty, we must demand a new and better approach.

The Accelerating Individuals into the Workforce Act helps those on welfare land a job. It does this by providing funding that will reduce the cost to an employer for taking a chance and hiring an individual who may be on welfare. This boost can make all the difference in the world for that individual seeking a job, and I am pleased that this legislation passed the House earlier this year.

Moving forward, I urge my colleagues in the next Congress to take up these three bills to help our students and young workers and individuals struggling to climb the economic ladder the educational opportunities that they deserve, and let's help people reach their full potential.

I also urge my colleagues in this body to take up other pieces of legislation. I certainly am hopeful that we can tackle immigration reform. As a nation of immigrants, we know that this is a humanitarian issue. It is an economic issue, and a national security issue that, frankly, must be tackled.

When we look at those, the DREAMers that are as American as many of us right here in this body, we want to make sure that they have an opportunity to stay here in our country, to be contributing members of our community, and to be able to continue to live their lives as they are doing right now. We want them to come out of the shadows and have an opportunity to succeed.

I also think we have an opportunity and a need to move forward on commonsense gun legislation, on background checks, because, again, I think the thing that we have to come back to, Mr. Speaker, is the idea that we want to focus on what unites us. Coming from the Chicago area, I can tell you what we have to do and what unites us is the idea that we want to reduce gun violence.

One of our colleagues here in the House, my friend, DANNY DAVIS, just lost his grandson just a few short weeks ago, an altercation in this young man's home over a pair of tennis shoes.

We have to step up and do something that, again, is not infringing on Second Amendment rights, but is talking about some commonsense legislation to make our community safer.

Finally, Mr. Speaker, I want to talk about the difference that we have made on foreign affairs and national security, because one thing that I love about the 10th District is that there are so many great people who are incredibly knowledgeable and passionate about the strong alliances and the grave threats that we have overseas.

Beginning with my first speech here in this Chamber nearly 6 years ago, I have worked to stand against the Iranian aggression and Iran's pursuit of a nuclear weapon. For years, I have been a strong and unapologetic advocate for ratcheting up the sanctions and pressure on Iran. I have pushed for promoting human rights and democracy inside of Iran and have devoted much time on this very floor to warn against agreeing to a fundamentally flawed nuclear pact with Iran.

I continue to believe that the Iranian nuclear agreement is a historic mistake that has emboldened our enemies and will haunt us for a generation. It has endangered our friends and, frankly, is just misguided. The same fatal flaws with the agreement that existed a year ago still continue to this day.

I am proud of our efforts to lead on this issue. I am heartened that our bipartisan majority in the Congress rejected this dangerous agreement, and I continue to call on Congress to lead the way in restoring a crippling sanctions architecture on Iran.

Mr. Speaker, I am also incredibly proud of our efforts to strengthen the U.S.-Israel relationship these past few years:

We have ensured robust foreign assistance so that Israel may protect its civilians from the many terror threats on its borders. We have fought to combat efforts in the international community, including in the United Nations, that seek to delegitimize Israel and wrongly pressure Israel to give up its defensible borders.

We have unequivocally condemned instances of Palestinian incitement to violence against Israelis. We openly and proudly welcomed Prime Minister Netanyahu's speech before the Congress last February.

And, of course, we authored legislation known as the Combating BDS Act of 2016, which has earned over 160 cosponsors in this body. This critical legislation, which I am hopeful will pass in the next Congress, provides a much-needed opportunity so that we may go on the offensive against the hateful Boycott, Divestment, and Sanctions Movement against the State of Israel.

While we do not know what the future will hold, or every upcoming challenge that we will face in the Middle East, I am confident that the United States will be best-served by continuing to strengthen our partnership with Israel, so that we can face these security challenges together, shoulder to shoulder.

Now, Mr. Speaker, none of our work in this Congress would have been possible without the incredible team that was truly dedicated to improving the lives of the people of the 10th Congressional District.

Now, that team starts with two great chiefs: James Slepian, who was the chief when we first came in this Congress, more of a quiet leader, very sharp, a quick wit, was incredibly instrumental in guiding us through some turbulent times; and David Stern, whom I consider to be a dear friend, and his advice and counsel is some that I cherish. He is a little bit misguided on his love for the White Sox, but we will forgive him on that. But the long and the short of it is a passionate advocate for the people of the 10th District and one who always has a smile on his face.

They helped lead an incredible team, along with my deputy chief of staff, Kim Brisky, who always had an opportunity to make sure that we stayed on the straight and narrow, who always was there for us when we needed a pick-me-up. And so, Kim, who is, I am sure, going on to bigger and better things, she was absolutely fantastic.

My deputy director, Philippe Melin, actually has been with me as long as anyone. And I will say that he may sometimes rub people the wrong way, but I have always appreciated his passion for the district, his ability to throw himself into any particular issue, to fight on behalf of children when it comes to education; whether it be building coalitions, Philippe has actually been super.

My legislative director, Matt Diller, is that quiet individual that made sure the trains were running on time.

Our communications director, Brad Stewart, probably held up a camera more times than I care to remember, and I apologize to him for messing up probably more times than I needed to. Ultimately, when it came to our social media and actually getting the word out, Brad was vitally important in making sure that our message was getting out to the people that it needed to.

We had an outstanding staff in Washington that worked hard to amplify the voice of each and every constituent, and Jordan Heyman, who was really focused on a lot of healthcare work, came to us from the campaign, but really rolled up her sleeves and was fantastic.

Noah Barger, Noah—or Jason, as he is sometimes referred to—always had a smile on his face, was probably one of the rocks in that office.

Chelsea Caulfield, who is truly the spark plug of our team, and would come into the office to see a smile from Chelsea, who made sure that I was where I needed to be and when I needed to be there.

Brittany Consolo, who came into our office. Time and again, people would always comment about how kind Brittany was, and so, for her, I say that we know that she has got a very bright future as well.

And the hardest working district office in the country:

Eric Miller, who really was what I consider one of the leaders of our casework, is one of the guys that put his head down day in and day out. We would not be or could not have gotten to the 1,250 cases were it not for Eric;

Victoria Williams, who has a special talent when it comes to not only working with people and connecting, especially with those on domestic abuse and the like, which was an area that she threw herself into;

Peter Collins, who had more spreadsheets available than I think anybody else, but Peter, again, one of my favorite Hellenic individuals in the office;

Scott Lietzow was a passionate advocate and worked with our veterans day in and day out and helped put our Veterans Advisory Board together, and he worked with them day in and day out to make a difference in their lives;

Allie Breschi, a proud Denison graduate, was helping Brad out in terms of our communications and did a super job;

Andy Chiero also worked with our veterans;

Alma Herrera, who, I think was really a dynamo, and we missed her as she went off to finish up some schooling;

Natalie Szmyd came in and filled the role and helped out with our Polish community;

Bobby Miller also was one of those individuals that exceeded expectations right from the beginning;

Jordan Richter and Nikki West; Ginny Wood, who helped out with our seniors; Justo Arellano and Martin Lopez really were absolutely fantastic in rounding out our team.

So again, I think you are only as good as the team that you have put together, and I am super proud of the team that I was able to put together, that really worked tirelessly on behalf of the constituents of the 10th District.

One of the things I am proud of is that lifelong Democrats would come up to us and say, you know, thanks for helping us out on this, and I think that we have got to talk to you about, you know, when you do something good for us. But ultimately, our job was, regardless of whom you are elected by, I made sure that our team knew that we represented 100 percent of the people.

This team really cared so much about the work that we were doing and made a real difference in the lives of literally everyone that they had an opportunity to touch.

But some people that I think are important to thank are my colleagues. This is a pretty remarkable place, with some really remarkable people, and I want to thank them for their friendship and the great work that we were able to accomplish together. I will miss them dearly, those on the other side of the aisle as well, because most of our legislation, almost every piece of legislation that we offered, was with bipartisan support. I kept telling my team, if we couldn't get those on the other side of the aisle to sign up, this bill wasn't going anywhere.

I also want to thank the people who make this body work, the unsung heroes, the folks down in the wood shop, the folks behind the rostrum, the people that make Congress work. Really, these are the folks that respect the institution, and the institution will move on 10 years from now and, we hope, hundreds of years from now.

Now, Mr. Speaker, the last group that I want to thank is my family. I have three beautiful children and a wife who is a saint to allow me to do this day in and day out. So, for Harper, Bobby, and Honor, thank you for giving up the time. I am sorry that I was not there, but we have a new chapter; and so we know, if this is the worst thing that happens in terms of our time away from the Congress, we have great new things ahead for us.

And for my bride, Danielle, sweetheart, I want to thank you for giving me the opportunity to do this. I know that you oftentimes were the one making sure that the trains ran on time back at home, and for that I will forever be grateful.

So from day one, this has been about working together to get the job done, making the Federal Government more efficient, effective, and accountable, and restoring strong American leadership on the global stage.

When I was growing up, my parents gave me a plaque that said: ''Your integrity determines your identity.'' As a small-business owner, I learned that nothing gets done without teamwork.

□ 1845

If we want to achieve anything as a nation, we must commit to advancing commonsense, bipartisan solutions to break through this gridlock. That is why I am so proud to have consistently been ranked one of the most independent, bipartisan Members in the United States Congress. This commitment to genuine bipartisanship has been the key to some of our biggest successes that we have had over the last 2 years. It is also what has helped us to become effective on amplifying the independent voice for the 10th District of Illinois.

I strongly believe that America's best days, Mr. Speaker, are ahead of us. Together, I am confident that we can ensure a more prosperous and free future for our children and for future generations.

To the people of the 10th District, I offer my sincere thanks for the opportunity of a lifetime to be able to represent you in the United States Congress. It has truly been the greatest honor of my life.

To my staff, again, I want to say ''thank you'' for all that you do. It has been an honor to be able to work with you.

Mr. Speaker, I yield back the balance of my time.

THE FIRST 100 DAYS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Nebraska (Mr. FORTENBERRY) is recognized for the remainder of the hour as the designee of the majority leader.

Mr. FORTENBERRY. Mr. Speaker, before I begin my remarks, I think it's only appropriate to congratulate, thank, and wish all the best to my friend, BOB DOLD.

BOB, you have earned a reputation around here. You may not know it, but I am going to tell it to you: I think you are the hardest working person here. I listened to a number of your accomplishments. It is not only representative of your thoughtfulness and your desire to serve the country, but it is

this integrity of work ethic that has impressed me and so many other Members here.

I know this departure is a bit bittersweet. Sweet in a sense that you are now free to be with your primary purpose in life: your children, your family, and your mission together as a family; and a little bit bitter in that you are going to miss us and we will miss you. I thank you for your leadership.

Mr. Speaker, regarding my remarks tonight, I want to begin with a little anecdote. Vice President-elect Mike Pence was a Member of the House of Representatives. I overlapped some time and service with him. He was a friend and, in some ways, a mentor. He came to speak to a group of us recently, and Vice President-elect Pence had this to say: Buckle up.

Buckle up because, Mr. Speaker, the next 100 days are going to be intense. Beginning in January, we will have a new President and a new Congress. The next 100 days not only will be intense, but it will also create possibilities. That next 100 days will set a new architecture for government and a repurposed relationship between the people and the state.

Mr. Speaker, for far too long, partisan paralysis has plagued this Congress leading to stagnation in Washington. We know it and the people know it. With this historic and transformative election, the playbooks of both political parties that had been used for decades are tattered and lay in shreds; and rightfully so.

This transition of Presidential administrations has unleashed the potential for a genuine reimagining of public policy, and it is time for the Nation to adopt a more inclusive model. Power that has been concentrated in Washington and on Wall Street has left millions of Americans feeling left behind and at the margins of what many regard as a corrupt and elitist world. Millions of Americans face stagnating wages, downward mobility, and an increased cost-of-living. Income inequality has risen while, at the same time, the small business sector has been seriously harmed. This must change.

So what are we looking at?

We are looking at this: we are looking at new healthcare horizons, new trade and tax policies aimed at restoring the decimated manufacturing sector, returning jobs and returning dignity and social cohesion to large swaths of our Nation. An economic system of inclusion and empowerment capable of generating widespread participation is now the new center ground of this country.

Now, Mr. Speaker, in the time that we have, I would like to survey multiple public policy areas that are in need of deep replenishment, and I would like to speak about the opportunity of possibilities that lies before us.

So right out of the gate, what are we going to do?

Congress will launch a significant healthcare reform initiative. Mr. Speaker, we all know this, but it needs to be said once again: skyrocketing cost and diminished choice is the residue of poor policy, and we can do better. At the same time, we cannot default back to the previous arrangement which left way too many persons behind. While there might be a fierce fight in this body on the specifics of reform proposal, broad agreement will likely coalesce around two things: protecting persons from inhuman market forces while, at the same time, incentivizing the best of market innovation to bring about change.

Americans with spiraling healthcare costs know that a new healthcare construct is needed. To address these concerns, the next approach must reinvigorate health insurance with the goals of lowering price, protecting the sick, and improving options. The next generation health savings account will be at the cornerstone of this effort restoring relationship, responsibility, and respect as drivers of healthcare policy.

Now, Mr. Speaker, the Affordable Care Act, known as ObamaCare, has helped some people, yet, at the same time, it has hurt others. We often speak about repealing and replacing it, but perhaps it is time to speak about repealing it and replacing the repeal-and-replace language with new language that really underlies the principles that we all ought to be embracing. They are really three-fold; the first of which is relationship, responsibility, and respect.

Mr. Speaker, for persons who have had a gravely sick child, perhaps there is nothing more difficult than having to turn that child's care over to other persons. I recall when our daughter, Kathryn, was a little infant. My wife and I, with our daughter, walked to the door of the surgery room and then handed her over to the nurse. We had to let her go into the hands of people that we had to trust. She has had a long journey. She has had five major heart surgeries and nine total surgeries. But that very first moment where we turned our little baby over to the nurse was an extraordinarily poignant and deeply impactful one for my wife and me, made only better by the reality that that team of people that had been put around her genuinely cared and that we were in relationship with them. Relationship between the doctor and the patient, between a healthcare system and the person—not the commodity, but the person—is an absolutely critical first principle.

Mr. Speaker, a long time ago, I had a very severe headache. I was a young man, and I had to buy my insurance privately. I did so. I tried to be responsible. But because that headache was so intense, I decided: Well, I am going to have to seek a specialist.

Bypassing the family doctor in order to save myself $50, I went to the ENT, the ear, nose, and throat surgeon. She told me that, after an x-ray, she couldn't really tell what the problem was and that they were going to need to do a CAT scan.

Immediately I launched into some questions. I said: Doctor, I know there is a problem with medical liability and there is an attempt by the medical establishment to create the conditions in which the potential for lawsuits is mitigated and there are a lot of tests to run.

She interrupts me. She says: Why are you telling me all this?

I said: Because, Doctor, I am paying for it. I have a major medical policy, what is called a catastrophic policy, with a very high deductible. This is coming out of my pocket. Do you really need the test?

She said: Oh, I see. Well, yes, I need the test; but now that you said that, I am just looking at your sinuses. So why don't we call a couple of places in town and ask them if they could widen the cross section of the image and give you a discount for doing so?

She had her assistant do that. In a minute, we found a facility that would actually discount the price based upon another type of test.

So what happened here?

I saved perhaps another $75, the doctor got the tests that she needed, and perhaps, more importantly, the community resource was more properly allocated because I had a role in the decisionmaking process. Put in economic terms, I had an incentive in the allocation of that resource because I was paying for it. That is called responsibility.

Back to this idea of what we are coming to, particularly for the next generation, the younger generation, whereby we create and revitalize the whole health savings account policy apparatus. If you set a little money aside on a tax-deferred basis, then it helps you control the ordinary costs of health care, and, at the same time, if something goes wrong, you shouldn't have to be on the gurney in the hospital asking for a price list for the cheapest anesthesiologist. No, you are protected. That is the right methodology of thinking forward that will actually protect you when you are in vulnerable circumstances but empower you to take better control in relationship with your doctor and medical provider of those first-dollar costs.

That is what I think we can see coming as a cornerstone of the revival of our healthcare system. That is a start of a system we can regard with respect. It is relationship, responsibility, and respect. Those are the principles and the new cornerstones of health care moving forward.

Mr. Speaker, regarding infrastructure, another important policy area, broad bipartisan agreement exists around rebuilding our Nation's infrastructure. From airports to roads, to bridges, to information technology, new projects are on the horizon. I would add that sustainable energy should be on that list. As a public good, properly selected infrastructure improvements are a benefit to society at large.

Infrastructure can also be virtual, setting up systems for better interconnectivity. It also has implications for health care as we build out, for instance, innovative healthcare models. The challenge, of course, to all of us will be in financing and insuring the proper division between Federal, State, and local governments as well as with the private sector.

Mr. Speaker, the third policy area is spending. In an unprecedented legislative development, our government is moving forward on two budgets simultaneously. Those of us serving on the House Appropriations Committee have a very heavy lift. In a parallel process, we will fix up the current budget while creating a budget for the following year.

While it is easy to speak about new ideas, plans to pay for them are the test of smart government. We must remain sober about spending. Deficit spending is a form of taxation—especially on the poor and seniors—when this debt that is run up is monetized. The good news is that this peculiar set of circumstances gives lawmakers—all of us—much more flexibility in creating genuinely creative policy outcomes.

Mr. Speaker, a fourth area I want to touch on is taxes. Tax is a broad issue that, like health care, has many thorny and complex considerations. I anticipate that Congress will move to solve tax anomalies that harm America's competitive standing in the world, including giveaways to multinational corporations. The Tax Code should reposition funds captured overseas to be brought back into America, and any reform should prioritize small business—the source of new jobs and the source of local economies.

This process should really be guided by a three-fold goal. First of all, fairness. Second, simplification. And the third is economic growth in order to produce revenues for the government.

□ 1900

First of all, let's touch on this issue of fairness. President-elect Trump, our new President, has called for doing away with a provision in the Tax Code called carried interest. I agree with him. If you are wealthy enough, you can basically take income and restructure it to be paid as capital gains. That means a higher income tax becomes a much lower tax through this mechanism. The vast majority of people in America can't do it. A few can. Closing this is not a panacea, necessarily, but it is a good first step. It points to a deeper principle; one that is called fairness.

When a person makes things with their own two hands, when they use the creative gifts of their intellect, this is an imprint of their own personal dignity, the dignity of work, that gift, that meaningful place where you can actually see the fruit of your own labor.

So what is the first thing we do? We tax it. We call it earned income, while another category of income called unearned gets a preferential rate. This is a discussion we need to have.

The second point, simplification. A few years back, we had a tax reform act here. It was controversial. A number of us voted for it, and it passed. Before doing that, I decided to run up the road and see someone who lives near where I do. His name is Warren Buffett. Now, Warren Buffett and I have different philosophical approaches on many things, but he was generous enough to welcome me to his office. We spent about an hour together. I wanted to get his particular perspective not only on that tax bill but on some other things.

In an interesting exchange, Mr. Buffett turned around to his credenza, pulled out a file, an old file, pulled out a single piece of paper, and said: JEFF, just do this, just do this. Put the Tax Code on a piece of paper. Simplification.

Now, a Tax Code, in reality, cannot always be cut. It has to be optimized. We have to run the government, we have to have revenues, but in a manner that does not deteriorate the ability of the economy, small business and others, to create jobs, and to provide the proper catalyst for economic growth. And that is the balance.

Mr. Speaker, let me turn to the issue of regulation. But before I do, can I inquire as to the amount of time that is left.

The SPEAKER pro tempore (Mr. DONOVAN). The gentleman from Nebraska has 11 minutes remaining.

Mr. FORTENBERRY. Thank you, Mr. Speaker.

Let's touch upon the issue of regulation. Washington is readying to correct regulatory overreach that has constrained the ability of small business to flourish. For far too long, Washington has distorted markets and, most importantly, the imagination of people to find better solutions for themselves and for their neighbors. Government must play its role, but with constraints on its tendency to seize more power.

Mr. Speaker, I recently visited a 125-year-old bank in a small town called North Bend, Nebraska. It is an agriculture community. This bank is now in its fourth generation. The family was eager to show me something they had recently discovered. There is an architectural gym that had been covered over by a ceiling. In doing some remodeling, they found a hidden stained glass panel and gorgeous ornamentation on the various beams above. The bank is, rightly, proud to showcase this history and this beautiful symbol of a flourishing past.

The story began when all of the banks in the area in this town went under during the Great Depression. One of the local banks reorganized itself and came forward with a proposal to the community. It was this: If you stay with us, you stay with our bank, we will give you 50 cents on your dollar now and pay you back the rest over time.

Mr. Speaker, it took the family that owned that bank 20 years, but they paid every dime back to every member of that bank, without ever taking a dividend for themselves until that money was paid back. The original owner died shortly thereafter. He gave his word, and he got it done.

As a longstanding community institution, this local bank did not bring our Nation down in the financial crisis of 2008. It did not benefit from insider class privilege that enabled liar loans and high-risk collateralized debt negotiations. It did not help multinational banking conglomerates grow so large in hubris and reach that they nearly tanked our economy. At the same time, this small Nebraska bank is besieged by a regulatory overlay created by a crisis that it did not participate in. It is not fair.

So rightsizing regulation does not mean doing away with it, Mr. Speaker. It means what is sensible to protect the health and safety and well-being and create a fair playing field for everyone with minimal intrusion for maximum market functionality. There is a real cost to regulation, there is a real cost to no regulation, and there is a real cost to dumb regulation. We look forward to finding that balance once again.

Mr. Speaker, there are many other aspects that I could speak about regarding community revitalization and foreign policy, but I want to touch on an important debate that is under way now regarding our immigration system. Our immigration system is stretched. Laws have not been enforced, have led to chaos and dislocation, testing the natural generosity of Americans. Righting the legal system, stopping unscrupulous employers, and holding those who break the law to account are the start of restoring a humane and fair immigration policy.

In another small town right north of Omaha, Blair, Nebraska, it is nestled among the beautiful, rolling, wooded hills along the Missouri River. It is a traditional hub of agricultural activity as well. I am proud to represent them in the United States Congress.

There are several large manufacturing plants, and it is a very stable community, a community of very strong values, so much so that recently a Sunday school class of little children wrote to me about the need to help other impoverished children in countries across the world. Their letters were so touching and heartwarming. They demonstrated this enduring universal ideal that animates the moral imagination of Nebraska's young people and young people throughout the country.

But fast forward to a jarring criminal incident that took place a few months ago when three men were arrested in Blair driving nearly 90 miles per hour, with a loaded gun, stolen in Iowa. Two of them were Somali immigrants from Lincoln and Minneapolis here on visas. Both were wanted by the Department

of Homeland Security, and, between the two, had 34 previous arrests. The third man had 50 previous arrests. Even though the three have been in America long enough to have been arrested 94 times, they still requested a court interpreter. They abused their privilege. They do not belong in America.

America has a great capacity to be generous. But those who have received our generosity have an obligation. If you want to come to America, you will accept American values. If you want to come to America, you will work, provide for yourself, and integrate responsibly into dutiful citizenship. If you want to come to America, it is absolutely essential, and I and many others will stand with you. Celebrate your past culture, explain it to your new community, and, at the same time, celebrate your new one, as so many good people coming to our country do.

Our Nation has generally maintained a vibrant immigration system, and it has been an important part of the character and development of our country, but chaos, disorder, and crime undermine our ability to maintain that openness.

Of all of our country's pressing priorities, one of the most should be ensuring that the criminal justice system, the judicial system, and the immigration system work in concert to swiftly remove persons who have seriously transgressed our laws. This will help keep America safe and protect the integrity of immigration policy for those who want to come here, rebuild their lives, contribute to this wonderful society, and sustain America's generous impulse.

Mr. Speaker, I think it is appropriate to leave you tonight with some comments on the future of democracy. Some of what I talked about are ideals, but they give us a chance to envision and create a more inclusive government, economy, and society. Given that the future of democracy depends on quickly moving forward in the right direction, there is a mood of both curiosity as well as urgency here. Curiosity as to how we are going to translate this moment and urgency not to waste it.

Even though the election was a proxy for many open and deep philosophical divides in our country, now there is the possibility of great change. As President-elect Trump said on the night of his election: We must now come together, and I want to be President for all Americans.

President Obama very generously and graciously extended a hand of friendship to President Trump and said: President Bush was so extraordinarily helpful to me in this transition, I will work the same in any way he wants with President-elect Trump.

President Clinton, admitting that this was a painful loss said: It was a fair election. We need to give the new President-elect a chance, and we must unite.

I think that set an important tone, Mr. Speaker.

We take it for granted, but this demonstrated the brilliance of how our democracy provides for this peaceful transition of power. In spite of some protest, we have witnessed the ongoing resiliency of America's governing traditions. In Congress, a great deal of ideological rigidity has been vaporized. Conversations among fellow Republicans and Democrats are yielding a sense of new horizons, which, if properly considered, will help shape a meaningful approach with the next White House.

Mr. Speaker, the next hundred days are critical. It is time to create the architecture of a 21st century government, one that is innovative, one that is effective, restoring the trust and confidence of the people.

Mr. Speaker, there is a great old movie starring Bette Davis called ''All About Eve.'' In that classic Hollywood moment, she looks around to her guest with that smoldering gaze and says: ''Fasten your seatbelts, it's going to be a bumpy night.''

Mr. Speaker, real change is always bumpy. But when done with purpose and clarity, with the intention of doing good for others, we can allow ourselves to dream big again.

I yield back the balance of my time.

HONORING RANDY NEUGEBAUER

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from Texas (Mr. SMITH) for 30 minutes.

GENERAL LEAVE

Mr. SMITH of Texas. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials on the subject of this Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SMITH of Texas. Mr. Speaker, I yield to my colleague, the gentleman from Texas (Mr. BABIN), the chairman of the Space Subcommittee of the Science, Space, and Technology Committee.

Mr. BABIN. Mr. Speaker, it is a tremendous honor and privilege for me to stand up here to honor one of my colleagues, who is going to be retiring, Representative RANDY NEUGEBAUER, who is just finishing up his seventh term. He has been a great mentor. I am finishing up my first term in office.

I want to say how much the Neugebauers mean to me and my wife, Roxanne.

RANDY NEUGEBAUER and his beautiful wife, Dana, have been a tremendous addition not only to the Texas delegation up here in the United States Congress but also to the Republican spouses and Democrat spouses, who have worked so long and hard for many years to support their Member spouses.

□ 1915

I just want to say how much I appreciate him, admire him, and wish him Godspeed. He is a great Christian man, and his wife is a great Christian woman. We appreciate so very, very much his long years of service to our country, to our Nation, to his district, as well as to his God.

Mr. SMITH of Texas. I thank the gentleman from Texas (Mr. BABIN) for his comments.

I now yield to another colleague from Texas, ROGER WILLIAMS.

Mr. WILLIAMS. Mr. Speaker, I wish to join my colleagues down here tonight to honor a patriot and a good friend, Congressman RANDY NEUGEBAUER.

While your retirement is well-deserved, RANDY, your departure is, certainly, a loss not only to us as your friends, but to Texas and America.

RANDY and I serve together on the Financial Services Committee. Before we came up to Washington, we were both in small businesses. Still are. I knew RANDY before he was a Congressman, and he is still the same guy. Congressman NEUGEBAUER is a voice of reason. He has valuable, firsthand knowledge of how the private sector works—knowledge which is needed very much in Washington today. He understands how Washington's decisions affect Main Street America. That empathy is crucial to conducting good policy, and it is rare. We could use more lawmakers like RANDY NEUGEBAUER. Congressman NEUGEBAUER is a Texas Tech fan. I feel sorry for him, but he always thinks they will win every single game.

Congressman RANDY NEUGEBAUER, I wish you and your wife, Dana, my best as you begin the next chapter of your lives. May your spare time be spent with your grandkids, fly fishing, and rooting for the Raiders. You have served your State and our Nation with honor and devotion. We will all miss you. You will be missed. I must simply say to you, RANDY, guns up. May God bless you, and may God bless America for allowing you to serve this great country.

Mr. SMITH of Texas. I appreciate the gentleman's comments.

Mr. Speaker, I yield to the chairman of the Agriculture Committee, another good Texan, .

Mr. CONAWAY. I thank my friend for yielding.

Mr. Speaker, I rise tonight to brag on RANDY NEUGEBAUER. He is a friend, and he and I have a unique circumstance that we share in that we ran against each other in Texas. Larry Combest served District 19 at that point in time, and they had a special election. Randy and I ran against each other. It hasn't happened in a long time, but right after that election, people asked me: What do you think about RANDY NEUGEBAUER?

I said: Well, he is my friend.

They said: I know, but that is what you politicians always say—the ''good gentleman,'' the ''friend.'' You never tell the truth in those circumstances.

I said: No, no, no. With RANDY and I, the key is our wives are friends; so, if wives can survive a campaign against each other and be friends, then it is a testament that we ran the way Republicans should run against each other. He stuck to why folks should vote for RANDY NEUGEBAUER, and I stuck with why folks should vote for me.

RANDY prevailed in that election and joined Congress in June of 2003. He has served wonderfully and ably since then. RANDY has a strong moral compass and exhibits that moral compass to the House all of the time. He is one of those guys who is true north and never wavers, a rock solid Conservative and someone, I am sure, who is proud of his service to the folks in District 19.

Our districts are contiguous. My northern border is his southern border; so we overlap in certain areas, and I get comments from his constituents about the great work he and his constituent service team do back home. We are going to miss him. We are going to miss him greatly—his voice. He serves on the Agriculture Committee as vice chairman and has served the agricultural communities as well as his having experience on the Armed Services Committee.

I am proud to call RANDY my friend and I am proud of his service here. He and his wife, Dana, are off to the next chapter—an exciting chapter. I need to warn the rainbow trout and brown trout populations all over America that, on the days we are in office in 2017 and 2018, they need to be on the lookout for an avid fly fisherman who will be on the hunt for all of those trout.

Again, I want to add my congratulations to RANDY on a job well done in service to his State and our Nation in an admirable way. He leaves office in the right way—on his own terms and very proud. I would ask for God's blessing on him and Dana and for God's blessing on Texas, and may God continue to bless the great United States of America.

Mr. SMITH of Texas. I thank the gentleman for those nice comments.

Mr. Speaker, I now yield to another Texas colleague, a member of the Energy and Commerce Committee, PETE OLSON.

Mr. OLSON. I thank my friend from San Antonio.

Mr. Speaker, RANDY NEUGEBAUER is many things. He is a damned proud Texan and is a Texas Tech Red Raider who always has his guns up. He is a husband to a fierce force of Texas nature—his wife, Dana. He is a father of two sons and is a grandfather of four grandkids. He is a respected Member of Congress—seven terms in this body—and he is my dear friend. In RANDY's time here, he has made America a better place for my family, for his family, and for every American family.

As we say in our Navy to departing friends who leave the ship, who go ashore for the last time: RANDY, may you always have fair winds and following seas. Texas 19 departing.

I salute you.

Mr. SMITH of Texas. I thank the gentleman for his comments.

Mr. Speaker, it is an honor to host today's Special Order in honor of my friend and colleague from Texas, Representative RANDY NEUGEBAUER.

Representative NEUGEBAUER is a consistent Conservative. In fact, the National Journal named him the ''most conservative Member of Congress'' in 2011. He has also been a valuable member of the Science, Space, and Technology Committee, which I chair. He has been a member of that committee for over a decade. I am grateful for his work on the committee to ensure taxpayer dollars are spent wisely and efficiently.

Representative NEUGEBAUER has actively pushed back against burdensome EPA regulations that limit affordable, reliable energy. He has also championed research and development efforts that benefit all forms of energy. This isn't surprising since Representative NEUGEBAUER's district has oil and gas development and produces the most wind energy of any district in the country.

In this Congress, Representative NEUGEBAUER's National Windstorm Impact Reduction Act authorized coordinated research to minimize the effects of windstorms on local communities. It will help save lives and property damage. This legislation was inspired by Representative NEUGEBAUER's personal experience with a tornado that devastated his hometown of Lubbock, Texas, some years ago. His bill was signed into law last year, and now Federal agencies and universities can work to better predict, prepare, and recover from dangerous storms.

We thank Representative NEUGEBAUER for his service to the people of west Texas and for his many initiatives on the Science, Space, and Technology Committee. His retirement is well-deserved, and we know he is going to enjoy more time with his family in west Texas.

Mr. Speaker, one of the best summaries of Mr. NEUGEBAUER's contributions as a person, as a family member, and as a great Member of Congress is the following, and I want to make sure that everybody is aware of these contributions and his personal attributes as well.

RANDY NEUGEBAUER proudly represents the 19th Congressional District, which stretches across 29 counties in west Texas and the Big Country, and he has represented that great district for 14 years.

Raised in Lubbock, RANDY learned the west Texas values of family, faith, hard work, and public service. These are the values he has carried with him throughout his life as an accounting student at Texas Tech University, as a banker, as a homebuilder, and now as a Member of Congress.

He serves on the Financial Services Committee, where he is chairman of the Financial Institutions and Consumer Credit Subcommittee. In this role, he has oversight responsibility for U.S. banks and the banking industry, credit unions, depository institutions and Federal deposit insurance, consumer credit, and financial regulators, including the Federal Deposit Insurance Corporation and the Federal Reserve. Representative NEUGEBAUER is also the vice chairman of the House Agriculture Committee, where he played a leading role in developing the 2014 farm bill. He also serves on the House Committee on Science, Space, and Technology, which, I mentioned a while ago, I chair.

His legislative initiatives include eliminating wasteful Federal spending; improving crop insurance; and fighting Federal overreach on energy, the environment, the economy, and personal liberties.

RANDY NEUGEBAUER's bill to lessen government interference and encourage more private sector participation in the terrorism risk insurance market became the first law of the 114th Congress. The President also signed his bill to promote research and minimize the devastating effects caused by windstorms. Last year, as I alluded to a minute ago, the President signed into law his initiative that gives Texas Tech the opportunity to build a VA clinic on the campus to better serve west Texas' veterans.

Congressman NEUGEBAUER and his wife, Dana, who is with us this evening in the gallery back to my left, are both graduates of Texas Tech University. They have been married for 46 years and are the proud parents of two sons, two daughters-in-law, three grandsons, and one granddaughter.

Mr. Speaker, you can see that Representative NEUGEBAUER has led a very rich life, a very satisfactory life, and a life dedicated to his country and to his family. There can be no question about that.

Mr. Speaker, at this point, I yield to another Texas colleague, the chairman of the Rules Committee, PETE SESSIONS.

Mr. SESSIONS. Mr. Speaker, I thank the gentleman for allowing us—not only the Texas delegation, but other Members of Congress who would wish to come down—the opportunity to express our sincere appreciation and debt of gratitude to the gentleman from Lubbock, Texas, and to his dear and beautiful wife, Dana Neugebauer, and family who are in the House tonight. On behalf of the Texas delegation and as a Member of Congress from Dallas, Texas, I would say from the people of Dallas, Texas—Texas' 32nd Congressional District—we have long been friends with the gentleman from the 19th District of Texas and appreciate his life and service to this great Nation.

Mr. Speaker, you have just heard much of Congressman NEUGEBAUER, much of not only what might be resume information, but, really, what might be, when it plays itself out, information that is about the service

that Congressman NEUGEBAUER has given, the leadership that he has provided not only to the committees of service, but, really, to the people of this country.

Congressman NEUGEBAUER came to Congress as an exciting young man who was not only full of opportunity, but who came from a vibrant part of Texas with his ideas about freedom, about free enterprise, about opportunity, about collegiality—about the things which he placed high value on. RANDY comes from a part of Texas—and I would like to say everybody from Texas might be this way, but it is not true—where a handshake and your word make a difference.

The entire time he was here, Mr. NEUGEBAUER didn't oversell and didn't underdeliver. He did the things that were necessary as the proper representation of not only the Texas delegation, but as a man of distinction from Lubbock, Texas—the High Plains. He brought with him the professional attributes that were very necessary within the Texas delegation to be successful. Very early on, he championed those ideas. They were ideas of bringing forth representation from a group of people in Lubbock, Texas, and north Texas who strongly believed in America, who strongly believed that America's greatest days lie in its future. RANDY always spoke of not only the ideas that he had, but of the people he represented in terms of real admiration for those people, admiration for hard work, admiration for an honest day's work, admiration for an honest day's pay.

□ 1930

So you can see, Mr. Speaker, those who have known RANDY the best watched him in his personal dealings not only with Members of our delegation, but also in committees and the hard work and the homework that he did to make sure that he did his part necessary.

He rose not only in the ranks of responsibility, but also rose in the ranks of people who admired Mr. NEUGEBAUER. I am one of those people. I looked at RANDY, who had come just a couple of years behind me, as not only a champion of words and ideas, but he had the ability to express those ideas, the ability to speak to people in terms of content, of where our country would head. This was a time after 9/11 when we were faced with fear, uncertainty, and perhaps some complexity that might be available to some.

It never existed to Congressman NEUGEBAUER. RANDY threw all of that out. I would say he threw out the high and the low and lived off of confidence, confidence about not only the way of life that he understood and he represented, but really about the United States military and the men and women who were from his district whom he spoke so plainly about, who we understood where they were. They were committed.

Yes, we are Texans, but he really spoke of America, of America as not just this shining city on a hill, but Americans who would dedicate themselves to a principle, to ideas higher than just citizenship as a responsibility, as a necessary part of making sure that this country and where home is back in Lubbock, Texas, in the high plains, that that is what he believed was honorable.

People who would go and sacrifice themselves, who would go help people in another land, who were called on because of commitment to service, these are the kind of people that RANDY NEUGEBAUER would identify with. These are the kind of people RANDY NEUGEBAUER would talk about. These are the kind of people who, at our Thursday Texas delegation—yes, we are a bunch of darn Texans, but we get together, and we celebrate and share not only camaraderie and commonality, but ideas about where we wanted to go. That is RANDY NEUGEBAUER. That is what RANDY NEUGEBAUER did every single week, faithfully, dutifully, and he knew what he was doing.

So I want to say to the gentleman, the young chairman of the Science Committee, thank you for being here for our dear colleague, current colleague RANDY NEUGEBAUER.

One last point, a point of privilege.

Look, when you come up here, you are proud of where you are from, and you want to do a good job. One of those marks is to be thought of as a real conservative. RANDY NEUGEBAUER, at least 1 year, and probably 2 or 3, was, by his voting record—this isn't a vote. This is actual delivery of product—number one, the most conservative person in this body. I had that chance for 1 year; I tried for 2. It is hard to outguess the scorecard. RANDY NEUGEBAUER is a good guesser also because he knows where he is from—right, wrong, good, bad, up, down, more, less, proper.

Mr. Speaker, tonight we honor a real hero of mine, the gentleman from Lubbock, Texas, RANDY NEUGEBAUER. And let no one forget his beautiful, young bride who, day after day, gave confidence to so many other people about who they are, what they do. I hope these 46 years turn into 146 years of marriage, Mr. Chairman. I wish RANDY NEUGEBAUER and Dana and that entire family the very best.

I thank Chairman SMITH for allowing me the chance to come down and say to my dear friend and the Neugebauer family: A job well done, Godspeed, and I hope I do well enough to get invited back to Lubbock to see you again.

Mr. SMITH of Texas. I thank the chairman for his nice remarks this evening.

I yield to the gentleman from Texas (Mr. GOHMERT).

And let me say to my friend Representative GOHMERT that, we only have a total of 6 minutes left, and I do want to allow Mr. NEUGEBAUER time to speak as well.

Mr. GOHMERT. I thank the gentleman. And because of all of the glowing comments about RANDY, I knew I should not share more than a couple minutes so that there is time at the end.

We have heard the old saying that in Washington, D.C., if you want a friend, get a dog; but when I got here to Washington, D.C., as a Member of Congress, RANDY NEUGEBAUER was a friend, and he is a friend. He is a man of integrity. He is a man of honor. He does his best to live out the Beatitudes that Jesus talked about better than I have. He is not a man who has been afraid to ever stand up and call things the way he sees them. It is one of the many things I admire about him so much.

Apostle Paul said three things about what he had accomplished. He said: I have fought the good fight. Then there was another clause, and then he said: I have finished the race. Well, RANDY NEUGEBAUER has not finished the race. The race has still yet to go. He has not finished the course. He is just taking a new course.

But I know that, as a brother in Christ and as a man of integrity, he will continue to listen to the still, small voice that has guided him and his wife through the years and has made him someone who inspires me, encourages me, and someone that I would hope to emulate. I am grateful to RANDY NEUGEBAUER for his service and for all he has done for America.

Mr. SMITH of Texas. I thank the gentleman from Texas, particularly for bringing out an aspect of RANDY NEUGEBAUER's character that has not yet been mentioned tonight. And I might also add, and you know only too well, that he has been an active member of a prayer group here in the House of Representatives as well. So that spiritual aspect, that spiritual character is rightfully shown tonight.

I yield to the gentleman from Lubbock, Texas (Mr. NEUGEBAUER), our colleague and Texas friend, whom we honor tonight.

Mr. NEUGEBAUER. Well, I thank the gentleman, and I thank my colleagues for those very kind words.

What an honor and a privilege it has been to be able to serve with people of this integrity and this commitment to our country.

You know, it was just a little over 13½ years ago that our colleague from Texas (Mr. BARTON) introduced me on this very House floor my very first day. It was June 5, 2003. I came in a special election. I think Mr. CONAWAY mentioned that we had a race together. I was sworn in as the 236th Texan and the 9,832nd American citizen. What you realize is what an honor and a privilege it is to get to do this, and what an honor and a privilege it has been to represent the people of the 19th Congressional District.

Somebody asked me one day: Do I ever think about, when I am on the House floor, the men and women who have served here in the past?

I said: No, I really don't think about the men and women who have served in the past because their history has been written. The people that I think about are the men and women whom I serve with every day because we are writing our history, and the things that we do and the things that we say on this floor have a huge impact not only on our constituents, but on our country and on the world.

So I want to thank my wife, Dana, and my family for helping me do this job on behalf of the people of the 19th District. Without Dana's support, I couldn't have done this. My two sons and their wives have been an integral part of this, and even my grandkids were out campaigning when we were running for Congress.

I also want to thank those men and women who have come through our congressional office, both here in D.C. and back in the district, who have worked so hard on behalf of our constituents, making sure that that veteran gets his check or making sure that that Social Security check that was lost was found, helping people get their loved ones back from a foreign country because of visa problems. All of those kinds of things are important.

So I want to thank the staff who have been so much a part of that, and I want to thank the people of the 19th District and my family, but I also want to thank my fellow colleagues whom I have served with.

Everybody here that I have come in contact with loves America. Now, what we do have is a difference of opinion from time to time on what it takes to make sure that America has the bright future that we all want it to have, and that is a healthy process.

I am excited for our President-elect and these new Members of Congress who will be sworn in in just a few weeks because they have a big task ahead of them. So as many of my constituents have prayed for me and this Congress in the past, Dana and I will be praying for them as they take our country forward.

Thank you again, and God bless you, and God bless the United States of America.

Mr. SMITH of Texas. Mr. Speaker, I again want to thank Representative NEUGEBAUER for his service to Texas and to our country. We wish him the best in his well-deserved retirement.

I yield back the balance of my time.

Mr. FLORES. Mr. Speaker, today, I rise to honor my fellow Texas colleague and friend RANDY NEUGEBAUER.

RANDY has been serving the constituents of the 19th Congressional District of Texas since 2003. Prior to coming to Congress, he served on the Lubbock City Council and as Mayor Pro Tempore. He also worked in the private sector as a banker and a homebuilder.

In Congress, RANDY has worked hard to eliminate wasteful federal spending, curb federal overreach and create better agriculture policies. He has served on the Financial Services Committee, the Agriculture Committee, and the Science, Space and Technology Committee. He has also served as a Chairman of the Financial Services Subcommittee on Financial Institutions and Consumer Credit, and as Vice-Chairman of the Agriculture Committee.

RANDY and I are similar in many ways. Growing up in Texas, we were both instilled with strong values of family, faith, hard work, and public service. We both went on to marry our high school sweethearts. We each have two sons and have been blessed with multiple grandchildren. And we both take pride in representing our respective universities where we are alumnus in Congress. Even though Texas Tech and Texas A&M have a strong rivalry, we have worked together for the good of all Texans.

RANDY will be missed in the halls of Congress. He took pride in serving the constituents of all 29 counties in West Texas that make up the 19th Congressional District. I commend him for his many years of public service to Texas and for our nation. It truly has been an honor to serve and work alongside RANDY. I wish him the best of luck on his retirement and want to thank him for friendship and guidance.

As I close, I ask everyone to continue praying for our country and for our military and first responder g who selflessly serve and sacrifice to protect us.

The SPEAKER pro tempore. The Chair would remind Members that it is not in order to refer to occupants of the gallery.

REFLECTIONS OF A FRESHMAN

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from Arkansas (Mr. HILL) for 30 minutes.

Mr. HILL. Mr. Speaker, I thank the gentleman from Texas (Mr. NEUGEBAUER) for his service and that of his spouse and family, for they made my welcome to Congress so agreeable and so appropriate, and I have enjoyed my service with Mr. NEUGEBAUER on the House Financial Services Committee.

You know, when I am home, one of the most frequent questions I get is to describe the major changes that I have seen in Washington since my previous work on Capitol Hill and in the executive branch. And yes, now it has been more than 24 years since I served in the administration of George H. W. Bush from 1989–1993, 24 years and three two-term Presidents—two Democrats, one Republican. Anyone familiar with life inside the beltway would certainly see that the city's traffic has become unbearable, and the number of places to eat has really been improved in those 24 years.

But tonight I don't want to talk about the enrichment of life along The National Mall with new monuments to FDR and MLK and new visionary sites, such as the Native American Museum and now our African American Museum. Instead, it is not urbanization or nightlife that has happened that I noticed, that I talk about when I see my constituents, but it is really the changes I see in public policy as I wander back like Rip Van Winkle 20 years later to our Nation's Capital.

The politics and productivity of the city are more stymied and less successful than in my experience in the executive branch, led by George H. W. Bush, or even in my service as a legislative aide on the Senate Banking Committee staff back during the days of the first term of President Reagan.

Tonight I would like to outline my thoughts on those biggest differences I have seen in our Federal Government. These include the size and complexity and the unmanageable nature of the administrative state, the growth and unreformed nature of our mandatory spending programs, the failure of the Congress to meet its most fundamental constitutional responsibilities, that is, the oversight of the executive and the timely and thoughtful appropriations governed by the Appropriations Clause of our Constitution.

□ 1945

At the end of this ''Rip Van Winkle'' overview, I will offer suggestions as to possible solutions to these challenges that we face in Washington. While I am a realist, I understand consensus is difficult in this city, and, while sensitive, my remarks tonight will appeal, in my view, to both Democrats and Republicans about how do we have an effective Federal Government, one that honors our constitutional limitations, the best intentions of our Founders, and demonstrates to the American people that their legislative and executive branches can work together for the long-term common good and the general welfare of this Nation.

Thomas Jefferson, author of the Declaration of Independence, does a splendid job in enumerating the significant grievances that the American colonists had against King George III. Among them, my favorite of the ''Facts . . . submitted to a candid world'': ''He,'' the king, ''has erected a multitude of New Offices, and sent hither swarms of officers to harass our people, and eat out their substance.''

When I am visiting with our fellow citizens in the seven counties of the Second Congressional District of Arkansas, our doctors and hospital administrators, people who own small businesses, community bankers, high school and elementary schoolteachers, university administrators, highway contractors, small-town mayors, inevitably the size, scope, and complexity of the paperwork, micromanagement, and intrusion of the administrative state dominates that conversation.

While other policy proposals from the tax and policy ideas to funding the need for our needed Federal programs, inevitably every conversation ultimately returns to how management and employees believe they are no longer focused on their missions to increase sales, produce profits, grow their business, educate kids, operate on patients, make loans to entrepreneurs and successful businesses, and help expand the American Dream.

Instead, they are stuck in a world of three-ring binders, CYA activities, and a morass of paperwork and documentation—all possibly well-intentioned, but the bottom line is they take people away from their core mission and core values, drive up costs, reduce availability of credit to consumers, drive up prices for consumers, and, in many ways, cause Americans to be cynical about their government.

In a 2015 article on New York City's broken bureaucracy, Phil Howard decried the red-tape jungle that doubles costs and postpones critical infrastructure projects in one of the greatest cities in the world. This is a fundamental issue today because President-elect Trump says we need to invest more in infrastructure. Look at the dollar per mile of road paved when you look at the costs added by the bureaucracy.

In 1931, the construction of The Empire State Building was completed in 410 days, 12 days ahead of schedule. Today, just raising the roadway of the Bayonne Bridge in New York, besides absurd requirements to survey historic buildings within a 2-mile radius of an existing bridge that touched no buildings, it required 47 permits from 19 different agencies and a 5,000-page Federal environmental assessment and a city environmental review before a permit could even be issued. After 5 years, the project was sued for inadequate environmental review. Now the $1.3 billion project is not expected to be completed until 2017. We are talking about years, decades to raise the deck on the bridge that will increase traffic to New York Harbor that in no way endangers the environment or any other aspect.

Peggy Noonan has said that Washington is turning America into the paperwork nation at odds with the American character of inventors, builders, innovators, and pioneers.

I have a message for our President-elect. When you are involved in partnering with us in draining the swamp, it is a worthy goal, how about draining America's inbox and just leave our American people alone to innovate, employ people, and help grow this economy.

This is why the Founders struggled so mightily over the proper role of the Federal versus State prerogatives in designing our Constitution. It is the core of why they settled upon the enumerated powers in our Constitution and left those other powers not so designated to the Federal Government to our States or entrusted to the people. Over recent years, the administrative state has eroded that trust the people have to make their own good choices. It is critical that we restore this trust and allow our local and State governments to tackle social and economic challenges with our people close to the problems and create a commonsense approach.

So your old friend, Rip Van Winkle, here tonight has returned to the banks of the Potomac to see a great leviathan draped across the landscape. Called the administrative state, this beast now reigns supreme, uncaring, tone deaf, and its tentacles dedicated to one-size-fits-all edicts, and, in many ways, unresponsive even to the will of the people's representatives in the United States House and Senate.

Phil Howard, who I referenced a few minutes ago, wrote two great books that I encourage everyone in our country to read: ''The Death of Common Sense'' and ''The Rule of Nobody,'' which succinctly outline the failures of this system that has been built up, calcified over the years, with no one in the system really responsible for asking: What is the right thing to do?

Ultimately, then, no one is responsible for these failures of the administrative state.

Instead, administrative officials have come to Capitol Hill and rarely offer testimony of value that adds to the debate, that informs the decisionmaking. A typical example can be seen in the 6 years of review and critique of the post-recession banking measure called the Dodd-Frank Act. Former Committee on Financial Services chair here in the House, Barney Frank, and author of this bill, principal architect, said that many things in this final act weren't right and required modifications, but a standard response from the Obama administration's financial officials at the Comptroller of the Currency, the FDIC, or the Federal Reserve, or even the SEC, our securities commission, can be paraphrased simply as: Congress passed the law, we are implementing the law, period, full stop.

That is not the right answer nor is it the right question. Standing for orthodoxy instead of what will benefit the American people, that should be their obligation, to help Congress design policies that help the American Dream flourish.

Jefferson, envisioning our nation divided into States, counties, and townships, said: ''It is not by the consolidation, or concentration of powers, but by their distribution, that good . . . is effected.''

Abraham Lincoln reminded our citizens that ''the legitimate object of government is to do for a community of people whatever they need to have done, but cannot do at all . . . ''

I place emphasis on the nature of ''community of people'' whereby we buy into this longstanding philosophical position of subsidiarity, whereby solutions to problems or challenges are best decided and left to the community and that, if necessary, the government closest to the people band together with families and local associations to take action, not punt every decision to the Federal Government.

At one time, such dedication to self-reliance and common sense were lauded as virtues, essential to the character of our Nation and of our people. Edmund Burke referred to the ''middling'' associations for doing good in England, and Alex de Tocqueville spoke reverently of Americans' insatiable ability to problem solve through the formation of associations of all kinds, that Americans were always finding themselves producing an association to build inns, to raise churches, to distribute books, to send missionaries out, to help create hospitals, prisons, and schools, all local communities coming together to do these things for themselves.

In my first 2 years in Congress, I have witnessed firsthand the overwhelming size of the administrative state when compared to my earlier service on Capitol Hill and in President Bush 41's White House. First let's consider the sheer volume of rules that have been issued, estimated to cost our economy $100 million or more in net cost.

Just under President Obama, we have witnessed over 600 rulemakings that exceed $100 million in threshold. Some, like the Clean Power Plan, many, many times that amount. In fact, the Office of Management and Budget, as of November 15, just a few days ago, noted there were 98 more midnight rules of the Obama administration; 17 of those hitting the $100 million mark of cost to our economy.

The conservative American Action Forum has estimated that President Obama has imposed 40 percent more major rules than his predecessor and that the overall cost of the Obama administration's regulations on the American people stands at $813 billion.

Likewise, consider the longer term. This chart illustrates the scope of these rulemakings as well as the long-term trend in publication of new rulemakings in the Federal Register, where all the government's actions are published for public dissemination and review. But still more than the sheer number and cost of these rulemakings is how intrusive they have become in daily lives or duplicative they are of another rule that was never repealed. That is why I found very appealing President-elect Trump said let's repeal rules before we make new ones. I wrote him recently, suggesting that he form a regulatory reform task force, like President Reagan did, and put Vice President Pence in charge of it to work with OMB and peel back this layer of duplicative costly regulation. These costs hurt consumers, and they hurt job creation.

A mortgage application, a fundamental part of our American experience across this Nation for a first-time home buyer used to be about 100 pages. Now it is about 500 pages. I would argue the consumer is not materially better informed or better off with these additional pages. Instead, we have just added duplicative paperwork because it looks better. But on reflection, is that consumer better off? Is our Nation better off for that cost? Shouldn't these kinds of things use common sense?

In 1994, I served on The Heritage Foundation's Advisory Council on Regulatory Reform. Twenty years ago, your old Rip Van Winkle friend here

argued that the cost in 1994 of the Federal regulatory system was nearly $1.6 trillion annually. I compared it, then, to the personal income tax, what it raised, what we all contribute of about $1.2 trillion in 1994 dollars.

The everyday government involvement in hardworking Americans' lives has only grown over those past two decades, and the Competitive Enterprise Institute's across-the-board cost estimate now for Federal regulations, including the impact of the Obama administration is nearly at $1.9 trillion per year, exceeding the cost of the individual income tax system and corporate tax revenues and quickly approaching—are you seated?—quickly approaching the entire amount of corporate pretax profits.

The regulatory regime of the Federal Government is not just vast and costly, it is unnecessarily intrusive. In Arkansas, we have seen agency regulations have devastating effects on our farmers, our small businesses, nonprofits, schools, colleges, universities, and State agencies. No one is immune from the leviathan's overreach.

Also in recent years, one has noted the expansion of the executive branch authority by increasing staff at the White House that is not subject to the confirmation of the United States Senate. While President Reagan had appointed one czar to work on drugs in the White House, President Obama has appointed 44 czars, with 35 of those not requiring confirmation by the United States Senate.

By using executive orders or executive memoranda to carry out policies that exceed existing statutory authority and properly belong to the first branch of government, the legislative branch, here, President Obama has hit new heights in what historian Arthur Schlesinger termed ''the imperial Presidency.''

□ 2000

It is critical to note that it is not the numbers of executive orders that are meaningful as to the directives themselves and how far-reaching they are vis-a-vis that proper statutory authority.

For example, if one utilizes data from the American Presidency Project and compares Reagan, Clinton, and Bush 43 with President Obama—all two-term Presidents—one finds President Reagan issued 381 executive orders; President Clinton, 364 executive orders; President Bush 43, 291; and President Obama at an apparently in line 260. But that is not the end of the story. President Obama has utilized a new measure that dodges publicity, transparency, and these statistics of the American Presidency Project: the Presidential memorandum.

By the end of 2015, this most imperial of Presidents had issued 219 memoranda—these are just the ones that have been published in the Federal Register—and the White House memoranda tally at the end of 2015 was 476, for a total of more than 600 executive orders and Presidential directives.

It can certainly be argued that Obama's executive action has far exceeded the scope and breadth of previous administrations. Even The Washington Post editorial board noted that the President's executive action on immigration in 2014 had no precedent and flew in the face of congressional intent. Indeed.

The Federal courts, too, have recognized the excess of this administration with their blocking of the President's 2014 executive order on immigration, nationwide injunctions on the Department of Labor's overtime rule, injunctions on the EPA's waters of the United States rule, and finally, the current legal battle over the Clean Power Plan.

So, while I have certainly seen, in my two decades of being out of the Potomac arena, a growing trend in the administrative state by way of executive actions that skirt the Administrative Procedure Act and public comment, this administration has also aggressively attempted to avoid publicly vetted rulemaking by something even, in my judgment, more nefarious to our constitutional freedoms, and that is creating regulation by enforcement action.

In my first 2 years in Congress, this has happened at the Securities and Exchange Commission and the Department of Justice and clearly skirts the statutory traditions of the United States and the role of the Administrative Procedure Act.

One of the economically chilling issues related to this contains the use of settlement trust funds, whereby the Department of Justice or other agencies of government choose to settle Federal civil actions against companies or individuals through a settlement procedure, as opposed to going to trial, and then assess a major monetary penalty which, instead of being paid to the victims, is paid to politically favored interest groups.

These activists, in turn, bring more lawsuits to feather their own nests. And if this isn't crony coercion, with its pernicious effect on the economy and a chilling effect on all innovation and economic growth, I don't know what is. It is certainly not in keeping with 70, 80 years of tradition under the Administrative Procedure Act.

My former colleague and White House counsel to President Bush 41, Ambassador C. Boyden Gray, stated in his testimony, before the House Financial Services Committee, about the dangers of an executive with access to the Treasury. That is clearly what these slush funds are. The need to ensure separation of powers and power of the purse are firmly in the hands of Congress, not the executive.

Mr. Gray stated: ''Every other constitutional power runs into the appropriations power,'' and that throughout our history, ''presidents have 'consistently endeavored to seize the appropriations powers from Congress.'''

This is where you get into the intention that our Founders anticipated. Federalist 51: when one branch of government gets too big for their breeches, it needs to be countered by another branch of government. This overreach by the executive needs to be responded to by the first branch, the legislative branch, and make sure that we, in fact, consistently authorize our appropriations responsibly.

To close this discussion of the administrative state, let's consider a primary example of growth of the state where Congress does not have an opportunity to safeguard its legislative and appropriation and oversight responsibility. People's exhibit A is the Consumer Financial Protection Bureau.

In the Dodd-Frank Act, I mentioned a few minutes ago, in my view, the Congress mistakenly created a funding source for the CFPB not subject to the appropriations that are actually set aside. Instead, it is a fixed amount of income out of the Federal Reserve system hidden away from Congress' oversight that normally would be paid directly to the Treasury. Instead, it is diverted to the CFPB, and it gives an agency independence like you can't see anywhere else. It is a violation, in my view, of our appropriations responsibility. The Director can't be fired, so it is a violation of our oversight responsibility.

I was pleased, this October, that the Court of Appeals for the District of Columbia unanimously ruled in the PHH mortgage case that the CFPB's sole Director position possesses unchecked ''unilateral power'' and calls the Director ''the single most powerful official in the entire United States Government.'' I am sorry, what? The single most powerful official in the United States Government. Gosh, I thought that was the President, the Speaker of the House. No, no, no. It is a guy at the CFPB. In fact, they acted in an unconstitutional manner.

So I am with the District of Columbia court, and I have no doubt that the pending case, State National Bank of Big Spring, Texas, challenging the CFPB's unconstitutionality will be noted as well.

So, Mr. Speaker, these are some of my observations about the growth of the administrative state. I have no doubt that, when I come back to this floor, I will continue this discussion and offer solutions about what we need to do in Congress, in the legislative branch, and in the executive branch to make sure that we are upholding our obligation to our voters, our citizens, the people who have elected us, who have sent us here to represent their interests—hardworking people like RANDY NEUGEBAUER that we lauded a few minutes ago for his extraordinary service to the 19th District of Texas. Our administrative state is unmanageable, and it deserves to be reined in.

As a freshman, soon-to-be sophomore, a second-term Member of this body, I am going to fight for those

changes that return the power to the people's House and the people's Senate as it relates to oversight of the executive and the appropriations method.

Mr. Speaker, I yield back the balance of my time.

SENATE ENROLLED BILLS SIGNED

The Speaker announced his signature to enrolled bills of the Senate of the following titles:

S. 1555. An act to award a Congressional Gold Medal, collectively, to the Filipino veterans of World War II, in recognition of the dedicated service of the veterans during World War II.

S. 2234. An act to award the Congressional Gold Medal, collectively, to the members of the Office of Strategic Services (OSS) in recognition of their superior service and major contributions during World War II.

S. 2577. An act to protect crime victims' rights, to eliminate the substantial backlog of DNA and other forensic evidence samples to improve and expand the forensic science testing capacity of Federal, State, and local crime laboratories, to increase research and development of new testing technologies, to develop new training programs regarding the collection and use of forensic evidence, to provide post-conviction testing of DNA evidence to exonerate the innocent, to support accreditation efforts of forensic science laboratories and medical examiner offices, to address training and equipment needs, to improve the performance of counsel in State capital cases, and for other purposes.

ADJOURNMENT

Mr. HILL. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 8 o'clock and 8 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, December 7, 2016, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

7755. A letter from the Director, Civil Rights Center, Office of the Secretary, Department of Labor, transmitting the Department's final rule — Implementation of the Nondiscrimination and Equal Opportunity Provisions of the Workforce Innovation and Opportunity Act (RIN: 1291-AA36) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

7756. A letter from the Assistant General Counsel for Regulatory Affairs, Pension Benefit Guaranty Corporation, transmitting the Corporation's final rule — Allocation of Assets in Single-Employer Plans; Valuation of Benefits and Assets; Expected Retirement Age received December 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

7757. A letter from the Director, Regulations Policy and Management Staff, FDA, Department of Health and Human Services, transmitting the Department's final rule — Food and Drug Administration Review and Action on Over-the-Counter Time and Extent Applications [Docket No.: FDA-2016-N-0543] (RIN: 0910-AH30) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

7758. A letter from the Director, Regulations Policy and Management Staff, FDA, Department of Health and Human Services, transmitting the Department's final rule — Uniform Compliance Date for Food Labeling Regulations [Docket No.: FDA-2000-N-0011] received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

7759. A letter from the Director, Regulations Policy and Management Staff, FDA, Department of Health and Human Services, transmitting the Department's final rule — Medical Gas Containers and Closures; Current Good Manufacturing Practice Requirements [Docket No.: FDA-2005-N-0343] (RIN: 0910-AC53) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

7760. A letter from the Director, Regulations Policy and Management Staff, FDA, Department of Health and Human Services, transmitting the Department's final rule — Indirect Food Additives: Paper and Paperboard Components [Docket No.: FDA-2016-F-1153] received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

7761. A letter from the Secretary, Department of Commerce, transmitting a report certifying that the export of the listed item to the People's Republic of China is not detrimental to the U.S. space launch industry, pursuant to 22 U.S.C. 2778 note; Public Law 105-261, Sec. 1512 (as amended by Public Law 105-277, Sec. 146); (112 Stat. 2174); to the Committee on Foreign Affairs.

7762. A letter from the Deputy Assistant to the President and Director, Office of Administration, Executive Office of The President, transmitting transactions from the Unanticipated Needs Account for fiscal year 2016 as required by 3 U.S.C. 108, pursuant to 3 U.S.C. 108(b); Public Law 95-570, Sec. 2(a); (92 Stat. 2449); to the Committee on Oversight and Government Reform.

7763. A letter from the Federal Co-Chair, Appalachian Regional Commission, transmitting the Commission's Inspector General Semiannual Report to Congress, for the period April 1, 2016 through September 30, 2016, pursuant to Sec. 5 of the Inspector General Act of 1978, as amended; to the Committee on Oversight and Government Reform.

7764. A letter from the Executive Director, Consumer Product Safety Commission, transmitting the Commission's Strategic Plan for Fiscal Years 2016 through 2020, pursuant to 5 U.S.C. 306(a); Public Law 111-352, Sec. 2; (124 Stat. 3866); to the Committee on Oversight and Government Reform.

7765. A letter from the Chairman, Consumer Product Safety Commission, transmitting the Commission's Fiscal Year 2016 Agency Financial Report, pursuant to 31 U.S.C. 3515(a)(1); Public Law 101-576, Sec. 303(a)(1) (as amended by Public Law 107-289, Sec. 2(a)); (116 Stat. 2049); to the Committee on Oversight and Government Reform.

7766. A letter from the Chief Executive Officer, Corporation for National and Community Service, transmitting the Office of Inspector General's Semiannual Report to Congress and the Corporation for National and Community Service's Response and Report on Final Action for the six-month period from April 1, 2016 through September 30, 2016, pursuant to Sec. 5 of the Inspector General Act of 1978, as amended; to the Committee on Oversight and Government Reform.

7767. A letter from the Secretary, Department of Agriculture, transmitting the Department's semi-annual report on the activities of the Inspector General for April 1, 2016, through September 30, 2016, pursuant to 5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

7768. A letter from the Secretary, Department of Health and Human Services, transmitting the Department's semi-annual report on the activities of the Inspector General for April 1, 2016, through September 30, 2016, pursuant to µ5 U.S.C. app. (Insp. Gen. Act) Sec. 5(b); Public Law 95-452, Sec. 5(b); (92 Stat. 1103); to the Committee on Oversight and Government Reform.

7769. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting the Department's FY 2016 Agency Financial Report, pursuant to 31 U.S.C. 3515(a)(1); Public Law 101-576, Sec. 303(a)(1) (as amended by Public Law 107-289, Sec. 2(a)); (116 Stat. 2049); to the Committee on Oversight and Government Reform.

7770. A letter from the Secretary, Department of Transportation, transmitting the Department's Semiannual Report of the Office of the Inspector General for the period ending September 30, 2016, pursuant to Sec. 5 of the Inspector General Act of 1978, as amended, Public Law 95-452; to the Committee on Oversight and Government Reform.

7771. A letter from the Administrator, General Services Administration, transmitting the Administration's Semiannual Management Report to the Congress for the period of April 1, 2016, through September 30, 2016, pursuant to Sec. 5 of the Inspector General Act of 1978, as amended; to the Committee on Oversight and Government Reform.

7772. A letter from the Labor Member and Management Member, Railroad Retirement Board, transmitting the Board's Inspector General Semiannual Report to the Congress for the period April 1, 2016 through September 30, 2016, pursuant to Sec. 5 of the Inspector General Act of 1978, as amended, Public Law 95-452; to the Committee on Oversight and Government Reform.

7773. A letter from the Chair, Securities and Exchange Commission, transmitting the Commission's Fiscal Year 2016 Agency Financial Report, pursuant to 31 U.S.C. 3515(a)(1); Public Law 101-576, Sec. 303(a)(1) (as amended by Public Law 107-289, Sec. 2(a)); (116 Stat. 2049); to the Committee on Oversight and Government Reform.

7774. A letter from the Assistant Secretary for Legislation, Office of the Secretary, Department of Health and Human Services, transmitting the Fiscal Year 2014 Report to Congress on Administration of the Tribal Self-Governance Program, pursuant to Sec. 458aaa-13(a), 25 U.S.C. 450 et seq., as amended; to the Committee on Natural Resources.

7775. A letter from the Assistant Attorney General, Department of Justice, transmitting the Rafael Ramos and Wenjian Liu National Blue Alert Act Report to Congress for 2016, pursuant to 42 U.S.C. 14165b(f); Public Law 114-12, Sec. 4(f); (129 Stat. 196); to the Committee on the Judiciary.

7776. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Special Local Regulation; Ouachita River, Monroe, LA [Docket No.: USCG-2016-0666] (RIN: 1625-AA08) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

7777. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's

temporary final rule — Special Local Regulation; Saint Andrew Bay; Panama City, FL [Docket No.: USCG-2016-0932] (RIN: 1625-AA08) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

7778. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone; Pago Pago Harbor, American Samoa [Docket No.: USCG-2016-0749] (RIN: 1625-AA00) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

7779. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Safety Zones; San Francisco, CA [Docket No.: USCG-2016-0154] (RIN: 1625-AA00) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

7780. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone; Tennessee River, Knoxville, TN, MM TNR 646.9-647.1 [Docket No.: USCG-2016-0845] (RIN: 1625-AA00) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

7781. A letter from the Administrator, Saint Lawrence Seaway Development Corporation, Department of Transportation, transmitting the annual financial audit and management report of the Saint Lawrence Seaway Development Corporation for the fiscal year ending September 30, 2016, pursuant to 31 U.S.C. 3515(a)(1); Public Law 101-576, Sec. 303(a)(1) (as amended by Public Law 107-289, Sec. 2(a)); (116 Stat. 2049); to the Committee on Transportation and Infrastructure.

7782. A letter from the Chief, Trade and Commercial Regulations Branch, Customs and Border Protection, Department of Homeland Security, transmitting the Department's final rule — Import Restrictions Imposed on Certain Archaeological Material from Egypt [CBP Dec. 16-23] (RIN: 1515-AE19) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

7783. A letter from the Chief, Trade and Commercial Regulations Branch, Customs and Border Protection, Department of Homeland Security, transmitting the Department's final rule — Extension of Import Restrictions Imposed on Certain Archeological and Ethnological Materials from the Plurinational State of Bolivia [CBP Dec. 16-24] (RIN: 1515-AE20) received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

7784. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service' s IRB only rule — Application of Section 108(a)(1)(E)(ii) to the Federal Housing Finance Agency's (FHFA's) Principal Reduction Modification Program (PRMP) and the Home Affordable Modification Program (HAMP) [Notice 2016-72] received December 2, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. BYRNE: Committee on Rules. House Resolution 944. Resolution providing for consideration of the bill (H.R. 5143) to provide greater transparency and congressional oversight of international insurance standards setting processes, and for other purposes; providing for proceedings during the period from December 9, 2016, through January 3, 2017; and providing for consideration of motions to suspend the rules (Rept. 114–846). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. BRADY of Texas (for himself and Mr. NEAL):

H.R. 6439. A bill to amend the Internal Revenue Code of 1986 to make technical corrections, and for other purposes; to the Committee on Ways and Means.

By Mr. GOWDY (for himself, Mr. GOODLATTE, and Ms. JACKSON LEE):

H.R. 6440. A bill to amend title 18, United States Code, to provide for new procedures regarding the payment of restitution by defendants convicted of child pornography offenses, and for other purposes; to the Committee on the Judiciary.

By Ms. DUCKWORTH:

H.R. 6441. A bill to provide for the regulation of video visitation services by the Federal Communications Commission generally, to establish criteria for the provision of video visitation services by the Bureau of Prisons, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FORTENBERRY:

H.R. 6442. A bill to amend the National Trails System Act to direct the Secretary of the Interior to conduct a study on the feasibility of designating the Chief Standing Bear National Historic Trail, and for other purposes; to the Committee on Natural Resources.

By Ms. MICHELLE LUJAN GRISHAM of New Mexico (for herself, Mr. BLUMENAUER, Mr. CICILLINE, and Mr. DESAULNIER):

H.R. 6443. A bill to amend the Internal Revenue Code to impose an excise tax on opioid manufacturers, to make the funds collected through such tax available for opioid (including heroin) abuse prevention and treatment programs, and for other purposes; to the Committee on Ways and Means, and in addition to the Committees on Energy and Commerce, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. MENG:

H.R. 6444. A bill to amend the Higher Education Act of 1965 to require the Secretary of Education to annually adjust Federal Perkins loan amounts for inflation; to the Committee on Education and the Workforce.

By Mr. O'ROURKE (for himself, Mr. YOUNG of Alaska, Mr. MOULTON, and Mr. JONES):

H.R. 6445. A bill to amend title 38, United States Code, and the Internal Revenue Code of 1986 to establish, in the event of any war, a war tax to be collected and deposited in a trust fund for the payment of benefits and compensation to veterans of that war; to the Committee on Ways and Means, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PALLONE (for himself, Mr. COHEN, Ms. MOORE, Mr. PAYNE, and Mrs. WATSON COLEMAN):

H.R. 6446. A bill to amend the Truth in Lending Act to provide private education loan forgiveness for certain borrowers, to require disclosures related to private education loan default rates, and for other purposes; to the Committee on Financial Services, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ROE of Tennessee:

H.J. Res. 106. A joint resolution approving the location of a memorial to commemorate and honor the members of the Armed Forces that served on active duty in support of Operation Desert Storm or Operation Desert Shield; to the Committee on Natural Resources.

By Mr. MCCARTHY:

H. Res. 945. A resolution providing for the printing of a revised edition of the Rules and Manual of the House of Representatives for the One Hundred Fifteenth Congress; considered and agreed to.

By Mr. CONYERS (for himself, Mrs. DINGELL, Mrs. LAWRENCE, Mr. LEVIN, and Mr. KILDEE):

H. Res. 946. A resolution celebrating the history of the Detroit River with the 15-year commemoration of the International Underground Railroad Memorial Monument, comprised of the Gateway to Freedom Monument in Detroit, Michigan and the Tower of Freedom Monument in Windsor, Ontario, Canada; to the Committee on Natural Resources, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. RICHMOND:

H. Res. 947. A resolution expressing support for the designation of the third Sunday in October as Clergy Spouse Appreciation Day; to the Committee on Oversight and Government Reform.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. BRADY of Texas:

H.R. 6439.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 and 18 of Section 8 of Article I of the United States Constitution, and Amendment XVI of the United States Constitution.

By Mr. GOWDY:

H.R. 6440.

Congress has the power to enact this legislation pursuant to the following:

The bill derives its authority from Congress' Article 1, Section 8, Clause 9 authority to ''constitute tribunals inferior to the Supreme Court.'' This authority includes the rules and procedures used by inferior federal courts.

By Ms. DUCKWORTH:
H.R. 6441.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section I of the Constitution of the United States of America: ''All legislative Powers herein granted shall be vested in a Congress, of the United States, which shall consist of a Senate and House of Representatives.''

By Mr. FORTENBERRY:
H.R. 6442.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority for this bill is pursuant to Article I, Section 8, Clause 18 of the United States Constitution.

By Ms. MICHELLE LUJAN GRISHAM of New Mexico:
H.R. 6443.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 18 of the Constitution.

By Ms. MENG:
H.R. 6444.
Congress has the power to enact this legislation pursuant to the following:
Article I, section 8 of the Constitution of the United States

By Mr. O'ROURKE:
H.R. 6445.
Congress has the power to enact this legislation pursuant to the following:
Under Article I, Section 8 of the Constitution, Congress has the power ''to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or any Department or Officer thereof''.

By Mr. PALLONE:
H.R. 6446.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section VIII.

By Mr. ROE of Tennessee:
H.J. Res. 106.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 17 of the United States Constitution

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 188: Ms. PINGREE.
H.R. 213: Ms. DELAURO and Mr. BERA.
H.R. 572: Mr. DELANEY.
H.R. 577: Mr. DELANEY.
H.R. 746: Mr. TED LIEU of California.
H.R. 1095: Mr. KENNEDY and Mr. CICILLINE.
H.R. 1098: Ms. SLAUGHTER.
H.R. 1197: Mr. DOGGETT.
H.R. 1312: Mr. DELANEY.
H.R. 1356: Mr. DELANEY.
H.R. 1603: Mr. DELANEY.
H.R. 2082: Mr. REED.
H.R. 2103: Ms. LOFGREN.
H.R. 2450: Mr. PASCRELL.
H.R. 2461: Mr. MCKINLEY.
H.R. 2920: Mr. KIND.
H.R. 3268: Mr. MEEKS and Mrs. BUSTOS.
H.R. 3355: Mr. DELANEY.
H.R. 3520: Mr. DELANEY.
H.R. 3558: Mr. DELANEY.
H.R. 3640: Mr. DELANEY.
H.R. 3660: Ms. BONAMICI and Mr. POCAN.
H.R. 3892: Mr. MCCAUL and Mr. WENSTRUP.
H.R. 4074: Mr. BROOKS of Alabama.
H.R. 4223: Ms. CASTOR of Florida.
H.R. 4298: Mr. BOST and Mr. BRADY of Texas.
H.R. 4313: Ms. KUSTER.
H.R. 4513: Mr. KATKO.
H.R. 4932: Ms. LOFGREN.
H.R. 5177: Mr. PALLONE.
H.R. 5299: Mrs. BROOKS of Indiana and Mr. BOST.
H.R. 5361: Mrs. TORRES.
H.R. 5454: Mrs. MIMI WALTERS of California and Ms. SCHAKOWSKY.
H.R. 5474: Ms. VELÁZQUEZ.
H.R. 5619: Mr. DESANTIS.
H.R. 5867: Mr. DELANEY.
H.R. 5904: Mr. DAVIDSON and Mr. MEADOWS.
H.R. 5961: Mrs. COMSTOCK.
H.R. 5974: Mr. MOULTON and Mr. SMITH of New Jersey.
H.R. 5994: Mr. KIND.
H.R. 5999: Mr. DUFFY and Mr. DELANEY.
H.R. 6025: Mr. LUETKEMEYER.
H.R. 6117: Ms. KAPTUR.
H.R. 6159: Mr. PAULSEN.
H.R. 6196: Mrs. MIMI WALTERS of California.
H.R. 6234: Ms. LOFGREN.
H.R. 6278: Mr. GOHMERT.
H.R. 6298: Mr. LAMBORN.
H.R. 6336: Mr. GARAMENDI.
H.R. 6340: Ms. CASTOR of Florida, Mr. QUIGLEY, Ms. KUSTER, Mr. ELLISON, Mr. LOEBSACK, and Ms. PINGREE.
H.R. 6421: Mr. SCHWEIKERT, Mr. RIGELL, Mr. SWALWELL of California, and Mr. LAMBORN.
H.R. 6423: Mr. JOHNSON of Georgia, Mr. LYNCH, Ms. VELÁZQUEZ, and Ms. SCHAKOWSKY.
H.R. 6426: Mr. DESANTIS.
H.R. 6428: Mr. BEYER and Mr. CARSON of Indiana.
H.R. 6431: Ms. PINGREE, Mr. CURBELO of Florida, Mr. KILMER, Mr. EMMER of Minnesota, and Ms. KELLY of Illinois.
H.J. Res. 100: Mr. STEWART and Mr. LABRADOR.
H.J. Res. 102: Mr. GARAMENDI and Mr. POCAN.
H.J. Res. 104: Mr. COOPER.
H. Con. Res. 171: Mr. GRIFFITH, Mr. GRIJALVA, Ms. HANABUSA, Mr. KILMER, and Ms. SPEIER.
H. Con. Res. 175: Mr. ADERHOLT.
H. Res. 28: Ms. ROS-LEHTINEN.
H. Res. 848: Mr. LEVIN and Mr. WALZ.
H. Res. 861: Mr. GUTIÉRREZ, Mr. RODNEY DAVIS of Illinois, and Mr. RUSH.
H. Res. 942: Mr. BURGESS and Mr. ALLEN.

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PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, SECOND SESSION

Vol. 162 WASHINGTON, TUESDAY, DECEMBER 6, 2016 *No. 175*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The PRESIDENT pro tempore. Today's opening prayer will be offered by T.F. Tenney, bishop emeritus of the United Pentecostal Church International in Alexandria, LA.

The guest Chaplain offered the following prayer:

Mr. President, Members of the Senate, may the Lord be with you. Let us bow our heads in reverence to His presence.

God, our help in ages past, be our comfort still. Thank You for this great, great Nation and its foundation of ''one Nation under God, indivisible.'' Thank you, Lord, that we can emphasize ''indivisible.''

Thank You for the liberty, justice, and freedoms that we enjoy. We pray for all who walk these hallowed Halls where life-changing and world-changing decisions are made.

Bless this austere gathering of men and women chosen by You and the American people to serve us all. Give them wisdom to acknowledge You first in all they do.

Give them grace, as has been extended to them. Guide them, O Holy Spirit. Guide them, O Holy Spirit. Fill them and this Chamber with Your presence and fill these Halls with Your glory.

When they leave today, may they say we have not just been in the presence of men, but we have been in the presence of God.

Now, in the Name of the One I trust, Jesus Christ, my Lord and Savior, fill this place, Holy Spirit. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mr. PERDUE). The Senator from Louisiana.

WELCOMING THE GUEST CHAPLAIN

Mr. CASSIDY. Mr. President, may I briefly acknowledge and thank Pastor and Bishop Tenney for being here.

Today is his 83rd birthday. As he told me, he has been pushing 80, but now he pulls it. He has blessed many people. He is an anointed man of God whom many others have looked toward for guidance, as a man who by his life and by his words guides them to a deeper relationship with God.

On behalf of our entire Senate, I extend our thanks to Bishop Tenney for being here today. Thank you.

I yield back.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

LEGISLATION BEFORE THE SENATE

Mr. MCCONNELL. Mr. President, yesterday the Senate voted overwhelmingly to take the next step in the 21st Century Cures Act, bipartisan legislation to bolster medical innovation.

This legislation promotes critical investments in research and treatment development. It helps cut through unnecessary regulations that would hinder the development of cures while also protecting safety. It builds upon the progress of innovative therapies and regenerative medicine.

This legislation puts patients first, it helps strengthen the kind of research and treatments needed to cure the most devastating diseases, and it includes provisions to help enhance mental health programs and to provide funding to help fight opioid abuse.

I have heard from health professionals across my State who have expressed the impact this legislation can make, from the Kentucky Hospital Association to the University of Kentucky, our State's largest research university.

This bill, the U.K. president says, reflects the ''growing support from Congress for increased investment in research that addresses the compelling questions of our day.'' I will be pleased to welcome U.K. President Capilouto to the Capitol this morning. He says Cures is one example of how the university will be better equipped ''to improve the lives of those in our Commonwealth.''

We know this bill wouldn't have been possible without Chairman ALEXANDER's ceaseless efforts, alongside Ranking Member MURRAY, to drive it forward.

We thank them both, as well as Members such as Senator CORNYN, Senator HATCH, and Senator CASSIDY, who have all endeavored to make the bill the strongest it could be.

I also recognize my friend Vice President BIDEN—who joined us yesterday—for his efforts to include his Cancer Moonshot issue in the package. This is an issue that hits close to home for the Vice President, as we all know. He has been a leading voice in supporting efforts to strengthen cancer research and to find a cure. I am pleased we will pass this legislation soon so we can begin to put its provisions to work on behalf of American families.

On the other important issues before the Senate, I have spoken with the Speaker on a number of occasions about an issue facing coal miner retirees, such as those I represent in Kentucky, and have insisted that the CR include a provision to address that issue so these retirees don't lose their health care benefits at the end of the year. We hope to have a final bill to share with Members soon, and we look

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forward to turning to it as soon as possible after House action. I will have more on that later.

We are also working to wrap up a number of conference reports, including for the Defense authorization bill and the Water Resources Development Act.

Last night I took the next step on the Defense conference report so we can pass it this week. This legislation will provide more of the tools servicemembers need to take on national security challenges, help strengthen our military posture, and support our men and women in uniform with the benefits and pay raises they have earned.

I hope the Senate will also take the next step soon on the Water Resources Development Act conference report. This water resources conference report will invest in our Nation's waterways infrastructure, enhance commerce, and support safe and reliable water sources to prevent future situations, such as the one we saw in Flint, MI. To that point, this bill also includes assistance for families such as those in Flint who have already been impacted by lead poisoning.

TRIBUTE TO DAN COATS

Mr. MCCONNELL. Mr. President, we all remember where we were on September 11, 2001. The man we honor today certainly does. He was in Berlin. He had only just begun his second day as Ambassador to Germany, and then everything changed.

Planes smashed into the World Trade Center. Terrorists attacked the Pentagon, where his son-in-law worked. Thankfully, his family emerged unbroken that day. Others were not so fortunate.

Ambassador COATS found himself thrown into a role he couldn't have foreseen a day earlier, a role in which he would excel but one that would forever change him. Those who know DAN COATS say that day in September affected him profoundly. It shook him as a father, it sharpened him as a policymaker, and it clarified the stakes and his sense of responsibility.

He may not have known it then, but he would feel the tug of that responsibility many years later and answer the call.

Senator COATS had enjoyed a successful congressional career when he decided to retire in 1998. He earned a reputation for working hard, getting things accomplished, becoming an indispensable member of his conference. In fact, after DAN announced his decision not to seek reelection, then-Majority Leader Trent Lott rang him up and said: ''You can't leave,'' Lott recalled saying. ''I can't go forward in the Senate without you.''

DAN's success was no accident. He learned the legislative ropes working for an up-and-coming Congressman named Dan Quayle. He applied that knowledge as he progressed from Quayle's staffer to Quayle's successor, first in the House, then in the Senate.

This was evident whether DAN was refocused on rebuilding the military after the Cold War, bringing opportunity to low-income families and children, even dissecting the finer points of American garbage policy—yes, garbage policy.

Toward the beginning of DAN's time in the Senate, Hoosier landfills were filling with New Jersey trash, and Hoosiers were fed up. So in came DAN with a war cry—''Don't dump on us!''—and just the right blend of determination, legislative know-how, and humor to capture the attention of colleagues and the hearts of constituents.

Some were unamused in DC or Trenton, but back in Indiana, Hoosiers were over the Moon. For many, their first introduction to this plucky new Senator came through his famous Senate trash ad, the Coats for Senate commercial, which featured a cigar-chomping garbageman from Jersey, earned DAN a place in the hallowed halls of campaign legend—and perhaps a ticket back to the Senate.

While Senator Lott may not have been able to persuade DAN to run for reelection 8 years later, he did offer this prophetic statement as he bid him farewell:

> [Dan Coats] is leaving the Senate, but he is not leaving us.
>
> I have a feeling that he is going to have a real influence in many ways for the rest of his life, and he is going to stay close to all of us.

How right he was.

Fast forward to just over a decade later, former Senator COATS looked out and saw a country in crisis, adrift on the world stage, stagnant at home, and sliding into despair. DAN was deeply unsettled. He shared his concerns with his wife Marsha. He realized he had two choices. He could sit back and watch or he could do something.

DAN COATS chose to do something. His election was hardly a sure thing. He pulled through anyway. When he returned to the Capitol, he put his head down and he got right to work. DAN can be a man of few words. He doesn't always feel the need to speak up, but when he does, people pay attention. It is a true mark of distinction in a body such as this with its big egos and sharp elbows.

People listen to this former Ambassador when he explains the ins and outs of foreign policy. People listen to this veteran of previous health care debates when he dissects the problems of ObamaCare.

When this fiscal expert shares his waste of the week, people pay attention. It is how we learned taxpayer dollars were being spent on Swedish massages for bunny rabbits. It is how we discovered taxpayer money was being wasted to determine whether ''hanger,'' that is ''hunger'' plus ''anger,'' is a real thing.

Senator COATS knew he wasn't going to solve all of our Nation's problems as one Senator in one term, but he understood the important contributions he could make. He also recognized his responsibility to make them. In the process, he cemented a legacy that will long outlast him in the Senate. It will certainly continue on in my office. My own chief of staff, Sharon Soderstrom, is a Coats alum. Speaker RYAN's chief of staff, Dave Hoppe, is another Coats alum. The list of Coats staffers who have gone on to achieve great things—from former White House chief speechwriter Michael Gerson to incoming Indiana Governor Eric Holcomb—is as long as it is impressive.

I know DAN is looking forward to spending more time at Wrigley Field after he retires. Here is the tweet DAN sent out last month: ''A century in the making, we finally made it. What a great day to be a Cubs fan.''

It is hard to overstate the importance of the moment for him. I mean, this is a guy who spent part of his honeymoon—his honeymoon—at Wrigley Field. So I wonder if maybe, just maybe, he was able to see a little of himself in his favorite team—maybe in a guy like fellow Indiana University Hoosier Kyle Schwarber—a standout player who stepped away from the game for a season and then came back and picked right up where he left off without a hitch, knocking it out of the park just when his team needed him most.

DAN promises he is not coming back a third time. We will see. It is obvious DAN never needed the office or the title—not the first time, not the second time, not a third time.

That said, I know DAN isn't going to stop caring. I know he isn't going to stop working. So we are going to keep the DAN COATS ''bat signal'' plugged in. Should the people call out for a hero yet again, I hope our friend will suit up one more time because, if nothing else, we are really going to miss him.

So let us recognize and congratulate Senator COATS for his many years of service. Let us wish him well in his latest retirement, and let me personally thank him for his wise counsel and trusted friendship.

I will miss you, my friend.

TRIBUTE TO MARK KIRK

Mr. MCCONNELL. Mr. President, Senator MARK KIRK has never been one to be intimidated by a challenge. He is willing to work hard even when the going gets tough. He never shies away from a tough debate, and he always comes prepared. He has been defying the odds for a long time and inspiring others along the way.

Nearly 5 years ago, Senator KIRK suffered a debilitating stroke—one that threatened to end his Senate service nearly as soon as it had begun. In the blink of an eye, KIRK went from juggling constituent meetings and committee hearings to lying in a hospital bed wondering if he would ever walk again or talk again or read again.

If Senator KIRK had decided to just quit the Senate and focus on his recovery, no one would have blamed him.

But he didn't do that. He never lost hope. He never gave up. He set his sights on getting back to work for the people of Illinois and the Nation. That is exactly what he did.

We were there to witness his triumph several months later. Cane in hand, a smile on his face, JOE MANCHIN to one side, JOE BIDEN to the other, one foot in front of the other, Senator MARK KIRK climbed and climbed and climbed. He ascended each of those 45 Capitol steps to the top of this Chamber as we all cheered him on.

MARK could rest assured no one was going to let him fall that day. And Senator MANCHIN could rest assured that he wouldn't have to go another day waiting for his buddy to return.

Days after MARK's stroke, Senator MANCHIN hopped on a flight to Chicago to check on his friend in person. He saw firsthand the many challenges KIRK had to overcome in recovery. But he never doubted MARK's will, determination, or desire to get back to work.

KIRK, he said, is like the Energizer Bunny. He just keeps going and going and going.

MANCHIN and KIRK might seem like an unconventional pair. One is a Democrat, the other a Republican. The West Virginian is an outdoorsman, the Illinois Senator is a gamer. Senator MANCHIN is a mountaineer, and Senator KIRK ascends skyscrapers.

But as the senior Senator from West Virginia put it, they ''just clicked from day one'' and quickly became the best of friends. Now they go boating together. They meet for lunch nearly every Thursday. And they support each other. The support of good friends like Senator MANCHIN has been critical to Senator KIRK's dramatic recovery.

He has found support in other places, too, including the mailbox. A few weeks after his stroke, Jackson, a 9-year-old fellow stroke survivor from Illinois, wrote Senator KIRK to share his own story and some words of encouragement. ''Do not give up on yourself,'' Jackson wrote. ''All the hard work is worth it.''

''P.S.,'' he said, ''I think kids should get paid to go to school.''

The pair quickly became pen pals and even picked up a new joint sport of tower climbing in their rehabilitation.

Senator KIRK calls Jackson his personal hero. Last year, he invited him to visit Washington and be his guest at the State of the Union. To hear KIRK tell it, he may have never made it back for that address at all without Jackson's support and kind words.

I know the support he received from his fellow home State Senator didn't go unnoticed either. After MARK's stroke, Senator DURBIN visited KIRK's staff, offering to help out however he could.

Senator KIRK's story reminds us that the Senate can be more than just a place of work, it can actually be a family. In his own words, ''The things that divide us in politics are infinitesimal compared with the dignity of our common humanity.'' It is a powerful message, and I think it is one we can all learn from.

Senator KIRK said that America's men and women in uniform represent ''the greatest force for human dignity on Earth.'' He is right. And the work he has done to help us meet the obligation our Nation has to military families and our veterans will endure beyond his term.

MARK KIRK, a veteran himself, understands the sacrifices our servicemembers and their families make each day on our behalf. He knows they deserve our full support, not only when they are on Active Duty but also after their tours are complete.

That is why he has worked to help guarantee the quality of health care that our heroes are counting on. It is why he has worked to help eliminate corruption within the VA so that our veterans receive timely care as well.

He has proven himself as a leader on national security issues too. He understands the value of our alliances and worked to strengthen them, especially with Israel.

He has a clear-eyed view of our adversaries too and has never been afraid to speak out or take action, from North Korea to Iran. When it comes to Iran specifically, Senator KIRK was the tip of the spear on this issue, bringing attention to the threat of Iran's aggressive behavior and pushing for legislation to help hold Tehran accountable.

He has long been an advocate for critical Iran sanctions like those extended just this past week, even when the administration pushed back and even when Democratic colleagues pushed back too. He doesn't back down, and thanks to efforts like his, we were able to see the legislation through.

So, yes, Senator KIRK may be leaving the Senate, but he has cast a long shadow here. And he is not done yet. We know he will not stop looking out for our country. We know he will not stop advocating for stroke survivors. We know he is not going to stop. He will just keep going and going and going as he always has.

Senator KIRK reminds each of us that it is possible to persevere through even the most difficult of obstacles life presents. So, today, we thank him for the impact he has made on this body, for the inspiration he has been to so many, and for the years he has dedicated to serving the people of Illinois.

The PRESIDING OFFICER. The Democratic whip is recognized.

Mr. DURBIN. Mr. President, has the Chair announced the business of the Senate?

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

TSUNAMI WARNING, EDUCATION, AND RESEARCH ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the House message to accompany H.R. 34, which the clerk will report.

The senior assistant legislative clerk read as follows:

House message to accompany H.R. 34, an act to authorize and strengthen the tsunami detection, forecast, warning, research, and mitigation program of the National Oceanic and Atmospheric Administration, and for other purposes.

Pending:

McConnell motion to concur in the amendment of the House to the amendment of the Senate to the bill.

McConnell motion to concur in the amendment of the House to the amendment of the Senate to the bill, with McConnell amendment No. 5117, to change the enactment date.

McConnell amendment No. 5118 (to amendment No. 5117), of a perfecting nature.

Mr. DURBIN. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

DEPARTING SENATORS

Mr. DURBIN. Mr. President, let me say at the outset that I took the floor last week and said a few words in tribute and friendship to my colleague, Senator KIRK. I am glad to hear the majority leader's statement this morning. It was spot-on, and it captured his public spirit, as well as his personal strength, that has brought him to this moment in history. I have been honored to serve with him for the last 6 years.

I would say to my colleague Senator COATS from Indiana: We served together in the House, in the Senate, and I actually visited him when he was an ambassador representing the United States in Germany. It is an amazing public career on his part, and I wish him the very best for whatever the future holds for him.

DACA

Mr. President, I wish to tell a story about an extraordinary young woman whom some of you may know. Her name is Laura Alvarado. When she was 8 years old, Laura was brought to the United States from Mexico. She grew up in Chicago in my home State of Illinois.

In high school, she was an extraordinary student and was involved in extracurricular and volunteer activities. She was a member of the National Honor Society. She played soccer, tennis, basketball, and was a member of student government, the school newspaper, the chess club, the yearbook club, and many more. She decided to go to Northeastern Illinois University. She worked two jobs while she was going to school because she didn't qualify for any Federal assistance to go to college.

In 2006, she graduated with honors from Northeastern. Her major was justice studies. But then she was stuck

again. Her ambition in life was to become a lawyer, but she couldn't pursue her dream. It took her 6 years. In 2012, President Obama established DACA, an Executive action which said to Laura and thousands just like her: You are in a special category. You were undocumented in America, but you were brought here as a child. You didn't make the decision to come to this country; your family did. So we are going to give young people like Laura a chance, on a temporary basis, if they will pay a filing fee of almost $500, submit themselves to a criminal background check to make certain they are no threat to anyone in this country, we will give them a 2-year status where they cannot be deported and they can work in America.

Laura applied. There were people who were cautioning her: Be careful. If you identify yourself as undocumented to this government, somebody might use it against you someday. But Laura, who aspired to be a lawyer, decided to follow the law, register, pay her fee, go through the background check, and try to get the status of DACA. She received it. And because of it, she was allowed to apply and be accepted at Southern Illinois University School of Law at Carbondale.

In law school, she was an outstanding student again. She won the moot court competition. She was selected for the Order of Barristers, a legal honor society.

This spring, 10 years after she graduated from college, Laura received her law degree. Over the summer she passed her bar exam, and just last month she received her Illinois law license, which she is holding here proudly.

Laura never gave up on her dream of becoming a lawyer, but it is a dream that never would have happened were it not for President Obama's Executive action, the Executive action that didn't give her a free pass to law school—just the opposite. It said to her: If you are accepted into law school, the government will not pay you a penny to help with your education. You have to go out and work for it. She did.

Now we face a question with a new President coming in who says he wants to abolish the DACA that made Laura eligible to go to law school. He wants to abolish the status where these young people, brought as babies, toddlers, into this country are not subject to deportation and can work for a living. If that is abolished, then Laura, despite all of her hard work, all of her education, all of her achievements in life, faces deportation from this country.

Laura said she wants to use her law degree to help people who don't have a fighting chance without lawyers who are more focused on service than on money. We are better if Laura is here as a lawyer practicing in America. We are certainly better in Illinois to have someone with a law license willing to give back to our State.

Now the choice is up to Congress. Are we going to step in and give Laura the chance she asked for to prove herself again as she has so many times in her young life? I am glad to say that LINDSEY GRAHAM, the Senator from South Carolina, and I are joining in an effort to draw up legislation to achieve that goal and at least to give these DACA-eligibles a temporary reprieve so that if there is an elimination of this Executive action, we don't eliminate the protection that keeps them here in the United States and where they cannot be deported and they have a chance to work. That is something we need to do—not just for Laura but for 744,000 other young people as well who grew up in this country and just deserve a chance to make this a better nation.

TRIBUTE TO BARBARA MIKULSKI

Mr. President, I join my colleagues in saluting the public life of Senator BARBARA MIKULSKI. Before I do that, I want to thank a woman who is not here. She was a Catholic nun and the debate coach for Senator MIKULSKI when she was in high school at the Institute of Notre Dame, an all-girls Catholic high school in Baltimore, the same school NANCY PELOSI graduated from.

As a young BARBARA MIKULSKI was preparing to debate a particularly tough opponent, this nun, her debate coach, told her: ''You can do it, Barb—get out there and roll those Jesuit boys!''

I went to a Jesuit college and law school, and I am proud and relieved to report that I never had to face BARBARA MIKULSKI in that kind of debate. I have rarely found anybody who can stand up to her in a debate. She can still ''roll those Jesuit boys,'' or anyone else who tries to stand in the way of helping women, children, seniors, or advancing fairness.

BARBARA MIKULSKI has been my colleague for 20 years, my friend, the chairwoman of my Appropriations Committee and the ranking member, and so many times an inspiration.

As most of my colleagues know, my first job was working in the Senate as an intern, myself, in the office of Senator Paul Douglas of Illinois. Like BARBARA MIKULSKI, Paul Douglas was a champion for the underdog, and he was a pit bull when it came to protecting the American taxpayers.

Every year, the University of Illinois chooses a leader of uncommon decency and courage to receive the Paul H. Douglas Award for Ethics in Government. This year, I was honored to present that award on behalf of the University of Illinois and in the name of Paul Douglas to BARBARA MIKULSKI of Maryland. I know Senator Douglas would have been thrilled that she is carrying on that same public service tradition.

Some day—and I hope and trust I will live to see it—the ultimate glass ceiling will break, and there will be a woman elected President of this country. When that historic day comes, we can be sure that Senator BARBARA MIKULSKI will have had a hand in bringing it about.

Many of my colleagues have spoken about the long list of times she has already broken glass ceilings herself: BARBARA MIKULSKI, first woman ever elected statewide in her beloved State of Maryland; BARBARA MIKULSKI, first Democrat elected to both the U.S. House and the U.S. Senate; BARBARA MIKULSKI, first woman to ever serve as head of the powerful Senate Appropriations Committee.

But as BARBARA, very self-deprecating, has often said: She has never been interested in simply being the first. She wants to be ''the first of many,'' and she has been.

When Maryland voters sent BARBARA MIKULSKI to this Senate in 1986, there were two women in the entire body: Nancy Landon Kassebaum of Kansas, a Republican, and BARBARA MIKULSKI of Maryland, a Democrat—two women in this Chamber out of 100 Senators. Today, there are 20 women Senators, and after they are sworn in on January 3, there will be 21. That is great progress, but not nearly enough by BARBARA MIKULSKI's standards.

Senator MIKULSKI also had the brainchild of making sure the women in the Senate became an even more powerful force. Her bipartisan, women Senators-only dinners were a rare display of bipartisanship in an institution too often divided. The discoveries of common cause, common trust, and common purpose resulting from those dinners have made a big difference on the floor of the Senate.

BARBARA ANN MIKULSKI is the proud granddaughter of Polish immigrants. Her parents owned a small grocery store in Baltimore. She, her parents, and her two younger sisters lived across the street in one of the famous Baltimore row houses. As a young girl, Barbara thought about becoming a Catholic nun. She changed her mind because, as she put it, ''that vow of obedience kind of slowed me down a bit.'' So she found other ways to practice the social gospel of justice.

She was a driving force behind the first bill signed by President Barack Obama, the Lilly Ledbetter Fair Pay Act. I was there that day. The President signed the bill, and he took the first pen from the first bill he was signing and handed it to BARBARA MIKULSKI because he knew that she had been a champion for equality in the workplace for women throughout her career.

There are two stories that I always think of when I think of Senator MIKULSKI.

In October 2002, the Senate voted on whether to authorize the war in Iraq. Only 23 of the 100 Senators then serving voted against the Iraq war resolution. Of those 23 Senators, only 8 still remain in the Senate today: BARBARA BOXER, who is leaving at the end of this Congress, PATRICK LEAHY, PATTY MURRAY, JACK REED, DEBBIE STABENOW, RON WYDEN, BARBARA MIKULSKI, and

myself. This is a woman who has always been willing to risk her career to follow her conscience.

One of her great heroes is Dorothy Day, founder of the Catholic Worker Movement. The reason, BARBARA MIKULSKI says, is that Dorothy Day was always ''trying to find the hopes of people,'' rather than preying on people's fear and anger.

I saw BARBARA MIKULSKI's instinctive appeal to hope on that infamous sad day—September 11, 2001. As dust was settling on that heart-wrenching, heartbreaking day, most of the Members of the Senate gathered on the steps of the Capitol. The hope was that there would be a demonstration by Members of both parties to the Nation and to the world of solidarity. Suddenly—unplanned, unscripted—BARBARA MIKULSKI started singing ''God Bless America.'' Everyone joined in. In one of America's darkest hours, BARBARA MIKULSKI brought us together. That is what a real leader does.

I and so many in the Chamber and so many untold millions of Americans are going to miss her presence in the Senate. We take consolation in knowing that, while she is leaving the Senate, she is not leaving the fight. She will never leave the fight.

Those of us who are returning in the next Congress have learned from Senator MIKULSKI, and we will continue to fight the good fight to invest in lifesaving, job-creating medical breakthroughs at the National Institutes of Health—or, as BARBARA MIKULSKI calls it, the ''National Institutes of Hope.'' We will continue the good fight she has fought with such pithiness and passion to make our Nation safer and make our economy fairer for all Americans. I know that she will continue that fight as well.

BARBARA MIKULSKI may be leaving the Senate, but no one ever has, and I doubt anyone ever will, think of Baltimore's BARBARA MIKULSKI as ''retiring.''

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mrs. FISCHER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

HONORING NEBRASKA'S SOLDIERS WHO LOST THEIR LIVES IN COMBAT

Mrs. FISCHER. Mr. President, I rise today to continue my tribute to this generation of Nebraska heroes. They are the men and women who have given their lives defending our freedom in Iraq and Afghanistan. Each one has a different story, and each Gold Star Family has the same request: that we remember the sacrifice of their loved one. By telling these stories of their service here on the Senate floor, we can honor that family's request.

SERGEANT GERMAINE DEBRO

Mr. President, today I honor the life and service of Germaine Debro, a man who seemed destined for military service. Germaine's father, Alvin Debro, was a career Air Force technical sergeant. At a young age, Germaine even picked up a nickname: ''G.I. Joe Maine.'' Even then, family and friends saw qualities that would make Germaine a great soldier. Because of his military service, Alvin and his wife Priscilla and their three boys moved often.

Germaine attended Benson High School in Omaha, NE, for a year before his family moved to Arkansas. There, Germaine graduated high school in 1991. Later, he and his family returned to Nebraska. For a time, Germaine worked as a manager at the local Burger King.

In 1994, G.I. Joe Maine followed his calling and he enlisted in the Army. In 1997, he joined the Nebraska National Guard. During those years, Germaine became known for his genuine personality and for developing a great camaraderie with his fellow soldiers. According to SPC Shawn O'Neil, Germaine was the ''nicest guy you could ever meet.'' He would walk into a room and it would light up. To his battle buddies, SPC Germaine Debro was affectionately known as DB. His dedication to his fellow soldiers was obvious. Being single, Germaine volunteered for assignments so that married soldiers might remain at home with their families.

Germaine deployed to Kuwait in 2001 and to Bosnia in 2002. In 2005, he learned that his unit, the 1st of the 167th Cavalry of the Nebraska Army National Guard, would deploy to Iraq. Germaine would be assigned to Troop B. Germaine's family was anxious about him deploying again, but Germaine would not let his Army brothers go without him. In the end, his family supported his decision.

In explaining how his fellow soldiers felt about Germaine, SGT Josh Graft put it simply: ''He was like a Dad to all of us.''

After a year of training, the 1st of the 167th Cavalry arrived in Iraq in early 2006. That is when the Sunni-Shia civil war erupted. In February, the al-Askari mosque was bombed and Iraq was plunged ever deeper into sectarian violence. American forces had come to enforce peace; they found themselves engaged in intense wartime operations. Germaine's unit was right in the thick of it. Enemy attacks were frequent. Tensions were high.

On September 4, 2006, a 20-truck convoy headed out from a site 30 miles north of Baghdad. In the United States, Americans were celebrating Labor Day with barbecues, sporting events, and family gatherings. In Iraq, Germaine was driving a humvee, providing advanced security for the convoy. Thirty miles outside of Baghdad, Germaine's humvee struck an improvised explosive device. The vehicle was spun several times before erupting into flames. SGT Josiah Warren, riding in the right seat, tried unsuccessfully to pull Germaine free. Germaine Debro died on September 4, 2006.

At Iraq's Camp Anaconda, members of the Nebraska Army National Guard assembled to honor the man who had cared so deeply for them.

On September 18, 2006, the Morning Star Baptist Church near downtown Omaha was filled with people paying a final tribute to Germaine Debro. Outside, 110 patriot riders stood guard.

Germaine's brother, Maurice, read from a letter Germaine had written to him. In it, his brother offered some advice: ''If you don't take a risk, then you'll never know what happened.''

''That was my brother,'' said Maurice. ''He was a loving, caring person.''

Germaine Debro was promoted posthumously to the rank of sergeant. His military decorations included a Bronze Star and a Purple Heart. SGT Germaine Debro is survived by his father Alvin, his mother Priscilla, and his brothers, Alvin, Jr., and Maurice. He is a true Nebraska hero. I am honored to tell his story.

I yield the floor.

The PRESIDING OFFICER (Mr. FLAKE). The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I ask unanimous consent to speak for up to 20 minutes as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

CLIMATE CHANGE

Mr. WHITEHOUSE. Mr. President, I rise today for my 151st ''Time to Wake Up'' speech on climate change. I have covered many topics during these speeches—from pulling back the veil on the fossil fuel industry's web of denial to sharing my visits to States from New Hampshire to Florida to Utah to see the effects of climate change there firsthand. But one recurring theme of my speeches and in the scientific literature has been the warning that the effects of climate change will hit home first and hardest along our coasts.

The oceans have soaked up more than 90 percent of the excess heat that has been trapped in the atmosphere by greenhouse gasses. That is a lot of heat. The Associated Press has compared the ocean heat we have added since 1997 to a, ''Hiroshima-style bomb being exploded every second in the ocean for 75 straight years.''

That excess energy is warming our oceans at alarming rates, and by the principle of thermal expansion, we know that when water warms it expands. That, coupled with the melting ice sheets, is driving up sea levels worldwide. For my Ocean State that is a big deal. Warming and rising seas carry real consequences for coastal economies.

New England is being hit particularly hard on this front. The Gulf of Maine is warming faster than almost any other part of the ocean in the world. Narragansett Bay, in my home state of

Rhode Island, has already seen a nearly 4-degree Fahrenheit increase in winter water temperatures since the 1960s. Since measurements started in 1930, sea level is up nearly 10 inches at the tide gauge at Naval Station Newport.

Now, 10 inches may not sound like an enormous amount, but if you do a little mathematics and take that 10 inches and you multiply it by the 147 square miles that Narragansett Bay occupies, that adds nearly 100 million cubic meters of water offshore—throw weight for when the next storm comes.

Now, we don't model storm surge very well yet. But there is a lot of potential harm for Rhode Island. If you look not just at Narragansett Bay but at Rhode Island State waters, it is more than 500 million cubic meters, which is more than 500 million metric tons of potential storm surge.

Earlier this year, researchers published in Nature an updated estimate of global sea level rise. With new estimates of how melting Antarctic sea ice will contribute to sea level rise, the scientists were able to paint a more accurate picture of what lies ahead. It is not good news.

The Intergovernmental Panel on Climate Change had previously estimated sea level rise to reach between 1.7 and 3.2 feet by 2100. The new study doubles that estimate, putting global sea level rise over 6 feet by the end of this century.

To complicate matters more, as Antarctica loses ice and consequently mass, it will actually also affect the gravitational pull of the Antarctic on the oceans. With Antarctica's gravitational pull reduced, other continents will proportionately carry more gravitational clout, drawing even more ocean water away from the South Pole to their coasts.

Ben Strauss, the director of Climate Central's sea level rise program, recently told the Washington Post:

[T]he 22nd century would be the century of hell. There would really be an unthinkable level of sea rise. It would erase many major cities and some nations from the map.

A study published in the ''Proceedings of the National Academy of Sciences'' last month looked at the effects of rising seas on more than 100 coastal cities around the world. The study predicts that we will hit 2 degrees Celsius of average global warming, which scientists say brings catastrophic and irreversible climate effects, sometime between 2040 and 2050.

When that happens, over 90 percent of the world's coastal areas will experience almost 8 inches of further sea level rise. On the Atlantic coast of the United States, it is estimated to be more than 15 inches. If we continue emissions unabated and hit 5 degrees Celsius warming by 2100, New York City could see over 3½ feet of seawater swamping its streets.

The year 2040 is not that far away. If you buy a house on the coast today, 2040 would fall well within your typical 30-year mortgage. As you might imagine, the real estate business is starting to take notice. Zillow, the online real estate marketplace, has looked at how 6 feet of sea level rise by 2100 would affect over 100 million U.S. homes in its database. Around 1 in 50 homes in the United States, or just under 2 million properties, would find their ground floors underwater by 2100.

Thirty-six U.S. cities would be considered completely lost, and another 300 cities would lose at least half of their homes. Florida fared the worst in the study, losing more than 12 percent of the State's housing to sea level rise. Hawaii is not far behind, with over 9 percent of its homes expected to go underwater. Though New Jersey's overall housing situation fares somewhat better, with a loss expected at just over 7 percent, the value of those homes well exceeds any other State. New Jersey alone accounts for over 10 percent of the $882,000,000,000 worth of potentially underwater properties.

Miami Beach would be the hardest hit city, losing over 37,000 homes, worth over $33 billion. Those numbers just count residential properties, not expected losses to commercial or public properties. The insurance industry uses the term ''100-year flood'' to describe a flood that has a 1-percent chance of occurring in a given year. According to a 2013 study commissioned by the Federal Emergency Management Agency, the area in the United States susceptible to 100-year floods will grow by 45 percent by the end of the century. Our Government Accountability Office says Federal flood insurance premiums are not keeping pace with that growing risk.

From 2002 through 2013 already, taxpayers bailed out insured properties to the tune of $18 to $25 billion. Government-backed mortgage giant Freddie Mac is preparing itself for broad losses from climate-driven flooding. ''The economic losses and social disruption may happen gradually,'' says its Web site, ''but they are likely to be greater in total than those experienced in the housing crisis and the Great Recession.''

Let me say that again: ''They are likely to be greater in total than those experienced in the housing crisis and Great Recession.'' Some of the effects of climate change, it says, may not even by insurable. Unlike the 2008 housing crash, owners of homes that are subsumed by rising seas would have little expectation of their home's value ever recovering. Therefore, they would have little incentive to make their mortgage payments, which would add to steep losses for lenders and insurers.

We don't, of course, have to wait until 2100 to see the effects of sea level rise on coastal cities like Miami, Charleston, Norfolk, or Newport, RI. So-called sunny day flooding is increasing in coastal communities. As sea levels rise, regular high tides can be all that is needed to flood streets, sidewalks and basements. NOAA estimates that non-storm-related nuisance flooding, just from tides and sea level rise, has increased somewhere between 300 to 925 percent along the United States' three coastlines since the 1960s.

This past October's King Tides—the year's highest tides—brought around 2 feet of water to Boston's waterfront. Last month's Super Moon pulled water into the streets of Charleston and the parking lots of New Hampshire. This wayward octopus—I don't know if you can see it clearly, but there is a fairly good-sized octopus here—ended up swimming through a Miami parking garage.

These extreme high tides give a preview of what may be the new normal in this century. Higher seas plus stronger storms forebode real catastrophe for coastal communities. The Great New England Hurricane of 1938 is the worst in Rhode Island's history. A storm surge of 12 to 15 feet hit Narragansett Bay, engulfing downtown Providence. You can see old photographs of the streetcars with just their roofs showing over the water.

If that storm hit again today, it would have a big head start, riding to shore on 10 more inches of sea with that potentially 500 million metric tons of water available for storm surge. Again, we don't know how much of it becomes storm surge, but it certainly raises the potential.

This picture is from historic Newport after Superstorm Sandy gave us a glancing blow in Rhode Island in 2012. It brought a storm surge of over 9 feet to Providence, and over 4 feet to the south coast of the State. This is downtown Newport and Seamen's Church Institute right here, and somebody is kayaking through downtown.

According to the most recent report from the National Ocean Economics Program, more than 134 million people lived in U.S. coastal zone counties in 2014. Those counties accounted for nearly half of the total U.S. GDP and more than 40 percent of total U.S. employment. In my State of Rhode Island, the coastal economy accounts for $55 billion of the State's GDP and employed over 400,000 people in 2014.

This productivity is at risk if those communities and their businesses cannot protect themselves from the consequences of our changing environment. A lot of places are taking this threat seriously. Although partisans in the State government make the phrase ''climate change'' a taboo in Florida, local policymakers, particularly in South Florida, are making climate change adaptation a priority, forming a regional bipartisan compact on climate resiliency, hiring resiliency and sustainability staff, building seawalls, installing pumps, updating building codes, and in Miami Beach's case—just in that one city—making $400 million in storm water management upgrades.

In New Hampshire, the Coastal Risks and Hazards Commission has advised cities to prepare infrastructure and buildings for rising seas. Louisiana rewrote its Coastal Master Plan to accept the dark predictions of land loss

and sea level rise facing that lowland State and to include around 200 projects designed to protect Southern Louisiana's marshes and limit the effects of storm surge.

In Alaska, Native villages are seeking financial support to relocate their traditional coastal homesteads to higher ground. In Rhode Island, under the leadership of Grover Fugate at our Coastal Resources Management Council and in cooperation with the leading experts at the University of Rhode Island, Rhode Island Sea Grant, and Rhode Island Geological Survey, we are well aware of what climate change, sea level rise, and storm surge mean for our coastal communities.

STORMTOOLS, a free public online tool developed through this collaboration, is providing our city planners and concerned citizens with a visualization of the effects of various levels of sea level rise and storm surge on their properties. The Coastal Risk Environmental Index, which is shown here, will add even more specificity to the models working in STORMTOOLS. Users can actually navigate Google Earth to see what flood damage from sea level rise and storm surge will look like on a building-by-building basis. The city of Warwick, RI, featured here, is already using its maps in its future planning and emergency planning.

The rising tide calls for increased investment in coastal resiliency around the country. Senators MERKLEY, MENENDEZ, and I asked the Government Accountability Office to review the National Oceanic and Atmospheric Administration's support for coastal States' resilience efforts. Among its findings, the GAO report said that the Regional Coastal Resilience Grants Program ''received 132 qualified applications requesting a total of $105 million during its first application period in fiscal year 2015.'' Well, guess how much money was available to meet that $105 million approved or qualified need. Only $4.5 million. NOAA was able to support less than 5 percent of the coastal States' demand.

Climate change doesn't care whether you believe the science or the propaganda and nonsense pumped out by the fossil fuel lobby—shoreside homes' basements will flood either way. It is not a matter of belief, it is a matter of physics.

For all the denial and diversion, you will notice that the fossil fuel industry's web of denial groups don't talk much about the effects we are seeing in our oceans and along our coasts. Their business is denial and, through calculated misinformation, creating phony doubt. That is their mission. If that is your mission, it is hard to deny water levels that are measured essentially on a glorified yardstick at tide gauges. It is hard to deny measurements from a Ph test that high schoolers do in their science classes. It is hard to deny readings from thermometers.

Here in the Senate, our choice is clear: We can take action or continue to sleepwalk through history. But we should remember Pope Francis's warning. Pope Francis said: ''God always forgives, we men forgive sometimes, but nature never forgives. If you give her a slap, she will give you one.'' And we have a big slap coming.

If we do nothing, what will we tell the millions of Americans who live by the sea and rely on it for their livelihoods? What should we tell them when they can't get insured for the next hurricane or when their mortgages are underwater in a literal sense? If we refuse to help our own citizens, who then will help the millions of others in developing countries around the world suffering the same fate and looking to our country for leadership? We have a moral obligation to pluck our heads from the sand and get to work. The oceans warn; it is time we woke up and listened.

I yield the floor.

The PRESIDING OFFICER. The majority whip.

JUSTICE FOR ALL REAUTHORIZATION BILL

Mr. CORNYN. Mr. President, it is my honor to come to the floor with the senior Senator from Vermont, my friend Mr. LEAHY, to talk about bipartisan legislation that will soon help victims of crime restore their lives. The Justice for All Reauthorization Act passed the House last week, and the Senate followed suit with unanimous support. Now it is on its way to the President's desk so it can become the law of the land.

When I served as the attorney general of Texas a few years ago, I felt that one of my most important jobs was to protect crime victims. I know that all Members of the Senate feel the same way. The Justice for All Reauthorization Act is first and foremost a bill that will help victims. It includes a number of provisions to help them get the justice they deserve. It will improve victims' rights by increasing access to restitution, reauthorize programs that support them in court, and increase resources for forensic labs to reduce the rape kit backlog.

I have spoken about the rape kit backlog before, and it is a big problem. At one point, it was estimated that there were as many as 400,000 untested rape kits in America, and this was due primarily to a lack of resources and lack of focus in making this a priority. This is evidence which has proven to be enormously powerful to help convict the guilty and exonerate the innocent.

This legislation will also give law enforcement more resources to keep violent offenders off the street and fairly prosecute crimes.

I know sometimes people must think Senator LEAHY and I are the odd couple of the Senate. We worked together not only on this legislation but also on reforms of the Freedom of Information Act. We share a passion for that topic as well. I am enormously grateful to him for his partnership on this important legislation. I also wish to thank Senator GRASSLEY for his leadership in helping to shepherd this bipartisan bill through the Judiciary Committee.

I am looking forward to the Justice for All Reauthorization Act becoming law soon so we can help more victims restore their lives.

I yield to the senior Senator from Vermont.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. Mr. President, I thank the distinguished senior Senator from Texas. Senator CORNYN and I have had the privilege of being prosecutors, he as an attorney general and I served as the State's attorney. I think you get a special view of what is needed. I have enjoyed working with the Senator because we do not have to paint a great picture for each other; we both understand the mistakes that can be made and why we do not want them.

For more than 6 years, I have championed the reauthorization of the Justice for All Act. I want to ensure that our criminal justice system lives up to our national pledge of liberty and justice for all. Having served as a prosecutor—and most former prosecutors—I am committed to ensuring that our criminal justice system has the integrity and confidence of the public it serves. I should not just say former prosecutors; current prosecutors feel that way.

From my time on the frontlines as a State's attorney in Chittenden County, VT, to the more than 15 years I have served as either chairman or ranking member of the Senate Judiciary Committee, it has become clear to me that our system is deeply flawed. There is not always justice for all. I have met many innocent people wrongly convicted of crimes they did not commit.

I shared the story of Kirk Bloodsworth. He was falsely convicted. He was sentenced to death for the rape and murder of a 9-year-old girl—a horrible crime, but he maintained his innocence. In 1993, he became the first death row inmate to be exonerated by DNA, and they were finally able to charge the man who did commit the horrible crime. The irony there is that some have said: Boy, don't they look alike? That is what happened.

We know our system gets it wrong. We have a responsibility to improve our criminal justice system. That is why I joined with Kirk Bloodsworth years ago to introduce and enact the Post-Conviction DNA Testing Grant Program. It was originally part of the Innocence Protection Act, which was enacted in 2004. It gives defendants like Kirk a chance to prove their innocence.

To ensure our justice system gets it right from the beginning, the bill provides a means to improve the quality of indigent defense. Ensuring good representation for those accused of crimes means fewer innocent people will be behind bars. It is an outrage if an innocent person is wrongly punished, but then that injustice is exacerbated because it means the person who committed the crime is still out there, and

oftentimes, as my friend from Texas knows, they will commit the crime again. The American people deserve a system that gets it right the first time.

Many Senators in this Chamber know the story of my friend Debbie Smith, also a friend of the senior Senator from Texas. She has become a champion for victims of sexual assault. She waited 6 years after being attacked before her rape kit was tested and a culprit was caught. Think about that. During those 6 years, she had to live in terror that the person who did this heinous crime might come back and do it again. No one should have to live in fear while an attacker remains free to victimize someone else or them.

This legislation not only provides important resources to improve the quality and efficiency of forensic testing, but it also expands it to underserved populations, such as those in rural areas, which is much of my State. Actually, every one of us has rural areas in our States.

I have worked with Senators on both sides of the aisle to craft solutions to some of the most significant issues of our time. That is why I am proud to partner with Senator CORNYN on this important legislation.

I hope we will continue to work together in the next Congress. We have to continue to protect all victims. We have to create fairness in our criminal justice system. We have to make sure we get it right the first time.

I call on those who have worked with me on this important legislation to continue to support our efforts. We can correct costly mistakes in our criminal justice system; we will be a better country for it. We will have a lot more respect for our criminal justice system, and we will do what the best of our prosecutors and police want to do—get it right.

I yield the floor.

The PRESIDING OFFICER. The majority whip.

Mr. CORNYN. Mr. President, I again wish to express my gratitude to the senior Senator from Vermont, Senator LEAHY, for his critical role in making sure this legislation becomes law, and I look forward to continuing to work with him on similar topics in the future.

LEGISLATION BEFORE THE SENATE

Mr. President, we are about a week into the lameduck session, and we have already tackled some pretty significant legislation.

Last week, I was proud to see two bills that I introduced pass the Chamber. The first was the Cross-Border Trade Enhancement Act, a bill that will help staffing, safety, and efficiency at our ports of entry, and it passed the Senate unanimously.

In Texas, as the Presiding Officer knows in Arizona, this is not a new concern. Some of our border communities have seen the infrastructure and the staffing prove to be inadequate at our legitimate ports of entry, with a negative impact not only on the environment, as cars stack up to cross the border, but it also provides an unnecessary drag on legitimate trade and commerce.

Through the use of innovative public-private partnerships, we have seen that we can increase staffing, improve the infrastructure, and basically end up filling the gap left by the Federal Government not doing its job by dealing—as it, of necessity, must—with our international borders and making sure they work as they should. This is a good step in the right direction, and I am hopeful we can get the legislation to the President's desk in the coming days so that more ports of entry throughout the country can take advantage of its benefits.

Senator LEAHY and I just spoke about the Justice for All Reauthorization Act, and then last night this Chamber voted to move the 21st Century Cures bill forward with—incredibly—85 Senators voting in favor of it. It passed the House overwhelmingly last week, and I look forward to getting it through the Chamber and to the President's desk as soon as possible. This legislation will play an important role in supporting our scientists and researchers working to find cures for diseases like cancer, and that includes resources that will support the Cancer Moonshot Program, which will help those studying and researching to actually find a way to end cancer. That means cancer centers like the MD Anderson hospital will have more support to carry out their mission to make cancer history.

The Cures legislation will support research for Alzheimer's and help fight the opioid addiction that is running rampant through many parts of our country. In other words, this legislation is critically important to the health of our country now and for generations to come.

Significantly, the 21st Century Cures bill includes reforms to our mental health delivery system, in part, based on legislation I introduced in the Senate called the Mental Health and Safe Communities Act. As a result of the deinstitutionalization and treatment of people with mental illness in the 1990s, the safety net that was supposed to be there to catch people so they didn't fall through the cracks never came into being. So many people suffering from mental illness simply live on our streets as homeless individuals or they are frequently fliers, so to speak, in our criminal justice system and in many instances never had their mental illness diagnosed, much less treated, so they can actually have a chance at a better life. The mental health provisions included in the Cures bill is one way to correct that course. It would also help families with a mentally ill loved one find a path to treatment and a way forward, including assisted outpatient treatment programs.

One of the biggest challenges families have when they have a mentally ill family member—particularly when they are an adult—is getting them to comply with their doctor's orders and take their medication. Due to the miracle of modern pharmacology, many people with mental illnesses, if they are compliant with their medication, can lead very productive lives. Often there are additional tools that need to be available to family members when they find their loved one is getting sicker and sicker and not being compliant with their medication, potentially becoming a danger to themselves or to the community at large.

This legislation will equip State and local governments with better tools to assess individual health care needs so those suffering from mental illness in the criminal justice system can begin to recover and get the help they need, instead of getting sicker.

This bill also encourages the creation of crisis intervention teams so our law enforcement officers and first responders can know how to deescalate a dangerous confrontation. If a police officer comes to the scene of a call only to confront a mentally ill person, if they are untrained and don't know how to deescalate the situation, they may find themselves in danger, both the first responder as well as the individual person with mental illness. This is about finding ways to help the mentally ill individual get help while keeping the community safe at the same time.

Mr. President, the last bit of business we have is to fund the government. I said many times the best way to do that is to take the appropriations bills up one at a time so we can properly vet them, discuss them, and pass them. Our friends across the aisle had a different view this year and blocked the passage of individual appropriations bills. While it is not my preference, it is where we are. Right now, we are looking forward to passing a continuing resolution soon as we fulfill our important responsibilities to the American people.

I am glad to see we are making some progress on other pieces of legislation, including the Water Resources Development Act, a bill that will help us strengthen our waterways to account for growing trade and provide help for drought and flood protection.

Finally, we are working to finish the national defense authorization bill that will make sure Congress provides the resources for our military men and women so they can accomplish their missions and keep America safe.

We have quite a bit of work left to do and not much time left to do it in before the holidays, but with a little cooperation, I am sure we will get it all done.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Mrs. SHAHEEN. Mr. President, I am here, along with a number of my colleagues, to applaud the 21st Century Cures Act as a major milestone and a long-overdue initial investment in combating the opioid epidemic. In particular, I applaud the inclusion of $1

billion in funding over 2 years that will address this crisis. For treatment providers on the frontlines of the epidemic, I am pleased to say help is on its way with this bill when it is passed by the Senate—and I believe it will be.

Make no mistake, these resources are badly needed. This remains an uncontrolled epidemic and unfortunately is still gaining strength. A staggering 47,000 Americans died of drug overdoses in 2014—more Americans than died in car accidents. Sadly, in New Hampshire, we are a bull's-eye for the highest percentage of drug overdoses per populace of any State in the country so I am pleased this bill includes language to prioritize the allocation of these new resources to the most heavily affected States, and I intend to work with the current and incoming administration to get this funding out to States as quickly as possible.

More than a year ago, I introduced legislation to help stem the tide of the opioid crisis by providing emergency funding to States, first responders, and treatment providers. I joined with other Senators in working to include funding in the Cures Act to provide at least an initial infusion of funding to fight the opioid epidemic. I am relieved these efforts have led to the bipartisan agreement we will soon vote on.

Last month, the U.S. Surgeon General, Dr. Vivek Murthy, issued a landmark report and an urgent call to action. He said 21 million Americans have a substance use disorder—far more Americans than have cancer—yet only 1 in 10 is receiving any kind of treatment.

My State of New Hampshire, and New England overall, has been especially hard hit, but make no mistake, this is a nationwide epidemic, and it doesn't discriminate. It is impacting young and old, urban and rural, rich and poor, White and minority, Democrats, Republicans, and Independents.

This fall I met with Susan Messinger of Holderness, NH. Her son Carl experimented with heroin at a party and quickly became addicted. He got treatment, was in recovery, and was doing great, but he came down with a respiratory infection and was prescribed medicine that unknown to him, included an opioid—just simple cherry cough medicine. Carl relapsed, and he died of a fentanyl overdose days before his 25th birthday.

This chart entitled ''Drug Overdose Deaths Across America'' shows very vividly the extent of the problem. It was compiled by the National Center for Health Statistics at the Centers for Disease Control and Prevention. It shows the inexorable spread of the opioid crisis and the disease it causes from 2003, here where we don't see as much bright red, to 2008, where it is growing, to 2014, where it is almost the entire country. We can see that in the Presiding Officer's section of the country, in the Southwest, it is particularly challenging, as well as in the Appalachian region of the East. According to the CDC, mortality trends in the opioid epidemic are now similar to the trends in the HIV epidemic at its peak in the late 1980s and 1990s.

The second chart shows drug overdose deaths across New Hampshire. It shows a parallel spread of the opioid epidemic in New Hampshire, with especially devastating effects in the northern part of the State—what we call the north country. In 2003, we see no orange and no red. In 2007, we are beginning to see patches of orange. In 2011, they have turned red, and by 2014, it is particularly affecting the entire State, and here—the northern part of New Hampshire—is where it is hardest hit.

In his landmark report last month, the U.S. Surgeon General said: ''It is time to change how we view addiction—not as a moral failing but as a chronic illness that must be treated with skill, urgency and compassion.'' Yet what we are seeing in New Hampshire and across the country is that treatment centers are completely overwhelmed.

Certainly, the new funding in the Cures Act will be welcome news to Friendship House in Bethlehem, NH, which is a treatment center I visited on Friday. It is up here in the northern part of the State in New Hampshire's north country, which has one of the highest overdose rates per capita in New Hampshire. Friendship House is the only treatment center within a radius of 65 miles.

Back in April, Kaiser Health News reported on the case of Eddie Sawyer. Eddie overdosed and died while he was waiting for his turn to be admitted to Friendship House. When police found Mr. Sawyer, on the table next to his bed was a list of treatment facilities. There were checkmarks next to the name of each facility. Mr. Sawyer had called every place on the list, and he had not found one that could take him for treatment.

The Surgeon General's new report states that nearly 9 out of 10 people with substance use disorders do not receive treatment. They are being turned away. They are being denied treatment due to a chronic lack of resources. Hopefully, this legislation is going to help that because over the last year, I visited treatment centers in every part of the Granite State. These centers are staffed by skilled, dedicated treatment professionals. They are saving lives every day, but they tell me that for every life they save, others are being lost for lack of treatment capacity, facilities, and funding. When people with substance use disorders are turned away, this means they remain on the streets, desperate, often committing crimes to support their addiction and at constant risk of a lethal overdose.

Last year, a promising young woman named Molly Alice Parks died of a heroin overdose in Manchester, NH—New Hampshire's largest city. Her father wrote her obituary which appeared in the Union Leader newspaper. He wrote openly about Molly's addiction, and the obituary included this plea to readers: ''If you have any loved ones who are fighting addiction, Molly's family asks that you do everything possible to be supportive, and guide them to rehabilitation before it is too late.''

I admire the courage of Molly's father, his willingness to warn other families, and talk openly about his daughter's addiction, but what if a family persuades a son or daughter to seek treatment and no treatment is available? Sadly, that is the case in so many communities across America where treatment centers are overwhelmed.

That is why the additional resources in the Cures Act are so important. This new funding will make a real difference for treatment providers in each of our States. Make no mistake, this legislation will save lives. The funding in the Cures Act is a welcome initial investment in combating the opioid epidemic. President-Elect Trump, during dozens of visits to New Hampshire over the last year, pledged aggressive action to fight the opioid epidemic. When the new Congress convenes in January, we must come together with our new President, on a bipartisan basis, to address the opioid crisis in a comprehensive fashion, including continuing resources for policing, prevention, treatment, and recovery. As Surgeon General Murphy says, ''How we respond to this crisis is a test for America.'' With so many lives at stake, it is a test we must not fail.

With the 21st Century Cures Act, Congress is providing urgent new funding for treatment on the frontlines—professionals who have been doing truly heroic, lifesaving work. Our message in passing this legislation is: Help is on the way. I urge my colleagues to give strong bipartisan support to this important bill.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MANCHIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

COAL MINER HEALTH CARE BENEFITS AND PENSIONS

Mr. MANCHIN. Mr. President, I rise to explain what is happening for all of my colleagues and my friends on both sides of the aisle.

I have been here for 6 years as a Senator. I have always fought to make the body work, and for the people of West Virginia and for our country. I have never believed partisan gridlock is a way to accomplish our policy goals, so I haven't come to this decision easily. I have never used the procedure that I am using today, and I will use, to basically stop all UCs, a lot of good pieces of legislation, a lot of good friends who have worked diligently on this. I want to be able to work with them.

My reason for doing this is that over 2 years ago we promised the retired coal miners of America—we promised them—mostly their families, and there are a lot of widows now; we promised them they would have their health care benefits that were guaranteed to them and their pensions. We have been working toward that.

We knew this day would come. As of December 31, the end of this month—less than 4 weeks away—there are going to be 16,500 retired families, retired miners who are losing their health care benefits. There will be another 4,000 the first of next year.

So I am using this procedure, which I do reluctantly and I never thought I would have to, because we are fighting for those people whom we promised, fighting for those we believe in, to thank them for the power they have provided to this Nation. Now we are turning our backs on them.

We have pay-fors for this. We have a way to move forward. These are the health care benefits for our retired miners. It is something they have worked for, they have earned, they deserve, and we are the country we are because of the hard work they have done.

So I wanted my colleagues to know why this procedure is going to be a little bit more laborious than they would have liked, why we might not be leaving here when they would have liked to go home. If we don't stand for the people who have made our country as great as it is, we stand for nothing.

So with that, I hope my colleagues understand where I am coming from and why I hope they will be with me on this for the sake of all of these families and all of these widows and all of these miners who have given to much so our country.

Thank you.

I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, I wish to start by expressing my appreciation to all of my colleagues who have worked so hard on the priorities in the 21st Century Cures bill, including investing in tackling our hardest to treat diseases, confronting the opioid epidemic, strengthening mental health care, and advancing medical innovation.

The legislation that we will be voting on either really late tonight or tomorrow morning takes important steps to improve the care that patients receive.

I am very grateful to every Senator and Member of Congress who worked across the aisle to make this legislation the best it could be for those whom we serve. In particular, I want to express my heartfelt thanks to Vice President JOE BIDEN. Not everyone has the strength to respond to profound personal tragedy by doing even more to protect and help others, but that is exactly what he has done. I know we are all grateful for and inspired by his leadership, and I am confident it has given a lot of families hope, knowing that JOE BIDEN is fighting for them and their loved ones.

Of course, I want to acknowledge and thank the chairman of the HELP Committee, Senator ALEXANDER, for his work and leadership on this bill, as well as the Energy and Commerce Chairman FRED UPTON, Ranking Member FRANK PALLONE, and Congresswoman DIANA DEGETTE.

I am proud of our country's history of lifesaving public health initiatives and world-changing medical innovation. From eradicating smallpox to mapping the human genome, we have risen to challenges and found ways to combat seemingly unbeatable diseases and public health threats. There is no question we are a strong country for that.

The bill we are talking about today, while far from perfect, gives us the chance to build on that tradition of leadership and respond to some urgent health challenges we face right now. One of those is the opioid epidemic. Like many of my colleagues, I have heard from far too many families and local leaders in my home State about the ways that opioid use disorders are ruining lives and tearing families apart. My constituent Penny LeGate, whose daughter Marah died of an overdose at the age of 19, said that this crisis can happen anywhere and it is everywhere. That is the same thing I have heard from worried parents and sheriffs and community leaders across Washington State.

I was glad that earlier this year, the Senate passed the Comprehensive Addiction and Recovery Act to strengthen and improve programs that address opioid addiction. But, as Democrats made clear, improving policy wasn't enough. Tackling this crisis head-on requires putting new investments into these efforts as quickly as possible, and that is what this bill will do. It dedicates $1 billion over 2 years, above and beyond the budget caps, to help States and communities fight back. And critically, we were able to secure changes that ensure this money will go to States based on where it is needed the most.

Many of my colleagues were closely involved with this effort, but in particular I wish to recognize Senators WHITEHOUSE, SHAHEEN, BALDWIN, MARKEY, DONNELLY, and MANCHIN.

I have also heard from people across Washington State and the country about what a broken mental health system means for them and their families. One constituent whose experience has really stuck with me is Jenny. Jenny is from Olympia, WA, and she was pregnant when her husband began having severe psychotic episodes. Jenny told me that she remembered how striking the differences were between the coordinated, thoughtful care she received as an expectant mother and the confusing patchwork that she and her husband had to navigate to try to help him get better. Jenny's husband cycled in and out of the hospital without effective treatment, and tragically he took his own life while Jenny was in the NICU with their newborn baby.

Jenny's story is unfortunately one of many about families struggling to find quality mental health care for loved ones with mental illness. I am confident that everyone here today has heard these stories, and we know we have to do better.

Our legislation will help expand access to quality care for mental illness and substance use disorders by making it easier for patients to get in touch with providers. It will strengthen coordination between local agencies that are engaged in crisis intervention, and it will make sure that resources are available to strengthen the mental health workforce.

While we weren't able to resolve the IMD exclusion, which is a policy that makes it extremely difficult for States to provide inpatient care to those with mental illness and substance abuse disorders, this bill does change policy so that Federal funding will fully support the physical needs of children in psychiatric facilities.

It also puts in place measures to strengthen our mental health parity law to make sure that health insurance will cover mental health and addiction services when it is needed. Chairman ALEXANDER and I worked with Senators MURPHY and CASSIDY to move this legislation through our committee this year, and I wish to recognize their commitment and leadership on this issue in particular.

In addition to investing in and tackling the opioid epidemic and putting in place desperately needed reforms to our mental health care system, this legislation makes real investments in tackling the hardest to treat diseases. According to the National Cancer Institute at NIH, 40 percent of men and women in the United States will be diagnosed with some form of cancer in their lives. Right now, more than 5 million people are living with Alzheimer's. These are truly staggering statistics, and they represent enormous hardship and suffering and loss in nearly every family and community.

Now we have made enormous progress in understanding and treating cancer, and we know more about how the brain works and what diseases like Alzheimer's and Parkinson's and traumatic injuries do to human minds, but we can and must do more, and that is exactly what the investments in NIH in this bill will mean.

While this is not the mandatory funding we had hoped for, I want to be very clear: This is real funding. So $4.8 billion is paid for within this bill, targeted to specific NIH initiatives, and available to appropriators above and beyond the budget caps. That means, as a result of this legislation—and thanks, in particular, to the leadership and vision of Vice President BIDEN—we will be able to invest billions right

away in better understanding, preventing, and treating diseases that have impacted so many families.

This bill also ensures that those investments in research will benefit all Americans, including women and children, LGBT individuals, and racial and ethnic minorities.

This bill also puts $500 million above and beyond the budget cap toward helping the FDA meet the same high standards of patient and consumer safety in the face of increasing demands on the agency and new responsibilities under this legislation. As Democrats have made clear throughout this process, upholding the gold standard of FDA approval that patients and families across the country trust is a top priority.

In light of the antibiotic-resistant infections linked to contaminated medical devices called duodenoscopes in Seattle and across the country, it was particularly important to me to make sure that this bill strengthened the FDA's authority to require that medical device manufacturers ensure their products will remain safe after they have gone into repeated uses at our hospitals.

We also fought hard to move many of the other FDA reform policies that are included in this bill in the direction of greater patient and consumer safety. In particular, I was pleased that we were able to take out legislation that would have watered down transparency around drug and device industry payments to doctors, and I appreciate my colleagues on the other side of the aisle who were ultimately willing to work with us to make those changes.

Now, looking ahead to next year, I plan to monitor implementation of this bill extremely closely, with a focus on making sure the incoming administration adheres to the policies laid out in this bill and upholds the FDA's responsibility to patients and families to ensure our medicines and treatments are safe and effective. This standard has been critical to fueling biomedical innovation in America for over half a century. And while I am disappointed that Republicans were unwilling to take action on this legislation to tackle the high cost of prescription drugs, I am very glad we were able to remove expensive provisions that could have driven up costs for consumers even more.

While this bill is not what I would have written on my own, it is certainly not what my colleagues on the other side of the aisle would have written on their own, either. It locks in critical advancements ahead of the incoming administration and the partisan approach they are signaling they will take on health care, and it will make a real difference for patients and families across the country now and for years into the future.

Before I wrap up, I want to acknowledge the extraordinary time and effort put in by all of our staffs. There have been a lot of late nights and weekends for our staffs, not just this year but last year as well on this bill, and I want to take just a minute to recognize their extra effort and sacrifice.

On Senator ALEXANDER's staff, I want to particularly acknowledge and thank his staff director, David Cleary, as well as Mary-Sumpter Lapinski and Grace Stuntz, his health and FDA policy leads, who worked very closely with my staff over many months. I also want to acknowledge and thank Margaret Coulter, Brett Meeks, Laura Pence, Melissa Pfaff, Kara Townshend, and Elizabeth Wroe for their efforts on this bill.

In the House, I want to recognize and thank the staff of Congressman PALLONE, including his staff director, Jeff Carroll, along with Tiffany Guarascio, his health policy lead. I thank the staff of Chairman UPTON, particularly his staff director, Gary Andres, and Paul Edattel, his health policy lead.

In addition, I thank the staff of my members on the HELP Committee, who worked so closely with my staff to make this a reality. In particular, I thank David Bonine and Joe Dunn with Senator MURPHY.

I want to acknowledge the assistance of Amy Rosenbaum, Jeanne Lambrew, Kate Mevis, and Dr. Francis Collins, among many others within the administration who helped make today possible.

Finally, I want to close by thanking my staff. I can't say enough about my incredible staff, who have put their time and talents into this bill from the word ''go.'' In particular, I thank my staff director, Evan Schatz, and my health policy director, Nick Bath, for their extraordinary efforts on this legislation. Thank you.

I would also like to acknowledge the hard work of Remy Brim, Julie Tierney, Andi Fristedt, Colin Goldfinch, Melanie Rainer, Madeleine Pannell, Megan Howard, Elizabeth Wagner, Wade Ackerman, Kalah Auchincloss, Jane Bigham, Helen Hare, Eli Zupnick, John Righter, Nick McLane, and my chief of staff, Mike Spahn. I want you to know that I noticed their long hours and unwavering commitment on this legislation. It means a lot.

I urge my colleagues to join the House when we vote on this, which voted overwhelmingly in support of this bill—392 to 26—and to join us in sending this legislation to President Obama's desk.

Thank you.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. CRUZ). The Senator from Mississippi.

Mr. WICKER. Mr. President, before the distinguished Senator from Washington moves on to her other duties, I want to commend her and Senator ALEXANDER for the outstanding job they have done and for the long hours she and her colleagues on the HELP Committee have put in to making the Cures Act the reality that it will be in a few days.

I know the distinguished Senator is on her way to other meetings. I have a few things to say about it, but I want to express that before she leaves the Chamber.

Truly, as Senator MURRAY said, the 21st Century Cures Act is a world-changing piece of legislation. It seems rather quiet and unremarkable today, but I actually believe we are taking a major step toward disease cure and health care research that rivals the legislation which actually founded the National Institutes of Health some decades ago. So we are about important business here at Christmastime as we near the end of this lameduck session.

Senator BLUNT and I and perhaps other Senators were over in the Chamber of the other body last Wednesday afternoon when the House of Representatives passed the 21st Century Cures Act by an overwhelming bipartisan vote, 392 to 26. I appreciated the work House leaders did from top to bottom and on both sides of the aisle on this important legislation.

Of course, I am always pleased to visit my colleagues over there. A number of our House colleagues were over here last night when the Senate invoked cloture on the Cures Act by an overwhelming vote of 85 to 13. We will get to the vote either this afternoon or early tomorrow, and I have every confidence that there will be a strong vote on final passage.

The 21st Century Cures Act is the product of several years of bipartisan work in both Houses. My friend from Washington State gave a comprehensive overview of the legislation, which is indeed breathtaking. I wish to come behind her and mention what an accomplishment this is in three areas—first, in Alzheimer's research; second, in pediatric research; and finally, in the drug approval process.

I appreciate my friend from Washington and 62 others agreeing to take into this legislation the EUREKA Act, which I was happy to sponsor and which 62 of my colleagues cosponsored. EUREKA would and will initiate prize competitions in the fight against some of our Nation's most terrible diseases, including Alzheimer's. These prizes would pay only for success, and they would complement current funding that is and will be ongoing, according to the legislation. So this will be over and above what we are already doing for Alzheimer's. The Senator from Washington is correct about how costly Alzheimer's is. It will top $1 trillion in taxpayer cost by the year 2050 unless we get a cure or unless we achieve major goals with regard to stopping Alzheimer's. So it is an expensive disease—the most expensive disease in the history of this country—but it is also terribly expensive in terms of human suffering. I know many Americans, including my family, have been touched in a very terrible and dramatic way by Alzheimer's.

I am pleased that the EUREKA prizes are part of this legislation. I want to thank everyone who helped us in this regard.

I am thankful for the advice we got from the XPRIZE Foundation and from all of the Alzheimer's groups, including the Alzheimer's Association and UsAgainstAlzheimer's.

Thanks should also go to Dr. Francis Collins and the entire team at the National Institutes of Health for making this legislation work and for listening to a different idea—the concept of prizes for health care research—and giving it an attentive ear and being willing to agree that, in addition to the funding, we would attack these diseases with a prize competition.

The NIH funding in Cures includes additional dollars for the BRAIN Initiative, and these EUREKA prizes will ensure that our researchers have the tools they need.

Secondly, another important part of the NIH section of the Cures Act is the National Pediatric Research Network, inspired by the Pediatric Research Improvement Act that I was happy to cosponsor with Senator BROWN earlier this year. Senator BROWN and I have been working together tirelessly to see NIH implement the National Pediatric Research Network, and I am glad to see this provision in the bill. Very simply, the goal is to expand access to clinical trials and treatments for children, especially those with rare diseases. That is a second aspect of this Cures bill that I am so pleased to see the leadership of this committee being attentive to.

Thirdly, this bill makes major breakthroughs in the way we approve drugs in this country. I am pleased that language from another bill I cosponsored, the Patient-Focused Impact Assessment Act, was included in the bill. This section of the Cures bill would ensure that patients understand the way FDA considers the patient experience and the way FDA considers data in the drug approval process. So for patients like those living with Duchenne and their families, for people who are interested in the drug approval process, and for the parents of children, this is a truly bipartisan achievement.

I am happy that Senator MURRAY was here so I could congratulate her in person. Certainly Senator LAMAR ALEXANDER, chairman of our HELP Committee, deserves high praise from both sides of the aisle for his leadership in this regard, as well as the bipartisan leadership of the House of Representatives.

As we enter this holiday season, patients, advocates, and providers have an extra reason to rejoice as this bill heads to the President's desk.

Mr. President, I yield the floor.

ORDER FOR RECESS

Mr. WICKER. Mr. President, I ask unanimous consent that the Senate stand in recess, following the remarks of Senator CASEY, until 2:15 p.m. today.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. WICKER. Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTES TO DEPARTING SENATORS

Mr. CASEY. Mr. President, in the interest of time, I will limit my remarks.

I rise this afternoon to commend and salute three Senators from the Democratic caucus who are leaving the Senate this year. I will have longer written statements for the RECORD to appropriately pay tribute to their service. In alphabetical order, Senator BOXER of California, Senator MIKULSKI of Maryland, and Senator REID of Nevada.

BARBARA BOXER AND BARBARA MIKULSKI

I will offer some specific remarks about Leader REID, in the interest of time, but I do want to commend and salute Senator BOXER for her service to the people of California and to our Nation, as well Senator MIKULSKI for her great work—two great advocates, two individuals whom we are going to miss terribly here in the Senate. As I said, I will put longer statements in the RECORD.

HARRY REID

With regard to Senator REID, I can't help taking the time to say a few words about him in the remaining minutes we have before we break for the caucus lunches.

Mr. President, as many people know, Senator HARRY REID is a son of Searchlight, a small community in the State of Nevada, and he comes from humble beginnings. It is probably best to read his words about his beginnings rather than trying to describe or encapsulate them. Among many things he said about his background and his family, he said this, in short fashion, about his background:

> My dad was a hard rock miner. My mom took in wash. I grew up around people of strong values.

That is a direct quotation from HARRY REID about his background. I think those values have helped him his whole life. Those values, that work ethic, and that strength of character allowed him to go from Searchlight to rise up to become a leader in his home State of Nevada in many positions in State government, to be a Member of the United States House of Representatives, later to be elected to the United States Senate in 1986, and then, of course, to become the Democratic leader—and he remains so until the end of this Congress—but, of course, the pinnacle was his service as majority leader, one of the longest serving majority leaders in our history. That is kind of a summary of his positions in government, important though they are, leading a large and diverse caucus. It is a difficult job whether you are leading that caucus in the majority or leading it as the minority party. So we salute and commend his service to his home State of Nevada and to the people of the United States.

But maybe more important than just talking about positions he held is to talk for just a minute about who he is—a fighter. No person has fought harder for workers and for their families than HARRY REID. No Senator, no person I know in public life, has made that such a central part of who they are and a central part of their priorities, also, at the same time, being a fighter for those who often don't have a voice here—people who don't have power ever in their lives or often don't have power on a regular basis. They always had a friend in HARRY REID—someone who would go to the end of the Earth fighting on behalf of them.

Over and over in our caucus, he would say: We have to work on this issue, or we have to get this or that done for people who are hurting. There are so many different examples of that, which we don't have time to enumerate them today.

I am recalling today a great line from a great Democratic leader, William Jennings Bryan, who talked about the power of one individual to make a difference and the power of an issue or set of issues to drive that person's success in public life or even beyond public life, as a citizen. William Jennings Bryan once said: ''The humblest citizen in all the land, when clad in the armor of a righteous cause, is stronger than all the hosts of error.'' So said William Jennings Bryan about one citizen clad in the armor of a righteous cause.

HARRY REID is a Senator and he has been a leader, but he is also a very humble man at his core. His righteous cause wasn't just one issue, but if you had to encapsulate it or summarize it, the righteous cause for HARRY REID was fighting on behalf of those workers, fighting on behalf of those people who did not ever have power in their lives.

His ability to not just articulate their concerns and their struggles but literally their hopes and their dreams was one of the reasons why so many of us have such a high regard for him. We commend and salute his service. We appreciate his commitment to strong values, but we especially appreciate his steadfast support for those who needed his voice, who needed his work, who needed his votes, and needed his leadership.

To Senator REID, we say thank you for your service, thank you for what you did for your home State of Nevada, and thank you for what you did for the United States of America.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. CASEY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:33 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. ROBERTS).

TSUNAMI WARNING, EDUCATION, AND RESEARCH ACT OF 2015—Continued

The PRESIDING OFFICER. The distinguished Senator from Vermont is recognized.

VOTING RIGHTS

Mr. LEAHY. Mr. President, I thank the distinguished Presiding Officer, the Senator from Kansas.

An editorial this morning in the New York Times is entitled: ''Why Does Donald Trump Lie About Voting Fraud?'' This is the editorial of which I speak. That is a question that many of us who have been fighting for the right to vote have been asking for decades. In a bipartisan fashion, this Congress reauthorized the Voting Rights Act 10 years ago. During the course of many, many, many Senate and House Judiciary Committee hearings, we fought against the false narrative that in-person voting fraud was at all common in our country. The evidence clearly and irrefutably shows that it is not, but, of course, the evidence does not stop those who are determined to make it harder for Americans to cast their votes.

Right after five Justices on the Supreme Court gutted the core protection of the bipartisan Voting Rights Act, several States led by Republican majorities enacted voting restrictions that made it harder for many Americans to vote.

It is most troubling that our President-elect has decided to make an unfounded charge of widespread voting fraud. I can imagine that he is disappointed in the fact that he got 2.5 million less votes than his opponent and did not win the support of a majority of Americans who voted last month. We should all hope that when our next President is presented with unfavorable realities, he will not resort to spreading information that has no basis in fact. That cannot and should never be the standard of American leadership.

In an article published in the Valley News of West Lebanon, NH, and reprinted this morning in VTDigger, researchers at Dartmouth explored President-Elect Trump's allegation of widespread voting fraud, and they found nothing to support his claim, noting ''voter fraud concerns fomented and espoused by the Trump campaign are not grounded in any observable features of the 2016 Presidential election.'' Many other analyses have also made this crystal clear.

In a report to Congress, the Government Accountability Office concluded that ''no apparent cases of in-person voter impersonation [were] charged by DOJ's Criminal Division or by U.S. Attorney's offices anywhere in the United States from 2004 through July 3, 2014.'' That is the reality. The President-elect should not continue to peddle lies about voter fraud.

I say that because this year we have seen a dangerous uptick in what some call ''fake news.'' These articles have no basis of reality or factual evidence, but they are broadly circulated because they affirm a particular ideology or because they are a proven way to make a quick buck by drawing the attention of unsuspecting online readers. Fake news stories get attention and clicks. We saw what happened when a man walks into a pizza place in the District of Columbia where children often congregate and fires a rifle because of one of these fake news stories he had read.

Some consider this despicable propaganda to be harmless, but it is certainly not without its victims. We know that the spread of lies through fake news can have real-world consequences, even for the public's faith in the Republic itself. There is no doubt that this is the way Russia sees it.

In conclusion, it should not be too much to ask our elected officials to operate on facts and reality. We will have many debates over policy in the years to come, as we should, but Americans deserve leaders who refuse to peddle in lies for political gain.

I call on leaders from both sides of the political aisle to no longer defend the indefensible.

Mr. President, I ask unanimous consent that the New York Times editorial be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the New York Times, Dec. 5, 2016]

WHY DOES DONALD TRUMP LIE ABOUT VOTER FRAUD?

(By the Editorial Board)

The long-running Republican war against the right to vote has now gone national at the instigation of President-elect Donald Trump, who has promoted the lie that millions of illegal votes were cast in the presidential election.

There is not a scintilla of evidence for this claim, and Mr. Trump's own lawyers have admitted as much, stating in a court filing opposing a recount in Michigan that ''all available evidence suggests that the 2016 general election was not tainted by fraud or mistake.''

Yet one after the next, leading Republicans are spreading this slander of American democracy, smoothing the way to restrict voting rights across the country.

On Sunday, Vice President-elect Mike Pence told ABC's George Stephanopoulos that it was Mr. Trump's ''right to express his opinion as president-elect.'' When pushed to admit that the illegal-voting claim was not true, Mr. Pence shifted the burden of proof away from Mr. Trump, even though Mr. Trump has accused millions of Americans of committing a crime. ''Look,'' Mr. Pence said, ''I don't know that that's a false statement, George, and neither do you.''

Paul Ryan, speaker of the House, told CBS's ''60 Minutes,'' ''I have no knowledge of such things,'' before defending Mr. Trump's claims as ''giving voice to a lot of people who have felt that they were voiceless.'' (As recently as October, Mr. Ryan's spokeswoman noted that ''our democracy relies on confidence in election results'' and that Mr. Ryan was ''fully confident the states will carry out this election with integrity.'')

Reince Priebus, currently the chairman of the Republican National Committee and Mr. Trump's pick for chief of staff, told CBS's John Dickerson that ''no one really knows'' if millions of people voted illegally. ''It's possible.'' It's equally true that no one really knows for sure that Reince Priebus wasn't snatched away and replaced with a doppelgönger hatched by aliens—it's possible, isn't it?

This is how voter suppression efforts start. First come the unverified tales of fraud; then come the urgent calls to tighten voter registration rules and increase ''ballot security,'' which translate into laws that disenfranchise tens or hundreds of thousands of qualified voters.

That's already happened in Wisconsin and North Carolina, in Ohio and Texas, where Republican lawmakers pushed through bills requiring voter IDs or proof of citizenship; eliminating early-voting days and same-day registration; and imposing other measures. Virtually all these laws aimed at making voting harder for citizens who happen to be members of groups that tend to support Democrats.

While federal courts have struck down some of these laws, more keep popping up. In Michigan, lawmakers are pushing to fast-track a voter-ID requirement even though there was no evidence of voter impersonation there. In New Hampshire, the incoming governor, Chris Sununu, wants to do away with same-day registration, also despite the lack of any evidence that it resulted in fraud.

Reality is beside the point. Dallas Woodhouse, the executive director of the North Carolina Republican Party, recently told The New Republic, ''Whether there's widespread voter fraud or not, the people believe there is.'' It doesn't seem to matter to G.O.P. leaders that election officials around the country of both parties have confirmed that there was no fraud on Election Day. What matters to them, as strategists have long known, is that Republicans do better when fewer people vote.

Under a Trump administration, anti-voter efforts could become national in scope—through congressional legislation, a hostile Justice Department or a Supreme Court nominee with little regard for voting rights.

Undermining the integrity of the electoral process and making it harder to vote is threatening to all Americans, regardless of party. The cynical Republicans now in power figure that all they have to do is fool the public long enough to win the next election. It's outrageous, but it's hard to see why they would stop when lying has gotten them this far.

Mr. LEAHY. I yield the floor and thank my colleague.

The PRESIDING OFFICER (Mr. PORTMAN). The Senator from Kansas.

Mr. ROBERTS. Mr. President, I have some good news. Today we have before us a legislative package that reflects 2 years of work for the Health, Education, Labor, and Pensions Committee.

When we first embarked on this process, the goal was to find ways to spur innovation and reduce the time it takes for new therapies and treatments to get from the research bench to the bedside for patients. The bill is the 21st

Century Cures Act, which includes—I am going to repeat this several times—true bipartisan victories for patients in our health care system.

Throughout my time in Congress, I have been a consistent supporter of funding for the National Institutes of Health, or NIH, to fulfill our commitment to prioritizing biomedical research and innovation. NIH research returns priceless benefits, giving health care providers new tools and drugs to heal and give hope to individuals. The benefits of this research investment to Kansans back home have been direct and personal. Back in 2012, the University of Kansas Cancer Center received a National Cancer Institute designation, or an NCI designation. These centers are major players in research and development for cancer treatment and prevention.

The legislation we will be voting on today or tomorrow—or at the very least next week—does commit an additional $1.8 billion for Vice President BIDEN's Cancer Moonshot. This will not only help the University of Kansas as they continue to push toward a comprehensive cancer center designation, but it will help all Americans who stand to benefit as we work to end the fight against cancer.

In addition to research funding, this bill includes some provisions I authored along with Senator KLOBUCHAR to improve and increase transparency in the review and approval of processes for medical devices. Specifically, the bill does this. It encourages the FDA, or the Food and Drug Administration, to accept international consensus standards to provide more predictability for innovators. Second, it makes improvements to the advisory committee selection process in an effort to provide more transparency. It provides a technical correction to establish a process by which the Food and Drug Administration may remove certain products from the class I device reserve list if they think a premarket review is no longer necessary to prove reasonable assurances of safety and effectiveness. Senators ISAKSON, CASEY, and ROBERTS' priorities seek to provide more certainty for FDA review of combination products and therapies that do not fit neatly into simply a drug or device.

The legislation also includes important reforms to our mental health system based largely on a bill the HELP Committee passed earlier this year. With this section of the bill, we seek to clarify and improve our mental health parity laws. We reauthorized the substance abuse and mental health block grants. We promote evidence-based practices to ensure we are utilizing our scarce resources on programs that work and not continuing to fund what doesn't work. We reauthorized the Garrett Lee Smith Memorial Act for suicide prevention and intervention and the National Child Traumatic Stress Initiative.

There is a lot more work to be done, obviously, to address the deficiencies in our current system, but this bipartisan bill is certainly a good step in the right direction toward improving access to mental health services and eliminating the stigma of seeking treatment.

Finally, the 21st Century Cures Act includes numerous priorities that my colleagues on the Finance Committee and I have been working on for several years. One provision I was proud to support in committee extends the Rural Community Hospital Demonstration Program for another 5 years. As our rural hospitals continue to try and make ends meet, this program helps what we call ''tweener'' hospitals survive. Hospitals that do not qualify as critical access hospitals would not survive under the current Medicare payment system. It is a critical program that benefits Kansans in Junction City, Ulysses, and Fort Scott by keeping their hospital and access care open.

There is more rural relief. Senators THUNE, CRAPO, and I have championed a provision to protect rural access to durable medical equipment under the Competitive Bidding Program. We would have liked to have seen a more permanent solution. However, this bill delays applying competitively bid prices of rural areas and requires the Department of Health and Human Services to take into account stakeholder input as well as average travel distance, volume of items, services furnished, and the number of suppliers in these areas when determining adjustments in setting bid prices.

I have the privilege of being the cochairman of the Senate Rural Health Caucus. I know how critically important these and other pieces of the package are for our beleaguered rural health care system. There is no question that we have many challenges ahead. While this package may not be a silver bullet to ensure cures for all that ails us, it sets priorities in research, cancer, cancer precision medicine, regenerative medicine, and heartbreaking diseases like Alzheimer's through the BRAIN Initiative. We all know someone affected by these dreaded diseases. It also makes significant changes in how these new therapies are evaluated, hopefully approved, and delivered to patients, providing more tools in the medicine cabinet that will improve many lives. Advances in medical research benefit us all, and this bill does just that.

I wish to make a comment with regard to previous discussions of this bill on the floor of the Senate. Unfortunately, a very small minority of my colleagues want to criticize and even villainize this legislation and those who worked so hard on it, which is terribly disappointing to me. With the passage of this bill, both Republicans and Democrats can take pride in putting together and working toward a bipartisan bill that lives up to its name—the 21st Century Cures Act. I regret the tone of the debate that took place with regard to this bill and the personal comments that were made.

I will remind my colleagues that there is a rule XIX that the distinguished Presiding Officer can invoke at any time and any Senator can ask that a Senator's words be taken down under rule XIX. I only say it so that we can look upon a bipartisan bill like this and say: Look at what we have done. Let's be proud of it and certainly not get into the mud with regard to any personal comments.

I urge my colleagues to advance research, advance the development treatments, and support this bill. It is a good bill. It is a bipartisan bill that we should all be proud of.

I thank the Presiding Officer and yield back.

21ST CENTURY CURES BILL

Mr. HATCH. Mr. President, today I wish to support the 21st Century Cures Act, the bill currently before us that, if all goes well, will be approved by the Senate very shortly.

This important legislation represents the hard work of Members from both parties and from both sides of the Capitol. It has support across the economic and ideological spectrum and promises to do quite a bit of good for a number of people.

Put simply—or as simply as one can for a measure of this size—the 21st Century Cures Act represents a significant investment in improving our ability to discover and develop new treatments and medicines and ensure that patients have access to them.

To accomplish this goal, this legislation, among many other things, provides a much-needed expansion of funding for the National Institutes of Health, improvements to the approval process at the Food and Drug Administration, resources to respond to the growing opioid abuse crisis, and an updated government framework for addressing mental health needs.

Thanks to this bill, universities across Utah will be able to access the funding streams from the Precision Medicine Initiative, the BRAIN Initiative, and the Cancer Moonshot. Utah is known for its ability to leverage significant public-private partnerships to work towards cutting-edge health and innovation. I am proud to represent a State where complex technologies are being utilized to help patients find the best treatments and avoid interventions that would be costly, invasive, and ineffective.

Over the past several months, I have had several meaningful experiences working to improve health care for the people of Utah and for all Americans. For example, I had the pleasure of welcoming Vice President BIDEN to the Huntsman Cancer Institute in Utah as part of his Cancer Research Center tour.

The Vice President and I had an insightful discussion about a number of promising therapies being developed in Utah. This legislation will provide an infusion of funding for these types of

projects that will improve lives for individuals and families across our country and around the world.

Among the many noteworthy provisions in this bill are several items advocated by members of the Senate Finance Committee, which I chair. Throughout the 114th Congress, the Finance Committee has worked tirelessly to advance a number of bipartisan legislative efforts and address the concerns of our Members' constituents.

We have reported more bills out of the committee in this Congress than really in any other Congress in modern history, all of them—every single one—with bipartisan support. The long list includes bills in virtually every area of the Finance Committee's jurisdiction, including health care policy.

Some of these priorities—and many others—have been included in the Cures Act.

All told, the current version of the bill includes at least 22 separate provisions that reflect the hard work of Finance Committee members. These include modifications and updates to Medicare, Medicaid, and SCHIP, along with other important changes to the law.

I want to collectively thank the members of the Finance Committee for the work they have done on these measures and on everything else we have been able to accomplish over the last two years.

A number of measures that I personally worked on as a member of the Senate HELP Committee have also been included in the bill. All told, about 37 provisions in this bill are ones that I either drafted or helped draft at some point during my years in the Senate.

For now, I want to focus on my work to help those in the rare disease community. Millions of Americans suffer from unexplainable illnesses that leave them feeling abandoned and alone. And, if we do not address the dry pipeline for drugs that end up treating just a few hundred patients, we are making a national decision that these people do not matter.

None of us should accept that.

To address these concerns, I worked to include specific measures in the Cures Act that improve pediatric care and expedite the drug approval process for rare diseases, ensuring that thousands of patients get the treatments they need when they need them.

With this bill, Congress will make significant steps in helping Americans with rare diseases, but our work will be far from over. Families affected by rare diseases have united around the country to speak with a growing voice, and we need to do all we can to make sure their pleas do not fall on deaf ears.

As you can see, there are a number of good things to say about the 21st Century Cures Act. However, I don't want to leave the impression that the bill is perfect from my point of view. While I support the bill and plan to vote in favor of passage, I do want to make note of what are, in my view, some of the bill's shortcomings.

As this legislation was being developed, I noted that I had concerns with some of the pay-fors that were being thrown around. I have always supported the goals of this legislation and believed it was important that we try to move it forward. However, I do not believe we should be setting undesirable precedents when it comes to funding these types of endeavors.

Early on in this process, some publicly expressed their belief that the spending in this bill could be paid for by making alterations to federal health entitlement programs, namely Medicare and Medicaid.

I will spare my colleagues a lecture on the budget process today. Instead, I will just note that, while there are a number of areas where we can responsibly find savings in these programs, we have almost always tried to avoid diverting funds from these programs—which constitute mandatory spending—to pay for discretionary spending programs.

And, put simply, I believe we need to continue following what has generally been a brightline rule in that regard. If we start casually commingling mandatory and discretionary funds, we run the risk of greatly expanding discretionary spending programs while simultaneously weakening our entitlement programs that are already on the brink of fiscal crisis.

Fortunately, the main proponents of the Cures Act have been willing to work with me, and they have scaled back their initial efforts to use the mandatory spending sources to pay for the bill. While those pay-fors haven't been entirely purged from the bill, I do not intend to vote against the legislation on that basis.

That said, I do want to make clear that this shouldn't become a legislative template or be considered a precedent for how Congress will pay for new spending in the future. And, as the chairman of the committee that has jurisdiction over most of the relevant mandatory spending programs, I intend to do all I can to make sure we avoid this practice going forward.

In addition, I want to say that I was disappointed that the bill before us does not include provisions from the Family First Prevention Services Act, which Senator WYDEN and I, along with our counterparts in the House, introduced earlier this year.

This is commonsense legislation that, in my view, would be a good fit for this vehicle. It has broad support from Members of both parties and in both Chambers, and we all worked to get it included in this package. Unfortunately, we weren't able to complete this task. So all of us will have to keep looking for any reasonable vehicle or opportunity to move this important bill in the near future.

Still, even with these concerns I have about this final version of the 21st Century Cures Act, I am strongly supportive of the bill, and I want to commend those who worked so hard to get it this far, including Chairmen BRADY and UPTON and Speaker RYAN over in the House, and Chairman ALEXANDER, Leader MCCONNELL, and his leadership team here in the Senate.

They have all done good work, and I congratulate them on this success.

Now, we just have to pass the bill.

Once again, I intend to vote in favor of the 21st Century Cures Act, and I urge my colleagues to do the same.

The PRESIDING OFFICER. The Senator from Michigan.

Ms. STABENOW. Mr. President, first, we got a little out of order on the speaking schedule as to how it should have started this afternoon.

I ask unanimous consent that Senator NELSON go immediately after me. He has been courteous enough to allow me to speak, and I ask unanimous consent that he speak after I am done speaking.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Ms. STABENOW. Mr. President, I wish to congratulate everyone who has worked on the Cures bill. There are many areas that I have concerns about, and there are many positive things. I am looking forward to coming back as well and working with colleagues on how we complete the job on mental health by providing full funding for community mental health care across the country, which is not in the bill. But there are some positive steps forward on health care.

MEDICARE

I think it is very important, as we are coming to the end of this session in the next week or two, that we talk about the fact that when we come back, there will be incredibly important debates on health care, and one of them is what will happen to Medicare for tens of millions of seniors and people with disabilities going forward in our country. I want to take a moment to speak to that.

First of all, Medicare and Social Security are great American success stories. Those two programs have lifted a generation of seniors out of poverty and created a quality of life for them and a guarantee, after paying in all their lives, that health care and some basic economic security will be there.

I am particularly concerned right now, though, about the comments we are hearing about proposals to fundamentally change Medicare and undermine Medicare. We are hearing every day now that Medicare, as we know it, is in jeopardy of being dismantled, taking away the security and the peace of mind of tens of millions of Americans and their families across the country who are currently on Medicare—the health care guarantee of Medicare—or those who care for others or those who within the next few years will be on Medicare or who are concerned about their children.

Why are we expressing this now? First of all, the Speaker of the House said on Sunday that Medicare is burning through the budget. He has consistently said Medicare is on the verge of

bankruptcy, which is not true. It appears the goal is to scare people by telling us Medicare will not be there for our children. It will not be there only if we don't keep our commitments to Medicare and the people of this country.

I think I have heard almost every single day since the 1980s that if we want to save Medicare, we have to destroy it as a guaranteed health care system somehow. Now, we know there was a huge difference of opinion and a partisan split back when Medicare was created between Democrats and Republicans, and I am proud as a Democrat that we created Medicare and have been able to expand prescription drug coverage and other quality measures and other coverage that is so critical, but it seems like we are constantly going back in some way redebating whether Medicare should exist as we know it. So we hear that to save Medicare, we have to destroy it as a guaranteed health care system—which I completely reject, as do my Democratic colleagues.

We are hearing we have to cut Medicare, we have to change it from a guarantee into a ''maybe.'' We also hear all kinds of different names used, whether it is a voucher system, where you get a certain amount of money in a voucher and you go to the private sector and try to buy coverage, and whatever is not covered by the voucher, you have to make up the difference. I would remind people that Medicare came into being because the private sector was not providing affordable health care for seniors and people with disabilities so we have absolutely no reason to believe that would not be the case today.

We hear about eligibility changes, premium support, means testing, and all kinds of other things that go to the very essence of what Medicare is all about. Again, Medicare is a great American success story that Americans of all ages want to see continue and be expanded upon. Regardless of what kinds of names are used, the end result is still the same. These plans are plans to take away the benefits Americans have worked their entire lives for, a system they pay into that lets them know that as we all get older, we will have the health care we need for ourselves and our families.

What is also not mentioned is the fact that Medicare is solvent through 2028, thanks to the Affordable Care Act which extended the fiscal sovereignty of Medicare. The Affordable Care Act also closed the gap in coverage—what has been called the doughnut hole—for prescription drug coverage. By the way, if the ACA is repealed, there will be another hole in that coverage and seniors' Medicare prescription drug costs are going to go back up. We have seen that Medicare, in fact, is solvent to 2028. It now actually costs less for a prescription drug today than it used to cost, and we are seeing quality efforts going on every day, preventive efforts, to continue to extend sovereignty and bring down costs.

I am all for improving Medicare. I have supported efforts to bring additional accountability and credibility into Medicare. We will continue to do that. We want to make sure it continues to be more and more effective. We want to strengthen Medicare. Cutting it, taking it from a guarantee to a maybe, is not the way to do that. In fact, it is not—despite the Speaker's own hashtag—a better way. It is not a better way.

Why am I concerned at this point? Why do we think Republicans are serious about trying to undermine Medicare as well as Medicaid, of which 80 percent of the spending goes to long-term care for senior citizens? There are two things that are deeply concerning to me. First, in every House Republican budget since 2011, everyone has effectively turned Medicare into a voucher for people eligible after 2023, 6 years from now. It would raise the costs. It would take away the certainty and the guarantee of Medicare. It would reopen the gap in prescription drug coverage. For millions of people across Michigan and across America, you don't need to make health care harder. It needs to be easier.

In addition to comments from the Speaker of the House about changing Medicare and making it a priority in the budget, creating payoffs in the system, taking away the universal guarantee, we now have the President-elect nominating Dr. TOM PRICE, a current House Member, for Secretary of Health and Human Services, who has supported that budget privatizing Medicare, block granting, and cutting Medicaid and long-term care for seniors in nursing homes and so on. We are told by the nominee that he expects Republicans in Congress to move quickly on this legislation in the new year, even though President-Elect Donald Trump promised throughout his campaign that Medicare would be safe on his watch. He made that promise to the people I represent—the people we all represent—and I can assure you, I am going to be doing everything possible to make sure that promise is kept.

The only thing gutting Medicare is going to do is create chaos for tens of millions of seniors, people with disabilities, and for the health care system in general. Seniors and people with disabilities—all Americans—deserve better than this. As we enter the new year, Democrats will fight tooth and nail to protect Medicare, to make sure Medicaid and long-term care is available for our seniors, to make sure the health care guarantee that has been there for a generation of retirees and people with disabilities is continued. Medicare is a great American success story, and we are ready to do everything possible to protect it and strengthen it as a guarantee for Americans in the future.

Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from Florida.

DREAMERS

Mr. NELSON. Mr. President, I want to speak about DREAMers. These are children who are brought to this country in an illegal status because they are brought by their parents who are undocumented. These children often do not know that in fact they are undocumented.

There are threats in the new administration to completely reverse President Obama's Executive order that allows these children to stay in the United States and continue their education. I want to tell you about one such DREAMer. This is Elisha Dawkins. Elisha came from the Bahamas in an undocumented status with his mother at the age of 6 months. Elisha's mother was deported shortly thereafter, and he was raised by family in Florida.

He always thought he was an American citizen. After high school, he joined the Army. This photo shows when he served a tour in Iraq. He came back and was mustered out of the Army with an honorable discharge after having been awarded the Iraqi Service Medal. He was assigned to a very sensitive position as a photographer.

Promptly after coming back and starting his studies, he decided to join the Navy Reserves and was given a top secret clearance. He performed photography at a very sensitive location, Guantanamo, with all of the detainees.

So Elisha, coming off his Reserve duty, resumed his studies at the University of North Florida. At one point, he had started to fill out a passport application but did not go through with that application and never turned it in. Later on, filling out a passport application, he was asked if he had ever applied for a passport and he checked the box ''no'' because he hadn't. The U.S. attorney's office came in and arrested him, threw him in the clink, and in the process, found out he was undocumented because of the circumstances I just told you. A veteran of Iraq and Guantanamo—Army in Iraq, Navy in Guantanamo—is in a detention center awaiting trial.

Fortunately, Elisha Dawkins' situation came to my attention and I started raising some cain about this. As a matter of fact, in a further hearing in front of a Federal judge, the Federal judge, in essence, dressed down in court the assistant U.S. attorney who had pursued this case and, fortunately, the charges were dropped. That enabled Elisha to go on and to continue his studies. In the process, since he had no conviction, he was allowed to apply for U.S. citizenship. His military service justified him to do that. This past week, he is now graduating from the University of North Florida.

Because a child came here in an undocumented status through no fault of their own, it is not right that children, such as Elisha Dawkins, who grow up to be great assets for the United States would be penalized and threatened with deportation.

Obviously, we have to attend to the national security implications, in his case of potential passport fraud, which was not the case, but this was a man who had not committed that fraud and who had served his country honorably.

As this case has resolved itself into a happy ending, just think of all the other stories of DREAMers who are out there and who share Elisha's commitment to and love of country, commitment to the ideals that all these DREAMers share of growing up in the only country they have ever known, and they had always thought they were a member of that country.

I have said it before, and I will say it again. The DREAMers are our neighbors, they are our friends, they are our high school valedictorians, and they are our veterans.

They were brought to this country before they ever even knew of the significance of their trip, and they have benefited our communities greatly. It is clear that America is stronger for a person like Elisha Dawkins.

As this Congress comes to a close, I remind all of us and urge us to remember—next year, when there is an attempt to turn around that White House Executive order, I want us to remember the faces of people such as Elisha Dawkins. I want us to come together and acknowledge their many contributions to this great country.

I yield the floor.

The PRESIDING OFFICER (Mrs. ERNST). The Senator from Oregon.

TREASURY DEPARTMENT NOMINATION

Mr. MERKLEY. Madam President, colleagues, we are now 4 weeks out from a Presidential election in which millions of American voters indicated they wanted a change.

Donald Trump, our President-elect, campaigned and was elected on a platform he called draining the swamp. Getting rid of entrenched special interests sounds good. Fighting on behalf of middle-class Americans sounds good. Taking on Wall Street's powerful special interests sounds good.

In fact, month after month, our President-elect attacked Secretary Clinton, saying she was too close to the Wall Street banks. He said things such as ''Hillary will never reform Wall Street.'' He said, ''I know the guys at Goldman Sachs. They have total control'' over his opponent.

These are pretty harsh words. With months of hammering Wall Street and hammering his opponent, it came as a big surprise to many last week, when President-Elect Trump announced that he would be naming Steve Mnuchin, a darling of Wall Street, a 17-year veteran of Goldman Sachs, a career in the financial industry, to run the Treasury Department—the single most important post in our economy to be run by Wall Street.

Instead of draining the swamp in Washington, it looks as if our President-elect is turning our government intended to be of, by, and for the people into a government of, by, and for Wall Street. Appointing a 17-year Goldman Sachs executive to oversee financial regulation is the definition of the fox guarding the hen house. It has the potential to undo all the progress and recovery we have made since shutting down the Wall Street casino, which dragged our country into the Great Recession. Furthermore, wouldn't it be great to have someone at the helm of our economy who fought to put people into homes, instead of fighting to kick people out of their homes and onto the street, as he has done.

One of the great things about America is the resiliency of the American people. They come upon a challenge, sometimes a catastrophe, and they work to put the pieces back together again. We have made our way through the Great Depression. We made it through two world wars, we made it through the September 11 terrorist attacks, and we have worked to recover from the Great Recession.

That crisis saw 8.7 million jobs lost, trillions of dollars of lost family wealth, and more than 2 million businesses shuttered. It was a financial crisis that cost about 4 million Americans their homes. It wiped out the hard-earned retirement savings of millions more families.

The American people are working to rebuild, but they haven't forgotten. They haven't forgotten foreclosed homes. They haven't forgotten the lost jobs. They haven't forgotten the retirement savings. They haven't forgotten the shuttered businesses across our great land, and they definitely haven't forgotten the recklessness of Wall Street that made it all happen.

It seems that perhaps President-Elect Donald Trump has already forgotten not just the driving force behind the Great Recession of 2008 that caused these calamities for millions of American families and businesses, but he has also forgotten his campaign vow to take on Wall Street. Instead, Mr. Trump is planning to put Wall Street in charge of the Treasury Department—again, the most powerful economic position in the United States of America.

Where does Wall Street stand on these issues? Wall Street hates the provisions that Congress adopted to end predatory lending practices in mortgages and consumer laws. They hate those provisions, and they want to get rid of them. They want to get rid of the watchdog that makes sure those provisions don't return. Wall Street hates the provisions that we adopted to shut down the Wall Street casino, where Wall Street firms made huge bets with the deposits of American savers to terrible consequences.

Bloomberg News reported that Trump's nominee, Steve Mnuchin, was front and center during these operations of the Wall Street casino. Have no doubt that he plans to do what he can to restore that casino. While being interviewed right after his nomination, he promised to ''strip back parts of Dodd-Frank'' and went on to suggest that the Volcker rule, which is the provision that shut down the Wall Street casino, should be weakened or eliminated. It is not speculation; it is straight from his own testimony to the American public, after he was nominated, that he wants to restore the Wall Street casino.

The Consumer Financial Protection Bureau is another target. That protection bureau is a watchdog on the beat against predatory financial practices. It is a pretty good thing when you have an organization that has returned nearly $12 billion to 27 million American citizens harmed by illegal and predatory practices in the lending business. Furthermore, the Consumer Financial Protection Bureau has saved far more by preventing these practices in the first place on current lending—$12 billion returned, but who knows how much they saved consumers on the front end. Maybe it is $50 billion, maybe it is $100 billion, maybe it is more. But the fact is, our citizens are getting a better foundation for our financial success.

If you believe in the success of American families, you want to block predatory practices designed to undermine them. That is what we did in Congress, and that is what is at risk.

We did a lot of powerful things to rectify the excesses that led to the disaster of 2008 under the Bush administration. We created stress tests to ensure the strength and security of our largest banks—that they had sufficient reserves to withstand periods of economic challenge. That makes sense. We put procedures in place to unwind megacorporations when they fail so they can be unwound and not take the rest of the economy, the financial system, down with them. That makes sense.

We established a cop on the beat to make sure people aren't scammed by credit card companies. It makes sense. We made sure we had an organization to which people could appeal when they thought there was a predatory practice, to have it rectified and have the funds returned to them if they were right. That makes sense. All of this makes sense. It makes what type of sense? It makes common sense.

Isn't it just common understanding that when a predator damages a family, our entire community suffers and when a family loses its home, our entire community suffers? Don't we understand that when people are thrown out into the street—as Steve Mnuchin's banks specialized in—the families are hurt, the children are deeply hurt? But now we have a nominee who specialized in Wall Street and specialized in foreclosures. I say again, wouldn't it be great to have a nominee to head our economy who worked to put people into homes, who worked to make families successful, not someone who specialized in throwing them out of their homes and onto the street?

In 2009, in the depths of the financial crisis, Steve Mnuchin purchased the

fourth largest failed bank, IndyMac, when it collapsed in July of 2008. After buying IndyMac, he renamed it OneWest and took over as the CEO.

Under Mnuchin's leadership, OneWest became what housing advocates in California called a foreclosure machine. Why did they call it a foreclosure machine? Because in the midst of the Great Recession, it pushed forward 36,000 homeowners into foreclosure, using tactics that were certainly off limits, such as robo-signing, fake signing—let me put it directly, fake signing of documents. His bank was responsible for more than one-third of all reverse mortgage foreclosures, which disproportionately were targeted at America's seniors.

Let me tell you the story of Ossie Lofton. Ossie Lofton, a 90-year-old woman from Lakeland, FL, took out a reverse mortgage on her home. This is a type of loan that allows an elderly individual to draw up the equity of their home to help them meet their basic monthly expenses. The beauty of this is that once you have that have reverse mortgage, assuming it is not designed with predatory features, it can supply to a senior some steady supply, and they don't have to write a steady mortgage check to anyone. Instead, they get income to help meet those basic expenses, so it is hard to imagine how you would end in default in this situation. But individuals are still responsible for paying property taxes and homeowners insurance.

In Ossie Lofton's case, there was confusion over her homeowners insurance coverage. The bank sent her a bill for $423.30. Ossie looked at that. She thought she had it right, and so she sent the insurance company a check for $423, overlooking the 30-cent payment.

Well, they sent her back another bill for 30 cents. Again, she misread it. She thought they were asking for 3 cents, and she mailed them 3 cents—27 cents shy.

What did OneWest do under Steve Mnuchin's leadership? They foreclosed on Ossie for 27 cents.

In my hand I have 30 cents, a dime and four nickels. Why would a bank foreclose on a woman who owed them a few cents? Why would they do that?

Well, if you followed these predatory practices, some banks looked at it this way. They said if we can find a technicality to grab someone's home, we can resell it for far more than we are owed. That is a huge profit.

So for that 27 cents, she lost her home. She and thousands of others lost their homes so this bank could profit rather than work out a mortgage modification. That is really a crime against an American citizen, a specialty of this bank, a specialty through which Steve Mnuchin profited millions and millions of dollars. Millions of dollars of income was accumulated based on the suffering inflicted on thousands and thousands of American homeowners.

We could look at another story. Leslie Parks took out a subprime adjustable rate mortgage to pay for repairs. She faced some hard times and was falling behind, but under very constructive negotiations with One West to stay in the home, you will recall we had this program called the Home Affordable Mortgage Program—the HAMP program—wherein a bank could rework it. They were saying to her that we are reworking it, all is good, but, meanwhile, they were pursuing foreclosure. The result was, thinking she was working out a modification, she came back to her home in the middle of a blizzard and found herself locked out.

This is an example of the widely publicized two-track policy in which banks would pretend to work out a modification while aggressively pursuing foreclosure. That is not a good practice. It is not fair to the homeowner.

Let's look at another story. Gregg and Diane Horoski. They refinanced in 2004. They paid off their original mortgage with a loan from Deutsche Bank and used the rest of the money to cover health care costs, but it is one of those loans with an exploding interest rate, and the loan interest soared to 12.375 percent. Then Gregg Horoski started having health problems so they were having trouble keeping up with those high interest payments. So they asked the bank to work with them. What bank? One West. They asked One West to work with them to modify the loan, but the bank turned them down, misled them about how much they owed, lied to them about how much was at stake.

The Horoskis felt betrayed by the misrepresentations and they took One West to court and Judge Jeffrey Spinner said the following about the bank's behavior. Which bank? One West, the bank that Steve Mnuchin was heading. He called the bank's behavior ''harsh, repugnant, shocking and repulsive.'' He also added, ''unequitable, unconscionable, vexatious and opprobrious.'' He pretty much summoned every word in the English dictionary to say how wrong the bank's action was as they dealt with this couple.

Now, the bank lost that case, but they were aggressively pursuing everything so they took it to appeal. They spent a lot of money and had a lot of lawyers take on this couple and eventually the bank won. They won no grace period, no compromise, no home for this couple. The bank won and the Horoskis lost, as did thousands and thousands and thousands of individuals and couples who owned homes who lost them to these very aggressive foreclosure strategies.

That is not all. Mr. Mnuchin and his bank didn't just prey on hard-working Americans, they also had an operation that has a record of discriminating against minority home buyers and minority neighborhoods. Fair housing applicants have filed legal complaint after legal complaint against their practices.

Here is an example. According to the California Reinvestment Coalition and Fair Housing Advocates of Northern California, the bank's Southern California branches made a total of only two mortgage loans to African-American home buyers during 2014 and 2015. That is one per year; two loans over 24 months in one of the country's most diverse communities—a community that includes Los Angeles, where African Americans make up more than 9 percent of the population. This practice is known as redlining. It is an egregious practice. What is more, of the 35,877 homes that One West foreclosed on just in California between April 2009 and April 2015, 68 percent were majority non-White areas.

Looking at this record, it is pretty clear that Mnuchin has not used his skills in life to put people into homes; he has used his skills to kick people out of their homes and into the street.

Instead of fighting for homeowners, he has made a living—the life of a mega-multimillionaire—off the suffering of low-income and middle-income Americans.

Our President-elect bashed his opponent for being too cozy with Wall Street banks. He told Iowans: ''I am not going to let Wall Street get away with murder,'' but then he nominates an individual with this record of predatory practices, of private profit over the suffering of thousands of families, to lead our economy in the years ahead. This is just 4 weeks after his election, just 4 weeks after we heard the cries that he would stand up to Wall Street, and now he is putting Wall Street in charge.

There is more. He is not appointing just one but two former Goldman Sachs executives to key positions of power and influence. One is Steve Bannon, assigned to be his Chief Strategist. That is right—Goldman Sachs—Chief Strategist for our President-Elect. Now we have an economist in chief, the Treasury Secretary, also coming from the same direction. It sounds like instead of ''draining the swamp,'' our President-elect is helping Wall Street restore the predatory practices that destroyed the living and the lives of millions of American homeowners. This is wrong.

I call on President-Elect Trump to reverse course, to fight for government of, by, and for the people—not government of, by, and for Wall Street.

I yield the floor.

The PRESIDING OFFICER. The Senator from South Dakota.

CONGRESSIONAL PRIORITIES

Mr. THUNE. Madam President, the business of the 114th Congress is drawing to a close to wrap up a few final bills. One of the most important bills that we will be passing this week is the National Defense Authorization Act. In fact, this is one of the most important bills that we pass each year.

The National Defense Authorization Act is one of two bills that ensures that our military men and women have the tools and resources they need to defend our country. It is the bill that

authorizes funding for the body armor our troops wear and the weapons they carry into battle. It is the bill that authorizes funding for the advanced technology our military needs to be successful on today's battlefield and the bill that authorizes true pay increases which help us retain an All-Volunteer Force. Making sure our troops have what they need to defend our country is pretty much our most important responsibility as Members of Congress; first, of course, because the security of our country depends on it and, second, because we owe our men and women in uniform nothing less.

This year's National Defense Authorization Act authorizes the largest troop pay increase in 6 years. It modernizes the military health care system to improve quality of care for our troops and their families. It reduces Pentagon bureaucracy to focus resources on our Nation's warfighters, and it supports our allies amid growing threats.

It also addresses the dangerous underfunding of the military that has occurred under President Obama. It stops troop reductions for the Army and Marine Corps and authorizes additional funds to address readiness shortfalls.

Members of our military should not have to be salvaging spare parts from retired aircraft to keep their planes in the air. Over the next few years, the Republican majorities in Congress will work with President-Elect Trump to rebuild our Nation's military and ensure that we have the strongest fighting force in the world.

This bill is an important start.

As we finish the work of the 114th Congress, we are also looking forward to the 115th. Republicans will move quickly to take up a number of important measures. Two big issues it will tackle right at the beginning are repealing ObamaCare and confirming a Supreme Court nominee.

I don't need to tell anyone that ObamaCare is a failure. A Gallup poll released last week found that 80 percent of Americans want major changes to ObamaCare or want the law repealed and replaced. That shouldn't come as any surprise.

The President promised lower premiums and affordable care, but ObamaCare has meant exactly the opposite. Premium costs have soared and soared again. Deductibles have increased, and health care choices have been sharply reduced.

One constituent contacted me and said:

> My ObamaCare premium went up from $1,080 per month to $1,775 per month, a 64-percent increase. That is $21,300 a year for health insurance.

Another constituent wrote to say: ''My ObamaCare premium doubles next year.'' It will double. I don't know too many Americans who can afford to have their health insurance premiums double.

Still another constituent wrote to tell me that ''today I received a new premium notice for my ObamaCare insurance. My policy rate for myself, my wife, and my teenage son has increased by 357 percent''—357 percent.

ObamaCare is on the brink of collapse. We know what millions of Americans already know; that is, that the status quo is unsustainable. It is time to repeal this law and replace it with something that works, and that is precisely what we are going to do.

We are going to get started on repeal as soon as the 115th Congress convenes, and then we are going to work step-by-step to replace ObamaCare with real health care reform—health care reform that focuses on the States rather than having the Federal Government running everything, health care that gives more control to patients and doctors when it comes to health care choices and decisions, health care that provides choices and is patient-centered so there are more options out there, more choices, more competition in the marketplace, and a health care system that allows flexibility for our small businesses on which much of the responsibility for providing health care for their employees falls.

Another thing we are going to get started on right away in January is confirming the President's nominees, including his nominee for the Supreme Court. My Democratic colleagues have spent a lot of time talking about the importance of confirming a ninth Justice to the Supreme Court. I trust they will bring that same eagerness with them in January. I look forward to working with them during the confirmation process.

After Justice Scalia's death, I came to the floor to honor him. Like others who spoke at the time, I mentioned his keen mind, his gift for language and, most of all, his absolute commitment to the law. For Justice Scalia, the Constitution truly was the supreme law of the land. He didn't let anything interfere with that. His politics, his personal opinions, his feelings about a case, none of those things were allowed to play a role in his decisions. That is the key right there.

We all know Justice Scalia had personal opinions, but when it came down to deciding cases, he ignored them. He looked at the law and the Constitution, which is the supreme law, and he judged accordingly.

It is wonderful to have strong opinions. It is wonderful to have sympathy for causes or organizations. It is wonderful to have plans for fixing society's problems, but none of those things have any business influencing your ruling when you sit on the Supreme Court. There only two things that should influence a Supreme Court Justice's ruling: the law and the Constitution. The minute something else comes into play, whether it is a Justice's personal feelings or a political philosophy, you have done away with the rule of law and replaced it with the rule of personal opinion. We have gone through a lot in this country to ensure that we will be governed by the law and not by someone's personal opinions.

Justice Scalia will be a hard Justice to replace, but I am confident that President-Elect Trump will nominate a Justice with a similar respect for the rule of law, and I look forward to working with my colleagues to get a qualified nominee confirmed.

Repealing ObamaCare and confirming a Supreme Court nominee are two important things we are going to do next year, but they are just the beginning. Republicans are going to spend the 115th Congress fighting for the American people's priorities, from growing our economy and creating better paying jobs to securing our borders and protecting our Nation. We have a chance to do big things for the American people in 2017, and we can't wait to get started.

Madam President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BROWN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MINE WORKER HEALTH CARE BENEFITS AND PENSIONS

Mr. BROWN. Madam President, it strikes me as pretty unbelievable that we are in the process of voting—debating a continuing resolution, and yet nobody has read it and nobody understands what is in it. We hear news reports, but nobody who I know here—at least on our side—has been in the negotiations even though we have a Democratic President and the Senate is 45, 46 percent Democrats, even though more people voted for Democratic Senators than Republican Senators in this election and most of the last several elections. Even with all that, that shouldn't matter, but Senator MCCONNELL and the Republican leadership are asking us to vote on something this complicated with this many add-on amendments that we have not even read yet. What kind of way to run the Senate is that? We do know, though, from the reports I can get, what they have told us is that Majority Leader MCCONNELL's response to the mine workers has been pretty pathetic.

Today I met with Senator HATCH in his office. Today I met with Senator WYDEN in his office. One of the things we did in the Finance Committee on an overwhelmingly bipartisan basis, joined by my Republican colleague from Ohio, Senator PORTMAN, and other coal State Democrats and Republicans—Senator CAPITO, Senator MANCHIN, Senator WARNER, Senator KAINE, Senator CASEY, Senator TOOMEY—all of us in this committee supported a bipartisan fix for mine worker pensions and health care. Yet the continuing resolution at best—at best, we understand; again, we haven't

read it yet because they won't show it to us yet even though they want us to vote on it—at best, it has some 4 months of health care and nothing for pensions.

This is not a taxpayer bailout; this is moving money—unused money—from the abandoned mine fund in to fund the pensions and health care for mine workers and mine worker widows. Keep in mind—I know the Presiding Officer doesn't represent coal States. She may not know a lot of miners, as I and some of my colleagues do, but she knows about mining. Understand, there are more miner widows than there are likely to be insurance salesmen widows or realtor widowers or whatever. Mineworking is a dangerous job. Mine workers too often get injured and killed on the job. Their lives are shortened from injury. Their lives are shortened from illnesses, black lung and other illnesses. So mine workers who marry at 20 or 25 are likely—their spouses are likely to outlive them by a number of years. That is the other reason we should do this.

The third reason we should do this is that almost 70 years ago, President Truman made a commitment that we have lived up to until now. The reason we aren't living up to it now is because the majority leader of the Senate said no. I don't know exactly why he said no. I know he is not a big fan of the United Mine Workers union. I support the United Mine Workers union. I care about unions. I know unions helped create the middle class in this country. But that is not the point. My caring about this is—there are 12,000 mine workers in my part of the country, more than 1,000 in Ohio, for which this will be a very, very bad Christmas because they have already gotten notice, as Senator MANCHIN said, that their health care is going to be cut off. If we do a 4-month fix, then they will get another notice in January that their health care is going to get cut off. How do you treat people that way? I mean, we dress well. We are all well paid. We have good health care. We have good pensions. We are telling these mine workers: Yeah, you may have earned this under the old rules, but, sorry, we can't take care of you.

My friends over there could bail out the banks—that is OK—and then banker compensation keeps going up and up, but they can't take care of mine workers with a relatively small pension and health care. They can't take care of them.

We passed a bipartisan mine worker pension and health care bill. We passed it out of committee. We did it the way Senator MCCONNELL, the majority leader, wanted us to. We went through the process. Now he is not willing to honor that. It is pretty outrageous. At the same time, they are doing something special in this bill for Wyoming. Nothing against Wyoming. I like Senator ENZI. I like Senator BARRASSO. I want to help them help their State. But this is a part of the country. It is Pennsylvania, Ohio, West Virginia, Virginia. These are States that have thousands of mine workers, and this Senate is betraying them. If my colleagues think we should go home for Christmas starting next week without doing this, that is morally reprehensible.

Senator MANCHIN and I were talking today and Senator CASEY and Senator KAINE and Senator WARREN and I were talking today about how we are willing to stay until Christmas, we are willing to stay until December 25—literally, to Christmas—to get this done because it is morally reprehensible and it is outrageous that we would leave here without taking care of these mine workers.

I know some of them. I know Norm Skinner. I know Dave Dilley. I have known Babe Erdos for 35 years. These are people who worked very hard in the mines under dangerous conditions. They are the reason we are able to have so much manufacturing in Ohio. The coal they mine helps to produce the electricity that makes our standard of living so much higher than it would be without it.

I spoke at the rally. Thousands of mine workers were here late this summer—I think in July. I am not sure what month it was; maybe in September they were here. It was a very hot day. I remember the president of the International Mine Workers, Cecil Roberts, asked the question: How many of you are veterans? A huge number of people waved their hands. They were all standing at this rally. How many of you had fathers or mothers who were veterans? It seemed as if it was the whole crowd. These are people who served their country, they make our communities work, and we are going to betray them, we are going to forget them because one Senator, who happens to be the majority leader, for whatever reason doesn't like the United Mine Workers. That is fundamentally what it is. I don't ever want to embarrass anybody, I don't want to call people out, but there are 12,000 mine workers who are going to have a bad Christmas. Their lives will be shortened if we don't take care of them. The stress they are under—they have already gotten one notification. If we do this for another 4 months, they will get another notification in January saying: Sorry, I know we gave you health care again for a while, but we are cutting it off again because Congress can't get its act together.

The President wants to do this. Even the House of Representatives wants to do it—the House of Representatives that took out of a bill this week ''Buy American'' provisions for steel and aluminum. That is a whole other issue; I don't understand why they would do that. The fact is, the House did it, the President wants to do it, and a strong majority of the Finance Committee wants to do it. If we brought this to a vote on the Senate floor, there is no question it would pass. It doesn't cost the taxpayer money. It is not a bailout. It is honoring a pledge that Harry Truman made, that we made in the 1950s and 1960s and 1970s and 1980s and 1990s and 2000, and all of a sudden we are not honoring that pledge. It is outrageous. We can fix this. We know how the Senate should do it.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BLUNT. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NATIONAL DEFENSE AUTHORIZATION BILL

Mr. BLUNT. Madam President, as we send troops into harm's way—and as you personally well know—it is our job to ensure that they have the tools and the resources they need to carry out the mission they are asked to carry out. We never want Americans to be involved in a fair fight. We always want them be involved in an unfair fight where they have every possible advantage. It doesn't always work out that way, but it should always be our goal. That is what the Defense authorization bill is designed to do.

This will be the 55th consecutive year that the Congress has passed and the Senate has passed the National Defense Authorization Act. The leadership of Chairman MCCAIN and Ranking Member JACK REED makes it possible for us to be here one more time, emphasizing that the No. 1 priority of the Federal Government is to defend the country. It is hard to find a bill that we pass every year for more than half a century, but this critical piece of legislation provides the vision and the authorization necessary for the military to move forward and to do that No. 1 job of defending America.

There has been—and I think today we will see that again in the vote on this bill—the strong, bipartisan support that this bill always receives. Although there is sometimes a discussion about when it should be passed, we have not failed to pass it in a long time. It includes a lot of provisions that I think will make a big difference. One is a pay raise for our troops, which they deserve. It is the largest pay increase in the last 6 years, and it begins to fulfill our commitment to those who currently serve. As well, we need to fulfill our commitment to those who have served.

I am also glad that there is a vital project for the Nation that happens to be located in my State, in St. Louis, MO. The final version of this bill includes authorization for the land acquisition for the National Geospatial movement from the south part of St. Louis, where it has been for seven decades, to a new location that allows them to build a facility, as it is right now, that is fully backing up the only other facility in the world that does the level of geospatial work that this one does. When something happens in

Springfield, VA, where that location isn't monitoring the world as it usually does, all of that work goes to St. Louis, where on every other day they share the responsibility for geospatial.

There is a provision in here, at a fundamental level of safety, to build a fire station at Fort Leonard Wood in Missouri. Everything from building a fire station to creating a $1.7 billion facility that allows us to further keep an eye on the world as we do now is a good thing. It also addresses the issue that was raised earlier this year concerning members of the National Guard—men and women who were given a bonus and then wrongfully asked to return that bonus. It was not their error. That money in most families long ago has been spent. It was thought to be appropriately handed over to them, and they shouldn't be penalized because other people made a mistake when that distribution was made. With this bill, they will not be penalized.

I think there is an increase here in end strength. It is in the conference report. I certainly supported Senator MORAN's efforts on this issue and commend him for the hard work he put forward to be sure that we don't lose any more ground on the strength we have and the ability we have to be ready. Making down payments on our readiness issues, stabilizing our force at a time when we really face more challenges around the world—not less—was a minimum thing for us to do, but the bill does that. Senator MORAN's leadership was important in accomplishing that as well.

Once again, this bill puts Congress on record against the President's plan to move terrorist detainees held at Guantanamo Bay to any location on U.S. soil. I, along with a majority of Americans, oppose the idea that we bring these terrorists here. The President made a campaign pledge a decade ago now, and 10 years later, not only has that campaign pledge not been able to be fulfilled but the Congress once again today asserts our view that it should not be fulfilled.

The administration admitted earlier this year that Americans have been killed by terrorists released from Guantanamo, and they made that admission, by the way, days before they approved another dozen inmates to transfer somewhere else in the world, where I don't think they can be kept count of and track of like they need to be. We don't need to close this facility. We don't need to abandon the facility, and I am glad that there are strict prohibitions here that don't allow that to happen.

This bill also makes important steps toward enhancing the quality of life for our servicemembers and their families. GEN Ray Odierno, recently retired, Chief of Staff of the Army, said that the strength of the military is in military families, and we need to do a better job recognizing that. I hope we are able to advance an effort that was in the Senate bill that didn't get into the final bill—the Military Family Stability Act—next year. This is an action that will allow military families to stay longer at a location or to move earlier than the individual in the military does if there is a professional reason or an educational reason for that to happen.

The investment that military families have made in the country and the investment they have made in what the person serving has learned in a very complicated defense world don't need to be unnecessarily complicated by whether someone gets to finish a year in elementary school or gets to stay another 3 months so they can graduate from high school, particularly if the person in the military is willing to go on ahead and bear their own expense until the family, with the family assistance that families get or the living assistance, moves later.

This was determined by everybody that looked at it, except the Pentagon, to have no cost. I asked every senior officer who came before the Defense Appropriations Subcommittee about this concept of making it a little easier for people to stay, for a spouse who needed to go ahead and move a little early to start that teaching year at a new school, to get a job that was available at a hospital, or to do whatever that spouse could do to continue to have their professional career. I asked officer after officer: What do you think about this?

One after another, they all said: This is exactly the kind of investment we need to make. We didn't quite get there in this bill, and I am grateful that Senator MCCAIN has pledged to work further to study why the Pentagon itself—or at least the Department of Defense at the highest levels—is the only place that thinks this would cost anything or would be too much trouble. It wouldn't be too much trouble. I hope to see it in the bill next year.

Someone who has really helped in my ability to look at this bill, with the work that I do as a member of the Defense Appropriations Subcommittee and with the work that we do with great military facilities in our State, is here on the floor today, MAJ Andy Anderson. He has been a great resource to our office, and we have benefited for some time now of having military fellows come in and spend a year with us. I continue to hear from them that it is also a great benefit to them to see how this part of the process of preparing to do what is necessary to help them defend the country works.

The knowledge and experience that Major Anderson has gained as an Army officer helped in discussions we had both in the State and in the Nation. I have been particularly appreciative of his willingness to go beyond what might be considered the typical duties of a military fellow in a Senate office. For instance, he has taken personal interest and has been instrumental in assisting a Missouri family in getting their father's remains returned home from Laos after having been shot down over Laos during the Vietnam war. He has devoted a lot of time to gathering and analyzing data on legislative history and actions that will continue to be critical to the office moving forward. I want to also thank his family and wish him the best as he and his wife Audra and their sons Reid and Joel go to what military assignment they have next.

This bill renews the Iran Sanctions Act, and the Iran Sanctions Act would have expired at the end of the year. I am hopeful that the administration understands that this act is really a foundational element of the regime that they entered into. It was an agreement that I didn't support. I still don't support it, but extending the Iran Sanctions Act is perfectly consistent with what the Iran nuclear agreement purports to do. If the Iran Sanctions Act is a problem, the Iran nuclear agreement is just as bad as I thought it was.

When that agreement was completed, the administration repeatedly promised that U.S. sanctions on Iran for its support of terrorism would remain in place under the agreement. For example, the day the agreement was announced, President Obama himself said that we will maintain our own sanctions related to Iran's support of terrorism.

The administration continues to recognize the Iranian state as the leading state sponsor of terrorism. This Iran Sanctions Act extension sends another message to Iran that the Congress and the country of the United States are paying attention. It gives the next administration a powerful tool to hold Iran responsible, and I certainly urge the President to sign this bill. I urge my colleagues to vote for it.

In conclusion, once again, for 55 years in a row, the Congress of the United States is going to make the point that the No. 1 obligation of the Federal Government is to defend the country, and this bill helps to allow that to happen.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. SANDERS. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SANDERS. Madam President, I rise in strong opposition to this legislation, the so-called 21st Century Cures Act. While I appreciate the work Senator MURRAY, Senator ALEXANDER, and others have done on this legislation, I cannot in good conscience vote on it in its current form.

It goes without saying that everybody, whether Republican, Democrat, or Independent, wants to find cures to the terrible diseases that are impacting the lives of millions of people, such as cancer, Alzheimer's, diabetes, and the

terrible illnesses that strike children. We all want to find cures for those illnesses, but that is not really what this debate is about. The debate we are having on this bill is simple: Do we continue to cave in to the demands of the pharmaceutical industry—an industry that is making recordbreaking profits by charging the American people, by far, the highest prices in the world for prescription drugs—or do we have the courage to stand up to the CEOs of big drug companies whose prices are so high that one out of five Americans who gets a prescription from a doctor is unable to afford to fill that prescription? Let's be clear. If you cannot afford to fill that prescription, you will likely get sicker, and in some cases, you are going to die.

It is incomprehensible to me that we have a major bill dealing with prescription drugs, and yet we are running away from the most important issue that impacts millions of people and that the American people feel very strongly about, and that is the greed of the pharmaceutical industry and the outrageously high prices our people are being forced to pay. That is the issue on which we must focus.

If we were really serious about finding cures for life-threatening illnesses and diseases, maybe—just maybe—we would adequately fund the National Institutes of Health and the Food and Drug Administration. Over the last 12 years, medical research has been cut by over 20 percent after adjusting for inflation. Even if this bill passes, funding for NIH will still be roughly $7 billion less this year than what it was in 2004. Meanwhile, over the same time period—just to put this in context—the top 1 percent has received over $1 trillion in tax breaks. In other words, we cannot fund the agencies that are trying to find cures for diseases, but we can give unbelievably significant tax breaks to the 1 percent.

Let me very briefly give a few major reasons this bill should be defeated.

No. 1, as I said a moment ago, the most important prescription drug-related crisis facing our country right now is the skyrocketing price of prescription drugs. This bill does not even deal with that issue. How can we talk about a bill dealing with the pharmaceutical industry without addressing the elephant in the room, which is the fact that we pay the highest prices in the world for medicine? And in many cases, those costs are soaring.

In America today, one out of five people between the ages of 19 and 64 cannot afford to fill their prescriptions. Hundreds of thousands of seniors are forced to cut their pills in half because the medicine they need is just too expensive. Let me give just a few examples.

Since 2007, Mylan has raised the price of a package of EpiPens by 461 percent while rewarding its CEO with a 671-percent increase in compensation. Maybe, just maybe, we might want to address that issue.

Last year, Turing Pharmaceuticals increased the price of Daraprim by 5,000 percent overnight. It went from $13.50 to $750 for just one pill.

While thousands of children in Flint have been poisoned by lead, Valeant increased the price of the drug to treat this disease 2,700 percent in a single year—from $7,100 to about $27,000.

Meanwhile, at a time when 35 million Americans cannot afford the medicine they need, the drug companies are making enormous profits and providing extremely generous compensation packages to their executives. Last year, fellow Americans, while you were paying more and more for prescription drugs you desperately needed, the 5 major drug companies made over $50 billion in profit—$50 billion in profit, 5 drug companies—while the top 10 pharmaceutical executives received over $320 million in compensation. In fact, the prescription drug companies literally have money to burn. This year, the pharmaceutical industry spent $131 million to defeat Proposition 61, a ballot initiative in California that would have lowered average drug prices by at least 24 percent for millions of people. They spent $131 million in California to defeat a proposal that would have lowered drug prices.

How does it happen that the pharmaceutical companies can charge any price they want for prescription drugs? The answer is clear: The prescription drug industry, along with Wall Street, is the most powerful political force in America. I have been fighting the greed of the prescription drug industry for decades, and as far as I can tell, the pharmaceutical industry always win. They never lose. They win, but the American people lose.

Since 1998, the pharmaceutical industry has spent more than $3 billion in lobbying all over this place. There are hundreds and hundreds of lobbyists telling Members of Congress what the pharmaceutical industry wants, and they have made hundreds of millions of dollars in campaign contributions. They currently have over 1,200 lobbyists on their payrolls here in Washington, including former leaders of the Democratic and Republican Parties. That is why the pharmaceutical industry makes huge profits while the American people cannot afford the medicine they need.

It would be one thing if these outrageous price increases were happening in other major countries. Are these price increases taking place all over the world? The answer is, they are not. In 2013, we spent nearly 40 percent more per person on prescription drugs than Canada and five times as much as in Denmark. How is it that the cost of prescription drugs in Denmark, Canada, the UK, and France is significantly lower than it is in the United States? That is an issue, and it is high time we begin discussing it. For example, it costs $730 for a 90-day supply of Crestor—which is used to treat high cholesterol—in the United States but just $160 in Canada. Americans with heartburn pay $736 for a 90-day supply of Nexium, but that same product costs $214 in Canada. Americans with arthritis are forced to pay $895 for Celebrex, but it costs just $280 in Canada.

During this recent campaign, President-Elect Donald Trump promised, among many other things, to lower the prices of prescription drugs. That is what Mr. Trump said. He promised that he would ''allow consumers access to imported, safe and dependable drugs from overseas to bring more options to consumers.'' He also promised to require Medicare to negotiate with the drug companies for lower prices—something that is banned by law today.

Here is what President-Elect Trump said while on the campaign trail:

> We are not allowed to negotiate drug prices. Can you believe it? We pay about $300 billion more than we are supposed to, than if we negotiated the price. So there's $300 billion on day one we solve.

Since President-Elect Trump supports requiring Medicare to negotiate with drug companies to lower prices, which is an idea that many people in this body also support, and since Mr. Trump believes we should be able to reimport low-cost medicines from Canada and other countries, I am quite confident that all of my Republican colleagues will support an amendment in my hands that will do exactly what Mr. Trump said he would accomplish as President. Think about what you can do to pave the way for Mr. Trump when he comes into office. You will have already satisfied one of his major campaign pledges.

Therefore, Madam President, I ask unanimous consent that the pending motion to concur with an amendment be set aside, and I ask unanimous consent for the immediate consideration of a motion to concur in the House amendment to the Senate amendment to H.R. 34 with a further amendment that I send to the desk.

The PRESIDING OFFICER. The Senator from Missouri.

Mr. BLUNT. Madam President, reserving the right to object, one way to be sure of not getting the work done we are doing today is to add another topic. I think the work we are doing today is important.

My friend from Vermont mentioned some statistics that were right a couple of years ago about the decline in health care research money. We are not where we should be, but we are not where we were 2 years ago, either. When my side took control of the majority, I got a chance to chair the appropriating committee for Health and Human Services, and for the first time in 12 years, we had an almost 7-percent increase. The Senator is absolutely right—at that moment, we were 22 percent behind in research buying dollars from where we were 12 years earlier. But if everything is a priority, nothing is a priority. So we did what the government should do and what people want the government to do: We went

through the process of prioritizing. We eliminated 18 programs last year—zeroed them out for either being duplicative or not doing what they were designed to do—so we could prioritize exactly the important health care research this bill talks about and my friend from Vermont mentioned, a 7-percent increase last year and another 6.5-percent increase this year. Another $2 billion came out of our committee, came out of the full appropriating committee, and has been on the desk ready for the minority to let us take up for months now. That would be an almost 14-percent increase in 2 years. Fourteen percent of the 22 percent would have been eliminated if we could have taken up the bill that I still wish we were voting on today. The bill we are voting on today does some of what that baseline increase would do.

Why do we want to increase health care research? Obviously for individuals and their families who might be able to better deal with or totally avoid a health care crisis they would otherwise have.

From the point of view of taxpayers, on Alzheimer's, which was mentioned here today, we are spending $250 billion a year right now. The NIH projection for 2050 is that we will be spending $1.1 trillion that year in today's dollars, which is twice the defense budget. Now, $1.1 trillion sounds like a lot and $250 billion sounds like a lot to me. In fact, pretty small numbers sound like a lot to me. But when I think about spending twice the defense budget on Alzheimer's alone—and that is just tax dollars, that is not what families would be spending if we don't invest in research now. It makes a big difference.

So from Alzheimer's—there is an inducement here that I would like to see be even more specific, and when we get back to the regular appropriating process, I will work to do that again. There is a prize inducement, the Beau Biden cancer research fund. There is money that could go to autism. Everything from Alzheimer's to autism benefits when we focus on health care research.

There is also money in this bill to further enhance the ability to get drugs to the marketplace quicker so that people have an opportunity that they don't currently have to work with their doctor and decide they want to try that new advancement.

This bill matters. I think in some ways it is better to let NIH—the real researchers—prioritize spending and let us prioritize research as a topic.

I think this bill should pass. I think it should pass today. I was on the House floor last week when they overwhelmingly voted for it to pass. The sure way for this bill not to pass in this Congress is to do something now that changes the subject.

I am particularly glad that my longtime friend from both the House and Senate is really interested in President Trump fulfilling his campaign pledges, and I am particularly pleased to see him agree with at least that one pledge, but that won't happen until next year. Today's work is to pass the 21st Century Cures bill. I look forward to the vote that will do that before we leave this week.

Mr. President, I object.

The PRESIDING OFFICER (Mr. LANKFORD). Objection heard.

Mr. SANDERS. Mr. President, two points. First of all, let me reiterate that is for inflation-adjusted dollars, not nominal dollars. The funding for the National Institutes of Health this year will still be roughly $7 billion less than what it received in 2004. That is point No. 1.

Point No. 2—and I will yield briefly to my friend from Missouri—did I hear him say that he is supportive of reimportation and having the Federal Government—Medicare—negotiate prescription drug prices with the pharmaceutical industry? That is what I thought I heard him say.

I yield to my friend.

Mr. BLUNT. I thank my friend for yielding.

In terms of the money available for research, we have taken that 22 percent of buying power and changed it to about 15 percent. If we doubled our bill this year, we would change it from 15 to about 7 or 8 percent. We need to get back to where we were 12 years ago and then not stop in real buying power. I want to do that.

I think what I said about the overall discussion of reimportation and other things was that I was delighted to hear my friend from Vermont so supportive of the next President's program.

Mr. SANDERS. I am very supportive, he is dead right. But I was wondering if my friend—when he said we are going to get to it next year, what does that mean? Does that mean you will be pushing the ability of Americans and pharmacists and distributors to be able to benefit from unfettered free trade and buy low-cost medicines and some of the same drugs sold in Canada and the UK? And will you also, as Mr. Trump made the point, allow Medicare to negotiate for lower prices? Is that something on which we can expect our Republican friends to support the President-elect?

Mr. BLUNT. If my friend would yield, I would say we have passed this bill in the Congress—that bill—several times over the last few years. On each occasion, often with Democratic administrations, the only obstacle has been for the administration to certify that reimportation could be safely done.

Mr. SANDERS. Exactly right.

Mr. BLUNT. And none of them have ever been willing to do that.

Mr. SANDERS. My friend is exactly right. Neither a Republican nor a Democratic administration will have the guts to stand up to the pharmaceutical industry.

Today, if you have a salad, it is likely you are going to get your salad with tomatoes and lettuce that are from Mexico or some other country with very poorly inspected farms. That is no problem, but somehow or another, we are led to believe that it is impossible to bring in brand-name medicine from Canada or the United Kingdom or France, that it just cannot be done. It is beyond belief that anybody with a straight face believes that to be true. Clearly, this is what the pharmaceutical industry wants us to believe, but I hope that my friend from Missouri will not accept what the pharmaceutical industry tells us and understands that the next Secretary of HHS should certify that with proper procedures, we can reimport medicine.

I yield to my friend.

Mr. BLUNT. I thank my friend for yielding. I would just say that if the Secretary of HHS can certify that, that is a good thing, and I voted for that in the past. But I know what a tomato looks like. I don't know what is inside a capsule, and that has always been the obstacle for the people we have asked to look at this and certify the safety.

If people can figure out how to do that so we know what is inside of that pill—the worst thing you can do health-wise is believe you are taking a pill that isn't the pill you believe you are taking.

Mr. SANDERS. I know what a tomato looks like, too, but you don't know what kind of pesticide was used or how that tomato was grown. The idea that we cannot get a product from across the border safely really doesn't pass the laugh test, frankly. This is one of the things the pharmaceutical industry has been pushing. We have unfettered free trade for fish, for vegetables, for meat from all over the world, but somehow, from Canada or the UK or France—we cannot safely bring medicine into this country at a fraction of the price our pharmacists are now paying. Frankly, I would say to the Senator from Missouri, that does not pass the laugh test, and I hope we can work together. Clearly, we want the medicine to come in safely, but I think we can do that, and I look forward to doing that.

I yield.

Mr. BLUNT. I would say that the one thing we will accomplish before the week is out is passing this bill, but I hope this bill doesn't become something that we continue to refer back to and say we have already done that. This bill is a step in the right direction, but in health care research, it does not get us to where I would like to be or where we were 12 years ago. We need the kind of research dollars that encourage young researchers to stay in the research business, the kind of research dollars that encourage them to find solutions, the kind of research dollars that ensure that every family who can avoid a crisis or be ready to deal with it in a better way is able to do that. So I look forward to the bill being passed as we finish the week.

I yield back.

Mr. SANDERS. I agree with the last statement the Senator from Missouri made.

Let me give another reason why I am opposed to this bill. Incredibly, this legislation makes it easier for prescription drug companies to get away with fraud. Fraud is something the major drug companies have been perpetuating on the American people for a number of years.

It is not widely known, but it should be known that since 1991, drug companies have paid over $35 billion in fines or resettlements for fraud and misconduct—$35 billion—but instead of cracking down on pharmaceutical company fraud, this bill actually legalizes the fraudulent behavior of some of the big drug companies.

Specifically, under this bill, pharmaceutical companies would be allowed to promote unapproved uses of drugs to insurance companies—a practice which is currently illegal. Why would we allow the pharmaceutical industry the opportunity to market drugs to insurance companies for uses that haven't been approved by the FDA? This is a major problem. Let me give a few examples.

In 2013, the Justice Department ordered Johnson & Johnson, one of the major pharmaceutical companies in the country, to pay $2.2 billion in fines for ''recklessly promoting drugs for uses that have not been proven to be safe and effective.'' According to the U.S. attorney handling the case, Johnson & Johnson's ''promotion of Risperdal for unapproved uses threatened the most vulnerable populations of our society: children, the elderly, and those with developmental disabilities. Congress rightfully determined that this is unacceptable and made it illegal, but under this bill, it could become legal. That is wrong.

In 2010, AstraZeneca pharmaceuticals paid $520 million to resolve allegations that it illegally marketed the antipsychotic drug Seroquel for uses not approved as safe and effective by the FDA.

In 2009, Eli Lilly was fined over $1.4 billion for its off-label promotion of another antipsychotic drug known as Zyprexa. According to Federal investigators, Eli Lily's illegal activities increased patients' costs, threatened their safety, and negatively affected the delivery of health care services to over 9 million military members, retirees, and their families who rely on health care.

We need to make it harder for the pharmaceutical industry to commit fraud, but instead this bill allows the pharmaceutical industry to, in fact, commit even more fraud. That is unacceptable.

Third, let's be clear: This bill would cut Medicare and Medicaid by a billion dollars. Millions of senior citizens are in desperate need of Medicare and Medicaid.

Thanks to Medicare, today more than 48 million seniors and 9 million people with disabilities have health insurance coverage through Medicare, and over 73 million Americans are enrolled in Medicaid. The last thing we should be doing today is cutting Medicare and Medicaid. We need to make health care more affordable to senior citizens, the disabled, and low-income families with children—not more expensive.

Finally, this bill—and this is quite significant—cuts $3.5 billion from the Affordable Care Act's prevention fund to prevent Alzheimer's, diabetes, suicide, heart disease, and lead poisoning.

Instead of cutting Medicare and Medicaid, instead of cutting funds for health care programs, we should be demanding that the wealthiest people in this country and the largest corporations start paying their fair share of taxes. We should not be cutting life-and-death programs for the most vulnerable people in this country.

I say to my colleagues, if you want to lower the outrageous cost of prescription drugs, vote against this bill. If you are opposed to legalizing pharmaceutical fraud that can endanger the lives of many Americans, please vote against this bill. If you are opposed to cutting Medicare and Medicaid, vote against this bill. If you want to prevent cuts to programs that would prevent Alzheimer's disease and many other diseases, vote against this bill.

It is time to stand up to the pharmaceutical industry and stand with the American people who are tired of being ripped off by this extremely greedy industry.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I come to the floor to speak about the fires and tornadoes in Tennessee, but I would observe beforehand that by tomorrow we will be voting on the 21st Century Cures and the mental health bill.

I have a little different view of it than the Senator from Vermont. For example, using the money in the prevention fund, which was a part of the Affordable Care Act, I would say is a pretty good use of it to support the President's Precision Medicine Initiative and to support the Vice President's Cancer Moonshot and to support the BRAIN Initiative at the National Institutes of Health. This is what we do in the bill, with $1.4 billion for precision medicine, $1.8 billion for Cancer Moonshot, and $1.5 billion for the BRAIN Initiative. If we are interested in reducing grief and reducing spending in this country, accelerating the arrival of medicines that will identify Alzheimer's before its symptoms and other medicines that will retard the progression of Alzheimer's would be a magnificent thing to do. It would be a miracle for many families. It is not just a miracle; it is something that Dr. Francis Collins, a renowned scientist who is head of the National Institutes of Health—the ''National Institutes of Hope'' is what he calls it—predicts will happen in the next 10 years, along with a vaccine for Zika, a vaccine for HIV-AIDS, a vaccine for universal flu, which killed 30,000 people last year, and advances in regenerative medicine that would put a physician like our former majority leader, Dr. Bill Frist of Nashville, out of business.

Bill Frist was at one time a heart transplant surgeon. I think he transplanted more hearts than anybody in the world—or nearly anybody. But Dr. Collins believes that with advances in using our own adult cells, we will restore hearts. We will not have to transplant them. We may be able to restore eyesight. These are the kinds of miracles this legislation will encourage that could affect nearly every American family.

The other part of the legislation, equally important to money, is that it would make reforms in the Food and Drug Administration and in the National Institutes of Health that will move research for those treatments and cures through the regulatory and investment process more rapidly, at lower costs, into the medicine cabinets, and into the doctors' offices, where they can help virtually every family in this country.

That is why 85 Senators yesterday voted to end debate on this floor, and I suspect more will vote tomorrow to send it to the President. That is why, in the House of Representatives, 392 of them voted for this bill. Only six Democratic Members of the House of Representatives voted against it. They are not persuaded that there is some evil force in there. They like what they see, and not only them. The President of the United States says that this is ''an opportunity we just can't miss.''

The Vice President of the United States, talking about his Cancer Moonshot, says that this is a big and important step forward.

The Republican Speaker of the House, PAUL RYAN, turned a couple of somersaults trying to figure out the way to do the funding on this because it is an important part of his own agenda for our Nation's health care future.

I have heard the majority leader of the Senate, Senator MCCONNELL, say in private meetings and in public that this is the most important piece of legislation we will pass this year.

Add to it the mental health legislation that Senator CASSIDY, Senator MURPHY, and Senator CORNYN worked so hard on over here, and you can get something we can be very proud of, which is why it received such a big vote yesterday.

I want the American people to know that is what we are doing. I think that is what they want us to do. We could do something in a partisan way, we could do something by Executive order, or we could take 2 years, as we literally did in this bill, with multiple hearings, multiple consultations, many differences of opinion, all of them resolved though in a bipartisan way, and produce a lasting result.

It will not be like ObamaCare, where the next day one party is trying to repeal it and the next party is defending

it. It will not be like some other partisan legislation. This will last. Nobody is going to be trying to repeal it because almost everybody voted for it. The money will come just as the legislation says, year after year.

I am proud of the Senate, and I am happy for the American people, and I look forward to tomorrow.

SEVIER COUNTY FIRE

Mr. President, on a more somber note, a week ago last Wednesday, on a mountaintop called the Chimney Tops in the Great Smoky Mountains National Park, someone spotted a fire and called the National Park Service about 5:20pm in the afternoon. I have been up on Chimney Tops many times—more times when I was younger than when I have been older—but it is a peak with rocks at the top. We are not like the West where they have a lot of rocky mountains. We don't have many of those. We have an average of 83 inches of rainfall a year, unlike Southern California or Phoenix, places like that, where they only get a few inches of rain a year. We almost have rain forests. When the fall comes, there are lots of leaves on the ground.

But the fire started up on the Chimney Tops. I can tell you there wouldn't have been anyone within 100 miles who would have imagined that somehow the next Monday, wind would have swept that fire into Gatlinburg, TN, killing 14 people, injuring another 134, causing an evacuation of 14,000 people, wrecking lives and wrecking homes.

There have been some people wondering a little bit: Well, how could this have happened? Look, we have had fires all over East Tennessee this year. We are not used to that. It is because we have had a drought for a long time.

I have an article by Bob Hodge about Greg Ward of Sevier County. This is the county where Gatlinburg is. Greg Ward spent his 53 years roaming around the woods and waters of Sevier County, according to Bob Hodge, a writer for the Knoxville News Sentinel.

The long and short of it is, those who know the woods and the waters in East Tennessee know that this drought has been with us for a while. Trout stocking programs wouldn't work because the water was so low that the streams wouldn't handle the trout, and the water was too warm for them to survive.

In some places the creeks were flowing at 10 percent of normal. We may have seen that once before in someone's memory back in the 1970s, but for the last 3 months, there has been very little rain. According to Bob Hodge's article, we have had a drought since 2015.

Mr. President, I ask unanimous consent to have printed in the RECORD this article by Bob Hodge of the Knoxville News Sentinel following my remarks.

On Friday, Governor Haslam of Tennessee, Senator CORKER, and I went to Gatlinburg. The only thing I could think to say to the people assembled there were two things. One was that your character is measured not so much by how you handle things when things are going well, but how you handle adversity. If that is the measure of character, the character of the people of Gatlinburg in Sevier County are through the roof because they are not complaining.

The mayor of Gatlinburg, Mike Werner, had his home burn down in 15 minutes. He was at the press conference worried about other people, not himself.

Cindy Ogle, the city manager of Gatlinburg for a long time, had her home burn down. She was there, not complaining, and worrying about the other people of Gatlinburg and Sevier County.

Mike Werner's business was also burned down. He is staying in the apartment of a friend nearby.

That story is happening over and over and over in Sevier County. There have been extraordinary gestures by people to help.

At one point, shortly after the fire started, there were 140 fire trucks from all over Tennessee and more than 400 volunteers. The fires kept going and going because this wind came up on Monday night after the fire had already started 10 miles away on the top of this rocky mountain, and a 90-mile-an-hour wind blew the fire all the way into Gatlinburg. The wind knocked down transformers and started other fires, and people were racing for their lives.

On the floor, I mentioned stories of firefighters having to get back in their trucks to get away from the bears that were running toward them escaping the fire, of people driving through fire to escape, of windshield wipers melting as they drove down the mountain. It was a terrifying experience. In the West they may be used to this. Nobody ever gets used to it, I guess, but we don't see that where we are from, typically with 83 inches of rain in a year.

I salute the people of Sevier County and Gatlinburg for their courage, their character, and their compassion for one another. I know it is going to take a long time for many to get back on their feet. We are doing what we can to help.

I salute the Governor of Tennessee. He was there the next day. So were many of their agencies, working seamlessly together. As I have said, last Friday we went there together with him. Through the State, we have arranged for Federal assistance, which will pay for 75 percent of the cost of fighting the fires.

Then that same day we went to some other counties in Tennessee that had experienced tornadoes about the same time. We went into McMinn County. No one was killed there, but several were hurt.

We went to Polk County where we talked with a lady named Mrs. Stoker, who wasn't hurt, but a trailer next to where she lived had been blown across the road, and her daughter and her daughter's husband had been killed. We talked to her for a while, and the Governor and Senator CORKER and I were very impressed with her. We doubted that we would have the strength she does.

As we left, she said to us: You fellows go back on up there, do your job, and we will take care of it here.

I am sure she will, but I am awfully impressed with Mrs. Stoker.

I have told the people of Sevier County that many Senators had said something to me about the fire. For example, Senator FEINSTEIN called because of her experience in California.

I am here only to say those two things, first that the people of Sevier County, in Gatlinburg, the area of Polk County and McMinn County, if their character is measured by how they handled adversity, their character is over the top.

Secondly, I thank all of those who have tried to help.

One last example: In McMinn County, a young woman had a baby during the tornado. Her home was damaged. She went to the hospital. When she came back the next day, the neighbors had found another home for her. They had clean sheets and everything that she needed.

There are wonderful stories that came out of a terrifying series of instances. I wanted to come to the floor and say that we are proud of the people of East Tennessee.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Knox News Sentinel, Dec. 3, 2016]

GATLINBURG FIRE WAS SET IN MOTION MONTHS AGO

(Op-ed by: Bob Hodge)

Greg Ward has spent his entire 53 years roaming around the woods and waters of Sevier County, many of them as one of the best known hunting and fishing guides in the state. When a lot of those woods starting burning he knew things could get bad.

Then again, he had suspected things were going to get bad for months.

The fire that has destroyed over 17,000 acres inside and outside the Great Smoky Mountains National Park, destroyed hundreds of buildings and cost at least 13 people their lives has left Ward wondering what, if anything, could have been done. He's lived his life and earned his living listening to what the mountains tell him.

''Everybody talks about the drought we've had this year, but the drought started in 2015,'' said Ward, owner of Rocky Top Outfitters in Pigeon Forge. ''This year it just got a whole, whole lot worse.''

Back in the summer, the drought which would lead to the out of control fires that would destroy so much was already wreaking havoc on the mountain fisheries. Trout stocking programs were curtailed in June because there was too little water in the creeks and rivers and what was there was too warm for stocked trout to survive. In July, Ward said he and his guides started noticing species hardier than trout, like stonerollers, were beginning to die off.

Water flows and volume are measured in cubic feet per second or CFS. During the summer Ward said the CFS numbers in many of the rivers and streams in the mountains in and out of the park were about 10% of normal. That was bad for his fishing business,

but he thought it was just bad business, period.

''You would hear numbers about us being 8 or 10 inches below normal when it came to rainfall, but it was a lot worse than that in the French Broad Watershed,'' Ward said. ''Whatever number they were saying it was probably double that.

''It's happened before back in the 1970s. We were in a drought cycle then and this was just like that.''

It was so bad he had even thought that, maybe, it would be a good idea to delay the opening of hunting season in Sevier and other counties in the mountains. Fewer people in the woods would mean fewer opportunities for an accident to happen.

''There's a lot of hindsight people can have right now,'' Ward said.

Fast forward to Monday night and about 8 p.m. a knock came on the door at his home in Pigeon Forge near the base of Iron Mountain. It was the authorities telling Ward and his wife Diane to evacuate. They were ahead of the game, having already packed up papers and pictures and things that couldn't be replaced if lost.

After getting his wife to safety, Ward—this isn't too surprising to the people that know him—then drove up Pine Mountain to see what he could see.

It was devastating.

''There's nobody that knew anything like this was going to happen . . . but because of the drought you knew it could happen,'' he said. ''From up on top (of Pine Mountain) you could see fire just about everywhere and you could see it moving because of the wind.''

The stay wasn't a long one because even though the area where Ward was at was safely out of harm's way, he could see that what was not being threatened by the fire one minute was ablaze the next. He and a friend had packed chainsaws to cut through any trees that were blown down by the wind, and it turned out they needed them.

''I wasn't going to die on that mountain,'' he said. ''We've had fires before. I've seen a lot of fires before, but there was so much fuel and so much wind . . .''

Eventually the fire would come within a few hundred yards of his house. But when he and his wife went back the next day it was no worse for wear.

''I have a house today because they made a stand at Dollywood.''

Perseverance is the standard for the people that have been impacted by the fire.

Ward said he doesn't know what if anything, could have been done differently. All he knows is the fires that burned so much on Monday were set in motion months and months ago.

''It's been so god awful dry . . . it was that way two months ago,'' he said. ''You had the drought and then this summer all the heat that just made it worse. We were just in an awful situation.''

Mr. ALEXANDER. I yield the floor.

The PRESIDING OFFICER (Ms. AYOTTE). The Senator from Indiana.

FAREWELL TO THE SENATE

Mr. COATS. Madam President, today I rise for the second time on the Senate floor to deliver a farewell speech. It doesn't seem like that long ago, back in 1998, that I delivered my first Senate farewell speech. I spoke then about making the transition from Senator to citizen, and I reflected on the end of 24 years of public service.

Standing here today in 2016, 24 years has now become 34 years, as the call for additional public service has brought me back to the U.S. Senate. Now, as I begin today, I want to assure my family, some of whom are in the Gallery; my colleagues, some of whom I am pleased to see have come to hear me speak; my campaign contributors, and even the Democratic Senatorial Campaign Committee that I will not be back for a third farewell address.

Through it all—the ups and the downs, the highs and the lows, the successes and the failures—I have felt nothing but gratitude for the incredible privilege of serving. Serving in the military, working as a congressional staffer to then-Congressman Dan Quayle, serving in the House of Representatives, representing my home State, and as a U.S. Senator, and representing our country overseas as U.S. Ambassador to Germany—all of this together has been the adventure of a lifetime, and I am so very grateful for the opportunities I have been afforded. Participating in the process of governing, being in the arena fighting for the principles and values in which I believe—these experiences have all been a privilege almost beyond description.

It is time to express a few thanks. My good friend and fellow Senator from Tennessee, LAMAR ALEXANDER, who is sitting here today, who has a good habit of speaking words of wisdom, has said: When you are driving down a country road and see a turtle on the top of a fence post, chances are that turtle didn't get there on its own. I didn't get here on my own. Throughout my career, I have been blessed to have the support of so many talented and wonderful people who provided invaluable help along the way. First and foremost, though, I want to thank God for His providence, guiding my steps along the way. I want to thank my family, including my wife Marsha for her unwavering support and wise counsel, our three wonderful children, and our 10 grandchildren, for their love, their support, and their patience that allowed me to engage in the consuming job of an elected official.

I thank my former Senator and Vice President Dan Quayle, a mentor, friend, and the person who first encouraged me to consider public service. I want to express gratitude to former Indiana Governor Robert Orr, who chose me to fill the Senate seat vacated by then-Vice President Quayle.

I thank President George W. Bush, who gave me the opportunity to serve as our Nation's Ambassador to Germany, and Colin Powell, who led the Department of State during my time as Ambassador.

I thank the exceptional staff I have been blessed to have support me over the years—some who are here today and many who have served through the years and gone on to achieve great success in their own careers. I specifically want to thank the five chiefs of staff I have had as a Senator who have put the team together to support me in such exceptional ways: David Hoppe; Dave Gribbin, now deceased; Sharon Soderstrom; Dean Hingson; and Viraj Mirani. All have led our team with exceptional leadership.

I thank my colleagues for their friendship and encouragement over the past 6 years. This is a demanding job, and we all work hard, but it is also a job that allows each of us the opportunity to spend a lot of time interacting together. The friendships I have had and now have with the talented men and women who serve in this distinguished body is what I will miss most in leaving the Senate.

Last, but certainly not least, I thank the citizens of Indiana. Hoosiers have given me the honor of representing them in the world's greatest deliberative body. Hoosiers, thank you from the bottom of my heart.

Now, I am not here today to offer deep reflections about the health of this institution or to advise my fellow Senators on how to govern in the years ahead. It is clear that at this time in our history, in our great Nation, we are a divided country with two very different visions for America's future. The Senate is not immune to those divisions, but I firmly believe that all of us, Republicans and Democrats, are trying to do what we think is in the best interests of our country and its posterity. We are all united in the common cause of making our country a better place, a safer place, and a more prosperous place, even if our means of getting there differ.

With that spirit in mind, I know there are many topics of significant importance that the Senate will consider when I am gone, but I want to briefly discuss two transcendent issues that I believe jeopardize America's continued existence as the world's leading Nation. These are issues I have repeatedly expressed deep concern about on this Senate floor.

From a practical standpoint, our country simply cannot keep borrowing money we don't have. Today our national debt exceeds $19.5 trillion and continues to grow by the second. Meanwhile, programs that millions of Americans depend on—Social Security and Medicare are two—are creeping ever closer to insolvency. America's looming fiscal storm is bearing down upon us, and the alarms are sounding louder each day. One day, if not addressed, this debt bomb will explode and have a devastating effect on our country's economy and on our children's future.

My second great concern is what I call the terrorist bomb—the threat posed by terrorists or rogue state actors who can successfully conduct an attack with weapons of mass destruction. We must ensure that the world's most dangerous weapons stay out of the hands of its most dangerous people, and we must also adapt to the new threats we face, such as a cyber attack, that could shut down our financial systems or electric grid. These challenges require all those who have governed to rise above the political consequences that may occur in making the hard decisions needed to make our country

stronger and more secure for future generations.

In conclusion, I would like to say this. My congressional career began during the Reagan administration. I would like to conclude my comments with a reflection on remarks President Ronald Reagan made during a memorial service in 1987 for the fallen sailors of the USS *Stark*. Allow me to quote a few of the words President Reagan shared that day:

> Yes, they were ordinary men who did extraordinary things. Yes, they were heroes. And because they were heroes, let us not forget this: That for all the lovely spring and summer days we will never share with them again, for every Thanksgiving and Christmas that will seem empty without them, there will be moments when we see the light of discovery in young eyes, eyes that see for the first time the world around them and wonder, ''Why is there such a place as America, and how is it that such a precious gift is mine?''

As citizens of this great country, we have been given a precious gift—the gift of freedom. America has been a beacon of freedom that has burned bright before a world that cries out for liberty, but we should never forget that we have been able to preserve this precious gift throughout our history because men and women have heard the call and then said: ''I will stand in defense of freedom and I will sacrifice for future generations.''

In looking back on my life of public service, I have experienced moments when I also have seen that light of discovery of this precious gift of America and asked myself: How is it this precious gift is mine? I have seen the light of discovery at Veterans Day ceremonies as we remind ourselves that this gift has been earned and preserved by those who have fought in defense of our freedoms and especially those who have paid the ultimate sacrifice. I have seen it in the eyes of wives and young children who rush into the arms of dads arriving home from the frontlines of battle. I have seen it in the tears of joy as our Olympic athletes stand while the ''Star-Spangled Banner'' is played before the eyes and ears of the world. I have seen it in the naturalization ceremonies, where immigrants like my mom expressed pure joy in becoming an American citizen.

Do we not then—those of us who have been given this privilege and the challenge of serving in this body as U.S. Senators—do we not then have an obligation and a solemn duty to carry on the task of ensuring that the young eyes of future generations can see this light of discovery and continue to wonder how it is that such a precious gift is theirs?

So, my colleagues and friends, with gratitude to the Almighty, love in my heart for each of you, and bright hopes for the future of our beloved country, I bid farewell.

I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

TRIBUTES TO DAN COATS

Mr. DONNELLY. Madam President, I rise as we bid farewell to my good friend, my colleague, my captain, the senior Senator from Indiana, DAN COATS, who has served his State of Indiana and our country so well and with such honor and such dedication for more than 35 years.

I also note how grateful I am to be serving with the Presiding Officer, for what an extraordinary Senator you have been, what a good friend. Someday I hope to come see the White Mountains of New Hampshire and visit and see your family. We have been very lucky to have been touched and blessed by you.

As many of us know, my friend DAN's service to his country started long before he was elected to this body. After graduating from Wheaton College in Illinois—and he has not often told folks he was a soccer star there—he joined the U.S. Army, where he served from 1966 until 1968 and earned the rank of staff sergeant.

After coming to Indiana to earn a law degree at Indiana University's McKinney School of Law in Indianapolis, DAN moved to Fort Wayne, where he continued his public service as a staff member for then-U.S. Congressman Dan Quayle.

In 1980, DAN COATS was elected to represent the Fourth Congressional District of Indiana—a wonderful area which he served so well—and it was an office he held for 8 years. Then, in 1988, as Senator Quayle was elected to serve as Vice President, Senator COATS was appointed to the U.S. Senate, and he successfully won reelection in 1990 and in 1992. For 10 years, DAN continued his legacy of service to our beloved State.

As I mentioned, DAN is the senior Senator, and I am the junior Senator, so whenever we have football discussions, DAN wins every time.

Through his work on the Senate Armed Services Committee and the Intelligence Committee, he ensured our country was more secure and more prosperous for the future.

In 1999, DAN retired from the Senate. He was soon called back, though, when President Bush asked him to serve our country again—this time, as U.S. Ambassador to Germany.

Then-Ambassador COATS arrived in Germany ready for his duties on September 8, 2001. We know how much our world changed 3 days later and how important his job became in ensuring the United States continued its constructive relationship with our German allies and in keeping all of us safe back here at home. He not only forged a strong relationship with then-German Chancellor Gerhard Schroder and Angela Merkel, but he also played a key role in the establishment of a new U.S. embassy in the heart of Berlin. It is hard to stress how critical DAN COATS' leadership was for our country at that time, as he used American diplomacy to help maintain American security.

In 2011, DAN made his return to the Senate, eager once again to serve the people of Indiana. Over the last 6 years, he has produced steadfast leadership on the Finance Committee, the Intelligence Committee, and the Joint Economic Committee.

On a more personal note, I have always been able to count on him as a partner and a thoughtful friend, willing to work together to address the many issues impacting Hoosiers and our whole country—because, when it comes down to it, we are Americans, and we are all in this together.

DAN always has been ready to roll up his sleeves and work in a bipartisan manner, whether it was on an issue impacting our veterans, protecting our national security, advocating for fiscal responsibility, or even the finer issues of government, such as making sure the Government Printing Office could change their style guide. As the rest of us all know, DAN was able to make it clear that we are not Indianians; we are Hoosiers, and it should be appropriately discussed as such.

DAN, it has been an honor to serve with you.

He has been a true gentleman and a great teammate in our work to improve the lives of the hardworking Hoosier families we represent. I am proud of the work we have done together.

As DAN leaves the Senate, I wish my friend and partner—my senior Senator—the best. He will be remembered for his extraordinary service, his love of country, his love of our State, and his love of his family. I hope he will be able to spend a lot of time with his wonderful wife Marsha, their 3 children, and their 10 grandchildren. DAN has been blessed to have a wonderful family, and we have been blessed that we could be a part of his life.

May God bless Senator COATS and his family, may God bless Indiana, and may God bless America.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Madam President, as I have listened to the eloquent farewell remarks of my friend and colleague, Senator DAN COATS of Indiana, I could not help but think that he sounded happy, contented, serene, and at peace with the decision he has made. But he leaves the rest of us feeling bereft and sad and knowing that we will miss him as a friend and as an esteemed colleague.

As the 114th Congress draws to a close, many words of affection and gratitude will be offered in tribute to our friend and colleague DAN COATS as he leaves this Chamber. But there is no word that better defines this outstanding leader than the one word that has guided his entire life, and that word is ''service.''

As we have heard from his colleague from Indiana, the junior Senator, in 1966, at the height of the Vietnam war, DAN COATS enlisted in the U.S. Army, achieving the rank of staff sergeant. In 1980, he was elected to the U.S. House

of Representatives from Indiana's Fourth Congressional District, and he joined the Senate 8 years later. He quickly became widely known and deeply respected as a strong voice for fiscal discipline and national security and as an expert in our intelligence agencies and foreign affairs.

DAN COATS left the Senate in 1999 and was named as U.S. Ambassador to Germany 2 years later. He arrived at his post in Berlin just 3 days before the terrorist attacks of September 11, 2001. I cannot help but think how fortunate our country was to have him in that key position at a time of such turmoil, anxiety, and fear for our country and all the world. He played a central role in strengthening the relationship between our Nation and Germany during that critical time.

After his tenure as Ambassador had ended, Senator COATS continued his service. He became the president of Big Brothers and Big Sisters of America and offered his talents to many other civic and volunteer organizations, including the Center for Jewish and Christian Values, which he chaired with another dear friend of mine, Senator Joe Lieberman. With his wife Marsha, he founded the Foundation for American Renewal to advance faith-based solutions and initiatives to help resolve our Nation's many social problems.

When DAN COATS returned to the Senate in 2012, he pledged to the people of Indiana and to our Nation that he would focus his tremendous energy and extraordinary intellect on cutting wasteful spending, reducing our national debt, promoting pro-growth, job-creating policies, and strengthening our national security in an era where we face numerous threats from every possible place. He has kept those promises. As a father and a grandfather—two roles that I know he cherishes—Senator COATS has taken to heart our obligation to ensure a sound economic future for the next generation.

It has been a particular honor to work side by side with DAN COATS on the Intelligence Committee. His public service through that committee will never be fully known to the public, but I can share with you that Senator COATS has almost an instinctual ability to get to the heart of an issue, no matter how complex or difficult the topic. That, of course, is also a tribute to the fact that he has thought so deeply about the issues that confront our country and the threats posed by rogue states and terrorist groups. He was one of the first Members of the Senate to recognize the crisis that would emerge due to this administration's failed policy and incoherent strategy toward Syria.

His strong and effective advocacy for improved cyber security, a passion that we share, is another example of his deep commitment to the safety and security of our Nation and its people. For years, Senator COATS has worked to protect our Nation's most critical infrastructure from devastating cyber attacks. Senator COATS has warned us that it is not a matter of if but of when such attacks occur right here in our country. He did so—he led the way—knowing of the political pressure that would be brought to bear to accept the status quo of cyber insecurity that exists within our country's most important infrastructure.

Senator DAN COATS is an inspiring role model to all of us who seek to serve. He epitomizes dedication, effective service, and an untiring commitment to making America—already the greatest country in the world—an even better place to live. Our Nation is truly grateful to this great man, and I am so grateful for his friendship.

I wish Senator COATS and his family all the best in the years to come.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. PORTMAN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. PORTMAN. Madam President, I speak today as a neighbor of DAN COATS. I am his neighbor here on the Senate floor, and I am his neighbor back home. I represent the State of Ohio, and he represents Indiana. I also was involved in DAN COATS' early political career because I was asked to interview him when I was a young lawyer for his potential move from the House to the Senate. There was no way to be involved in that process without acquiring great respect and admiration for this man.

I got to know about his family and his background. He is literally and figuratively a Boy Scout in every way. He is also a guy who we will miss here greatly. He has become the voice of reason, the voice of wisdom, and the voice of knowledge here in the Senate. In our conference meetings, he is the person who, when he stands up to speak, others stop their conversations and actually listen, which is a rare trait for people in public office sometimes. But that is because DAN is always sincere, he is to the point, and, again, he has the experience and knowledge to be able to speak intelligently on a whole range of issues—some which we heard about today on the national security front. But also, he is an advocate for economic growth. He is the leader here on tax reform proposals. He is the guy who continually reminds us of our solemn duty here to represent all the people.

So, DAN, we will miss you greatly. I know Marsha is happy to have you around a little more. You are going to have a great time with your grandkids, as we have talked about. But we know that there will be a great loss here when you move on. I have to find a new neighbor.

I yield the floor.

The PRESIDING OFFICER. The Senator from Missouri.

Mr. BLUNT. Madam President, I have one story I want to tell about Senator COATS.

We have been able to serve together on the Intel Committee. We sit near each other on that committee. We work together on other things.

I came to the Senate when Senator COATS came back to the Senate. It has already been established here that he served and then served in another capacity as Ambassador. Then in 2010, when the Presiding Officer and I came to the Senate, he came with us. In almost everything in the Senate, there is some element of seniority in how everything is done.

As the only person in our class with prior Senate service, DAN COATS is the ranking member of our class. He was 88th in seniority in the Senate the day he started his second term of the Senate. For circumstances, I turned out to be 89th.

In the process of going through and selecting offices, when they got to 88, DAN COATS called me, standing in the hallway of the Russell Senate Office Building, and he said: I am standing here in front of an office that says it was Harry Truman's office when he was in the Senate. You choose after me; don't you?

I said: Yes, I choose after you.

He said: If I don't take this office, will you take it?

It was the best of the 12 offices still left. That wouldn't have been the reason I would take it, but I said: Yes, I will take that office. It would be great for me to be in an office in which Harry Truman had spent 10 years while in the Senate, and I later found out he also spent 82 days as Vice President in that office.

I said: I will stay there if I take that office.

I am actually the only Member who—every year when the question comes around ''Do you want to look at another office?'' I check the ''no'' box and send it right back. Almost everybody else checks the ''yes'' box because they want to see the real estate in the building that is available.

I said: I will stay there if I take it.

He said: Well, I am going to find an office somewhere else.

I have chaired the Rules Committee in the last couple of years. I deal with lots of Members about lots of requests. I don't actually know of very many similar circumstances. In fact, I don't know of any exactly like that one where Senator COATS said: I want you to have the office.

I mentioned it to him again the other day, and he said: You know, the reason for that was, it was the right thing to do.

If there is any part of DAN COATS' character that comes through time after time, it is that part. It is that part of who he is that always wants to do the right thing. He is a man of great conscience, of great courage, of great

willingness to serve. He is a good friend, and it has been one of the honors of my life in elected office that I have gotten to spend 6 years working in the Senate with him.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Madam President, first, I notice that Senator COATS is still on the floor. I want to add my personal congratulations to Senator COATS for an incredible career of public service, not only here in the Senate but serving our country in a very important diplomatic role.

Senator COATS has added such dignity to this body. He is a person of incredible integrity and a person who always listens and tries to do what is right not only for the people of his State but for our Nation. It has been a real honor to serve with Senator COATS in the U.S. Senate, and I wish him only the best going forward. I know he will continue to find ways to help our country.

21ST CENTURY CURES ACT

Madam President, I rise today to comment on a provision in the 21st Century Cures Act that I have strong concerns about that would affect thousands of patients receiving home infusion therapy. As many of my colleagues know, home infusion therapy is important because it provides patients with a higher quality of life. Patients are able to receive this treatment in the comfort of their own home, surrounded by their family. Furthermore, home infusion therapy eliminates unnecessary emergency room visits and travel to and from hospitals.

A provision in the Cures Act reduces the payment for infusion drugs without including a payment for home infusion services until January 1, 2021. As a result, home infusion suppliers will not be paid to administer infusion therapy until 4 years after the change in reimbursement. Without a service payment, it will be economically difficult for home infusion suppliers to provide patients with home infusion therapy. Many patients will be unable to receive care in the comfort of their home and will have to go to hospitals and long-term care facilities to receive treatment. This provision in 21st Century Cures Act could affect over 20,000 people with congestive heart failure, neurological disorders, and immune deficiency problems who receive home infusion therapy.

Patients' lives are at stake. That is why I prepared an amendment to the 21st Century Cures Act that delays the reimbursement change for infusion drugs by 1 year. I hope that this amendment could be included in the 21st Century Cures Act or the end of session continuing resolution. Instead of going into effect on January 1, 2017, the overpayment reduction would go into effect on January 1, 2018, under my amendment. This is only a 1-year delay, but it would allow 20,000 patients to continue receiving infusion therapy at home. I think this is reasonable and fair and I urge my colleagues to support the amendment.

The 21st Century Cures Act includes many very important provisions that should be enacted, so I hope this issue can be corrected.

TRIBUTE TO BARBARA A. MIKULSKI

Madam President, this is a bittersweet moment as I rise to pay tribute to my esteemed colleague, dear friend, and fellow Senator, BARBARA A. MIKULSKI, the longest serving woman in the history of the United States Congress.

Senator BARB has been more than a dedicated champion for the State of Maryland; she has fought tirelessly for the welfare of all Americans across the country but especially the disadvantaged—equal pay for equal work, funding for childcare for working families, quality health care for all Americans, an ambitious space exploration program, robust homeland security programs, and fire protection grants. These are but a few of the causes Senator BARB has worked on for more than four decades as an outstanding public servant and legislator.

She is rooted in the city we both call home, Baltimore, where her father ran a grocery store in Highlandtown. She earned her bachelor of science degree in sociology from Mount Saint Agnes College and a master of social work degree from the University of Maryland School of Social Work. She became a social worker and then demonstrated her formidable organizational skills and resolve when she led the successful opposition to a 16-lane highway that was going to cut through the Fells Point neighborhood in Baltimore. Throughout her 40 years of congressional service, she has returned to Baltimore almost every night.

She ran for the city council in 1971, where she served for 5 years before she was elected to the House of Representatives to represent Maryland's Third District—a seat she held for 10 years. I was proud to succeed her in the House when she was elected to the Senate in 1986 and became the first female Democratic Senator elected in her own right. Here in the Halls of the Senate, she opened doors that had previously been closed to women. She refused to accept second-class treatment because of her gender and fought to be recognized as an equal. Generations of young women who chose to participate in public life or who dreamed of joining the U.S. Senate have benefited from Senator BARB's trailblazing legacy.

From affordable housing and education to childcare, health benefits, and pensions, she has left an indelible imprint on the Nation's social policies as a senior member of the Committee on Health, Education, Labor, and Pensions. It is fitting that she authored the Lilly Ledbetter Fair Pay Act of 2009—the first major bill to be signed into law by the first African-American President. I know one of her proudest accomplishments is strengthening the social safety net for seniors by passing the Spousal Anti-Impoverishment Act, which helps keep seniors from going into bankruptcy while paying for a spouse's nursing home care.

Senator BARB said, ''We work on macro issues and macaroni and cheese issues. . . . Our national debate reflects the needs and dreams of American families.''

In 2012, she became the first woman and the first Marylander to chair the Senate Appropriations Committee. She has worked well with Senator COCHRAN and other Republicans on the committee to produce annual appropriations bills under difficult budget constraints. I think she has shown how the Senate can work in a productive, bipartisan fashion.

Senator MIKULSKI has served as the dean of the women Senators from both parties, promoting collegiality, civility, and consensus-building. In this capacity, again, she has been one of the leaders of this institution with respect to making it work better.

Senator BARB has always had her feet planted firmly on the ground, but she has reached for the stars. No one has been a stronger advocate for the National Aeronautics and Space Administration, NASA; the National Oceanic and Atmospheric Administration, NOAA; the National Science Foundation, NSF; and for researching and understanding the universe to make life better here on Earth than Senator BARBARA MIKULSKI.

Not only has she reached for the stars, she is a star. NASA named a supernova after her in 2012—Supernova Mikulski—discovered, fittingly, by the Hubble Space Telescope on January 25, 2012. The supernova is 7.5 billion light-years away and the remnants of a star more than eight times as massive as our own Sun.

Senator MIKULSKI has so much political energy per square inch of height that she has reached her own orbit in space. Even though her realm includes the entire universe, Senator BARB always kept the needs of Marylanders close to her heart during her tenure. Whether it is fighting for funding to restore the Chesapeake Bay, supporting mass transit improvements in Baltimore, standing up for Federal employees and retirees who work and live in our State, or posting the world's best recipe for crabcakes on her Web site, I know I speak on behalf of each and every Marylander when I say how much we will miss her outstanding leadership and unwavering commitment to our State.

I am privileged to have worked with Senator BARB for 10 years in the Senate and for 20 years before that when I was in the House of Representatives. I am proud to have stood alongside her as two members of Team Maryland.

On a personal basis, I have a very close friend and my service in the Senate is much more productive, much more enjoyable, and much more rewarding because of Senator BARBARA MIKULSKI.

The United States Congress, the State of Maryland, the United States, and, indeed, the world are better places because of Senator MIKULSKI's public

service. She may not be the tallest Senator, but she certainly leaves the biggest shoes to fill. I will miss her, but I will remain internally inspired by her shining example of public service at its best.

TRIBUTE TO BARBARA BOXER

Madam President, for the 10 years I have been in the Senate, I have been privileged and have had the pleasure to serve alongside the Senator from California, BARBARA BOXER, on the Committee on Environment and Public Works and on the Committee on Foreign Relations. She is the ranking member of the Environment and Public Works Committee and previously chaired the committee, the first woman to do so.

Senator BOXER has spent the last 40 years in elective office—24 years here in the Senate, 10 years before in the U.S. House of Representatives, and 6 years on the Marin County Board of Supervisors. She was the board's first woman president. Earlier, she worked as a stockbroker while her husband Stewart, whom she met at Brooklyn College, attended law school. Senator BOXER has been a journalist and is the author of two books.

The first time Senator BOXER ran for the Sixth Congressional District seat, in 1982, her campaign slogan was ''BARBARA BOXER gives a damn.'' Her constituents have agreed. She ran for reelection four times and never received less than 67 percent of the vote. In 2004, when she was running for a third term in the Senate, she received 6.96 million votes—the most votes any candidate has ever received in the history of the U.S. Senate.

Oscar Madison and Felix Unger may have been the original odd couple, but Senator BOXER and the Senator from Oklahoma, Senator INHOFE, have been the Senate's odd couple. An unabashed liberal and unabashed conservative working together to pass some of the most important legislation of the last quarter century—our periodic surface transportation bills and the Water Resources Development Act reauthorizations. These bills have put millions of Americans to work and made our economy more efficient.

Senator BOXER understands the importance of building, and she also understands the importance of preserving. She has helped to set aside more than 1 million acres of Federal land in California as wilderness. The omnibus public lands package, which became law in 2009, includes three Boxer bills to protect 57,000 acres in Big Sur and the Los Padres Forest and another 273,000 acres of California coast as wilderness. She wrote the Senate bill that elevated Pinnacles National Monument into America's 59th national park. She helped champion the creation of the Fort Ord National Monument and Cesar Chavez National Monument and was instrumental in expanding the Gulf of the Farallones and Cordell Bank National Marine Sanctuaries. She also authored the California Missions Preservation Act to protect and restore California's 21 historic missions and led the effort in the Senate to create the Manzanar National Historic Site.

Senator BOXER's concern for the environment hasn't been just a parochial interest; no one has fought harder to defend and improve our Nation's landmark environmental laws, such as the Clean Air Act and the Clean Water Act. She fought to remove arsenic from drinking water. The air we breathe, the water we drink, and the food we eat are better because of Senator BOXER.

Senator BOXER's environmental bona fides are well known, but she has been a superbly effective legislator on so many other issues. She is a champion for women. In 1991, she led a group of women Members to the Judiciary Committee to demand that the committee, which was all-male and all-White at the time, take Anita Hill's charges seriously. Senator BOXER has defended women's reproductive health choices and privacy. She was involved in passing the Freedom of Access to Clinic Entrances Act and the Violence Against Women's Act. She is a senior member of the Foreign Relations Committee, where she chairs the first committee to focus on global women's issues.

In a business meeting earlier today, the members of the Senate Foreign Relations Committee unanimously passed a resolution honoring Senator BOXER's work on that committee and her work in the U.S. Senate. At that time, we noted that she was the ranking member on the subcommittee that provided help for women and girls globally, and her work in Afghanistan was most notable. She has made a difference around the world for young women.

Senator BOXER authored the first ever specific authorization for afterschool programs, a bipartisan bill that then-President George W. Bush signed into law in 2002. Today's afterschool programs are funded at $1.15 billion, allowing them to serve 1.6 million children. She was the author of another bipartisan bill to accelerate America's contribution to combat global HIV-AIDS and tuberculosis.

Senator BOXER wrote two laws to enhance economic and security cooperation with Israel. In 2012, she worked with the Senator from Georgia, Mr. ISAKSON, on the United States-Israel Enhanced Security Cooperation Act, which extended loan guarantees to Israel, increased the U.S. military stockpile in Israel, and encouraged NATO-Israel cooperation. In 2014, she worked with the Senator from Missouri, Mr. BLUNT, on the U.S.-Israel Strategic Partnership Act of 2014, further strengthening economic and security cooperation between the two countries.

Senator BOXER has strong principles. She can be outspoken when the need arises, but she is also a consummate legislator, able to work across the aisle and across the Hill to get important things done. We are going to miss her skills and her leadership. I know we will continue to hear from her because she is not the retiring type, but she certainly has earned the right to spend more time with her husband Stewart, their children Doug and Nicole, and four grandchildren.

We wish her well, and we will miss her in the Senate.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

FREE SPEECH RIGHTS

Mr. LEE. Madam President, over the weekend, syndicated columnist George Will wrote about a disturbing ruling in a French court. The court ruled that a video called ''Dear Future Mom,'' produced by the Global Down Syndrome Foundation, must be banned from television. It cannot be viewed on television anywhere in France. What, you might ask, triggered this draconian act of censorship? Was it speech inciting violence? No. Was it a hate speech? No. Was it discrimination? In fact, it is the opposite, as it turns out. I will let Mr. Will tell the story as I read the words from his column.

The column is entitled ''The 'right' to be spared from guilt.''

The word ''inappropriate'' is increasingly used inappropriately. It is useful to describe departures from good manners and other social norms, such as wearing white after Labor Day and using the salad fork with the entree.

But the adjective has become a splatter of verbal fudge, a weasel word falsely suggesting measured seriousness. Its misty imprecision does not disguise, but advertises the user's moral obtuseness.

A French court has demonstrated how ''inappropriate'' can be an all-purpose device of intellectual evasion and moral cowardice. The court said it is inappropriate to do something that might disturb people who killed their unborn babies for reasons that were, shall we say, inappropriate.

Prenatal genetic testing enables pregnant women to be apprised of a variety of problems with their unborn babies, including Down syndrome. It is a congenital condition resulting from a chromosomal defect that causes varying degrees of mental disability and some physical abnormalities, such as low muscle tone, small stature, flatness of the back of the head, and an upward slant to the eyes. Within living memory, Down syndrome people were called Mongoloids. Now they are included in the category called ''special needs'' people. What they most need is nothing special. It is for people to understand their aptitudes, and to therefore quit killing them in utero.

Down syndrome, although not common, is among the most common anomalies at 49.7 percent per 100,000 births. In approximately 90 percent of instances when prenatal genetic testing reveals Down syndrome, the baby is aborted. Cleft lips or palates, which occur in 72.6 percent per 100,000 births, also can be diagnosed in utero and sometimes are the reason a baby is aborted.

In 2014, in conjunction with World Down Syndrome Day (March 21), the Global Down Syndrome Foundation prepared a two-minute video titled ''Dear Future Mom'' to assuage the anxieties of pregnant women who have learned that they are carrying a Down syndrome baby.

More than 7 million people have seen the video online in which one such woman says,

''I'm scared: What kind of life will my child have?'' Down syndrome children from many nations tell the woman that her child will hug, speak, go to school, tell you he loves you and ''can be happy, just like I am—and you'll be happy too.''

The French state is not happy about this. The court has ruled that the video is—wait for it—''inappropriate'' for French television. The court upheld the ruling in which the French Broadcasting Council had banned the video as a commercial.

The court said the video's depiction of happy Down syndrome children was ''likely to disturb the conscience of women who had lawfully made different choices.''

So, what happens on campuses does not stay on campuses. There, in many nations, sensitivity bureaucracies have been enforcing the relatively new entitlement to be shielded from what might disturb, even inappropriate jokes.

And now this rapidly metastasizing right has come to this:

A video that accurately communicates a truthful proposition—that Down syndrome people can be happy and give happiness—should be suppressed because some people might become ambivalent, or morally queasy about having chosen to extinguish such lives because . . .

This is why the video giving facts about Down syndrome people is so subversive of the flaccid consensus among those who say aborting a baby is of no moral significance than removing a tumor from a stomach. Pictures persuade.

Today's improved prenatal sonograms make graphic the fact that the moving fingers and beating heart are not mere ''fetal material.'' They are a baby. Toymaker Fisher-Price, children's apparel manufacturer OshKosh, McDonald's and Target have featured Down syndrome children in ads that the French court would probably ban from television.

The court has said, in effect, that the lives of Down syndrome people—and by inescapable implication, the lives of many other disabled people—matter less than the serenity of people who have acted on one or more of three vicious principles:

That the lives of the disabled are not worth living. Or the lives of the disabled are of negligible value next to the desire of parents to have a child who has no special, meaning inconvenient, needs. Or that government should suppress the voices of Down syndrome children in order to guarantee other people's right not to be disturbed by reminders that they have made lethal choices on the basis of one or both of the first two inappropriate principles.

That is the end of Mr. Will's column, which I just read in its entirety.

As Americans enter yet another era of change in our politics, it is my sincere hope, and indeed my prayer, that it can also be a season of change in our hearts. Here in the United States, the free speech rights of groups like the Global Down Syndrome Foundation to produce videos like ''Dear Future Mom,'' which I highly recommend, are protected by the First Amendment, but the rights of actual Americans with Down syndrome, both born and unborn, can only be protected by their fellow citizens, not just in our laws but in our communities, our families, and our culture.

This time of year, we would all do well to remember the life-changing joy that can come from a single, unexpected, and special child, and also remember the courage of their mothers and fathers who chose life—the heroes who chose to make room at the inn.

I know I speak for all of my colleagues when I wish all of them a very merry Christmas.

I thank the Presiding Officer and yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WARNER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MINERS PROTECTION ACT

Mr. WARNER. Madam President, I rise to join my colleague who spoke earlier today, the Senator from Ohio, and here shortly, the Senator from Pennsylvania. I wish to also thank my friend, the Senator from West Virginia. Without his tireless efforts, this cause we are fighting for might not still have a chance, and I want to commend him for the countless hours and the amazing amount of work he has done on an issue we have been here time and again on; that is, begging this body to take meaningful action on the Miners Protection Act before the end of this year.

For over a year and a half, we have been coming to the floor to tell our colleagues that if we do nothing, retired coal miners and their families—for the most part we are talking about widows because most of the miners have passed away—will lose their health care at the end of this year. Well, the end of the year is upon us. It is literally days away, and we have taken every procedural step to ensure a vote on the Miners Protection Act.

Under the leadership of the Senator from West Virginia, we were asked to go through regular order. We were asked to have a hearing. Those of us on the Finance Committee—the Senator from Pennsylvania and I—were asked to have a committee markup. We had the committee markup. We reported the bill out with strong bipartisan support. Yet here we are, days away from the supposed end of the session, and we still have not had that vote. We have a long-term bipartisan solution, but instead we are being told the CR that might simply fund the government for a few months may have some kind of stop-gap effort—a stop-gap effort that would barely provide enough time, for those who were already threatened with losing their health care at the end of the year—barely have enough time to even reschedule a doctor's appointment.

These miners—many of them have faced devastating illnesses as a result of their time in the mines—will be given absolutely no certainty that they will receive the medical care they need if we simply were to extend this bill to the time of the CR. And what would happen after May 1? And that has nothing to say to the more than 100,000 miners across the country—thousands of them in my State of Virginia—who lose not only health care but also future pension benefits that are threatened by the approaching insolvency of the United Mine Workers 1974 pension fund.

Madam President, you may not know this—as a matter of fact, even my colleague from West Virginia didn't realize this—but today, December 6, is actually National Miners Day. Each year on December 6, we set aside a day to honor the mine workers of today and yesterday and reflect on their contributions to our Nation and rededicate ourselves to doing everything we can to protect their lives and health. Think about that. Today is actually National Miners Day. What better day to take the long awaited action to make sure that for those miners—and particularly, more often than not, for their widows—we honor the commitment that was made back in 1947 to make sure that their health care and pension benefits—at least their health care benefits—are guaranteed. The reality is that even with stronger safety standards, coal mining remains a dangerous and difficult profession. The truth is that nobody can really understand what it is like to be in a mine unless you have been underground. I have had that opportunity a number of times in my career. So many of the miners I worked with and supported when I was Governor and now as I am a Senator have seen all the changes that have come about by the changing nature of the industry, by globalization and by technology. Now many of those communities are on hard times. If we produce one more hit to these communities—a hit whereby the Federal Government doesn't honor the commitment they made to those miners in terms of protecting the health care of the miners and their families—then, quite honestly, we are not doing our job.

We have come together and worked in a bipartisan fashion. We have a solution. We have a solution that wouldn't add to the debt or the deficit. I hope that those who are holding up this long-term solution—and it is not simply one side. We have complete support on this side of the aisle and from a number of our colleagues on the other side of the aisle. Again, we ask: Let's make sure these miners, their widows, and their families don't lose their health care come the end of this year. We can ensure that happens, and I look forward to working with my colleagues to make sure that promise becomes a reality.

With that, I yield the floor to my colleague from Pennsylvania.

Mr. MANCHIN. We are close. It is West Virginia.

I yield the floor to my dear friend and colleague, the Senator from Georgia.

Mr. ISAKSON. Mr. President, I have a parliamentary inquiry.

The PRESIDING OFFICER (Mr. GARDNER). The Senator from Georgia.

Mr. ISAKSON. Mr. President, it was my understanding that I was going to follow the Senator from Connecticut on the VA bill, and I am happy to accommodate the Senator from West Virginia or the Senator from Pennsylvania or the Senator from Connecticut, whomever knows what order we should be in.

Mr. MANCHIN. Sir, that is so kind of you. If we could do that, since the Senator is not here, then we can be very brief on ours, if you don't mind.

Mr. ISAKSON. Will I yield to the Senator from West Virginia?

Mr. MANCHIN. Yes.

Mr. ISAKSON. And then would you yield to the Senator from Connecticut?

Mr. MANCHIN. Let's let you do yours now. Go ahead. The Senator from Connecticut can go ahead.

Mr. ISAKSON. Mr. President, I ask unanimous consent to recognize the Senator from Connecticut, the Senator from Georgia, and then the Senator from Pennsylvania.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from Connecticut.

Mr. BLUMENTHAL. Mr. President, I want to thank my colleagues who are very gracious for yielding to me, and I thank the Presiding Officer for recognizing me.

VETERANS HEALTH CARE AND BENEFITS LEGISLATION

Mr. President, there is welcome news today, which is that the Senate has received from the House H.R. 6416, a bipartisan comprehensive measure that keeps faith with our veterans and makes sure that we continue our progress toward leaving no veteran behind.

I want to emphasize at the very start that this measure is a down payment. It is far from a final or even fully acceptable solution to many of the problems that it addresses. It has more than 70 provisions. It is broad and comprehensive in scope and scale. More vets, many at risk and homeless, will receive the care and benefits they need and deserve. VA hospitals will have better management and more mental health caregivers and emergency room doctors. Families of veterans will be helped by extending critical education benefits to surviving members of those families. Work will finally begin to help descendants of veterans exposed to toxic substances. But again, on those issues and so many more, we are only taking another step in what must be a journey toward helping our veterans with services that they need, deserve, and have earned.

One example that is long awaited is a landmark move that will commence research on descendants of veterans who have been exposed to toxic substances and address the painful residual wounds. It is all the more important today because we know the modern field of combat is ridden with nerve gas and other toxic and poisonous substances that all too often may endanger not only the brave men and women engaged on the battlefield but also their descendants. This measure expands the definition of homeless veterans to include individuals—perhaps women fleeing domestic violence—and it broadens the eligibility for critical homeless prevention programs. Many of those women fleeing brutality and violence deserve this kind of help.

Under this legislation, the Veterans Health Administration will be given the flexibility it needs in scheduling physician workloads to bring them in line with the common practice that prevails in most medical centers. It is past time that we adjust the 1950s schedules, practices, and policies to work regulations within the VA hospitals and the need of today's veterans.

One extraordinarily important provision relates to mental health, long a priority for me. We will make it easier to hire mental health counselors and access mental health treatment, significantly overhauling VA construction practices and authorize major medical construction projects in Reno, NV, and Long Beach, CA.

On the issue of accountability that is so critically important and needs so much work, a provision in this measure would limit the ability of the VA to place an employee who is under investigation for misconduct on paid administrative leave for more than 14 days. This limitation would end the current practice of placing problematic employees on long periods of paid administrative leave and the provision would force the VA leaders to address issues when they arise to impose accountability.

I want to thank my colleague Senator ISAKSON for his leadership, his dedication, his attention to detail, and his flexibility in the best traditions of this body. He clearly has put veterans first by sharing their ideas. They have come to us from many of the veterans service organizations, and I want to acknowledge all of them as well because they have been such a positive force.

I want to thank my staff on the Veterans' Affairs Committee for their work on this bill and others that we passed, such as the Clay Hunt Suicide Prevention for American Veterans Act, which I did in partnership with Senator KAINE and Senator ISAKSON.

We need to do more to help veterans cope with opioid addiction, combat homelessness, protect veterans against identity theft, and make sure that our health care system for veterans continues to improve. It is still clearly a work in progress and still fails to meet the demands of access for thousands and tens of thousands of our veterans, even as it provides quality health care to many others.

Many of the current challenges faced by veterans are directly attributable to management failures, and that is why accountability needs to improve. I want to thank Senators BURR and TESTER for their bipartisan agreement to move forward on these challenges, and, hopefully, we will continue their work in the next session. Likewise, I have worked with Senator MORAN and Chairman ISAKSON on numerous accountability reforms in the Veterans First Act, which was before this Chamber, again, providing goals and measures that we must achieve in the next Congress.

Our bipartisan efforts to pass, hopefully within the next few days, H.R. 6416 is a crucial test of whether there is the necessary will and determination in this body to move ahead on the enormous challenges yet unmet and the enormous obligations that we have.

Just as critical as the health care challenges, so too are the chronic problems in providing veterans the benefits they have earned—benefits that are denied them in decisions they appeal. Today, over 450,000 veterans' appeals await a decision. That is why I introduced the Department of Veterans Affairs Appeals Modernization Act of 2016. The present veterans' appeals process is a travesty. It is a mockery of justice. It must be reformed. It must be given the resources to make it effective. Even when veterans earn benefits, there are too many examples of unequal application. I joined Senator MURRAY in her efforts to ensure that all caregivers for severely wounded and disabled veterans, regardless of when the veterans have served, have access to caregiver support services. These caregivers are moms and dads, spouses, and children who provide care day after day after day at great expense and burden to them with very little support from the Nation that should be as grateful to them as to the veterans themselves.

Simply put, veterans deserve better, and they deserve more. Even when they have grievances, often they are denied a day in court. They are forced into arbitration agreements concerning their reemployment rights and workplace protections. That is why I introduced the Justice for Servicemembers Act in June—to clarify that servicemembers cannot be denied access to the courthouse and forced into arbitration and that servicemembers cannot be forced to sacrifice those rights as a condition of future or continued employment. It is about basic American justice. Who deserves that justice more than our veterans who fought for it and died for it and should never be denied it?

I want to thank again all of my colleagues who have worked with me over these past 2 years. We owe every veteran—regardless of the war or the conflict, regardless of the era—the basic guarantee that they will never be left behind, that this Nation will keep faith with them. This body owes them the obligation to summon the political will to cross partisan lines to make sure that we keep faith with them.

As I yield the floor today, I want to express my gratitude again to Chairman ISAKSON and say that I yield the floor today but none of us should ever yield in the fight to help our veterans.

Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from Georgia.

Mr. ISAKSON. Mr. President, I thank the Senator from Connecticut for his recognition. I want to take this moment on the floor to praise him for the contribution he has made to the committee over the last 2 years.

I want to tell you a story. RICHARD became ranking member in the same year and at the same time that I became chairman. We met, we made a commitment to one another that we were going to move forward as a united Veterans' Affairs Committee, address the problems of our veterans, and do it in a bipartisan fashion. To set the tone for that, we introduced the Clay Hunt Suicide Prevention for American Veterans Act, which RICHARD BLUMENTHAL introduced, and passed it unanimously in the committee and 99 to zero on the floor of the Senate in the first weeks of this Congress. We did so to set the table that whatever the problems are, we should never let our pettiness, our politics, and our partisanship stop us from helping a veteran. Because of RICHARD BLUMENTHAL on suicide prevention and our commitment to make it bipartisan, we passed that unanimously early on in the session and since that time have addressed other issues as well.

The bill we discussed today, which is named in part for RICHARD BLUMENTHAL, is, as he said a minute ago, a down payment on the continuing debt we owe to our veterans who have served us well. On the first day in the committee when I took over as chairman, I said: You know, there are no Republican veterans and no Democratic veterans; there are only American veterans. They are the Americans who fought for our flag, fought for our Constitution, fought for our liberty, and fought for each of us.

I am proud to have fought with RICHARD for our veterans in the foxhole of the Senate.

There is much left to be done. With the passage of this act today, which is named after Senator BLUMENTHAL and Congressman JEFF MILLER, who is retiring from the House, we are making another down payment on what we owe our veterans.

There are other payments soon to come. I met earlier today with JOHN MCCAIN. We have made a commitment to make sure Veterans Choice is made permanent for our veterans and work to see that veterans have the best choice they can have, not to privatize the VA but to optimize the exposure of veterans to health care services wherever they need them.

Last night I met with JON TESTER, our colleague from Montana, who will replace Richard as the new ranking member of the committee. He is equally committed with us to see to it that we move beyond the current sunset of the Veterans Choice Program, to solve the Veterans Choice Program as well as the other problems that confront our veterans.

We are a team of Americans, not Republican Americans or Democratic Americans but Americans committed to see our veterans get what they were promised.

As Senator BLUMENTHAL said, this bill addresses homelessness, it addresses women's health care issues, it addresses the possible passage of exposure to toxic waste in a hereditary fashion to the surviving children and grandchildren of our veterans, an obligation we owe to see to it that if there is any transfer of the exposure of those toxic substances, the VA benefits that go to the veteran also can be passed down to the child who is a victim of heredity through no fault of their own.

We do a lot on the court and the appeals. As Senator BLUMENTHAL said, we have a backlog of 450,000 appeals. We are adding two judges in the appeals process. We need to do more to expedite the appeals process.

This year I was personally disappointed that as close as we got to dealing with the administration and finding a solution, we still failed to say to our veterans: We are going to solve your problem of waiting in line.

Two weeks ago, I had the sad duty of breaking into tears in the living room of a home of a veteran in Marietta, GA. This is a veteran who has been trying for 3 years to get an appeal responded to and can't get it. He is a veteran whose life is about to end without ever getting an answer as to whether his appeal is justified. That is just not right.

We can find a way in this country to get the manpower and womanpower necessary, make the moral commitment that is imperative, and see that our veterans who have an appeal get an expeditious answer. Our veterans need to cooperate in that process by giving us all the backup data as fast as possible for every appeal they ask for. But it is not right for an appeal to last as long as the one that is before us in the U.S. Veterans Administration today, which is 25 years old. That's right, the oldest appeal in the Veterans Administration is 25 years old.

I am committed—and I make the commitment on the floor of the Senate today—to work with RICHARD, JON TESTER, the members of our committee, and everybody in this body to see to it that we say to the 450,000 veterans who are waiting on an appeal: We are going to get you an answer, and we are going to get it faster.

To those sons and daughters today who are signing up for the U.S. military, if you have a need for an appeal, we will see you get an expeditious answer. They deserve the very best. They deserve no less than a thorough answer in response to the appeal they have made.

The last 2 years, it has been a privilege and a pleasure for me for to work as chairman of the Veterans' Affairs Committee. It has been a pleasure to work with RICHARD BLUMENTHAL, and I commend him on the contributions he has made. It has been equally great to work with his staff, who have worked closely with us to see that we brought the best legislation possible to the floor of the Senate.

I particularly thank Tom Bowman, my chief of staff, who has made a lot of magic things happen during these last 2 years. But things have just begun in the Veterans' Committee of the Senate. We are going to work together to reach the dreams we all have to see to it that our veterans have seamless services and that we pay back to them what we owe them, equally what they have sacrificed and pledged for us—their lives, their fortunes, and their sacred honor.

I thank Senator BLUMENTHAL for his support and ask each of our Members in the Senate today to help us pass this downpayment on the promise and the debt we owe to the veterans of the United States of America.

I yield to the Senator from Pennsylvania.

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

MINERS PROTECTION ACT

Mr. CASEY. Mr. President, I rise to speak tonight about the Miners Protection Act.

First, I commend and salute the work that has been done in this Chamber. I especially highlight the Senators on the Democratic side who have been working. I know this will not cover everyone, but I thank Senator MANCHIN, the senior Senator from West Virginia, Senator BROWN of Ohio, Senator WARNER of Virginia, and others, including the Democratic leadership, for working on this. I know we have bipartisan support on this issue. I thank our Republican colleagues who have worked on this.

Unfortunately, just today we are told that in the negotiations, in the back-and-forth on the continuing resolution, which we should be voting on this week—we are told that Majority Leader MCCONNELL is not going to include the Miners Protection Act in the continuing resolution. That is very bad news, especially when we consider how we arrived at this point in terms of bipartisan support. I will get to that in a moment.

Instead, apparently the proposal—or I guess at this point it might be beyond a proposal because it might be in a draft of the continuing resolution. Be that as it may, what has been proposed is 4 months of health care for miners and their families instead of a lifetime guarantee. In a word, that is unacceptable. I will not dwell on that because I want to get to the rest of our arguments on why this is a proposal we cannot accept.

A long time ago, before the turn of the last century, Stephen Crane, known mostly for the ''Red Badge of Courage,'' a great novel, died at the

age of 28 or 29. But prior to his death, in addition to all that he wrote in a great novel, he wrote for McClure's magazine an essay about a coal mine near my hometown of Scranton in Lackawanna County. I come from a county that had of what they used to call hard coal, anthracite coal. It heated homes across the Nation and across the world, for not just years but generations.

Stephen Crane described how dangerous it was to work in a coal mine. He did it with such beauty and such skill, but there were so many horrible images. I, of course, will not read the entire essay, but at one place he described the coal mine as a place of ''inscrutable darkness, a soundless place of tangible loneliness.''

Then he described all the ways a miner could die in the mines. That was in the 1890s. Of course, coal mining today is safer, but still very dangerous. But no matter what the danger level, no matter what the circumstances of today, we owe these miners their health care, their pensions, and we owe their families.

What they don't want to hear, what we should not engage in, is the usual horse trading and kind of back-and-forth of Washington. They deserve the Miners Protection Act. It is not some theory, and it is not some idea; it is legislation that was introduced, debated, and then voted on by the Finance Committee, 18 to 8, a bipartisan vote in a place that sometimes cannot agree on the time of day, let alone something as substantive and as important as health care and pension benefits for those who earned them. This isn't some extra thing we are giving, not some gift we are giving; they earned it, in many cases not just for years but for decades they earned this. OK. We owe them this. This country owes them this. This Chamber owes this to these miners.

It was a promise a long time ago, in the late 1940s. These miners kept their promise. They went to work every day, year after year and decade after decade, and their families depended upon that promise. Some of them served in wars, including Vietnam, as just one example. They served in Vietnam and then worked in the mines again and worked and worked. So they kept their promise. They kept their promise to their family, they kept their promise to their country, and they kept their promise to their company.

Yet here we are once again, and the only ones left out are the miners. The companies will figure out a way to do OK. The country will move forward, the Senate will be just fine, but once again we stand at the precipice or at the threshold of a new time period. People are wanting to get out of here for the holidays, yet coal miners are not asking us to do anything other than keep a promise.

We should keep our promise, and the Republican majority leader should keep that promise. It is outrageous that anyone would think it is appropriate to propose temporarily saving benefits when, in practice, these recipients would be notified almost simultaneously that they are both eligible for benefits—temporarily—and that their benefits will terminate. That is not just wrong; that is an insult. It is an insult to them and to their families.

Just imagine the stress of this. We cannot imagine it. I will answer my own question: We cannot imagine it. Probably no one in this building could imagine the stress on these individuals and their families. It is completely unnecessary.

I know we are limited on time tonight, but I wish to highlight portions of letters that I have received. I know the Senator from West Virginia has received even more because of his great advocacy, his work, and the substantial impact that the mining industry has had on his great State and the work that is done by great miners to this day.

To protect people in case we haven't received their permission, I will not use full names. This letter is from Waynesburg, PA, Southwestern Pennsylvania. I will limit it to a son talking about his mom. He said: ''I am writing to you for my mother.'' He is asking us to vote on this bill. In the letter he says his mom is a widow. ''She now lives on a fixed income. Her life depends on this passing,'' meaning, the bill passing. ''She has cancer and will need surgery.''

Her life depends on this bill passing. OK. This isn't just another bill about some far-off issue. That is a son writing to us from Waynesburg, PA, about his mom.

This is another letter from a son writing about both his parents, and I will provide just an excerpt. He writes that it would be ''very comforting'' to know his parents could ''continue their current UMWA benefits until they can turn 65.'' He is worried about the fact that two parents are going to turn 65 in 2017, and he wants to make sure that they are protected.

The third and last letter I will read an excerpt from is from a miner himself from Johnstown, PA. It is a town I know pretty well in Cambria County. There has been a lot of mining there over many years. He is talking about working the mines for 21 years. He said: ''When you make a promise it should be kept.''

That is what a miner from Johnstown, who worked in the mines for 21 years, reminds us. It is just what I said: ''A promise should be kept.'' It continues, ''This insurance has gotten me and my wife through many health concerns including breast cancer in which my wife still fights today.''

Then he talks about how this would dramatically change their access to doctors and medical care.

So we are not talking about some budget number here; we are talking about a family telling us the life of their mother depends upon it; another family member whose mom has breast cancer, her life—or at least her health care at this point—depends upon it. So this isn't theory.

This legislation, which passed the Finance Committee, as I said, 18 to 8—all we have to do is have the majority leader stand up and say that we are going to attach this to the continuing resolution and have the House Speaker say the same because they have control. That is all they have to do—attach it to the continuing resolution—and we will finally have kept our promise.

Temporary relief is not only insufficient, it is an insult. It is not just insufficient, it is dead wrong.

No one here should be playing games with people's ability to pay for medication, pay for their oxygen. That shouldn't be the subject of games or horse trading.

We delivered in both parties. We delivered to Majority Leader MCCONNELL everything he asked for—committee consideration, debate and vote in the committee—and now it has come to the floor of the U.S. Senate. It is time for all of us to keep our promise to coal miners and to make the Miners Protection Act permanent law and to keep our promise to those miners and their families.

I again commend and salute the Senator from West Virginia, and I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia.

Mr. MANCHIN. Mr. President, I wish to thank my dear friend from Pennsylvania, my neighbor State, for his commitment to the hard-working people who made this country what it is today.

There are a lot of people who don't know the history of how we are the superpower of the world, how we won two world wars, how we energized the whole industrial age, and how we built the middle class. It came because of the domestic energy that we basically extracted right here in America and it was done by mine workers. My grandfather came to this country as a young child in the early 1900s, and his family came here to find a better life. On both sides—I had one set of grandparents who came from Czechoslovakia and the other set came from Italy, and both sides ended up in the coal mines, as well as all of my uncles and cousins. We had these little coal camps all over the area where I grew up in Farmington, WV.

I was so proud of my heritage. I will never forget my Boy Scout leader was Pat Keener. He was a coal miner. When the coal mines automated in 1959, he had to go and find a job in Ohio in the auto industry. My Little League coach was a coal miner—everybody I knew. The hunting and fishing clubs were all coal miners who took all of us and showed us how to do things and enjoy the outdoors.

It is just an unbelievable network of people, and most all of them were military. Most all of them were veterans.

They continued to serve their country when they left the mines and went to the military and came back to the mines.

So I rise with a heavy heart because I thought we had this fixed. I thought this was something we had done—and Senator CASEY laid it out so well. We have done everything we can. This day has been coming for quite some time. I warned everybody 2 years ago that this finite time would come December 31 of this year. We started working in earnest quite a while ago. We were told to go through the regular order, as Senator CASEY said, to do the things we were supposed to do. It got its full purview, if you will, and it passed bipartisanly. Everyone is sympathetic. Everyone knows the hard work that is done and how dangerous it is.

My uncle on my mom's side got killed in the 1968 mine explosion in Farmington. I lost a lot of kids I went to school with, classmates, so it has been very near and dear to me.

As Governor of West Virginia, the Sago Mine disaster, I lost 12 miners there. We had the Logan Mine disaster, and I lost two people there, and then we had the UBB, and we lost 29 people. So I have been through it. I know how dangerous and tough this business is, but I know the country depends on them. We can't run without them.

I want to make sure everyone understands that this was never intended for the government or the taxpayers to pay. It never was. It wasn't set up that way. In 1946, John L. Lewis basically said we are going to go on strike. We are pulling everybody out. This was after World War II. The economy had been ramped up because it was 100 percent employment. We were producing and consuming because of the war effort. When that happened, the economy started heading down. He said: Oh, no. We have to keep this economy going. We can't let this tail off. They said: Listen, from the beginning of the 20th century until 1946—46 years—these miners have done back-breaking work. We have heard the old adage ''I owe my soul to the company store.'' My grandfather told me that when he worked in the mines in the early 1920s, he had four children and was expecting his fifth child, and he said at the end of the day, he had no money. All the script was at the company store. He had to borrow everything there, and at the end of the month, he owed them for working, trying to make it. He had no health care. There was a doctor who helped them a little bit. They had no pension or retirement. They worked until they died, and that was the way it was.

In 1946, they said: Enough is enough. You shouldn't work this hard and so many people benefit. You helped build a country and you get nothing. So they said from that day forward—and that was the Krug amendment that was signed—and by the blessings of the U.S. President, Harry S. Truman. Then they said, from that day forward: All the coal that we mine, a percentage of that coal or the money on that percentage of coal, would go into a black lung fund and then it would go into the AML fund and then it would go into basically the miners health care and retirement—a portion of that.

So it wasn't coming from taxpayers; it was coming from the work they were producing. That is where this came from.

So everything is going fine. Then, basically, Congress passed bankruptcy laws that allowed companies to go and declare bankruptcy and basically divest themselves of all of their responsibilities to the people who worked for them. This was done to them. We had the 74 plant and the 92 plant.

So we dealt with something that was not their making. These people negotiated contracts in good faith by bargaining, and they would give away salary or money that could have been in their pocket because they knew they were going to get guaranteed health care, and now here we stand basically saying: I am sorry. That is not going to happen. You are going to lose your pension and health care.

We have over 16,000 who will lose their health care benefits by the end of this year, less than 4 weeks away—16,000. Senator CASEY read some letters, and I am going to read some letters as well.

What we are doing here is we are holding up—and I know it affects everybody's hard work. This is something that is not easy for me. I have never done this. I have been here 6 years. I have never used this procedure, but I have never felt so committed and so beholden to people who have given so much. We are talking 60-, 70-, and 80-year-old women. Most of the husbands have died; they are still depending on this. The little clinics we have in the coal communities around West Virginia and southwestern Pennsylvania, those coal communities and coal camps and basically those little clinics will not survive. This has a ripple effect.

Now, I understand they are going to give us a 4-month extension—4 months. Let me tell my colleagues what these people are going through. They were told the 1st of October they will lose their benefits of health care; 16,000 were sent letters telling them they will lose them by the end of this year. Now, what we are about to do—which I believe is totally inhumane—we are about to now send them another letter, if passed the way it is going to be presented to us in the CR, that says: I am sorry, Mrs. Smith. I know we told you that you are going to lose your health care on December 1, but now we are going to tell you that in January we will send you another letter and tell you, you are going to lose it in April.

Now, you tell me if there is anything fair about that. You tell me how you face people who have given everything, and now we are just going to extend it for another 4 months with no certainty that anything will continue from there.

We are asking for a permanent fix. We have a pay-for for that permanent fix. It is the excess we have, surplus in the AML money, but everybody has other plans for that. Well, guess what. The people who need it have plans also, to try to keep themselves alive. That is the plan they have, and that is what they are asking for.

I haven't ever used this tactic before, but I feel so compelled that I said we are going to do whatever we can to keep this promise. We have asked for the health care—this had a health care and pension provision. It has only the health care provision right now because we understand that we worked and we negotiated and we said this is something we felt we needed now because they had a finite time—at the end of this month. We will work on the pensions next year, too, to make sure they are going to be preserved.

That being said, I have gotten letters, the same as everybody else in coal country where we come from. Here is one: Dear Senator MANCHIN, without action I, along with thousands of other coal miners and widows of coal miners, will lose our health care on December 31. My husband died in 2012 of pancreatic cancer. He also had black lung. He loved his job even though it was so dangerous. He worked to ensure that we had good health benefits not just for me but for him and our family. I am asking Congress to please do the right thing and don't let us lose our health care benefits.

I have another letter. This is from Carol Turek. Carol writes: My husband worked in the mines with blockages in his brain until he had enough time. He worked even though he was that ill so that I would have insurance if something happened to him, knowing that he was very ill. He retired in 2009 and he passed away in 2011. He was a good worker. He stayed over and worked days off when needed and this is how they thank him in return. How is an older person supposed to live when they take away your retirement, take away your insurance, and never give you raises in Social Security? Everything raises and medical is outrageous. I guess when you are old, they expect you to crawl into a corner and die. Well, I pray every day that God gives me another day, and I am praying that they pass this health care provision so that others and myself can live just a little bit longer.

I have another one. She says: Dear Senator MANCHIN and all of you who are trying to help us. My husband Charles passed away on October 12 from cancer. Patriot Coal filed bankruptcy before Charles passed away. He told me that if they took his medical coverage, that he would not go to the doctor because he didn't want to leave me in debt if he didn't get medical coverage, so he didn't want to go to the doctor. My income was cut almost 75 percent when Charles passed away. Charles was promised these benefits for us both. He worked all of those years in

coal dust to help supply this country with the energy that it needed. I pray that our government will pass this bill to help the thousands that will be affected by not having health care. Some people will choose to buy medicine instead of food. This is so sad and coal miners worked in the mines and risked their lives for so long. Some people that have never worked can get help under the new health care law, so why not help the ones who have worked and paid for it? Why can't they get what they are supposed to get? I am proud to be an American and daughter, sister, wife, and mother of coal miners.

I have one here that explains it very well. She says: Dear Senator. I have dedicated my life to a career in nursing in Boone County, WV. My husband developed kidney disease and heart disease at an early age. He did not smoke, drink, nor do drugs. Doing his work he developed an autoimmune. He worked very sick for 30 years underground in the coal industry as an electrician in the mines and maintenance worker. He was an educated man but he loved working with his hands. After coming out of the U.S. Air Force when he worked in the World Communication Agency as a cryptographic specialist in the White House, he chose to go into the mines as a career because of the reliable future, retirement, and health benefits that it assured for his family. Rick worked hard every day and during the last 15 years that he worked he would sometimes travel over 45 minutes away and take chemotherapy treatments to treat his kidney disease while he was still working. He had heart disease as a result of those treatments. So many heart studies, the stent, and the bypass surgery followed along with the continued renal disease. All of those years he worked in the mines to provide electricity to so many who worked other jobs, were comfortable in their homes, sitting at their desks, not risking life or limb for the luxuries afforded them by the coal miners who had been promised health and retirement benefits if they took less pay, did not strike for same, and continued providing the valuable coal resources this country needed.

Continuing: After educating me to beyond my Master's level; putting a girl through medical school, and another daughter to Master's level in teacher education—we depleted many of our financial resources to do this, knowing we had ''secure retirement and health'' planned for through his union. During the last 1½ years of his life, after retirement, Rick died of leukemia that developed from many years of chemical treatments for his autoimmune kidney disease. Meanwhile, I worked 26 years as a school nurse plus additional years as a registered nurse, planning to utilize my husband's percentage of retirement and health benefits to secure my own retirement.

Continuing: When the courts of this land allowed bankrupting companies to fold on their commitments to our miners, that has become a frightening and impossible situation for myself, a widow, and many more in my same situation. Devastation is the only word that can be used to describe the trickle down effect it will have on so many other businesses and health agencies, if this congressional action does not carry through to secure our union miners, retirees, and widows. You are not only destroying the 12,000 plus miners and widows involved, you are destroying huge infrastructures and businesses that depend upon the income and health benefits where these individuals are served. Please note, only the ''union'' miners contributed to these funds, not the nonunion miners who chose much higher wages opposed to the union wages and structure. Please consider this so we can go into Christmas knowing we have the security of the fund being stabilized. Some will have no way out; some individuals will literally not survive without the needed health care and pensions they worked and sacrificed their health to obtain. Thank you, Sue Peros, Wife of Bert Ricky Peros, South Charleston, WV.

We have many more.

The thing I want to emphasize is that these are real people. This is not just something we are fabricating. These are people who work every day. These are people still living, still contributing, still taking care of their families, still depending on health care. The ripple effect is unbelievable. To sit here and say we are going to pass a CR because we want to go home for Christmas or to say we have the comfort of being home and we have 16,000 miners, retired—we have their widows and families depending on health care, and they have been told they are going to lose it December 31, but we are in a hurry to leave. We just can't wait to leave. We have got to get out of here. Well, I am sorry, that is not the way we do it back home. That is not how we treat our friends and neighbors and especially not how we treat our miners.

I am asking all of you to work with us to make sure we get a permanent fix. That is all I am asking for. We have a way to do this with the surplus AML funds to pay for that, money that was made for mining the coal to be used for this. That is what we are asking for. That is what we promised them. That is what we owe them.

I thank all of my colleagues, each and every one, for being so considerate. We have bipartisan support.

I will say this: If this were a standalone bill on this floor, it would pass. This bill on this floor would pass, with Democrats and Republicans working together. It would also pass in the House. But that is not the case. We can't get a standalone bill. We have what we have. We are asking for the compassion of our leaders on both sides of the aisle here to give us a clean, long-term fix for health care for the retired miners as promised.

Mr. President, I yield the floor to my dear friend from Ohio.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Mr. President, I thank Senator MANCHIN for driving this issue. It was done better with him than without him. I thank him for making a world of difference and Senator CASEY for his impassioned pleas and reading the letters from mine workers, retired mine workers, widows, retired mine workers in Western Pennsylvania and all over West Virginia and Southeast Ohio. We are all getting letters in our offices that are heartfelt and just make me wonder, why aren't we doing something?

I want to share a letter from a lady in Gallipolis, OH, a village. I was just there in the community of Rio Grande earlier this week. She wrote a letter to MITCH MCCONNELL, who is, frankly, the single person standing in the way of doing this.

Dear Leader Mitch McConnell:

Just to inform you as a member of UMWA that it is vitally important that we keep our insurance.

My Husband (Larry) worked 35 years as a miner. He has had bypass surgery this last Aug 8, 2016, also has black lung—COPD—chronic idiopathic gout, acute bronchitis . . .

And other things.

I have history of cardiomyopathy and congestive heart failure. . . . We need members of all Congress to consider all that the Coal Miners has contribution to the welfare of this country. Now we ask that they remember commitments made to the Coal Miners. Please keep that promise made to the Coal Miners.

Over and over: Please keep that promise made to the coal miners. But instead we hear all kinds of excuses. Again, one man—the majority leader of the Senate, the Republican Senator from Kentucky—one man standing in the way.

Senator MANCHIN just said that if this came to a vote right now on the Senate floor, it would easily have enough votes to pass, but one man has blocked this in the continuing resolution. He has kind of distributed—dropped a few crumbs to a few miners for a few weeks on health care but not pensions. But it is one man standing in the way.

When I look at the other Senators—the two Senators from Pennsylvania, one Democrat, one Republican; two Senators from West Virginia, one Democrat, one Republican; two Senators from Ohio, one Democrat, one Republican; two Senators from Virginia, both Democrats—all of them want to move on this, but we keep hearing excuses from one man, the majority leader of the Senate, from Kentucky.

We were told by the majority leader we need bipartisan support. Well, we got it, the bill cosponsored by Republicans and Democrats. As Senator MANCHIN said, if it were brought up to a vote, we could pass it tonight.

Then we were told the bill needs to go through regular order, which is a way, in Washington-speak, of simply

saying: Send it to a committee, examine it, debate it, bring a couple witnesses in, bring in experts, talk about it. We did that.

Senators WARNER and CASEY and I also, on the Finance Committee, helped get this bill through with a bipartisan vote of 18 to 8—not even close. Again, the Republican Senators from Pennsylvania and Ohio joined the Democratic Senators from those two States. Eighteen to eight.

Then we were told by the majority leader—the one man who is stopping this—find a pay-for. Find a way to pay for it. We did. The bill is fully offset. As Senator MANCHIN said, as Senator CASEY said, as a number have said, this does not cost taxpayers a dime. This isn't a bank bailout that cost real dollars. This isn't even the auto rescue, which was so important to my State. That cost real dollars, although the money was paid back. This won't cost taxpayers anything. The Congressional Budget Office estimates it would reduce the Federal deficit by $67 million over 10 years because they would get the right kind of health care rather than having to rely on other kinds of government programs.

These miners—again, we keep saying this over and over. They have done everything we have asked them to do.

Almost seven decades ago, President Truman made this commitment. We have lived up to this commitment through Presidents of both parties, including this President, Barack Obama, but one person—again, one person—has stood in the way. The miners in my State can't afford to have this reduced to political gamesmanship. They are hard-working people. They spent their careers doing dignified work.

I remember when we spoke at the rally on a really hot day earlier this year. There were thousands of miners there. I remember Cecil Roberts, the president of the United Mine Workers, stood up and said: Put your hand up if you are a veteran.

Hundreds of hands went up.

He said: Put your hand up if your father or mother was a veteran.

Again, hundreds more hands went up.

These are people who served their country. And those who weren't off to war were producing the coal to produce the electricity to power the war machine, whether it was World War II or Korea or Vietnam or anything since.

Not taking up the mine workers protection act is violating the promise made by President Truman, violating the promise we all made. The bill should ride on the continuing resolution. The majority party has the ability to make that happen right now.

I was talking a moment ago quietly, privately, with Senator CASEY. We were talking about—unlike the spouses of insurance agents or realtors or teachers or Senators or bankers, mine workers are much more likely to die at a younger age. When you talk about so many, by any cross section, by any analysis of who is most in need of this kind of help, mine workers—there are a lot more mine worker widows than there are in other professions because of the danger of the work. There is a much greater likelihood of dying on the job, much greater likelihood of getting hurt on the job, much greater likelihood in later years of developing brown lung and developing various kinds of heart ailments and bronchial ailments because they worked in the mines. That makes it an even more fundamental moral question, that we do something about this.

How many mine workers are sick and need health care? How many need these pensions? How many mine workers die and their widows need this help? And we sit here doing nothing.

I just say again to Leader MCCONNELL: Get out of the way. Just let this come to an up-or-down—however you want to do this, however you want to schedule this, however you want to move this through the Senate, we should be doing it now. We shouldn't go home for our Christmas break until we take care of these miners. It is the right, moral thing to do. It is the right thing for our country. It is a promise we made, a pledge we made. We should honor it, starting this evening.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mrs. SHAHEEN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. DAINES). Without objection, it is so ordered.

MONTENEGRO MEMBERSHIP IN NATO

Mrs. SHAHEEN. Mr. President, today the Senate Foreign Relations Committee approved the resolution to allow Montenegro to become a member of the North Atlantic Treaty Organization. I am here this afternoon to urge that the full Senate take up this issue and give a prompt vote to the accession before we bring the 114th Congress to a close.

A top priority of the historic NATO summit that happened in Warsaw in July was bolstering the alliance's resolve and capacity to deter Russian aggression against the Baltic States and the rest of NATO's eastern flank. Also at the Warsaw summit, NATO formally invited Montenegro to become its 29th member nation. All 28 member states must now ratify the accession protocol according to our own procedures. In the United States, that means the Senate must ratify the protocol.

In the decades since the end of the Cold War, NATO has been a tremendous force for stability, democratization, and freedom in Europe. That is exactly why more countries, including those created by the breakup of Yugoslavia, are eager to join.

Montenegro has worked hard to prove its commitment to NATO, including by strengthening its democracy, making significant progress in fighting corruption, and improving its defense capabilities. Montenegro's membership in NATO would have significant impact, including completing the alliance's unbroken control of the Adriatic coast. It will serve to further anchor the Balkan region in the security framework of NATO.

It speaks volumes that Vladimir Putin has fiercely opposed Montenegro's accession to NATO. During Montenegro's general election in October, authorities arrested 20 people suspected of plotting, with support from Russia, to overthrow the Cabinet and assassinate Montenegro's Prime Minister, Milo Djukanovic. While NATO is purely a defensive alliance, Russia has warned Montenegro of retaliation if the country continues to pursue NATO membership. By quickly approving the resolution on accession, the Senate can demonstrate that it stands firmly with Montenegro and that we will not allow Putin to bully European states with impunity.

Montenegro's membership would reaffirm that NATO's door remains open to aspirant nations that share the values of all NATO members and stand ready to contribute to NATO operations. NATO must stand firm on the principle that the decision to seek membership in the alliance cannot be blocked by a third party.

NATO is the most ambitious and successful alliance in history. Across nearly seven decades, it has risen to every challenge: deterring the Soviet Union during the Cold War; integrating former Soviet bloc countries into a Europe whole and free; restoring peace in the Balkans after Yugoslavia's breakup; invoking article 5 in defense of the United States after September 11; and most recently, taking the fight to the Islamic State terrorist group in Syria and Iraq.

Montenegro is a small nation with big strategic importance. Its accession to NATO would strengthen the alliance. In turn, membership in NATO would bolster Montenegro's democracy and independence.

As I said, today the Foreign Relations Committee approved the resolution of accession. I hope the full Senate will bring the resolution to the floor for a prompt, favorable vote. The United States has always stood strong for freedom and democracy in Europe, and it is time to stand strong for freedom and democracy in Montenegro.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. GARDNER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—S. 3084

Mr. GARDNER. Mr. President, I am pleased to come to the floor tonight to

talk about a bill, S. 3084, the American Innovation and Competitiveness Act. This is a piece of legislation that has taken several years of patience, perseverance, a lot of hard work, and testimony from both sides of the aisle.

I am pleased that Senator PETERS from Michigan and I have finally been able to come up with a product that has the strongest bipartisan support in both the Senate and the House. This is an effort that builds on the America COMPETES legislation. America COMPETES was first passed over a decade ago as an effort to make the United States more competitive economically, an effort to make sure we had the skills and our workers, the STEM force education to compete with nations around the world as global competition increases, as other nations try to gain an advantage over the United States in their manufacturing processes and in their innovation processes.

The America COMPETES legislation arose from a report that was put together by a group of individuals—very smart business leaders, scientists—known as the ''Rising Above the Gathering Storm'' report, the ''RAGS'' report, the idea being, how are we going to make sure the United States remains competitive and how do we make sure we have the education programs we need in this country to gear the next-generation workforce for a more competitive environment? So we put together this bill, a bipartisan bill, passing it out of the Commerce Committee for the first time in a decade—the America COMPETES legislation—to renew this policy effort.

Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 695, S. 3084. I further ask that the committee-reported substitute amendment be withdrawn; the Gardner substitute amendment be agreed to; the bill, as amended, be considered read a third time and passed; and that the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

The Senator from Ohio.

Mr. BROWN. Mr. President, reserving the right to object, this legislation sounds pretty good. It is bipartisan, but I also know that in my State there are more than 1,000 retired mine workers and their widows. We know that people who have worked in the mines for 30, 35, or 40 years are more likely to be sick and die younger. These 1,000-plus mine workers have been denied their pensions. Their pensions and health care have been threatened. Many of them are widows of mine workers. Yet, we have bipartisan support. It passed out of the Finance Committee 16 to 8, and Senator MCCONNELL—one person in this body—has blocked the mine workers pension and health care legislation for weeks and weeks and months and months.

I would be very happy to support and help Senator GARDNER in this legislation, the American Innovation and Competitiveness Act. I hope he will speak to the Republican leader and ask him to do the right thing to help these pensioners, widows, and mine workers whose pensions are threatened and whose health care is about to be cut off.

Mr. President, I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Colorado.

Mr. GARDNER. Mr. President, again, I want to reiterate that this legislation, the America COMPETES bill, is a bipartisan product. We have spent countless hours working with people from around the country to come up with a bill that focuses on giving workers and employees the skills they need to succeed.

I understand the objection of the Senator from Ohio, which is based on the need to move forward with the legislation they are talking about, but it is my understanding that there is at least an effort to work on that legislation, which would provide some time to come up with a longer term solution providing an extension of the health care coverage they have been seeking for some time, although not the entire benefit package they were hoping would be extended under the legislation they were also talking about.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Mr. President, I can't exactly speak for my colleagues, but I know a number of Senators on this side of the aisle will be pleased to work with the Senator on this legislation, and I am hopeful we can do both in the days ahead.

The PRESIDING OFFICER. The Senator from Colorado.

Mr. GARDNER. Mr. President, I thank the Senator from Ohio.

One of the challenges we have, of course, is the calendar, as this reaches toward the end. Again, I am committed to stay here as long as we can to fix this and make this work. I do worry about our colleagues across the hallway and their calendar and making sure that they are finding the time to process this legislation, along with the legislation that the Senator from Ohio is concerned about.

Again, I think this is something that we ought to be able to move on as we address the concerns of the Senator from Ohio—and the concerns that I think, at least to some degree, will be addressed in the continuing resolution—and to continue to work on legislation that is truly bipartisan and beneficial from a standpoint of providing more resources for manufacturing partnerships, more resources for commercialization efforts, additional resources for STEM education, and having more underrepresented minority community members involved in STEM education fields. These are things I think we can work on, and this place has to have the ability to work together on efforts that the Senator from Ohio is so concerned about and also the efforts that we have through the America COMPETES legislation. I believe we can do both.

I understand the objection, and I appreciate the offer and willingness to work together. But I know when you have a House and a Senate that work under two different calendars, one of which is under our control—again, let's stay here until we get this done. There is one calendar that is out of our control, and I just hope we can move forward on this because all 50 States do benefit from the bipartisan work we have been able to put forward on the American Innovation and Competitiveness Act.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Mr. President, I appreciate those words. I also recognize that we have not seen a continuing resolution yet. There is a rumor that it has 4 months of health care but it doesn't have any pension assistance, and there is nothing about fully funding their pension and continuing with their health care. They have already gotten a notice saying their health care will be terminated. If we continue this for 4 months, they will get another notice in January. That is all hearsay because we still have not seen the bill.

I know we are working on separate calendars. I understand that, and maybe the House is going to take the ball and go home, showing a real maturity in its leadership. The fact is we need to stay here. I don't know why we need to get out and go home for Christmas tomorrow or even Friday. I think we should stay here until we finish. We have been here until December 24 before. I am fine with that. I want to be home. I have a wife whom I love and kids and grandchildren, and I want to see them all, but I want to take care of these miners.

Show us a bill. Let's talk about it, negotiate this, and follow regular order. I believe we had an 18-to-8 vote on taking care of this health care for miners. We can honor what Senator GARDNER, the Senator from Colorado, wants to do. I am fine with doing that, but we are not going to do any of those things until we take care of the miners. We have an obligation to them that President Truman had begun with a pledge. It is morally reprehensible to betray that commitment to 12,000 retired miners and their widows in the country.

I want to do all of that, and I know Senator GARDNER does too. It is up to my colleagues to push the majority leader, who, for whatever reason, is blocking this and is continuing to block our ability to do this. We should stay here until it is finished.

I yield the floor.

MORNING BUSINESS

Mr. GARDNER. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO JAMES R. CLAPPER, JR.

Mrs. FEINSTEIN. Mr. President, today I wish to pay tribute to a true leader in every sense of the word. James R. Clapper, Jr., has had a defining impact on the U.S. Intelligence Community over his past half-century of service. As of today, he has served 2,190 days as the Director of National Intelligence, DNI, which makes him the longest serving DNI, surpassing the combined time of all the Directors who served before him. Director Clapper has dedicated his life to the field of intelligence, and his contributions to the Nation are significant.

Jim Clapper began his distinguished career as a rifleman in the U.S. Marine Corps Reserve, before becoming a commissioned officer in the U.S. Air Force in 1963. For 31 years, he served this Nation in various intelligence capacities, commanding signals intelligence operations both inside the United States and overseas. From 1991–1995, he served as the Director of the Defense Intelligence Agency, retiring with the rank of lieutenant general. After 6 years in the private sector, he took over the reins of the National Imagery and Mapping Agency in 2001 and spearheaded its transformation into today's National Geospatial-Intelligence Agency.

In 2007, President George W. Bush nominated General Clapper to serve as the Department of Defense's chief intelligence officer as the Under Secretary of Defense for Intelligence, where he served in both the Bush and Obama administrations. President Obama nominated Jim Clapper to serve as the Director of National Intelligence in 2010, only the fourth person to serve in that position since its creation in the Intelligence Reform and Terrorism Prevention Act of 2004.

As the chairman of the Senate Select Committee on Intelligence, I was initially concerned that General Clapper's military background would be inappropriate to lead a mostly civilian intelligence enterprise. He made clear his intent to lead objectively and in the best interest of intelligence, and he did. He brought important stability to this position. During the next 6 years, he and I talked frequently and discussed many topics of critical importance to this Nation. We also discussed changes he sought to implement to improve the operations of the intelligence community. These changes had, and will continue to have, a positive and lasting impact on the intelligence community.

During his tenure as DNI, Director Clapper focused relentlessly on intelligence integration, with a definitive focus on mission. He made important changes in how the Office of the Director of National Intelligence operated, including creating National Intelligence Managers, who oversaw the integration efforts across the intelligence community for specific mission areas. He put in place a planning, programming, budgeting, and evaluation system that set priorities, managed resources, and evaluated effectiveness of each taxpayer dollar being spent. He also began the ambitious goal of creating a common information technology infrastructure, known as the Intelligence Community Information Technology Enterprise, IC ITE, that will dramatically serve to improve intelligence integration. In addition, Director Clapper brought increased transparency to the intelligence community so that the public can have greater confidence in our intelligence capabilities and their appropriate use. His accomplishments are too many to enumerate here, but suffice it to say that his positive legacy within the intelligence community will continue for years to come.

Part of Director Clapper's strength as the Director of National Intelligence has been his deep understanding of this Nation's intelligence activities and his extensive network of colleagues with whom he worked across the intelligence enterprise to help serve the users of intelligence, be they policymakers, warfighters, law enforcement, or national security officials. His commitment to advancing women and minorities in the field of intelligence is particularly noteworthy. He selected the first woman to lead a major intelligence agency, naming Betty Sapp to be Director of the National Reconnaissance Office. He also named Tricia Long to be Director of the National Geospatial-Intelligence Agency and recruited Stephanie O'Sullivan to be Principal Deputy Director for National Intelligence as his partner in creating and instituting change in the intelligence community.

While Jim Clapper portrays a somewhat gruff exterior, his concern for his employees and quiet sensitivities are well known to the countless staff who have received hand-written notes from him extolling exemplary work, congratulations on births and weddings, or heartfelt condolences for the loss of a loved one.

Today I want to congratulate him on his remarkable career and offer my gratitude for his decades of commitment and sacrifices to this Nation. I also thank his wife, Susan, who herself was an NSA employee, for her unfailing support over their 51-year marriage that allowed for the successes that Jim has achieved. The Nation owes this patriot a debt of gratitude.

RECOGNIZING THE JEWISH WAR VETERANS OF THE UNITED STATES OF AMERICA

Mr. KIRK. Mr. President, I would like to honor the Jewish War Veterans of the United States of America, JWV, as they celebrate their 120th anniversary. Their service has not only benefitted the Jewish and veterans communities, but this Nation as a whole.

Since 1896, the JWV has been the Nation's leading organization representing those of Jewish faith who have served overseas in the military. The Jewish community has served in every war and conflict that this great country has fought, beginning with the Revolutionary War, including the Civil War, and with our current military engagements in Iraq and Afghanistan. In 1933, the JWV protested against Nazi Germany's policies towards Jews. JWV continued its legacy in advocacy in 1963, as the only veterans organization that joined Martin Luther King, Jr.'s March on Washington for civil rights.

The JWV continues its mission to preserve the Jewish American military legacy, protect veterans rights, and promote community with 250 posts across the Nation and in Israel. The JWV provides numerous contributions to society, including partnering with Boy Scouts of America and Girl Scouts of the USA; working with JROTC, ROTC, and other military college programs; providing disaster relief services to victims of natural disasters; and speaking out against anti-Semitism. The JWV has proven that Jews have been and continue to be a vital element in the preservation of American doctrine and the defense and maintenance of American security.

I congratulate and commend the JWV for their hard work and dedication in defending our free institutions, fighting against bigotry and prejudice, and honoring Jewish servicemembers, veterans and their families who have made great sacrifices for our country.

HONORING OFFICER COLLIN ROSE

Mr. PETERS. Mr. President, I rise today to recognize Officer Collin Rose who tragically lost his life while serving as an officer for the Wayne State University Police Department in Detroit, MI.

Officer Rose was born on April 1, 1987, to parents Randy and Karen Rose in Pittsburgh, PA. Moving to Michigan, he attended Gull Lake High School in Richland, where he excelled in baseball and was a standout football player.

Always interested in law enforcement, Officer Rose continued his education at Ferris State University's Criminal Justice and Law Enforcement Academy. He was an active member of the Sigma Phi Epsilon fraternity, eventually becoming president of his chapter and modeling the fraternity's principles of virtue, diligence, and brotherly love. He graduated from Ferris State University in 2010 and continued to live by the principles set forth by Sigma Phi Epsilon as he embarked upon his law enforcement career.

After graduating from Ferris, Officer Rose interned for the Springfield Police Department. He served as a cadet at the New Baltimore Police Department and held his first position as a police officer for the Village of Richland, home of his high school alma mater.

Officer Rose began working for the Wayne State University Police Department in 2011, where he was dually sworn in as a Detroit police officer. As a 5-year veteran of the department, he patrolled Wayne State University's campus, as well as a greater portion of the midtown Detroit area. He was also working to complete his master's degree at Wayne State University.

His greatest passion was working with canines; he was a proud member of the Metro Detroit Schutzhund Club. He also served as the K9 unit trainer for the Wayne State University Police Department. Officer Rose and his trained canines were often called upon by other law enforcement agencies, such as the FBI, ATF, Secret Service, the Detroit police, and Detroit public schools, to assist in searches for suspects, narcotics, and explosives.

Officer Rose was very much engaged with the community he served. He would go to nearby schools to give demonstrations and speak to students. Since 2013, he has been a memorial bicyclist for the Police Unity Tour to raise funds and honor fallen officers.

The tragedy that took his life occurred on November 22, 2016, while Officer Rose was responding to reports of burglaries in the area. While investigating, he questioned a person on a bicycle who opened fire on Officer Rose, leaving him critically wounded. On November 23, 2016, Officer Rose succumbed to his injuries and passed away at Detroit Receiving Hospital. He is the first fallen officer of the Wayne State University Police Department.

Again, today I wish to ask my colleagues to join me in tribute to a courageous young man, who undauntedly served his community, as well as the State of Michigan. Officer Rose and his family are owed a debt of gratitude for his tremendous sacrifice.

TRIBUTE TO BOB PROUD

Mr. PORTMAN. Mr. President, today I wish to recognize Clermont County commissioner Bob Proud on a distinguished career serving the residents of Clermont County and southern Ohio.

A seven-term Clermont County, OH, commissioner, Bob is a lifelong Clermont County resident. He grew up on a small farm in Batavia Township and graduated from Amelia High School. After Bob graduated from Cumberland College, he began his career in public service working for Clermont Senior Services.

Bob is a champion of the community and a committed public servant to Clermont County, serving in a number of capacities, from the construction of a new Clermont County animal shelter in 2002, the reclamation of the former Ford transmission plant on State Route 32, to his service for senior citizens as a Meals on Wheels volunteer and his work on the Coalition for a Drug-Free Clermont County. For the last 25 years, Bob has served as chairman of the Ohio Valley Regional Development Commission, OVRDC, a public regional planning commission that serves 12 southern Ohio counties. Bob has and continues to serve Clermont County with integrity and distinction.

Bob is also a champion for our troops, veterans, and their families. He has been nationally recognized for his work on behalf of our military, as he founded the ''Whole In My Heart'' military family support group. As he prepares to retire from this position, I commend him for his hard work and leadership to make southern Ohio a better place to live and work.

ADDITIONAL STATEMENTS

TRIBUTE TO WILLIAM ''BILL'' A. BAXTER

● Mr. BOOZMAN. Mr. President, today I wish to recognize an Arkansan who has made a profound impact on the agriculture industry in my home State of Arkansas and the Nation.

William ''Bill'' A. Baxter earned his bachelor of science degree from the University of Arkansas in 1949. Since then, Bill has been a leader on agricultural issues and has served in various roles to advance the interests of the farming community.

As president of both Baxter Land Company and Camp Nine Company, Bill is the head of two family corporations that own 20,000 acres of land in southeast Arkansas and produce cotton, rice, soybeans, corn, wheat, grain, sorghum, timber, and catfish. He was also an organizer and partner in several cotton production organizations and is a past president of the Agricultural Council of Arkansas. He has been a director and chairman of the Cotton Board, a member and delegate of the National Cotton Council, and a board member of Cotton Council International.

Baxter has also received the ''Arkansas Cotton Achievement Award,'' which recognized his many accomplishments within the agricultural community. He was inducted into the Arkansas Agricultural Hall of Fame in 1999.

In addition to being a promoter and political voice for cotton and agriculture in Arkansas and the United States, over the course of his life, Baxter has been an avid outdoorsman and conservationist. Bill's advocacy on behalf of Arkansas agriculture has made a significant impact on an industry that plays a vitally important role in our State's economy and culture.

This December, Bill is being inducted into the Cotton Research and Promotion Hall of Fame. This program recognizes U.S. cotton industry leaders who have made substantial contributions to the cotton industry.

I congratulate Bill on receiving yet another award acknowledging his support for and contribution to agriculture in Arkansas and throughout the country. This is a well-deserved honor, and I appreciate Bill's years of dedication to this industry.●

TRIBUTE TO LARRY K. JAMES

● Mr. BOOZMAN. Mr. President, today I wish to recognize University of Central Arkansas Police Chief Larry K. James for more than 40 years of service in law enforcement. Chief James began his service at the University of Central Arkansas in 1993 and is retiring in January 2017.

Prior to taking his position at the head of UCA's police department, James served as deputy chief of police at San Jose State University, as well director of public safety for the Portland Community College District. He has committed his career to strengthening public safety on college campuses by cultivating professional law enforcement practices that have made campus communities safer.

Chief James has also represented Arkansas and the law enforcement community incredibly well. He is past president of the Arkansas Association of Chiefs of Police, which represents more than 200 chief law enforcement executives throughout the State. Additionally, he has served as governmental affairs representative and consultant-evaluator with the International Association of Campus Law Enforcement Administrators.

James has implemented community-oriented policing programs by bringing together various groups and organizations to resolve crime-related problems and enhance safety on the campuses he has been apart of. He is a proven and steadfast leader.

When a shooting occurred on the campus of UCA on October 26, 2008, James's work in preparing his department and the university community to respond to a threatening event was put to the test. Training to respond to this type of incident, directed by Chief James, resulted in the suspects being quickly apprehended before further loss of life could occur.

Chief Larry James has dedicated his entire career to public safety and protecting his community. I want to thank Chief James for his tireless dedication and wish him well in his retirement. I hope others in the law enforcement community will look to his record as an example of how rewarding and meaningful a career in public service can be.●

TRIBUTE TO MOREY AND SONDRA MYERS

● Mr. CASEY. Mr. President, today it gives me great pleasure to congratulate Morey and Sondra Myers of Scranton, PA, on their 60th wedding anniversary. Morey and Sondra have dedicated their lives to each other and their family, inspiring all of us through six decades of devotion to one another and have established themselves as true citizens dedicated to philanthropy. I congratulate Morey and Sondra on this anniversary of their lives together. I have had the honor to know both of them for 40 years, and I have benefited

greatly from their loyal friendship. Sondra and Morey have come to embody the spirit of public service, and I have no doubt that Pennsylvania and the Nation are better places due to their hard work, dedication, and passion.

Sondra and Morey served the people of Pennsylvania during my father's time as Governor of Pennsylvania. Sondra was cultural adviser to the Governor and Morey served as general counsel. The Commonwealth benefited greatly from their hard work and exemplary service.

Sondra Myers is currently a senior fellow for international, civic, and cultural projects at the University of Scranton and the director of the Schemel Forum. She has made it her life's work to bring about the integration of culture into public policy and to strengthen the culture of democracy worldwide. She has served as the chair of the Pennsylvania Humanities Council, president of the Federation of State Humanities Councils, and was the founding president of Citizens for the Arts in Pennsylvania and the State Arts Advocacy League of America. Her work ethic and passion were called upon in 1980 when President Jimmy Carter appointed her to serve on the U.S. Commission of Fine Arts and again in 2011 when President Barack Obama appointed her to serve on the Commission on Presidential Scholars. A frequent contributor to the Scranton Times-Tribune's opinion page and the author and editor of several books, Sondra has worked hard to eloquently spread her message of the central role that citizens play in a successful democracy and the crucial role of higher education in preparing an engaged citizenry. Sondra has traveled throughout the world to present programs on democracy and civil society, and through her numerous published works, symposia, lectures, and personal relationships, she has spread her influence to a wide array of countries, cultures, and people.

Morey Myers is one of the most respected lawyers in Pennsylvania, with decades of legal experience which began with his graduation from the Yale University School of Law. His career continued to grow through his time as general counsel and remains active today as a partner in the Scranton law firm of Myers, Brier & Kelly LLP, which he helped to found. He has served as adviser and counsel to businesses and governments, leaving his indelible mark on countless lives and causes. His dedication to the rule of law and social justice were forged in the 1960s when, during the Civil Rights movement, he travelled to the South to provide legal services for those taking on the forces of segregation and racism. He has served as consultant to the President's Commission on Campus Unrest, Pennsylvania assistant attorney general, chief counsel to Pennsylvania's Milk Control Commission, and he currently serves as a fellow for the American Bar Association. He has remained active in academia as a visiting lecturer at Yale University, Rutgers University, the University of Scranton, Haverford College, Hamilton College, the University of Wyoming, Lafayette College, and Temple University.

This brief overview of the lives of Sondra and Morey Myers cannot fully encompass all they have accomplished, nor adequately describe the depth of their compassion, dedication, and love of community. As a Scrantonian who represents the Commonwealth of Pennsylvania, I am proud to call them neighbors and friends. I would like to once again extend my congratulations to Sondra and Morey on 60 years of marriage and to commend them for their decades of public service. I wish them continued happiness in the years ahead.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGES FROM THE HOUSE

ENROLLED BILL SIGNED

At 12:03 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the Speaker has signed the following enrolled bill:

S. 2577. An act to protect crime victims' rights, to eliminate the substantial backlog of DNA and other forensic evidence samples to improve and expand the forensic science testing capacity of Federal, State, and local crime laboratories, to increase research and development of new testing technologies, to develop new training programs regarding the collection and use of forensic evidence, to provide post-conviction testing of DNA evidence to exonerate the innocent, to support accreditation efforts of forensic science laboratories and medical examiner officers, to address training and equipment needs, to improve the performance of counsel in State capital cases, and for other purposes.

The enrolled bill was subsequently signed by the President pro tempore (Mr. HATCH).

At 2:44 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, without amendment:

S. 795. An act to enhance whistleblower protection for contractor and grantee employees.

S. 3395. An act to require limitations on prescribed burns.

The message also announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 2726. An act to require the Secretary of the Treasury to mint commemorative coins in recognition of the 50th anniversary of the first manned landing on the Moon.

H.R. 5015. An act to restore amounts improperly withheld for tax purposes from severance payments to individuals who retired or separated from service in the Armed Forces for combat-related injuries, and for other purposes.

H.R. 6415. An act to provide for the appointment of members of the Board of Directors of the Office of Compliance to replace members whose terms expire during 2017, and for other purposes.

H.R. 6427. An act to improve the operation of United States capital markets, and for other purposes.

The message further announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con Res. 179. Concurrent resolution directing the Secretary of the Senate to make certain corrections in the enrollment of S. 2943.

The message also announced that the House passed the following bill, with an amendment, in which it requests the concurrence of the Senate:

S. 1635. An act to authorize the Department of State for fiscal year 2016, and for other purposes.

MEASURES REFERRED

The following concurrent resolution was read, and referred as indicated:

H. Con. Res. 40. Concurrent resolution encouraging reunions of divided Korean American families; to the Committee on Foreign Relations.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

S. 2997. A bill to direct the Federal Communications Commission to commence proceedings related to the resiliency of critical telecommunications networks during times of emergency, and for other purposes (Rept. No. 114–392).

S. 3097. A bill to establish the SelectUSA program, and for other purposes (Rept. No. 114–393).

By Mr. GRASSLEY, from the Committee on the Judiciary:

Report to accompany S. 2763, a bill to provide the victims of Holocaust-era persecution and their heirs a fair opportunity to recover works of art confiscated or misappropriated by the Nazis (Rept. No. 114–394).

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

S. 421. A bill to amend the Communications Act of 1934 to provide for greater transparency and efficiency in the procedures followed by the Federal Communications Commission, and for other purposes.

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, without amendment:

S. 1685. A bill to direct the Federal Communications Commission to extend to private land use restrictions its rule relating to reasonable accommodation of amateur service communications.

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

S. 2283. A bill to ensure that small business providers of broadband Internet access service can devote resources to broadband deployment rather than compliance with cumbersome regulatory requirements.

By Mr. THUNE, from the Committee on Commerce, Science, and Transportation, without amendment:

S. 2508. A bill to reduce sports-related concussions in youth, and for other purposes.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. CORKER for the Committee on Foreign Relations.

*Kamala Shirin Lakhdhir, of Connecticut, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Malaysia.

Nominee: Kamala Shirin Lakhdhir.

Post: Ambassador to Malaysia.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: N/A.

3. Children and Spouses Names: N/A.

4. Parents: Ann Hallan Lakhdhir (Mother): $60.00, March 2015, Democratic National Committee (DNC); $50.00, March 2015, Democratic Congressional Campaign; $38.00, January 2015, Emily's List; $40.00, January 2015, Democratic National Committee (DNC); $40.00, March 2014, Democratic National Committee (DNC); $38.00, January 2014, Emily's List; $25.00, June 2013, Democratic National Committee (DNC); $50.00, January 2013, Democratic Congressional Campaign; $25.00, January 2012, Democratic Congressional Campaign.

5. Grandparents: Deceased.

6. Brothers and Spouses: David K. Lakhdhir (Brother): $1,000, March 2016, Katie McGinty for Senate; $300, November 2015, Tim Kaine via Kaine for Virginia; $1,600, November 2015, Common Ground PAC; $1,000, October 2015, Charles Schumer via Friends of Schumer; $2,000, October 2015, Kaine for Common Ground; $1,037.95, October 2015, Democratic Hope Fund; $1,037.95, October 2015, Democratic Hope Fund; $1,037.95, October 2015, Democratic Hope Fund; $2,700, June 2015, Hillary Clinton via Hillary for America; $1,000, May 2015, Charles Schumer via Friends of Schumer; $1,000, April 2015, Kamala Harris via Kamala Harris for Senate; $1,000, July 2014, Mark Begich via Alaskans for Begich 2014; $1,500, April 2014, Ready PAC; $2,400, February 2014, Timothy Kaine via Kaine for Virginia; $2,600, February 2014, Timothy Kaine via Kaine for Virginia; $2,600, July 2013, Cory Booker via Cory Booker for Senate; $1,750, October 2012, Democratic Party of Virginia; $2,916.73, September 2012, Democratic Executive Committee of Florida; $20,000, September 2012, Obama Victory Fund 2012; $2,500, September 2012, Elizabeth Warren via Elizabeth for MA INC; $2,500, September 2012, Elizabeth Esty via Friends of Elizabeth Esty; $1,361.15, September 2012, Colorado Democratic Party; $2,333, September 2012, Democratic Party of Wisconsin; $1,944.42, September 2012, Iowa Democratic Party; $1,944.42, September 2012, Nevada State Democratic Party; $583.31, September 2012, New Hampshire Democratic Party; $2,500, September 2012, Obama/Biden via Obama for America; $4,666.72, September 2012, Ohio Democratic Party; $1,000, June 2012, Shelley Adler via Shelley Adler for Congress; $1,000, June 2012, Elizabeth Esty via Friends of Elizabeth; $2,500, March 2012, Esty Elizabeth Esty via Friends of Elizabeth Esty.

Linda B. Lakhdhir (Sister-in-law): $2,700, June 2015, Hillary Clinton via Hillary for America; $2,600, July 2013, Cory Booker via Cory Booker for Senate; $500, April 2013, Americans for Responsible Solutions–PAC; $5,000, January 2013, Off the Sidelines PAC; $2,500, October 2012, Obama Victory Fund 2012; $2,500, October 2012, Obama/Biden via Obama for America; $1,000, July 2012, Carolyn Maloney via Maloney for Congress; $1,000, June 2012, Timothy Kaine via Kaine for Virginia; $2,000, February 2012, Democratic Party Committee Abroad; $2,500, February 2012, Shelley Adler via Shelley Adler for Congress; $2,500, February 2012, Shelley Adler via Shelley Adler for Congress; $373, January 2012, Obama Victory Fund 2012;

7. Sisters and Spouses: N/A.

Mr. CORKER. Mr. President, for the Committee on Foreign Relations I report favorably the following nomination lists which were printed in the RECORDS on the dates indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators.

The PRESIDING OFFICER. Without objection, it is so ordered.

*Foreign Service nominations beginning with Marva Michelle Butler and ending with Adonis Mariano Matos de Mello, which nominations were received by the Senate and appeared in the Congressional Record on November 15, 2016.

*Foreign Service nominations beginning with Stephen Donald Mull and ending with Victoria Jane Nuland, which nominations were received by the Senate and appeared in the Congressional Record on November 29, 2016.

*Foreign Service nominations beginning with Robert L. Adams and ending with Laura Ann Griesmer, which nominations were received by the Senate and appeared in the Congressional Record on November 29, 2016.

*Foreign Service nominations beginning with Robert Stephen Beecroft and ending with Marie L. Yovanovitch, which nominations were received by the Senate and appeared in the Congressional Record on November 29, 2016.

*Foreign Service nominations beginning with Tristan J. Allen and ending with William F. Zeman, which nominations were received by the Senate and appeared in the Congressional Record on November 29, 2016.

*Foreign Service nominations beginning with Anthony Abba and ending with Michael David Zgoda, which nominations were received by the Senate and appeared in the Congressional Record on November 29, 2016.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. RUBIO:

S. 3503. A bill to decrease the cost of hiring, and increase the take-home pay of, Puerto Rican workers; to the Committee on Finance.

By Mr. HATCH (for himself, Mr. WYDEN, Mr. ISAKSON, and Mr. WARNER):

S. 3504. A bill to amend title XVIII of the Social Security Act to implement Medicare payment policies designed to improve management of chronic disease, streamline care coordination, and improve quality outcomes without adding to the deficit; to the Committee on Finance.

By Mr. REED (for himself, Mr. BROWN, Mr. MERKLEY, Mr. WHITEHOUSE, and Mr. BLUMENTHAL):

S. 3505. A bill to require analysis of various bankruptcy proposals in order to determine whether those proposals would reduce systemic risk and moral hazard, and for other purposes; to the Committee on the Judiciary.

By Mr. HATCH (for himself and Mr. WYDEN):

S. 3506. A bill to amend the Internal Revenue Code of 1986 to make technical corrections, and for other purposes; to the Committee on Finance.

By Mr. CORNYN:

S. 3507. A bill to extend the waiver of limitations with respect to excluding from gross income amounts received by wrongfully incarcerated individuals; to the Committee on Finance.

By Mr. LANKFORD:

S. 3508. A bill to prohibit the Secretary of Energy and the Administrator of the Environmental Protection Agency from considering the social cost of carbon, the social cost of methane, the social cost of nitrous oxide, or the social cost of any other greenhouse gas in taking any action, and for other purposes; to the Committee on Environment and Public Works.

By Mr. RUBIO:

S. 3509. A bill to impose sanctions with respect to the People's Republic of China in relation to activities in the South China Sea and the East China Sea, and for other purposes; to the Committee on Foreign Relations.

By Mr. FLAKE:

S. 3510. A bill to facilitate the creation of American jobs by immigrant entrepreneurs; to the Committee on the Judiciary.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. PETERS (for himself and Ms. STABENOW):

S. Res. 631. A resolution celebrating the history of the Detroit River with the 15-year commemoration of the International Underground Railroad Memorial Monument, comprised of the Gateway to Freedom Monument in Detroit, Michigan, and the Tower of Freedom Monument in Windsor, Ontario, Canada; to the Committee on Energy and Natural Resources.

ADDITIONAL COSPONSORS

S. 299

At the request of Mr. FLAKE, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 299, a bill to allow travel between the United States and Cuba.

S. 440

At the request of Mr. CRAPO, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 440, a bill to amend the Internal Revenue Code of 1986 to provide for an exclusion for assistance provided to participants in certain veterinary student loan repayment or forgiveness.

S. 1473

At the request of Mr. MARKEY, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1473, a bill to authorize the appropriation of funds to the Centers for Disease Control and Prevention for conducting or supporting research on firearms safety or gun violence prevention.

S. 1605

At the request of Mr. CARDIN, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S. 1605, a bill to amend the Millennium Challenge Act of 2003 to authorize concurrent compacts for purposes of regional economic integration and cross-border collaborations, and for other purposes.

S. 1831

At the request of Mr. TOOMEY, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 1831, a bill to revise section 48 of title 18, United States Code, and for other purposes.

S. 1911

At the request of Ms. COLLINS, the names of the Senator from Washington (Ms. CANTWELL), the Senator from Florida (Mr. NELSON), the Senator from Massachusetts (Ms. WARREN) and the Senator from Michigan (Mr. PETERS) were added as cosponsors of S. 1911, a bill to implement policies to end preventable maternal, newborn, and child deaths globally.

S. 2085

At the request of Mr. PORTMAN, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 2085, a bill to clarify that nonprofit organizations such as Habitat for Humanity may accept donated mortgage appraisals, and for other purposes.

S. 2268

At the request of Mr. CORNYN, the name of the Senator from Alaska (Ms. MURKOWSKI) was added as a cosponsor of S. 2268, a bill to award a Congressional Gold Medal to the United States Army Dust Off crews of the Vietnam War, collectively, in recognition of their extraordinary heroism and lifesaving actions in Vietnam.

S. 2628

At the request of Mr. COONS, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 2628, a bill to authorize the National Emergency Medical Services Memorial Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

S. 2649

At the request of Mr. ROUNDS, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 2649, a bill to modify the treatment of the costs of health care furnished under section 101 of the Veterans Access, Choice, and Accountability Act of 2014 to veterans covered by health-plan contracts.

S. 2763

At the request of Mr. CORNYN, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 2763, a bill to provide the victims of Holocaust-era persecution and their heirs a fair opportunity to recover works of art confiscated or misappropriated by the Nazis.

S. 2858

At the request of Mr. FRANKEN, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 2858, a bill to amend part D of title XVIII of the Social Security Act to require the Secretary of Health and Human Services to negotiate for lower prices for Medicare prescription drugs.

S. 2957

At the request of Mr. NELSON, the names of the Senator from Missouri (Mr. BLUNT), the Senator from Minnesota (Mr. FRANKEN), the Senator from Pennsylvania (Mr. CASEY), the Senator from Massachusetts (Mr. MARKEY), the Senator from Maine (Mr. KING), the Senator from Washington (Ms. CANTWELL), the Senator from New Mexico (Mr. UDALL), the Senator from New York (Mrs. GILLIBRAND), the Senator from Virginia (Mr. KAINE), the Senator from Illinois (Mr. DURBIN), the Senator from Oregon (Mr. WYDEN), the Senator from California (Mrs. BOXER), the Senator from Maine (Ms. COLLINS), the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator from Hawaii (Ms. HIRONO), the Senator from New Hampshire (Mrs. SHAHEEN), the Senator from New Mexico (Mr. HEINRICH), the Senator from Delaware (Mr. CARPER), the Senator from Delaware (Mr. COONS), the Senator from New Jersey (Mr. BOOKER), the Senator from Michigan (Ms. STABENOW) and the Senator from Oklahoma (Mr. INHOFE) were added as cosponsors of S. 2957, a bill to require the Secretary of the Treasury to mint commemorative coins in recognition of the 50th anniversary of the first manned landing on the Moon.

S. 2989

At the request of Ms. MURKOWSKI, the names of the Senator from Louisiana (Mr. VITTER), the Senator from Kansas (Mr. ROBERTS), the Senator from Louisiana (Mr. CASSIDY), the Senator from Florida (Mr. RUBIO), the Senator from West Virginia (Mrs. CAPITO), the Senator from Maryland (Ms. MIKULSKI), the Senator from New Mexico (Mr. HEINRICH), the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Massachusetts (Mr. MARKEY) and the Senator from Maine (Mr. KING) were added as cosponsors of S. 2989, a bill to award a Congressional Gold Medal, collectively, to the United States merchant mariners of World War II, in recognition of their dedicated and vital service during World War II.

S. 3065

At the request of Mr. WYDEN, the names of the Senator from Delaware (Mr. CARPER) and the Senator from Washington (Ms. CANTWELL) were added as cosponsors of S. 3065, a bill to amend parts B and E of title IV of the Social Security Act to invest in funding prevention and family services to help keep children safe and supported at home, to ensure that children in foster care are placed in the least restrictive, most family-like, and appropriate settings, and for other purposes.

S. 3142

At the request of Ms. BALDWIN, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S. 3142, a bill to require reporting on acts of certain foreign countries on Holocaust era assets and related issues.

S. 3237

At the request of Mr. HATCH, the names of the Senator from Nevada (Mr. HELLER) and the Senator from New Jersey (Mr. BOOKER) were added as cosponsors of S. 3237, a bill to amend the Internal Revenue Code of 1986 to reform the low-income housing credit, and for other purposes.

S. 3256

At the request of Mr. DURBIN, the names of the Senator from Washington (Mrs. MURRAY), the Senator from New Jersey (Mr. BOOKER) and the Senator from Maryland (Mr. CARDIN) were added as cosponsors of S. 3256, a bill to amend the Foreign Assistance Act of 1961 to provide assistance for developing countries to promote quality basic education and to establish the goal of all children in school and learning as an objective of the United States foreign assistance policy, and for other purposes.

S. 3328

At the request of Mr. BLUMENTHAL, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 3328, a bill to amend title 38, United States Code, to reform the rights and processes relating to appeals of decisions regarding claims for benefits under the laws administered by the Secretary of Veterans Affairs, and for other purposes.

S. 3353

At the request of Mr. SCOTT, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of S. 3353, a bill to amend title 31, United States Code, to prohibit the Internal Revenue Service from carrying out seizures relating to a structuring transaction unless the property to be seized derived from an illegal source or the

funds were structured for the purpose of concealing the violation of another criminal law or regulation, to require notice and a post-seizure hearing for such seizures, and for other purposes.

S. 3447

At the request of Mr. SULLIVAN, the names of the Senator from Michigan (Mr. PETERS) and the Senator from Texas (Mr. CORNYN) were added as cosponsors of S. 3447, a bill to direct the Secretary of the Army to place in Arlington National Cemetery a memorial honoring the helicopter pilots and crew members of the Vietnam era, and for other purposes.

S. 3486

At the request of Mr. WARNER, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 3486, a bill to amend chapter 31 of title 5, United States Code, to establish in statute the Presidential Innovation Fellows Program.

S.J. RES. 40

At the request of Mr. BOOZMAN, the name of the Senator from Michigan (Mr. PETERS) was added as a cosponsor of S.J. Res. 40, a joint resolution approving the location of a memorial to commemorate and honor the members of the Armed Forces that served on active duty in support of Operation Desert Storm or Operation Desert Shield.

S. RES. 615

At the request of Mr. CASEY, the name of the Senator from Connecticut (Mr. MURPHY) was added as a cosponsor of S. Res. 615, a resolution expressing support for the designation of November 16, 2016, as ''American Special Hockey Day''.

AMENDMENT NO. 5130

At the request of Mr. MANCHIN, the names of the Senator from Virginia (Mr. WARNER) and the Senator from Pennsylvania (Mr. CASEY) were added as cosponsors of amendment No. 5130 intended to be proposed to H.R. 34, a bill to authorize and strengthen the tsunami detection, forecast, warning, research, and mitigation program of the National Oceanic and Atmospheric Administration, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. REED (for himself, Mr. BROWN, Mr. MERKLEY, Mr. WHITEHOUSE, and Mr. BLUMENTHAL):

S. 3505. A bill to require analysis of various bankruptcy proposals in order to determine whether those proposals would reduce systemic risk and moral hazard, and for other purposes; to the Committee on the Judiciary.

Mr. REED. Mr. President, today I am introducing the Bankruptcy Fairness Act, with the goals of bolstering financial stability in the United States and requiring the necessary analysis to assess the consequences of potential changes we might make in the future to the Bankruptcy Code.

One of the many lessons that we learned from the financial crisis is that reckless Wall Street behavior can have devastating consequences on middle class Americans, too many of whom lost their jobs, their nest eggs, and their homes. Statistics bear this out. Nationally, over 750,000 jobs per month were lost between January and April 2009. In Rhode Island, over 1,800 jobs per month were lost during this same period. The Dow Jones Industrial Average dropped from an average of 13,677.89 in July 2007 to an average of 7,235.47 in March 2009, resulting in a 47.1 percent loss for many families who for years had set aside hard earned paychecks for emergencies, college tuitions, and retirements. Nationwide, there were nearly 7.5 million home foreclosures and short sales between July 2007 and November 2014. Unfortunately, the impacts remain to this day for some of our neighbors in Rhode Island and throughout the country as they continue to look for a decent paying job or are faced with gut-wrenching financial decisions like whether to turn the heat off or to skip feeding the family another day just to make ends meet.

That lesson of how many of our neighbors suffered due to the sins of the rich and powerful seems to be fading for some of my colleagues. Indeed, there appears to be an effort to further rig the system in favor of elites, this time through the Bankruptcy code. We must stop this effort cold in its tracks. Before we make changes to the Bankruptcy code, we should ensure that a thorough analysis is conducted so we have facts at hand. If anything, we should be seeking to restore fairness and balance to the Bankruptcy code, and this is what my legislation strives for.

Specifically, my bill directs the Financial Stability Oversight Council and the Office of Financial Research to do two things: work hand in hand with the Administrative Office of the United States Courts and the Executive Office for United States Trustees to ensure that bankruptcy judges have, on an ongoing basis, the necessary financial expertise to oversee the orderly resolution of a failed mega bank; and update the Administrative Office of the United States Courts' post-crisis review of the Bankruptcy Code's ability to resolve complex financial institutions and make recommendations to Congress regarding changes that would strengthen financial stability in the United States.

Second, my legislation permits the federal agencies that supervise large complex financial institutions to offer their advice and expertise to the bankruptcy court whenever a mega bank files for bankruptcy. This is important because these Federal agencies can assist the court in deciphering complex financial products while also providing the court with an independent assessment of how the court's decisions could affect financial stability in the United States.

Lastly, my legislation directs our financial regulators and experts to do the necessary homework to justify proposed changes to the Bankruptcy Code. Some proposed changes have drawn praise, and others have drawn concern. For example, should Wall Street banks still be able to cut to the front of the line and take more than their fair share, while ordinary creditors, such as employees and customers, have to wait in the back of the line? When a jumbo bank gets in trouble, why should those customers who place the riskiest bets, such as large Wall Street hedge funds, get paid back in full while ordinary customers may not get paid back at all? Should shareholders be prevented from holding the mega bank's board of directors accountable for most actions, when a mega bank files for bankruptcy? Is it really possible for a trillion-dollar jumbo bank to be processed through bankruptcy safely in just 48 hours without hurting our economy? Is it fair that ordinary creditors, such as small businesses, who are owed their hard earned dollars, would be given virtually no notice of a mega bank's bankruptcy, making it nearly impossible for them to fight for their rights?

These are important, incredibly complex, questions that need thorough answers. Many of my colleagues have called for greater deliberation and analysis before enacting legislation. My legislation heeds this call. Let's take a moment to ensure that we've really done our homework so that we can all be confident that we're really accomplishing what we're aiming to do: making our financial system safer and restoring fairness and balance to the Bankruptcy Code, especially for hardworking ordinary Americans.

I thank Senator BROWN, Senator MERKLEY, Senator WHITEHOUSE, and Senator BLUMENTHAL for joining me in introducing the Bankruptcy Fairness Act. I also thank the U.S. Department of the Treasury, Americans for Financial Reform, Harvard Law School Professor Mark Roe, Delaware Law School Professor Bruce Grohsgal, and MIT Professor Simon Johnson for their support. I urge our colleagues to join us in pressing for action on this legislation.

By Mr. HATCH (for himself and Mr. WYDEN):

S. 3506. A bill to amend the Internal Revenue Code of 1986 to make technical corrections, and for other purposes; to the Committee on Finance.

Mr. HATCH. Mr. President, the Tax Technical Corrections Act of 2016 makes tax technical corrections and other corrections including clerical and deadwood-related corrections. The bill revises and updates S. 2775, the Technical Corrections Act of 2016, which was introduced on April 11, 2016. Ranking Member WYDEN and I have asked the nonpartisan Joint Committee on Taxation to make available to the public a technical explanation of the bill, JCX–91–16. The technical explanation expresses the Committee's

understanding and legislative intent behind this important legislation. It is available on the Joint Committee's website at www.jct.gov.

By Mr. CORNYN:

S. 3507. A bill to extend the waiver of limitations with respect to excluding from gross income amounts received by wrongfully incarcerated individuals; to the Committee on Finance.

Mr. CORNYN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 3507

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. EXTENSION OF WAIVER OF LIMITATIONS WITH RESPECT TO EXCLUDING FROM GROSS INCOME AMOUNTS RECEIVED BY WRONGFULLY INCARCERATED INDIVIDUALS.

(a) IN GENERAL.—Section 304(d) of the Protecting Americans from Tax Hikes Act of 2015 is amended by striking ''1-year'' and inserting ''2-year''.

(b) TECHNICAL CORRECTION.—Section 304(d) of such Act is amended by striking ''application of this Act'' and inserting ''application of this section''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in section 304 of the Protecting Americans from Tax Hikes Act of 2015.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 631—CELEBRATING THE HISTORY OF THE DETROIT RIVER WITH THE 15-YEAR COMMEMORATION OF THE INTERNATIONAL UNDERGROUND RAILROAD MEMORIAL MONUMENT, COMPRISED OF THE GATEWAY TO FREEDOM MONUMENT IN DETROIT, MICHIGAN, AND THE TOWER OF FREEDOM MONUMENT IN WINDSOR, ONTARIO, CANADA

Mr. PETERS (for himself and Ms. STABENOW) submitted the following resolution; which was referred to the Committee on Energy and Natural Resources:

S. RES. 631

Whereas millions of Africans and their descendants were enslaved in the United States and the American colonies from 1619 through 1865;

Whereas Africans forced into slavery were torn from their families and loved ones and stripped of their names and heritage;

Whereas the faith and strength of character demonstrated by former slaves and the descendants of former slaves are an example for all people of the United States, regardless of background, religion, or race;

Whereas tens of thousands of people of African descent bravely and silently escaped their chains to follow the perilous Underground Railroad northward towards freedom in Canada;

Whereas the Detroit River played a central role for these passengers of the Underground Railroad on their way to freedom;

Whereas in October 2001, the City of Detroit, Michigan, joined with Windsor and Essex Counties in Ontario, Canada, to memorialize the courage of these freedom seekers with an international memorial to the Underground Railroad, comprised of the Tower of Freedom Monument in Windsor, Ontario, and the Gateway to Freedom Monument in Detroit, Michigan;

Whereas the deep roots that slaves, refugees, and immigrants who reached Canada from the United States created in Canadian society are a tribute to the determination of the descendants of those slaves, refugees, and immigrants to safeguard the history of the struggles and endurance of their forebears;

Whereas the observance of the 15-year commemoration of the International Underground Railroad Memorial Monument was celebrated during the month of October 2016;

Whereas the International Underground Railroad Memorial Monument represents a cooperative international partnership dedicated to education and research with the goal of promoting cross-border understanding, economic development, and cultural heritage tourism;

Whereas over the course of history, the United States has become a symbol of democracy and freedom around the world; and

Whereas the legacy of African-Americans and their fight for freedom is interwoven with the fabric of democracy and freedom in the United States: Now, therefore, be it

Resolved, That the Senate—

(1) celebrates the history of the Detroit River with a 15-year commemoration of the International Underground Railroad Memorial Monument, comprised of the Gateway to Freedom Monument in Detroit, Michigan, and the Tower of Freedom Monument in Windsor, Ontario, Canada; and

(2) supports the official recognition, by national and international entities, of the Detroit River as an area of historic importance to the history of the Underground Railroad and the fight for freedom in North America.

AMENDMENTS SUBMITTED AND PROPOSED

SA 5138. Mr. SANDERS submitted an amendment intended to be proposed by him to the bill H.R. 34, to authorize and strengthen the tsunami detection, forecast, warning, research, and mitigation program of the National Oceanic and Atmospheric Administration, and for other purposes; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 5138. Mr. SANDERS submitted an amendment intended to be proposed by him to the bill H.R. 34, to authorize and strengthen the tsunami detection, forecast, warning, research, and mitigation program of the National Oceanic and Atmospheric Administration, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in division A, insert the following:

SEC. _____. NEGOTIATION OF LOWER COVERED PART D DRUG PRICES ON BEHALF OF MEDICARE BENEFICIARIES.

(a) NEGOTIATION BY SECRETARY.—Section 1860D–11 of the Social Security Act (42 U.S.C. 1395w–111) is amended by striking subsection (i) (relating to noninterference) and inserting the following:

''(i) NEGOTIATION OF LOWER DRUG PRICES.—

''(1) IN GENERAL.—Notwithstanding any other provision of law, the Secretary shall negotiate with pharmaceutical manufacturers the prices (including discounts, rebates, and other price concessions) that may be charged to PDP sponsors and MA organizations for covered part D drugs for part D eligible individuals who are enrolled under a prescription drug plan or under an MA–PD plan.

''(2) NO CHANGE IN RULES FOR FORMULARIES.—

''(A) IN GENERAL.—Nothing in paragraph (1) shall be construed to authorize the Secretary to establish or require a particular formulary.

''(B) CONSTRUCTION.—Subparagraph (A) shall not be construed as affecting the Secretary's authority to ensure appropriate and adequate access to covered part D drugs under prescription drug plans and under MA–PD plans, including compliance of such plans with formulary requirements under section 1860D–4(b)(3).

''(3) CONSTRUCTION.—Nothing in this subsection shall be construed as preventing the sponsor of a prescription drug plan, or an organization offering an MA–PD plan, from obtaining a discount or reduction of the price for a covered part D drug below the price negotiated under paragraph (1).''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect on the date of the enactment of this Act and shall first apply to negotiations and prices for plan years beginning on January 1, 2017.

SEC. ____. PRESCRIPTION DRUG IMPORTATION.

(a) IMPORTATION BY PHARMACISTS AND WHOLESALERS.—Section 804(b) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 384(b)) is amended by striking ''The Secretary,'' and inserting ''The Secretary, not later than January 1, 2017,''.

(b) IMPORTATION BY INDIVIDUALS.—

(1) IN GENERAL.—Section 804 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 384) is amended—

(A) in subsection (f), by striking ''within Canada'';

(B) in subsection (j)—

(i) in paragraph (1), in the matter preceding subparagraph (A), by inserting ''from countries other than Canada'' after ''devices''; and

(ii) in paragraph (3)—

(I) in the heading, by striking ''FROM CANADA'' and inserting ''FROM COUNTRIES OTHER THAN CANADA''; and

(II) in subparagraph (C), by striking ''from Canada,''; and

(C) by striking subsection (l) and inserting the following:

''(l) IMPORTATION OF PRESCRIPTION DRUGS FROM CANADA.—Individuals may import from Canada any prescription drug that meets the requirements of subparagraphs (A) through (F) of subsection (j)(3).''.

(2) REGULATIONS.—Not later than January 1, 2017, the Secretary of Health and Human Services shall promulgate regulations with respect to subsection (l) of section 804 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 384) (as amended by paragraph (1)(B)).

(3) EFFECTIVE DATE.—The amendments made by paragraph (1) shall take effect on the effective date of the final regulations promulgated in accordance with paragraph (2).

(c) FDASIA AMENDMENT.—Subsection (c) of section 708 of the Food and Drug Administration Safety and Innovation Act (Public Law 112–144; 126 Stat. 1068) is amended by striking ''The amendment made by'' and all that follows through the period at the end and inserting ''The amendment made by subsection (a) and the regulations promulgated under subsection (b) shall apply beginning on the effective date of the regulations promulgated under section 804(b) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 384(b)) and the amendments made by section 201(b) of the 21st Century Cures Act.''.

AUTHORITY FOR COMMITTEES TO MEET

Mr. WICKER. Mr. President, I have four requests for committees to meet during today's session of the Senate. They have approval of the Majority and Minority leaders.

Pursuant to Rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON ARMED SERVICES

The Committee on Armed Services is authorized to meet during the session of the Senate on December 6, 2016, at 9:30 a.m.

COMMITTEE ON FOREIGN RELATIONS

The Committee on Foreign Relations is authorized to meet during the session of the Senate on December 6, 2016, at 2:30 p.m.

SELECT COMMITTEE ON INTELLIGENCE

The Select Committee on Intelligence is authorized to meet during the session of the Senate on December 6, 2016, at 2:30 p.m. in room SH–219 of the Hart Senate Office Building.

SUBCOMMITTEE ON CRIME AND TERRORISM

The Committee on the Judiciary, Subcommittee on Crime and Terrorism is authorized to meet during the session of the Senate on December 6, 2016, at 2:30 p.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Ensuring Independence: Are Additional Firewalls Needed to Protect Congressional Oversight Staff from Retaliatory Criminal Referrals?''

PRIVILEGES OF THE FLOOR

Mrs. MURRAY. Mr. President, I ask unanimous consent that Megan Howard, a fellow with Senator MURRAY's HELP Committee staff, be granted floor privileges for the remainder of the 114th Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MERKLEY. Mr. President, I ask unanimous consent that my intern, Emma Peterson, be granted privileges of the floor for the balance of the day.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BLUNT. Mr. President, I ask unanimous consent that the military fellow from our office, MAJ Andy Anderson, be given floor privileges for the consideration of H.R. 34.

The PRESIDING OFFICER. Without objection, it is so ordered.

APPOINTMENTS

The PRESIDING OFFICER. The Chair announces, on behalf of the majority leader, pursuant to the provisions of Public Law 106–398, as amended by Public Law 108–7, and in consultation with the chairmen of the Senate Committee on Armed Services and the Senate Committee on Finance, the reappointment of the following individual to serve as a member of the United States-China Economic Security Review Commission: Robin Cleveland of Virginia, for a term beginning January 1, 2017, and expiring December 31, 2018.

The Chair announces, on behalf of the majority leader, pursuant to the provisions of Public Law 114–224, the appointment of the following individuals to serve as members of the Virgin Islands of the United States Centennial Commission: the Honorable LISA MURKOWSKI of Alaska and the Honorable MARCO RUBIO of Florida.

ORDER OF PROCEDURE

Mr. GARDNER. Mr. President, I ask unanimous consent that notwithstanding rule XXII, postcloture time with respect to the motion to concur in the House amendment to the Senate amendment to H.R. 34 expire at 2 p.m. on Wednesday, December 7; further, I ask that if cloture is invoked on the conference report to accompany S. 2943, that the postcloture time be counted as if cloture had been invoked at 1 a.m. on Wednesday, December 7.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR WEDNESDAY, DECEMBER 7, 2016

Mr. GARDNER. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, December 7; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; further, that following leader remarks, the Senate resume consideration of the House message to accompany H.R. 34 postcloture; finally, that the time from 3 p.m. until 4 p.m. tomorrow be reserved for tributes to the President of the Senate.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. GARDNER. Mr. President, Senators should expect votes in relation to the 21st Century Cures legislation as well as the conference report to accompany the National Defense Authorization Act beginning at 2 p.m. tomorrow.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. GARDNER. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:54 p.m., adjourned until Wednesday, December 7, 2016, at 9:30 a.m.

NOMINATIONS

Executive nominations received by the Senate:

METROPOLITAN WASHINGTON AIRPORTS AUTHORITY

RICHARD A. KENNEDY, OF PENNSYLVANIA, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE METROPOLITAN WASHINGTON AIRPORTS AUTHORITY FOR A TERM EXPIRING MAY 30, 2022. (REAPPOINTMENT)

LEGAL SERVICES CORPORATION

REBECCA EMILY RAPP, OF WISCONSIN, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE LEGAL SERVICES CORPORATION FOR A TERM EXPIRING JULY 13, 2019, VICE SHARON L. BROWNE, RESIGNED.

DEPARTMENT OF VETERANS AFFAIRS

THOMAS J. MURPHY, OF COLORADO, TO BE UNDER SECRETARY FOR BENEFITS OF THE DEPARTMENT OF VETERANS AFFAIRS, VICE ALLISON A. HICKEY, RESIGNED.

IN THE AIR FORCE

THE FOLLOWING AIR NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12212:

To be brigadier general

COL. JEFFERY D. AEBISCHER
COL. NATHAN B. ALHOLINNA
COL. BORIS R. ARMSTRONG
COL. KIMBERLY A. BAUMANN
COL. ROBERT L. BELL
COL. DONALD R. BEVIS, JR.
COL. SHAWN N. BRATTON
COL. JEFFREY L. BUTLER
COL. MICHAEL E. CALLAHAN
COL. KEVIN J. CAMPBELL
COL. THOMAS S. CAUTHEN
COL. LAWRENCE L. CHRISTENSEN
COL. SHAWN A. CLOUTHIER
COL. GERALD K. COLMER, JR.
COL. DARWIN L. CRAIG
COL. ROBERT C. DESKO
COL. JOHN R. DIDONNA, JR.
COL. KEVIN M. DONOVAN
COL. BOBBI J. DOORENBOS
COL. DAVID M. DZIOBKOWSKI
COL. RANDAL K. EFFERSON
COL. HOWARD L. EISSLER III
COL. SHAWN D. FORD
COL. JED J. FRENCH
COL. DANIEL E. GABRIELLI
COL. MARK P. GAUL
COL. RAINER G. GOMEZ
COL. PATRICK M. GUINEE
COL. PENNY C. HODGES-GOETZ
COL. JEREMY C. HORN
COL. CASSANDRA D. HOWARD
COL. PAUL D. JOHNSON
COL. EDWARD S. JONES
COL. GARY W. KIRK
COL. HEIDI L. KJOS
COL. MEAGHAN Q. LECLERC
COL. GREGOR J. LEIST
COL. SUZANNE B. LIPCAMAN
COL. PAUL S. LYMAN
COL. KEITH G. MACDONALD
COL. ROLF E. MAMMEN
COL. GERALD E. MCDONALD
COL. CHRISTOPHER G. MCGRAW
COL. MICHAEL R. MORGAN
COL. REBECCA L. O'CONNOR
COL. JEFFREY L. RYAN
COL. JON S. SAFSTROM
COL. WILLIAM L. SPARROW
COL. JAMES R. STEVENSON, JR.
COL. JEFFREY D. STOREY
COL. BRYAN J. TEFF
COL. EDWARD L. VAUGHAN IV
COL. APRIL D. VOGEL
COL. CHARLES M. WALKER
COL. CHRISTOPHER S. WALKER
COL. DAVID B. WALKER
COL. DAVID A. WEISHAAR
COL. WENDY B. WENKE
COL. GREGORY T. WHITE
COL. JEFFREY J. WIEGAND
COL. BRENT W. WRIGHT
COL. WILLIAM T. YATES
COL. DANIEL S. YENCHESKY

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY NURSE CORPS UNDER TITLE 10, U.S.C., SECTIONS 624 AND 3064:

To be major

CHRISTOPHER K. BERTHOLD

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be major

SETH C. LYDEM

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be major

JAMES ROBINSON, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C. SECTION 624:

To be colonel

CHRISTOPHER C. OSTBY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE RESERVE OF THE ARMY UNDER TITLE 10, U.S.C., SECTION 12203:

To be colonel

CALVIN E. FISH

EXTENSIONS OF REMARKS

RECOGNIZING THE NORTHWEST INDIANA SYMPHONY ORCHESTRA'S 75TH ANNIVERSARY

HON. PETER J. VISCLOSKY

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. VISCLOSKY. Mr. Speaker, it is with great respect and admiration that I rise to recognize the Northwest Indiana Symphony Orchestra upon its 75th anniversary. In honor of this momentous occasion, the Northwest Indiana Symphony Orchestra is hosting a commemorative gala that will feature its signature Holiday Pops concert on Thursday, December 8, 2016 at the Star Plaza Theatre in Merrillville, Indiana.

The Northwest Indiana Symphony Orchestra humbly originated in 1941 as a vision from cello instructor Arthur Zack, who hailed from Gary, Indiana. Using the Gary Post-Tribune as a means to recruit performers, Zack led twenty-six musicians for the group's first rehearsal. From this foundation, the roster flourished, and the first concert was performed on December 7, 1941, at Seaman Hall of City Methodist Church in Gary. Regrettably, news of the attack on Pearl Harbor was received prior to the start of the performance, which prompted Zack to open the concert with a heart-felt rendition of ''The Star-Spangled Banner'' on the piano. With reverence to the importance of that decision, the Northwest Indiana Symphony Orchestra will commence its 75th anniversary concert with the national anthem.

While remaining with the organization for several more years, Zack's perseverance and energy helped shape and establish the group, then known as the Gary Symphony. Over the years, its musicians have delighted audiences with their performances at various churches and schools throughout Northwest Indiana. In 1972, the members reorganized as the Northwest Indiana Symphony Orchestra and continued to host concerts at area high schools.

The Northwest Indiana Symphony Orchestra held its first performance at the Star Plaza Theatre in September of 1981, the same venue at which the outstanding musicians performed their first concert in November of 1982. The following year, the Northwest Indiana Symphony Orchestra branded the Star Plaza Theatre as its home concert hall, although they still remained true to their roots by performing at other local venues in the community, including a series of outdoor concerts.

The Northwest Indiana Symphony is now comprised of the Northwest Indiana Symphony Orchestra, the Northwest Indiana Symphony Youth Orchestra, the Northwest Indiana Symphony Chorus, and the Women's Association. The Orchestra takes pride in its dedication to encouraging youth to broaden their knowledge and appreciation of music through educational programs.

Since its inception, scores of distinguished and renowned musicians and entertainers from around the world have featured their talents alongside the orchestra. Well-known names in music, such as Benny Goodman, Dizzy Gillespie, Doc Severinsen and the Tonight Show Band, and Roger Williams, have performed as guest artists over the years.

For the last 75 years, the Northwest Indiana Symphony Orchestra has entertained and enchanted audiences with their executions of both classical and contemporary music. Their faithful devotion to promoting the arts in Northwest Indiana has provided accessibility to cultural and enriching opportunities for exceptional musical performances to all local residents.

Mr. Speaker, I ask you and my other distinguished colleagues to join me in congratulating and celebrating the Northwest Indiana Symphony Orchestra on its 75th anniversary. Northwest Indiana is grateful and proud to be home to the brilliantly talented members of this organization, and for their outstanding gifts, leadership, and service, these members are worthy of the highest praise.

HONORING GARY A. ROSEMA, OTTAWA COUNTY SHERIFF, ON HIS RETIREMENT

HON. BILL HUIZENGA

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. HUIZENGA of Michigan. Mr. Speaker, I rise today to congratulate my friend, Sheriff Gary Rosema, on his retirement from the Ottawa County Sheriff's Office.

After graduating from the FBI National Academy, Gary Rosema began his career in law enforcement in 1973 as a patrol officer for the Coopersville Police Department. One year later, he joined the Ottawa County Sheriff's Department as a deputy and achieved the rank of detective in 1981. In 1993, Gary Rosema was elected to serve as Ottawa County's sheriff.

Sheriff Rosema has dedicated his career to providing the highest quality law enforcement service to the residents and communities in Ottawa County. His relentless work for the community includes serving as chairman of Michigan's Council on Law Enforcement and Criminal Justice Initiatives and Chair of the Operations Board of Directors for the West Michigan Enforcement Team, which is a multi-jurisdictional drug enforcement task force.

Mr. Speaker, on behalf of the Second District of Michigan, we thank Sheriff Gary Rosema for his 43 years of service to West Michigan and to our nation.

HONORING THE FAIRFIELD AREA HIGH SCHOOL GIRLS' SOCCER TEAM

HON. SCOTT PERRY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. PERRY. Mr. Speaker, today I proudly honor my constituents, the Fairfield Area High School Girls' Soccer team, for earning the Pennsylvania Interscholastic Athletic Association Class 1A championship. These young women have brought home the first state team sports title in Fairfield's history.

The Green Knights defeated District VII Champion, Shady Side, in a 9–4 victory at Hersheypark Stadium on November 18, 2016. The Green Knights finished the season with a 25–1 record and scored 27 goals in four state playoff games, including two nine-goal performances.

For a team from a small community, the Green Knights had an army of loyal supporters. I extend my congratulations to head coach Phomma Phanhthy, and the school officials, family and friends who supported these young women on this incredible journey.

On behalf of Pennsylvania's Fourth Congressional District, I commend and congratulate the Fairfield Area High School Girls' Soccer team on the hard work and dedication that led to their 2016 State Championship.

HONORING MOTHER IRENE L. GARY

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable person, Mrs. Irene L. Gary.

Mrs. Irene L. Gary affectionately known as ''Julie'' was born on September 5, 1930 in Goodman, Mississippi to the late Ozzie Lloyd and Essie Long. She received her general education from the Georgeville Community. She served as a cook for Holmes Community College which she loved doing for many years. Throughout her career she served in the capacity for other businesses until retirement.

Irene's spiritual life began when she joined Georgeville United Methodist Church in Goodman, Mississippi. She relocated to Lexington, Mississippi where she began to worship at St. John C.M.E. Church under the pastorage of the late Rev. Larry Blackmon. Later in life she joined the Union Grove Missionary Baptist Church under the pastorage of Rev. Edward Charles Pitchford where she served faithfully until her health began to decline. Because of her spirit of serving others, she was chosen by her pastor to be a part of the Mother's Board. She loved her church, her pastor and his family. Irene was a unique individual; you had to

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

know her to understand her and to understand her was to love her.

Irene departed her natural life on August 1, 2016. Her parents, Ozzie Lloyd and Essie Long, her loving sister, Eva Smart, and her niece, Carolyn Smart, all preceded her in death. Fond memories of her will forever remain with her children: Virginia Brown and George Gary; a grandson whom she reared as her own, Donald Gary, all of Lexington, MS; two very dedicated friends Gloria Remus and Ruthie Marshall of Lexington, MS; five grandchildren; eight great grandchildren; three great-great grandchildren; a God granddaughter, Sade Melton; nieces, nephews, cousins, and neighbors whom she loved; family and friends.

Mr. Speaker, I ask my colleagues to join me in recognizing Mrs. Irene L. Gary, for her dedication to the community.

COMMENDING THE 2016 BEST OF BRADDOCK RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise to recognize the recipients of the 2016 Best of Braddock Awards, presented by the Braddock District Council of Community Associations. These awards are given annually to deserving individuals, organizations, and companies in the Braddock Magisterial District of Fairfax County, Virginia, who have demonstrated an outstanding commitment to our community. I am pleased to join the Braddock District Council of Community Associations in recognizing the following Recipients of the 2016 Best of Braddock Awards:

CITIZENS OF THE YEAR

Casey McCollum, Olde Forge/Surrey Square Civic Association. For 10 years, Ms. McCollum has worked with A Forever Home Rescue Foundation, providing safe and loving care for foster dogs, including pregnant dogs and those rescued from puppy mills and inhumane conditions. Her dedication and unconditional love for the dogs she fosters helps prepare them for their adoptive families and forever homes.

Glen Erickson-Bell, Chapel Hill Civic Association. Mr. Erickson-Bell is the ''Steward of Oak Hill Park.'' When efforts to engage park personnel were fruitless, he took it upon himself to contact Friends of Accotink Creek for guidance. These efforts led to the formation of the Friends of Oak Hill Park which led efforts to clear the trails and clean up the trash so that residents were able to once again enjoy Oak Hill.

Young Person of the Year: Bonnibelle Bishop. Since elementary school, Ms. Bishop has been involved in community service. She has traveled throughout the Commonwealth promoting her anti-bullying platform and participated in events for TAPS (Tragedy Assistance Program for Survivors.) She also has donated her time to various events in support of the National Institutes of Health (NIH) including its Children's Hospital.

CLUBS OR ORGANIZATIONS MAKING A DIFFERENCE IN THE BRADDOCK DISTRICT

Holy Spirit Transportation Ministry. Richard and Maly Chobot formed the Transportation Ministry at Holy Spirit Church to help those who need rides to medical appointments or procedures. The entirely volunteer group provides a service that makes a difference in the everyday lives of members in the community.

Boy Scout Troop 1965. In the past year, the 40 Scouts of Troop 1965 have collectively completed more than 800 hours of service projects ranging from conservation projects to construction projects throughout the area. The members of Troop 1965 continue to serve those around them and the greater Braddock District.

Staff, Volunteers and Friends of Kings Park Library. With the closure of Pohick Library for renovation, the Kings Park Library has seen an exponential increase in usage. The dedicated staff, volunteers, and friends of Kings Park Library have worked together to meet the increased demand without sacrificing service, making Kings Park one of the most cherished libraries in the county.

Friends of Oak Hill Park. Instead of sitting back and waiting for someone else to solve a community problem, the Friends of Oak Hill Park took matters into their own hands. They united the communities surrounding Oak Hill Park and launched extensive clean-up and restoration projects, transforming it into a welcoming parkland for all to enjoy.

SPECIAL RECOGNITION

Paula McKinley, Olde Forge/Surrey Square Civic Association. While many celebrate Memorial Day and July 4th with picnics and parades, Ms. McKinley personally purchased more than 800 U.S. flags and oversaw their installation, ensuring that we remember our history and honor those who gave their lives for us all.

Ron Luxenburg, Lake Braddock. The winter of 2015/16 was one for the record books. While most of us were home stranded, waiting for the plows to arrive, Mr. Luxenburg plowed his entire cul-de-sac, as well as his neighbors' driveways and sidewalks without being asked or paid. These efforts truly exhibit Mr. Luxenburg's generosity and passion for serving others.

Don Wallace. Mr. Wallace sits on the board of Food for Others and since 2008, has actively worked to educate the community about the need to donate food for thousands of Northern Virginians who might otherwise go hungry. He has personally organized the collection and transfer of donated food to the Food for Others warehouse. His efforts have resulted in more than 9 tons of food being donated to this worthwhile organization.

Mr. Speaker, I ask my colleagues to join me in congratulating these outstanding individuals and organizations and also in thanking them for their service to our community. Their efforts and leadership have been a great benefit to the Braddock District and are deserving of our highest praise.

HONORING THE 200TH ANNIVERSARY OF THE HANOVER FIRE DEPARTMENT

HON. SCOTT PERRY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. PERRY. Mr. Speaker, today I offer my sincere thanks and congratulations to the Hanover Fire Department in Pennsylvania on its 200th Anniversary.

The collective accomplishments of the staff and volunteers of the Hanover Fire Department truly are exceptional. Over the last 200 years, the Department's men and women helped to save countless lives and properties, and have made the Hanover area a safer and better place in which to live and work.

On behalf of Pennsylvania's Fourth Congressional District, I thank and congratulate the Hanover Fire Department on its 200th Anniversary and wish them continued great success and service in the years to come.

RECOGNIZING DEBBIE SHEDDEN

HON. DAVID P. ROE

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. ROE of Tennessee. Mr. Speaker, I rise today to recognize Debbie Shedden who is the current President of the Tennessee School Boards Association. Debbie has been active at the local, state, and national levels of education for several years. She was named the Tennessee School Board Member of the Year in 2011 and received the Premier Ambassador Award from Tennessee School Boards Association in 2013 and 2014. In 2016 Tennessee Education Commissioner Dr. Candice McQueen reappointed Debbie to the Tennessee Task Force on Student Testing and Assessment. Debbie is also actively involved in the Rogersville Rotary Club and the Interact Club at Cherokee High School.

Debbie has dedicated herself to serving the students and communities of Hawkins County and Tennessee. I am proud to recognize Debbie for her commitment and work to improving education in Tennessee.

RECOGNIZING MRS. MELISSA KEESEE FOR HER SERVICE

HON. DENNIS A. ROSS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. ROSS. Mr. Speaker, I rise today to honor a great American on her retirement from federal service. Mrs. Melissa L. Keesee, Paralegal Specialist, U.S. Special Operations Command Office of the Staff Judge Advocate (SOJA), MacDill AFB, Florida, is retiring after over 37 years of distinguished and dedicated federal service, the last 22 years serving in SOJA.

Mrs. Keesee began her journey in federal service as a U.S. Army Civilian clerk with U.S. Southern Command, Republic of Panama. She then became a U.S. Air Force Civilian as secretary, U.S. Readiness Command, MacDill AFB, FL. She is a plank owner in U.S. Special Operations Command (USSOCOM) as she transitioned into the standup of the command as a secretary, U.S. Special Operations Command, MacDill AFB, FL. She then traveled to Texas where she was a secretary with Air Education Training Command, Randolph AFB, TX and a secretary with Headquarters, U.S. Air Force Recruiting Service, Randolph AFB, TX. Before returning to MacDill AFB, she became a secretary with the 81st Training Wing

(AETC), Keesler AFB, MS. At MacDill AFB for the second time, she rejoined USSOCOM as a secretary with J3 (operations) then moved to SOJA. Mrs. Keesee has touched countless people in her tenure with SOJA. Notable alumni of SOJA that she has worked with include three U.S. Attorneys, several General Officers in the Army, including a former The Judge Advocate of the Army (TJAG), and numerous prominent local jurists and attorneys.

Her talent and dedication to duty were recognized with her award of one of the first Joint Civilian Service Commendation Medals to be awarded at USSOCOM. In 2008, the Air Force Judge Advocate Corps recognized her as the prestigious Harold R. Vague Award Winner (the most outstanding civilian paralegal in the Air Force). In that same year, SOJA recognized her with the Major General William Garrison Award. This award recognizes ''significant contributions to advancement of the rule of law in the Special Operations community.'' Mrs. Keesee has been a critical part of USSOCOM from its early beginnings and has served with all USSOCOM SJAs (SOJAs) in her time with USSOCOM.

Always professional and going above and beyond, Mrs. Keesee has been an invaluable continuity in the high speed office of SOJA. Melissa has touched and helped countless SOF JAGs and legal personnel in her federal career. She truly is a ''Quiet Professional''. Her country and home state are thankful and proud. I wish Melissa and her husband of 25 years, Rick, along with their daughter, Jessica, Godspeed in retirement and justly deserved personal time.

RECOGNIZING MAJOR JAMIE M. GLINES

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. WITTMAN. Mr. Speaker, I rise today to recognize those men and women who have served this great Nation with honor, men such as Major Jamie M. Glines, United States Marine Corps.

For the past year, Major Glines, call sign ''Banana'', served on my staff as a Congressional Defense Fellow. A graduate of the United States Naval Academy, Major Glines is a proud Marine Corps Aviator. During his assignment, he provided senior-level guidance for defense, veterans, foreign affairs and intelligence matters. Major Glines executed his work as a liaison to the constituents of the First District and the numerous defense installations in the First District with distinction.

Furthermore, he provided exceptional support to me as my staff liaison to the House Armed Services Committee in my roles as the Readiness Subcommittee Chairman, the Co-Chair of the Congressional Shipbuilding Caucus, and the Chairman of the United States Naval Academy's Board of Visitors.

Major Glines directly contributed to my goal of providing excellent constituent service to the people of the First District. He was responsible for bringing numerous constituent inquiries to a successful conclusion and he was able to leverage his personal and operational experience in the Marine Corps to respond to the most challenging inquiries.

In addition to his efforts on behalf of the First District, Major Glines took on projects with regional, state and national implications, demonstrating his ability to view a challenge from many angles and develop innovative solutions often requiring collaboration across many levels of government.

Major Glines's work ethic, duty to mission, and commitment to servant leadership is without equal. I believe that his personal drive to achieve excellence in his work has and will set a very high standard for his peers.

I would also like to thank Major Glines for the service and sacrifice he has made, and continues to make, for our Nation and our great Marine Corps. His keen sense of honor, impeccable integrity, boundless work ethic, humor and loyal devotion to duty earned him the respect and admiration of my staff and the First District of Virginia. As an UH–1Y Huey pilot with over 2,000 flight hours, Major Glines completed multiple deployments in support of Operation Enduring Freedom, and served as an instructor at the Marine Aviation Weapons and Tactics Squadron. Major Glines is headed to Marine Corps Aviation in the Pentagon where he will continue to work on Congressional matters. I have no doubt that Major Glines will continue to serve the Marine Corps honorably and with distinction.

I wish him, his wife Elise, and his children Arlene, Jordan, Michael, and Zoe the best of luck as they continue their journey together as a Marine family. It was an honor and a pleasure having him serve on my staff. We all can sleep soundly at night knowing that men and women like Major Jamie Glines are members of our all-volunteer force and they stand ready to defend our country and take the fight to our enemies; far away from their families and the comforts of the United States of America.

Major Jamie Glines, thank you. Best of luck to you and God bless you, your family, and all the Marines you are charged with leading. Semper Fi.

HONORING MRS. LINDA BERMAN

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. HIGGINS. Mr. Speaker, today I rise to honor Mrs. Linda Berman, a dedicated volunteer for the Democratic Party and resident of Amherst, New York. Linda's tireless service is recognized today by her friends on the Amherst Democratic Committee. A member of the Committee since 2005, Linda and her son David have committed countless hours to further Democratic causes in our community.

Linda was introduced to politics in 2003, when she met Mark Poloncarz. Linda and her son David joined Mark to campaign for John Kerry's bid for the presidency. The three political volunteers established the group ''Democrats for Progress'' in 2005. That same year Mark Poloncarz sought the office of Erie County Comptroller, so Linda and David worked diligently to support his efforts.

In 2005, Linda joined the Amherst Democratic Committee, where she remains involved in to this day. In her capacity as a volunteer, she worked on every facet of Democratic politics: chairing events, service as a Zone Leader, running phone banks and other important service on campaigns.

Of particular note are Linda's efforts to elect Mark Poloncarz as Erie County Executive in 2011. Her experience earned her an appointment as a delegate in 2012 for the Democratic National Convention, where she traveled to North Carolina to support the nomination of incumbent President Barack Obama.

Before her involvement in politics, Linda and her husband were the owners of Masterline, a successful small business on Sheridan Drive that sold hair pieces. After selling the business, Linda worked for five years at the Buffalo Jewish Center. Next she brought her skills to the business office of the Williamsville Central School District, a position she held for fifteen years before her retirement in July of 2008.

Linda shares her passion for politics with her beloved son David, who has unwaveringly supported his mother and her efforts every step of the way. Over the years, he has walked in parades, knocked on doors, and participated in a number of Democratic campaigns. Their bond as a family and commitment to serving Democrats in Western New York is truly honorable.

Mr. Speaker, thank you for allowing me a few moments to honor Mrs. Linda Berman and her admirable dedication to Democratic politics. Linda's commitment, which she instilled in her son David, is exceptional, and she is most deserving of this recognition by the Amherst Democratic Committee.

RECOGNIZING NEELAM CANTO–LUGO FOR RECEIVING THE VEGA VOLUNTEER OF THE YEAR AWARD

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. GARAMENDI. Mr. Speaker, I rise today to recognize and commend Neelam Canto-Lugo for her extraordinary service to the people of Nepal. Through her volunteer work with the Women Development Advocacy Center, Neelam provided entrepreneurial training to Nepalese youth, women, and community organizers. Upon her return to the States, Neelam has continued her important work with the organization, supporting its digital literacy and micro-enterprise acceleration projects. To date, Neelam has raised $9,800 and has received a donation of eleven computers, which will provide greater opportunity to economically disadvantaged women and empower rural entrepreneurs.

On behalf of the people of California's 3rd Congressional District, please accept my sincere congratulations as well as my best wishes for the future.

ARVADA HIGH SCHOOL

HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Arvada High School for their creative and unique mobile application (app) that was entered in the 2016

Congressional App Challenge. As first-time participants in the challenge, teams from Arvada HS built an app to assist students in locating their lockers, giving the school a welcoming environment for new students and incoming freshmen.

The students of Arvada High School spent countless hours and used numerous tools to learn about coding, further advancing their STEM education. Each team built their app in less than three months which shows their perseverance and dedication to this challenge and exemplifies the character and determination the faculty instills in the students at the school. One of the teams at the school won the ''Rookie of the Year'' award which further demonstrates their hard work on this project.

I am proud of Arvada High School for their dedication and school spirit in this endeavor. I am certain the students in this school will exhibit the same dedication and character in all of their future accomplishments.

PERSONAL EXPLANATION

HON. JODY B. HICE

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. JODY B. HICE of Georgia. Mr. Speaker, on Roll Call No. 601 on suspending the rules and passing H.R. 5015—the Combat-Injured Veterans Tax Fairness Act, I am not recorded because I was unavoidably detained. Had I been present, I would have voted YEA.

Mr. Speaker, on Roll Call No. 602 on suspending the rules and passing H.R. 6427—the Creating Financial Prosperity for Businesses and Investors Act, I am not recorded because I was unavoidably detained. Had I been present, I would have voted YEA.

Mr. Speaker, on Roll Call No. 603 on suspending the rules and passing House Amendment to S. 1635—the Department of State Authorities Act, I am not recorded because I was unavoidably detained. Had I been present, I would have voted YEA.

PERSONAL EXPLANATION

HON. ROBERT HURT

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. HURT of Virginia. Mr. Speaker, I was unavoidably detained. Had I been present, I would have voted yea on Roll Call No. 601, yea on Roll Call No. 602, and nay on Roll Call No. 603.

NORTHGLENN HIGH SCHOOL

HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud Northglenn High School for their creative and unique mobile applications (app) entered in the 2016 Congressional App Challenge.

Two student teams from Northglenn High School participated in the challenge. The winning app allowed the residents of Northglenn to experience their city in virtual reality as a way to learn more about the area in which they live and its history. The other team developed an app that provided various filters to help showcase clothing. Each team spent countless hours and used numerous tools to learn about coding, further advancing their STEM education. Each team built their app in less than three months which shows their perseverance and dedication to this project.

I am proud of Northglenn High School for their dedication and school spirit in this endeavor. I am certain the students in this school will exhibit the same dedication and character in all of their future accomplishments.

CONGRATULATIONS TO THE SENECA HIGH SCHOOL CHEERLEADERS ON WINNING BACK-TO-BACK STATE CHAMPIONSHIPS

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. LONG. Mr. Speaker, I rise today to congratulate the Seneca High School cheerleaders on winning back-to-back state championships this past November.

The Seneca High School Cheerleading team competed in the 2A Large Division and added this championship to their four previous state titles (2007, 2008, 2011, and 2015). The Cheerleading State Championship took place on Sunday, November 6, 2016, at the University of Missouri in Columbia.

This state title was coached by Kristi Schlessman. Two of her cheerleaders, Rachel Wohlenhaus and Tess Hultman, were awarded All-State Cheerleader awards. The Seneca Cheerleading team has become a dynasty for Seneca High School and I would like to extend my personal congratulations for their achievement. On behalf of the 7th District of Missouri, I would like to thank them for representing our community.

HONORING WESTHAVEN MEMORIAL FUNERAL HOME

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Westhaven Funeral Home, Utica Branch.

Westhaven Memorial Funeral Home, Inc. was birthed from a partnership between Audrey B. Wiley, Freddie L. and Anthony R. Davis on February 16, 1996.

In April of 2002, the first of three additional branches came into fruition in Utica, MS. With much prayer and supplication, this branch has been opened for going on twelve years. This mix-use building has been an added asset for churches, community gatherings, family gatherings and much, much more.

This location has been beneficial to Westhaven as well as their clientele, tax base and socially. They have maintained a relationship throughout the community and have been able to create jobs and bring about other attributes.

Westhaven continues to serve Utica and the surrounding areas offering: Traditional and Personalized Funeral Services; Special Limousine and Transport Services; Funeral Program Design and Printing; Domestic and International Shipping; Pre-Plan Funeral Arrangements; Caskets; Vaults and Urns; Notary Public; Cremations and Obituaries.

It is their prayer that they can continue to be a blessing to the town of Utica for many years to come.

Mr. Speaker, I ask my colleagues to join me in recognizing Westhaven Memorial Funeral Home, Utica Branch for its dedication to serving our great state of Mississippi.

CONGRATULATING THE 2016 CHAIRMAN'S AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise to recognize the Dulles Regional Chamber of Commerce for its ongoing dedication to local businesses and our community and to congratulate the 2016 Chairman's Award recipients.

The Dulles Regional Chamber of Commerce is one of the largest chambers in the Washington, D.C., metropolitan region and is located in one of the largest technology corridors in the country. It actively supports the interest of its members and also supports broader initiatives including STEM education, workforce initiatives, economic development, and local non-profits.

Each year during the Annual Chairman's Awards Luncheon, the Chamber honors those extraordinary businesses, non-profit organizations, and citizens who have dedicated their talents and activities to enhancing our economy and our community.

I am pleased to include the names of the following recipients of the 2016 Chairman's Awards.

Service Award: Mr. Paul Karstetter, Stitely & Karstetter.

Committee Chair of the Year: Ms. Sharon DeBragga, Mountain View Alternative High School.

Volunteer of the Year: Ms. Andrea Savitch, Unique Travel Events.

Champion Partners: Mr. Doug Downer, HRI Associates; Ms. Anna Schneider, Volkswagen Group of America; and Mr. Jeff Dick, MainStreet Bank.

Best New Event: Mr. Matt Hurst and Mr. Greg Langweg, Hilton Washington Dulles Airport for: ''Dished!''

Best New Program: Ms. Angela Inzerillo, Impact Business Solutions and Ms. Robin Suomi, Startup Growth for ''Business Success.''

Best Committee: Mr. Mike O'Reilly, The O'Reilly Law Firm and Mr. Vinay Patel, Fairbrook Hotels as co-chairs of the Herndon Committee.

Mr. Speaker, I ask my colleagues to join me in commending the Dulles Regional Chamber of Commerce for its dedication and commitment to our community and in congratulating the 2016 Chairman's Award recipients. I extend my personal thanks to these businesses

and individuals for their many contributions to our region's economic success and quality of life. Their contributions are among the many reasons why Fairfax County is one of the best places in the country in which to live, work, and raise a family. I commend them on their awards and wish them great success in all future endeavors.

BCER GROUP

HON. ED PERLMUTTER

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. PERLMUTTER. Mr. Speaker, I rise today to recognize and applaud the BCER Group for receiving the Colorado Companies to Watch Award, an awards program honoring second-stage companies for the important role they play in Colorado's economy and entrepreneurial community.

The BCER Group is a consulting engineering firm which provides creative and state-of-the-art mechanical, electrical, fire protection, life safety, and technology engineering services for commercial, institutional, industrial, and government projects nationwide. Founded in 1994, the BCER Group has grown to three offices and 88 employees. Today they are known for their ability to make quick decisions, take necessary risks, and evolve with the ever-changing industry in order to provide growth opportunities for their employees, clients and community.

The BCER Group was founded on several guiding principles such as fostering a fun, friendly company environment while still focusing on the serious nature of its work. This founding principle as well as its leadership and commitment to the community remain at the heart of BCER's culture. The company supports a variety of charitable organizations including the Santa Hause, The Salvation Army, Caruso Charities, Whiz Kids Tutoring Program, and the Children's Hospital Burn Camp.

I extend my deepest congratulations to the BCER Group for this well-deserved recognition by Colorado Companies to Watch and wish them continued success.

IN HONOR OF THE RETIREMENT OF JIM MILLER

HON. PATRICK J. TIBERI

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. TIBERI. Mr. Speaker, I rise today to recognize Jim Miller on the occasion of his retirement as Federal Liaison for the Ohio Public Employees Retirement System.

For well over fifteen years, Jim diligently worked as an advocate for Ohio's public pension system. By utilizing his unique knowledge and experience, Jim proved himself to be a remarkable asset to both Ohio's public employees and elected officials.

It has been said that Jim has never met a stranger. His quick wit, comfort with people and passion for his work played a large role in his tremendous success. Whether he was speaking with the most senior member of Congress or a junior staff member, Jim was able to relate and connect with them. This candor allowed parties to come together in an effort to garner meaningful results for beneficiaries and taxpayers alike.

As Jim transitions to his next stage in life, his knowledge and guidance will truly be missed, yet few are more deserving of a peaceful and relaxing retirement. On behalf of Ohio's 12th Congressional District, I would like to thank Jim Miller for his many years of service and wish him a happy retirement.

HONORING COLONEL SONG LENG XIONG

HON. KEITH ELLISON

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. ELLISON. Mr. Speaker, I rise today to honor the life and service of Colonel Song Leng Xiong. Colonel Song Leng Xiong passed away peacefully in the presence of his loved ones on September 28, 2016 in Minneapolis, Minnesota. August 14, 2017 would have been his 78th birthday.

Colonel Song Leng Xiong was born in 1939 in the village of Ban Xoun, Mouang Ped, in the Xieng Khouang Province in Laos. He began his distinguished military career at the age of just 14, when he enlisted in the French Army and was selected to attend training in South Vietnam, serving as a radio operator from 1953 to 1954. From 1956 to 1960, he was assigned a battalion to guard Route 7 in Muang Xoun, and later led the building of the Phou Vieng airfield in his home province.

After being specially selected to further his training in Thailand, in June of 1960, Colonel Song Leng Xiong was tasked with selecting nearly 600 new recruits to receive special training as part of the United States Central Intelligence Agency's Special Guerilla Units. Through this program, the CIA recruited thousands of Hmong soldiers and military leaders like Colonel Song Leng Xiong to fight against the Communist Pathet Lao and North Vietnamese Army regulars in Laos, working as surrogate soldiers of the United States Armed Forces. As many as 100,000 Hmong were recruited and trained to serve as these secret warriors, bravely battling the North Vietnamese Army for our country's cause.

Colonel Song Leng Xiong fought in many battles for our country. In addition to leading his own battalion, he personally rescued and retrieved over seven American pilots who were shot down over Laos. His is one of countless stories of Hmong service-members and military leaders who protected our country through conducting guerrilla actions, guarding key installations, gathering intelligence, and undertaking rescue missions—all in the name of freedom.

While the Secret War in Laos ended in 1975, Colonel Song Leng Xiong's service to his people and our country did not. Many refugees of the Secret War sought a better life here in the United States. Colonel Song Leng Xiong, a refugee himself, chose to stay behind and continue helping his fellow refugees in the transition. He immigrated to Minneapolis, Minnesota in 1993 after the United Nations closed the Ban Vinai refugee camp. In Minneapolis, Colonel Song Leng Xiong became a leader in our community through his service as Chair of the Lao-Hmong American Coalition chapter of Minnesota. In this role, he and his wife, Manichan Xiong, worked to share the stories of their community so that all Americans never forget their sacrifice.

I am honored to recognize my constituent Colonel Song Leng Xiong for his tremendous sacrifices on behalf of our country. We are all better off due to his life of service. His dedication to freedom and to this country will never be forgotten. Thank you, Colonel Song Leng Xiong, for protecting our country with such great distinction, and for the legacy you leave of continuing the fight for freedom.

TRIBUTE TO THE 187TH AIR NATIONAL GUARD FIGHTER WING

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Ms. SEWELL of Alabama. Mr. Speaker, Alabama is a state rich with tradition and legacies of excellence. Yet, one that stands out is the legacy of military excellence exhibited by the 187th Air National Guard Fighter Wing, located at Dannelly Field in Montgomery, Alabama.

The 187th Air National Guard Fighter Wing has an unparalleled legacy of excellence worthy of praise and worth protecting for the future. Currently, the guard unit is a prime candidate to fly the new F–35A Lightning II fighter jets, known as the Joint Strike Fighter. The 187th currently flies the oldest F–16s in the U.S. Air Force's inventory; however, it is among eighteen Air National Guard units competing for the coveted new aircraft.

The Alabama delegation in Congress is unanimous and steadfast in our support of the 187th Air National Guard Fighter Wing winning this new assignment. Nothing helps us make the case more than the long history of outstanding military service that has been the proud legacy of the 187th.

The 187th Fighter Wing has a proven combat track record and an unparalleled military heritage. It is home to the 100th Fighter Squadron—the famed ''Red Tails.'' This squadron's lineage traces back to World War II and the renowned Tuskegee Airmen, America's first black military pilots and support personnel.

The 187th benefits from being a key strategic resource—only five miles from Maxwell Air Force Base, and twenty-five minutes flying time from Eglin, Tyndall, Hurlburt, and Moody Air Force Bases. This presents numerous opportunities for joint air-to-air and air-to-ground training. F–35 pilots of the 187th may also utilize the electronic ranges on Eglin AFB. This is all contingent, however, on the unit being outfitted with the new fighter jets. During my tenure in office, I have been and will continue to be a stalwart advocate for this vital national resource located in my district.

As a Member of the House Permanent Select Committee on Intelligence, I have a unique perspective on the challenges and opportunities that confront our nation. I am also keenly aware that the world we live in is filled with potential threats that are constantly developing and changing. We have to remain ever vigilant and be prepared to not only confront ongoing threats but those emerging as well. A

major key to our success requires that we maintain air-superiority and provide effective air-cover for our men and women deployed in combat zones. This is the defining legacy of the 187th from World War II to today.

Given its rich history and superior service to this nation, the 187th Air National Guard Fighter Wing stands poised and well-equipped to bring the next generation of air power to the Alabama Air National Guard.

IN RECOGNITION OF THE PURSUIT OF JUSTICE AND PEACE

HON. MATT CARTWRIGHT

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CARTWRIGHT. Mr. Speaker, I rise to recognize Yogesh Varhade and his pursuit of social justice. His hero, Bhimrao Ramji Ambedkar, died 60 years ago today. Ambedkar inspired the Dalit Buddhist Movement in India, campaigned against social discrimination of the Dalit caste, supported the rights of women and laborers, and was appointed first Minister of Law and Justice in India in 1947.

In honor of Dr. Ambedkar, Mr. Varhade founded the Ambedkar Center for Justice and Peace, a non-governmental organization, which has a headquarters in Kingston, PA. For the last 25 years Mr. Varhade dedicated himself to addressing issues of child labor, bonded labor, prostitution, human trafficking, and caste-based discrimination as they occur in India by implementing a legal literacy program for the marginalized in India and by educating others at the United Nations as well as elected leaders like myself

We in the United States struggle with versions of these ugly truths born from hate and intolerance. Forced labor and human trafficking are a $150 billion industry worldwide. This nation has done much to pursue diplomatic solutions to these international issues. We must rededicate ourselves to this work and to our many partners in honor of the heroes who led the way.

PAYING TRIBUTE TO JOSE ABEYTA

HON. SCOTT R. TIPTON

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. TIPTON. Mr. Speaker, I rise today to honor Mr. Jose Abeyta of Montrose, Colorado, who passed away on November 14, 2016. Jose is survived by his wife, Loretta, whom he was married to for 40 years, and their two sons, Lenny and Juan. Jose was a personal friend of mine and a beloved member of his community. He served our country proudly during the Vietnam War from 1969–1971 as a fixed wing mechanic for the Army's 358th Aviation Detachment. He received an honorable discharge after serving for two years.

Mr. Abeyta is a hero because of the time he spent in the Army, but the life he lived after his service showed us what an honorable man and model citizen he truly was. Jose married Loretta one month after returning home from Vietnam, and they moved to Colorado Springs, where he went to school and earned a degree in Sociology at the University of Colorado at Colorado Springs.

Mr. Abeyta paid his own way through school, and then he and Loretta moved back to Montrose, where he began his career as a probation officer. He later ran successfully for city council in 2006. He served as the Mayor of Montrose in 2009.

Mr. Speaker, it was not just his work that defined who Mr. Abeyta was, but also his devotion to serving others. As a husband, father, war veteran, little league coach, and public servant, he lived a life full of selfless service and stood as an example for all Americans to live by. He started out as the new guy in Montrose, and he ended up serving as the Mayor, which speaks volumes about the impact he had on the community. I am saddened by Mr. Abeyta's death, because he is an irreplaceable figure in Montrose, but I am grateful that I had the opportunity to know him. His family is in my thoughts and prayers, and I hope the community of Montrose will continue to celebrate his tremendous accomplishments in the weeks and months to come.

TO COMMEND THE HONOREES OF THE 2016 KOREAN AMERICAN ASSOCIATION OF GREATER WASHINGTON COMMUNITY APPRECIATION NIGHT

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise to commend the extraordinary honorees who will be recognized during the 3rd Annual Community Appreciation Night celebration sponsored by the Korean American Association of Greater Washington (KAAW.) Although this is the 3rd Community Appreciation Night, it is the first in which individuals will be recognized for their public service.

The KAAW strives to inform and engage the Korean American community throughout our region. Through its efforts and the efforts of its President, So Jung Lim, the organization continues to grow and successfully empower Korean Americans to become fully engaged participants in our local community and political process. Northern Virginia is blessed by its diversity—in fact, it is home to one of the largest concentrations of Americans of Korean ancestry in the entire country. As the Member of Congress for the 11th District of Virginia and the co-chair of the Congressional Caucus on Korea, I am proud to have partnered with the Korean community on numerous issues, going back to my time as a Member and later Chairman of the Fairfax County Board of Supervisors. The KAAW has been a constant and invaluable partner in these efforts.

Public service is a core value of our society. Each of us has the ability and responsibility to contribute what we can in order to make our communities better. Whether it is volunteering at a local school, in a community or civic association, at a food bank or other charity, or serving in elected office, the efforts of public servants and community activists enrich us all. This is especially true for first responders and educators. They dedicate their lives to our children, our safety, and our future. KAAW has embraced this ethos and tonight will honor five first responders and two educators who have gone above and beyond the call of duty.

It is my great honor to include the names of the following individuals in recognition of their extraordinary achievements:

Officer Nicole Ha, Washington Metropolitan Police Department, Special Liaison Division—Asian Liaison Unit.

Dr. Shelly O'Foran, English Department Chair, Freedom High School.

Police Officer First Class Hyun Chang, Fairfax County Police Department.

Master Deputy Charles Gravatte, Loudoun County Sheriff Office.

Firefighter Andrew Gode, Loudoun County Department of Fire, Rescue, and Emergency Management.

Alex Morrison, Orchestra Teacher, Centreville High School.

Officer Jeong Hong, Fairfax County Police Department.

Mr. Speaker, I ask my colleagues to join me in commending these fine men and women and congratulate each of them on being honored by KAAW. I also wish to extend my sincere appreciation to KAAW for sponsoring this event and providing the opportunity for us to express our respect and appreciation to each of the honorees.

HONORING MRS. GERTRUDE R. GRENADA

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Mrs. Gertrude R. Grenada who was born and educated in the Mt. Olive Community in Bolton, Mississippi.

Mrs. Grenada was one of 10 children who knew too well how important it was to achieve an education. She furthered her education by attending Jackson State College (University). Mrs. Grenada holds a B.S. Degree in Early Childhood Education along with 23 hours of study toward her Master's Degree. She was first employed with the Hinds County Headstart Agency in 1966 as a Social Worker.

Mrs. Grenada served 37 years of employment with the Hinds County Headstart Agency. She touched the lives of more than 4 thousand children in the Bolton, Edwards and Jackson communities. What she enjoyed the most was working closely with the children, being surrounded and respected by fellow coworkers and employers with the highest levels of intelligence.

Mr. Speaker, I ask my colleagues to join me in recognizing Mrs. Gertrude R. Grenada.

PROVIDING CARE TO THE DUCHENNE COMMUNITY

HON. COLLIN C. PETERSON

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. PETERSON. Mr. Speaker, today I would like to recall the significance of the authority extended by Congress to the Food and Drug

Administration in the 2012 Food and Drug Administration Safety and Innovation Act. This legislation enhanced the FDA's ability to develop and implement accelerated approval programs to provide therapies to patients with rare, debilitating, and one-hundred percent fatal diseases.

Duchenne muscular dystrophy is a genetic disorder resulting in progressive muscle degeneration. This rare condition, which typically affects boys, is characterized by lung and heart complications that cause certain premature death.

Despite compelling evidence of its efficacy, the FDA recently refused to consider a New Drug Application for a therapy developed to treat a commonly diagnosed form of Duchenne.

As there are no alternative treatments for this particular form of Duchenne eligible for purchase or approval, Duchenne patients are left unable to mitigate the effects of the deadly disease.

I urge the FDA to grant a full and fair review to New Drug Applications for Duchenne therapies in accordance with the Food and Drug Administration Safety and Innovation Act. The timely delivery of treatments is of the utmost importance to the Duchenne community.

PERSONAL EXPLANATION

HON. MARLIN A. STUTZMAN

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. STUTZMAN. Mr. Speaker, had I been present, I would have voted Yea on Roll Call No. 601 (H.R. 5015), Yea on Roll Call No. 602 (H.R. 6427), and Yea on Roll Call No. 603 (House Amendment to S. 1635).

RECOGNIZING THE 2016 FAIRFAX COUNTY FIRE AND RESCUE DEPARTMENT VALOR AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise today to recognize an outstanding group of men and women in Northern Virginia. These individuals have demonstrated superior dedication to public safety and have been awarded the prestigious Valor Award by the Northern Virginia Chamber of Commerce.

This is the 38th Annual Valor Awards sponsored by the Northern Virginia Chamber of Commerce. This event honors the remarkable heroism and bravery in the line of duty exemplified by our public safety officers. Our public safety and law enforcement personnel put their lives on the line every day to keep our families and neighborhoods safe. This year's ceremony will recognize 70 individuals, 1 K–9, and 1 team in a variety of categories including: the Lifesaving Certificate, the Certificate of Valor, and the Bronze, Silver and Gold Medal of Valor.

Nineteen members of the Fairfax County Fire and Rescue Department are being honored this year for their exceptional service. It is with great pride that I include the names of the following Valor Award Recipients:

Gold Medal of Valor: Lieutenant Lawrence G. Mullin, Technician Ryland W. Chapman.

Silver Medal of Valor: Captain Carlos R. Carrillo, Lieutenant Daniel P. Gajewski, Master Technician Rolando E. Contreras, Master Technician Timothy J. Pais, Urban Search and Rescue Team.

Bronze Medal of Valor: Lieutenant Joshua T. Allison, Lieutenant Reginald L. Wadley, Master Technician Glenn W. Dressler, Master Technician Robert G. Ritchie, Master Technician Beverly L. Studds, Technician Travis L. Franks, Technician Jorge M. Martinez, Firefighter/Medic R.L. Radam III, Firefighter Delfin Reyes.

Certificate of Valor: Lieutenant David E. Myers, Lieutenant Scott F. Primrose.

Lifesaving Award: Technician Eric C. Villman.

Mr. Speaker, I congratulate the 2016 Valor Award Recipients, and thank each of the men and women who serve in the Fairfax County Fire and Rescue Department. Their efforts, made on behalf of the citizens of our community, are selfless acts of heroism and truly merit our highest praise. I ask my colleagues to join me in applauding this group of remarkable citizens.

PERSONAL EXPLANATION

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Ms. LOFGREN. Mr. Speaker, on Thursday December 1, 2016 I had to return home to my district for a dental emergency. Had I been present, I would have voted:

ROLL CALL 594: Nay; ROLL CALL 595: Nay; ROLL CALL 596: Nay; ROLL CALL 597: Nay; ROLL CALL 598: Yea; ROLL CALL 599: Nay; ROLL CALL 600: Nay.

HONORING THE TOWN OF CRENSHAW

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a thriving town in the Mississippi Delta, the Town of Crenshaw.

Over the course of 20 years, men and women of the Armed Forces, law enforcement, Fire and Emergency Medical Services have been recognized for their service to our communities and country.

Mayor Oscar Barlow and First Lady Heather Barlow have put in tireless hours to get the word out about paying tribute to these very special men and women. They have gone above and beyond their call to make each program special for these men and women.

In addition, they not only get the administration involved in paying tribute, but also area churches, federal, state and county leaders all come together in unity to show support to those who put their lives on the line daily for our communities and country.

Our men and women of Armed Forces, law enforcement, Fire and EMS come out to receive a thank you from people who truly care and appreciate the sacrifice they make for us all.

The Town of Crenshaw and our country also owe a thank you to the Mayor and First Lady for putting together such a wonderful tribute program for 20 years and for the vision they have in making these programs. We owe these men and women a simple, yet huge "THANK YOU!"

Mr. Speaker, I ask my colleagues to join me in recognizing the Town of Crenshaw, Mississippi for paying tribute to all Servicemen who serve and protect our communities and this great country.

HONORING FLARA PRESIDENT TONY FRANSETTA

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today on behalf of myself and Congressmen TED DEUTCH, ALCEE HASTINGS, and PATRICK MURPHY, to recognize retiring FLARA President Tony Fransetta for his leadership and public service.

FLARA, the Florida Alliance of Retired Americans, represents the best interests of retired Floridians and stands in support of working families. As President, Tony has led the organization in its fight to protect the health and economic security of seniors throughout the state of Florida. His energetic leadership of FLARA helped expand the organization, increasing membership from 37,000 to 217,000 during his tenure. Tony leaves behind an influential legacy in which future leaders of FLARA will strive to follow.

Commissioner Melissa McKinlay is declaring Tuesday, December 6th as Tony Fransetta Day in Palm Beach County to recognize Tony's leadership and advocacy. We would like to join the Commissioner and our friends back in Florida in honoring, celebrating, and thanking Tony for his service protecting and advancing the interests of our communities.

Tony is a great role model for Floridians, and we are pleased to honor him today and wish him the best in his retirement.

RECOGNIZING THE 2016 FAIRFAX COUNTY POLICE DEPARTMENT VALOR AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise today to recognize an outstanding group of men and women in Northern Virginia. These individuals have demonstrated superior dedication to public safety and have been awarded the prestigious Valor Award by the Northern Virginia Chamber of Commerce.

This is the 38th Annual Valor Awards sponsored by the Northern Virginia Chamber of Commerce. This event honors the remarkable heroism and bravery in the line of duty exemplified by our public safety officers. Our public safety and law enforcement personnel put

their lives on the line every day to keep our families and neighborhoods safe. This year's ceremony will recognize 70 individuals, 1 K–9, and 1 team in a variety of categories including: the Lifesaving Certificate, the Certificate of Valor, and the Bronze, Silver, or Gold Medal of Valor.

Forty-six members of the Fairfax County Police Department and one K–9 are being honored this year for their exceptional service. It is with great pride that I include the names of the following Valor Award Recipients:

Silver Medal of Valor: Second Lieutenant Nicholas Dipippa, PFC Paul J. Blasko, Jr., PFC Peter T. Liu, PFC Federick R. Yap, Officer Jesse B. Katzman

Bronze Medal of Valor: PFC Dwayne L. Daniels, PFC Michael S. Morris, PFC Andrew H. Curtze, PFC Christopher C. Taylor, PFC Shay V. Nelson, PFC Vincent J. Pullicino, PFC Justin M. Urbaniak, Officer Sharif W. Issa

Certificate of Valor: Captain Robert A. Blakley, Jr., Lieutenant C. Matthew Owens, Jr., Detective Douglas H. Comfort, Sergeant David J. Giaccio, PFC Christopher C. Taylor, PFC Daniel N. Custer (2), PFC Ryan L. Fisher, PFC Michael P. Levish, PFC David A. Curcio, PFC Amy A. Early, PFC Luis E. Martinez, PFC Edward K. George, PFC Kyle M. Proffitt, MPO Damien E. Cichocki, Officer Joseph W. Shifflett, Officer William M. Mulhern

Lifesaving Award: Second Lieutenant Dana L. Robinson, Sergeant Robert C. Hines, PFC Eric Acevedo, PFC David A. Neil, Jr., PFC Scott J. Abram, PFC Richard L. Cash, PFC Nathan R. Vanhusen, PFC Bradley E. Chiz, PFC Gary S. Tuggle, PFC Benjamin J. McIntosh, PFC Craig R. Quattrin, PFC Lane M. Leisey, PFC Angela P. Thomas, PFC Stephen T. Vaughn, Officer Kent G. Bailey, Officer Anne C. Bosacco, Officer Brenton K. Moreau

Meritorious Award: K9 Enzo

Mr. Speaker, I congratulate the 2016 Valor Award Recipients, and thank each of the men and women who serve in the Fairfax County Police Department. Their efforts, made on behalf of the citizens of our community, are selfless acts of heroism and truly merit our highest praise. I ask my colleagues to join me in applauding this group of remarkable citizens.

MOURNING THE PASSING OF FATHER PAUL KWIATKOWSKI

HON. MARCY KAPTUR

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Ms. KAPTUR. Mr. Speaker, as Catholics worldwide celebrate the feast of St. Nicholas today, the life of Father Paul Kwiatkowski will be celebrated in a Funeral Mass at Queen of the Most Holy Rosary Cathedral in Toledo, Ohio. With eternally grateful hearts but deepest sadness at his passing, thousands of citizens across our community mourn the passing of Fr. Paul, a loving, gentle, and kind apostle of Christ. Fr. Paul was beloved by all who knew him. And we know him through his works. As our perceptive Aunt Esther would observe: ''Now, that was a priest!''

How many of us hold unforgettable memories of Fr. Paul's selfless service and abiding kindness, always in the heart of our community. His steady and faith filled journey among us imbued the word ''faith'' with real meaning. A favorite memory for me is the beautiful, annual Memorial Day Mass with appropriate observances at Mt. Carmel Cemetery for veterans and their families, at which he would officiate. A gifted musician, many times he would play his violin under the budding trees as his cassock blew gently in the spring winds. There was a sense of peace and connectedness to the awesome power of creation he brought to every occasion. A hospitable lunch always followed at the former Polish American Veterans Association Post on Lagrange Street. I too recall the moving Polish Mass at the former St. Hedwig's before the Polish Festival opened, as the church doors swung wide and the congregants filled the sidewalks. To Toledo's Polonia, those of Polish-American heritage, he was a revered touchstone and valued counselor. I similarly treasure the memories of the Central American garment workers he hosted at St. James Catholic Church, a reminder of the work that remains to be done on worker exploitation across our hemisphere. Fr. Paul's service always managed to meet the suffering edge of humanity. And his spirit gave strength to others.

Fr. Paul was a learned man, but he possessed a rare gift for communicating with people of all persuasions. He was an educator and Latin teacher as well as a fine musician, and people naturally drew to him. His wonderful sense of humor and twinkling eyes had their own way of communicating ''you are welcome.'' He dedicated his life to ministering to congregations in the heart of our city, always including some of the poorest precincts in Toledo. His rare leadership and tutelage of the Lagrange Stickney and Broadway neighborhoods sparked and immeasurably contributed to the neighborhoods' ongoing revitalization. His work at St. James and Immaculate Conception Catholic parishes made newcomers feel welcome. He consistently engaged with the people of the broader neighborhood, extending beyond the walls of the churches he pastored. Fr. Paul defined evangelization by embracing community.

I cannot even imagine nor count the number of individuals he counseled and comforted over a half century of his service. I do know our Toledo community remains grateful forever that he gave his life for us. He was a people's priest, a diocesan priest. He lived his vows.

May the angels lift him high, ushering him to paradise where there will always be music, joy and peace.

SUPPORTING THE GENERATION OF TOMORROW

HON. TOM EMMER

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to celebrate Wallin Education Partners for the work they are doing to ensure that Minnesotans from all walks of life receive a college education.

Since 1992, Wallin Education Partners has provided scholarships to Twin Cities high school students who excelled in academics but are from low-income families. This year alone, Wallin Education Partners has awarded a scholarship to twenty students in Minnesota's Sixth Congressional District so that they may receive the education they deserve.

Along with the financial assistance, Wallin Education Partners also helps students utilize all of the resources available to them during their college experience, often assisting them until they graduate.

Due to the support that Wallin Education Partners provides annually, it is anticipated that we will be seeing more students from low-income families graduate from college. All students deserve access to quality education, regardless of their means and upbringing, and this organization is a great tool for students across this great state.

I am incredibly thankful to Wallin Education Partners for giving worthy students the chance to gain an education and fulfill their dreams. By providing some of the best and brightest in our state with the key to an education, you are not just ensuring the success of our students, but the success of our nation as a whole. Your contributions have not gone unnoticed and they are enormously appreciated.

Congratulations to: Yana Aleksandrova, Issraa El-khatib, Carissa Gillispie, John Hilst, Kevin Huynh, Emily Johnson, Jenna Kallestad, Elias Kinfu, Baker LaMott, Gentry Musgrove, Taylor O'Neill, Jeremy Schipper, Eryn Schlotfeldt, Thomas Shoegren, Randall Skeate, Tenzin Sonam, Kayla Tanner, Emily Vang, Madeline Walker, and Joseph Zuleger.

We look forward to seeing what the future brings for this year's recipients.

HONORING SPIRIT XPLOSION

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable professional minority business Spirit Xplosion Home of CE All Stars of Cleveland, Mississippi.

Mrs. Kimetria Parks, owner/coach is a native of Holly Springs, Mississippi. She moved to Cleveland, Mississippi in 1999 while attending Delta State University. She's married to Mr. Christopher Parks, Co-Owner/Coach and they have two beautiful daughters named Paris Kaitlyn Parks and Layken Parks. Mrs. Parks earned a Bachelor of Business Administration in 2003 and a Masters of Business Administration in 2013 from Delta State University. She is the Finance Officer of Mississippi United to End Homelessness and owner/coach of Spirit Xplosion Home of CE All Stars. Her fellowships with St. Peter MB Church in Sunflower, Mississippi. Mr. Parks graduated from Delta State University in 2005 with a Bachelor of Science in General Studies and Minor in Family Consumer Science and Criminal Justice and 2012 with a Masters in Physical Education with an Emphasis on Human Performance.

She has a great love and compassion for young people. Her ministry is to inspire young people to excel in all things with God's leading and to encourage women. Everything she does is done with the spirit of excellency. Her motto is: ''If I can help somebody then her living is not in vain.'' She loves God wholeheartedly and thrives to live according to his will and his way; not just on Sunday, but every

day. She's a genuine giver and does it cheerfully. Everything she has God gave it to her, everything she owns God has blessed her with it, and she has faith the size of a mustard seed and know that it's not over until God says it's over.

Spirit Xplosion Home of CE All Stars was established in 2011 and kicked off their first season in February, 2012. Their competitive teams have won several UCA, Athletic Championship, Jam Fest, Deep South, WSA, and local competitions. They strongly believe that their success originates from the dedication and commitment of the athletes and parents. Furthermore, they realize the importance of hard work, discipline, a family atmosphere, and perhaps most importantly—fun. Each child is an individual and is treated as such to instill confidence and a sense of personal accomplishment. Their main focus is to prepare children for the challenges that lie ahead of them. Their ability to work as a team, striving toward a common goal, will prove to be a lifelong skill. The encouragement to reach that goal is CE All-Stars passion.

Spirit Xplosion Home of CE All Stars competitive teams are not recreational. They train to compete at a high level of intensity, Two of their main goals are to create award winning routines and be an active group in the community. This type of goal requires commitment to attendance and structured workouts. Spirit Xplosion Home of CE All-Stars athletes commit twelve months to the program. CE All-Stars is a family and love building new relationships with everyone that walks through their doors. They are the ''Best of the South and We're In It To Win It''.

Mr. Speaker, I ask my colleagues to join me in recognizing an outstanding minority business in the Mississippi Delta.

THE ''TAX TECHNICAL CORRECTIONS ACT OF 2016''

HON. KEVIN BRADY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. BRADY of Texas. Mr. Speaker, the provisions of H.R. 6439, the ''Tax Technical Corrections Act of 2016,'' as introduced today (December 6, 2016), make tax technical corrections and other corrections including clerical and deadwood-related corrections. The bill revises and updates H.R. 4891, the Technical Corrections Act of 2016, which was introduced on April 11, 2016. Ways and Means Committee Chairman BRADY and incoming Ranking Member NEAL have asked the nonpartisan Joint Committee on Taxation to make available to the public a technical explanation of the bill (JCX–91–16). The technical explanation expresses the Committee's understanding and legislative intent behind this important legislation. It is available on the Joint Committee's website at www.jct.gov.

RECOGNIZING THE 2016 FAIRFAX COUNTY SHERIFF'S OFFICE VALOR AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise today to recognize an outstanding group of men and women in Northern Virginia. These individuals have demonstrated superior dedication to public safety and have been awarded the prestigious Valor Award by the Northern Virginia Chamber of Commerce.

This is the 38th Annual Valor Awards sponsored by the Northern Virginia Chamber of Commerce. This event honors the remarkable heroism and bravery in the line of duty exemplified by our public safety officers. Our public safety and law enforcement personnel put their lives on the line every day to keep our families and neighborhoods safe. This year's ceremony will recognize 70 individuals, 1 K–9, and 1 team in a variety of categories including: the Lifesaving Certificate, the Certificate of Valor, and the Bronze, Silver, and Gold Medal of Valor.

Six members of the Fairfax County Sheriff's Office are being honored this year for their exceptional service. It is with great pride that I include the names of the following Valor Award Recipients:

Lifesaving Award: Sergeant Teena Putman, Sergeant Leslie Sheehan (2 awards), MDS Jeffrey Waple, PFC Kent Lwin, Deputy Alisha Peterson, PFC Cecil Richardson.

Mr. Speaker, I congratulate the 2016 Valor Award Recipients, and thank each of the men and women who serve in the Fairfax County Sheriff's Office. Their efforts, made on behalf of the citizens of our community, are selfless acts of heroism and truly merit our highest praise. I ask my colleagues to join me in applauding this group of remarkable citizens.

PERSONAL EXPLANATION

HON. DAN NEWHOUSE

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. NEWHOUSE. Mr. Speaker, I was unavoidably detained during the vote series that occurred on December 5, 2016, due to flight delays resulting from inclement weather. Had I been present, I would have voted ''Yes'' on the three measures under consideration: H.R. 6427, the Creating Financial Prosperity for Businesses and Investors Act; H.R. 5015, the Combat-Injured Veterans Tax Fairness Act of 2016; and the House Amendment to S. 1635, the Department of State Authorities Act, Fiscal Year 2017, as amended.

REMEMBERING DONALD MONTANARO

HON. ROBERT A. BRADY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. BRADY of Pennsylvania. Mr. Speaker, I rise today to commemorate the life of Donald Montanaro, who passed away last Wednesday of complications from lymphoma. A music teacher at the Curtis Institute of Music for three decades and clarinetist for the Philadelphia Orchestra for nearly fifty years, Mr. Montanaro touched the lives of thousands, in audiences and countless students around the world.

A Philadelphia native, Donald studied clarinet at the Curtis Institute of Music starting in 1951. After graduating in 1954, he left Philly to begin his music career. However, like so many Philadelphians, he just couldn't resist the call of home. After only a few years playing with the New Orleans Symphony and the Ballet Russe de Monte Carlo, Mr. Montanaro returned to join the Philadelphia Orchestra in 1957 as the associate principal clarinetist. He would remain a staple of the orchestra until his retirement in 2005.

Beyond his own remarkable career as a clarinetist, Donald will be fondly remembered for what he taught others. As a teacher at the Curtis Institute from 1980 to 2014, he brought the legacy of celebrated music instructors Marcel Tabuteau and Daniel Bonade to a new generation of musicians. His former students can be found in orchestras ranging from New York and Los Angeles to Seoul and Beijing. In fact, one of Mr. Montanaro's former students now occupies his chair as the Philadelphia Orchestra's associate principal clarinetist. In his recordings and students, Donald has preserved and passed on the legacy of the Philadelphia Sound.

Although Donald is no longer with us, his legacy will live on in concert halls and conservatories the world over. Mr. Speaker, I ask that you and my other distinguished colleagues join me in celebrating the life of Donald Montanaro, one of the finest musicians Philadelphia has ever known.

HONORING VERKILYA ELESHIA HOGAN

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable person, an unsung hero, Ms. Verkilya Eleshia Hogan.

Ms. Verkilya Eleshia Hogan was born on July 25, 1999 to her proud parents Vernon and Sheronda Jackson. She is an intelligent, obedient, and outgoing young lady. She is also very passionate and dedicated to every task that she takes on.

Ms. Hogan very actively participates in many organizations and programs. She has been a cheerleader since the fifth-grade and currently serves as Captain of the Holmes County Central High Varsity Cheer-Squad. She has remarkable leadership skills and continues to be a positive influence to those around her.

At an early age Ms. Hogan proudly experienced an amazing miracle of God which encouraged her to serve Him more daily. On May 18, 2016, she was involved in a detrimental UTV accident. A portion of her left forearm had to be amputated on May 24, 2016. As a teenager, this was disheartening because she didn't know how her future would be with her condition, but she knew God had

already worked things out in her favor. She never lost faith through her circumstances, because she appreciated the simple fact that she could see and breathe each day. The Bible says, ''From the fullness of his grace we have all received one blessing after another'' John 1:16. This scripture, she believes, gives her good reason to give all glory and praises to God.

She will finish her senior year in high school with honors and attend the University of Southern Mississippi, majoring in Kinesiology and pursuing a career as a Physical Therapist. She is determined to go above and beyond to reach her goals and continue to walk in a positive direction.

Mr. Speaker, I ask my colleagues to join me in recognizing Ms. Verkilya Eleshia Hogan, an unsung hero, for her dedication to the community.

RECOGNIZING THE 2016 FAIRFAX COUNTY VOLUNTEER SERVICE AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, it is my honor to recognize Volunteer Fairfax and express my sincere appreciation to recipients of the 24th Annual Fairfax County Volunteer Service Awards.

Established more than 40 years ago, Volunteer Fairfax matches the skills and interests of thousands of volunteers with the needs of local non-profit organizations. The success of this model and its impact on delivery of needed services is beyond question; Volunteer Fairfax has been rated as one of the most effective community service organizations in the nation.

Last year alone, over 23,000 individuals volunteered directly through Volunteer Fairfax; an additional 2,547 employees volunteered through their employers BusinessLink program and the value of volunteer services provided exceeded $2 million.

Each year from this group of extraordinary ''Doers Who Do,'' Volunteer Fairfax selects a few exceptional individuals, groups, or organizations to be honored. It is my great pleasure to include the following names of the 2016 Fairfax County Volunteer Service Awards honorees:

Community Champions:

Braddock District: Jim Bertolini.

Dranesville District: Kathleen Murphy.

Hunter Mill District: Jeff Anderson.

Lee District: Linda Waller.

Mason District: Diane Kilbourne.

Mount Vernon District: Ron Fitzsimmons.

Providence District: The Greater Merrifield Business Association.

Springfield District: George and Estella Lynch.

Sully District: Gary Flather.

At-Large: Gary A. Ambrose.

Adult Volunteer 250 Hours & Over: Kathy Hertz.

Adult Volunteer 250 Hours & Under: Michele Duell.

Adult Volunteer Group: Girls on the Run of NOVA Coaches.

Corporate Volunteer Program: Excella Consulting.

Fairfax County Volunteer: Fred Pitman.

Fairfax County Volunteer Program: Fairfax County Public Library.

Family Volunteer: Hegland Family.

Intégrate Group: Fairfax County Juvenile Court Volunteer Interpreter Program.

Intégrate Individual: Juan Hernandez.

Lifetime Achievement: Alan Schuman.

Rising Star: Jeff Ye.

Senior Volunteer: Les Esmond.

Volunteer Program: Marshall High School FBLA.

Youth Volunteer: Eunice Kwarteng.

Youth Volunteer Group: Stony Brook Junior Volunteers.

In addition, Benchmark Honors will be awarded in four different categories to commend those who have contributed 100, 250, 500, or 1,000 hours of volunteer time to our community.

Mr. Speaker, I ask that my colleagues join me in commending Volunteer Fairfax for its decades of outstanding community service. I congratulate the recipients of the 2016 Fairfax County Volunteer Service Award and thank them and the thousands of other local volunteers for their incredible contributions to our community. Their selfless dedication is worthy of our highest praise and is one reason that our community is often ranked as one of the best places in the country to live, work, and raise a family.

TSUNAMI WARNING, EDUCATION, AND RESEARCH ACT OF 2015

SPEECH OF

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Wednesday, November 30, 2016

Mr. LONG. Madam Speaker, I rise today in strong support of the 21st Century Cures Act and to congratulate my friends Chairman FRED UPTON and Congresswoman DIANA DEGETTE for their tireless work on this crucial legislation.

Specifically I would like to discuss Section 3037 of the Act which is modeled after my legislation, H.R. 2452 which would amend the Federal Food, Drug and Cosmetic Act to facilitate better dissemination of health care economic information. This provision serves an important public health purpose—namely, ensuring payors and other population health decision-makers have relevant data to assist them in making informed decisions on behalf of patients.

Relevant scientific information such as that related to quality of life, cost-effectiveness, and treatment outcomes can inform coverage decisions and improve healthcare costs and patient outcomes. By requiring only that such information relates to an approved indication, and by making other changes, this section broadens the scope of information that can be communicated without being considered false or misleading.

In particular, the omission of the word ''directly'' from the requirement in existing law that information be ''directly related'' to an approved indication means that information that is consistent with an approved use, but not in the labeling itself, falls within the scope of information that can be communicated to payors and other population health decision-makers.

This provision ensures that information providing valuable insight regarding new medicines can be appropriately communicated under the Federal Food, Drug, and Cosmetic Act, and I thank Chairman UPTON for its ultimate inclusion in this package.

HONORING SERGEANT GREG RAMONI

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. YOUNG of Indiana. Mr. Speaker, I rise today to honor Sergeant Greg Ramoni for his service to his country and community. A Scottsburg, Indiana native, Ramoni served in the United States Army for eight and a half years. He completed several tours in Bosnia, Kosovo, and Afghanistan. While in Bosnia, Sgt. Ramoni's unit received word that their tour had been extended through Christmas, and they would be missing the holidays with their families. While on patrol, Sgt. Ramoni spotted a Christmas tree growing on the side of a mountain. Intent on alleviating his soldier's homesickness, he stopped, chopped the tree down, and dragged it back to the convoy. His troops watched in dismay—the mountainside was littered with landmines. Sgt. Ramoni safely brought the tree back to base, and they celebrated Christmas together. Sgt. Ramoni's dedication to his soldiers and mission earned him, among others, the Army Achievement Medal, the Army Commendation Medal, and the Army Superior Award. He also earned recognition for his leadership of President George W. Bush's personal security detail.

Sgt. Ramoni continues to enrich the lives of those in his community by serving with numerous boards and organizations like the Scott County Arts Council, the Chamber of Commerce, and Kiwanis. He serves as the Director of Emergency Communications, Deputy Director of the Emergency Management Agency for Scott County, and Reservist for the Indiana National Guard. He established a local Community Emergency Response Team (CERT), which aims to educate citizens about disaster preparedness. Sgt. Ramoni is a pillar of his community, and a devoted husband and father.

HONORING THE MS. THERESA A. MANUEL

HON. KATHY CASTOR

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Ms. CASTOR of Florida. Mr. Speaker, I rise today to honor the life of an extraordinary Tampa resident and Olympian, Theresa A. Manuel. While Ms. Manuel competed internationally in track and field, her undying commitment to students at home as a teacher and coach may have had an even greater impact on the hearts of my neighbors across the Tampa Bay area.

Despite growing up during segregation, Theresa Manuel persevered through adversity to become the first African-American woman from Florida to compete in the Olympic Games.

Ms. Manuel was born in 1926 in Port Tampa City, Florida. As a young woman, she

was a star basketball player at Middleton High School in Tampa. Ms. Manuel had such a love for basketball that she would often convince neighbors to set up lamps at night so she and her teammates could practice on the outdoor court near Middleton High. She attended the Tuskegee Institute, now Tuskegee University in Alabama, where she was affectionately nicknamed ''Trick Shot'' for her skill in basketball and in addition won multiple championships for the Tuskegee Track and Field team. In the summer before her senior year, Ms. Manuel made history by competing as a member of the U.S. Track and Field team at the 1948 Olympic Games in London. She competed in the Olympics at a time when sports were not widely considered open to women, let alone black women. She represented her country with dignity and grace, and upon returning home she and her team proudly celebrated their success with President Harry Truman at the White House.

After graduating from Tuskegee, Ms. Manuel moved back to Tampa to care for her ailing mother and began her 38 year career as a decorated teacher and coach. She was a legendary coach in Tampa. She led her teams to multiple state championships and was named the best coach in the Hillsborough County in 1975, and subsequently the best in the state of Florida in 1976. Ms. Manuel continued to garner countless honors and awards throughout her distinguished lifetime. Some of those honors include being inducted into the Tuskegee Institute Hall of Fame and City of Tampa Hall of Fame and being named one of the ''100 Distinguished Women of Hillsborough County.''

Ms. Manuel's importance to the African-American community in Florida and indeed all Floridians transcends even her many accomplishments in sport. Most importantly, she will always be remembered as a great leader and giant matriarchal figure to the thousands of students whose lives she touched. She was a champion in all facets of life. On November 21st, 2016, Ms. Manuel passed away at the age of 90 in Tampa, Florida.

Mr. Speaker, on behalf of the citizens of the Tampa Bay community, I am proud to honor Ms. Theresa A. Manuel for her lifelong service and inspirational life.

HONORING ASHLEY WILSON

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable young lady, Ms. Ashley Wilson of Crystal Springs, Mississippi.

Ashley Wilson is a proud native of Crystal Springs, MS. She is a recent graduate of Jackson State University, where she obtained a Bachelor of Science in Healthcare Administration.

Ashley is a Senior Intern who serves as the Financial/Events Planning Specialist at One Voice. She has been with the organization since 2011 and is set to serve as the Chair for the organization's 10th Year Anniversary Celebration.

Making a difference in her home town, Ashley has served as an advocate for her community, where she has served as an Advisory Member to the Crystal Springs Mayoral Council and a member of the Citizens Making a Difference (CMADCS), an organization that acts as a voice for the people's concerns for the city of Crystal Springs.

Furthermore, Ashley has also served on many other committees across the state, such as the 50th Anniversary Commemoration Committee, Mississippi Meeting of the Minds Planning Committee and many other various committees where she has played a vital role in being a voice for change not only in her community, but across the state of Mississippi.

Ashley is currently an active member of the National Association for the Advancement of Colored People (NAACP). As a healthcare advocate for the Mississippi State Conference NAACP, she has worked with several healthcare related projects. The projects that have touched her heart the most include the NAACP's Childhood Obesity Project and the national GET HYPE Initiative, which focuses on healthy eating for today's youth.

Mr. Speaker, I ask my colleagues to join me in recognizing Ms. Ashley Wilson for her dedication to serving throughout her community and throughout organizations around Mississippi.

REMEMBERING DR. WARREN WARWICK

HON. TOM EMMER

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to pay tribute to the life and work of Dr. Warren Warwick.

As a Professor of Pediatrics at the University of Minnesota, Dr. Warwick was a pioneer in the advancement of care for cystic fibrosis patients. Dr. Warwick is often remembered for his work developing the first high frequency chest compression vest, but that was just part of his comprehensive approach to cystic fibrosis care that set the national benchmark for excellence in the treatment of cystic fibrosis.

Early in his career, Dr. Warwick founded the University of Minnesota Cystic Fibrosis Clinic where he served as director for nearly 40 years. Dr. Warwick was known for his compassion, kindness, ingenuity, and tireless commitment to the improvement of patient care.

Dr. Warwick's patients understood that he expected them to be active participants in the fight of their disease, and in turn his patients knew he would be right there, relentlessly fighting with them. It was a fight for which he committed his entire adult life.

Not long after joining the University of Minnesota faculty, Warwick set out, on behalf of the Cystic Fibrosis Foundation, to collect patient data from each of the 31 Cystic Fibrosis Care centers spread across the United States. Because of his work, the Cystic Fibrosis Foundation patient registry was created, which is the global gold standard in ongoing quality improvement through data sharing and collaboration in disease management today.

At the time of the Cystic Fibrosis registry's inception, cystic fibrosis patients routinely lived only into early childhood. Today, many live well beyond their fifties, thanks largely to the advancements in treatment only possible through the patient registry and Dr. Warwick's unwavering commitment to discovery and excellence in patient care.

In addition to serving his patients, Dr. Warwick honorably served his country for over thirty years in the United States Army Reserves Medical Corps, retiring as a Colonel. Throughout, he enjoyed being with his family, and is remembered as a loving and supportive husband, brother, and father.

No single individual has more profoundly impacted or advanced the treatment of cystic fibrosis in our lifetime than Dr. Warren Warwick. His legacy—one of a passionate pursuit of excellence and dedicating his life to helping others—will live on.

CONGRATULATIONS TO WAYNE GLENN ON HOSTING HIS 2,000TH RADIO SHOW

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. LONG. Mr. Speaker, I rise today to congratulate Ozark's broadcaster Wayne Glenn, ''The Old Record Collector,'' on hosting his 2,000th consecutive radio show.

Mr. Glenn has been the host of ''Remember When'' on Springfield's KTXR radio station since 1978. Broadcasting every Saturday from 6 a.m. until 1 p.m., he has been a staple of the Ozark country music folklore for decades by never missing a show. He has over 15,000 vinyl records and can tell you a history lesson about each song he plays.

On December 10, 2016, Mr. Glenn will be hosting his 2,000th episode of ''Remember When'' with KTXR opening its doors to the public for a chance to celebrate this historic milestone with an Ozark icon. It is my pleasure to help recognize Glenn for this great achievement. For all the work he has done to be the voice of Saturday morning radio in southwest Missouri, it makes me proud to serve him and all of Missouri's 7th Congressional District.

TUESDAYS IN TEXAS: SAM RAYBURN

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. POE of Texas. Mr. Speaker, the name Sam Rayburn of Texas is well known to this House. It can be found identifying portraits and busts just outside this Chamber. It is the namesake of meeting rooms and offices throughout the Capitol complex. I, along with many of you, work in the Rayburn office building. I hold conferences in the Rayburn meeting room just across the hall. The name of Sam Rayburn is synonymous with statesmanship and devotion to public service at its finest. His importance to the tradition and legacy of this place can be summed up in the fact that at one time this chamber was referred to as ''Sam's House.''

Rayburn earned the admiration of even his rivals. Joe Martin, after losing the election for speaker to Sam Rayburn, said of his colleague ''he is a man of great ability, of rare

political acumen, and skillful in debate.'' He gained that reputation during a tenure in Congress that lasted almost 49 years, and a record long Speakership of 17 years. His leadership was vital, and well timed. He served this country during the critical years between the beginning of World War II and the Kennedy administration. It was the strike of his gavel that entered America into the war, and it was he that administered the oath of office to Vice President Lyndon Johnson.

As a leader, he always preferred persuasion and good-humor to coercion. Following this philosophy, he used the influence of the speakership only sparingly and with subtlety and cunning. His authority, therefore, came from the general respect of his peers for the character of the man, not the power or prestige of his title. He was known for his unwavering integrity, his loyalty to friends and colleagues in both parties, his fairness, and his disdain for pretension. Rayburn once made the following remark, explaining his philosophy on leadership: ''You cannot lead people by trying to drive them. Persuasion and reason are the only ways to lead them. In that way the Speaker has influence and power in the House.''

Sam Rayburn would become one of the most powerful individuals in the United States, but all this was preceded by humble beginnings. Rayburn grew up working on his father's cotton farm in North Texas. Even as a boy, he dreamed of becoming the Speaker of the House. He left the farm to seek out that dream, working his way through East Texas Normal College, which would later become Texas A&M University. He then taught school, and was eventually elected to serve in the Texas House of Representatives. While there he pursued a degree in law. In 1912 he was elected to the U.S. House of Representatives, and remained there for almost half a century. He was a life-long bachelor, some say that this House was his love, his passion. Appropriately, then, perhaps, Sam Rayburn died in office. Despite knowing that his cancer was terminal, and several moments of unconsciousness at the Speaker's chair, he insisted on seeing the Kennedy New Frontier program through.

Sam Rayburn served his country well, so well as to become a fixture of this institution, and remains so today.

And that's just the way it is.

RECOGNIZING THE 2016 LEADERSHIP PRINCE WILLIAM VISION AWARD AND KATHY ELLINGTON ALUMNI LEADERSHIP AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise to recognize the 2016 recipients of the Leadership Prince William Vision Award and the Kathy Ellington Alumni Leadership Award.

Founded in 2007, Leadership Prince William is an independent non-profit organization dedicated to providing an enriching environment for passionate community members to engage and network with the desire of contributing to the betterment of the Greater Prince William area. More than 270 community leaders have completed Leadership Prince William's Signature Program. Past participants of the Signature Program include a vast array of individuals from the public, private, and not-for-profit sectors. In 2014, Leadership Prince William launched Youth Leadership Prince William. Similar to the Signature Program for adults, Youth Leadership Prince William provides the next generation of leaders with the tools necessary to excel in education, skill development, and community engagement opportunities.

The success and positive effects of Leadership Prince William are beyond question. Based on their talents and passions, Leadership Prince William participants, both past and present, are working to address the greatest needs of the community through skill-based initiatives. Now in its third year, Leadership Prince William staff members and the Board of Regents commend positive forces of change by presenting two awards to members of the community who exemplify true leadership. The Leadership Prince William Vision Award is presented to an individual who has developed strategic and innovative partnerships and exemplifies leadership in the Greater Prince William area and beyond. The Kathy Ellington Alumni Leadership Award honors an individual with noteworthy vision, insight, and understanding of the community's greatest needs. Because of their noteworthy efforts, our community is better off for the lasting positive imprint on the residents of the Greater Prince William area and beyond. It is my honor to enter the recipients of these awards into the CONGRESSIONAL RECORD.

The 2016 Leadership Prince William Vision Award is bestowed upon Dr. Gary L. Jones, CEO of Youth for Tomorrow, for his innovative leadership and programs used to provide children and families with a continuum of services through issue-focused behavioral health and developmental programs. Under Dr. Jones' leadership, the scope of Youth for Tomorrow has grown with Prince William County. In 1996, Youth for Tomorrow provided assistance to eight boys in two residences and a temporary learning structure with an operating budget of $800,000. Today, Youth for Tomorrow serves more than 1,000 children annually with a residential capacity of 122. Boys and girls are housed in seven homes spread across 200 acres and learn in a state-of-the-art academic center that offers a comfortable learning environment and access to six on-site behavioral health service programs.

The 2016 Kathy Ellington Alumni Award recipient is Sharon Henry, who serves in dual roles as the supervisor of the Office of Community and Business Engagement for Prince William County Public Schools and Executive Director of Supporting Partnerships and Resources for Kids (or SPARK), the education foundation for PWCS. Ms. Henry's leadership has reached beyond the confines of PWCS to educate the whole child and ensure students have access to learning tools and materials both in and out of the classroom. Since assuming her role with SPARK in 2007, the foundation's budget has grown exponentially from $477,450 to a bustling $3.2 million as of 2015. Ms. Henry's innovative approach to the operation of the foundation has allowed it to be named one of the ''20 Best Education Foundations in the United States.''

Mr. Speaker, I ask my colleagues to join me in commending the selfless efforts and leadership of Dr. Gary Jones and Sharon Henry and to congratulate them on being honored by Leadership Prince William for their immeasurable contributions to our community. Their tireless work on behalf of the residents of the Greater Prince William area are truly deserving of our highest praise.

RESTORING THE CONGRESSIONAL DUTY TO DECLARE WAR

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. GRAYSON. Mr. Speaker, for more than a century and a half, Congress declared war as the framers of the Constitutional Convention of 1787 directed when they wrote that Congress had the ''power to declare war.'' But starting in the 1950's, Congress began authorizing the President to make the determination for war and voters were deprived of the power to influence their Congressional representatives. The result has been labeled an Authorization for Use of Military Force, or AUMF. It was used in the Vietnam War of 1965–73 and the 2003 war against Iraq, 2003 to the present.

I want to bring attention to a Rutgers Law Review article, ''Restoring the Congressional Duty to Declare War,'' that has challenged the constitutionality of all United States wars fought since World War II. Rutgers School of Law Professor Emeritus Alfred W. Blumrosen and Steven M. Blumrosen, the authors of ''Restoring the Congressional Duty to Declare War,'' rely not only on the language of the Constitution that ''Congress shall have the power to declare war'' but also on the debates in the Constitutional Convention that began June 1, 1787. On that day, Charles Pinckney from South Carolina made clear that he opposed giving the power of war to the President because that would render him ''a Monarchy of the worst kind, to wit an elective one.''

The Convention took two votes. The first put the power of war in the Congress and the second prohibited the Congress from transferring that power to the President. In the following weeks all but one member of the Convention joined Pinckney in the conclusion that Congress, and not the President, should declare war.

Later in the convention, after Pinckney pointed out that Congress might not be in session when the country was attacked, the Convention provided that the Congress could allow the President to call out the state militias in cases of insurrection, invasion, or resistance to federal laws. Congress later implemented its power by declaring a limited war on France for seizing seamen from American ships under claims that they were French. In 1880 the Supreme Court approved this procedure by interpreting the Declare War clause as encompassing ''any contention by force'' with another country, including both full-scale wars and limited wars. But the events at the Convention and the early Supreme Court opinions were not considered by Congress and the lower Federal Courts when the president was allowed to determine war in Vietnam in 1964 and against Iraq in 2003.

The authors found that the Federal judicial system had ignored the decision of the Constitutional Convention and the early Supreme Court opinions.

Mr. Speaker, I urge all interested in this subject to refer to Alfred W. Blumrosen & Steven M. Blumrosen, Restoring the Congressional Duty to Declare War, 63 Rutgers U.L. Rev. 407 (2011).

HONORING SPECIALIST FOURTH CLASS TECHNICIAN GARY ESTES

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. YOUNG of Indiana. Mr. Speaker, I rise today to honor Specialist Fourth Class Technician Gary Estes for his service to the United States Army and to his country. Born in rural, central Kentucky SP4(T) Estes entered the U.S. Army in the fall of 1966. He was trained as a reconnaissance specialist, and then was deployed to Vietnam as a member of an armored cavalry regiment. In addition to executing reconnaissance missions, SP4(T) Estes served as a machine gunner. While aboard an armored vehicle, Estes and his unit came under fire from enemy forces. Estes suffered severe injuries to his shoulder, face, and hand, and had to be airlifted from the battlefield to a hospital in Japan. This event earned him the Purple Heart for his heroism in battle. After two months spent recovering from his wounds, SP4(T) Estes volunteered to return to Vietnam to complete his tour.

In addition to the Purple Heart, SP4(T) Estes was honored as a ''Blackhorse Trooper,'' a distinction reserved for select, elite soldiers, for his exceptional skill in the cavalry regiment. His heroism and desire to serve his country also earned him the National Defense Service Medal, the Vietnam Campaign Medal, the Vietnam Service Medal, and a Combat Infantryman Badge.

After his service abroad, SP4(T) Estes returned home and dove into community service. He is a member of American Legion Post 233, and has held various executive board positions, including Post Commander. Estes also served as Commander of the local Veterans of Foreign Wars (VFW). SP4(T) Estes uses his volunteer spirit to help serve veterans and members of his community.

HONORING MARY HARRISON LEE

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant, Mrs. Mary Harrison Lee who was born on July 22, 1939 in Manila, Philippines to Ida Lloren. She was adopted at an early age by Reverend and Mrs. Ernest Harrison. Her adopted father was a chaplain in the army giving her the opportunity to live in many places, such as Captieux, France, Erlangen, Germany, Fort Riley, Kansas, and San Antonio, Texas.

Mary graduated from Rochefort American High School in France. Upon returning to the United States, she visited Tougaloo College and immediately fell in love with its quaintness, intimacy, the hanging moss from the oak trees, and the family atmosphere. She was convinced that this was where she wanted to spend her next four years and enrolled in the upcoming semester.

She became a member of the Alpha Kappa Alpha Sorority, Inc. on December 13, 1959. She felt the plight of the Civil Rights movement and volunteered to become a Freedom Rider. Mary helped lead a ''sit-in'' in the Trailways bus station in downtown Jackson, where she was arrested and jailed. She did not waiver from the overall mission to gain equality for African Americans. As a result, on June 23, 1961, Freedom Riders from Tougaloo College set a precedent and became the first residents of Mississippi to lead in the movement. While at Tougaloo College, Mary met and fell in love with Gene Lee. They were married in 1963. She and Gene were natural educators. Mary dedicated her working career educating youth. She began as a teacher in Picayune, Mississippi; later moving to Kansas City, Missouri. In 1973, she relocated with her family to Germany and taught within the Department of Defense American School system. In 1981, Mary and her family returned to the United States and settled in Jackson, Mississippi, where she retired in 2001 as Principal from Boyd Elementary School.

Mary and Gene were blessed with three (3) beautiful children: Geno (Angie), Daryl (Cassie), and Angel (Chris), and eight (8) grandchildren: Jessica, Tori, Gabby, Nick, Bella, Alexa, McKenzie, and Malita.

Mr. Speaker, I ask my colleagues to join me in recognizing Mrs. Mary Harrison Lee for her dedication to serving.

CONGRATULATIONS TO DIANNE ELIZABETH OSIS ON HER RETIREMENT AFTER 36 YEARS AS CHAIRWOMAN AND PRESIDENT OF SPRINGFIELD BUSINESS JOURNAL

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. LONG. Mr. Speaker, I rise today to honor Springfield Business Journal founder Dianne Elizabeth Osis on her retirement after 36 years as chairwoman and president.

The Springfield Business Journal has been a staple of Springfield since 1983 and has provided the area with outstanding business news. The Springfield Business Journal was founded by Osis in 1983 with humble beginnings and transformed in the 36 years into a pillar of journalism in the Springfield area. Osis is an example of exemplary hard work.

Although Osis is retiring from her position as chairwoman on January 1, 2017, she still plans on keeping her board position at the Springfield Business Journal. It is my pleasure to recognize her great achievements and wish the staff of the Springfield Business Journal a joyous and well-earned celebration of their success over the years. She has made southwest Missouri a better place to live and made me proud to serve the 7th Congressional District.

RECOGNIZING THE 2016 OFFICERS OF THE FAIRFAX COUNTY FEDERATION OF CITIZENS ASSOCIATIONS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise to acknowledge the Fairfax County Federation of Citizens' Associations (the ''Federation'') and the individuals who will serve as officers for the 2016–2017 term. As a former two-term President of the Federation, I understand that those who volunteer their time, energies, and talents to civic activities play a vital role in making Fairfax County one of the best places in the nation in which to live, work, and raise a family. I am honored to recognize the following individuals for their service to our community:

President: Tim Thompson.
First Vice-President: Ed Wyse.
Second Vice-President: Bill Barfield.
Treasurer: Alejandro Mattiuzzo.
Corresponding Secretary: Matt Bell.

Mr. Speaker, I ask my colleagues to join me in thanking these individuals and in congratulating them on being chosen as officers by the Fairfax County Federation of Citizens' Associations. Civic engagement is one of the core indicators of a healthy community and Fairfax County residents enjoy an exceptional quality of life due in part to the efforts of these individuals. Their contributions and leadership have been a great benefit to our community and truly merit our highest praise. I commend them for the enthusiasm that has led them to seek officer positions within the Federation and ask my colleagues to join me in wishing them great success in all future endeavors.

HONORING FIRST SERGEANT RONALD OWENS

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. YOUNG of Indiana. Mr. Speaker, I rise today to honor First Sergeant Ronald Owens for his service to his country and community. 1SG Owens completed basic training in 1966, two years after graduating from high school. After basic training, he was sent for additional training to learn to intercept and interpret radio traffic. 1SG Owens' extensive 24-year career in the United States Army included two tours in Southeast Asia. 1SG Owens' began his second tour under fire in the dense jungles of Vietnam as a participant in one of the largest and bloodiest campaigns of the Vietnam War—the Tet Offensive. During the campaign, 1SG Owens utilized his specialized training to interrupt and analyze radio communication. 1SG Owens outstanding record of service to his country and to the United States Army is evidenced by his regular promotions; he entered the service as a private in 1965 and reached First Sergeant in the summer of 1986. 1SG Owens earned, among others, the Bronze Star Medal, the Meritorious Service Medal with Oak Leaf Cluster, the Army Achievement Medal, the National Defense

Medal with One Star, and the Vietnam Service Medal.

After joining the U.S. Army Reserves in 1980, 1SG Owens supervised over 250 personnel at the 335th Military Intelligence Company in Louisville, Kentucky. He retired from military service in 2006, but remained active in his community. He was a volunteer firefighter in New Middletown, Indiana, and earned a "First Responders Certificate" for his work responding to emergencies and providing assistance to victims. 1SG Owens' exemplary record of service to his country and community has set the standard for generations of servicemen and servicewomen to come.

TRIBUTE TO OFFICER COLLIN ROSE

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONYERS. Mr. Speaker, today I rise to honor the service, sacrifice, and life of Officer Collin Rose of the Wayne State University Police Department. Two weeks ago, Officer Rose's life was tragically cut short when he was gunned down in the line of duty. Mr. Rose was just 29.

Despite being such a young man, he leaves behind a long list of friends, family, and accomplishments. He grew up in the Pittsburgh area where he played baseball and was a die hard Steelers fan, even after his move to Michigan. He graduated from Ferris State University in northwest Michigan, and quickly seized on his first law enforcement opportunity as an intern with the Battle Creek police. He later enrolled as a cadet with the New Baltimore police, and the village of Richland gave him his first full-time police officer position.

Collin joined the Wayne State University Police Force five years ago. In that time, he and the entire force have become an integral part of the Detroit law enforcement network. The Wayne State force has worked diligently to improve the safety and security of not only the campus area, but all of midtown Detroit, freeing up resources of the Detroit Police Department and other area law enforcement agencies.

Collin leaves behind a beautiful and grieving fiancée, Nikki Salgot. He proposed to her just a few blocks from here at the Law Enforcement Officers Memorial last May at the conclusion of the Police Unity Bicycle Tour. He was an avid bicyclist, and rode with Chapter One of the unity tour since 2013.

Collin was also a dog lover. In fact, he was a K–9 handler with the force, and leaves behind two beloved dogs, Wolverine and Clyde. He was also a member of a Metro Detroit dog training club.

On behalf of a grieving Detroit, I thank Collin for his service and his commitment. To Nikki, to his parents, Randy and Karen, to his brother Curtis, and to the rest of his family, friends, and brothers on the force, for your unimaginable loss my heart goes out to you.

CONGRATULATIONS TO THE MONETT HIGH SCHOOL FOOTBALL TEAM ON WINNING THE CLASS 3A MISSOURI STATE HIGH SCHOOL ACTIVITIES ASSOCIATION STATE CHAMPIONSHIP

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. LONG. Mr. Speaker, I rise today to honor the Monett High School football team on winning the Class 3A Missouri State High School Activities Association State Championship.

The Cubs won the state championship on November 26, 2016, by defeating Maryville 27–18. This is the first state championship since 1977 for Monett High School and caps off an overall 14–1 season. This historic game saw trick plays and excellent coaching by both teams, all while taking place in Springfield's own Plaster Stadium at Missouri State University.

Monett High School is coached by Derek Uhl, and saw strong leadership from players Ian Meyer, Alex Turner and Michael Branch. It is my pleasure to help recognize the Monett High School football team on their well-earned celebration of success. It makes me proud to serve them, and all of Missouri's 7th Congressional District.

HONORING MR. CHARLES SELMON

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a public servant, Charles Selmon. Mr. Selmon has shown what can be done through tenacity, dedication and a desire to serve Warren County.

Mr. Selmon earned a Bachelor of Science in Social Work and a Master's Degree in Counseling Psychology from Mississippi College. He studied Economic Development at the University of Southern Mississippi. He furthered his studies in the Post Master's Degree program at Jackson State University. Mr. Selmon has received National Security Training from the U.S. Army War College located in Carlisle, PA.

Mr. Selmon has served as a Psychology Instructor at both Alcorn State University and Hinds Community College. Mr. Selmon was elected to the Warren County Board of Supervisors position in 1996. He was elected to a fifth term with the Warren County Board of Supervisors. While serving on the Board of Supervisors Mr. Selmon has served as President and Vice-President. He has also served as President of the Mississippi Association of Supervisors (MAS) and as President of the Mississippi Association of Supervisors Minority Caucus. Mr. Selmon was chosen to represent the State of Mississippi with the National Association of Counties regarding Human Services.

Mr. Selmon is a member of the Warren County Economic Development Committee, Back-To-School Committee (School Day Supplies), Warren County Community Development Committee (Senior Citizens Dinner), and serves on the Workforce Investment Board. He is the President of the Boys and Girls Club of Vicksburg which he established.

Mr. Selmon was appointed Superintendent of Sunday School and selected to the Deacon Board of Travelers Rest Baptist Church.

Mr. Selmon received the President Award for Distinguished Leadership in Government.

Mr. Selmon is the father of twin daughters (Alyshia and Tericka). He is married to Fredia Selmon.

Mr. Speaker, I ask my colleagues to join me in recognizing Supervisor Charles Selmon for his services to Warren County.

CONFEDERATED TRIBES OF SILETZ INDIANS AND CONFEDERATED TRIBES OF GRAND RONDE INDIANS

HON. KURT SCHRADER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. SCHRADER. Mr. Speaker, I rise today in strong support of S. 817 and S. 818 and ask my House colleagues for their support for these bills which are vital to two tribes I have the honor of representing.

Over the past three congresses Senators WYDEN, MERKLEY and I introduced these important bills to simplify the fee-to-trust process for the Confederated Tribes of Siletz Indians and the Confederated Tribes of the Grand Ronde respectively. Our legislation will provide considerable help to the Siletz and Grand Ronde in their continued efforts to restore land that was lost during federal policies of allotment and termination of tribal recognition in 1954. The Tribes' efforts to restore land are currently hampered by a lengthy, expensive, and cumbersome Bureau of Indian Affairs process. The ability to reacquire land is critical to self-determination efforts by terminated and restored tribes like the Siletz and Grand Ronde.

Under our legislation any property located within the boundaries of the respective Tribe's original reservation will be treated as "on-reservation" for the purpose of processing acquisitions of property into trust, and deemed a part of the Tribe's reservation once taken into trust. It should be noted that nothing in these bills prioritizes for any purpose the claims of any federally-recognized Indian tribe over the claims of any other federally recognized Indian tribe.

Once enacted, these bills will not only save the Tribes' time and money which could be better utilized serving its membership and the community, but would also streamline the BIA's land-into-trust responsibilities to the Tribes', thus saving taxpayer money. Reforming this process for the Siletz and Grand Ronde tribes reflects the federal policy of tribal self-determination and the priority of restoring lands to once-terminated tribes.

I would like to personally thank Chairman BISHOP and Ranking Member GRIJALVA, Subcommittee Chairman YOUNG and Ranking Member RUIZ, and former Chairman HASTINGS and former Ranking Member DEFAZIO for their leadership, assistance, time, and patience over the years moving these bills through the Natural Resources Committee.

Finally, I would like to thank the Siletz and Grand Ronde Tribes for their friendship and wish them a much deserved congratulations. Their tireless efforts and perseverance over the last six years has been critical to getting this legislation across the finish line. It's an honor to represent both in Congress and I am proud to play a small part in your continued efforts to restore your historic lands.

STAY OUT OF MOSUL

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. GRAYSON. Mr. Speaker, haven't we learned anything?

In 1899, Rudyard Kipling wrote a poem called The White Man's Burden, urging America to bring ''civilization'' to the Philippines. The results were 250,000 deaths, war crimes, and denial of Philippine independence for half a century.

Haven't we learned anything?

U.S. forces occupied Iraq for nine years, until the Iraqis insisted that we leave. The results were more than 600,000 deaths, a cost of $4 trillion (8 percent of our national net worth), and a Sunni vacuum that the Islamic State terror group has filled.

Haven't we learned anything?

I've been to every country in the world recognized by the United Nations. There are a few universals. Everywhere, people want to fall in love; they love children and pets; they're acquisitive. And everywhere, people don't want to see foreigners with guns. They'd prefer a local dictatorship to a foreign military occupation. So please don't tell me that sending U.S. troops back to Iraq would be ''for their own good.''

Some argue that we must send U.S. troops to Mosul for our sake, regardless of what the Iraqis want or need. That's called ''colonialism.'' It pits us against one of the great narratives of our times, world decolonization. It invites the hatred not only of more than 1 billion Muslims but the entire world. They will see us not as liberators but as the enemy.

It is a bizarre misconception to think that sending U.S. troops 8,000 miles from home somehow makes us safer. It doesn't. And it is a great disservice to our troops to fight in a place where they don't understand the language, the religion or the customs.

As a member of the House Foreign Affairs Committee, I asked 10 nearby Sunni Muslim countries whether they would send ground forces to fight ISIL. Four said yes. Then I asked Secretary of State John Kerry whether he had asked the same question. He said ''no.''

If Iraq actually is a thing, then it should be capable of defending itself. If it can't or won't, then fighters who look and sound like locals should do the job.

It isn't the white man's burden. It never was.

RECOGNIZING THE 2016 TOWN OF HERNDON POLICE DEPARTMENT VALOR AWARD RECIPIENTS

HON. GERALD E. CONNOLLY

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. CONNOLLY. Mr. Speaker, I rise today to recognize an outstanding group of men and women in Northern Virginia. These individuals have demonstrated superior dedication to public safety and have been awarded the prestigious Valor Award by the Northern Virginia Chamber of Commerce.

This is the 38th Annual Valor Awards sponsored by the Northern Virginia Chamber of Commerce. This event honors the remarkable heroism and bravery in the line of duty exemplified by our public safety officers. Our public safety and law enforcement personnel put their lives on the line every day to keep our families and neighborhoods safe. This year's ceremony will recognize 70 individuals, 1 K–9, and 1 team in a variety of categories including: the Lifesaving Certificate, the Certificate of Valor, and the Bronze, Silver and Gold Medal of Valor.

This year, Special Police Officer Mark Butler of the Town of Herndon Police Department is being honored with the Silver Medal of Valor for his exceptional service. It is with great pride that I include his name.

Mr. Speaker, I congratulate the 2016 Valor Award Recipients, and thank each of the men and women who serve in the Town of Herndon Police Department. Their efforts, made on behalf of the citizens of our community, are selfless acts of heroism and truly merit our highest praise. I ask my colleagues to join me in applauding this group of remarkable citizens.

HONORING CONSTANCE BLAND

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Constance Bland, who is an Educator, a Leader and Public Servant.

Constance G. Bland, Ph.D. was appointed Vice President of Academic Affairs (VPAA) at Mississippi Valley State University (MVSU) in the spring of 2014. As VPAA, she is responsible for leadership, educational policy, academic programs, budgeting and resource allocation; supervision of staff development programs, federal grant program administration; monitoring of personnel actions and transactions, and participation in academic personnel policy development and negotiation. She is also responsible for relationships with the wider educational and occupational community, particularly the public schools, as well as additional responsibilities as assigned by the President.

Before becoming VPAA, Dr. Bland was Professor and Chair of the Department of Mathematics, Computer and Information Sciences. She developed computer science educational curriculum related to database management systems, software engineering and introduction to computer science. In an effort to impact retention of computer science majors, she was involved in a project to determine the impact of introducing the concepts of object oriented programming for first year computer science students using a visual animation tool known as Alice.

Dr. Bland also acquired significant external funding for the department from sources including the National Science Foundation (NSF), the National Aeronautics and Space Administration (NASA), Eisenhower (state of Mississippi), SUN Microsystems and minigrants from Jackson State University. Her last external funds secured for the department included an S–STEM scholarship grant and an HBCU–UP implementation grant. A major focus of the scholarship grants secured by Dr. Bland involved initiatives to increase the number of computer science and mathematics majors at MVSU. Funds secured were used to institute tutorial services, provide student development activities and support debt reduction though scholarships to decease external employment of students seeking degrees. The goal of the latest HBCU–UP grant is to encourage STEM graduates to pursue graduate education.

Dr. Bland has devoted 23 years of service to MVSU, and has demonstrated her passion and commitment to the University, faculty, staff and students. Her involvement has been extensive, yet she finds time and energy to serve, work and lead, shouldering countless burdens with good humor and grace. She is a tower of strength and a strong force for progressive efficient public service. She always shows patience and tolerance, qualities of an experienced and committed leader. Dr. Bland is a visionary leader who inspires staff, students and the community. She is responsible for developing MVSU's first Women in Science and Technology Conference (WIST) designed to encourage young girls in grades 7th through 12th to consider majoring in STEM disciplines. The conference will celebrate its 20th anniversary in Spring 2016 and can boast of numerous female students who have gone on to become practicing women in science and technology.

Dr. Bland holds an Associate's degree in Mathematics from Coahoma Junior College, a Bachelor of Arts in mathematics, Bachelor of Science in computer science, Master of Science degree in computer science and a Doctoral degree in computer engineering from the University of Mississippi.

Mr. Speaker, I ask my colleagues to join me in recognizing Constance Bland, an Educator, a leader and Public Servant for her dedication to serving others and giving back to the African American community.

HONORING FIRST LIEUTENANT KEVIN WAGNER

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, December 6, 2016

Mr. YOUNG of Indiana. Mr. Speaker, I rise today to honor First Lieutenant Kevin Wagner for his service to his country and community. 1LT Wagner completed two tours in Iraq, each marked with heroism, tragedy, and compassion. During his second tour, as the winter season settled into Mosul, rain fell with little

relief which caused his unit to suffer from painful trench foot. In response, 1LT Wagner withdrew the maximum amount from his pay, and anonymously purchased the entire stock of clean, dry, socks from the camp's supply store. He then placed pairs on each soldier's bed. His actions only came to light among his soldiers ten years later at a reunion. His service earned him the Bronze Star, the Army Commendation Medal, Global War on Terrorism Medal, Iraq Campaign Medal and the Combat Action Badge.

Upon his return home, 1LT Wagner channeled his leadership skills to better his community. He volunteers to help lead Vacation Bible School at his church, and serves as a mentor to at-risk children. 1LT Wagner and another veteran began a veteran's support group, ''Home After the War'', that aims to help returning veterans talk through trauma they experienced in combat. After a tornado struck Henryville, Indiana, a friend called on Wagner to help her husband who was suffering from violent flashbacks triggered by the destruction in the town. 1LT Wagner talked with him, helped him clean his home, and encouraged him as he reconstructed his life. 1LT Wagner's compassion and sense of duty is apparent in his record both on the battlefield and at home.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S6717–S6763

Measures Introduced: Eight bills and one resolution were introduced, as follows: S. 3503–3510, and S. Res. 631. **Page S6758**

Measures Reported:

S. 2997, to direct the Federal Communications Commission to commence proceedings related to the resiliency of critical telecommunications networks during times of emergency, with an amendment in the nature of a substitute. (S. Rept. No. 114–392)

S. 3097, to establish the SelectUSA program, with an amendment in the nature of a substitute. (S. Rept. No. 114–393)

Report to accompany S. 2763, to provide the victims of Holocaust-era persecution and their heirs a fair opportunity to recover works of art confiscated or misappropriated by the Nazis. (S. Rept. No. 114–394)

S. 421, to amend the Communications Act of 1934 to provide for greater transparency and efficiency in the procedures followed by the Federal Communications Commission, with an amendment in the nature of a substitute.

S. 1685, to direct the Federal Communications Commission to extend to private land use restrictions its rule relating to reasonable accommodation of amateur service communications.

S. 2283, to ensure that small business providers of broadband Internet access service can devote resources to broadband deployment rather than compliance with cumbersome regulatory requirements, with an amendment in the nature of a substitute.

S. 2508, to reduce sports-related concussions in youth. **Pages S6757–58**

House Messages:

Tsunami Warning, Education, and Research Act—Agreement: Senate continued consideration of the amendment of the House to the amendment of the Senate to H.R. 34, to authorize and strengthen the tsunami detection, forecast, warning, research, and mitigation program of the National Oceanic and Atmospheric Administration, taking action on the following motions and amendments proposed thereto: **Pages S6719–30**

Pending:

McConnell motion to concur in the amendment of the House to the amendment of the Senate to the bill. **Page S6719**

McConnell motion to concur in the amendment of the House to the amendment of the Senate to the bill, with McConnell Amendment No. 5117, to change the enactment date. **Page S6719**

McConnell Amendment No. 5118 (to Amendment No. 5117), of a perfecting nature. **Page S6719**

A unanimous-consent agreement was reached providing that notwithstanding rule XXII, the post-cloture time with respect to McConnell motion to concur in the amendment of the House to the amendment of the Senate to the bill expire at 2 p.m., on Wednesday, December 7, 2016; and that if cloture is invoked on the conference report to accompany S. 2943, to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, that the post-cloture time be counted as if cloture had been invoked at 1 a.m., on Wednesday, December 7, 2016. **Page S6762**

A unanimous-consent agreement was reached providing for further consideration of the message of the House to accompany the bill, post-cloture, at approximately 9:30 a.m., on Wednesday, December 7, 2016; and that the time from 3 p.m., until 4 p.m. be reserved for tributes to the President of the Senate. **Page S6762**

Appointments:

United States-China Economic Security Review Commission: The Chair announced, on behalf of the Majority Leader, pursuant to the provisions of Public Law 106–398, as amended by Public Law 108–7, and in consultation with the Chairmen of the Senate Committee on Armed Services and the Senate Committee on Finance, the re-appointment of the following individual to serve as a member of the United States-China Economic Security Review Commission: Robin Cleveland of Virginia, for a term

beginning January 1, 2017 and expiring December 31, 2018. Page S6762

Virgin Islands of the United States Centennial Commission: The Chair announced, on behalf of the Majority Leader, pursuant to the provisions of Public Law 114–224, the appointment of the following individuals to serve as members of the Virgin Islands of the United States Centennial Commission: Senators Murkowski and Rubio. Page S6762

Nominations Received: Senate received the following nominations:

Richard A. Kennedy, of Pennsylvania, to be a Member of the Board of Directors of the Metropolitan Washington Airports Authority for a term expiring May 30, 2022.

Rebecca Emily Rapp, of Wisconsin, to be a Member of the Board of Directors of the Legal Services Corporation for a term expiring July 13, 2019.

Thomas J. Murphy, of Colorado, to be Under Secretary for Benefits of the Department of Veterans Affairs.

63 Air Force nominations in the rank of general.

Routine lists in the Army. Pages S6762–63

Messages from the House: Page S6757

Measures Referred: Page S6757

Executive Reports of Committees: Page S6758

Additional Cosponsors: Pages S6759–60

Statements on Introduced Bills/Resolutions: Pages S6760–61

Additional Statements: Pages S6756–57

Amendments Submitted: Page S6761

Authorities for Committees to Meet: Page S6762

Privileges of the Floor: Page S6762

Adjournment: Senate convened at 10 a.m. and adjourned at 6:54 p.m., until 9:30 a.m. on Wednesday, December 7, 2016. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S6762.)

Committee Meetings

(Committees not listed did not meet)

WORLDWIDE THREATS

Committee on Armed Services: Committee concluded a hearing to examine emerging United States defense challenges and worldwide threats, after receiving testimony from General John M. Keane, USA (Ret.), Institute for the Study of War, former Vice Chief of Staff of the Army, Shawn Brimley, Center for a New American Security, and Robert Kagan, The Brookings Institution, all of Washington, D.C.

BUSINESS MEETING

Committee on Foreign Relations: Committee ordered favorably reported the following business items:

H.R. 1150, to amend the International Religious Freedom Act of 1998 to improve the ability of the United States to advance religious freedom globally through enhanced diplomacy, training, counterterrorism, and foreign assistance efforts, and through stronger and more flexible political responses to religious freedom violations and violent extremism worldwide, with an amendment in the nature of a substitute;

H.R. 2845, to promote access to benefits under the African Growth and Opportunity Act, with an amendment;

H.R. 4481, to amend the Foreign Assistance Act of 1961 to provide assistance for developing countries to promote quality basic education and to establish the goal of all children in school and learning as an objective of the United States foreign assistance policy, with an amendment in the nature of a substitute;

H.R. 4939, to increase engagement with the governments of the Caribbean region, the Caribbean diaspora community in the United States, and the private sector and civil society in both the United States and the Caribbean, with an amendment in the nature of a substitute;

S. Res. 537, expressing profound concern about the ongoing political, economic, social and humanitarian crisis in Venezuela, urging the release of political prisoners, and calling for respect of constitutional and democratic processes, with an amendment in the nature of a substitute;

S. Res. 535, expressing the sense of the Senate regarding the trafficking of illicit fentanyl into the United States from Mexico and China, with an amendment in the nature of a substitute;

S. 8, to provide for the approval of the Agreement for Cooperation Between the Government of the United States of America and the Government of the Kingdom of Norway Concerning Peaceful Uses of Nuclear Energy;

S. Con. Res. 57, honoring in praise and remembrance the extraordinary life, steady leadership, and remarkable 70-year reign of King Bhumibol Adulyadej of Thailand;

S. Con. Res. 30, expressing concern over the disappearance of David Sneddon;

Protocol to the North Atlantic Treaty of 1949 on the Accession of Montenegro (Treaty Doc. 114–12); and

The nomination of Kamala Shirin Lakhdhir, of Connecticut, to be Ambassador to Malaysia, and lists in the Foreign Service, all of the Department of State.

IRANIAN THREAT NETWORK

Committee on Foreign Relations: Committee concluded a hearing to examine defeating the Iranian threat network, focusing on options for countering Iranian proxies, after receiving testimony from J. Matthew McInnis, American Enterprise Institute, and Melissa G. Dalton, Center for Strategic and International Studies International Security Program, both of Washington, D.C.

RETALIATORY CRIMINAL REFERRALS

Committee on the Judiciary: Subcommittee on Crime and Terrorism concluded a hearing to examine whether additional firewalls are needed to protect Congressional oversight staff from retaliatory criminal referrals, after receiving testimony from Jeffrey H. Smith, Arnold and Porter LLP, and William Pittard, KaiserDillon PLLC, both of Washington, D.C.; and Scott Horton, Columbia Law School, Pelham, New York.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 8 public bills, H.R. 6439–6446; and 4 resolutions, H.J. Res. 106; and H. Res. 945–947, were introduced.

Page H7271

Additional Cosponsors: **Page H7272**

Report Filed: A report was filed today as follows:

H. Res. 944, providing for consideration of the bill (H.R. 5143) to provide greater transparency and congressional oversight of international insurance standards setting processes, and for other purposes; providing for proceedings during the period from December 9, 2016, through January 3, 2017; and providing for consideration of motions to suspend the rules (H. Rept. 114–846). **Page H7271**

Speaker: Read a letter from the Speaker wherein he appointed Representative Valadao to act as Speaker pro tempore for today. **Page H7183**

Recess: The House recessed at 10:43 a.m. and reconvened at 12 noon. **Page H7188**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Streamlining Energy Efficiency for Schools Act: H.R. 756, to amend the Energy Policy and Conservation Act to provide for the dissemination of information regarding available Federal programs relating to energy efficiency projects for schools;

Pages H7190–92

Power And Security Systems Act: H.R. 6375, to provide for consideration of the extension under the Energy Policy and Conservation Act of nonapplication of No-Load Mode energy efficiency standards to certain security or life safety alarms or surveillance systems; **Pages H7192–93**

Childhood Cancer Survivorship, Treatment, Access, and Research Act: H.R. 3381, amended, to maximize discovery, and accelerate development and availability, of promising childhood cancer treatments; **Pages H7193–98**

Expanding Capacity for Health Outcomes Act: S. 2873, to require studies and reports examining the use of, and opportunities to use, technology-enabled collaborative learning and capacity building models to improve programs of the Department of Health and Human Services; **Pages H7198–99**

Improving Broadband Access for Veterans Act of 2016: H.R. 6394, to require the Federal Communications Commission to submit to Congress a report on promoting broadband Internet access service for veterans, by a ⅔ yea-and-nay vote of 411 yeas to 4 nays, Roll No. 604; **Pages H7199–H7200, H7249–50**

Expressing the sense of the House of Representatives that access to digital communications tools and connectivity is necessary to prepare youth in the United States to compete in the 21st century economy: H. Res. 939, expressing the sense of the House of Representatives that access to digital communications tools and connectivity is necessary to prepare youth in the United States to compete in the 21st century economy, by a ⅔ yea-and-nay vote of 411 yeas to 1 nay, Roll No. 605;

Pages H7200–01, H7250–51

Expressing the sense of the House of Representatives with respect to third-party charges on consumer telephone bills: H. Res. 932, expressing the sense of the House of Representatives with respect to third-party charges on consumer telephone bills;

Pages H7201–02

National Park Service Centennial Act: H.R. 4680, amended, to prepare the National Park Service for its Centennial in 2016 and for a second century

of promoting and protecting the natural, historic, and cultural resources of our National Parks for the enjoyment of present and future generations;
Pages H7203–08

Northern Mariana Islands Economic Expansion Act: H.R. 6401, to amend Public Law 94–241 with respect to the Northern Mariana Islands;
Pages H7209–11

Providing for the addition of certain real property to the reservation of the Siletz Tribe in the State of Oregon: S. 817, to provide for the addition of certain real property to the reservation of the Siletz Tribe in the State of Oregon; **Page H7212**

Amending the Grand Ronde Reservation Act to make technical corrections: S. 818, to amend the Grand Ronde Reservation Act to make technical corrections; **Pages H7212–15**

Cross-Border Trade Enhancement Act: H.R. 875, amended, to provide for alternative financing arrangements for the provision of certain services and the construction and maintenance of infrastructure at land border ports of entry; **Pages H7215–20**

Jeff Miller and Richard Blumenthal Veterans Health Care and Benefits Improvement Act of 2016: H.R. 6416, to amend title 38, United States Code, to make certain improvements in the laws administered by the Secretary of Veterans Affairs, by a ⅔ yea-and-nay vote of 419 yeas with none voting "nay", Roll No. 606; **Pages H7221–41, H7251**

Ethical Patient Care for Veterans Act of 2016: H.R. 5399, to amend title 38, United States Code, to ensure that physicians of the Department of Veterans Affairs fulfill the ethical duty to report to State licensing authorities impaired, incompetent, and unethical health care activities; **Pages H7241–42**

Faster Care for Veterans Act of 2016: H.R. 4352, amended, to direct the Secretary of Veterans Affairs to carry out a pilot program establishing a patient self-scheduling appointment system;
Pages H7242–45

Designating the Traverse City VA Community-Based Outpatient Clinic of the Department of Veterans Affairs in Traverse City, Michigan, as the "Colonel Demas T. Craw VA Clinic": S. 3492, to designate the Traverse City VA Community-Based Outpatient Clinic of the Department of Veterans Affairs in Traverse City, Michigan, as the "Colonel Demas T. Craw VA Clinic"; **Pages H7245–46**

Charles Duncan Buried with Honor Act of 2016: S. 3076, to amend title 38, United States Code, and to authorize the Secretary of Veterans Affairs to furnish caskets and urns for burial in cemeteries of States and tribal organizations of veterans without next of kin or sufficient resources to provide for caskets or urns; and **Pages H7246–47**

Department of Veterans Affairs Emergency Medical Staffing Recruitment and Retention Act: H.R. 4150, amended, to amend title 38, United States Code, to allow the Secretary of Veterans Affairs to modify the hours of employment of physicians and physician assistants employed on a full-time basis by the Department of Veterans Affairs.
Pages H7248–49

Extending the waiver of limitations with respect to excluding from gross income amounts received by wrongfully incarcerated individuals: The House agreed to discharge from committee and pass H.R. 6438, to extend the waiver of limitations with respect to excluding from gross income amounts received by wrongfully incarcerated individuals. **Pages H7220–21**

Question of Privilege: Representative Jordan rose to a question of the privileges of the House and submitted a resolution. Subsequently, the Chair ruled that the resolution did present a question of the privileges of the House. **Pages H7251–53**

Rejected the Pelosi motion to table the resolution, H. Res. 828, by a yea-and-nay vote of 180 yeas to 235 yeas, Roll No. 607. **Page H7254**

Agreed to the Goodlatte motion to refer the resolution to the Committee on the Judiciary by a recorded vote of 342 ayes to 72 noes, Roll No. 608, after the previous question was ordered without objection. **Page H7254**

Providing for the printing of a revised edition of the Rules and Manual of the House of Representatives for the One Hundred Fifteenth Congress: The House agreed to H. Res. 945, to provide for the printing of a revised edition of the Rules and Manual of the House of Representatives for the One Hundred Fifteenth Congress. **Page H7255**

Directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 34: The House agreed to take from the Speaker's table and concur in the Senate amendment to H. Con. Res. 174, directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 34. **Page H7255**

Suspensions—Proceedings Postponed: The House debated the following measures under suspension of the rules. Further proceedings were postponed.

Arbuckle Project Maintenance Complex and District Office Conveyance Act of 2016: H.R. 1219, amended, to authorize the Secretary of the Interior to convey certain land and appurtenances of the Arbuckle Project, Oklahoma, to the Arbuckle Master Conservancy District; and **Pages H7208–09**

Daniel J. Evans Olympic National Park Wilderness Act: S. 3028, to redesignate the Olympic Wilderness as the Daniel J. Evans Wilderness.

Page H7215

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page H7190.

Quorum Calls—Votes: Four yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H7249–50, H7250, H7251, H7253, and H7254. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 8:08 p.m.

Committee Meetings

VOLKSWAGEN'S EMISSIONS CHEATING SETTLEMENT: QUESTIONS CONCERNING ZEV PROGRAM IMPLEMENTATION

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled ''Volkswagen's Emissions Cheating Settlement: Questions Concerning ZEV Program Implementation''. Testimony was heard from Cynthia Giles, Assistant Administrator, Office of Enforcement and Compliance Assurance, Environmental Protection Agency; and Janet McCabe, Acting Assistant Administrator, Office of Air and Radiation, Environmental Protection Agency.

AMERICAN COMPASSION IN INDIA: GOVERNMENT OBSTACLES

Committee on Foreign Affairs: Full Committee held a hearing entitled ''American Compassion in India: Government Obstacles''. Testimony was heard from public witnesses.

STEP OR STUMBLE: THE OBAMA ADMINISTRATION'S PIVOT TO ASIA

Committee on Foreign Affairs: Subcommittee on Asia and the Pacific held a hearing entitled ''Step or Stumble: The Obama Administration's Pivot to Asia''. Testimony was heard from public witnesses.

EXAMINING DECADES OF DATA MANIPULATION AT THE UNITED STATES GEOLOGICAL SURVEY

Committee on Natural Resources: Subcommittee on Oversight and Investigations held a hearing entitled ''Examining Decades of Data Manipulation at the United States Geological Survey''. Testimony was heard from William Werkheiser, Deputy Director, U.S. Geological Survey.

THE FEDERAL INFORMATION TECHNOLOGY ACQUISITION REFORM ACT (FITARA) SCORECARD 3.0: MEASURING AGENCIES' IMPLEMENTATION

Committee on Oversight and Government Reform: Subcommittee on Information Technology; and Subcommittee on Government Operations, held a joint hearing entitled ''The Federal Information Technology Acquisition Reform Act (FITARA) Scorecard 3.0: Measuring Agencies' Implementation''. Testimony was heard from Luke McCormick, Chief Information Officer, Department of Homeland Security; Chip Fulghum, Deputy Under Secretary for Management and Chief Financial Officer, Department of Homeland Security; Frontis Wiggins, Chief Information Officer, Department of State; Douglas Pitkin, Director, Bureau of Budget and Planning, Department of State; and David A. Powner, Director, IT Management Issues, Government Accountability Office.

TRANSPARENT INSURANCE STANDARDS ACT OF 2016

Committee on Rules: Full Committee held a hearing on H.R. 5143, the ''Transparent Insurance Standards Act of 2016''. The committee granted, by record vote of 6–2, a structured rule for H.R. 5143. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–68 shall be considered as adopted, and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only the further amendment printed in the Rules Committee report, if offered by the Member designated in the report, which shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendment printed in the report. The rule provides one motion to recommit with or without instructions. The rule provides that on any legislative day after December 8, 2016: the Journal of the proceedings of the previous day shall be considered as approved; and the Chair may at any time declare the House adjourned to meet at a date and time to be announced by the Chair in declaring the adjournment. The rule provides that the Speaker may appoint Members to perform the duties of the Chair for the duration of the period addressed

by section 2. The rule provides that each day during the period addressed by section 2 of the resolution shall not constitute calendar days for the purposes of section 7 of the War Powers Resolution (50 U.S.C. 1546). The rule provides that each day during the period addressed by section 2 of the resolution shall not constitute a legislative day for purposes of clause 7 of rule XIII (resolutions of inquiry). Finally, the rule provides that it shall be in order at any time on the legislative day of December 8, 2016, for the Speaker to entertain motions that the House suspend the rules and that the Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section. Testimony was heard from Representatives Luetkemeyer, Cleaver, and Heck of Washington.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, DECEMBER 7, 2016

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Commerce, Science, and Transportation: Subcommittee on Surface Transportation and Merchant Marine Infrastructure, Safety and Security, to hold hearings to examine assessing the security of our critical surface transportation infrastructure, 2:30 p.m., SR–253.

Committee on Indian Affairs: to hold an oversight hearing to examine the Department of the Interior's Land Buy-Back Program for Tribal Nations, four years later, 2:15 p.m., SD–628.

Committee on Judiciary: Subcommittee on Antitrust, Competition Policy and Consumer Rights, to hold hearings to examine the competitive impact of the AT&T-Time Warner transaction, 10 a.m., SD–226.

Select Committee on Intelligence: to receive a closed briefing on certain intelligence matters, 3 p.m., SH–219.

House

Committee on Agriculture, Full Committee, hearing entitled ''1890 Land-Grant Institutions: Recruitment Challenges and Scholarship Opportunities'', 10 a.m., 1300 Longworth.

Committee on Armed Services, Subcommittee on Military Personnel, hearing entitled ''California National Guard Bonus Repayment Issue'', 2 p.m., 2118 Rayburn.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled ''Waste and Duplication in the USDA Catfish Inspection Program'', 10 a.m., 2322 Rayburn.

Committee on Financial Services, Subcommittee on Monetary Policy and Trade, hearing entitled ''Unconventional Monetary Policy'', 10 a.m., 2128 Rayburn.

Committee on Foreign Affairs, Subcommittee on Europe, Eurasia, and Emerging Threats, hearing entitled ''Corruption: A Danger to Democracy in Europe and Eurasia'', 10 a.m., 2172 Rayburn.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Examining the Costs of Overclassification on Transparency and Security'', 9 a.m., 2154 Rayburn.

Subcommittee on Government Operations, hearing entitled ''Time and Attendance Abuse at the U.S. Patent and Trademark Office'', 2 p.m., 2154 Rayburn.

Committee on Rules, Full Committee, hearing on S. 612, to designate the Federal building and United States courthouse located at 1300 Victoria Street in Laredo, Texas, as the ''George P. Kazen Federal Building and United States Courthouse'', 3 p.m., H–313 Capitol.

Committee on Transportation and Infrastructure, Full Committee, markup on General Services Administration Capital Investment and Leasing Program Resolutions; and possible other matters cleared for consideration, 10 a.m., 2167 Rayburn.

Joint Meetings

Commission on Security and Cooperation in Europe: to receive a briefing on Baltic security after the Warsaw NATO summit, 2 p.m., 340, Cannon Building.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, December 7

Senate Chamber

Program for Wednesday: Senate will continue consideration of the message of the House to accompany H.R. 34, Tsunami Warning, Education, and Research Act (the legislative vehicle for 21st Century Cures Act), post-cloture, and vote on McConnell motion to concur in the amendment of the House to the amendment of the Senate to the bill at 2 p.m.

Following disposition of the message of the House to accompany H.R. 34, Senate will vote on the motion to invoke cloture on the conference report to accompany S. 2943, National Defense Authorization Act.

(The time from 3 p.m. until 4 p.m. will be reserved for tributes to the President of the Senate.)

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, December 7

House Chamber

Program for Wednesday: Consideration of H.R. 5143—Transparent Insurance Standards Act of 2016 (Subject to a Rule). Consideration of measures under suspensions of the rules.

Extensions of Remarks, as inserted in this issue

HOUSE

Brady, Kevin, Tex., E1601
Brady, Robert A., Pa., E1601
Cartwright, Matt, Pa., E1598
Castor, Kathy, Fla., E1602
Connolly, Gerald E., Va., E1594, E1596, E1598, E1599, E1599, E1601, E1602, E1604, E1605, E1607
Conyers, John, Jr., Mich., E1606
Ellison, Keith, Minn., E1597
Emmer, Tom, Minn., E1600, E1603
Frankel, Lois, Fla., E1599
Garamendi, John, Calif., E1595
Grayson, Alan, Fla., E1604, E1607
Hice, Jody B., Ga., E1596
Higgins, Brian, N.Y., E1595
Huizenga, Bill, Mich., E1593
Hurt, Robert, Va., E1596
Kaptur, Marcy, Ohio, E1600
Lofgren, Zoe, Calif., E1599
Long, Billy, Mo., E1596, E1602, E1603, E1605, E1606
Newhouse, Dan, Wash., E1601
Perlmutter, Ed, Colo., E1595, E1596, E1597
Perry, Scott, Pa., E1593, E1594
Peterson, Collin C., Minn., E1598
Poe, Ted, Tex., E1603
Roe, David P., Tenn., E1594
Ross, Dennis A., Fla., E1594
Schrader, Kurt, Ore., E1606
Sewell, Terri A., Ala., E1597
Stutzman, Marlin A., Ind., E1599
Thompson, Bennie G., Miss., E1593, E1596, E1598, E1599, E1600, E1601, E1603, E1605, E1606, E1607
Tiberi, Patrick J., Ohio, E1597
Tipton, Scott R., Colo., E1598
Visclosky, Peter J., Ind., E1593
Wittman, Robert J., Va., E1595
Young, Todd C., Ind., E1602, E1605, E1605, E1607

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